

ZONING CODE
City of
CHARLESTON, SOUTH CAROLINA
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-087, enacted June 17, 2025.

See the Zoning Ordinance Comparative Table for further information.

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SUPPLEMENT NO. 24
July 2025

ZONING CODE

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-190, enacted December 17, 2024.

See the Zoning Ordinance Comparative Table for further information.

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SUPPLEMENT NO. 23
January 2025

ZONING CODE

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-162, enacted October 8, 2024.

See the Zoning Ordinance Comparative Table for further information.

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SUPPLEMENT NO. 22
October 2024

ZONING CODE

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-250, enacted December 5, 2023.

See the Zoning Ordinance Comparative Table for further information.

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SUPPLEMENT NO. 21
April 2024

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-251, enacted December 5, 2023.

See the Zoning Ordinance Comparative Table for further information.

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Ordinance No. 2023-084, enacted May 9, 2023.

See the Zoning Ordinance Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-181, enacted December 6, 2022.

See the Zoning Ordinance Comparative Table for further information.

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Ordinance No. 2022-084, enacted June 21, 2022.

See the Zoning Ordinance Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-026, enacted February 22, 2022.

See the Zoning Ordinance Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-113, enacted August 17, 2021.

See the Zoning Ordinance Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-040, enacted April 13, 2021.

See the Zoning Ordinance Comparative Table for further information.

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Ordinance No. 2020-116, enacted September 8, 2020.

See the Zoning Ordinance Comparative Table for further information.

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SUPPLEMENT NO. 13
October 2020

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-088, enacted July 28, 2020.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 12
June 2020

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-027, enacted February 25, 2020.

See the Code Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-014, enacted January 28, 2020.

See the Code Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-094, enacted October 8, 2019.

See the Code Comparative Table for further information.

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Ordinance No. 2019-023, enacted April 9, 2019.

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SUPPLEMENT NO. 8
April 2019

ZONING CODE
City of
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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-149, enacted November 27, 2018.

See the Code Comparative Table for further information.

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Ordinance No. 2018-080, adopted July 17, 2018.

See the Code Comparative Table for further information.

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Ordinance No. 2018-059, adopted May 8, 2018.

See the Code Comparative Table for further information.

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Ordinance No. 2017-156, adopted December 19, 2017.

See the Code Comparative Table for further information.

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Ordinance No. 2017-093, adopted August 15, 2017.

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City of
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This copy replaces all existing copies of the Code as published through Supplement No. 14. Future supplements will commence with "Supplement No. 1."



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Checklist of Up-to-Date Pages

(This checklist will be updated with the
printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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2016-011	1-12-16	Included	1
2016-026	2- 9-16	Included	1
Amend. of	2-16-16	Included	1
2016-051	4-26-16	Included	1
2016-061	5-10-16	Included	1
2016-079	7-19-16	Included	2
2016-082	7-19-16	Included	2
2016-083	7-19-16	Included	2
2016-102	9-13-16	Included	2
2016-127	10-11-16	Included	2
2016-145	11-10-16	Included	2
2017-026	3-28-17	Included	3
2017-060	5-30-17	Included	3
2017-069	7-11-17	Included	3
2017-084	8-15-17	Included	4
2017-085	8-15-17	Included	4
2017-093	8-15-17	Included	4
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2017-130	10-10-17	Included	5
2017-144	12-11-17	Included	5
2017-148	12-11-17	Included	5
2017-150	12-11-17	Included	5
2017-156	12-19-17	Included	5
2018-008	2-13-18	Included	6
2018-031	4-10-18	Included	6
2018-043	4-10-18	Included	6
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2019-057	7-16-19	Included	10
2019-094	10- 8-19	Included	10
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2019-141	12-19-19	Included	11
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2020-152	10-27-20	Omitted	15
2020-153	10-27-20	Omitted	15
2020-165	11-24-20	Omitted	15
2021-001	1-12-21	Included	15
2021-006	1-26-21	Included	15
2021-007	2-26-21	Omitted	15
2021-014	2- 9-21	Included	15
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2023-226	11-14-23	Included	21
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2024-017	2-13-24	Included	23
2024-024	2-27-24	Included	23
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2024-094	7-16-24	Included	23
2024-162	10- 8-24	Included	23
2024-185	12- 3-24	Included	24
2024-190	12-17-24	Included	24
2025-024	2-25-25	Included	25
2025-068	5-13-25	Omitted	25
2025-086	6-17-25	Included	25
2025-087	6-17-25	Included	25

ARTICLE 1
GENERAL PROVISIONS

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Basic Provisions

- Sec. 54-101. Title; zoning map adopted.
- Sec. 54-102. Division of city into zoning district classifications.
- Sec. 54-103. Rules for determining zoning district boundaries.
- Sec. 54-104. Applicability of regulations.
- Sec. 54-105. Conflicting provisions.
- Sec. 54-106. Rules of construction.
- Secs. 54-107—54-109. Reserved.

Part 2
Non-Conforming Uses

- Sec. 54-110. Non-conforming uses shall be governed by the following provisions.
- Secs. 54-111—54-119. Reserved.

Part 3
Definitions

- Sec. 54-120. Definitions.

PART 1 BASIC PROVISIONS

Sec. 54-101. Title; zoning map adopted.

- a. This chapter shall be known as the "Zoning Ordinance." The words "City of Charleston, S.C., zoning map" or the words "zone map" or "zoning map" when hereafter used in this chapter shall mean the City of Charleston, South Carolina, zoning map adopted by City Council on August 18, 1981, and readopted by City Council on April 14, 1987, with official amendments, changes, additions and deletions heretofore and hereafter adopted. Said zoning map is provided by the digital zoning database stored in the City of Charleston Geographic Information System (GIS) and maintained in the Department of Planning and Preservation or its successor, and all district designations, boundaries, figures, letters and symbols contained within the official zoning map, are hereby incorporated and declared part of this chapter.
- b. "The Historic Architecture Inventory, 1972-73, Peninsula City, Charleston, S.C.," adopted by City Council June 17, 1975, with official amendments, changes, additions and deletions hereafter adopted. Said inventory is set forth on a series of sheets more particularly described in 54-235.
- c. Old City Height Districts are set forth on the zoning maps prepared by the Department of Planning and Preservation. The zoning maps shall delineate the Old City Height Districts and were adopted as the official zoning map of the city on December 19, 1978, and shall prevail over any other rendition, map or schematic drawing. Said zoning maps, delineating the Old City Height Districts shall be filed in the Office of the Department of Planning and Preservation.

(Ord. No. 2010-225, § 1, 8-17-10; Ord. No. 2015-142, §§ 17, 18, 10-13-2015; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-102. Division of city into zoning district classifications.

- a. For the purposes of this Chapter, the city is divided into base zoning districts with overlapping special zoning districts defined herein as Overlay Zones, the Old and Historic District, the Old City District, and Old City Height Districts, applying to designated areas of the city. The location and boundaries of these districts are and shall be as shown on the zoning map which accompanies this chapter and is hereby declared to be a part hereof.
- b. Base zoning district classifications are designated as follows:

C	Conservation district
AG-8	Agricultural district
AG-S	Agricultural-special district
RR-1	Rural residential district (single family detached dwellings only)
SR-1	Single family (detached dwellings only) residential district
SR-2	Single family (detached dwellings only) residential district

SR-3	Single family residential district
SR-4	Single family residential district
SR-5	Single family residential district
SR-6	Single family (detached dwellings only) residential district
SR-7	Single family (detached dwellings only) residential district
SR-8	Single family (detached dwellings only) residential district
STR	Single and two family residential district
DR-6	Diverse residential (front yards required) district
DR-9	Diverse residential (front yards required) district
DR-12	Diverse residential (front yards required) district
DR-1F	Diverse residential (front yards required) district
DR-1	Diverse residential (front yards not required) district
DR-2F	Diverse residential (front yards required) district
DR-2	Diverse residential (front yards not required) district
DR-3	Diverse residential (single manufactured homes, mobile homes, mobile home parks or non-mobile home dwellings) district
DR-4	Diverse residential (elderly housing) district
RO	Residential office district
GO	General office district
CT	Commercial transitional district
LB	Limited business district
GB	General business district
UC	Urban commercial district
MU-1	Mixed use district
MU-2	Mixed use district
JC	Job Center district
BP	Business park district
LI	Light industrial district
HI	Heavy industrial district
GP	Gathering place district
N	Neighborhood district

c. Special zoning districts.

1. **Overlay Zones.** These include the Accommodations Overlay Zone, Tour Boat Overlay Zone, Johns Island Overlay Zone, Savannah Highway Overlay Zone, School Overlay Zone, Landmark Overlay Zone, Short Term Rental Overlay Zone, General Business Late Night Overlay Zone, Light Industrial Late Night Overlay Zone, Tech Corridor Overlay Zone, Folly Road Overlay Zone, Gateway Overlay Zone, and Amusement and Recreation Services Overlay Zone, and are delineated on the zoning maps. In addition to the regulations and requirements of each overlayed zoning district, properties within the Overlay Zones shall be subject to regulations of the applicable Overlay Zone.
2. **Old and Historic District.** This district is shown on the zoning map and overlays other districts. In addition to the regulations and requirements of each overlayed

zoning district, properties within the Old and Historic District shall be subject to regulations hereinafter required in regard to architectural appropriateness of buildings and structures and maintenance thereof.

3. **Old City District.** This district is shown on the zoning map and described in 54-231 and overlays other districts. In addition to the regulations and requirements of each overlaid zoning district, properties within the Old City District shall be subject to regulations hereinafter required in regard to architectural appropriateness of buildings and structures and maintenance thereof.
4. **Old City Height Districts.** These districts are delineated on the zoning map and include special maximum and minimum height, setback and other area requirements for these districts, which are set forth in Section Article 3, Part 2: Old City Height Districts and View Corridor Protection.
5. **Daniel Island District.** This district applies to a distinct area of the city known as Daniel Island and includes various zoning districts to implement the master plan for the island. The island consists of approximately 3,980 acres of highland, dredge spoil, wetlands and marsh. The Daniel Island District applies to approximately 3,181 acres while the remaining acreage is zoned HI. See Article 2: Part 8, and the adopted Daniel Island Master Plan Zoning Text.
6. **Canterbury Woods District.** This district applies to a residential development which was master planned and extensively developed under the jurisdiction of Charleston County. See Article 2: Part 9, and Appendix G.
7. **Cainhoy District.** This district applies to a section of land in the Cainhoy Peninsular portion of the City.
8. **Neighborhood District.** This district applies to all conservation, residential or commercially zoned, undeveloped parcels of land that satisfy the minimum neighborhood size requirements as set forth in Article 2, Part 13 of the Zoning Ordinance and that are developed under the Neighborhood District regulations, unless subsequently rezoned, and all parcels zoned Neighborhood (N) District with a corresponding density code of 1 through 6, as set forth in Article 2, Part 13. Parcels zoned Conservation, RR-1, SR-1 through SR-7, STR, DR-6, DR-9, DR-12, DR-1, DR-1F, DR-2, DR-3, DR-4, RO, GO, CT, LB, GB or UC have the option of using the Neighborhood District regulations or the standard regulations applicable to the base zoning district of the parcel. The district authorizes a mix of uses and alternate standards for the design of neighborhoods.

(Ord. No. 1996-125, § 2, 7-16-96; Ord. No. 1999-22, § 1, 3-10-99; Ord. No. 1999-137, § 1, 9-28-99; Ord. No. 2001-44, § 1, 5-8-01; Ord. No. 2001-44, § 1, 5-8-01; Ord. No. 2002-84, § 1, 8-13-02; Ord. No. 2003-50, § 1, 5-27-03; Ord. No. 2003-69, §§ 2, 3, 8-19-03; Ord. No. 2004-149, § 1, 12-7-04; Ord. No. 2012-41, 1-24-12; Ord. No. 2014-08, § 1, 1-30-14; Ord. No. 2014-37, § 1, 3-25-14; 2014-67, § 1, 5-3-14; Ord. No. 2016-079, § 1, 7-19-16; Ord. No. 2016-102, § 2, 9-13-16; Ord. No. 2017-148, § 1, 12-11-17; Ord. No. 2018-031, § 1, 4-10-18)

Sec. 54-103. Rules for determining zoning district boundaries.

Where uncertainty exists with respect to the boundaries of any of the aforesaid districts as shown on the zoning map, the following rules shall apply:

- a. Unless otherwise indicated, the district boundaries follow land lot lines; center lines of streets, highways, alleys or railroads; center lines of water courses or impoundments of streams, reservoirs, or other bodies of water.
- b. Where so indicated, district boundaries are parallel to the center lines of streets, highways or railroads, or rights-of-way of same, or the center lines of streams, reservoirs, or other bodies of water, or said lines extended at such distance therefrom as indicated on the zoning map. If no distance is given, such distance shall be determined by the use of the scale shown on said zoning map.
- c. Where a district boundary line on the zoning map divides a lot of record, the district requirements for the least restricted portion of such lot shall be deemed to apply to the whole thereof; provided that such extensions shall not include any part of such a lot more than 50 feet beyond the district boundary line.
- d. In all disputes involving the interpretation of zone district boundaries, the Board of Zoning Appeals shall be the final judge.

(Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-104. Applicability of regulations.

- a. Hereafter no land shall be used or occupied, and no building or structure shall be erected, altered, used or occupied except in conformity with the regulations herein established for the district in which such land, building or structures are located.
- b. In cases of mixed business and residential use within a structure, the regulations applying to the dominant use on the first floor shall apply to all portions of the building so used.
- c. Nothing contained in this ordinance shall be construed to allow or permit any activity described herein which is contrary to city ordinance, state law or federal law.

Sec. 54-105. Conflicting provisions.

If any provision of this Chapter conflicts with any other provision of this Chapter, any section of the City Code, or any applicable State or Federal Law, the more restrictive provision shall apply.

Sec. 54-106. Rules of construction.

In the construction of this Code and of all ordinances, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the council or unless the context clearly requires otherwise.

And, or. The word "and" may be read as "or," and the word "or" as "and," where the sense requires it.

Computation of time. The time within which an act is to be done shall be computed by excluding the first day and including the last day; provided, however, that if the last day of the period so computed is a Saturday, a Sunday or a legal holiday, such day shall be excluded and the time period shall run until the end of the next day which is not a Saturday, a Sunday or a legal holiday.

Delegation of authority. Whenever a provision appears in this Code requiring or authorizing the head of a department or other officer of the city to do some act or perform some duty, it shall be construed to authorize such department head or other officer to designate, delegate and authorize subordinates to do the required act or perform the required duty unless the terms of the provision specifically designate otherwise.

Gender. Words of one gender include the other genders.

Health officer. The words "health officer" shall mean the health officer of Charleston County or Berkeley County, South Carolina, depending on the location of the property in question.

In the city. The words "in the city" shall mean and include any territory, jurisdiction of which, for the exercise of its regulatory power, has been conferred on the city by law.

Joint authority. All words giving joint authority to three (3) or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

Month. The word "month" shall mean a calendar month.

Number. Words used in the singular include the plural and the plural includes the singular number.

Official time standard. Whenever certain hours are named herein they shall mean eastern standard time or daylight saving time as may be in current use in the city.

Preceding, following. The words "preceding" and "following" shall mean next before and next after, respectively.

Shall, may. The word "shall" is mandatory; "may" is permissive.

Signature or subscription includes a mark when the person cannot write.

Tense. Words used in the past or present tense include the future as well as the past and present.

Used. The word "used" shall include the words "arranged, designed or intended to be occupied."

Writing, written. The words "writing" and "written" shall include printing and any other mode of representing words and letters.

Year. The word "year" shall mean a calendar year.

Secs. 54-107—54-109. Reserved.

PART 2
NON-CONFORMING USES

Sec. 54-110. Non-conforming uses shall be governed by the following provisions.

- a. The lawful use of land existing at the time of the adoption of this chapter, or of an amendment thereto, although such use does not conform to the provisions thereof, may be continued, except for rental of amusement and recreational vehicles, which shall be governed by Section 54-223; but if such nonconforming use is discontinued, as evidenced by lack of use for a period of at least three years or by substitution of a conforming use, any future use of said land shall be in conformity with the provisions of this chapter.
- b. The lawful use of a building or structure, existing at the time of the adoption of this chapter, or an amendment thereto, although such use does not conform to the provisions hereof, may be continued except for signs, which shall be governed by Article 4, and rental of amusement and recreational vehicles which shall be governed by Section 54-223, and establishments located within 500 feet of a residential zoning district and which allow for on-premise consumption of alcohol, beer or wine after midnight, which shall be governed by Section 54-206, and such use, with the exception of accommodations uses, bed and breakfast uses, two-family dwelling uses and multi-family dwelling uses, may be extended throughout the building or structure provided such extension does not displace a conforming use and provided no structural alterations are made, other than those necessary to assure the safety of the building or structure.
- c. A non-conforming use of a building or lot cannot be changed to another non-conforming use unless the Board of Zoning Appeals, after a duly advertised public hearing, finds that the proposed use is equally appropriate or more appropriate to the district than the existing non-conforming use. In permitting such change, the Board of Zoning Appeals may impose reasonable and appropriate conditions and safeguards for the protection of the public interest and the value of neighboring properties, including, but not limited to, limitations on the days and hours during which the proposed use may be open to the public.
- d. Whenever a non-conforming use of a building has been changed to a conforming use, such use shall not thereafter be changed back to a non-conforming use.
- e. Whenever a non-conforming use of a building, or a portion thereof, has been discontinued, as evidenced by the lack of use, or vacancy for a period of at least three years, or by substituting a conforming use, such non-conforming use shall not thereafter be re-established and the future use shall be in conformity with the provisions of this chapter.
- f. The non-conforming use of a building or structure cannot be physically extended to provide more area for the non-conforming use, and the number of bedrooms in a

non-conforming two-family dwelling or multi-family dwelling use cannot be increased, unless the Board of Zoning Appeals—Zoning, after a duly advertised public hearing, finds that the extension or increase of the non-conforming use is: (1) limited to extending or increasing the non-conforming use then in existence; and (2) would not result in an unreasonable intensification of the non-conforming use. In considering the reasonableness of the intensification of the extension or increase, the Board shall consider the effect of the extension or increase on properties in the vicinity to include traffic impacts; vehicular and pedestrian safety; parking impacts; potential impacts of noise, lighting, fumes or obstruction of air flow or light on adjoining property; impacts on the aesthetic character of the environs, to include the possible need for screening. If an extension or increase is permitted, the Board may imposed reasonable and appropriate conditions and safeguards for the protection of the public interest and neighboring properties, including but not limited to, limitations on the days and hours during which the proposed use may be operated, and shall require, for properties located in the Old and Historic District, that exterior alterations be approved by the Board of Architectural Review, regardless of whether said alterations are visible from a public street or thoroughfare.

(Ord. No. 1996-125, § 3, 7-16-96; Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 1999-129, §§ 1, 2, 9-20-99; Ord. No. 2002-77, §§ 2, 3, 6-11-02; Ord. No. 2009-54, § 1, 4-14-09; Ord. No. 2010-240, § 1, 10-12-2010; Ord. No. 2015-125, § 3, 9-22-2015; Ord. No. 2016-051, §§ 1, 2, 4-26-16)

Secs. 54-111—54-119. Reserved.

PART 3 DEFINITIONS

Sec. 54-120. Definitions.

The following words, terms and phrases, when used in this Chapter, shall have the meanings ascribed to them in this section, except when the context clearly indicates a different meaning or when the word, term, or phrase is specifically defined to apply to a particular article, part, or section of this chapter:

Accessory Building. A subordinate building on the same lot as the principal building(s) or use. Accessory buildings may include but not be limited to pool houses, additional living space, storage sheds, garages, and additional dwelling units, if permitted by this chapter. Accessory buildings in SR (Single-family Residential) zone districts shall not include kitchens unless the accessory building is permitted by this chapter to have an accessory dwelling unit.

Accessory Dwelling Unit. A dwelling unit providing complete, independent living facilities for no more than two adults that is separate from and subordinate to the principal dwelling unit, and located in the same building as the principal dwelling unit or in an accessory building on the same lot. This definition includes garage apartments.

Accessory Use. A use of land or of a building or portion thereof customarily incidental and subordinate to the principal use of the land or building and located on the same lot with the principal use.

Agricultural Use, Bona Fide. Allowed primary uses on real property to raise, harvest or store crops, feed, breed or manage livestock, or to produce plants, trees, fowl or animals useful for human consumption, including the preparation of the products raised thereon for human consumption and disposed of by marketing or other means and which the subject property receives agricultural preferential assessment by the county assessor's office. Such uses include agriculture, grazing, horticulture, forestry, dairying and mariculture. Uses that do not qualify as bona fide agricultural uses include recreation, hunting clubs, fishing clubs, vacant land (land lying dormant), and any other similar uses. For lots zoned C, conservation, to have a bona fide agricultural use, at least fifty percent (50%) of the lot must be in active agricultural production.

Accommodations Uses. Commercial uses to provide living or sleeping units, for remuneration, to one or more individuals where the intended and/or usual occupancy would not exceed twenty-nine (29) consecutive days, including hotels, motels, inns, bed and breakfasts, short term rental units, rooming and boarding houses, hostels, lodging units, resort units, condominiums, cooperatives, apartments, units that are included in a "Vacation Timesharing Plan" as defined in S.C. Code Ann. § 27-32-10(7), and/or in a "Vacation Timesharing Lease Plan" as defined in S.C. Code Ann. § 27-32-10(8), as each may be amended from time to time, as well as any and all similar uses where the intended and/or usual occupancy is for periods not to exceed twenty-nine (29) consecutive days, and residence club uses. For purposes hereof, individual(s) mean a person, one who owns or receives an undivided interest in a premises, a partner in a

partnership that owns a premises, a beneficiary in a trust that owns a premises, a shareholder in or member of a corporation that owns a premises, a beneficiary in a trust that owns a premises, a holder of a leasehold interest in a premises or a member of a residence club or other organization that owns a premises.

Adult Uses:

Adult Book /Video Store. An establishment having as a substantial or significant portion of its stock in trade books, magazines, videos, and/or other periodicals which are distinguished or characterized by their emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical area" (as defined herein) or an establishment with a segment or section devoted to the sale, rental or display of such material. Adult Book/Video Store uses as defined herein, operating as legal nonconforming uses, shall be amortized and discontinued three (3) years after the effective date of Ordinance No. 1999-08.

Adult Drive-In Motion Picture Theater. Any outdoor theater requiring an automobile for admittance used for presenting material distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" (as defined herein) for observation by patrons therein. This use when operated as a lawful non-conforming use shall be amortized and discontinued one year after the effective date of Ordinance No. 2003-50.

Adult Media/Novelty Store. An establishment with (1) ten percent or more of its retail sales area or (2) ten percent or more of its gross revenues from the sale or rental of any one or more of the following or combination thereof: (a) books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, compact discs, DVD, slides, computer programs, or other visual representations which are distinguished or characterized by their emphasis on the exhibition or display of "specified sexual activities" or "specified anatomical areas" (sometimes hereinafter "adult media material") or (b) instruments, devices, or paraphernalia which are designed for use or marketed for stimulation of human genital organs (sometimes hereinafter "adult novelty").

Adult media/novelty store is a non-exclusive classification that may include adult book/video stores, adult drive-in motion picture theaters, adult mini-motion pictures theaters, adult motion picture theaters, or other adult uses, combinations thereof and combinations of adult uses and non-adult uses. The amortization period for adult media/novelty stores operated as a legal non-conforming use is one year from the date of this ordinance. As it relates to any amortization period, the more restrictive (shorter) amortization period shall apply to any business that is an adult media/novelty store and some other use. If a lawful amortization period for the use has already expired (for example, adult bookstore amortization period), then business shall not be entitled to an additional amortization period by operation of this section.

For the purposes of determining adult media/novelty store "DISTINGUISHED OR CHARACTERIZED BY AN EMPHASIS ON" means the dominant or principal theme of the object referenced. For instance, when the phrase refers to films "which are distinguished or characterized by an emphasis upon the exhibition or display of 'Specified Sexual Activities' or 'Specified Anatomical Areas,' the films so described are those whose dominant or principal character and theme are the exhibition or display of 'Specified Anatomical Areas' or 'Specified Sexual Activities'".

For the purposes of determining adult media/novelty store percentages of stock and percentages of revenue:

- (1) Percentages of stock shall be determined by calculating the total display area generally available to customers and determining that percentage of that display space containing the specified adult media materials and adult novelty items. Stockrooms, backrooms and other areas not generally accessible to the public and off premises inventory shall not be counted towards percentages. Goods at another physical location shall not be counted towards percentage, even if operated by the same business.
- (2) Percentages of gross revenue shall be counted only for the same physical business location and only bona fide sales or rentals may be counted. Where a sale or rental includes a free or reduced price "adult novelty" or "adult media material" with the purchase or rental of an item not an adult novelty or adult media material, the entire transaction shall be counted for the purposes of calculating revenue percentage.
- (3) All techniques and devices used to artificially skew percentages shall be disregarded and the true business of the establishment shall be discerned. Techniques and devices used to artificially skew percentages include but shall not be limited to: reduced price or free adult materials with purchase of non-adult materials, sham transactions or sales, mis-statement of retail value by inflating non-adult material prices above prices generally prevailing as to goods of that type, goods not held for bona fide sale or rental, sham transactions, etc.
- (4) Any business potentially operating as a non-conforming adult media /novelty store by selling or renting adult media material or adult novelties in an area not zoned LI (light industrial) or HI (heavy industrial) shall keep records at the store showing inventory on hand by category and retail value (updated no less than every month) as well as records showing for a six month period (updated no less than every month) which shall be available to zoning administrator or his designee upon request so as to enable zoning administrator or his designee to discern percentages of retail stock and percentages of gross revenue derived from sale or rental of adult media materials and adult novelty items as described above.

Adult Mini-Motion Picture Theater. Any business with an enclosed building or portion of a building with a capacity for less than fifty persons regularly used for presenting material which is characterized by an emphasis on the exhibition or display of "Specified Sexual Activities" or "Specified Anatomical Areas". This shall include booths or stalls (whether entirely enclosed or not) and arcades whether operated by coin or by attendant or otherwise where such materials are shown to a single person or up to forty-nine (49) persons. (This shall not include a bona fide hotel or motel room.) This use when operated as a lawful non-conforming use shall be amortized and discontinued one year after the effective date of Ordinance No. 2003-50.

Adult Motion Picture Theater. An enclosed building with a capacity for 50 or more persons used for presenting material distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" (as defined herein) for observation by patrons therein. This use when operated as a lawful non-conforming use shall be amortized and discontinued one year after the effective date of Ordinance No. 2003-50.

Adult Show Bar. An establishment used for presenting live performances of humans and/or animals having as a dominant theme or characterized or distinguished by an emphasis on (1) matter depicting or relating to specified sexual activities, as herein defined, or (2) the actual or simulated touching, caressing or fondling of the breast, buttocks, anus or genitals, or (3) actual or simulated acts of sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation, or any sexual acts which are prohibited by law, or (4) indecent exposure (as defined by state law) for observation by persons therein and which sells alcoholic beverages to its customers. This use when operated as a lawful non-conforming use shall be amortized and discontinued one year after the effective date of Ordinance No. 2003-50.

Bath House. An establishment for providing bathing, sauna, steam and/or lavatory facilities for male and/or female persons which promotes its services by using and/or advertising the use of homosexual attendants or attendants of the opposite sex of the patron. This use when operated as a lawful non-conforming use shall be amortized and discontinued one year after the effective date of Ordinance No. 2003-50.

Cabaret. A nightclub, bar, juice bar, restaurant, or similar commercial establishment which features or tolerates any of the following: strippers, dancers, entertainers, patrons, impersonators, or other persons, either male or female, who expose to view of the patrons of said establishment at any time "Specified Anatomical Areas."

Massage Parlor. Any business, trade or profession commonly known as massage parlors, health salons, physical culture studios, clubs or establishments, or similar

establishments by whatever name designated, wherein physical culture, massage, hydrotherapy or other physical treatment of the human body involving "specified sexual activities" (as defined herein) is carried on or practiced. This use when operated as a lawful non-conforming use shall be amortized and discontinued one year after the effective date of Ordinance No. 2003-50.

Sexual encounter establishment. Means a business or commercial establishment that offers as one of its primary business purposes, for any form of consideration, a place where two or more persons may congregate, associate, or consort for the purpose of "Specified Sexual Activities" or the exposure of "Specified Anatomical Areas." The definition of sexual encounter establishment shall not include an establishment where a medical practitioner, psychologist, psychiatrist, or similar professional person licensed by the state engages in medically approved and recognized sexual therapy.

Affordable Housing. Single-family, two-family, or multi-family dwelling units, used exclusively for residential uses, where occupants have, in the aggregate, household income of less than or equal to one hundred twenty (120) percent of area median income for owner occupied units, or eighty (80) percent of area median income for rental units, or sixty (60) percent of area median income for rental units. Area median income shall be determined annually by the U.S. Department of Housing and Urban Development as adjusted by the City of Charleston Department of Housing and Community Development, or its successor. Household income shall include all sources of financial support, both cash and in kind, of adult members of the household, to include wages, salaries, tips, commissions, all forms of self-employment income, interest, dividends, net rental income, income from estates or trusts, Social Security benefits, railroad retirement benefits, Supplemental Security income, Aid to Families with Dependent Children or other public assistance or public welfare programs, other sources of income regularly received, including Veterans' (VA) payments, unemployment compensation and alimony, awards, prizes, government or institutional or eleemosynary loans, grants or subsidies and contributions made by the members' families for medical, personal or educational needs.

Alley. A right-of-way of narrow width publicly maintained and used principally as a means of secondary access.

AMI. See Area Median Income.

Arborist. Means a person or firm, possessing a current city business license, who has been trained in the business of diagnosing, treating, pruning and removing trees.

Area Median Income. "Area Median Income" or "AMI" shall mean and have reference to the median family income, based upon applicable family size of a qualified household for the Charleston-North Charleston metropolitan statistical area as published by the United States Department of Housing and Urban Development (together with its successors, "HUD"), as adjusted for household size by the City of Charleston Department of Housing and Community Development (together with its successors, "DHCD").

If HUD should no longer compile and publish such statistical information, the most similar information compiled and published by HUD, or any other branch or department of the federal government or the State of South Carolina, or the City of Charleston shall be used for the purpose of determining AMI. Area median income (AMI) shall be determined annually by the United States Department of Housing and Urban Development as adjusted by the City of Charleston Department of Housing and Community Development, or their successors.

Bed and Breakfast. A conditional use whereby the record owner of a property, who is also the resident of the property, uses one (1) or more rooms per unit for one (1) to ten (10) bed and breakfast units for the purpose of providing sleeping accommodations for one family per unit for a period of between one (1) and twenty-nine (29) consecutive days. A bed and breakfast use shall only be permitted in compliance with the procedures and conditions in Section 54-227 of the Zoning Ordinance and after a bed and breakfast permit is issued by the City.

Bikeway is a generic term for any road, street, path, or traveled way that is in some manner specifically or legally designated for bicycle travel, regardless of whether such facilities are designated for the exclusive use of bicycles or are to be shared with other transportation modes.

Block. A tract of land bounded by streets on all sides.

Buffer Shrub. Means a three gallon or larger shrub, having a fullness appropriate for its container size, intended to be used in a landscape buffer for screening purposes. (Refer to Appendix A, unless otherwise specified.)

Building. Any structure built for the support, shelter, housing or enclosure of persons, animals or property of any kind, including appurtenances to buildings such as chimneys, stairs, and elevated stoops, porches, terraces and decks; except that assistive technology for accessibility including ramps and platform lifts shall not be defined as part of the building for the purpose of measuring setbacks and the lot occupancy of a building.

Building Line. A line parallel to the street right-of-way touching that part of the principal building on a lot closest to the street right-of-way.

Casino. The use of a lot(s) or any buildings(s) thereon by one or more persons where, in the aggregate, such persons make available for use or play more than three (3) game machines or simulated gambling devices. For purposes of this definition, a game machine means an electronic video game machine that, upon insertion of cash, is available to play or simulate the play of games authorized by the South Carolina Tax Commission utilizing a video display and microprocessors in which the player may receive free games or credits that can be redeemed for cash, and simulated gambling device means any device that, upon connection with an object, is available to play or

operate a computer simulation of any game, and which may deliver or entitle the person or persons playing or operating the device to a payoff. The following rules of construction apply to this definition of "simulated gambling device":

- i. The term "device" means any mechanical or electrical contrivance, computer, terminal, video or other equipment that may or may not be capable of downloading

games from a central server system, machine, computer or other device or equipment. The term "device" also includes any associated equipment necessary to conduct the operation of the device.

- ii. The term "upon connection with" means insertion, swiping, passing in range, or any other technical means of physically or electromagnetically connecting an object to a device.
- iii. The term "object" means a coin, bill, ticket, token card or similar object, obtained directly or indirectly through payment of consideration, or obtained as a bonus or supplement to another transaction involving the payment of consideration.
- iv. The terms "play or operate" or "play or operation" includes the use of skill, the application of the element of chance, or both.
- v. The term "computer simulation" includes simulations by means of a computer, computer system, video display, video system or any other form of electronic video presentation.
- vi. The term "game" includes slot machine, poker, bingo, craps, keno, any other type of game ordinarily played in a casino, a game involving the display of the results of a raffle, sweepstakes, drawing, contest or other promotion, lotto, sweepstakes, and any other game associated with gambling or which could be associated with gambling, but the term "game" does not necessarily imply gambling as that term may be defined elsewhere.
- vii. The term "payoff" means cash, monetary or other credit, billets, tickets, tokens or other electronic credits to be exchanged for cash or to receive merchandise or anything of value whatsoever, whether made automatically from the machine or manually.

Canopy. A structure constructed of rigid materials, including, but not limited to, metal, wood, concrete, plastic or glass, which is attached to and supported by a building or by columns, poles or braces extended to the ground.

Certificate of Occupancy. A statement, signed by the administrative officer, setting forth either that a building or structure complies with this chapter or that a building, structure, or parcel of land lawfully may be employed for specified uses, or both.

City. The words "city," "the city" or "this city" shall mean the City of Charleston, in the County of Charleston, and State of South Carolina, except as otherwise provided.

Commercial Industrial or Office Developments. One (1) or more retail, industrial or office establishments or any other non-residential use not necessarily in single ownership but which occupies common and/or adjacent buildings on one or more lots of record utilizing common parking, ingress or egress, developed as, and appearing to be, a unified entity.

Commercial Nursery. Means an ongoing business for the planting, growing, and sale of plants and trees. A commercial nursery does not include an ongoing silviculture operation.

Commercial Parking Lot. A tract of land, building, or structure used for the storage or parking of automobiles by the general public and either operated for profit by the charging of fees, rents or the like, or used as an accessory to a principal business or industrial use.

Commercial Short Term Rental. See definition for "Short Term Rental, Commercial."

Commercial Timber Operation. Means property which, on the effective date of this Ordinance, is being used to raise, harvest or produce trees for commercial marketing. The burden shall be upon the owner to establish this use through evidence such as prior leases or marketing agreements, the actual planting of the trees for harvesting, etc.

Commercial Vehicles. Any commercial landscaping equipment and any vehicle that requires a Commercial Driver's License to operate.

Common Open Space. Common open space means any parcel or area of land or water essentially unimproved and set aside, dedicated, designated or reserved for the use and enjoyment of the public generally or for the use or enjoyment of the residents of the development and their guests. Without limiting the foregoing, common open space may include such complementary structures and improvements as are necessary and appropriate, in addition to wetlands, critical areas, water bodies, agricultural lands, wildlife habitat, historical or cultural features, archaeological sites, easements for underground public utilities, or other elements to be protected from development. Common open space shall not include streets, alleys, or cul-de-sacs; drives; off-street parking and loading areas; areas so located or of such size or shape to have no substantial aesthetic or recreational value; or any area within the property lines of residential lots.

Communication Tower. A tower of any size which supports communication equipment, transmission or reception, and is utilized by commercial, governmental, or other public or quasi-public users. This does not include communication towers for amateur radio operators licensed by the Federal Communications Commission which are exempt from municipal zoning restrictions.

Community Garage. A group of private garages, either detached or under one roof, arranged in a row or around a common means of access, and erected for use of residents in the immediate vicinity.

Community Parking Lot. An open area in a residential district for the parking of cars of residents of the immediate vicinity; provided, however, there shall be no sale of parking spaces on an hourly, daily, or weekly basis.

Conservation Tree. Any native tree species with a DBH of sixteen inches (16") or greater. The following species are considered Conservation Trees when they reach a DBH specific to their species: American Holly, twelve inches (12"), Dogwood, eight inches (8"), Loblolly and Slash Pine, twenty inches (20").

Corner Lot. A lot abutting upon two or more streets at their intersection.

Council, City Council. The words "the council" or "city council" shall mean the city council of the City of Charleston, South Carolina.

Court. An open unoccupied space, other than a yard, on the same lot with a building, unobstructed from floor or ground level to the sky.

Crawl Space. Crawl space is defined as an underfloor space that is not a basement, is designed to preclude habitable space, and is located beneath the lowest finished (habitable) floor.

Damage or Abuse. Means any action which does not follow good arboricultural practices. Abuse also includes damage inflicted upon roots by machinery, changing the natural grade above the root system or around the trunk, changing drainage patterns around the tree, destruction of the natural shape of the tree or any action which causes infection, infestation or decay.

Dance Halls and Studios. A building or a portion of a building used as a place of work, or for public or private entertainment, by one or more dancers.

Day Care. The care, supervision or guidance of a person or persons, unaccompanied by the parent, guardian or custodian, on a regular basis, for periods of less than twenty-four hours per day in a place other than the person or persons' own home or homes.

Day Care Facility. Any state licensed, registered or approved facility which provides care, supervision or guidance for any person who is not related by blood, marriage or adoption to the owner or operator of such a facility whether or not the facility is operated for profit and whether or not the facility makes a charge for services offered by it. For the purposes of this definition, related means any of the following relationships by marriage, blood or adoption: parent, grandparent, brother, sister, step-parent, step-sister, step-brother, uncle, aunt, cousin of the first degree. Day Care Facilities include, but is not limited to day nurseries, day care centers, group day care homes and family day care homes. The term does not include:

1. any educational facility, whether private or public, which operates solely for educational purposes in grades one or above;
2. five-year-old kindergarten programs operated by a public or private school;
3. kindergartens, preschools, nursery schools or other daytime programs receiving children younger than lawful school age primarily for educational purposes;
4. facilities operated in connection with a shopping center or service or other similar facility, where the same children are cared for less than four hours a day and not on a regular basis while parents or custodians of the children are occupied on the premises or are in the immediate vicinity and immediately available;
5. summer resident or day camps;
6. Bible schools normally conducted during vacation periods;

7. programs offered by a church, synagogue or other religious institute which are primarily for the purpose of religious instruction or practice;
8. programs offered by parks, senior citizen centers, etc., for which the primary purposes are recreation and social interaction rather than care taking.

Types of Day Care Facilities:

Day Care Center. Any facility which regularly receives persons for day care during the hours of 6 a.m. to 7 p.m.

Family Day Care Home. Any facility, within a dwelling unit, which regularly provides day care for no more than five persons, unattended by a parent, custodian or legal guardian, during the hours of 6 a.m. to 7 p.m., including those persons living in the home and persons received for day care who are related to the resident caregiver, provided, however, that an occupied dwelling in which day care is regularly provided only for a person or persons related to the resident caregiver, or only for a person or persons of one unrelated family, or only for a combination of such persons, is not a family day care home. Please note that building codes may prohibit a family day care home within a dwelling unit without significant improvements. Applicants for family day care homes are advised to check with the City of Charleston Inspections Division prior to applying for zoning approval.

Group Day Care Home. Any facility, within a dwelling unit, which regularly provides day care for at least six but not more than twelve persons, unattended by a parent, custodian or legal guardian, during the hours of 6 a.m. to 7 p.m., including those persons living in the home and persons received for day care who are related to the resident caregiver, provided, however, that an occupied dwelling in which daycare is regularly provided only for a person or persons related to the resident caregiver, or only for a person or persons of one unrelated family, or only for a combination of such persons, is not a group day care home. Please note that building codes may prohibit a group day care home within a dwelling unit without significant improvements. Applicants for group day care homes are advised to check with the City of Charleston Inspections Division prior to applying for zoning approval.

Overnight Day Care Facility. Any facility which regularly provides day care for persons unattended by a parent, custodian or legal guardian between the hours of 7 p.m. and 6 a.m., provided, however, than an occupied dwelling in which day care is regularly provided only for a person or persons of one unrelated family, or only for a combination of such person, is not an overnight day care facility.

dBA. A uniform noise measurement that simulates people's perception of loudness and annoyance. It is weighted to account for those frequencies most audible to the human ear. This is known as the A-weighted sound level, or dBA.

Decibels. Sound is a fluctuation in air pressure. Sound pressure levels are measured in units called decibels (dB).

Deferred Presentment Lender. A business or use that regularly accepts checks from a borrower drawn on the borrower's bank account to be presented for payment at a later date and that charges a fee for the service, such as those regulated by Chapter 39 of Title 34 of the Code of Laws of South Carolina, 1976, as amended.

Depth of Lot. The mean horizontal distance between the front lot line and the rear lot line.

Depth of Front Setback. The least distance from any part of or point on the building to the front lot line of the lot.

Depth of Rear Setback. The least distance from any part of or point on the building to the rear lot line of the lot.

Development Plan. Development plan means a preliminary plat and, to the extent public improvements are required, construction drawings, for subdivision of any property that includes all information described on the development plan submittal checklist for subdivision applications available from the Zoning Division.

Diameter Breast Height (D.B.H.). Means the total diameter, in inches, of a tree trunk or leaders, measured four and one-half (4½) feet above existing grade. In instances where a tree splits into leaders below four and one-half (4½) feet above existing grade and the leaders are physically attached above the ground and of the same specie of tree, all leaders equal to or greater than six (6) inches D.B.H. shall be measured separately and count as one tree.

Dormitory. A building or part of a building operated by an academic institution containing a room or rooms forming one (1) or more habitable units which are used or intended to be used by residents of the institution for living and sleeping, but not for cooking or eating purposes.

Drip Line. Means an imaginary vertical line that extends downward from the outermost branches of a tree to the ground.

Dwelling. Any building, or part thereof, used and occupied for human habitation or intended to be so used including any appurtenances belonging thereto or usually enjoyed therewith but not including hotels, motels, inns, bed and breakfasts, boarding or rooming houses, and timesharing facilities (see also "Residential Use").

Types of Dwellings:

One-Family Detached Dwelling. A separate detached building designed for and occupied exclusively as a residence by one family.

Single-Family Detached Dwelling. See One-Family Detached Dwelling.

One-Family Attached Dwelling. A building designed for and occupied exclusively as a residence by one family, being attached by means of a common dividing side wall or walls to one or more buildings likewise designed for and occupied as a residence

for one family. A single housing unit occupies each structure from ground to roof and independent access is available for each unit from the outside. Such attached one-family dwellings are commonly referred to as "town", "patio", or "row" houses.

Single-Family Attached Dwelling. See One-Family Attached Dwelling.

Two-Family Dwelling. A separate detached building designed for or occupied exclusively as a residence by two families.

Mobile Home. See definition under "Mobile Home" in this Section.

Multi-family Dwelling. A building designed or occupied otherwise than as a one-family dwelling or a two-family dwelling. The term "multi-family dwelling" shall be understood to include apartment houses, tenement houses, residential condominiums and similar multi-family buildings exclusive of hotels, apartment hotels, and motels, inns, boarding or rooming houses, bed and breakfasts, and timesharing facilities.

Dwelling Unit. One or more rooms arranged for the use of one (1) or more individuals living together as a single housekeeping unit, with cooking, living, sanitary and sleeping facilities (see also "Residential Use").

Discount Stores. A single store or group of stores advertising a wide variety of merchandise for sale at less than retail cost.

Facade. The entire building wall, including parapet, fascia, windows, doors and canopy on any complete elevation. For purposes of this ordinance "building wall" shall also mean the exterior wall of an individual business unit within a building containing more than one business.

Family.

1. An individual; or
2. One (1) or more persons related by blood or marriage with any number of natural children, foster children, stepchildren or adopted children, plus not more than two (2) unrelated persons living together as a single housekeeping [unit]; or
3. A group of not more than four (4) persons not related by blood, marriage, adoption, or guardianship, living together as a single housekeeping unit, except that for properties in non-residential zoning districts containing twenty (20) or more dwelling units the maximum number of unrelated persons allowed in a single housekeeping unit shall be six (6).

Fence or Wall. Means a structural device erected to serve as an architectural element, landscape element, screen or barrier.

Foot Candle. A unit of illumination equal to the light flux falling on one square foot of area one foot away from a light source of one candle power.

Foot Lambert. A unit of brightness equivalent to the emission of foot candle of illumination from one square foot of area.

Fraternity House. A building maintained exclusively for fraternity members and their guests or visitors and affiliated with an academic or professional college, university or other institution of higher learning.

Freeboard. A factor of safety usually expressed in feet above a base flood level for purposes of floodplain management

Front Setback. A setback across the full width of the lot extending from the front line of the lot to the corresponding line of the building.

Garage. A building or any portion thereof used for housing or repairing motor vehicles. This does not include rooms for storing, exhibiting or showing new cars for sale.

Garage Apartment. A room or rooms intended to be used as sleeping quarters, attached to a private or community garage.

Grade. Means the natural elevation of the ground.

Grand Tree. Means a tree twenty-four inches (24") or greater D.B.H. Grand trees shall not include any species of pine trees (genus Pinus).

Green Infrastructure or GI. Green Infrastructure (GI) is an adaptable term used to describe an array of materials, technologies, and practices that use natural systems or engineered systems that mimic natural processes to enhance overall environmental quality and provide utility services. As a general principal, green infrastructure techniques use soils and vegetation to infiltrate, evapotranspire, and/or recycle stormwater runoff. Examples of green infrastructure include green roofs, porous pavement, rain gardens, and vegetated swales.

Gross Acreage. The total area of a lot or lots including all submerged land and wetlands.

Gross Density. The number of dwelling units per gross acre.

Ground Cover. Means low growing plant material less than eighteen inches (18") in height.

Half Story. The space under a gabled or hipped roof, where the wall plates, or knee walls, on at least two opposite exterior walls are not more than two feet above the finished floor of such story. The aggregate width of dormers on a half-story shall not exceed 50 percent of the width of the exterior wall below the dormer(s)

Height of Building. The vertical distance measured from the curb line to the highest point on the finished roof, including appurtenant parts and mechanical penthouses, of the structure. Elevator shaft penthouses set back from the side lines of the building a distance equal to the height of such shafts shall be excluded for the purpose of measuring height.

Height of Terrace. The difference in elevation between the lowest terrace level and the top of the terrace at a point central to the width of the nearest on-lot building wall or building profile.

High Ground. Such portion of a lot or tract of land and exclusive of naturally occurring water bodies and any areas lying below the critical line of the South Carolina Office of Ocean and Coastal Resources Management (OCRM) or any areas within the jurisdic-

tion of the U.S. Army Corps of Engineers as shown on a plat or site plan of a lot or tract that has been stamped by the OCRM or the U.S. Army Corps of Engineers, or both, as appropriate. A man-made body of water contained within the boundaries of a project shall be assessed at fifty percent (50%) of the total acreage of said body of water for purposes of calculating project density. However, the total number of developable acres shall not exceed a twenty percent (20%) increase in the number of developable acres that would exist if the body of water was excluded from the calculation.

Home Occupation. A home occupation shall be defined as an occupation, profession or trade that is customarily conducted within a dwelling by the resident of record, is incidental and subordinate to the principal residential use, and does not constitute a nuisance or adversely affect the use and development of adjoining properties in the neighborhood.

Hotel. A building or part of a building in which living or sleeping accommodations served by common entrances are used primarily for transient occupancy and may be rented on a daily basis.

Household Income. All sources of financial support, both cash and in kind, of adult occupants of the housing unit, to include wages, salaries, tips, commissions, all forms of self-employment income, interest, dividends, net rental income, income from estates or trusts, Social Security benefits, railroad retirement benefits, Supplemental Security income, Aid to Families with Dependent Children or other public assistance welfare programs, other sources of income regularly received, including Veterans' (VA) payments, unemployment compensation and alimony, and awards, prizes, government or institutional or eleemosynary loans, grants or subsidies and contributions made by the household members' families for medical, personal or educational needs.

Impervious Surface. Surface that has been compacted or covered with a layer of material so that it is highly resistant to infiltration by water, including conventionally surfaced streets, roofs, sidewalks, parking lots, and other similar structures. For purposes hereof, all other surfaces shall be considered pervious surfaces.

Inn. See Hotel.

Inner Court. A court not extending to a street or alley or to a front or rear yard.

Interior Lot. A lot, the side lines of which do not abut on a street.

Land Development. Means the changing of land characteristics through redevelopment, construction, subdivision into parcels, condominium complexes, apartment complexes, commercial parks, shopping centers, industrial parks, mobile home parks, and similar developments for sale, lease, or any combination of owner and rental characteristics.

Landscaping. Means the practice or physical product of the arrangement of plant materials including ground cover, shrubs and trees, along with other natural and man-made elements such as rocks, fences and walls, as a means to enhance the built or

natural environment by screening undesirable or unsightly land uses, buildings or other structures, or parking areas; by creating privacy; by buffering different land uses; and by modifying micro-climatic conditions (wind, shade, air temperature, etc.).

Leq(1). The constant sound level that, in a given situation and time period of one hour, conveys the same sound as the actual time-varying sound. This is a way of describing fluctuation sound by describing the fluctuating noise heard over a one-hour time period as if it had been a steady, unchanging sound. The method of averaging the noises made over a given time period weights the louder, more intrusive noises more heavily.

Lot. A portion or parcel of land laid out and approved by proper authorities and recorded as a single parcel in the R.M.C. office for Charleston County or Berkeley County, which is devoted to a common use or occupied by a building or buildings.

Lot Frontage. The front side of a lot that abuts a street or thoroughfare from which direct vehicular access to lots may be available.

Lot Occupancy of a Building. The horizontal area measured within the outside of the exterior walls or foundations of a building (see definition of "building"), except that appurtenances to buildings such as stairs and elevated stoops, porches, terraces and decks, that are not covered and are not elevated more than three feet above grade, shall not be included for the purpose of calculating lot occupancy of a building.

Low Impact Development or LID. Low impact development (LID) is a set of principles and design components used to manage stormwater runoff by mimicking natural conditions and limiting pollutant transport through source control. Nothing in this definition amends, modifies, abrogates, or repeals the Stormwater Regulations, and applicants must comply with all applicable Stormwater Regulations and obtain approval under such Stormwater Regulations for the use of any LID.

Mixed Occupancy. Occupancy of a building or land for more than one use.

Mobile Home. Any building or structure used or designed to be used for habitation of persons, or so designed and constructed that such building or structure may be transported in its entirety or in substantial part by a wheeled vehicle and placed upon a permanent foundation; or any manufactured structure designed or intended to be utilized as a single family dwelling which is over thirty-five feet (35` ) in length, or over eight feet (8`) in width, and which can be temporarily or permanently parked upon a mobile home space.

Mobile Home Pad. A paved foundation equipped with utility connections located on a mobile home space.

Mobile Home Park. A development which meets the requirements of Article 3, Part 3, upon which two (2) or more mobile homes are placed for occupancy.

Mobile Home Space or Lot. A parcel or lot in a mobile home park or a single lot of record which meets the requirements of this ordinance for the placement of a mobile home.

Motel or Auto Hotel. A roadside commercial establishment offering lodging and automobile parking for transient travelers which has individual entrances from outside the building to serve the separate units.

Multi-Use Path means a bikeway physically separated from motorized vehicular traffic by an open space or barrier and either within the highway right-of-way or within an independent right-of-way. Multi-use paths may also be used by pedestrians, skaters, wheelchair users, joggers, and other non-motorized users.

Neighborhood Use. A term which shall be used to identify specific areas in a Planned Unit Development where a variety of uses including, but not limited to, residential, commercial, office and institutional uses may be permitted subject to zoning regulations on a PUD Master Plan approved in accordance with Article 2: Part 7 Planned Unit Development, PUD District.

Net Acreage. The total area of high ground on a given lot or group of lots, including areas for proposed public and private roads.

Net Density. The number of dwelling units per net acre.

Nonconforming Use. A use of building or land that does not conform with the regulations of the district in which it is situated.

OCRM. The South Carolina Office of Ocean and Coastal Resources Management.

Open Space. Any parcel or area of land or water essentially unimproved and set aside, dedicated, designated or reserved for public or private use or enjoyment, or for the use and enjoyment of owners and occupants of land adjoining or neighboring such open space. Open space shall not include streets, drives, off-street parking and loading areas, area so located or of such size or shape to have no substantial aesthetic or recreational value and any area within residential lots.

Ornamental Shrub. Means a three gallon or larger shrub, having a fullness appropriate for its container size, intended for ornamental purposes. (Refer to Appendix A.)

Outer Court. A court extending to a street or alley or to a front or rear yard.

Owner. The word "owner," applied to building or land, shall include any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such building or land.

Owner Occupied Workforce Housing Unit. See Workforce Housing Unit, Owner Occupied.

Parapet. A vertical false front or wall extension above the roof line.

Peninsula. Means the area of the City of Charleston bounded by the Cooper River to the east, the Ashley River to the west and south, and the Charleston City Limits to the north, unless otherwise defined within this Chapter.

Personal Property. Includes every species of property except real property, as herein defined.

Person. The word "person" shall include a corporation, firm, partnership, association, organization and any other group acting as a unit, as well as an individual.

Pervious Surface. A surface that permits full or partial infiltration of water. Notwithstanding the foregoing, a pervious surface shall include any surface which is not an impervious surface.

Pool. A structure intended for swimming, recreational bathing or wading that contains water over 24 inches deep. This includes in-ground, above-ground and on-ground pools; hot tubs; spas and fixed-in-place wading pools.

Porch. A roofed or unroofed structure forming an entrance to a building or used primarily as a partial access to the exterior of the building. A porch is primarily open and subject to exterior views of its interior portion.

Principal Building. The building(s) in which the principal use on a lot is conducted.

Produce Market. An open air structure or roadside stand used for the retail sale of fresh fruits, vegetables, grains, eggs, flowers, herbs, plants, seafood or other types of food and agricultural products. Produce sold may be grown on the property where the market is located or may be trucked in from area farms.

Property. The word "property" shall include real and personal property.

Protected Tree. Means a tree eight inches (8") or greater D.B.H.

Protective Barricade. Means a physical structure not less than four feet (4') in height, limiting access to protected and grand trees. A suitable protective barrier shall be composed of wood or other durable material which insures protection of protected trees and grand trees during development.

Qualified Households. Households in which occupants have, in the aggregate, a household income (1) less than or equal to 120% of AMI for owner occupied workforce housing units; or (2) less than or equal to eighty percent (80%) of AMI for rental workforce housing units.

Real Property. "Real property" shall include land, tenements, hereditaments, fixtures and appurtenances.

Rear Setback. A setback across the full width of the lot, extending from the rear line of the lot to the corresponding line of the building.

Recommended Tree. Means a tree of two and one-half inches (2½") or greater in diameter as measured six inches (6") above grade, which will grow to a minimum height of fifty feet (50') at maturity. (Refer to Appendix A, unless otherwise specified.)

Relocated Tree. Means a protected tree that has been transplanted in the areas specified in Article 3: Part 3 and Part 7.

Remuneration. Money, rent, reward, recompense, salary, compensation or other bargained for consideration given in return for occupancy, possession or use of property, including the use of property to reward persons associated with clients or potential clients of a commercial venture.

Rental Workforce Housing Unit. See Workforce Housing Unit, Rental.

Replaced Tree. Means the planting in the areas specified in Article 3: Part 6 of a recommended tree in place of a protected tree that is removed, irreversibly damaged or destroyed in violation of the standards set forth in Article 3: Part 6.

Residence Club Use. Use of a property by a club for the benefit of the members and/or guests of the club, who are eligible to occupy the property for varying lengths of time that may or may not exceed twenty-nine (29) consecutive days. Residence clubs are characterized by the ownership of properties and sale of club memberships for the purpose of allowing members and/or guests to occupy club-owned properties for varying lengths of time that may or may not exceed twenty-nine (29) consecutive days. Residence club uses are accommodation uses and subject to the regulations of the accommodations overlay zone.

Resident. For purposes of this Chapter 54 of the Code of the City of Charleston, except for Section 54-211, the term "Resident" shall mean the record owner of the property who (1) physically resides at the subject property at least 183 days each year and (2) has designated the subject property as his/her legal voting address and the address of his/her driver's license. In addition, the subject property must be assessed at the four percent homeowner's assessment ratio according to the records of the county assessor's office. A single or dual member limited liability company (LLC) may qualify as a Resident of the subject property provided the member(s) provide(s) with the application for an STR Permit a sworn statement attesting that (s)he or they are the sole members of the LLC. The sole member(s) must also designate the subject property as his/their legal voting address and address of his/their driver's license, the subject property must be assessed at the four percent homeowner's assessment ratio according to the records of the county assessor's office, and the member(s) shall physically reside at the subject property at least 183 days each year.

Residential Short Term Rental. See definition for Short Term Rental, Residential.

Residential Use. The use of land or the building(s) thereon, or any part thereof, as a home by one or more individuals or families where the intended duration of occupancy is for a period of not less than thirty (30) consecutive days. Occupancy of a transient nature such as in motel, hotel, inn, bed and breakfast, rooming or boarding house, or timesharing uses shall not be defined as a residential use, but shall be defined as a commercial use.

Roadway. The word "roadway" shall mean that portion of a street improved, designed or ordinarily used for vehicular travel.

Roof Peak. The point at the highest level of the roofline excluding all appurtenant parts, mechanical penthouses and elevated shafts.

Screening. Means the use of landscape planting, fences, walls or other structures to obscure vision of an unsightly or undesirable land use or structure and to minimize the intrusion of lighting on neighboring property.

Setback. An open unoccupied space, other than a court, between the building and any lot line.

Shipping Container Storage Uses. Outdoor storage of three (3) or more shipping containers that are not attached to a truck trailer chassis and may or may not be used for storage of materials.

Shoreline Frontage. Means the edge of high ground along a river, and its tributaries and creeks, which is visible from any part of the river channel at high tide.

Short-term Lender. A deferred presentment lender or a title loan lender.

Short Term Rental or STR. A conditional use to provide sleeping accommodations for a period of between one (1) and twenty-nine (29) consecutive days. This use is further defined in this section as either a commercial short term rental use or a residential short term rental use with different permitting and operational requirements for each type of short term rental use.

Short Term Rental, Commercial. A commercial short term rental is a conditional use whereby a conforming or legal nonconforming dwelling unit is converted into a fully-functioning, private accommodations use, which includes cooking, living, sanitary and sleeping facilities within one dwelling unit, to be rented to one (1) family for a period of between one (1) and twenty-nine (29) consecutive days. Distinguishing characteristics of a short term rental are: 1) it has all the attributes of a typical dwelling unit including cooking, living, sanitary and sleeping facilities, 2) is occupied by not more than four (4) unrelated people pursuant to the definition for family, and 3) is located on a commercially zoned property with a limited number of short term rental units, if more than one such unit is provided. A commercial short term rental shall only be permitted as a conditional use when a conforming or legal nonconforming dwelling unit is converted to such use in compliance with the procedures and conditions in Section 54-227 of the Zoning Ordinance and after a commercial STR permit is issued by the City.

Short Term Rental, Residential. A residential short term rental is a conditional use whereby the record owner of a property, who is also a resident of the property, uses one (1) or more rooms on the property for the purpose of providing sleeping accommodations for no more than four (4) adults (18 years and older) for a period of between one (1) and twenty-nine (29) consecutive days. A residential short term rental shall only be permitted in compliance with the procedures and conditions in Section 54-208.1, 54-208.2 or 54-208.3 of the Zoning Ordinance and after a Category 1, Category 2, or Category 3 Residential STR Permit is issued by the City.

STR Permit. A Category 1, Category 2, or Category 3 Residential STR Permit, or Commercial STR Permit issued by the City upon approval of a new application, change of ownership or annual renewal. Each short term rental permit shall include a permit number, the maximum number of guests permitted during a rental and an expiration date.

Side Setback. A setback between the side line of the lot and the adjacent side line of the building, extending from the front yard to the rear yard. If there is no front yard, the side setback shall be considered as extending to the front line of the lot, and if there is no rear yard, the side setback shall be considered as extending to the rear line of the lot.

Sidewalk. The word "sidewalk" shall mean any portion of a street between the curbline and the adjacent property line, intended for the use of pedestrians.

Sign. Any device or representation for visual communication that is used for the purpose of bringing the subject thereof to the attention of others which is located on or attached to premises, real property, structures on real property, or a vehicle, and which is visible from a public street or way.

Types of Signs.

Abandoned Sign. A sign which was erected on property in conjunction with a particular use which has been discontinued for a period of ninety (90) days or more, or a sign the content of which pertains to a time, event or purpose which no longer applies.

Canopy Sign. A sign which is suspended from, attached to, supported from or forms a part of a canopy.

Dilapidated Sign. Any sign which is insecure or otherwise structurally unsound, has defective parts in the support, braces, guys and/or anchors or which is unable to withstand the wind pressure for which it was originally designed.

Directional and Warning Sign. (a) A traffic, directional or informational sign, permanently erected in the public right-of-way or on private property by a governmental agency and permitted signs in public rights-of-way; (b) off-premises signs which contain information regarding the time and place of regular meetings of civic or religious groups; and/or (c) an on-premises permanent sign located at the curb cuts of a commercial, industrial, or office establishment giving direction or information as to matters as entrance, exit or the like. These signs may contain a logo or other information identifying the use of the premises, so long as such information is for direction and not advertising purposes.

Directory Sign. A sign listing only the names and/or use, or location of more than one business, activity or professional office conducted within a building, group of buildings or commercial center.

Flashing Sign. Any lighted or electrical sign which emits light in sudden transitory bursts. On/off time and temperature signs and message boards are not considered flashing signs for the purpose of this ordinance.

Freestanding Sign. A sign, not including sandwich boards, supported by a sign structure secured in the ground and which is wholly independent of any building, other than the sign structure, for support.

Illuminated Sign. A sign designed to give forth artificial light or to reflect such light from an artificial source.

Institutional Signs. On-premises signs which identify the name of an institution, such as a church, school, hospital, club, museum, a civic, fraternal or charitable organization, or similar entity and which describe the activities thereof.

Moving Message Board. Any electrical sign having a continuous message flow across its face by utilization of lights or other electrical impulses forming various words or designs.

Off-premises Sign. A sign identifying, advertising or directing the public to a business or commercial activity located on property other than where the sign is located.

On-premises Sign. A sign which (a) identifies, advertises or directs the public to a use, occupancy, function, service or product which is sold or manufactured on the property where the sign is located or at the site of a commercial, industrial or office development where the sign is located or (b) identifies, advertises or directs attention to a venture or message of a non-commercial or not-for-profit nature regardless of the location of such venture or message.

Portable Sign. Any sign, except a sidewalk/sandwich board sign, which is not permanently affixed to a building, structure or the ground.

Project Sign. Any sign erected and maintained on the premises temporarily while undergoing construction by an architect, contractor, developer, finance organization, subcontractor or materials vendor upon which property such individual is furnishing labor, services or material.

Reader Board. That portion of a sign face that allows for interchangeable letters, usually placed below the identification portion of the sign face. Reader boards are to be included in the calculation of the allowed sign size of a particular establishment.

Real Estate Sign. A temporary sign advertising the real property upon which the sign is located for rent, for lease, or for sale and providing the name and location of the owner or his agent.

Roof Sign. A sign erected over or on, and wholly or partially dependent upon, the roof of any building for support, or attached to the roof in any way.

Sandwich Board Sign. A freestanding movable sign, not secured or attached to the ground or any building or structure, composed of a sign panel and supporting structure or one or more panels which form both the structure and sign face, and which is intended to be placed in a sidewalk or pedestrian way.

Sign Band. A panel, either permanently affixed to or removable from a building façade, which is designed specifically to accommodate sign letters or graphics.

Snipe Sign. A sign which is tacked, nailed, posted, pasted, glued or otherwise attached to trees, poles, stakes or fences, or to other objects, and the advertising matter appearing thereon is not applicable to the present use of the premises upon which such sign is located.

Special Event Sign. A sign which carries a message regarding a special event or function which is of general interest to the community, such as historic, ethnic, cultural, religious, political or similar activities.

Temporary Sign. Any sign or information transmitting structure intended to be erected or displayed for a limited period, or any sign towed behind an aircraft.

Vehicle Sign. A permanent or temporary sign affixed, painted on, or placed in or upon any parked vehicle, parked trailer or other parked device capable of being towed, which is displayed in public view under such circumstances as to location on the premises, time of day, duration, availability of other parking space on the premises, and the proximity of the vehicle to the area on the premises where it is loaded, unloaded or otherwise carries out its principal function, which circumstances indicate that the primary purpose of said display is to attract the attention of the public rather than to serve the business of the owner thereof in the manner which is customary for said vehicle.

Window Sign. Any sign which is permanently painted on, applied to, attached to or projected upon the glass area of a building, including doors, whose identification, message, symbol, insignia, visual representation, logo type, or any other form which communicates information is intended to be read from off-premises, contiguous property or a public right-of-way.

Silviculture. Means the cultivation of a forest for the purpose of harvesting timber.

Site Plan. A plan delineating the overall design of a development on a tract of land, including but not limited to grading, engineering design, construction details and survey data for existing and proposed improvements, the size, height, shape and location of buildings, location and design of parking areas, landscaping, refuse areas, and pedestrian and vehicular circulation on site.

Skirting. Panels specifically designed for the purpose of screening the underside of a mobile home or manufactured dwelling unit by forming an extension of the mobile home body and covering the entire distance between the bottom of the exterior walls and the ground elevation below and along the entire perimeter of the mobile home or manufactured dwelling.

Sleeping Unit. A single room with accommodations for sleeping or a suite of rooms designed for occupancy by a family that has accommodations for sleeping (see also "Accommodations Use").

Sorority House. See Fraternity House.

Special Exception. A departure from a general provision of this chapter which, by the expressed terms of such provision, may be permitted by the Board of Zoning Appeals upon application only after the Board finds the existence of facts and circumstances detailed in such provision.

Special Flood Hazard Area. SFHA are defined as the area that will be inundated by the flood event having a 1-percent chance of being equaled or exceeded in any given year. The 1-percent annual chance flood is also referred to as the base flood or 100-year flood. SFHAs are labeled on Flood Insurance Rate Maps as Zone A, Zone AO, Zone AH, Zones A1—A30, Zone AE, Zone A99, Zone AR, Zone AR/AE, Zone AR/AO, Zone AR/A1—A30, Zone AR/A, Zone V, Zone VE, and Zones V1—V30.

Specified Anatomical Areas. "Specified Anatomical Area" means: a) less than completely and opaquely covered: i) human genitals, pubic region; ii) buttocks, and iii) female breast below a point immediately above the top of the areola; b) human male genitals in a discernibly tumid state, even if completely and opaquely covered; and c) a covering or device that when worn, simulates genitals, pubic region, buttocks, or any part of the female breast below the top of the areola.

Specified Sexual Activities. "Specified sexual activities" means: a) human genitals in a state of sexual stimulation or arousal; b) acts of human masturbation, sexual intercourse or sodomy; c) fondling or other erotic touching of human genitals, pubic region, buttocks, or female breast.

Specimen Tree. A tree listed in any of the categories in Section 54-331, that is healthy, undamaged, disease free and shows exceptional form and growth habits for that specific species.

State. The words "state" or "this state" shall mean the State of South Carolina.

Stormwater Regulations. Those federal, state, or local regulations governing stormwater management and drainage, including without limitation Chapter 27 (Stormwater Management and Flood Control) of the Code of Ordinances of the City of Charleston and the City's Stormwater Design Standards Manual. Stormwater Regulations additionally include any amendments, supplements, or modifications to the existing Stormwater Regulations.

Story. That portion of a building included between the surface of any floor and the surface of the next floor above, or if there be no floor above it, then the space between such and the ceiling next above it. Except as provided for in Section 54-505-e., a crawl space that exceeds six (6) feet in height from the floor to the bottom of the horizontal floor structure above, shall count as a story.

Street. The word "street" shall mean the entire width between boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic and shall be taken to include any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, viaduct, bridge and approaches thereto within the city. The word "street" shall also mean a private street within a subdivision.

Street, Public. A dedicated public right-of-way which affords the principal means of access to abutting property and which has been accepted for maintenance by the city, county or the S.C. Department of Transportation. For the purposes of these regulations, the term street or streets shall also mean avenues, boulevards, roads, lanes and all other public rights-of-way.

Local Street. A public street used primarily for providing direct access to abutting property.

Collector Street. A public street designed primarily to connect private ways serving multi-family complexes or other local streets with arterial streets and may be expected to carry a significant volume of traffic having neither origin nor destination on the street.

Arterial Street. A federal or state highway designed primarily for the movement of large volumes of traffic from one area to another.

Structure. Anything constructed or erected, the use of which demands its permanent location on the land; or anything attached to something having a permanent location on the land. The word "structure" shall include the word "building."

Structural Alteration. Any change or replacement in the supporting members of a building or structure, such as bearing walls, columns, beams or girders.

Subdivision. Means all divisions of a tract or parcel of land into two or more lots, building sites, or other divisions for the purpose, whether immediate or future, of sale, lease, or building development, and includes all division of land involving a new street or change in existing streets, and includes re-subdivision which would involve the further division or relocation of lot lines of any lot or lots within a subdivision previously made and approved or recorded according to law; or, the alteration of any streets or the establishment of any new streets within any subdivision previously made and approved or recorded according to law, and includes combinations of lots of record.

Technical Review Committee or TRC. The Technical Review Committee or TRC established by section 54-602 and section 54-816.2.

Tenant, Occupant. The words "tenant" or "occupant" applied to a building or land shall include any person who occupies the whole or a part of such building or land, whether alone or with others.

Through Lot. An interior lot having frontage on two streets.

Timesharing. The use of land or the buildings thereon, or any part thereof, as living quarters by one or more individuals or families where the intended duration of occupancy is normally less than thirty (30) consecutive days and when the basis of the right to such occupancy is dependent upon the acquisition, either through title or lease, of units of time which entitle one to exclusive possession of the premises. Timesharing use includes fee simple ownership, commonly called "interval ownership" and right of use or non-fee contract.

Title Loan Lender. A lender which regularly extends short-term nonpurchase money loans secured by titles to motor vehicles, such as those regulated by S. C. Code § 37-3-413 (Cum. Supp. 2011). The term does not include other supervised lenders, banks, credit unions, savings banks and like depository institutions.

Total Ambient Noise Levels. All stationary and mobile noise sources including vehicular or truck traffic associated with the proposed use of the property. Total ambient noise will be measured at any property line, using a sound level meter which is capable of measuring Leq(1) noise levels. Measurements should be made at a setback distance of 1,000 feet or greater from any existing roadway in order to accurately measure noises at the proposed use only. This measurement is not intended to restrict construction activity but only the operation of the proposed use.

Understory Tree. Means a 10 to 12 feet tall, which will grow to a minimum height of twenty feet (20') at maturity (refer to Appendix A, unless otherwise specified).

Usable Open Space. Open space areas of high ground developed to provide for active recreational uses.

Vacation Time Sharing Ownership Plans. Any arrangement, plan or similar devise, whether by tenancy in common, sale, term for years, deed, or other means, whereby the purchaser receives an ownership interest in real property and the right to use accommodations or facilities, or both, for a period or periods of time during any given year, but not necessarily for consecutive years, which extends for a period of more than one year.

Variance. Relief from the literal enforcement of this chapter, permitting the use of property in a manner otherwise forbidden, granted by the Board of Zoning Appeals upon a finding that the enforcement of this chapter as written would inflict practical difficulty or unnecessary hardship as hereinafter described; provided, however, that the Board of Zoning Appeals may not, by variance, permit to be established or carried on in any use district an activity, business or operation which is not otherwise allowed in such district by a specific provision of this chapter.

Velocity Decibels. Vibration levels are measured in terms of velocity, representing the instantaneous speed at a point on the object that is displaced. The root mean square of a vibration signal is the average of the squared amplitude of the signal over a given period of time (usually one second). The rms velocity is normally described in inches per second. Decibel notation is defined as $L_v = 20 \times \log_{10} (V/V_{ref})$, where L_v is the velocity

level in decibels, V is the rms velocity amplitude, and V_{ref} is the reference velocity amplitude. V_{dB} is used for vibration decibels to reduce the potential for confusion with noise decibels.

Video Arcades. A building or any specifically designated portion thereof, the principal use of which is the providing of entertainment by means of coin or token operated machines for amusement and/or gaming.

Water-Dependent Structures. Means those structures associated with industrial, maritime, recreational, educational, or fisheries activities that require location at or near the shoreline within required building setbacks or buffers. Water-dependent structures do not include residences, restaurants or motel/hotel facilities.

Wetland. Means land that falls under the jurisdiction of one or more of the following agencies: OCRM or the United States Army Corps of Engineers.

Width of Court. The least horizontal dimension of a court at its lowest level.

Width of Side Setback. The least distance from any part of or point on the building or porch to the adjacent side lot line of the lot.

Workforce Housing Unit. An owner occupied workforce housing unit or a rental workforce housing unit.

Workforce Housing Unit, Owner Occupied. A dwelling unit in which at least one (1) occupant is an owner and in which all occupants have, in the aggregate, household income less than or equal to 120% of AMI.

Workforce Housing Unit, Rental. A dwelling unit in which occupants have, in the aggregate, household income less than or equal to eighty percent (80%) of AMI.

(Ord. No. 1996-227, § 1, 2, 11-26-96 ; Ord. No. 1997-459, § 1, 11-25-97; Ord. No. 1998-76, § 1, 4-28-98; Ord. No. 1998-147, § 1, 8-18-98; Ord. No. 1998-203, § 1, 11-24-98; Ord. No. 1999-02, §§ 1, 2, 1-12-99; Ord. No. 1999-08, § 1, 2-9-99; Ord. No. 1999-54, §§ 4, 5, 4-27-99; Ord. No. 1999-94, § 1, 8-17-99; Ord. No. 2001-44, § 11, 5-8-01; Ord. No. 2002-19, §§ 1, 2, 2-12-02; Ord. No. 2002-92, § 1, 8-13-02; 2002-130, § 1, 11-26-02; Ord. No. 2003-44, § 1, 4-22-03; Ord. No. 2003-50, §§ 1—3, 5-27-03; Ord. No. 2004-25, § 1, 3-9-04; Ord. No. 2005-92, § 1, 5-10-05; Ord. No. 2005-95, § 1, 5-17-05; Ord. No. 2006-397, § 1, 9-12-06; Ord. No. 2006-428, §§ 1—4, 9-26-06; Ord. No. 2006-489, § 1, 10-24-06; Ord. No. 2007-136, §§ 1, 2, 7-17-07; Ord. No. 2007-172, § 1, 9-11-07; Ord. No. 2008-160, § 1, 12-9-08; Ord. No. 2010-09, § 1, 3-9-10; Ord. No. 2011-08, §§ 1—3, 2-8-11; Ord. No. 2011-11, § 1, 2-8-11; Ord. No. 2011-28, § 1, 4-12-11; Ord. No. 2012-41, §§ 2, 3, 1-24-12; Ord. No. 2013-22, § 1, 2-26-13; Ord. No. 2013-31, § 1, 3-12-13; Ord. No. 2014-95, § 1, 7-15-14; Ord. No. 2014-130, § 1, 10-14-14; Ord. No. 2014-153, § 1, 12-2-14; Ord. No. 2016-051, § 3, 4-26-16; Ord. No. 2018-031, §§ 2, 3, 4-10-18; Ord. No. 2018-043, §§ 2—4, 4-10-18; Ord. No. 2020-004, § 1, 1-14-20; Ord. No. 2020-027, § 1, 2-25-20; Ord. No. 2020-097, § 8, 8-18-20; Ord. No. 2020-116, §§ 1—3, 9-8-20; Ord. No. 2021-040, §§ 1, 2, 4-13-21; Ord. No. 2021-172, §§ 1, 2, 12-7-21; Ord. No. 2023-226, § 1, 11-14-23; Ord. No. 2023-251, § 1, 12-5-23; Ord. No. 2024-162, § 2, 10-8-24; Ord. No. 2025-087, § 2, 6-17-25)

ARTICLE 2

LAND USE REGULATIONS

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- Sec. 54-201. Base zoning districts.
- Sec. 54-202. Overlay zones.

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- Sec. 54-204. Hours of operation; restrictions.
- Sec. 54-204.1. Restrictions on large retail centers.
- Sec. 54-204.2. Restrictions on portable storage units; purpose and intent.
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Part 3 Table of Permitted Uses

Part 4 Accessory Uses

- Sec. 54-208. The following provisions shall apply to all residential short term rentals ("STR").
- Sec. 54-208.1. Requirements for a Category 1 short term rental, STR permit for properties within the Old and Historic District.
- Sec. 54-208.2. Requirements for a Category 2 short term rental, STR permit for properties located on the peninsula outside of the Old and Historic District and the Short Term Rental, ST Overlay Zone.
- Sec. 54-208.3. Requirements for a Category 3 short term rental, STR permit for properties in all other areas of the City off of the peninsula.
- Sec. 54-209. Communication towers.
- Sec. 54-210. Day care facilities.
- Sec. 54-211. Home occupations.
- Sec. 54-212. Accessory uses within GO office developments.
- Sec. 54-213. Sidewalk café regulations.
- Sec. 54-214. Accessory dwelling unit.
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- Sec. 54-224. Savannah Highway, SH Overlay Zone.
- Sec. 54-225. School S Overlay Zone.
- Sec. 54-226. Landmark LMK Overlay Zone.
- Sec. 54-227. Short Term Rental, ST Overlay Zone.
- Sec. 54-228. GBLN Overlay Zone.
- Sec. 54-229. LILN Overlay Zone.
- Sec. 54-229.1. Tech Corridor, TC Overlay Zone.
- Sec. 54-229.2. Gateway, G Overlay Zone.
- Sec. 54-229.3. Dupont Wappoo Planning Area and DuWap Overlay Zone.
- Sec. 54-229.4. Folly Road, FR Overlay Zone.
- Sec. 54-229.5. FR Overlay Zone, North Village Sub-Area.
- Sec. 54-229.6. FR Overlay Zone, Commercial Core Sub-Area.
- Sec. 54-229.7. FR Overlay Zone, South Village Sub-Area.
- Sec. 54-229.8. FR Overlay Zone, Neighborhood Preservation Sub-Area.
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Part 6 Old and Historic District and Old City District Regulations

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- Sec. 54-231. Designation of Old City District and Old and Historic Districts; definitions.
- Sec. 54-232. Construction or demolition of structures in districts; permit required; certificate of approval.
- Sec. 54-233. Board of Architectural Review created; composition; appointment and terms of office.
- Sec. 54-234. Meeting of board.
- Sec. 54-235. Adoption of inventory map; procedure for revision.
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- Sec. 54-262. Reserved.

Part 8 Daniel Island Planned Unit Development, DI-PUD District

- Sec. 54-263. Daniel Island Master Plan Zoning Text.

Part 9 Canterbury Woods Planned Unit Development, CW-PUD District

- Sec. 54-264. Canterbury Woods Development Guidelines and Master Plan.

Part 10 Cainhoy, CY District

- Sec. 54-265. Cainhoy, CY District.

Part 11 Design Review District

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- Sec. 54-269. Design Review Board created; composition, appointment and terms of members.
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Part 14 Hemmingwood Planned Unit Development, HW-PUD District

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Part 15 Workforce Housing Districts and Opportunity Zones

- Sec. 54-297. Findings.
- Sec. 54-298. Purpose.
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- Sec. 54-299.59. Purpose.
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PART 1 DESCRIPTIONS OF BASE ZONING DISTRICTS AND OVERLAY ZONES**Sec. 54-201. Base zoning districts.**

- a. Conservation, **C** District. A district designed primarily to protect and encourage the appropriate use of marshlands, forested areas, scenic areas, and agricultural areas that are not likely to be developed for urban purposes in the reasonable near future.
- b. Agricultural, **AG-8** and **AG-S** Districts. The AG districts allow agricultural, crop production, animal production, forestry, and related uses as well as various type of residential and recreational uses, and other related uses, some commercial uses, resource extraction/mining, and some manufacturing and production uses as allowed uses, conditional uses or special exception uses depending on the specific type and size of the use. The AG-S district also allows asphalt and concrete recycling uses as a conditional use. Most of the regulations for the AG districts can be found in Article 10.
- c. Rural Residential, **RR-1** District. The RR-1 district allows agricultural and silvicultural uses as well as most uses allowed in the SR districts. RR-1 requires a minimum lot size of 12,500 square feet and limits density to 3.5 units per acre.
- d. Single-family Residential, **SR-1, SR-2, SR-3, SR-4, SR-5, SR-6, SR-7** and **SR-8** Districts. The Single-family Residential (SR) districts allow for one-family detached dwellings with maximum densities of 4.8, 7.3, 7.3, 10.9, 17.4, 8.7, 1 and 2.9 units per acre respectively, with varying setback, height and lot occupancy requirements.
- e. Single- and Two-family Residential, **STR** District. The STR district allows single- and two-family dwellings and all uses permitted in the SR districts. The minimum lot size for a two-family dwelling is 9,000 square feet for a maximum density of 7.3 units per acre.
- f. Diverse Residential, **DR-6, DR-9, DR-12, DR-1, DR-1F, DR-2, DR-2F** Districts. The DR districts allow multi-family residential (3 or more) dwellings and one-family attached dwellings as well as single- and two-family dwellings. Density limitations are 6.0, 9.0, 12.0, 19.4, 19.4, 26.4 and 26.4 units per acre respectively. Within the DR-1, DR-1F, DR-2, DR-2F districts, the Board of Zoning Appeals may approve as a special exception, fraternity houses, sorority houses, dormitories, and homes for the elderly.
- g. Diverse Residential, **DR-3** District. The DR-3 district is intended to promote acceptable living environments for occupants of mobile home parks as well as occupants of mobile homes, and manufactured homes and non-mobile home residential dwellings on single lots outside of mobile home parks. Uses allowed in SR and DR districts are also allowed in the DR-3 district. The minimum lot size for a mobile home or manufactured home on its own lot is one acre.
- h. Diverse Residential, **DR-4** District. The DR-4 district allows multi-family dwellings of 20 or more units for the elderly. Such structures are subject to development standards relating to maximum lot area per living unit, height, lot coverage, as well as other development requirements.

- i. Residential Office, **RO** District. The RO District is intended to allow limited office uses within converted residential structures along major roadways. This district shall provide for the daily convenience and personal service needs of the surrounding community and shall be designed to mix compatibly and aid in the preservation and stabilization of the local neighborhood. The RO zoning district is not intended to permit the loss of viable housing stock.
- j. General Office, **GO** District. The GO district is intended to provide for professional, administrative, executive and government offices including, but not limited to, medical, insurance, real estate, attorney, engineering, and financial offices. Accessory uses intended to compliment office uses are permitted pursuant to Section 54-212.
- k. Commercial Transitional, **CT** District. The CT District is intended to protect, preserve and enhance residential areas while allowing commercial uses which are compatible with the adjacent residential areas. In addition to allowing a limited number of commercial uses, the size and hours of operation of certain uses are restricted.
- l. Limited Business, **LB** District. The LB district is intended to provide for a limited variety of commercial uses and services associated with neighborhood retail, financial and office activities which are compatible with residential areas. The hours of operation for most permitted commercial uses are restricted to between 7 a.m. and 11 p.m. Gasoline service stations are permitted as a conditional use. Prohibited uses include, but are not limited to bars, liquor stores, car washes as a principal use, bowling alleys, billiard parlors, dance halls, restaurants with drive-thru service windows, and automobile sales.
- m. General Business, **GB** District. The GB district is intended to provide for a broad range of commercial uses and activities. It is the most intensive commercial zoning district. Prohibited uses include junk and salvage yards, and storage yards (except for vehicles and boats). Mini-warehouse/self-storage uses may be permitted as special exception uses subject to the approval of the Board of Zoning Appeals. Automotive repair shops, communication towers, gas stations, short term lenders, veterinary clinics, and stables may be permitted as conditional uses.
- n. Urban Commercial, **UC** District. The UC district is intended to allow high density residential development in a commercial zoning district that permits the same commercial uses as the General Business district.
- o. Mixed Use, MU-1 District. The **MU-1** district is intended to permit high density residential uses along with a limited variety of neighborhood commercial uses and services in urban areas of the city.
- p. Mixed Use, MU-2 District. The **MU-2** district is intended to permit high density residential uses along with a broad range of commercial uses and activities in urban areas of the city.

- q. **Business Park, BP District.** The **BP** district is intended to accommodate service type commercial, wholesale, storage, and light manufacturing uses with relatively limited external effects in a high quality environment. Uses which fit into this category are characterized by being low traffic generators, having no external environmental effects across property lines, and having all outdoor storage screened from adjoining rights-of-ways and properties by a minimum six-foot tall solid fence or wall and landscape buffer, if required. Automotive repair shops and veterinary clinics are permitted only as special exceptions subject to the approval of the Board of Zoning Appeals.
- r. **Light Industrial, LI District.** The **LI** district is intended to permit most commercial uses and low impact industrial uses which are compatible with surrounding commercial districts. More intensive industrial and manufacturing uses are permitted as conditional uses if the uses satisfy specific performance standards. Storage yards are permitted only as special exceptions subject to the approval of the Board of Zoning Appeals.
- s. **Heavy Industrial, HI District.** The **HI** district is intended to provide for a broad range of industrial uses. It is the least restrictive industrial zoning district. Junk yards and storage yards permitted only as special exceptions subject to the approval of the Board of Zoning Appeals.
- t. **Gathering Place, GP District.** The **GP** district is intended to promote mixed-use town, village, and neighborhood centers around the city at major intersections or along traditional commercial streets. Diverse housing, mixed-use, pedestrian oriented development are permitted within this district.
- u. **Mixed Use 1, Workforce Housing, MU-1/WH District.** The **MU-1/WH** district is incentive based and is intended to permit high density residential uses with a mixture of housing opportunities, along with limited neighborhood nonresidential uses and services in urban areas of the city.
- v. **Mixed Use 2, Workforce Housing, MU-2/WH District.** The **MU-2/WH** district is incentive based and is intended to permit high density nonresidential uses with a mixture of housing opportunities, along with a broad range of nonresidential uses in urban areas of the city.
- w. **Upper Peninsula, UP, District.** The **UP** District is intended to accommodate a mixture of dense residential and commercial and uses and taller buildings in the upper portion of the peninsula through the use of incentives designed to promote ecology, mobility, energy efficiency, diverse housing and privately maintained outdoor spaces accessible to the public.
- x. **Job Center, JC District.** The **JC** District is intended to promote small entrepreneurial businesses and industries consisting of consumer, special trade, services, office/warehousing and limited business park uses. Uses that fit into this category are characterized by being incubators for new small and entrepreneurial business, uses are low traffic generators, and do not have external environmental effects across property

lines. The scale of the buildings and uses in the JC District are an appropriate transition between residential uses and more intense zone districts. The hours of operation for uses that are open to the public are limited to 7:00 a.m. to 9:00 p.m.

(Ord. No. 1997-525, § 1, 11-25-97; Ord. No. 1998-203, § 2, 11-24-98; Ord. No. 1999-22, § 2, 3-10-99; Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 1999-137, § 2, 9-28-99; Ord. No. 2001-44, § 2, 5-8-01; Ord. No. 2002-84, § 2, 8-13-02; Ord. No. 2003-63, § 1, 7-15-03; 2003-69, § 4, 8-19-03; Ord. No. 2006-463, § 2, 10-17-06; Ord. No. 2011-157, § 1, 10-11-11; Ord. No. 2013-105, §§ 1—3, 10-8-13; Ord. No. 2014-67, § 2, 5-13-14; Ord. No. 2015-142, § 11, 10-13-2015; Ord. No. 2016-02, § 3, 9-13-16; Ord. No. 2017-026, § 1, 3-28-2017; Ord. No. 2018-031, § 4, 4-10-18; Ord. No. 2022-084, § 1, 6-21-22)

Sec. 54-202. Overlay zones.

- a. **Accommodations, A Overlay Zone.** The A Overlay Zone is intended to identify those areas within the City limits where accommodation uses are allowed. Accommodation uses are prohibited except within the A Overlay Zone, with the exception of bed and breakfasts that are approved in accordance with the provisions of Section 54-208.
- b. **Tour Boat, TB Overlay Zone.** The TB Overlay Zone is used only on the peninsula area of Charleston to identify waterfront areas suitable for the operation of tour boats.
- c. **Johns Island, JI Overlay Zone.** The JI Overlay Zone applies to all areas of Johns Island within the City limits. Within the JI Overlay Zone, additional restrictions may apply depending on the underlying base zoning district and the specific use. Restrictions of the JI Overlay Zone which are incorporated into the applicable sections of this Chapter include street frontage buffers, buffers for industrial uses, sign regulations, and curb cut requirements.
- d. **Amusement and Recreation Services, AR Overlay Zone.** The AR Overlay Zone applies to all areas of peninsula section of the city as bounded by the Ashley River, the Cooper River and Charleston Harbor.
- e. **Savannah Highway SH Overlay Zone.** The SH Overlay Zone is intended to allow office and neighborhood service uses in addition to the uses allowed in the base zoning district. Existing structures in the SH zone that are used for a non-residential use shall retain their residential appearance. Building additions and new structures shall be designed to look like the existing residential structures. Parking shall be restricted to the side or rear of the principal buildings and buffering from adjoining residential lots shall be required.

- f. **School S Overlay Zone.** The S Overlay Zone is intended to identify those areas within residential zoning districts where school uses are allowed. School uses are prohibited within residential zoning districts except within the S Overlay Zone.
- g. **Landmark LMK Overlay Zone.** The Landmark Overlay Zone is intended to effect and accomplish the protection, enhancement and perpetuation of structures or other improvements that have a special character or special historical, cultural, or aesthetic interest or value as part of the development, heritage or cultural characteristics of the city, state or nation or that are associated with an event of importance to the history of the city, state or nation, or that reflect the environment in an era characterized by a distinctive architectural style or that embodies those distinguishing characteristics of an architectural style or engineering specimen.
- h. **Short Term Rental, ST Overlay Zone.** The Short Term Overlay Zone is intended to permit commercial short term rentals, as defined herein, in specific base zoning districts within the ST Overlay Zone and Bed and Breakfasts, as defined herein, in all base zoning districts within the ST Overlay Zone.
- i. **General Business Late Night, GBLN Overlay Zone.** The General Business Late Night Overlay Zone is intended to restrict certain uses, as specified herein, to only operate between 7:00 a.m. and 11:00 p.m.
- j. **Light Industrial Late Night, LILN Overlay Zone.** The Light Industrial Late Night Overlay Zone is intended to restrict certain uses, as specified herein, to only operate between 7:00 a.m. and 11:00 p.m.
- k. **Tech Corridor, TC Overlay Zone.** The Tech Corridor Overlay Zone is intended to enable high technology and technology-related industries to anchor new development in the district.
- l. **Gateway, G Overlay Zone.** The Gateway Overlay Zone is intended for sites in the City that are located at primary entrances to specifically defined or colloquially known districts and areas of the City. The purpose of the Gateway Overlay is to accommodate a more varied use matrix at these strategic locations by providing an opportunity for denser residential developments at commercially zoned properties by way of an optional set of development regulations that authorize higher residential density, and impose lot coverage requirements and certain height restrictions.
- m. **Folly Road, FR Overlay Zone.** The Folly Road Overlay Zone is intended to implement traffic safety measures, to improve the visual character of the corridor, and to create consistency between the City of Charleston and surrounding jurisdictions concerning land use and design standards.
- n. **Special Parking District, SPD Overlay Zone.** See Section 54-511.c.
(Ord. No. 1996-125, § 4, 7-16-96; Ord. No. 1998-112, § 1, 5-26-98; Ord. No. 1999-01, § 1, 1-12-99; Ord. No. 1999-95, § 1, 8-17-99; Ord. No. 2006-428, § 5, 9-26-06; Ord. No. 2006-463, § 2, 10-17-06; Ord. No. 2012-41, § 1, 1-24-12; Ord. No. 2014-08, § 1, 1-30-14; Ord. No.

2014-37, § 1, 3-25-14; Ord. No. 2015-060, § 2, 5-26-2015; Ord. No. 2016-079, § 1, 7-19-16; Ord. No. 2017-148, § 1, 12-11-17; Ord. No. 2018-043, § 5, 4-10-18; Ord. No. 2021-092, § 2, 7-20-21)

PART 2
PERMITTED USES BY BASE ZONING DISTRICT

Sec. 54-203. Permitted principal uses.

Permitted principal uses for each base zoning district, except for Agricultural zoning districts, shall be as set forth in Part 3: Table of Permitted Uses, and as modified by special provisions, exceptions and conditions contained herein. For permitted principal and accessory uses in Agricultural base zoning districts, see Article 10. Principal use means the primary or predominant use or uses of a lot or parcel. The Table is based upon the 1987 Standard Industrial Classification Manual. Accessory uses, which for the purposes of this Chapter are defined as uses of land or of a building or portion thereof which are customarily incidental and subordinate to a principal use located on the same lot or parcel, are allowed, except that communication towers, home occupations, residential short term rentals, home day care facilities, and limited commercial uses within the GO district are only allowed pursuant to the requirements specified in Part 4: Accessory Uses, of this Article.

- a. Symbols used in the Table are as follows:
 1. *bull; means that the indicated use is permitted by right in the indicated district;
 2. † means that the indicated use is permitted in the indicated district, subject to the granting of a special exception by the Board of Zoning Appeals;
 3. ‡ means that the indicated use is permitted in the indicated district as a conditional use, subject to a finding by the Zoning Administration that the use satisfies specific conditions listed herein.
 4. **H** means that the indicated use is permitted but the hours of operation for that use are restricted to normal business hours for that district as listed in Section 54-204.
- b. Any use not permitted in a district is expressly prohibited.
- c. A section number following the use category means that the special exception or conditional use is allowed where indicated on the Table but must meet the conditions and requirements set forth in the referenced section of this Article.
- d. The Zoning Administration may utilize the Standard Industrial Classification Manual to determine the appropriate classification of a land use.

(Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2018-031, § 5, 4-10-18; Ord. No. 2018-043, § 6, 4-10-18)

Sec. 54-204. Hours of operation; restrictions.

- a. Within CT. In commercial transitional, CT district, certain uses, as specified herein, are restricted to normal business hours. In the CT district, normal business hours are deemed to be hours of operation beginning no earlier than 7 a.m. and ending no later than 8 p.m.

- b. Within LB. In the limited business, LB district, certain uses, as specified herein, are restricted to operating only between 7 a.m. and 11 p.m., except that theaters may operate beyond 11 p.m. although theater box offices may not sell tickets after 11 p.m.
 - c. Within the GBLN and LILN Overlay Zones. In the General Business Late Night overlay zone and Light Industrial Late Night overlay zones certain uses, as specified herein, are restricted to only operate between 7:00 a.m. and 11:00 p.m.
- (Ord. No. 1997-524, § 1, 11-25-97; Ord. No. 2014-08, § 2, 1-30-14)

Sec. 54-204.1. Restrictions on large retail centers.

a. Definitions:

Community shopping center: Shopping center having a GLA of 100,000 to 249,999 square feet.

GLA: Gross leasable area (GLA) in square feet means the total floor area designed for tenant occupancy and exclusive rent, including mezzanines, upper floors, outdoor storage areas, and is the area upon which the tenant's pay rent.

LOS: Level of service (LOS) means the level of service of a roadway as defined in the 1994 Highway Capacity Manual.

Regional shopping center: Shopping center having a GLA of 250,000 square feet or more.

Shopping center: A commercial development which includes one or more retail type uses - from Table 3.3: Off-street Parking Requirements. The total floor area must equal 20,000square feet or more, in one or more buildings, on one or more lots which are designed and laid out to function as an interrelated development, as evidenced by both shared driveways and parking. For purposes of this Section 542-204.1 only, the definition of shopping center shall also include a single retail establishment built which has a gross leasable area (GLA) in excess of 100,000 square feet, which is the sole store on a site.

- b. A regional shopping center shall be permitted by right within the limited business, general business, light industrial, and heavy industrial districts provided the proposed shopping center property is within one mile of an interchange with either Interstate 26 or the Mark Clark Expressway.
- c. A community shopping center shall only be permitted as an exception within the limited business, general business, light industrial, and heavy industrial districts when the property is not within one mile of an interchange with either Interstate 26 or the Mark Clark Expressway and where the Board of Zoning Appeals-Zoning, after review finds, that:
 - (i) A detailed traffic study plan has been submitted and approved by the City Department of Traffic and Transportation which identifies critical roadways and intersections impacted by the proposed shopping center. The traffic study shall

develop an anticipated arrival/departure pattern for vehicle trips generated by the proposed shopping center for the defined study area. Site traffic shall be distributed throughout the study area based on arrival/departure pattern. In addition, if the traffic study recommendations require, the developer of the proposed shopping center shall also submit a traffic mitigation plan which delineates the improvements to be made by the developer on-site and off-site to mitigate the traffic consequences of the proposed shopping center and to improve the LOS of the critical roads. The traffic study and mitigation plan, if appropriate, must demonstrate that traffic operations on the critical roadways and intersections in the vicinity of the proposed shopping center shall have a LOS of not less than LOS "D" after the construction of the proposed shopping center. If an existing intersection within one mile of an interstate interchange is currently operating at a LOS "E" or "F," the traffic study or mitigation plan should allow for maintaining the same overall intersection delay. Any off-site improvements required must be completed prior to the issuance of a certificate of occupancy for the project.

- (ii) The traffic pattern for the proposed shopping center shall not include any residential street.
- (iii) An existing shopping center with 80,000 square feet or more shall be permitted to expand to the maximum square footage allowed for a community shopping center under this Ordinance and shall be exempt from paragraph c., sections (i), (ii), and (iii) above.

(Ord. No. 2000-164, § 2, 7-18-00)

Sec. 54-204.2. Restrictions on portable storage units; purpose and intent.

The following regulation has been adopted to ensure that the placement of portable storage units comply with the health, safety and aesthetics objectives of the City. This section regulates the placement of portable storage units in order to promote the health and safety of the residents of the City and to preserve the aesthetic value of its residential neighborhoods and commercial districts.

a. Definitions.

Portable storage unit shall mean a transportable unit designed and used primarily for temporary storage of building materials, household goods, or other materials which is typically delivered and removed by truck. For the purposes of this section, the trailer portion of a tractor trailer, boxcars and shipping containers shall be considered a portable storage unit when used for the purposes of on-site storage in residential districts.

b. Requirements for placement of portable storage units. The following requirements shall apply to the placement of portable storage units in all zoning districts except BP, LI and HI:

- (i) It shall be unlawful for any person or entity to place, permit the placement of, or allow a portable storage unit to remain on a lot in excess of thirty (30)

calendar days in any calendar year. Thirty (30) day extensions may be granted if there is substantial evidence of need. Requests for extension shall be made in writing and set forth the reason the extension is needed. Requests shall be directed to the City's Zoning Administrator.

- (ii) Portable storage units shall only be placed upon approved parking areas such as driveways and parking lots. If space is available at the sideyard or the rear yard of a lot, the portable storage unit may be placed on the side or rear of the lot. Portable storage units shall not displace required parking spaces. A Portable Storage Unit shall not be placed in the public-right-of-way without the authorization of the Traffic and Transportation Department pursuant to Chapter 19.
- (iii) There shall be no more than one (1) portable storage unit per lot. Portable storage units shall be no larger than eight (8) feet high by eight (8) feet wide by sixteen feet (16) long. Portable storage units shall not be considered an accessory structure.
- (iv) Notwithstanding the time limitations set forth herein, all portable storage units shall be removed immediately upon the issuance of a tropical storm warning or hurricane watch issued by a recognized government agency. If the Zoning Administrator, or designee, determines that an emergency, other than a tropical storm warning or hurricane watch by a recognized government agency, provides sufficient cause to exceed or reduce the time limitations which would otherwise apply, the Zoning Administrator, or designee, may allow a portable storage unit to remain at a lot for a period in excess of such time limitations, or may also order the immediate removal of the portable storage unit.
- (v) The owner and operator of any lot on which a portable storage unit is placed shall be responsible for ensuring that the portable storage unit is maintained in good condition, free from evidence of deterioration, weathering, discoloration, graffiti, rust, ripping, tearing or other holes or breaks, at all times. When not in use, the portable storage unit shall be kept locked.
- (vi) No portable storage unit shall be used to store solid waste, construction debris, demolition debris, recyclable materials, business inventory, commercial goods, goods for property other than that of the property where the portable storage unit is located (i.e. used for retail sales) or any other illegal or hazardous material. Upon reasonable notice to the property owner or operator, the City may inspect the contents of any portable storage unit at any reasonable time to ensure that it is not being used to store said materials. At no time shall a portable storage unit be used for any illegal purpose.

- (vii) The provisions of this section shall not supersede the restrictive covenants of any subdivision or planned development in which the placement of portable storage units is limited or prohibited.

(Ord. No. 2009-167, § 1, 9-22-09; Ord. No. 2015-018, § 1, 3-10-2015)

Sec. 54-204.3. Accommodations use restrictions.

Within all base zoning districts, it shall be unlawful to advertise, rent, or otherwise use a property, or part of a property, as an accommodations use, as herein defined, unless said use has been approved by the City of Charleston pursuant to this Chapter.

(Ord. No. 2018-043, § 7, 4-10-18)

Sec. 54-205. Adult uses; restrictions.

- a. Within all zones except LI and HI. Adult uses, as defined in Section 54-120, are prohibited.
- b. Within LI and HI. Adult uses, located within 1,000 feet of any school, public or private park, church, or residential area or within 1,000 feet of any other such establishment are prohibited. Such distance shall be measured from the nearest point of the parcel of land so used to the nearest property line of another establishment or zoning line in the case of a residential area. Nothing contained in this subsection shall be construed to apply to the exhibition, presentation, showing or performance of any play, ballet, drama, tableau or production in any theater, concert hall, auditorium, museum of fine arts, school, institution of higher learning or other similar establishment which is primarily devoted to such exhibitions, presentations, shows or performances as a form of expression or opinion, communication, speech, ideas, information, art drama.

(Ord. No. 2003-50, § 4, 5-27-03)

Sec. 54-206. Special exception uses.

Uses designated in the Table of Permitted Uses and listed below, may be permitted in certain districts where the Board of Zoning Appeals—Zoning after review, finds that requirements listed below for such uses are met.

- a. Additional dwelling units in the SR zoning districts. Additional dwelling units shall be permitted as an exception within all single-family residential, SR zoning districts, in dwellings constructed prior to August 17, 1966, where the Board, after review, finds that such existing dwelling contains such an amount of space available and suitable for residential purposes that it is unreasonable to require its use as single family dwelling.
- b. Cemeteries. Cemeteries shall be permitted within the Conservation and all residential zones only as an exception where the Board, after review, finds that no building or parking lot thereof will be closer than one hundred (100) feet to an adjoining lot, and that all facilities will be adequately screened and landscaped in a manner appropriate to the character of the district.

- c. Church. Church uses, except parking for church uses, shall only be permitted as an exception within the Conservation and all residential zones where the Board, after review, finds that buildings will not be closer than twenty-five (25) feet to an adjoining property line and that the required off-street parking spaces will be provided. Parking for church uses within the Conservation and all residential zones shall be permitted as a conditional use under Section 54-207, y.
- d. Dairy farms & dairy products manufacture shall be permitted only as an exception within the Conservation Zone where the Board, after review, determines that such uses are in accordance with the City's comprehensive land use plan.
- e. Day care centers. A day care center, which is an accessory use to a church, school, park or other institution, shall be permitted as an exception within the Conservation District, all residential districts, and the CT District, where the Board, after review, determines that an application for such a use satisfies the following requirements:
 - 1. proof of the application for the facility's licensing by the Department of Social Services is provided; and
 - 2. the proposed facility satisfies the definition of a day care center; and
 - 3. all signage is in conformity with that allowed for home occupations; and
 - 4. outdoor play is allowed only between the hours of 8 a.m. and 6 p.m.; and
 - 5. if a play area is within fifty feet (50') of a residential structure, it is appropriately buffered; and
 - 6. there exist at least two (2) parking spaces per employee; and
 - 7. plans for ingress/egress, loading/unloading and the location of the parking and play areas are approved for safety by the appropriate city department(s); and
 - 8. the facility is compatible with the surrounding neighborhood based upon consideration of the number of persons cared for, potential traffic and noise impacts, location of the play, parking, loading and circulation areas and relation to other noise or traffic generating institutions (particularly if another non-residential facility is facing or abutting the same block face or is within three hundred feet (300') of the proposed site); and
 - 9. the proposed outdoor lighting of the facility does not unduly impact neighboring properties.
- f. Mini-warehouse/self-storage facilities shall be prohibited within the UC, MU-2, and MU-2/WH districts and shall be permitted within the GB district only as an exception where the Board, after review, finds that the proposed mini-warehouse/self-storage facility satisfies the following requirements:
 - 1. The lot on which the mini-warehouse/self-storage facility is located is not within 200 feet of any MU-1, MU-1/WH, MU-2, MU-2 WH;

2. The lot on which the mini-warehouse/self-storage facility is located is not within 200 feet of any RR-1, SR-1, SR-2, SR-3, SR-4, SR-5, SR-6, SR-7, SR-8, STR, DR-1, DR-1F, DR-2, DR-2F, DR-3, DR-4, DR-6, DR-9, DR-12 or RO zoning district;
3. All loading bays are located on building sides that do not face a street;
4. First floor frontage of buildings within 50 feet of a street shall be designed to accommodate retail and office spaces to a depth of no less than 30 feet, have a minimum floor to ceiling height of 12 feet and not be occupied as mini-warehouse/self-storage space;
5. The site provides a twenty-five foot Type C buffer, as specified in Section 54-348, along all streets adjacent to the site, or satisfies the buffer requirements of Article 3, Part 8, whichever requirement is greater; except that for properties within the jurisdiction of the Board of Architectural Review (BAR) or the Design Review Board (DRB), the BAR or DRB may reduce or eliminate this buffer requirement if they deem the reduction or elimination to be appropriate;
6. All buildings maintain a minimum setback from street rights-of-way of fifty feet (50') or satisfy setback requirements of Section 54-311, whichever is greater; except that for properties within the jurisdiction of the Board of Architectural Review (BAR) or the Design Review Board (DRB), the BAR or DRB may reduce or eliminate this setback requirement if they deem the reduction or elimination to be appropriate; and
7. The site satisfies all other applicable regulations of this chapter.

Outdoor boat and boat trailer storage shall be permitted in connection with mini-warehouse/self-storage facilities if the above conditions are met.

- g. Drive-thru or automated teller facilities for depository institutions, banks, savings and loans, credit unions or similar depository institutions shall be permitted within the GO district only as an exception where the Board, after review, finds that the proposed teller facility satisfies the following requirements:
 1. adequate off-street parking and traffic circulation is provided.
 2. the vehicular access will not create a traffic hazard.
- h. Reserved.
- i. Reserved.
- j. Reserved.

- k. Reserved.
- l. Homes for the elderly which care for no more than twenty (20) persons shall be permitted within the DR-1, DR-1F, DR-2, DR-2F, DR-3, CT, LB, GB, UC or UP zones as an exception where the Board, after review, finds that the proposed facility will be compatible with the character of the neighborhood, its population density, traffic patterns and parking facilities and not adversely impact the immediate neighborhood. The Board may, after review, permit larger facilities when it finds that the public interest will be served thereby.
- m. Logging camps and forestry activities shall be permitted as an exception within the Conservation Zone where the Board determines that such uses are in accordance with the City's comprehensive land use plan.
- n. Museums shall be permitted within the SR-3, SR-4, SR-5, SR-6, STR, and all diverse residential, DR districts where the Board, after review, finds the following:
 - 1. That such museum is organized, that is, is a duly constituted body with expressed responsibilities.
 - 2. That such museum is permanent, that is, expected to continue in perpetuity.
 - 3. That such museum is a non-profit institution, that is, has documentary evidence of its tax-exempt status under the regulations of the U.S. Internal Revenue Service.
 - 4. That such museum is essentially educational or aesthetic, that is, manifests its expressed responsibilities by knowledgeable utilization of its objects and exhibits them for elucidation and enjoyment.
 - 5. That such a museum maintains a professional staff, that is, has at least one paid employee who commands an appropriate body of special knowledge and the ability to reach museological decisions consonant with the experience of his or her peers, and who has access to and acquaintance with the literature of the field. The continuity of employment of at least one professional staff member, who must work sufficient hours to meet adequately the current demand of the institution for administration, record keeping and care of collections is essential.
 - 6. That the tangible objects, animate and inanimate, forming the museum's collections must have intrinsic value to science, history, art or culture.
 - 7. That such museum maintain regular and predictable hours which constitute substantially more than token opening, so that access is reasonably convenient to the public.
 - 8. That such museum operate during normal business hours and does not inherently exhibit noise, light or traffic conditions clearly debilitating to neighboring residents.

- o. Sewage disposal facilities shall be permitted as an exception within the Conservation Zone where the Board, after review, determines that such uses are in accordance with the City's comprehensive land use plan.
- p. Stables shall be permitted within the GB and UC district as an exception where the Board, after review, finds that:
 - 1. The stable is not located within 100 feet of any residential zone district.
 - 2. The City of Charleston Tourism Commission has issued a Certificate of Appropriateness for the stable.
 - 3. The stable complies with all city, county, and state regulations for stables.
 - 4. A site plan is provided showing that the cleaning/loading/tacking area shall not impede traffic flow in the public right-of-way.
 - 5. A written explanation is submitted detailing how refuse will be handled in accordance with city, county, state, and federal regulations. This shall be reviewed by the Department of Public Service.
 - 6. A plan is submitted showing how drainage on the property is to be collected in accordance with city, county, state, and federal regulations. This shall be reviewed by the Commissioners of Public Works and the Department of Public Service.
 - 7. Buildings are designed utilizing appropriate ventilation to prevent objectionable odors from being emitted.
- q. Electric substation or gas regulator station. Such station shall be permitted within the Conservation District, all residential districts, the CT district, the RO district, and the JC district only as an exception where the Board, after review, finds that such station is essential for service of the immediate area, will be enclosed within an appropriate woven wire or solid fence, will be suitably landscaped and no storage of vehicles or equipment will occur.
- r. Storage yards, junk yards, scrap yards or auto salvage yards.
 - 1. Outdoor storage yards, which are used for storage of materials and equipment, other than vehicles, boats or shipping containers, are permitted within the LI (Light Industrial) and HI (Heavy Industrial) districts as an exception where the Board, after review, finds that adequate provision and maintenance of visual screening by fences, planting or other means, from public streets, roads, residences and adjacent residential zone districts will be provided.
 - 2. Junk yards, scrap yards, or auto salvage yards are prohibited within the LI district but permitted within the HI district as an exception where the board, after review, finds that the same standards for visual screening listed in 54-206.r.1. are met.
- s. Reserved.

- t. Golf courses and membership sports and recreation clubs, private or for profit, or changes thereto, shall be permitted within the Conservation district as an exception where the Board, after review, finds that the location, lighting, hours of operation, type and size of the facility, or changes thereto, will not adversely affect any neighboring residentially zoned areas.
- u. Dwellings within the HI district shall be permitted as an exception where the Board, after review, finds that there shall not be created any unsafe living conditions given the existing uses in the area.
- v. Mining for the purpose of extracting materials from a property shall be permitted as an exception in all districts if the total size of the area to be mined does not exceed two (2) acres. For larger operations, Dirt Mining/Resource Extraction shall be permitted as an exception only in the Light Industrial (LI) and Heavy Industrial (HI) zone districts.
 - 1. Mining operations not exceeding two (2) acres in total mining area and meeting all of the following conditions shall be permitted in any zone district as an exception where the Board, after review of documentation submitted by the applicant, finds that:
 - a. The total mining area, work zone and construction access road is shown on a scaled site plan of the property, and is intended as preparation for residential use, recreational use or agricultural use.
 - b. The mining use will not last more than one (1) year from the date of approval.
 - c. The mining work zone, as shown on the scaled site plan, will be located at least fifty (50) feet from any property boundary and at least one hundred (100) feet from any dwelling.
 - d. A mining operation has not occurred on the subject property within three (3) years prior to the date of the application.
 - e. Variances and/or special exceptions from Article 3, Part 6: Tree Protection Requirements, if required, have been approved.
 - f. Existing vegetation will be maintained and adequately protected as a natural buffer between adjacent dwellings, existing water bodies or wetlands and the mining work zone.
 - g. The applicant agrees in writing to restrict the hours of operation for mining operations to between 8:00 a.m. and 7:00 p.m., Monday through Saturday.
 - h. The applicant will not use any office facilities at the mining location except in the LI and HI zone districts.
 - i. A stabilized access road for mining vehicles will be constructed and maintained to the specifications of the City Engineer and to a minimum depth of 50 feet from the public right-of-way.

2. Mining operations exceeding two (2) acres in area shall be allowed in the Light Industrial (LI) and Heavy Industrial (HI) zone districts as an exception where the Board, after review, finds that:
 - a. The applicant agrees in writing to restrict the hours of operation for mining operations to between 7 a.m. and 7 p.m., Monday through Saturday.
 - b. Variances and/or special exceptions from Article 3, Part 6: Tree Protection Requirements, if required, have been approved.
 - c. The size, shape and location of the area to be mined are such that it will allow for the conversion of the mining area into an amenity for the eventual use of the property. Evidence for this finding shall require the submittal of a plat of the property which 1) complies with the preliminary plat requirements of Section 54-810; 2) indicates the limits of clearing and excavation for the mining operation; 3) indicates the intended post-mining use of the mining area and other areas of the tract in conjunction with the Zoning Ordinance; and 4) indicates the depth of the mined area and the final slopes of the sides.
 - d. Vehicle access from a public road for the mining operations is shown on a plat of the tract where the mining will occur, will be located in a manner that minimizes or removes any adverse impacts on adjoining parcels, and will not be through any residential areas. The applicant shall:
 - i. Submit a copy of the approved SCDOT or City encroachment permit for the proposed access road;
 - ii. Construct and maintain a paved roadway from the access point on a public right of way prior to commencing mining operations. The paving shall extend a minimum of fifty (50) feet into the property from the right-of-way. When the vehicle access to the mining area is less than two-hundred and fifty (250) feet from a residential area, the Board may increase the distance the road must be paved or may require a maintenance plan for an unpaved road to eliminate dust and noise issues.
 - e. The mining work zone will have adequate separation from adjoining properties and all wetland areas or areas below the critical line. The minimum separation from adjoining non-residential property, which is not part of the proposed development the amenity is intended to serve, shall be one-hundred (100) feet. The minimum separation from an existing water body, wetland, area below the critical line, or adjoining property with a residential zoning or residential use, shall be two hundred fifty (250) feet. The Board may increase the required distance between the mining work zone and an existing water body, wetland,

- area below the critical line, or adjoining property to mitigate potential adverse impacts due to an insufficient existing vegetative buffer, an environmentally sensitive area, or an existing residential use.
- f. Where vegetation exists along a property boundary, natural water body or wetland, the operator shall maintain sufficient existing vegetation to provide a buffer between the mining operation and property boundary, natural water body or wetland.
- w. Membership sports and recreation clubs and civic, social and fraternal clubs shall be permitted within the SR-3, SR-4, SR-5, SR-6, STR, DR-6, DR-9, DR-12, DR-1F, DR-1, DR-2F, DR-2 and DR-3 districts where the Board, after review, finds the following:
1. Required off-street parking spaces, separated from property lines by an appropriate buffer strip, will be provided.
 2. The location of the facility will not significantly increase pedestrian traffic or automobile traffic and parking on minor and local streets within existing residential neighborhoods.
 3. That such organization is a non-profit organization and has documentary evidence of its tax-exempt status under the regulations of the U.S. Internal Revenue Service.
- x. Sidewalk cafés for licensed businesses not meeting the requirements of Section 54-213 subsection k. paragraph 2. and/or subsection k. paragraph 3. shall be permitted within residential areas as an exception where the Board, after review, finds the following:
1. A completed application for a sidewalk café permit has been submitted for review by the Zoning Administrator;
 2. The applicant meets the requirements of section 54-213 with the sole exception of subsection k. paragraph 2. and/or subsection k. paragraph 3.
 3. The sidewalk café can be operated in the proposed location without compromising public safety or the use of sidewalks for pedestrian travel and access.
 4. The sidewalk café hours of operation will be restricted and be compatible with the surrounding area.
 5. The business applying for the sidewalk café permit is not licensed to permit on premises consumption of alcoholic beverages and will not permit the consumption of alcoholic beverages in the sidewalk café.
 6. The applicant has submitted a petition signed by twenty-five (25) or more residents of the neighborhood in which the sidewalk café is to be located and, if the location is within a neighborhood with a neighborhood association

recognized by the City of Charleston, the applicant must provide proof of having presented the proposal for said sidewalk café to that neighborhood association.

- y. Establishments located in a structure, except a structure that provides accommodations uses, as that term is defined in Sec. 54-120 of this Chapter, approved as a special exception pursuant to Sec. 54-220 of this Chapter and containing twenty or more rooms, that is within five hundred feet of a residential zoning district and which allows for the on-premise consumption of alcohol, beer or wine after midnight, shall be permitted in the Mixed Use 2, Mixed Use 2 Workforce Housing, Business Park and Heavy Industrial zoning districts, and the General Business and Light Industrial zoning districts that are not subject to the General Business Late Night Overlay or Light Industrial Overlay zones where the Board, after review, finds:
1. Garbage, recycling, maintenance equipment and supplies are stored in a manner so as not to be visible from adjoining properties, public right-of-way or other public property; and
 2. Storage areas for all garbage, recycling, maintenance equipment and supplies are designed to contain odors and prevent the wafting of odors onto adjoining properties, public rights-of-way and other public property; and
 3. The location for garbage and recycling pick-up is safe; and
 4. Measures have been incorporated into the structure to address adverse impacts of noise to properties in a residential zoning district; and
 5. The operation of the establishment will not be of substantial detriment to parking in adjoining residential zoning districts; and
 6. The establishment will not result in a heavy concentration of establishments of the same kind within a block, or if so, the applicant demonstrates to the satisfaction of the Board that, due to factors such as the geographic or physical attributes of the block or to other measures incorporated into the structure, the addition of the establishment will not harm the character of the block, the intent of this provision being to encourage vibrant night time activity while maintaining an appropriate balance and mix of uses within the blocks of the districts. In its consideration of a special exception that involves a heavy concentration of establishments, the Board may impose conditions on its approval it deems appropriate and in furtherance of the intent of this Section.

For purposes hereof, residential zoning districts are C, RR-1, SR-1, SR-2, SR-3, SR-4, SR-5, SR-6, SR-7, SR-8, STR, DR-1, DR-1F, DR-2, DR-2F, DR-6, DR-9, DR-12, DR-3 and DR-4.

For purposes hereof, the distance between the proposed establishment and the residential zoning district shall be measured from the point of the

property line of the establishment nearest to the residential zoning district to the property line of the nearest property within a residential zoning district. For purposes hereof, a block is the area on both sides of the street on which a structure fronts that is within 175 feet of the side lot lines of the property where the establishment is to be located.

For purposes hereof, heavy concentration means: (a) a block where more than 40% of the structures contain establishments that allow the on-premise consumption of alcohol, beer or wine after midnight; or (b) a block where establishments that allow the on-premise consumption of alcohol, beer or wine after midnight have, in the aggregate, an occupant load greater than 1,000 people; or (c) a block where there exists an establishment that allows the on-premise consumption of alcohol, beer or wine after midnight and which has an occupant load greater than 300 people.

Notwithstanding anything in Section 54-110 to the contrary, the provisions of this Section shall apply to any establishment that allows on-premises consumption of alcohol, beer or wine after midnight that is within five hundred feet of a residential zoning district that for which, after September 22, 2015, an application is sought for a certificate of occupancy or an initial business license, or for which approval is sought to physically expand the establishment or expand hours of operation after midnight; provided however, that nothing herein shall be construed to prohibit the issuance of a certificate of occupancy or business license for those establishments that, as of the effective date of Ordinance No. 2014-136, ratified by City Council on September 23, 2014, had on file with the Department of Planning and Preservation development plans or applications for permits for establishments intending to provide for the on-premises consumption of alcohol, beer or wine after midnight that were vested under statutory or common law.

(Ord. No. 1996-227, §§ 3—6, 11-26-96 ; Ord. No. 1997-279, § 1, 7-15-97; Ord. No. 1997-280, § 2, 7-15-97; Ord. No. 1998-147, § 3, 8-18-98; Ord. No. 1998-203, § 5, 11-24-98; Ord. No. 1999-01, § 3, 1-12-99; Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 1999-137, § 4, 9-28-99; Ord. No. 2001-31, § 1, 3-14-01; Ord. No. 2002-92, § 2, 8-13-02; Ord. No. 2003-44, § 4, 4-22-03; Ord. No. 2004-68, § 1, 7-20-04; Ord. No. 2006-489, § 2, 10-24-06; Ord. No. 2007-59, § 7, 3-6-07; Ord. No. 2008-146, § 5, 11-25-08; Ord. No. 2009-55, § 2, 4-14-09; Ord. No. 2009-207, § 2, 10-13-09; Ord. No. 2009-208, § 1, 10-13-09; 2011-121, § 1, 9-13-11; Ord. No. 2013-105, § 4, 10-8-13; Ord. No. 2015-125, § 1, 9-22-2015; Ord. No. 2015-142, § 8, 10-13-2015; Ord. No. 2016-102, § 7, 9-13-16; Ord. No. 2017-026, § 5, 2-28-17; Ord. No. 2019-021, § 1, 3-26-19; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-207. Conditional uses.

The following uses shall be approved by the Zoning Administrator as conditional uses within the zoning districts specified upon a finding by the Zoning Administrator that the proposed use satisfies the applicable requirements listed below for that use.

- a. Amusement parks (outdoor) or other similar outdoor entertainment except shooting ranges, such as carnivals, circuses or motor vehicle races are allowed

within the GB, UC, LI or HI districts only when the property, or part thereof, upon which such activity is to occur is not within one thousand feet (1,000') of a residential district. If the property, or part thereof, upon which such activity is to occur is within one thousand feet (1,000') of a residential district, approval for such activity shall require approval of the Board, after review, as an exception unless the same is sponsored by a church or school and is to be held on church or school property. For purposes hereof, a carnival is deemed to be any traveling enterprise offering amusements which include rides, games or concessions and such activities related thereto.

The Board of Zoning Appeals shall only permit such outdoor amusement park or other similar outdoor entertainment as a special exception when it finds that the potential impacts of such activity on the surrounding residential neighborhood from noise, traffic and lighting are not unduly disruptive. The Board shall consider, among other things, the size of the amusement park, including the number of employees, the number and type of rides and/or exhibition booths, the number of vehicles to be utilized for the amusement and its employees and the duration of the event.

- b. BP district and JC district conditions.
 - 1. Conditional uses within the BP and JC districts shall not generate high volumes of traffic, have external environmental effects across property lines or have outdoor storage, unless said storage is part of the permitted principal use of the property and is screened from adjoining rights-of-way and properties by a minimum six-foot tall solid fence or wall in addition to a landscape buffer, if required under Article 3, Part 8: Landscape Buffer Requirements.
 - 2. The hours of operation in the JC district for uses that are open to the public are limited to 7:00 a.m. to 9:00 p.m.
- c. Communication towers shall be approved within the GB, GP, UC, BP, LI and UP districts subject to a finding that a tower satisfies the staff approval criteria listed below. Towers not meeting the staff approval criteria may be approved by the Board of Zoning Appeals—Zoning as an exception subject to a finding that the tower satisfies the special exception criteria listed below. Towers which are no longer used for communication purposes must be dismantled and removed within 120 days of the date the tower is taken out of service.
 - 1. Staff approval criteria. The Zoning Administration may approve construction of a communication tower upon a finding that each of the following criteria is met:
 - (a) The height of the proposed tower must not exceed 160 feet, or the height limits in the Old City Height District, if applicable; and
 - (b) The tower must be located no closer to residential or conservation zoned property than a distance equal to the height of the proposed tower,

except that flush mount monopole towers and stealth monopole towers may be located as close to a residential or conservation zoned property as a distance equal to one-half the height of the proposed tower. For the purposes of this section, a flush mount monopole shall be a monopole communication tower on which the antennas are flush mounted against the monopole with no visible wires, and a stealth monopole shall be a monopole communication tower with no visible antennas, wires or transmitters; and

- (c) The proposed tower must be located no closer than 2,500 feet to another communication tower unless the applicant certifies that the existing tower does not meet the applicant's structural specifications and the applicant's technical design requirements, or that a co-location agreement could not be obtained at a reasonable market rate.
- (d) The proposed tower must be located such that adequate setbacks are provided on all sides to prevent the tower's fall zone from encroaching onto adjoining properties and street rights-of-way (the fall zone shall be determined by an engineer certified in the State of South Carolina in a letter which includes the engineers signature and seal); and
- (e) The proposed tower must not be visible from property listed in the National Register of Historic Places, or from a road or river which has been officially designated as a scenic road or river. The line of site to determine whether a proposed tower will be visible from a certain location, will be from approximately six feet above grade, or the river level at high tide, at that location; and
- (f) The proposed tower and associated improvements meet applicable zoning district and speed limit setback requirements, and applicable landscaping and tree protection requirements; and
- (g) The applicant has attempted to co-locate on existing communication towers, buildings, or other structures and the applicant is willing to allow other users to co-locate on the proposed tower in the future subject to engineering capabilities of the structure, frequency considerations, and proper compensation from the additional user; and
- (h) The proposed tower is only illuminated as required by the Federal Communications Commission, Federal Aviation Administration or other regulatory agencies. Night time strobe lighting shall not be incorporated unless required by the Federal Communications Commission, Federal Aviation Administration or other regulatory agency; and
- (i) The color of the proposed tower is appropriate to blend in with its surroundings; and
- (j) The proposed tower and associated structures are appropriately secured by means of walls, fences or other devices and appropriately screened using existing or new evergreen shrubs and trees that will reach a minimum height of six (6) feet; and

- (k) The proposed tower does not include signage of any nature on any portion of the tower.
- 2. Board of Zoning Appeals—Zoning approval criteria. The Board of Zoning Appeals—Zoning may approve construction of a communication tower as an exception upon a finding that each of the following criteria are met:
 - (a) The height of the proposed tower must not exceed 200 feet, or the height limits in the Old City Height District, if applicable; and
 - (b) In addition to satisfying staff approval criteria listed above as (c), (d), (f), (g), (h), (i), (j), and (k), the Board must find that the design, location and height of the proposed tower will not substantially impact (1) the aesthetic and residential character of adjoining areas zoned residential or conservation and intended to remain as such under adopted land use plans; and (2) the character of property listed in the National Register of Historic Places, or roads and rivers which have been officially designated as scenic roads or rivers.
- 3. Applications for staff or Board approval shall include the following information:
 - (a) A scaled site plan showing the location of the tower(s), guy anchors (if any), buildings and other structures or improvements, parking, driveways, fences, and protected and grand trees affected by the proposed improvements. Adjacent land uses shall also be noted on the site plan.
 - (b) The height and typical design of the tower, typical materials to be used, color, and lighting shall be shown on elevation drawings.
 - (c) Documentation indicating that collocation on existing towers or buildings in the vicinity of the proposed tower was attempted by the applicant but found to be unfeasible, with reasons noted.
 - (d) Other information as requested by staff or the Board to allow adequate review of approval criteria, including photographs with the tower superimposed to assess visual impact."
- d. Community parking lots may be permitted within all residential districts provided the parking lot is paved with bituminous asphaltic or Portland cement binder making possible a permanent, desirable, dustless surface which is graded and drained to dispose of surface water. In addition, each such parking lot shall be enclosed with an ornamental fence, masonry wall or evergreen screen maintained at a height of not less than five and one-half (5½) feet, except within fifteen (15) feet of the intersection of street lines, where the height shall not exceed three (3) feet. Such fence, wall, or screen shall be maintained in good condition and shall comply with front and side yard requirements along the streets side of a corner lot.
- e. CT district conditions.
 - 1. All commercial activities must be operated within enclosed buildings except produce markets shall be permitted to operate outdoors as open air markets or roadside stands;

2. All drive-thru facilities are prohibited within CT;
3. Within CT, the uses listed below, subject to the conditions specified herein, are permitted. Structures existing on December 3, 1984, shall be exempt from the square footage requirements herein set forth for conditional uses.
 - (a) food stores are only allowed to operate between the hours of 7 a.m. and 8 p.m. and the total size of the establishment cannot exceed five thousand (5,000) square feet.
 - (b) laundries and dry cleaning establishments are only allowed to operate between the hours of 7 a.m. and 8 p.m.
 - (c) office uses are restricted to no more than five thousand (5,000) square feet.
 - (d) restaurants are allowed provided the following conditions are met:
 - (1) the total size of such establishment does not exceed three thousand (3,000) square feet;
 - (2) service and consumption of food take place inside the principal structure or on an outdoor patio limited in area to no more than one thousand (1,000) square feet and located no closer than one hundred fifty (150) feet from any residential structure in a residential zone district;
 - (3) the sale of alcoholic beverages is an incidental use only; and
 - (4) the location and method of trash and refuse collection is designed so as not to impinge on neighboring residential dwellings.
 - (5) hours of operation are restricted to between 7 a.m. and 11 p.m. indoors, and between 7 a.m. and 9 p.m. outdoors;
 - (6) have no amplified music, whether live or recorded, speakers, microphones, televisions or other audio or video devices outside the principal structure.
 - (e) retail establishments are only allowed to operate between the hours of 7 a.m. and 8 p.m. and the total size of the establishment cannot exceed five thousand (5,000) square feet.
- f. Day care centers, and overnight day care facilities in conjunction with day care centers, shall be permitted within the GO, LB, GB, UC, BP, LI, HI and UP districts if the proposed center or facility satisfies the following conditions:
 - (1) the proposed facility must meet the definition for a day care center, and overnight day care facility if applicable;
 - (2) proof of application for the facility's registration with the Department of Social Services is submitted;
 - (3) any play area, if located within fifty feet (50') of a residential structure or zone, is appropriately buffered;

- (4) there exists at least one (1) parking space per employee, including the operator, working at the facility at one time, plus one (1) space for every ten (10) day care users, or fraction thereof;
 - (5) plans for ingress/egress, loading/unloading and the location of the parking and play areas are approved for safety by the appropriate city department(s);
 - (6) if the facility is located adjacent to a residence(s), outdoor lighting is oriented away from that structure(s).
- g. Gas storage shall be permitted within the LI district if the total storage area does not exceed 10,000 cubic feet.
- h. Farms producing crops, timber farms, and horticultural specialties (nurseries) shall be allowed within the RR-1 district; however, farms and horticultural specialties shall not be allowed within any other residential district.
- i. Manufacturing
 - 1. Within the BP and JC districts, light manufacturing shall be permitted if the proposed facility meets standards in 54-207, b., and does not exceed 7,000 square feet of light manufacturing space per establishment and is only engaged in the manufacture, processing or preparation of finished products from previously prepared materials. This category includes the processing, preparation, fabrication, assembly, treatment, packaging and storage of such products and incidental sales and distribution.
 - 2. Within the LI, JC and UP districts, the following types of food and kindred products, textile mill products, lumber and wood products manufacturing or processing or other types of manufacturing or processing are prohibited:
 - a) Cottonseed products manufacture, crabmeat or seafood processing involving cooking, tallow, grease, or lard manufacture, dye-stuff or oil cloth manufacture, tanning, curing or sorting of raw hides or skins, paper or pulp manufacture, creosote manufacture or processing or other types of manufacturing or processing which are noxious or offensive by reason of the omission of odor, dust, smoke, gas, vibration, or noise.
 - 3. Within the LI and UP districts, Principal Use categories 26, 30, 31, 32, 34, 35, 36, 37, 39, and 7692, shall be permitted if the Zoning Administration finds that the use meets the following Performance Standards:
 - a) A total ambient noise level of no more than 67 decibels (dBA) is created at all external lot lines adjacent to residential zoning districts or 72 decibels at all external lot lines adjacent to non-residential zoning districts, measured at least 1,000 feet from adjacent roadways and rail lines if possible;
 - b) A total vibration level of no more than 65 velocity decibels (VdB) is created at any internal lot line;

- c) Glare will be less than 50 foot lamberts or one-half of a foot candle on land within residential zoning districts when measured at the lot line; and
- d) All existing South Carolina State air pollution control regulations are met to insure no significant adverse air quality or odor impacts.

Demonstration that the proposed use meets the above standards must be submitted by the property owner to the Zoning Administration for review. The Zoning Administration may require the property owner to conduct

periodic monitoring to ensure the standards are continuously met or may undertake such on its own. Equipment used for measurement must meet the standards of the American National Standards Institute. All costs associated with such measurements shall be the responsibility of the property owner.

- j. RO district conditions. Offices, professional, executive, governmental, and administrative shall be permitted within the RO district if the proposed use satisfies the following conditions:
 - 1. Business hours of operation shall be limited to 7:00 a.m. to 9:00 p.m.;
 - 2. Sales of goods shall be permitted if the goods being sold are related to the approved office use and stored and displayed entirely within the office building;
 - 3. Site and building requirements:
 - (a) slope and pitch of roof, existing on date property is zoned RO, shall be retained in any reconstruction or addition or, in the case of new construction, shall be similar to nearby structures;
 - (b) the street facade, including doors and windows existing on date property is zoned RO shall be retained, with no window displays or exterior display of merchandise; and
 - (c) the street facade of any addition, which includes doors and windows, shall utilize doors and windows of a size and type similar to those on the existing street facade.
 - 4. Adequate off-street parking shall be provided in accordance with Article 3: Part 4, except that:
 - (a) no parking shall be allowed in the required front yard setback; and
 - (b) lighting of parking area shall be directed into the site and away from adjoining residential property.
- k. Warehousing and storage within buildings, including convenience storage facilities such as mini-warehouses, shall be permitted within the BP district if the proposed facility does not exceed 7,000 square feet of storage space per individual business establishment. Outdoor boat and boat trailer storage shall be permitted in connection with warehousing and storage facilities.
- l. Auto supply stores shall be permitted within the LB district if the hours of operation are restricted as prescribed in Section 54-204, b., and the store does not include any auto repair or installation facilities.
- m. Reserved.
- n. Casinos, as herein defined, shall only be permitted in the LI and HI zone districts if the lot on which they are located is not within 1,000 feet of any residential zone district, church, school or the highwater mark of a navigable stream. Provided

however, casinos for which a City business license has been issued as of March 26, 2012, that do not comply with the provisions of this subsection shall be deemed nonconforming uses.

- o. Shipping container storage uses shall only be permitted within the LI and HI zoning districts as a conditional use where the staff determines, upon review of a site plan submitted by the applicant showing the location of the proposed shipping container storage area, stacking limitations, and required buffer improvements (if applicable), that the proposed use satisfies the following restrictions:
 1. Within the LI zone district, no stacking of shipping containers shall be permitted. Within the HI zone district, no stacking of shipping containers shall be permitted within 300 feet of any residential zoning district. A survey may be required to verify that an area or parcel to be used to stack shipping containers is more than 300 feet from a residential zoning district.
 2. Where stacking of shipping containers is permitted, the height of the stack shall not be permitted to exceed three (3) containers.
 3. Shipping container storage areas shall be buffered from all streets and residences by a minimum 25-foot wide Type "D" buffer or the buffer required

for the adjacent street if that buffer requirement is greater than 25 feet, and all non-industrial zoning districts by the minimum buffer required under Table 3.5, Section 54-347.

4. Exemptions. Water-dependent maritime shipping and cargo handling facilities or terminals where shipping containers are stored temporarily awaiting further shipment or relocation to storage facilities shall be exempt from these requirements.
 5. Amortization of nonconforming uses. Existing shipping container storage uses that do not conform to the stacking restrictions listed above in subsections 1 and 2 and are not exempt in accordance with subsection 4, shall be amortized and made to conform to the above stacking restrictions or discontinued twelve (12) months after the effective date of this Ordinance No. 2003-44.
- p. Affordable Housing shall be permitted on existing lots of record platted prior to August 21, 2018 within the DR-1, DR-1F, DR-2, DR-2F, CT, LB, GB, LI, MU-1, MU-1/WH, MU-2 and MU-2/WH districts if the proposal satisfies the following conditions, except that there are no density limits in the MU-1, MU-1/WH, MU-2 and MU-2/WH districts:
- (a) The applicant has filed floor plans for all units proposed to be used for Affordable Housing.
 - (b) The size of the lot being developed for Affordable Housing shall meet the following minimum lot sizes based on the total number of bedrooms proposed, as indicated on floor plans submitted with the application. For the purposes hereof, a bedroom shall be any room other than a kitchen, living room, dining room, bathroom or hall.

No. Bedrooms per Lot	Minimum Lot Area	
	DR-1, DR-1F, CT, LB, LI	DR-2, DR-2F, GB
2	1,773 s.f.	1,300 s.f.
3	2,387	1,750
4	2,728	2,000
5	3,069	2,250
6	3,410	2,500
7	3,751	2,750
8	4,092	3,000
9	4,604	3,375
10	5,115	3,750
11	5,627	4,125
12	6,138	4,500
13	6,630	4,843
14	7,140	5,180

No. Bedrooms per Lot	Minimum Lot Area	
	DR-1, DR-1F, CT, LB, LI	DR-2, DR-2F, GB
15	7,650	5,513
16	8,160	5,840
17	8,500	6,163
18	9,000	6,480
19	9,500	6,745
20	10,000	7,050
21	10,290	7,350
22	10,780	7,700

- (c) The total number of bedrooms on the lot shall not exceed twenty-two (22).
- (d) For lots in DR-1, DR-2, LB-residential, LI-residential, and GB-residential zoning districts, lot occupancy of buildings shall not exceed fifty (50) percent or the lot occupancy in existence on September 26, 2006, whichever is greater. For lots in DR-1F and DR-2F zoning districts, lot occupancy of buildings shall not exceed sixty-five (65) percent or the lot occupancy in existence on September 26, 2006, whichever is greater. Ramps required for compliance with handicapped accessibility regulations shall be exempt from being counted in lot occupancy calculations or setback requirements.
- (e) Off-street parking shall be provided at a rate of one (1) parking space for each four (4) dwelling units. Lots containing less than four (4) dwelling units shall not be required to provide off-street parking.
- (f) As to rental units, these units shall be rented to households earning no more than eighty (80) percent of the area median income, and the rents charged by the owner shall be in accordance with the Fair Market Rents published annually by the U.S. Department of Housing and Urban Development or such entity that may be subsequently designated. In the absence of such information, the rents charged by the owner shall not exceed 30 percent of the household annual income. The owner shall be required to submit to the City of Charleston Department of Housing and Community Development, or its successor, the rental rate to be charged and verified income reports of household income of all rental occupants at the inception of each tenancy and on no less than a yearly basis thereafter, as determined by the City of Charleston Department of Housing and Community Development, or its successor. These units shall be subject to these restrictions for no fewer than twenty (20) years from the initial occupancy as affordable housing. The owner shall execute a Memorandum of Use with the city as a party acknowledging the use of the property for Affordable Housing in accordance with the provisions of this Section, which Memorandum shall be in a form acceptable for recording in the record office of the applicable county and which shall be recorded in the record

office of the applicable county. If a proposal meets the requirements of this section and the owner is willing to enter into the terms of a Memorandum of Use contained in this paragraph, the Mayor shall be authorized so sign the Memorandum of Use on behalf of the City.

- (g) As to owner occupied units, these units shall be sold to households earning no more than one hundred twenty (120) percent of the area median income. Each owner, prior to initial occupancy, shall be required to submit to the City of Charleston Department of Housing and Community Development, or its successor, a verified income report of household income of all members of the household. These units shall be subject to resale restrictions for no fewer than ten (10) years from date of initial sale of the property. Such restrictions will be recorded as deed restrictions.
- q. Veterinary services shall only be permitted within the GP, GB, UC, MU-2, MU-2/WH, BP, JC, CT, LB, MU-1, MU-1/WH, and UP districts as a conditional use if the use satisfies, as evidenced by a site plan, floor plans and written description of the proposed facility, the following conditions:
 - 1. Boarding of animals shall be completely indoors;
 - 2. Buildings in which animals are kept or exercised shall be designed and constructed utilizing appropriate soundproofing and ventilation so that noise and odor shall not be perceptible beyond the premises;
 - 3. No cremation of animals shall occur on the property. All dead animals and refuse shall be disposed of in accordance with City and other governmental agency regulations.
- r. Automotive repair shops, shall be permitted within the GB, UC, MU-2, MU-2/WH, JC, BP and UP zone districts as a conditional use where the applicant has provided sufficient documentation to demonstrate compliance with the following conditions:
 - 1. Buildings will not be within one hundred (100) feet of any existing school, church, hospital, or public library.
 - 2. Buildings will not be within fifty (50) feet of any residential zone district.
 - 3. Exposed repair facilities will not be on the front portion of the lot.
- s. Indoor shooting ranges shall only be permitted in the LI and HI zone districts as a conditional use if the lot on which the range is located is not within (1,000) feet of any school, public or private park, church, or residentially zoned area. Such distance shall be measured from the nearest point of the parcel of land so used to the nearest property line of the other use or zoning line in the case of a residentially zoned area. Nothing contained herein shall be construed to apply to (1) marksmanship centers in existence at the time of the passage of Section 21-213 that are used for practice and training by the South Carolina National Guard and other military organizations and military institutions; and (2) special events, including annual turkey shoots, which

have received a special events permit issued by the Special Events Committee of the City of Charleston pursuant to Section 2-189 of the Code of the City of Charleston, and the written approval of the mayor or chief of police.

- t. Multiple one-family detached dwellings on one lot, up to a maximum of four (4) one-family detached dwellings, shall be permitted within the Conservation (C) and Rural Residential (RR-1) zoning districts if the lot, and plans submitted for approval, satisfy the conditions listed below. These conditions shall not apply to the addition of a second dwelling unit in an accessory building on a lot zoned Conservation, which may be permitted pursuant to Section 54-301. Applications for approval pursuant to the requirements of this section shall be reviewed by the zoning administrator and all City departments responsible for administering building and fire codes, and may include a determination that additional fire hydrants or improved fire flows are necessary for constructing additional dwellings.
 1. The lot fronts on a public street and meets the minimum required distance of lot frontage in Section 54-824, and can provide vehicular access to the street through that lot frontage;
 2. The lot contains a minimum of three (3) acres of high ground if zoned RR-1, or a minimum of six (6) acres of high ground if zoned Conservation;
 3. Use of the lot conforms to the land use regulations of this Chapter;
 4. A plat, prepared by a licensed surveyor, is submitted showing the entire lot in question, the total acreage of high ground, the locations of any existing buildings and one-family detached dwellings, the approximate locations of all future one-family detached dwellings to be permitted under this conditional use, the location of the private drive to provide vehicular access to each existing and future one-family detached dwelling how this private drive shall also satisfy the fire apparatus access road requirements of the applicable fire and building codes, and how the property could be subdivided pursuant to the requirements of this Chapter to provide each existing and future one-family detached dwelling with a lot meeting the requirements of the applicable zoning district with a street meeting the minimum requirements of this Chapter;
 5. Notes concerning the perpetual maintenance of the private drive and the location of garbage collection and recycling, which shall be on the public street, are placed on the plat;
 6. Plans and specifications for improving the required private drive to meet the minimum standards for a fire apparatus access road are submitted if determined by the fire marshal to be necessary.
 7. Must provide documented evidence of approvals from necessary permitting agencies for public water and sewer service or individual water supply and sewage disposal system for each house.

- u. Short-term lender, as herein defined, shall only be permitted in GB, LI, HI and UP zoning districts as a conditional use when the proposed use satisfies all the following conditions:
 - 1. The proposed use is at least 3,000 feet, measured from lot line to lot line, from another short-term lender.
 - 2. The proposed use is at least 3,000 feet, measured from the lot line, to any city boundary line.
 - 3. The proposed use is at least 300 feet, measured lot line to lot line, from any church, school or residentially zoned district.
 - 4. The proposed use is housed within a nonresidential building having at least 30,000 square feet.
- v. Gasoline stations shall only be permitted in the LB, GB, UC, BP, LI and HI zone districts as a conditional use where the applicant has provided documentation to demonstrate compliance with the following conditions:
 - 1. Pumps and other equipment, including vents, safety valves, and storage tanks, shall not be located within one hundred (100) feet of any existing day care building or playground, school building or playground, church building or playground, hospital, public library or dwelling; and
 - 2. Pumps and other equipment, including vents, safety valves, and storage tanks, shall not be located within fifty (50) feet of any residential zoning district; and
 - 3. Stations located within the LB zone district shall restrict their hours of operation to between 7 a.m. and 11 p.m.
- w. Commercial Vehicles.
 - 1. Parking or storage of commercial vehicles shall only be permitted in the C, RO, LB, and GB districts as a conditional use upon the following conditions:
 - (a) On residential property, the commercial vehicle is used by the resident of the subject property or permission of the property owner/lessor/lessee is evidenced by written authorization placed in the windshield of the commercial vehicle displaying the names and telephone numbers of the property owner/lessor/lessee and the commercial vehicle operator, and the dates of the authorization which shall not exceed 48 consecutive hours;
 - (b) On commercial property, the commercial vehicle is being used in connection with the business purpose of the property or permission of the property owner/lessor/lessee is evidenced by written authorization placed in the windshield of the commercial vehicle displaying the names and telephone numbers of the property owner/lessor/lessee and the commercial vehicle operator, and the dates of the authorization which shall not exceed 48 consecutive hours; or

- (c) Such parking or storage is deemed necessary for public safety, or otherwise authorized by, the City of Charleston.
- 2. No sleeping in a commercial vehicle overnight shall be allowed in the C, RO, LB, and GB districts.
- 3. The vehicle operator and/or the property owner/lessor/lessee where the commercial vehicle is stored or parked shall be subject to penalties for violations of this section.
- 4. Concurrently with the zoning administrator's enforcement remedies under this chapter, the livability division shall be authorized to enforce this section and seek remedies under section 1-16 of the City of Charleston Code.
- x. Water storage tanks shall be permitted in the C, RO and all residential districts provided that the water storage tank shall either be setback a minimum of fifteen (15) feet from all property lines or shall meet the setbacks of the of the applicable zoning district for the subject property, whichever is greater.
- y. Parking for church uses within the Conservation and all residential zones shall be permitted as a conditional use if parking areas satisfy landscaping and landscape buffer requirements of this Chapter and receive approval from the Technical Review Committee pursuant to Article 6.
- z. Affordable housing conditional use subdivision and lot dimensional standards for one-family detached dwellings and one-family attached dwellings.
 - 1. Intent: To promote ownership or occupancy of quality affordable housing, property within the SR-1, SR-2, SR-6, zoning district may be approved for subdivision and development for one-family detached dwellings, in accordance with the following conditional use standards in this section. Property within the STR, DR-1, DR-1F, DR-2, or DR-2F zoning districts may be approved for subdivision and development of one-family detached dwellings and one-family attached dwellings, in accordance with the following conditional use standards in this section. The use of the subject parcel shall be restricted to one-family detached dwellings or one-family attached dwellings, according to the zoning of the property, for the provision of affordable housing as certified by the City of Charleston Department of Housing and Community Development, or its successor.
 - 2. Affordable housing conditional use requirements:
 - (a) The entity developing the subject parcel in accordance with the standards in this Section 54-207, z., shall restrict the use of each lot to a single, one-family detached dwelling or a single, one-family attached dwelling lot for the provision of affordable housing as certified by the City of Charleston Department of Housing and Community Development, or its successor.

- (b) Ownership: As to owner occupied units, these units shall be sold to households earning no more than one hundred twenty (120) percent of the area median income. Each owner, prior to initial occupancy, shall be required to submit to the City of Charleston Department of Housing and Community Development, or its successor, a verified income report of household income of all members of the household. These units shall be subject to resale restrictions for no fewer than ninety (90) years from date of initial sale of the property. Such restrictions will be recorded as deed restrictions.
 - (c) Rental: As to rental units, these units shall be rented to households earning no more than eighty (80) percent of the area median income, and the rents charged by the owner shall be in accordance with the Fair Market Rents published annually by the U.S. Department of Housing and Urban Development or such entity that may be subsequently designated. In the absence of such information, the rents charged by the owner shall not exceed 30 percent of the household annual income. The owner shall be required to submit to the City of Charleston Department of Housing and Community Development, or its successor, the rental rate to be charged and verified income reports of household income of all rental occupants at the inception of each tenancy and on no less than a yearly basis thereafter, as determined by the City of Charleston Department of Housing and Community Development, or its successor. These units shall be subject to these restrictions for no fewer than ninety (90) years from the initial occupancy as affordable housing.
 - (d) The entity developing the subject parcel in accordance with this Section 54-207, z., shall execute a memorandum of use with the City as a party acknowledging the use of the property for affordable housing in accordance with the provisions of this section, which memorandum shall be in a form acceptable for recording in the record office of the applicable county and which shall be recorded in the record office of the applicable county. If a proposal meets the requirements of this section and the owner is willing to enter into the terms of a memorandum of use contained in this paragraph, the Mayor shall be authorized so sign the memorandum of use on behalf of the City.
3. Affordable Housing Conditional Use Lot Dimensional Standards For One-family Detached Dwellings: See Section 54-301, Table 3.1 Height, Area and Setback Regulations for standards not addressed in the table below.

Zoning District	Minimum Lot Frontage^{1,2,3}	Minimum High Ground Lot Area in Sq. Ft.	Minimum Building Setbacks	Maximum Lot Occupancy Of Buildings
SR-1	45'	7,000	Front 25', Rear 20', Sides 7'SW, 7'NE	35%
SR-2	40'	4,400	Front 25', Rear 15', Sides 6'SW, 6'NE	50%
SR-3	40'	4,400	Front NR', Rear 3', Sides 9'SW, 3'NE	50%
SR-4	40'	3,200	Front NR', Rear 3', Sides 9'SW, 3'NE	50%
SR-5	35'	2,500	Front-NR', Rear-3', Sides-7'SW, 3'NE	50%
SR-6	35'	4,000	Front 18', Rear 10', Sides 4'SW, 4'NE	50%
STR	40' or no frontage required	4,800	Front 25', Rear 15', Sides 5'SW, 5'NE	50%
DR-1	32' or no frontage required	2,800	Front NR', Rear 3', Sides 7'SW, 3'NE	50%
DR-1F	32' or no frontage required	2,800	Front 25', Rear 3', Sides 7'SW, 3'NE	65%
DR-2	32' or no frontage required	2,200	Front NR', Rear 3', Sides 7'SW, 3'NE	50%
DR-2F	32' or no frontage required	2,200	Front 25', Rear 3', Sides 7'SW, 3'NE	65%

Footnotes:

¹ Requirement for averaging surrounding lot frontages per Section 54-824(c)(1) shall not apply.

² Lots in STR, DR-1, DR-1F, DR-2, or DR-2F zoning districts that front on a street may be subdivided to create one lot with no lot frontage provided that both lots meet all requirements in this subsection, both lots are used for affordable housing in accordance with the requirements of this Section 54-207, z., and a platted and recorded shared ingress/egress easement utilizing an approved driveway is furnished to the newly created lot without frontage.

³ See lot frontage exception noted below in this Section 54-207, z.

4. Lot frontage exception for Maryville Ashleyville: Due to the unique history of the former town of Maryville and corresponding historic platting, parcels abutting the following rights-of-way, and any extensions thereof, shall have a minimum lot frontage of 50 feet:

5th Avenue

Armstrong Avenue

Battery Avenue

Benada Street

Bender Street

Brody Avenue

Brookfield Street

Burger Street

Carnegie Avenue

Channing Street

Chickadee Avenue

Davidson Avenue

Diana Street

East Street

Fiall Street

Forbes Avenue

Gunn Avenue

High Street

Hillsboro Dr.	Mamie Street
Hillside Dr.	Mazyck Street
Hobart Avenue	Minnie Street
Justin Avenue	N Hillside Drive
Lula Street	San Juan Avenue
Magnolia Road	Sycamore Avenue
Main Street	Tripe Street

5. Affordable housing conditional use lot dimensional standards for one-family attached dwellings: Property within the STR, DR-1, DR-1F, DR-2, or DR-2F zoning districts may be approved for subdivision and development of one-family attached dwellings, in accordance with the conditional use standards in this section and pursuant to the requirements in Article 3, Part 11 One-family Attached Dwellings, as modified herein. Modifications to the requirements in Section 54-353, are as follows:
 - (a) The minimum side setback for the principal building listed in subsection d. shall be reduced to five (5) feet except when the conditions listed in Section 54-353, d. subsections 1, 2, 3 or 4 exist;
 - (b) The minimum rear setback for the principal building listed in subsection e. shall be reduced to ten (10) feet except when the conditions listed in Section 54-353, e. subsections 1 or 2 exist;
 - (c) The maximum percent lot occupancy of buildings listed in subsection g. shall be increased to sixty (60) percent; and
 - (d) Subsection j. shall include an additional special requirement that allows lots for one-family attached dwellings to be platted without any lot frontage on a street, if the lot or lots is provided with a suitable driveway access easement, the title to which runs with or is appurtenant to such lot(s).
6. Affordable housing conditional use court standards: Notwithstanding the standards in subsection 3. above, lots in the DR-2 or DR-2F zoning districts with a minimum lot frontage of 56 feet and minimum lot area of 6,700 square feet may be developed to create a traditional "Charleston Court", with a new street or "court" extending into the lot to provide access to lots, if all lots are restricted to one-family detached affordable housing pursuant to this Section 54-207, z. and the development satisfies the following requirements:
 - (a) The new street shall be constructed to meet City of Charleston road construction standards with a minimum right-of-way width of 24 feet, minimum pavement width of 20 feet and maximum length of 150 feet.
 - (b) All lots shall have lot frontage and all lots accessed exclusively from the new street shall have a minimum lot frontage of 15 feet and average lot frontage of 25 feet.

- (c) All lots shall meet the lot dimensional standards in subsection 3., except that the minimum high ground lot area for each lot shall be 1,024 square feet, there shall be no minimum front building setback for lots accessed exclusively from the new street, and the minimum side setback for all side property lines adjacent to another lot accessed exclusively from the new street shall be three (3) feet.
 - (d) The dwelling on each lot with frontage on the existing street the new street connects to shall front on the existing street.
- 7. Affordable housing conditional use off-street parking requirements: Each lot used for Affordable Housing in accordance with the requirements of this Section 54-207, z. shall provide two off-street parking spaces.
- aa. The conversion of an existing accommodations use to affordable housing may be permitted as a conditional use if a written proposal with a current survey of the property demonstrates compliance with each of the following conditions:
 - 1. All accommodations units shall be converted to dwelling units, as defined herein, for a residential use, as defined herein, and no part of the property shall hereafter be used for an accommodations use;
 - 2. All converted units shall comply with applicable building and fire codes;
 - 3. The property shall not be converted to a horizontal property regime and all dwelling units shall be rental units;
 - 4. Off-street parking shall be provided on the property at a rate of one (1) parking space for each dwelling unit;
 - 5. Ten (10) percent of the dwelling units shall be rented to households earning no more than sixty (60) percent of the area median income. The remaining dwelling units shall be rented to households earning no more than eighty (80) percent of the area median income. The rents charged by the owner shall be in accordance with the Fair Market Rents published annually by the U.S. Department of Housing and Urban Development or such entity that may be subsequently designated. In the absence of such information, the rents charged by the owner shall not exceed thirty (30) percent of the household annual income. The owner shall be required to submit to the City of Charleston Department of Housing and Community Development, or its successor, the rental rate to be charged and verified income reports of household income of all rental occupants at the inception of each tenancy and on no less than a yearly basis thereafter, as determined by the City of Charleston Department of Housing and Community Development, or its successor. These units shall be subject to these restrictions for no fewer than twenty (20) years from the initial occupancy as affordable housing. The owner shall execute a Memorandum of Use with the city as a party acknowledging the use of the property for Affordable Housing in accordance with the provisions of this Section, which Memorandum shall be in a form

acceptable for recording in the record office of the applicable county and which shall be recorded in the record office of the applicable county. If a proposal meets the requirements of this section and the owner is willing to enter into the terms of a Memorandum of Use contained in this paragraph, the Mayor shall be authorized so sign the Memorandum of Use on behalf of the City; and

6. Two neighborhood meetings are required. The purpose of the neighborhood meetings is to provide details regarding the application to property owners, neighborhood associations and residents within the area of the property that is subject of the application:
 - a. The Zoning Administrator shall be notified of the date, time, and location of each meeting at least five (5) business days prior to the meeting; and
 - b. The neighborhood meeting shall be conducted by the applicant or representative for the associated application and may be attended by representatives from the City to monitor the results. Each such meeting shall be conducted in accordance with meeting procedures that have been established by the Department, posted online, and otherwise made available upon request.

(Ord. No. 1996-227, § 7, 11-26-96 ; Ord. No. 1997-525, § 2, 11-25-97; Ord. No. 1998-73, § 2, 4-14-98; Ord. No. 1998-203, § 6, 11-24-98; Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 1999-94, § 3, 8-17-99; Ord. No. 1999-137, § 4, 9-28-99; Ord. No. 2003-44, § 5, 4-22-03; Ord. No. 2006-489, § 3, 10-24-06; Ord. No. 2007-119, § 1, 6-19-07; Ord. No. 2008-146, § 6, 11-25-08; Ord. No. 2008-161, §§ 1, 2, 12-9-08; Ord. No. 2009-55, §§ 1, 3, 4, 4-14-09; Ord. No. 2009-206, § 1, 10-13-09; Ord. No. 2011-09, § 2, 2-8-11; Ord. No. 2012-31, §§ 4, 5, 1-10-12; Ord. No. 2012-55, § 2, 2-14-12; Ord. No. 2012-369, § 1, 9-11-12; Ord. No. 2012-371, § 1, 9-11-12; Ord. No. 2013-22, § 2, 2-26-13; Ord. No. 2013-31, § 3, 3-12-13; Ord. No. 2013-105, § 6, 10-8-13; Ord. No. 2014-94, § 7, 7-15-14; Ord. No. 2014-95, § 7, 7-15-14; Ord. No. 2015-142, § 9, 10-13-2015; Ord. No. 2016-026, § 1, 2-9-16; Ord. No. 2016-102, § 8, 9-13-16; Ord. No. 2017-026, § 4, 3-28-2017; Ord. No. 2019-021, § 2, 3-26-19; Ord. No. 2020-097, § 1, 6, 7, 8-18-20; Ord. No. 2023-021, § 1, 2-14-23; Ord. No. 2023-207, § 1, 10-10-23; Ord. No. 2023-226, § 2, 11-14-23; Ord. No. 2024-162, § 1, 10-8-24)

PART 3 TABLE OF PERMITTED USES**DIVISION A: AGRICULTURE, FORESTRY AND FISHING**

01. Agriculture Production-Crop
02. Agriculture Production-Livestock
07. Agricultural Services
08. Forestry
09. Fishing, Hunting and Trapping

DIVISION B: MINING

14. Mining and Quarrying of Nonmetallic Minerals, Except Fuels

DIVISION C: CONSTRUCTION

15. Building Construction-General Contractors and Operative Builders
16. Heavy Construction Other Than Building Construction Contractors
17. Construction-Special Trade Contractors

DIVISION D: MANUFACTURING

20. Food and Kindred Products
22. Textile Mill Products
23. Apparel and Other Finished Products Made From Fabrics and Similar Materials
24. Lumber and Wood Products, Except Furniture
25. Furniture and Fixtures
26. Paper and Allied Products
27. Printing, Publishing and Allied Industries
28. Chemicals and Allied Product
29. Petroleum Refining and Related Industries
30. Rubber and Miscellaneous Plastic Products
31. Leather and Leather Products
32. Stone, Clay, Glass and Concrete Products
33. Primary Metal Industries
34. Fabricated Metal Products, Except Machinery and Transportation Equipment
35. Industrial and Commercial Machinery and Computer Equipment
36. Electronic and Other Electrical Equipment and Components, Except Electrical Computer Equipment
37. Transportation Equipment
39. Miscellaneous Manufacturing Industries

DIVISION E: WAREHOUSING, TRANSPORTATION, COMMUNICATION, ELECTRIC, GAS AND SANITARY SERVICES

40. Railroad Transportation
41. Local and Suburban Transit and Interurban Highway Passenger Transportation
42. Motor Freight Transportation and Warehousing
44. Water Transportation
45. Transportation by Air
47. Transportation Services
48. Communications

49. Electric, Gas and Sanitary Services

DIVISION F: WHOLESALE TRADE SELLING PRIMARILY TO RETAILERS, INDUSTRIAL, COMMERCIAL, INSTITUTIONAL USERS, ETC.

50. Wholesale Trade-Durables Goods
51. Wholesale Trade-Nondurable Goods

DIVISION G: RETAIL TRADE SELLING PRIMARILY FOR PERSONAL OR HOUSEHOLD CONSUMPTION

52. Building Materials, Hardware, Garden Supply and Mobile Home Dealers
53. General Merchandise Store
54. Food Stores
55. Automotive Dealers and Gasoline Service Station
56. Apparel and Accessory Stores
57. Furniture, Home Furnishings and Equipment Stores
58. Eating and Drinking Places
59. Miscellaneous Retail

DIVISION H: FINANCE, INSURANCE AND REAL ESTATE

60. Depository Institutions
61. Nondepository Institutions
62. Security and Commodity Brokers, Dealers, Exchanges and Services
63. Insurance Carriers
64. Insurance Agents, Brokers and Service
65. Real Estate

DIVISION I: SERVICES

70. Hotels, Rooming Houses, Dormitories, Camps and Other Lodgings
72. Personal Services
73. Business Services
75. Automotive Repair, Services and Garages
76. Miscellaneous Repair Service
78. Motion Pictures and Theaters
79. Amusement and Recreation Services, Except Motion Pictures
80. Health Services
81. Legal Services
82. Educational Services
83. Social Services
84. Museums, Art Galleries, Botanical and Zoological Gardens
86. Membership Organizations
87. Miscellaneous Services
88. Private Households
89. Miscellaneous Services, Not Elsewhere Classified

DIVISION J: PUBLIC ADMINISTRATION

91. General Government Not Elsewhere Classified
92. Justice, Public Order and Safety

PRINCIPAL USES		ZONING DISTRICTS																			
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)		C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC	
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018. Horticultural Specialties 54-207, h.		•	‡										•	•	•	•	•	•	•	•	
019. General Farms, Primarily Crop 54-207, h.		•	‡										•	•	•	•	•	•	•	•	
02. Agricultural Production- Livestock		†															•	•			
021. Livestock, except dairy farms																	•	•			
022. Dairy farms 54-206, d.		†															•	•			
07. Agricultural Services																					
074. Veterinary services 54-207, q.												‡	‡	‡	‡	‡	•	•	‡	‡	
074.1 Kennels																	•	•			
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078. Landscape and horticultural services															•						
0781. Landscape counseling and planning 54-207, j.										‡	•	•	•	•	•	•	•	•	•	•	
0782. Lawn and garden services													•	•	•	•	•	•	•	•	
0783. Ornamental shrub and tree services																	•	•	•	•	
08. Forestry 54-206, m.		†																			

PRINCIPAL USES		ZONING DISTRICTS																	
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
	09. Fishing, Hunting and Trapping																		
	091. Commercial fishing												•			•	•	•	
	092. Fish hatcheries and preserves																•	•	
DIVISION B: MINING																			
14. Mining and Quarrying of Nonmetallic Minerals, Except Fuels 54-206, v.	†	†	†	†	†	†	†	†	†	†	†	†	†	†	†	†	†	†	
DIVISION C: CONSTRUCTION																			
15. Building Construction-General Contractors and Operative Builders 54-207, b.																‡	•	•	‡
151. Office only 54-207, j.									‡	•		•	•	•	•	•	•	•	•
16. Heavy Construction Other Than Building Construction-Contractors																•			
17. Construction-Special Trade Contractors 54-207, b.															‡	•	•		‡
DIVISION D: MANUFACTURING																			
20. Food and Kindred Products 54-207, i.																‡	•		‡
20.1 Microbreweries, 54-207, b.													•	•		‡	•	•	•
22. Textile Mill Products 54-207, i.																‡	‡	•	•

PRINCIPAL USES		ZONING DISTRICTS																	
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)														•	‡	•	•		
23. Apparel and Other Finished Products Made From Fabrics and Similar Materials 54-207, i.														•	‡	‡	•		‡
24. Lumber and Wood Products, Except Furniture 54-207, i.														‡	‡	‡	•		‡
25. Furniture and Fixtures 54-207, i.															‡	•	•		‡
26. Paper and Allied Products 54-207.i.																‡	•		
27. Printing, Publishing, and Allied Industries 54-207, i.														•	‡	•	•		‡
28. Chemicals and Allied Product																	•		
29. Petroleum Refining and Related Industries																	•		
30. Rubber and Miscellaneous Plastics Products 54-207.i.														‡		‡	•		
31. Leather and Leather Products 54-207.i.																‡	•		•
32. Stone, Clay, Glass, and Concrete Products 54-207.i.														‡		‡	•		•
3281. Cut stone and stone products 54-207, b.														•	‡	•	•		•
33. Primary Metal Industries																	•		

PRINCIPAL USES		ZONING DISTRICTS																	
		RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ WH	GB UC MU-2/ WH	UP	BP	LI	HI	GP	JC
	• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)													‡		‡	•		
	34. Fabricated Metal Products, Except Machinery and transportation Equipment 54-207. i.													‡		‡			
	35. Industrial and Commercial Machinery and Computer Equipment 54-207. i.													‡		‡	•		
	36. Electronic and other Electrical Equipment and Components, Except Electrical Computer Equipment 54-207. i.													‡		‡	•		•
	37. Transportation Equipment 54-207. i.															‡	•		
	39. Miscellaneous Manufacturing Industries Not Elsewhere Classified 54-207. i.													‡		‡	•		
DIVISION E: WAREHOUSING, TRANSPORTATION, COMMUNICATION, ELECTRIC, GAS, AND SANITARY SERVICES																			
	40. Railroad Transportation																•		
	41. Local and Suburban Transit and Interurban Highway Passenger Transportation											•	•	•	•	•	•	•	•
	42. Motor Freight Transportation and Warehousing																		
	421. Trucking and courier services, except air																•		

PRINCIPAL USES		ZONING DISTRICTS																	
		RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)		C																	
422. Public warehousing within enclosed buildings 54-207, k.															‡	•	•		
4227. Mini-warehouse/self-storage 54-206, f., 54-206, r., 54-207, k.													†		‡	†	•		
4228. Outdoor storage 54-206, r.																†	†		
423. Terminal and joint terminal maintenance facilities for motor freight transportation																•	•		
424. Shipping container storage (outdoor) 54-207, o.																‡	‡		
44. Water Transportation																			
448. Water taxis												•	•	•		•	•	•	
449. Services incidental to water transp.																			
4491. Marine cargo handling																•	•		
4492. Towing and tugboat services																•	•		
4493. Marinas	•											•	•	•		•	•	•	
45. Transportation by Air																			
47. Transportation Services																			
472. Offices for arrangement of passenger transportation 54-207, e. or i.									‡	•	‡	•	•	•	•	•	•	•	

PRINCIPAL USES	ZONING DISTRICTS																		
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)																			
473. Offices for arrangement of transportation of freight and cargo										•		•	•	•	•	•	•	•	
4788. Stables 54-206, p.													†			•	•		
4789. Transportation services, not elsewhere classified																•	•		
48. Communications																			
481. Telephone communications, except towers												•	•	•	•	•	•	•	•
482. Telegraph and other message communications, except towers												•	•	•	•	•	•	•	
483. Radio and television broadcasting systems, except towers												•	•	•	•	•	•	•	•
484. Cable and other pay television services, except towers												•	•	•	•	•	•	•	•
489. Communications services, not elsewhere classified, including towers 54-207, c.													‡	‡	‡	‡	•	‡	‡
49. Electric, Gas, and Sanitary Services																			
491. Electric substations and gas regulator station 54-206, q.	†	†	†	†	†	†	†	†	†	•	†	•	•	•	•	•	•	•	†
492. Gas production and distribution 54-207, g.																†	•		

PRINCIPAL USES		ZONING DISTRICTS																	
		RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C																		
494. Water supply																			
494.1. Water treatment.															•	•	•		
494.2. Water storage tanks 54-207, x.	‡	‡	‡	‡	‡	‡	‡	‡	‡	•	•	•	•	•	•	•	•	•	•
495. Sanitary services																			
4952. Sewage treatment systems 54-206, o.	†															•	•		
4953. Refuse systems																	•		
DIVISION F: WHOLESALE TRADE (selling primarily to retailers; industrial, commercial, institutional users, etc.)																			
50. Wholesale Trade - Durable Goods except storage yards, other than for vehicles or boats, junk yards, scrap yards or auto salvage yards 54-207, b.															‡	•	•		‡
50.1. Wholesale trade storage yards other than for vehicles or boats 54-206, r.																†	†		
50.2. Wholesale trade junk yards, scrap yards or auto salvage yards 54-206, r.																	†		
51. Wholesale Trade-Nondurable Goods																			
5148. Fresh fruit and vegetables, 54-207, b													•	•	‡	•	•	•	•

PRINCIPAL USES	ZONING DISTRICTS																		
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-2/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)													‡		•	•			
516. Chemical and allied products 54-207, b.													‡						‡
517. Petroleum and petroleum products																			
5171. Petroleum bulk stations and terminals																	•		
5172. Petroleum and petroleum products wholesalers, except bulk stations and terminals 54-207, g.																†	•		
520. Nondurable goods, not elsewhere classified 54-207, b.															‡	•	•		‡
52. Building Materials, Hardware, Garden Supply, and Mobile Home Dealers																			
521. Lumber and other building materials dealers													•	•	•	•	•	•	•
523. Paint, glass, and wallpaper stores												H	•	•	•	•	•	•	•
525. Hardware stores 54-207, e.											‡	H	•	•	•	•	•	•	•
526. Retail nurseries, lawn and garden supply stores 54-207, e.											‡	H	•	•	•	•	•	•	•
527. Mobile home dealers													•			•	•		
53. General Merchandise Store																			
531. Department stores 54-207, e.											‡	H	•	•		•	•	•	•

PRINCIPAL USES		ZONING DISTRICTS																	
		RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C																		
533. Variety stores 54-207, e.											‡	H	•	•		•	•		
539. Miscellaneous general merchandise stores 54-207, e.											‡	H	•	•		•	•	•	
54. Food Stores 54-207, e.											‡	H	•	•		•	•	•	•
54.1. Produce markets 54-207, e.	•									•	‡	H	•	•	•	•	•	•	•
55. Automotive Dealers and Gasoline Service Stations																			
551. Motor vehicle dealers (new and used)													•			•	•		
552. Motor vehicle dealers (used only)													•			•	•		
553. Auto and home supply stores 54-207, l.												‡	•	•		•	•	‡	•
554. Gasoline service stations 54-207, v.												†	†			†	†		
555. Boat dealers													•			•	•		
556. Recreational and utility trailer dealers													•			•	•		
56. Apparel and Accessory Stores 54-207, e.											‡	H	•	•		•	•	•	
57. Furniture, Home Furnishings and Equipment Stores												H	•	•	•	•	•	•	•
58. Eating and Drinking Places																			

PRINCIPAL USES		ZONING DISTRICTS																	
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1 MU-1/ WH	GB UC MU-2 MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)																			
581. Eating places																			
5812.1 Eating places without drive thru or drive up service 54-207, e.											‡	H	•/†	•	•/†	•/†	•/†	•	•
5812.2 Eating places with drive thru or drive up services													•/†		•/†	•/†	•/†	•	
5813. Drinking places (alcoholic beverages)													•/†	•	•/†	•/†	•/†	•	•
59. Miscellaneous Retail 54-207, d.																			
591. Drug stores and proprietary stores											‡	H	•	•		•	•	•	
592. Liquor stores													•	•		•	•	•	
593. Used merchandise stores											‡	H	•	•		•	•	•	
594. Miscellaneous shopping goods stores											‡	H	•	•		•	•	•	
596. Nonstore retailers												H	•	•		•	•	•	
599. Retail stores, not elsewhere classified																			
5992. Florists 54-207, b.											‡	H	•	•	‡	•	•	•	‡
5993. Tobacco stores and stands											‡	H	•	•		•	•	•	•
5994. News dealers and news-stands											‡	H	•	•		•	•	•	
5995. Optical goods 54-207, b.											‡	H	•	•	‡	•	•	•	•

PRINCIPAL USES		ZONING DISTRICTS																	
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
	ZONING DISTRICTS																		
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
	5996. Art gallery or dealers 54-207, b.										‡	H	•	•	‡	•	•	•	•
5999. Retail stores, not elsewhere classified												H	•	•	•	•	•	•	
DIVISION H: FINANCE, INSURANCE AND REAL ESTATE																			
60. Depository institutions																			
601. Depository institutions w/o drive-thru or ATM facilities 54-207, e.									•	‡	•	•	•	•	•	•	•	•	
602. Depository institutions with drive-thru or ATM facilities 54-206, g.									†			•	•	•	•	•	•	•	
61. Nondepository Credit Institutions 54-207, e.										•	‡	•	•	•	•	•	•	•	
62. Security and Commodity Brokers, Dealers, Exchanges, and Services 54-207, j.									‡	•	•	•	•	•	•	•	•	•	
63. Insurance Carriers 54-207, j.									‡	•	•	•	•	•	•	•	•	•	•
64. Insurance Agents, Brokers and Service 54-207, j.									‡	•	•	•	•	•	•	•	•	•	
65. Real Estate 54-207, j.									‡	•	•	•	•	•	•	•	•	•	•

PRINCIPAL USES		ZONING DISTRICTS																							
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C	RR-1	SR-1	SR-2	SR-3	STR	DR-6	DR-1F	DR-3	DR-4	RO	GO	CT	LB	GB	UP	BP	LI	HI	GP	JC				
		SR-4	SR-5	SR-6	DR-9	DR-2F	DR-12	DR-2							MU-1/	MU-2/									
6553. Cemeteries 54-206, b.	†	†	†	†	†	†	†	†	†	†	†	•	•	•	•	•	•	•	•	•	•				
66. Short-term Lender, 54-207, u.															‡	‡	‡	‡	‡						
DIVISION I: SERVICES																									
70. Hotels, Rooming Houses, Dormitories, Camps and Other Lodging																									
701. Hotels, motels and inns															see 54-220, Accommodations Overlay Zone				†						
702. Rooming and boarding house															see 54-220, Accommodations Overlay Zone				†						
703. Camps and trailering parks	•															•			•	•					
704. Organization hotels and lodging houses, on membership basis																									
7041. Fraternity and sorority houses															•	•	•		•	•	•				
7042. Dormitories															•	•	•		•	•	•				
7043. Organizational hotels and lodging, not elsewhere classified														See 54-220, Accommodations Overlay Zone or 54-227, ST Overlay Zone									†		
72. Personal Services																									
721. Laundry, cleaning, and garment services																									

PRINCIPAL USES		ZONING DISTRICTS																	
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use ‡ Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)																			
7211. Power laundries 54-207, b.												H	•	•	‡	•	•	•	‡
7212. Garment pressing, and agents for laundries and dry cleaners 54-207, e.											‡	H	•	•	•	•	•	•	‡
7213. Linen supply 54-207, b.															‡	•	•		‡
7214. Diaper service 54-207, b.															‡	•	•		‡
7215. Coin operated laundries and dry cleaning												H	•	•	•	•	•	•	•
7216. Dry cleaning plants, except rug cleaning 54-207, b.												H	•	•	‡	•	•	•	‡
7219. Laundry and garment services not elsewhere classified 54-207, b.															‡	•	•		‡
722. Photographic studios, portrait										•	•	H	•	•	•	•	•	•	•
723. Beauty shops 54-207, e. or j.									‡	•	‡	H	•	•	•	•	•	•	•
724. Barber shops 54-207, e. or j.									‡	•	‡	H	•	•	•	•	•	•	•
725. Shoe repair shops, shoe shine parlors, and hat cleaning shops											•	H	•	•	•	•	•	•	•
726.1 Funeral service											‡	H	•		•	•	•	•	
726.2 Crematories												H	•		•	•	•	•	
727. Tattooing services															•	•			

PRINCIPAL USES		ZONING DISTRICTS																	
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)																			
729. Miscellaneous personal services, except massage parlors and spas											H	•			•	•	•	•	•
7299. Massage parlors, spas 54-205												‡	‡	‡		‡	‡		
73. Business Services																			
731. Advertising 54-207, i.								‡	•	•	•	•	•	•	•	•	•	•	•
732. Consumer credit reporting agencies 54-207, i.								‡	•	•	•	•	•	•	•	•	•	•	•
733. Mailing, reproduction, commercial art and photography, and stenographic services 54-207, b.									•	•	•	•	•	•	‡	•	•	•	•
734. Services to dwellings and other buildings																			
7342. Exterminating services 54-207, b.													•	•	‡	•	•	•	‡
7349. Cleaning and maintenance services to dwellings and other buildings not elsewhere classified 54-207, b.												•	•	•	‡	•	•	•	‡
737. Computer and data processing services										•	•	•	•	•	•	•	•	•	•
739. Miscellaneous business services																			

PRINCIPAL USES		ZONING DISTRICTS																	
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-2/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)																			
7391. Research and development labs										•		•	•	•	•	•	•	•	•
7392. Management, consulting, and public relations services 54-207, j.								‡	•	•	•	•	•	•	•	•	•	•	•
7393. Detective agencies and protective services										•		•	•	•	•	•	•	•	•
7394. Equipment rental and leasing services 54-207, b.												H	•	•	‡	•	•	•	‡
7395. Photofinishing laboratories 54-207, b.													•	•	‡	•	•	•	‡
7396. Trading stamp services												H	•	•	•	•	•	•	
7397. Commercial testing laboratories 54-207, b.												H	•	•	‡	•	•	•	‡
7398. Yacht brokering 54-207, b.												H	•	•	‡	•	•	•	
7399. Business services not elsewhere classified 54-207, b.												H	•	•	‡	•	•	•	
75. Automotive Repair, Services, and Garages																			
751. Automobile rental and leasing without drivers 54-207, b.													•	•	‡	•	•	•	
752. Automobile parking																			
7521. Public automobile parking										•		•	•	•	•	•	•	•	•

PRINCIPAL USES		ZONING DISTRICTS																	
		RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C	‡	‡	‡	‡	‡	‡	‡						•					
7522. Community parking lots 54-207, d.																			
753. Automotive repair shops 54-207, r.												‡	‡	‡	‡	•	•		‡
754. Automotive services, except repair													•		•	•	•		‡
76. Miscellaneous Repair Service																			
762. Electrical repair shops 54-207, b.												•	•	•	‡	•	•	•	‡
763. Watch, clock, and jewelry repair											•	•	•	•	•	•	•	•	•
764. Reupholster and furniture repair 54-207, b.												•	•	•	‡	•	•	•	‡
769. Miscellaneous repair shops and related services																			
7692. Welding repair, 54-207, b., i.															‡	‡	•		‡
7699. Repair shops, not elsewhere classified 54-207, b.															‡	•	•		‡
78. Motion Pictures and Theaters																			
781. Motion picture production 54-207, b.																	•	•	‡
783. Theaters, including motion picture											H		•	•		•	•	•	

PRINCIPAL USES		ZONING DISTRICTS																	
		RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C																		
784. Video tape rental 54-205												H/‡	‡	‡		‡	•	†	
79. Amusement and Recreation Services, Except Motion Pictures																			
791. Dance studios and schools 54-207, b.												H	•	•	‡	•	•	•	‡
793. Bowling alleys and billiard and pool establishments													•	•		•	•	•	
794. Commercial sports																			
7941. Professional sports clubs and promoters, arenas, stadiums													•	•		•	•	•	
7948. Racing including track operation																‡	‡		
799. Miscellaneous amusement and recreation services																			
7992. Public, not for profit, golf courses	•	•	•	•	•	•	•	•	•	•	•	•	•			•	•	•	
7992.1 Private or for-profit golf courses 54-206, t.	†								•	•	•	•	•			•	•	•	
7993. Coin operated amusement devices												H	•	•		•	•	•	
7993.1 Casinos 54-207.n.																‡	‡		
7994 Shooting range																			

PRINCIPAL USES		ZONING DISTRICTS																	
		RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	C																		
7994.1 Indoor shooting range 54-207, s.																‡	‡		
7994.2 Outdoor Shooting range																			
Prohibited by Sec. 21-213 of the Code of the City of Charleston unless otherwise allowed by Sec. 21-213																			
7996. Amusement parks 54-207, a.													‡			‡	‡	†	
7997. Membership sports and recreation clubs 54-206, t., 54-206, w.	‡		†	†	†	†						•	•	•		•	•	•	
7998. Riding stables	•												•			•	•		
7999. Amusement and recreation services not elsewhere classified 54-207, a.													‡	‡		‡	‡	‡	
80. Health Services																			
801. Offices and clinics of health practitioners 54-207, e. or j.									‡	•	‡	•	•	•	•	•	•	•	•
805. Nursing and personal care facilities												•	•	•		•	•	•	•
806. Hospitals										•		•	•	•		•	•	•	
807. Medical and dental laboratories 54-207, b.												•	•	•	‡	•	•	•	‡
81. Legal Services 54-207, e. or j.									‡	•	‡	•	•	•	•	•	•	•	•
82. Educational Services																			

PRINCIPAL USES		ZONING DISTRICTS																	
	• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
	821. Nursery, preschool, kindergarten, elementary and secondary schools										•	•	•	•	•	•	•	•	•
	822. Colleges, universities, professional schools and junior colleges										•		•	•	•	•	•	•	
	823. Libraries										•	•	•	•		•	•	•	
	824. Correspondence schools and vocational schools										•		•	•		•	•	•	•
	83. Social Services																		
	832. Individual and family social services										•	H	•	•	•	•	•	•	•
	833. Job training and vocational rehabilitation services											H	•	•	•	•	•	•	•
	835. Day care centers 54-206, e. or 54-207, f.	†	†	†	†	†	†	†		‡	‡	‡	‡	‡	‡	‡	‡	‡	‡
	84. Museums, Art Galleries, Botanical and Zoological Gardens																		
	841.1 Museums 54-206, n. or 54-207, e.		†	†	†	†					‡	H	•	•		•	•	•	
	841.2 Art galleries 54-207, e.										‡	H	•	•		•	•	•	‡
	842. Arboreta, botanical and zoological gardens												•	•		•	•	•	
	86. Membership Organizations																		

PRINCIPAL USES		ZONING DISTRICTS																	
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)																			
863. Labor unions and similar labor organizations										•		•	•	•	•	•	•	•	
864. Civic, social and fraternal associations 54-206, w.			†	†	†	†	†			•	•	•	•	•	•	•	•	•	•
865. Political organizations										•		•	•	•	•	•	•	•	
866. Religious organizations 54-206, c.	†	†	†	†	†	†	†			•	•	•	•	•	•	•	•	•	•
87. Miscellaneous Services																			
871. Engineering, architectural, and surveying services 54-207, j.									‡	•	•	•	•	•	•	•	•	•	•
872. Accounting, auditing and bookkeeping services 54-207, j.									‡	•	•	•	•	•	•	•	•	•	•
88. Private Households (number per lot)																			
881. One family detached dwelling 54-206, u.	•	•	•	•	•	•	•	•	•	•	•	•	•	•		•	†		•
888.1 One family detached dwellings (up to four per lot) 54-207, t.	‡	‡																	
882. One family attached dwelling 54-352			‡	‡	‡	‡	‡				‡	‡	‡	‡		‡		‡	
883. Two family dwelling 54-206, u.	•			•	•	•	•				•	•	•	•		•	†	•	

PRINCIPAL USES		ZONING DISTRICTS																	
	C	RR-1 SR-1 SR-2 SR-7 SR-8	SR-3 SR-4 SR-5 SR-6	STR	DR-6 DR-9 DR-12	DR-1F DR-1 DR-2F DR-2	DR-3	DR-4	RO	GO	CT	LB MU-1/ MU-1/ WH	GB UC MU-2/ MU-2/ WH	UP	BP	LI	HI	GP	JC
• Permitted Use † Special Exception Use ‡ Conditional Use H Permitted use with limitation on hours of operation (see 54-204)					•	•	•	•				•	•	•		•	†		
884. Multi-family dwelling 54-358, 54-206, u.						†	†	†			†	†	†						
884.1 Multi-family dwelling for the elderly 54-206, l. or 54-358																			
886. Mobile home parks 54-355							†												
887. Mobile homes 54-356							†												
888. Affordable housing 54-207, p. or 54-207.z		‡ (only SR-1, SR-2)	‡	‡		‡						‡	‡	•		‡		‡	
89. Miscellaneous Services, not elsewhere classified									•	•	•	•	•	•	•	•	•	•	
DIVISION J: PUBLIC ADMINISTRATION																			
91. General Government Not Elsewhere Classified										•		•	•	•	•	•	•	•	•
92. Justice, Public Order and Safety																			
921. Courts									•			•	•	•	•	•	•	•	
922. Public order and safety																			
9221. Police protection 54-207, e.										•	‡	•	•	•	•	•	•	•	•
9223. Correctional institutions													•			•	•		
9224. Fire protection										•		•	•	•	•	•	•	•	•

(Ord. No. 1996-227, §§ 8—18, 11-26-96; Ord. No. 1997-279, § 2, 7-15-97; Ord. No. 1997-280, § 1, 7-15-97; Ord. No. 1997-525, §§ 3, 4, 11-25-97; Ord. No. 1998-203, §§ 3, 4, 11-24-98; Ord. No. 1999-01, § 2, 1-12-99; Ord. No. 1999-22, § 3, 3-10-99; Ord. No.

1999-94, § 2, 8-17-99; Ord. No. 1999-137, § 3, 9-28-99; Ord. No. 2001-44, § 1, 5-8-01; Ord. No. 2002-84, § 3, 8-13-02; Ord. No. 2002-92, §§ 3, 4, 8-13-02; Ord. No. 2003-44, §§ 2, 3, 4-22-03; Ord. No. 2003-63, § 2, 7-15-03; Ord. No. 2063-69, §§ 5—7, 8-19-03; Ord. No. 2006-463, § 3, 10-17-06; Ord. No. 2006-488, § 1, 10-24-06; Ord. No. 2006-489, § 4, 10-24-06; Ord. No. 2007-59, §§ 1—6, 8—14, 3-6-07; Ord. No. 2008-146, §§ 1—4, 11-25-08; Ord. No. 2008-159, §§ 1, 2, 12-9-08; Ord. No. 2009-55, §§ 1, 3, 4, 4-14-09; Ord. No. 2009-207, § 1, 10-13-09; 2011-121, § 2, 9-3-11; Ord. No. 2012-31, §§ 1—3, 1-10-12; Ord. No. 2012-55, § 1, 2-14-12; Ord. No. 2012-229, § 1, 5-8-12; Ord. No. 2013-31, § 2, 3-12-13; Ord. No. 2013-105, § 7, 10-8-13; Ord. No. 2014-67, §§ 3—5, 5-13-14; Ord. No. 2014-94, § 1—6, 7-15-14; Ord. No. 2014-95, §§ 2—5, 7-15-14; Ord. No. 2015-125, § 2, 9-22-2015; Ord. No. 2015-142, §§ 2—6, 10-13-15; Ord. No. 2016-082, 1—6, 7-19-16; Ord. No. 2016-102, § 9, 9-13-16; Ord. No. 2017-026, §§ 2, 3, 3-28-17; Ord. No. 2018-043, § 8, 4-10-18; Ord. No. 2018-079, §§ 1, 2, 7-17-18; Ord. No. 2020-097, § 2, 8-18-20; Ord. No. 2022-083, § 1, 6-21-22; Ord. No. 2023-236, § 1, 11-28-23)

PART 4
ACCESSORY USES

Sec. 54-208. The following provisions shall apply to all residential short term rentals ("STR").

- a. **General Requirements.** A residential short term rental use may be permitted as a Category 1, Category 2, or Category 3 STR Permit, if the zoning administrator determines the STR to be an accessory use to the principal residential use on a property which satisfies the requirements of Section 54-208.1, 54-208.2, or 54-208.3, as applicable, and issues a permit for such STR use.
- b. **Operational Requirements.** In all cases, Category 1, 2 or 3 STR uses shall adhere to the following operational requirements:
 1. The residential STR shall be operated by the record owner of the subject property who shall also be a resident of the subject property and who shall be residing overnight on the property while residential STR guests are present; and
 2. The property shall not contain signs advertising the STR use; and
 3. If meals are served by the resident owner, no meals other than breakfast may be served to the paying guests; and
 4. The record owner of the subject property must keep in full force and effect during all times the STR is operated a general liability policy with a company authorized to do business in the State of South Carolina insuring against personal injury (including death) and property damage with limits of no less than \$1,000,000.00 per occurrence; and
 5. The resident owner shall keep a current guest register including names, addresses, telephone numbers and dates of occupancy of all guests; and
 6. The resident owner shall comply with all business license and revenue collection laws of the City of Charleston, Berkeley County or Charleston County, whichever is applicable, and State of South Carolina; and
 7. The resident owner shall provide a rental packet containing applicable city rules and restrictions specified in the Residential STR Permit application materials, as well as pertinent unit safety information and contact information to guests when they book the STR and shall prominently display the STR Permit, rules, safety and contact information within the STR; and
 8. Each Category 1, 2, or 3 STR permittee is entitled to rent, list with a booking or listing service, advertise, make available for STR use, or otherwise market only one (1) STR unit; and

9. The resident owner and the owner's agent shall list the Residential STR Permit number on all advertisements, listings with booking services, and marketing materials, including without limitation, Airbnb, VRBO/Homeaway, FlipKey, and any other online websites and listing or booking platforms or services.
10. The residential STR shall not be expanded in any respect beyond the specific rooms which were designated as part of a residential STR unit on plans relied upon by the city in approving a residential STR permit or beyond the maximum number of guests listed on the residential STR permit, nor shall the use be changed to any other use not permitted by the Zoning Ordinance without reapplication to and approval by the zoning administrator.

c. **Application Procedure.**

1. New Applications. Applications for new Category 1, 2 or 3 STR Permits shall be notarized and include the following:
 - (a) The location and name of the record owner of the property; and
 - (b) An application fee; and
 - (c) Floor plans drawn to scale of the habitable structures on the property that clearly designate all rooms to be used by STR guests, and the specific room or rooms to be used by guests for sleeping; and
 - (d) A site plan of the lot showing the location of the proposed Residential STR unit and the required off-street parking spaces and driveways; and
 - (e) A photograph or photographs of the current principal view or views of the structure where the residential STR unit is to be located; and
 - (f) A statement which the resident-owner must sign acknowledging that he or she has reviewed and understands the requirements of this section and the applicable section for the category of permit requested.

Upon receiving a complete application and prior to the issuance of a new STR permit, the zoning administrator shall cause notice to be posted on the property upon which the proposed STR use is to be located for fifteen (15) consecutive calendar days, advising that the Resident-owner of the property has applied for a zoning permit to establish a STR use at the location and supplying a phone number to call for further information. During this fifteen (15) calendar day period, the zoning administrator shall determine if the application meets the requirements as set forth in this section. If, at the end of the fifteen (15) day posting period, the zoning administrator determines that the application meets the requirements for the STR use requested, the zoning administrator shall notify the applicant that the application is approved and shall, after waiting an additional five business days to allow for appeals, issue the STR Permit, which shall be valid for one (1) year from the date of issuance, and shall be renewable annually unless revoked. Any appeals filed within the five-day period shall cause the issuance of the STR Permit to be stayed pending resolution of the appeal.

2. **Renewal Applications:**
 - (a) For renewal of an STR permit, a property owner shall be required to recertify compliance with this section for the STR use with the zoning administrator. An application for annual recertification of the STR permit must include the application fee, an affirmation by the applicant that the nature of the STR use at the property has not changed, and must be notarized, filed with, and approved by the zoning administrator to continue the STR use.
 - (b) Upon a change in ownership of a property, and prior to the issuance of a new business license to allow continuation of an existing, permitted STR use upon said property, the new property owner shall be required to recertify compliance with this section for the STR use and submit plans reaffirming the specific room or rooms to be used for the STR unit with the zoning administrator. An application for recertification of the STR use must include the required plans and be notarized, filed with, and approved by the zoning administrator prior to the STR use by the new property owner.
3. On an annual basis the zoning administrator shall determine whether each STR use permitted under this section remains in compliance with all the terms of this chapter, and shall initiate such enforcement procedures as may be appropriate. All operators of STR uses permitted under this Section shall cooperate fully with the zoning administrator and his designees, including, but not limited to, providing pertinent information upon request and affording access to that portion of the property which is used for the STR use for reasonable site inspections.
- d. **Existing Approved Bed and Breakfast Uses.** All approved, legal bed and breakfast uses that are operating on the effective date of this ordinance or that are entitled to be in operation on the effective date of the ordinance from which this section derives on properties outside the Short Term Overlay Zone shall be issued a Category 1 or Category 2 STR Permit, depending on their location. Such previously approved uses shall adhere to the requirements of the Zoning Ordinance in effect prior to April 10, 2018.
- e. **Violations and Penalties.**
 1. **Violations.** It shall be a violation of this Chapter for an owner, his agent or manager to:
 - (a) Operate a Category 1, 2 or 3 STR use, a bed and breakfast use or other accommodations use without complying with the requirements of this Chapter and the Code of the City of Charleston; or
 - (b) Expand an STR use or bed and breakfast use without obtaining a new permit; or
 - (c) Advertise a property as being available for an STR use, bed and breakfast use or other accommodations use without first complying with the requirements of this Chapter; or

- (d) Represent or submit for advertising or marketing, or to otherwise hold out an STR unit, bed and breakfast unit or other accommodations unit as being available for use or occupancy unless the STR or bed and breakfast has been permitted pursuant to this Chapter and the permit number is displayed in the materials used to represent, advertise, market or otherwise hold out the property as available for STR or bed and breakfast use or occupancy; or
 - (e) Represent or submit for advertising or marketing, or otherwise to hold out the availability of a STR or bed and breakfast for use or occupancy by more than the number of occupants that are permitted pursuant to this Chapter; or
 - (f) Represent or submit for advertising, or marketing, or to otherwise hold out more STR or bed and breakfast units or other accommodations type units on a property than are permitted pursuant to this Chapter.
2. Penalties. A violation of this Chapter is a misdemeanor punishable by a fine and/or incarceration. Each day the unlawful erection, construction, reconstruction, alteration, conversion, maintenance, use, or other violation under this Chapter continues is considered a separate offense. Any violation of this Chapter entitles the zoning administrator to revoke the STR or bed and breakfast permit. (Ord. No. 2009-204, § 1, 10-13-09; Ord. No. 2011-11, § 2, 2-8-11; Ord. No. 2018-043, § 9, 4-10-18)

Sec. 54-208.1. Requirements for a Category 1 short term rental, STR permit for properties within the Old and Historic District.

- a. An STR use may be established in a dwelling unit as an accessory to the principal residential use, on any property located within the Old and Historic District, where the zoning administrator, after reviewing an STR Permit application, finds that the following requirements are met:
 - 1. The property shall not contain more than one (1) STR unit. Each unit shall consist of one or more rooms arranged for the purpose of providing sleeping accommodations for occupancy for one (1) to twenty-nine (29) consecutive days by up to four (4) adults. For the purposes of this Section, an adult shall include any person eighteen (18) years of age or older; and
 - 2. The subject property shall be located entirely within the Old and Historic District; and
 - 3. The STR shall be operated by the record owner of the subject property who is a Resident of the subject property; and
 - 4. The STR shall be subordinate and incidental to the principal residential use of the property; and

5. The STR shall provide one (1) off street parking space on the subject property, in addition to providing, on the subject property, required off street parking for existing uses on the property. The parking space provided for the STR may be situated in tandem with the required spaces for other uses; and
 6. The STR unit shall be located within an existing structure or accessory building that is individually listed on the National Register of Historic Places; and
 7. The STR unit shall not displace an existing dwelling unit which has been occupied within one (1) year prior to the filing date of the application; and
 8. The STR use shall not create the need for exterior alterations to any building for the purpose of maintaining such accessory use; and
 9. The STR use shall be located on property which is in compliance with allowed uses for the zone district in which the property is located; and
 10. The STR use shall be located on a lot which complies with the required minimum lot area for existing uses as specified under Table 3.1: Height, Area and Setback Regulations (applicable to SR and STR residential districts only); and
 11. The applicant for the STR use shall not be someone who has had an STR Permit revoked within the previous twenty-four (24) months.
- (Ord. No. 2011-11, § 3, 2-8-11; Ord. No. 2018-043, § 9, 4-10-18)

Sec. 54-208.2. Requirements for a Category 2 short term rental, STR permit for properties located on the peninsula outside of the Old and Historic District and the Short Term Rental, ST Overlay Zone.

- a. An STR use may be established in a dwelling unit as an accessory use to the principal residential use, on any property not located in the Old and Historic District and located entirely within the Old City District, where the zoning administrator, after reviewing an STR application, finds that the following requirements are met:
 1. The property shall not contain more than one (1) STR unit. Each unit shall consist of one or more rooms arranged for the purpose of providing sleeping accommodations for occupancy for one (1) to twenty-nine (29) consecutive days by up to four (4) adults. For the purposes of this Section, an adult shall include any person eighteen (18) years of age or older; and
 2. The subject property shall be located entirely on the peninsula and not within the ST Overlay Zone or the Old and Historic District; and
 3. The STR use shall be operated by the record owner of the subject property who shall also be qualified as a resident of the subject property; and
 4. The STR unit shall be located within a building constructed fifty (50) or more years ago; and

5. The STR shall provide one (1) off street parking space on the subject property, in addition to providing, on the subject property, required off street parking for existing uses on the property. The parking space provided for the STR may be situated in tandem with the required spaces for other uses; and
6. The STR shall be located on property which is in compliance with allowed uses for the zone district in which the property is located; and
7. The STR use shall not create the need for exterior alterations to any building for the purpose of maintaining such accessory use; and
8. The applicant for the STR use shall not be someone who has had an STR permit revoked within the previous twenty-four (24) months.

(Ord. No. 2018-043, § 9, 4-10-18)

Sec. 54-208.3. Requirements for a Category 3 short term rental, STR permit for properties in all other areas of the City off of the peninsula.

- a. A Category 3 STR use may be established in a dwelling unit as an accessory to the principal residential use where the zoning administrator, after reviewing an STR application, finds that the following requirements are met:
 1. The subject property shall be located entirely off of the peninsula; and
 2. The number of STR guests on the property shall not exceed four (4) adults. For the purposes of this section, an adult shall include any person eighteen (18) years of age or older; and
 3. The size and character of the STR use must be subordinate and incidental to the principal residential use of the property; and
 4. The STR shall be operated by the record owner of the subject property who shall also be qualified as a resident of the subject property; and
 5. The STR shall provide one (1) off street parking space on the subject property, in addition to providing, on the subject property, required off street parking for existing uses on the property. The parking space provided for the STR may be situated in tandem with the required spaces for other uses; and
 6. The STR use shall not create the need for exterior alterations to any building for the purpose of maintaining such accessory use; and
 7. The applicant for the STR use shall not be someone who has had an STR permit revoked within the previous twenty-four (24) months.

(Ord. No. 2018-043, § 9, 4-10-18)

Sec. 54-209. Communication towers.

Communication towers shall be allowed as an accessory use within the GB, GP, UC, BP and LI districts, subject to a finding that the tower satisfies the criteria listed in 54-207, c.

(Ord. No. 2007-119, § 2, 6-19-07)

Sec. 54-210. Day care facilities.

- a. Family day care homes, group day care homes, or overnight day care facilities, may be established in all residential zoning districts as an accessory use to a residential use upon a finding by the Zoning Administration that the requirements that follow are met.
 1. Permitting requirements.
 - (a) the proposed facility must meet the definition for either a family day care home or group day care home. Overnight day care facilities are allowed only in conjunction with approved family day care homes; and
 - (b) proof of application for the facility's registration with the Department of Social Services is submitted; and
 - (c) outdoor play is allowed only between the hours of 8 a.m. and 6 p.m.; and
 - (d) the facility is an accessory use of a residence occupied by the operator of the facility; and
 - (e) the proposed outdoor lighting of the facility does not unduly impact neighboring properties; and
 - (f) there are no signs advertising or identifying the property as a family day care home.
 2. Approval process. Prior to the issuance of a zoning permit, the Zoning Administration shall cause the property upon which the proposed facility is to be located to be posted for ten (10) consecutive days, advising that the occupant of the property has applied for a zoning permit to establish a day care facility at the location and supplying a phone number to call for further information. Should no objection to the permit, as hereinafter set forth, be received by the Zoning Administration during the ten (10) day posting period, the Zoning Administration shall, after verifying that the facility meets the requirements as set forth above, issue the zoning permit. If, prior to the expiration of time during which the property is posted, the Zoning Administration is presented with a petition in opposition to the issuance of a zoning permit, signed by a majority of the owners of property located within 200 feet of any lot line of the property where the facility is proposed to be located, then the matter shall be referred to the Board of Zoning Appeals. The Board of Zoning Appeals shall, in considering the matter, prior to the issuance of a permit, verify that the facility meets the requirements as set forth above and the facility is otherwise compatible with the surrounding neighborhood based upon the size of the proposed facility, the potential for increased traffic and noise and the location of play, loading and circulation areas.

On an annual basis, the Zoning Administration shall determine whether each day care facility permitted under this section remains in compliance with all the terms of this ordinance, and shall initiate such enforcement procedures as may be appropriate. All operators of day care facilities permitted under this section shall cooperate fully with the

Zoning Administration and his designees, including, but not limited to, providing pertinent information upon request and affording access to that portion of the premises which is used for day care for reasonable site inspections.

(Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-211. Home occupations.

- a. A home occupation may be established on a property in any zoning district, as an accessory use to the principal residential use, if the intended home occupation meets the conditions listed below. The business owner must complete and sign a "Home Occupation Application." The completed application shall constitute zoning approval.
 1. The home occupation shall be a use that is customarily conducted by the resident of record, is incidental and subordinate to the principal residential use, and does not constitute a nuisance or adversely affect the use and development of adjoining properties in the neighborhood. Home occupations shall include, in general, but not be limited to, personal services such as furnished by an artist, musician, seamstress or instructor. Also, a home occupation may be a business that maintains an office within a dwelling, but conducts business activity at another location away from the dwelling. This includes, but is not limited to, building contractor, lawn care service, painter, pressure washing, interior design, cleaning service, or newspaper delivery. A home occupation shall not include such occupations as adult uses, motor vehicle repairs, motor vehicle rental, motor vehicle sales, tattooing, tea rooms, tourist homes, bed and breakfasts short term rentals, rooming or boarding houses, animal kennels or hospitals, physicians, dentists or other offices for diagnosis, prevention, alleviation, or cure of disease or disability, retail businesses, or occupations which have vehicles, other than vehicles as described below, parked or stored at the dwelling.
 2. The home occupation shall be clearly incidental to the principal residential use of the property and shall not change the essential residential character of the property.
 3. Outdoor activities. All activities and storage areas associated with home occupations must be conducted in completely enclosed buildings, with the exception of swimming instructions.
 4. Use of the dwelling for this purpose shall be limited to thirty-three percent (33%) of the existing principal building and up to 650 square feet of an enclosed accessory building.
 5. No outside storage shall be used in connection with the home occupation.
 6. No electrical, mechanical, or chemical equipment that is not normally a part of domestic or household equipment shall be permitted. There shall be created no dangerous, injurious, noxious or otherwise objectionable fire, explosive or other

hazard; noise or vibration; smoke, dust, odor or other form of air pollution; heat, cold or dampness; electromagnetic or other disturbance; glare; liquid or solid refuse or other waste; or other objectionable substance, condition or element.

7. There shall be no exterior display, no exterior storage of materials, no exterior sign, except as permitted by the applicable district regulations, and no other exterior indication of the home occupation or internal or external alterations inconsistent with the residential use or character of the dwelling.
8. Such occupation shall be carried on by a resident, members of his family living on the premises, and no more than one full-time or part-time nonresident employee who works at the residence used for the home occupation. The home occupation may have other employees who are not working at the residence, but work at other off-site locations, if applicable. For the purpose of this section, the term "nonresident employee" includes an employee, business partner, co-owner, or other person affiliated with the home occupation, who does not live at the site, but who may work at the site as a part of the home occupation.
9. Display of products shall not be visible from the street and only articles made on the premises may be sold on the premises.
10. Instruction in music, dancing, swimming, art and similar instruction shall be limited to two students at a time, with the expectation that pick-up and drop-off times are arranged in a manner that minimizes impact to the neighborhood.
11. A barber shop or beauty shop with not more than one (1) chair shall be permitted as a home occupation if the other requirements of this Section are met.
12. Passenger vehicles only shall be permitted in connection with the conduct of the home occupation. Passenger vehicles include motorcycles, automobiles, pickup trucks and vans. No truck cabs, or other large trucks or semi-truck trailers shall be allowed.
13. No traffic shall be generated by such home occupation in greater volume than would normally be expected in the neighborhood, and any need for parking generated by the conduct of such home occupation shall be met off the street and other than in a required front yard.
14. Nothing in this section shall allow zoning approval for a home occupation which creates or causes to be created noises, noxious odors, or conditions injurious to the health, safety, morals, or welfare of the community. The Board of Zoning Appeals-Zoning shall review all appeals to decisions of the Zoning Administrator. Such zoning approval shall be revoked upon a finding that any home occupation established under this Chapter fails at any time to meet the requirements prescribed herein.

In granting the zoning approval for a home occupation, the Zoning Administrator may impose such reasonable and additional stipulations, conditions or safeguards, as deemed necessary to fulfill the purposes and intent of this Chapter.

- b. Expiration. The Zoning Permit for a home occupation shall expire under the following conditions:
1. Whenever the applicant ceases to occupy the premises for which the home occupation was issued. No subsequent occupant of such premises shall engage in any home occupation until a new permit has been issued through proper application.
 2. Whenever the applicant fails to exercise the use permitted for any period of twelve (12) consecutive months.
 3. Whenever in the judgment of the Zoning Administrator the home occupation exceeds the limitations of this Chapter or the restrictions stated on the zoning approval, a notice which revokes the Home Occupation zoning approval shall be mailed by certified mail to the licensee stating the date the permit is to be voided. The licensee may request a hearing before the Board of Zoning Appeals-Zoning for a reinstatement of the Home Occupation zoning approval.

(Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2006-488, § 2, 10-24-06; Ord. No. 2007-172, § 2, 9-11-07; Ord. No. 2011-08, § 4, 2-8-11; Ord. No. 2011-28, § 2, 4-12-11; Ord. No. 2015-081, §§ 1, 2, 7-21-2015; Ord. No. 2018-043, § 10, 4-10-18; Ord. No. 2022-026, § 1, 2-22-22)

Sec. 54-212. Accessory uses within GO office developments.

Accessory uses may be permitted when intended to complement any of the permitted uses and are designed to be for the primary use of employees, visitors, and/or clients of the office occupants. Possible uses are as follows: barber shop, beauty salon, drafting service or quick reproduction service, medical or dental laboratories, for use by employees only, and other such uses which would be in keeping with the spirit and intent of this section. Accessory uses shall be included as tenants within the various principal office buildings and shall not occupy separate buildings. Not more than twenty (20%) of the gross floor area of any principal office building may be occupied by an accessory use. No accessory use shall have an individual outside entrance nor shall there be any display of advertising signs or merchandise visible from outside the building.

For tracts of land in excess of 12 acres, where a planned development is proposed, and reviewed by the Planning Commission, additional uses such as cafeteria and/or coffee shop or snack bar, apothecary, communication facilities, recreational facilities, day care facilities may be included as tenants as accessory uses. Day care facilities may be permitted as regulated in any General Business (GB) district and subject to review by the Zoning Administration or Board of Zoning Appeals required for such use in that district.

(Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-213. Sidewalk café regulations.

- a. Findings.

WHEREAS, City Council finds that it is appropriate and in the best interest of the general public to permit the establishment of sidewalk cafés as an accessory use and enact regulations governing their operation; and

WHEREAS, City Council finds that where adequate sidewalk right-of-ways exist to accommodate sidewalk cafés, such sidewalk cafés can be positive visual amenities, enhance business opportunities and enhance the quality of life for our citizens and visitors, provided they can be operated while ensuring public safety and without compromising the use of sidewalks for pedestrian travel and access; and

WHEREAS, sidewalk cafés, if properly regulated, will preserve and enhance the character of the City and promote desirable land use.

b. Definitions.

1. *Alcoholic beverages* means and includes alcohol, spirits, wine or beer.
2. *Clear pedestrian path* means a paved sidewalk area free from any obstructions such as trees, tree wells, bike racks, signs, parking meters, street lights, utility poles, or fire hydrants.
3. *Zoning Administrator* means the Zoning Administrator of the City of Charleston.
4. *Food* means any raw, cooked or processed edible substance or ingredient, used or intended for use in whole or in part for human consumption, and shall include non-alcoholic beverages allowed to be sold in accordance with this section, but shall not include alcoholic beverages.
5. *Sidewalk café* means a portion of an immobile retail food establishment located on a public right-of-way directly adjacent to the retail food establishment.
6. *Sidewalk café elements* mean all tables, chairs, plants, planters, and any other items of the sidewalk café, which are approved in the sidewalk café permit.

- c. Permit required for sidewalk café. A permit, which shall be known as a sidewalk café permit, shall be required to operate a sidewalk café.
- d. Fees. A non-refundable application fee shall be paid with the submittal of the application by a business for a sidewalk café permit. Subsequent applications by a business to make changes to their approved sidewalk café permit shall require a fee. Upon approval, applicants for a sidewalk café permit shall, if required, pay an annual user fee. All fees shall be determined by City Council and shall be set forth in the Department of Planning and Preservation or Fee Schedule ("Fee Schedule").
- e. Permit application and approval procedure. Application for a sidewalk café permit shall be submitted to the Zoning Administrator, who shall make available forms for this purpose. The applicant shall provide such information on the application as the Zoning Administrator may require by rules and regulations as same may be adopted by City Council and thereafter amended by the Design Review Committee upon a recommendation from the Zoning Administrator, including:
 1. Proof that the applicant holds a valid retail food establishment business license and certificate of occupancy issued to the establishment that will provide food for the sidewalk café adjacent thereto.

2. Proof of insurance as required in this section.
 3. A measured drawing of the sidewalk café prepared by a licensed surveyor, professional architect, landscape architect or engineer. This drawing must accurately depict all existing street furniture and other obstructions (trees, poles, newsboxes, signs, hydrants, parking meters, etc).
 4. A layout plan for the sidewalk café, complying with applicable regulations, and demonstrating that the sidewalk café shall not unreasonably interfere with:
 - (a) Adequate pedestrian flow;
 - (b) Access to building entrances;
 - (c) Pedestrian and traffic safety; and
 - (d) The aesthetic quality of the surrounding area.
 5. A non-refundable application fee.
 6. A notarized statement indicating that the applicant: (a) has had no municipal code violations relating to the applicant's retail food establishment within the last 12 months preceding the date of the application or (b) has had municipal code violation(s) relating to the applicant's retail food establishment within the last 12 months preceding the date of the application with a list of the specific violation(s) by date and code section.

Any municipal code violation that has been adjudicated against the applicant relating to the applicant's retail food establishment within the last 12 months preceding the date of the application shall be grounds for denial of the application.
 7. The Rules and Regulations for the Sidewalk Café Program, which shall be used to administer this Ordinance, are marked as Exhibit A, attached hereto and incorporated by reference herein (the "Rules and Regulations").
- f. Review of application. The Zoning Administrator shall review a submitted application for compliance with this section and regulations promulgated pursuant thereto.
1. If the Zoning Administrator finds that the applicant meets the requirements of this section and the regulations promulgated hereunder, the Zoning Administrator shall provide the application to the Fire Marshall and the Design Review Committee. The Fire Marshal will review the application for fire code compliance, and will forward a recommendation to the Zoning Administrator. The Design Review Committee will review the proposed Sidewalk Café Elements and the proposed density of those elements and will forward a recommendation to the Zoning Administrator.
 2. Upon the receipt of a favorable recommendation from the Fire Marshal and the Design Review Committee, the Zoning Administrator shall approve the sidewalk café permit to the applicant; provided the sidewalk café permit shall not be issued until after the Zoning Administrator and Fire Marshal have conducted a site inspection of the approved sidewalk café and all Sidewalk Café Elements placed

therein to ensure that the sidewalk café and all Sidewalk Café Elements are in compliance with the approved permit and that the permittee is in compliance with all other requirements of the permit.

3. If the Zoning Administrator finds that the applicant fails to meet the requirements of this section of the regulations promulgated hereunder or if the Zoning Administrator does not receive a favorable recommendation from the Fire Marshal and the Design Review Committee, the Zoning Administrator shall deny the application, except that applicants for sidewalk café in residential areas shall be given the opportunity to apply for a special exception under Section 54-206(x).
 4. All appeals of administrative interpretations or decisions of the Zoning Administrator shall be made to the Board of Zoning Appeals Site Design in accordance with Section 54-926 of the Zoning Ordinance of the City of Charleston. All appeals of administrative interpretations or decisions of the Board of Zoning Appeals Site Design shall be made in accordance with Section 54-930 of the Zoning Ordinance of the City of Charleston.
 5. Subsequent applications by a business to make changes to their approved sidewalk café permit, including enlarging the sidewalk café, may be approved by the Zoning Administrator and Fire Marshall without review of the Design Review Committee if the sidewalk café elements and density are not proposed to be changed.
- g. Compliance with plan and other components of application. Each sidewalk café shall comply in all respects with the specifications set out in the plan submitted to and approved by the Zoning Administrator, and with the other components of the application.
 - h. Permit—Assignment or transfer prohibited. No permittee shall assign or transfer a sidewalk café permit without the express written consent of the Zoning Administrator.
 - i. Permit for one retail food establishment only. A sidewalk café shall be for the exclusive use of the licensed retail food establishment stated on the permit. Sharing or other joint use of a sidewalk café location by more than one retail food establishment shall be prohibited.
 - j. Permit for food and beverage service, including alcoholic beverages, only. A sidewalk café permit shall only authorize food and beverage service, including alcoholic beverages, at the sidewalk café. Regardless of what other activity may be permitted to take place inside the establishment that holds the sidewalk café permit, such other activity except food and beverage service, including alcoholic beverages, shall be prohibited.
 - k. Operational conditions.
 1. Sidewalk cafés permitted under this section shall not operate earlier than 7:00 a.m. and no later than 12:00 a.m. unless the hours of the establishment are more restricted by operation of law or otherwise, in which case, the establishment's more restrictive hours shall control.

2. Sidewalk cafés shall only be permitted on sidewalks within a public right-of-way space between the building and street curb that includes both paved and non-paved surfaces and has a minimum width of eight feet (8' - 0") measured from the property line to face of curb. The area designated for the sidewalk café shall be considered an extension of the franchise; therefore, the location of the sidewalk café must be directly in front of the franchise and abut the building.
3. On sidewalks that abut marked on-street parking spaces or loading zones, sidewalk café operators shall maintain a minimum clear pedestrian path width of five feet (5') at all times. In areas of higher pedestrian traffic or activity, or in conditions that suggest the need for additional clearance, a minimum clear pedestrian path width greater than five feet (5') may be required.
4. On sidewalks that do not abut marked on-street parking spaces or loading zones, sidewalk café operators shall maintain a minimum clear pedestrian path width of eight feet (8') at all times. In areas of higher pedestrian traffic or activity, or in conditions that suggest the need for additional clearance, a clear pedestrian path width greater than eight feet (8') may be required.
5. The sidewalk café shall not impinge on any required clear distances for maneuvering around building entrances or exits and shall not obstruct emergency exits or access to fire department hose connections. All services provided to patrons of a sidewalk café and all patron activity (i.e., sitting, dining, waiting, etc.) shall occur within the designated sidewalk café area, and shall not impinge on the required clear pedestrian path at any time.
6. Sidewalk cafés permitted under this section shall not play amplified music, whether live or recorded. No speakers, microphones, televisions or other audio or video devices shall be permitted at a sidewalk café.
7. Additional parking shall not be required due to the addition of a sidewalk dining area.
8. The permittee must provide supervision of the sidewalk café area to ensure the conduct of patrons and operations of the area are in compliance with this ordinance at all times.
9. Where exigent circumstances exist, and an authorized officer or city official gives notice to a permittee to temporarily move from a location, such permittee shall comply with the notice. Exigent circumstances shall include, but not be limited to unusually heavy pedestrian or vehicular traffic, existence of any obstructions in the public space at or near such a location, an accident, fire, an emergency situation, private or public construction projects at or near such locations, or a parade, demonstration, or other such event or occurrence at or near such location. Such findings by the Zoning Administrator may be made upon unanticipated or after-discovered factors or conditions, which became obvious only after operation

of a sidewalk café. If such a limitation or suspension shall continue for a period in excess of thirty (30) days, or should a permit be so cancelled, the permittee shall be entitled to refund of a pro rata share of the annual fee.

10. The permittee or the permittee's designee shall be required to post the original sidewalk café permit, and any conditions that have been imposed upon such permit, on the premises of the affiliated franchise of the sidewalk café.
 - l. **Alcoholic beverage service—Requirements.** If alcoholic beverages are served at the sidewalk café, the operator must be validly licensed under all applicable laws for such sales. Alcoholic beverages supplied by the customer or by any other person other than the permittee shall not be allowed at sidewalk cafés. No alcoholic beverages may be stored or mixed in the sidewalk café area.
 - m. **Violation—Penalties.**
 1. Any person who violates any of the provisions of this section or regulations promulgated hereunder shall be subject to punishment as set forth in Section 1-16 of the Code of the City of Charleston or revocation of the sidewalk café permit or both at the election of the City.
 2. Any sidewalk café in operation without a valid sidewalk café permit is subject to removal from the public right-of-way by the Zoning Administrator or his designee and subject to punishment as set forth in Paragraph m.(1) above.
 - n. **Severability.** The invalidity of any section or part of this section, or any regulation promulgated hereunder, shall not affect the validity of any other section or part thereof or regulation.
- (Ord. No. 2004-102, § 1, 10-12-04; Ord. No. 2009-26, § 1, 2-24-09; Ord. No. 2009-208, § 2, 10-13-09; Ord. No. 2021-184, § 1, 12-21-21; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-214. Accessory dwelling unit.

In all base zoning districts, an accessory dwelling unit (ADU) may be approved by the Zoning Administrator as an accessory use to a principal single-family dwelling unit, if the Zoning Administrator finds the following conditions have been met:

- a. The Department of Planning and Preservation ("Planning") shall prepare a site plan checklist and application for use by applicants. The application shall include, without limitation, a statement, signed by the applicant, certifying that no covenants exist prohibiting the construction or use of an ADU on the lot. In addition to other items required by the application, the applicant shall submit the following to Planning with the signed application:
 1. A scaled site plan showing all information required in the site plan checklist; and
 2. A draft Declaration of Covenants and Restrictions ("DCR"), which must be approved by the Department of Planning ("Planning") and the Office of

Corporation Counsel ("Legal"), including the terms, conditions, and provisions set forth in Section 54-214.g. The DCR must be executed by the owner(s) of the lot, in a form sufficient for recording with the applicable Register of Deeds Office. A certificate of occupancy/completion shall not be issued for the ADU until the applicant provides a recorded copy of the DCR that is approved by Planning and Legal. If the ADU receives financial subsidy from the City of Charleston under the provisions set forth in Sec. 54-214.g(3), the Department of Housing and Community Development ("Housing") must provide approval prior to review by Planning and Legal.

- c. There shall be a limit of one (1) ADU per lot.
- d. The total number of dwelling units, including the ADU, shall not exceed two (2) dwelling units per lot. The ADU may be separately metered for electricity, gas, and water.
- e. The ADU may include no more than 850 square feet of conditioned floor area; provided, however, for ADU's within an accessory building approved utilizing the setback exceptions in Section 54-506.f, the maximum building footprint shall be 600 square feet.
- f. One (1) off street parking space shall be provided for the ADU on the lot, in addition to providing, on the lot, required off street parking for existing uses thereon. The off street parking space provided for the ADU may be situated in tandem with the required spaces for other uses on the lot.
- g. The DCR shall include the following terms, conditions, and provisions:
 - 1. Either the principal dwelling unit or the ADU must be owner-occupied and serve as the primary dwelling unit for the owner of the lot. If neither dwelling unit is owner-occupied, the ADU may not be rented separately from the principal dwelling unit.
 - 2. No subleases of the ADU shall be permitted.
 - 3. If the applicant receives financial subsidy from the City of Charleston and the ADU is rented for remuneration, the ADU must meet affordable housing income and rental thresholds, as defined in Sec. 54-120, where the occupants have, in the aggregate, a household income of less than or equal to eighty percent (80%) of AMI, and the owner shall provide proof of affordability to the City of Charleston Department of Housing and Community Development, or its successor, on an annual basis during the affordability period.
 - 4. For applicants receiving financial subsidy under Sec. 54-214.g(3), the affordability period shall be at least thirty (30) years, beginning upon receipt of a certificate of occupancy/completion for the ADU.
 - 5. Occupancy of an ADU shall be limited to no more than two (2) adults, with "adult" defined as any person eighteen years of age or older.

6. Under no circumstances shall the property be converted to a horizontal property regime.
7. Neither the principal dwelling unit nor the ADU shall be utilized for a short term rental.
8. The covenants shall accord the City, or its assignee, rights to enforcement by any legal and/or equitable means, including the revocation of a certificate of occupancy.

(Ord. No. 2020-116, § 4, 9-8-20; Ord. No. 2022-069, § 1, 5-10-22; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-215. Outdoor dining services.

The following provisions apply to new or additional areas sought to be utilized for outdoor dining services:

A. Definitions.

- (1) Expiration Date. "Expiration Date" means January 10, 2022 at 11:59:59 p.m.
- (2) Outdoor Dining Services. "Outdoor dining services" means services covered by a temporary outdoor dining approval and/or a temporary sidewalk dining permit.
- (3) Residential Area. "Residential Area" means any property within a residential zoning district.
- (4) Restaurant. "Restaurant" means an operation that prepares, processes, packages, serves, or otherwise provides food for human consumption, either on or off the premises, regardless of whether there is a charge for the food; provided, however, the term "restaurant" shall not include grocery stores, pharmacies, convenience stores, gas stations, school cafeterias, independent living food service operations, licensed healthcare facilities, retail meat markets, fish/seafood markets, retail ice merchants, or mobile food establishments.
- (5) Sidewalk Dining. "Sidewalk dining" means a portion of an immobile restaurant located on a designated public right-of-way immediately adjacent to the restaurant.
- (6) Sidewalk Dining Elements. "Sidewalk dining elements" means any and all tables, chairs, tents, umbrellas, planters, heaters, and other objects associated with sidewalk dining.
- (7) Temporary Outdoor Dining Approval. A temporary outdoor dining approval authorizes a restaurant to temporarily utilize new or expanded outdoor dining areas on private property.

- (8) Temporary Sidewalk Dining Permit. A temporary sidewalk dining permit authorizes a restaurant to engage in sidewalk dining within a designated area on a public right-of-way.
- B. Temporary Suspension of Regulations Governing Outdoor Dining Areas and Sidewalk Dining. The following regulations temporarily shall supersede and replace any conflicting provisions of the City's zoning ordinances or regulations governing outdoor dining services; provided, however, nothing herein supersedes or replaces conflicting provisions of the City's zoning ordinances or regulations with respect to new development, redevelopment, construction, or improvement of property.
- C. Applications. Any restaurant desiring to offer outdoor dining services shall first apply to the Zoning Division on forms created for that purpose. All information required to show compliance with the standards for outdoor dining services under this Section shall be included with the application. The Zoning Administrator is hereby authorized and directed to generate standard application forms and adopt internal procedures for such purpose.
- D. Special Exception. The location of outdoor dining services within 150 feet of a residential area is generally disfavored and shall not be granted except upon a special exception approved by the Board of Zoning Appeals-Zoning ("BZA-Z"). The BZA-Z may approve, approve with modifications, approve with conditions, or disapprove an application for outdoor dining services within 150 feet of a residential area after considering the application, the relevant supporting materials, any staff recommendation, and the evidence presented at the hearing. Prior to granting a special exception under this Section, the BZA-Z shall find as follows:
- (1) *Compliance with Standards.* The proposed special exception complies with the specific standards applicable to the request set forth in this section 54-215.
 - (2) *Compatibility.* The proposed special exception is appropriate for its location and compatible with the character of surrounding lands and the uses permitted in the zoning districts of surrounding lands, and will not reduce property values of surrounding lands.
 - (3) *Design does not have substantial adverse impact.* The design of the proposed special exception minimizes adverse effects, including visual impacts of the proposed use on adjacent lands; furthermore, the proposed special exception does not impose significant adverse impact on surrounding lands regarding traffic, service delivery, parking and loading, odors, noise, glare, vibration, and does not create a nuisance.
- E. Conditional Use Permit. A conditional use permit issued by the Zoning Administrator shall be required for outdoor dining services which are not located within 150

feet of a residential area. The Zoning Administrator shall approve the application if the proposed outdoor dining services comply with the specific standards applicable to the request set forth in this section 54-215.

F. Standards for Temporary Outdoor Dining Approval. Restaurants desiring temporary outdoor dining approval shall comply with the following standards:

- (1) The restaurant shall be properly licensed by appropriate state and local agencies to perform any activities, sales, and services.
- (2) The restaurant shall comply with all applicable laws relating to litter, noise, and other livability matters.
- (3) No amplified music shall be permitted in outdoor dining areas approved under this section 54-215. Nothing herein shall prohibit amplified music in outdoor dining areas approved for use prior to effective date of this ordinance, to the extent amplified music was previously permitted in such areas.
- (4) Unless authorized as part of a sidewalk dining permit or sidewalk café, outdoor dining areas shall not encroach within any public rights-of-way.
- (5) Outdoor dining areas shall not encroach into or interfere with required handicapped parking spaces.
- (6) Outdoor dining areas shall not interfere with safe pedestrian and vehicular access or access required to be maintained under the Americans with Disabilities Act.
- (7) Outdoor dining areas shall not encroach within or interfere with fire and other emergency access.
- (8) Any sales and/or consumption of food and/or alcoholic beverages shall be in compliance with the provisions of any federal, state, and/or local laws and regulations governing same.
- (9) Outdoor dining areas shall comply with all applicable occupancy requirements and other provisions of the fire code.

G. Temporary Sidewalk Dining Permit. The following procedures shall apply to temporary sidewalk dining permits:

- (1) Layout. A layout sketch or site plan and a minimum of two (2) photographs showing all sidewalk dining elements, utilities, sidewalks, and appropriate measurements shall be included with an application for a temporary sidewalk dining permit.
- (2) Effect. The following terms and conditions shall apply to any temporary sidewalk dining permit issued by the City under this Ordinance:
 - a. The permit is for a permissive use only and the issuing of the permit shall not operate to create or vest any property rights in the permittee.
 - b. The City shall have free and complete access to the public right-of-way (the "ROW") in which sidewalk dining has been permitted for maintenance

and repair of the ROW, and the permittee shall hold harmless the City for any damage that may be done by the City during maintenance and repair of the ROW.

- c. The permittee shall maintain the sidewalk easement area in a good and safe condition as long as the temporary sidewalk dining permit remains in effect. Permittee understands and acknowledges that, should the permittee, its agents, employees, vendors, or patrons, damage and/or disturb the ROW and/or the sidewalk dining area, the permittee shall be solely responsible for repairing the destroyed/disturbed ROW and the sidewalk dining area to the City's satisfaction.
- d. Permittee shall maintain a general liability insurance policy with combined single liability limits for personal injury or death and property damage in the amount of the liability limits set forth in the South Carolina Tort Claims Act, naming the City as an additional insured. The permittee agrees to provide proof of such policy to the City upon request.
- e. If alcoholic beverages will be served within the sidewalk dining area, the permittee shall maintain liquor liability insurance for the area under the same terms and conditions as those applying to general liability insurance.
- f. Permittee shall indemnify, defend, and hold harmless the City against any and all claims or suits for damages or injury arising from permittee's or the permittee's agents', employees', vendors', and/or patrons' use of the ROW or the sidewalk dining area or from any activity, work, or act done, permitted, or suffered by permittee in or about the sidewalk dining area, and shall further indemnify, defend, and hold harmless the City against and from any and all claims or suits arising from any breach or default of any performance of any obligation of permittee under this Section or the sidewalk dining permit, and against and from all costs, attorneys' fees, expenses, and liabilities related to any claim or any action or proceeding brought within the scope of this indemnification.
- g. Permittee shall not assign the sidewalk dining permit without the prior approval of the City.
- h. Any unlawful encroachments existing in the ROW shall be subject to removal and the permittee shall be responsible for labor and costs associated with such removal. Any encroachments existing in the public ROW shall be removed upon twenty-four (24) hours' notice given by the department of public service when such removal is necessary to repair or improve the ROW. If it is necessary to remove any encroachments,

including but not limited to sidewalk dining elements, the permittee shall be responsible for labor and costs associated with removal and reinstallation.

- i. In the event that the City police, fire, public service or traffic and transportation departments determine that the location of an encroachment, including but not limited to sidewalk dining elements, constitutes an immediate physical danger to life, safety or health, the encroachment may be removed immediately without prior notice. If the City removes an encroachment, a notice of removal shall be sent to the permittee as soon as practicable under the circumstances. Any abandoned encroachment shall be subject to removal. For purposes hereof, 'abandoned' shall mean the vacating of the premises by the permittee for a period of seven (7) consecutive days or more. Any costs incurred to the City in restoring the public ROW to the condition that existed prior to the use of the sidewalk dining area shall be the responsibility of the permittee.
- (3) Inspection. The Zoning Administrator shall perform or cause to be performed a site inspection of the area to be utilized for sidewalk dining to verify compliance with the requirements set forth herein prior to issuing a temporary sidewalk dining permit. The City of Charleston's Fire Department, Fire Marshal, Police Department, Building Inspections Division, Livability Code Enforcement Officers, and zoning officers shall be authorized to inspect and determine whether applicants and permittees comply with and continue to comply with the rules and regulations governing sidewalk dining set forth herein, as may be amended.
- (4) Decision. The Zoning Administrator is hereby authorized, after any necessary consultation with other City departments, to issue a temporary sidewalk dining permit if the application meets all standards set forth in section 54-215.
- (5) Posting. The temporary sidewalk dining permit shall be posted on the premises so as to be visible from the public right-of-way during all times that sidewalk dining is being conducted within the public right-of-way.
- H. Design and Layout. The following standards shall govern the design and layout for sidewalk dining:
 - (1) The width of the sidewalk dining area shall not exceed the width of the frontage of the restaurant's property.
 - (2) Permittees shall maintain a clear pedestrian path of at least six feet (6') at all times; provided, however, in areas of higher pedestrian traffic or activity, or in conditions that suggest the need for additional clearance, the Zoning Administrator may require a clear pedestrian path greater than six feet (6'). Any such clearance area must be free of all obstructions such as trees, parking meters, utility poles, fire hydrants, and similar encroachments in

order to allow for adequate pedestrian movement. All services and patron activity provided within the designated public right-of-way shall occur within the designated area and shall not encroach within the minimum clearances for pedestrian passage at any time.

- (3) Sidewalk dining and sidewalk dining elements shall not interfere with any utilities or other facilities such as utility poles, fire hydrants, signs, parking meters, mailboxes, and/or benches within the sidewalk or within the public right-of-way.
 - (4) Sidewalk dining and sidewalk dining elements shall not interfere with or obstruct any required clearance for maneuvering around entrances or exits.
 - (5) Sidewalk dining and sidewalk dining elements shall not interfere with or obstruct any areas required for accessibility for disabled persons, whether patrons or employees.
 - (6) Sidewalk dining and sidewalk dining elements shall not interfere with or obstruct required ingress and/or egress for adjacent buildings set forth in the building code or otherwise.
 - (7) Sidewalk dining and sidewalk dining elements may not violate the vision clearance requirements set forth in section 54-351. Vision clearance will also be required when sidewalk dining or sidewalk dining elements are located adjacent to an alley or driveway; provided, however, the Zoning Administrator is authorized to impose additional requirements when unusual circumstances exist or when public safety may be jeopardized.
 - (8) Signs advertising the sale of food, beverages, goods, or services within sidewalk dining areas shall be prohibited. This prohibition includes but is not limited to sandwich boards, banners, pamphlets, podiums, or any other advertisements. Nothing herein shall prohibit the posting of any signage required by the City.
 - (9) No amplified music, whether live or recorded, shall be permitted within sidewalk dining areas. No speakers, microphones, televisions or other audio or video devices shall be permitted within sidewalk dining areas.
 - (10) No vending machines, carts, or objects for the sale of goods shall be permitted within sidewalk dining areas.
- I. Standards for Sidewalk Dining. Restaurants obtaining a temporary sidewalk dining permit shall comply with the following operational standards:
- (1) The standards for temporary outdoor dining approval in section 54-215.F.
 - (2) Sidewalk dining is prohibited between 12:00 a.m. and 7:00 a.m., unless the permitted hours are more restrictive under the existing zoning applicable to the property, use, or activity, in which case the more restrictive hours shall control.

- (3) Any and all sidewalk dining elements shall be removed from the public right-of-way except during the restaurant's daily operations. The storage of sidewalk dining elements within the public right-of-way at any time is prohibited. The leaving of sidewalk dining elements in public rights-of-way at any time before or during daily operations is also prohibited.
 - (4) If alcoholic beverages are served within the designated public right-of-way, the permittee must have a valid license under all applicable laws for such sales. Alcoholic beverages supplied by the customer or by any other person other than the permittee shall not be allowed within the designated public right-of-way. No alcoholic beverages may be stored or mixed within the designated public right-of-way.
 - (5) The permittee must require patrons dining within the designated public-right-of-way to wear shoes and shirts at all times.
 - (6) All employees must comply with applicable requirements and standards for a retail food establishment.
 - (7) The permittee must comply with all federal, state, and local laws, rules, and regulations applicable to the operation of sidewalk dining within the City.
- J. Administrative Suspension. Any temporary outdoor dining approval and/or sidewalk dining permit is subject to suspension, modification, or amendment at any time based on a determination that additional conditions or limitations shall be required to protect against adverse impacts to the public health, safety, or welfare associated with new or expanded area.
- K. Modification. City Council may suspend, modify, or amend the provisions governing outdoor dining services at any time, in which case all restaurants shall comply with any such modifications or amendments, whether or not they previously received an approval or permit hereunder. In this respect, an approval for outdoor dining services is considered an activity, not a use. All approvals and permits governed by this section shall automatically expire on the expiration date, unless such approval or permit is otherwise suspended, modified, amended, or extended in accordance with this section or a subsequent ordinance adopted by city council.
- L. Appeal. Any decision of the Zoning Administrator under this section may be appealed to the BZA-Z, in accordance with the standards governing appeals from administrative officers under state law and the City's Zoning Ordinance.
- M. Compliance. Permittees are responsible for ensuring that the procedures and standards set forth in this section are followed or otherwise cease services. Pursuant to section 45-3-30 of the South Carolina Code, the City may deny or revoke any license granted to conduct any such business when, in the judgment of the City, the business is not complying with this Ordinance and shall be subject to the penalties set forth in Section 1-16 of the City Code. Pursuant to section 45-3-20 of the South Carolina Code, the City of Charleston Fire Department,

Office of the Fire Marshal, Police Department, Building Inspections Division, and their designees, Livability Code Enforcement Officers, and Zoning Officers are hereby authorized to inspect and determine whether businesses are in compliance with this Section. Any person who shall refuse to allow such inspection or who shall obstruct any officer whose duty it is to make such inspection shall be subject to the penalties set forth in section 45-3-20.

- N. Previously Approved Outdoor Dining Services. Outdoor dining services permitted or approved under an emergency ordinance may continue in effect until the expiration date, subject to the following terms and conditions: (1) the outdoor dining service was permitted or approved prior to December 1, 2020; (2) the permit or approval for the outdoor dining service remains in effect, under its terms or through an extension thereof, on January 12, 2021; (3) any physical expansion of an outdoor dining service shall follow the procedures set forth in this Section with respect to such expanded area only; and (4) the permit or approval may be suspended, modified, amended, or extended in accordance with this Section or a subsequent ordinance adopted by City Council. The Zoning Administrator is hereby authorized to provide written confirmation of the continued effectiveness of any such permit or approval complying with the above-referenced terms and conditions. No additional conditional use permit or special exception permit shall be required under these circumstances.

(Ord. No. 2021-001, § 1, 1-12-21)

Sec. 54-216. Accessory Uses with LB zoning districts.

1. Recreational activity including but not limited to mini golf, pickleball, and ax throwing, may be allowed as an accessory use when it generates less than half the revenue of the principal use, is subordinate to the principal use, and requires patron participation in the principal use for remuneration. Operation of the accessory use may only occur during hours when the principal use is in operation.
2. Such accessory uses shall be subject to approval of an operations plan by the zoning administrator which establishes: (1) hours of operation for each use, (2) terms and conditions upon which participation in the principal use is a requirement to participation in the accessory use, and (3) a point of contact that may be reached by telephone during all operational hours. The zoning administrator may require the operations plan to include:
 - a. A noise abatement plan, including use of a noise monitoring device;
 - b. A neighborhood response plan for complaints;
 - c. A security plan;
 - d. A sanitation plan.

The operational plan may be amended from time to time so long as the requirements of this section are met, upon consent of the owner and zoning administrator.

3. Proof that the accessory use is subordinate, including proof of the income generated by the principal and accessory use, shall be provided to the zoning administrator upon request. Techniques and devices used to artificially skew revenue percentages shall be disregarded and the true business of the establishment shall be discerned. Techniques and devices used to artificially skew percentages include but shall not be limited to: reduced price or free admission for the principal use with participation in the accessory use, sham transactions or sales, misstatement of value by inflating prices associated with the principal use above prices generally prevailing as to the use, services, or goods associated with the principal use, sham transactions, etc.

(Ord. No. 2023-225, § 1, 11-14-23)

Sec. 54-217. Pools.

In all base zoning districts, a pool may be approved by the Zoning Administrator as an accessory use to a permitted principal use, if the Zoning Administrator finds the following conditions have been met:

- a. In-ground pools. Pools not elevated above existing grade may be located within building setbacks, critical line buffer setbacks and visual buffer zone setbacks but shall not be located within landscape buffers, critical line buffers or a visual buffer zone. Wall elements on in-ground pools, such as waterfalls, may be located within building setbacks. For in-ground pools with pool sections that are elevated above existing grade, such as spas, the elevated sections shall not encroach into required side setbacks and shall meet rear setback requirements of the base zoning district or 10', whichever is less.
- b. Above-ground pools. Pools elevated above existing grade shall not encroach into required side setbacks and shall meet rear setback requirements of the base zoning district or 10', whichever is less.

(Ord. No. 2025-087, § 3, 6-17-25)

Secs. 54-218—54-219. Reserved.

PART 5
PERMITTED USES FOR OVERLAY ZONES

Sec. 54-220. Accommodations overlay zone.

- a. Intent. The A Overlay Zone is intended to identify those areas within the City limits where accommodations uses are allowed. Accommodation uses are prohibited except within the A Overlay Zone, with the exception of short term rentals and bed and breakfasts that are approved in accordance with the provisions of sections 54-208, 54-208.1, 54-208.2, 54-208.3, 54-224. b.1 or 54-227. The City places a high value on the preservation of the character of its residential districts. Outside of its residential districts, the City places a high value on the preservation and creation of a diverse mix of uses, containing a balance of uses comprised of retail uses, office uses, service industry uses, educational uses, cultural uses, and appropriate residential uses. Potential negative impacts of accommodations uses affecting residential districts shall be avoided or minimized to the greatest extent possible, and, outside residential districts, accommodations uses shall contribute to preservation or creation of diverse, mixed-use districts. The City places a high value on assuring that its residents have access to housing that is safe and decent and affordable to persons of all income levels. While accommodations uses are a source of jobs, many, if not most, of the jobs created are low-paying, with minimal benefits, heightening the need for housing that is attainable by those employed in the field of accommodations uses and rendering it necessary and proper for accommodations uses to reasonably contribute to the creation of housing affordable for its workforce. The City places a high value on maintaining a free and safe flow of traffic and the availability of parking spaces convenient to residents, patrons, workers and visitors. As accommodations uses give rise to employees often having to drive to reach the workplace, to assist in the maintenance of a free and safe flow of traffic and convenient parking, it is necessary and proper and in furtherance of good order that accommodations uses provide a plan for parking employees and/or promoting the use of public transportation.
- b. Permitted uses. In any Accommodations overlay zone, land may be used and buildings or structures may be erected, altered or used for any purpose allowed by the base zoning district as listed in Article 2: Part 3, and the following uses, subject to the approval of the Board of Zoning Appeals-Zoning:
 1. Accommodations uses. The Board of Zoning Appeals-Zoning may permit accommodations uses as an exception where it finds that:
 - (a) the accommodations use will not result in a net loss of dwelling units that have been occupied within five years of the date of application for the exception; provided however, the BZA-Z may approve the alteration or replacement of such existing dwelling units on the same site as the accommodations use, or within a radius of one quarter (¼) mile from the site if the proposed off site location does not result in an over concentration of low income households, as defined by the U.S. Department of Housing and Urban

Development, as adjusted by the Department of Housing and Community Development; and provided further, the BZA-Z shall require any such alteration or replacement to include dwelling units of substantially the same size and type of those being altered or replaced and shall require that no certificate of occupancy shall be issued for the accommodations uses until either a certificate of occupancy has been issued for all dwelling units being altered or replaced or irrevocable bonds or letters of credit in favor of the City in amounts equivalent to one hundred twenty-five (125%) per cent of the costs to complete construction or renovation of the dwelling units, as determined by the Chief Building Inspector, has been filed with the City.

- (b) the accommodations use, if located in the Accommodations Overlay on the peninsula, will not reduce or displace more than 25% of office space that has been used for such purpose within five years of the application for the exception;
- (c) the accommodations use, if located in the Accommodations Overlay on the peninsula, will not displace more than 25% of the linear frontage of existing ground floor storefront retail space on the property;
- (d) the location of the accommodations use will not significantly increase automobile traffic on streets within residential districts;
- (e) the location of the accommodations use will contribute to the maintenance, or creation, of a diverse mixed-use district;
- (f) the total square footage of interior and exterior floor area for restaurant and bar space in the proposed accommodations use, including restaurant/bar patron use areas, bar areas, kitchen, storage, and bathroom facilities, shall not exceed 12 percent of the total interior, conditioned floor area in the accommodations use, except that each accommodations use shall be permitted to exempt from the calculation of total restaurant floor area one interior, ground floor restaurant tenant space if the total tenant space does not exceed 2,000 square feet, the restaurant tenant does not serve alcoholic beverages, and the exempt restaurant tenant space is clearly labeled with these restrictions on the floor plans submitted with the application for this zoning special exception;
- (g) the accommodations use proposed guest drop off and pick up area(s) is located outside the public right-of-way and on the property utilized for the accommodations use if the accommodations use contains more than 50 sleeping units, and if 50 sleeping units or less, the proposed guest drop off and pick up area(s) are located outside the public right-of-way if feasible, and the location and design of the guest drop-off and pick-up area(s) has been reviewed by the Department of Traffic and Transportation and determined to be safe and not be an impediment to traffic and that every effort has been made to minimize traffic impacts;

- (h) the total number of sleeping units within the buildings or structures on the lot or parcel in which the accommodations use is located is equal to or exceeds ten (10) sleeping units.
- (i) within areas of the accommodations overlay zone designated as "A-1", "A-2", "A-3", "A-4", "A-5", "A-6", or "A-7" on the zoning map, the number of sleeping units within the buildings or structures on the lot or parcel in which the accommodations use is located shall not exceed 50 in areas designated "A-1"; 180 in areas designated "A-2"; 225 in areas designated "A-3"; 100 in areas designated "A-4"; 150 in areas designated "A-5"; 69 in areas designated "A-6"; and 175 in areas designated "A-7"; provided, however, that within the portion of the area designated "A-1" bounded by King Street on the west, Meeting Street on the east, Mary Street on the south and Line Street on the north (the "Full-Service Corridor"), the number of sleeping units within the buildings or structures on the lot or parcel in which the accommodations use is located may exceed 50, but shall not exceed 250, if the accommodations use qualifies as a Full-Service Hotel, meaning that the accommodations use provides 20,000 or more square feet of meeting, conference and banquet space of which 15,000 square feet thereof is contiguous, an on-site restaurant that serves breakfast, lunch and dinner seven days a week and other services such as a concierge, a spa/health club, laundry, turndown service, newspaper delivery, security personnel and airport shuttle; and in no event shall any accommodations use on the peninsula exceed 250 sleeping units;
- (j) the proposed accommodations use will not share any of its buildings, structures, facilities, or operations with another accommodations use;
- (k)
 - (1) The proposed accommodations use, if located in the accommodations overlay on the peninsula, incorporates meeting and conference space at a ratio of 400 square feet per 10 sleeping units, or fraction thereof, with respect to the first 150 sleeping units, and incorporates meeting and conference space at a ratio of 1000 square feet for every 10 sleeping units, or fraction thereof, exceeding 150 sleeping units. In either case, at least 75% of the meeting and conference space shall be contiguous;
 - (2) Notwithstanding subsection k(1) hereof, if the accommodations use contains more than 50 sleeping units and is located in the Full-Service Corridor, the provisions of subsection (i) hereof shall govern the square footage of required meeting and conference space;
- (l) the proposed accommodations use will not result in there being more than eight (8) Full-Service Hotels on the peninsula, inclusive of those Full-Service Hotels existing on the peninsula and those with approved special exceptions as of the effective date of the ordinance from which this section derives; for purposes of this subsection (l) only, a Full-Service Hotel means a Full-Service Hotel as defined in subsection (i) having in excess of 150 sleeping units; and

- (m) to assist in providing affordable housing opportunities for its employees, the applicant for the accommodations use commits to contribute to the City of Charleston Affordable/Workforce Housing Account a fee payable upon the issuance of a Certificate of Occupancy, calculated as follows: \$5.10 per square foot of area used for sleeping units and the hallways adjacent to sleeping units, stairwells and elevators.
- c. Application requirements. In making the findings required in subsection b.1, the Board of Zoning Appeals-Zoning shall consider the following information to be provided by the applicant in site plans, floor plans and building elevations that will govern the construction of the building in which the accommodations use is located, along with a detailed written assessment report to be submitted with the application:
 - 1. The number of existing dwelling units on the property, including units on the property that were occupied as dwelling units within five years of the date of the application for the exception, the type of unit (rental or owner-occupied; one-family detached; one-family attached; two-family or multi-family; occupied or unoccupied), by income range of the most recent occupant(s), the rental price for rental units and market price for owner occupied units relative to the area median income figures that are determined annually by the U.S. Department of Housing and Urban Development and adjusted by the City of Charleston Department of Housing and Community Development, or its successor, the physical condition of the units (sound, deficient, deteriorated or dilapidated), the square footage and number of bedrooms in each unit, and if the units are proposed to be physically altered or replaced, a description and plan showing the square footage and number of bedrooms in the altered or replaced units, and their location;
 - 2. The effect of the physical alteration or replacement or relocation of dwelling units on the housing stock of a particular type on the property and whether a condition should be attached to a special exception approval for the accommodations use requiring a minimum percentage of the dwelling units on the property or replaced off-site to remain affordable based on the annually updated median area income values;
 - 3. The presence of office space on the property, or the presence of spaces on the property that were occupied as office spaces within five years of the date of application for the exception;
 - 4. The linear frontage of existing ground floor storefront retail space on the property;
 - 5. The location and design of guest drop off and pick up areas for the accommodations use;
 - 6. The cumulative number of vehicle trips generated by the proposed accommodations use and other accommodations uses that are either existing or approved

within an area identified by the Department of Traffic and Transportation, the traffic circulation pattern serving the accommodations use and efforts made to minimize traffic impacts;

7. The distance of the main entrance and parking entrance of the accommodations use from a road classified as an arterial or collector road;
8. The land uses within five hundred feet (500') of the accommodations use, to include the location, square footage, and number of rooms in existing accommodations uses and accommodations uses that have been approved;
9. The proximity of residential districts to the accommodations use;
10. The accessory uses proposed for the accommodations use, such as restaurants, spas, bars, pools and the like, in terms of their location, size, impact on parking, traffic generation, noise or odors in or to a residential district;
11. The demonstrated provision of off-street parking at the rate of two spaces that meet the design requirements of section 54-318 for each three sleeping units, provided however, the utilization of mechanical or other means of parking that meet the ratio of two spaces for each three sleeping units shall be allowed;
12. The presence of industrial uses and uses which use, store, or produce toxic or hazardous materials in quantities in excess of those specified by the EPA listing of toxic and hazardous materials, within five hundred feet (500') of the accommodations use;
13. The commitment to environmental sustainability and recycling;
14. The distance of the accommodations use from major tourist attractions;
15. The distance of the accommodations use from existing or planned transit facilities;
16. The long term provision of on- or off-site parking for employees who drive vehicles to work, including an estimate of the number of employees that will drive to work during the maximum shift and the location of parking spaces to be provided, and the demonstrated provision of free transit passes or other incentives to encourage employee use of public transportation;
17. The number of sleeping units proposed as part of the accommodations use;
18. The provision of shuttle bus services to and from the Historic Districts by accommodations uses with more than 50 sleeping units located outside the area designated "A-1" through "A-6" on the zoning map;
19. The commitment to make affirmative, good faith efforts to see that construction and procurement opportunities are available to MBEs (minority business enterprises) and WBEs (women business enterprises) as outlined in section 2-268 (e)(1), (2), and (3) of the Code of the City of Charleston;

20. The commitment to make affirmative, good faith efforts to hire personnel, representative of the population of the Charleston community, at all employment levels.
- d. Violations: In addition to any remedies otherwise available to the City under State law or the City Code, a violation by the owner or operator of the accommodations use of any provisions or conditions of an exception granted hereunder, to include any deviation from the plans and written assessment as required by subsection c. hereof, shall subject the owner or operator of the accommodations use to having its business license and/or certificate of occupancy revoked.
- e. Applicability: The provisions of this Section 54-220 shall apply to special exceptions for accommodations uses granted by the Board of Zoning Appeals-Zoning after May 28, 2019, it being the intent of City Council that special exceptions approved by the Board of Zoning Appeals-Zoning prior to May 28, 2019 be entitled to and governed by the vested rights provisions accorded by Article 9, Part 5 of this Chapter. The provisions of this Section 54-220 shall not apply to Planned Unit Developments that include accommodations uses as an authorized use that were approved as of May 28, 2019.
- (Ord. No. 1998-76, § 2, 4-28-98; Ord. No. 1999-02, §§ 3—5, 1-12-99; Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2006-428, §§ 6—8, 9-26-06; Ord. No. 2007-204, § 1, 11-20-07; Ord. No. 2012-41, § 5, 1-24-12; Ord. No. 2013-93, §§ 1—6, 9-24-13; Ord. No. 2013-93, §§ 1—6, 9-24-13; Ord. No. 2017-093, § 1, 8-15-17; Ord. No. 2018-008, § 1, 2-13-18; Ord. No. 2018-043, § 11, 4-10-18; Ord. No. 2019-094, § 1, 10-8-19; Ord. No. 2020-064, § 1, 5-26-20; Ord. No. 2023-084, § 1, 5-9-23)

Sec. 54-221. Tour boat overlay zone.

- a. Intent. The intent of the tour boat overlay zone is to restrict tour boat facilities on the peninsula to appropriate locations.
- b. Defined. A tour boat facility is the use of land, the structures thereon, docks, wharfs, or other such appurtenances for the purpose of embarking or disembarking of passengers for hire aboard boats for transportation to and from historic sites, or for the purpose of viewing, in Charleston harbor or the rivers or lands adjacent thereto.
- c. Restrictions. In the peninsula of the City of Charleston in the area bounded by the Ashley River, the Cooper River, and U.S. Highway 17, land may be used and buildings or structures may be erected, altered, or used for tour boat facilities only in districts delineated on the zoning grid maps of the City of Charleston as Tour Boat Overlay Zones.

Sec. 54-222. Johns Island Overlay Zone.

In any Johns Island Overlay Zone, land may be used and buildings or structures may be erected, altered or used for any purpose allowed by the underlying zoning district as listed in Article 2: Part 3.

Sec. 54-223. Amusement and Recreation Services, AR Overlay Zone.

- a. In the Amusement and Recreation Services, AR Overlay Zone, land may be used and buildings or structures may be erected, altered or used for any purpose allowed by the underlying zoning district, except that the use of buildings, structures or land for the short term rental of amusement and recreational vehicles or for providing sightseeing services by air are prohibited.
- b. For purposes of this section, the following definitions shall apply:
 1. "Short term rental" shall mean to rent or make available to patrons or engage in transporting passengers for hire, amusement and recreational vehicles for any period of time less than one (1) year
 2. "Amusement and recreational vehicles" shall mean mopeds, golf carts, low speed vehicles, scooters or skateboards powered by fuel or batteries.
 3. "Moped" shall mean any motor vehicle, with or without pedals to permit propulsion by human power, that travels on not more than three wheels in contact with the ground, has a maximum speed of thirty (30) miles per hour on level ground whether powered by gasoline, electricity, alternative fuel, or a hybrid combination thereof. Based on the engine or fuel source, the moped must be equipped with a motor of fifty cubic centimeters or less, or designed to have an input of no less than 750 watts and no more than 1,500 watts.
 4. "Low speed vehicle" shall mean any two (2)- or four (4)-wheeled motor vehicle whose top speed is greater than eight (8) miles per hour, but not greater than twenty-five (25) miles per hour. This group includes neighborhood electric vehicles, Segway transporters, speed-modified golf carts, and similar types of vehicles whose top speed is greater than eight (8) miles per hour, but not greater than twenty-five (25) miles per hour.
- c. Nonconforming amusement and recreational vehicle rental. All existing amusement and recreational rental uses within the AR Overlay Zone on the effective date of this ordinance [June 11, 2002] shall be amortized and discontinued fifteen months after the effective date of this ordinance.

(Ord. No. 1996-125, § 5, 7-16-96; Ord. No. 1998-175, § 1, 10-13-98; Ord. No. 2002-77, § 4, 6-11-02; Ord. No. 2002-130, § 1, 11-26-02; Ord. No. 2005-17, § 1, 1-25-05; Ord. No. 2015-060, § 1, 5-26-2015; Ord. No. 2019-032, § 1, 5-14-19)

Sec. 54-224. Savannah Highway, SH Overlay Zone.

- a. Intent. The intent of the Savannah Highway, SH Overlay Zone is to allow office and neighborhood service uses in addition to the uses allowed in the base zoning district. The existing principal buildings will be retained to every extent possible. Additionally, existing structures in the SH zone that are used for a non-residential use shall retain their residential appearance. Building additions and new structures shall be designed

to look like the existing residential structures. Parking shall be restricted to the side or rear of the principal buildings and buffering from adjoining residential lots shall be required.

b. Permitted conditional uses.

1. Owner-occupied, single-family residential properties shall be permitted to have one of the following accessory uses if the building requirements listed in Section 54-224.c., are met:
 - (a) one short term rental unit utilizing only one bedroom within the principal structure with one parking space in addition to the parking spaces required for the residential use. The short term rental parking space must be accessible without affecting the accessibility of the other required spaces.
 - (b) One accessory apartment with no more than one bedroom.
2. Use of properties within the SH zone as offices for professional services including accounting, financial, insurance, legal, design, engineering, surveying, medical, dental, travel, real estate, and similar professional services, excluding tattooing services; offices for non-client based civic and non-profit agencies; and neighborhood services including only the following uses: beauty salons, barber shops, computer repair, shoe repair, watch, clock, camera and jewelry repair, tailor/seamstress, acting and music instruction, artist studios, and photographic studios shall be allowed if the building requirements listed in Section 54-224.c., and the following conditions are met:
 - (a) Business hours of operation involving clients shall be limited to between 8 a.m. and 8 p.m.;
 - (b) Goods shall not be visible from the exterior;
 - (c) Additional driveways shall not be permitted, except that an existing driveway may be shifted to a side property line to allow it to be shared with the adjoining lot;
 - (d) No more than two (2) lots shall be combined for an allowed non-residential use and the principal structure on each lot, if existing on the date of this ordinance's adoption, shall be retained;
 - (e) Parking and drives shall be unpaved except for the driveway entrance(s) at the street which shall be paved to a depth of 20 feet. All parking shall be provided to the rear or sides of the principal building and not in the front yard. If any part of a residential property in the Savannah Highway Overlay Zone is used for a non-residential use, including parking in conjunction with a non-residential use, parking for the residential use shall no longer be permitted in the front yard;
 - (f) Exterior lighting, if used, shall be shielded, residential lighting, installed to minimize glare on adjacent properties (e.g. motion sensor lights, shoebox

lights). The light source(s) shall be concealed so as not to be visible from adjoining properties. Pole mounted lights shall not be taller than eight feet (8`);

- (g) If no street tree exists in front of the property, as part of the landscaping requirements a new canopy tree shall be planted in the front yard within five (5) feet of the right-of-way to enhance tree canopy in the area.
- (h) Landscape buffers or screens shall be installed as follows:
 - (1) If parking spaces are provided in the side yard, a landscape hedge or screen of at least three feet (3`) in height and five feet (5`) in width shall be installed parallel to the street to screen the parking spaces from the street.
 - (2) Landscape buffers with a width of five feet (5`) shall be installed adjacent to all residentially zoned lots not in the SH overlay zone and along any part of a property line which is within twenty-five feet of a residentially zoned lot not within the SH overlay zone. Where utility easements run along property lines, the required buffer shall be located adjacent to the easement. These buffers shall include a six-foot (6`) high solid wooden fence, four-inch (4") caliper recommended trees from Appendix B planted forty feet (40`) on center, and minimum eight-foot (8`) tall recommended understory trees from Appendix B centered between the recommended trees required above. Fences along side property lines shall extend from the rear buffer fence to the front facade of the abutting principal building. Beyond the fence, a minimum four-foot (4`) tall hedge shall continue to within fifteen feet (15`) of the front property line.
 - (3) Along property lines which abut lots within the SH overlay zone with residential units, a six-foot (6`) high solid wooden fence shall be erected running from the rear buffer fence to the front facade of the abutting residential building.

c. Building requirements.

- 1. Existing principal buildings shall be retained, unless deemed structurally unsound by the Chief Building Official. Additionally, the City's Design Review Board has purview over the demolition of any structures over fifty (50) years old in the Savannah Highway Overlay.
- 2. All new construction, additions or renovations must be similar to existing structures in terms of their character, height, compatibility of materials, roof pitch and slope. A residential appearance on all sides of structures is required:
 - (a) The street facade of additions shall utilize windows and doors of a size similar to those on the existing street facade.

(b) The street facade existing on the date of this ordinance's adoption shall be retained, with no window displays or exterior display of merchandise.

(c) The roof pitch and slope shall remain similar to adjacent structures.

(Ord. No. 1998-112, § 2, 5-26-98; Ord. No. 2006-488, § 3, 10-24-06; Ord. No. 2011-155, §§ 1—6, 10-11-11; Ord. No. 2018-043, § 12, 4-10-18)

Sec. 54-225. School S Overlay Zone.

- a. Intent. The intent of the School "S" overlay zone is to provide for appropriate sites for the establishment or expansion of school uses within residential zoning districts, as set forth on the official zoning map. The City places a high value on the preservation of the character of its residential neighborhoods. Potential negative impacts affecting residential neighborhoods shall be minimized to the greatest extent possible.
- b. Permitted uses. In any School overlay zoning district, land may be used and buildings or structures may be erected, altered or used for any purpose allowed by the underlying zoning district as listed in Article 2, Part 3, and nursery, preschool, kindergarten, elementary, and secondary schools, and colleges, except the Board of Zoning Appeals—Zoning shall approve the manner of the school use as an exception, upon a finding by the Board that the following conditions will be met to minimize the potential negative impacts to the greatest extent possible:
 1. For nursery, preschool and kindergarten schools:
 - (a) Proof of the application for the facilities licensing by the Department of Social Services is provided;
 - (b) Outdoor play is allowed only between the hours of 8 a.m. and 6 p.m.;
 - (c) Play areas within fifty feet (50') of a residential structure are appropriately buffered;
 - (d) Off-street parking requirements of this Chapter are met and parking areas are appropriately buffered;
 - (e) Plans for ingress/egress, loading/unloading and the location of the parking and play areas are approved for safety by the appropriate City department(s);
 - (f) The facility is compatible with the surrounding neighborhood based upon consideration of the number of persons in the facility, potential traffic and noise impacts, location of the play, parking, loading and circulation areas and relation to other noise or traffic generating institutions (particularly if another non-residential facility is facing or abutting the same block face or is within three hundred feet (300') of the proposed site); and
 - (g) Proposed outdoor lighting of the facility does not unduly impact neighboring properties.

2. For elementary and secondary schools and colleges:

- (a) The principal building(s) shall occupy no more than fifty (50) percent of the lot on which the building(s) is (are) located;
- (b) Sufficient well-designed parking spaces will be provided internal to the campus and parking areas shall be appropriately buffered;
- (c) Dormitory type facilities will be no closer than twenty-five feet (25') to any lot occupied by a single-family dwelling;
- (d) Excessive traffic will not be generated on a residential street; and
- (e) The facility is compatible with the surrounding neighborhood based upon consideration of the number of persons in the facility, potential traffic and noise impacts, location of the play, parking, loading and circulation areas and relation to other noise or traffic generating institutions (particularly if another non-residential facility is facing or abutting the same block face or is within three hundred feet (300') of the proposed site).

(Ord. No. 1999-01, § 4, 1-12-99; Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-226. Landmark LMK Overlay Zone.

In any Landmark Overlay Zone, land, buildings or structures may be used for any purpose allowed by the underlying zoning district; provided however, the exterior of any structure or improvement, whether or not visible from a public street or right-of-way, shall not be altered, and no structure shall be erected, removed, moved or demolished, in whole or in part, unless a Certificate of Appropriateness has been issued by the Board of Architectural Review for the contemplated alteration, erection, removal, move or demolition. The procedure for applying for a Certificate of Appropriateness as set forth in Article 2, Part 6 of this chapter shall appertain to LMK applications. The Board, when passing on such applications, shall utilize

the criteria as would be applicable if the property, structure or improvement were located in the Old and Historic District, as set forth in section 54-240 of this chapter, in furthering the intent of this overlay zone.

(Ord. No. 1999-95, § 2, 8-17-99)

Sec. 54-227. Short Term Rental, ST Overlay Zone.

- a. Intent. The Short Term Rental, ST Overlay Zone is intended to identify those areas within the City limits where Commercial short term rental uses and bed and breakfast uses, as herein defined, are allowed as a conditional use. Commercial short term rentals are prohibited except on commercially zoned properties within the ST Overlay Zone. Bed and breakfast uses are prohibited except on properties within the ST Overlay Zone. The City places a high value on the preservation of the character of its residential neighborhoods. Potential negative impacts affecting residential neighborhoods shall be avoided or minimized to the greatest extent possible.
- b. Commercial Short Term Rental Use.
 1. Accommodations Use. Subject to the conditions in Section 54-227, b. 2, a dwelling unit converted into a commercial short term rental may be rented to not more than four (4) unrelated people pursuant to the definition for family for a period of between one (1) and twenty-nine (29) days; provided, however, only one (1) family at a time may occupy and use a dwelling unit converted into a commercial short term rental.
 2. Conditions. A conforming or legal nonconforming dwelling unit may be converted into a commercial short term rental only when all of the following conditions are satisfied, as evidenced by an application, a site plan, and floor plans:
 - (a) The lot is located entirely within one or more of the following base zoning districts: CT, LB, GB, UC, MU-1, MU-1/WH, MU-2, or MU-2/WH; and
 - (b) The lot is commercially zoned and located entirely within the Short Term, ST Overlay Zone, as shown on the Zoning Map; and
 - (c) The dwelling unit being converted to a commercial short term rental is not designated as an affordable housing unit or a workforce housing unit; and
 - (d) The owner of the dwelling unit being converted into a commercial short term rental complies with all business license and revenue collections laws of the City of Charleston, Charleston County and the State of South Carolina; and
 - (e) Any commercial uses on the lot must be completely separate and independent operations, unrelated to the Commercial Short Term Rental; and
 - (f) There are no common areas or other areas serving more than one dwelling unit and/or commercial short term rental on the lot, except driveways; and
 - (g) There are no exterior signs for the commercial short term Rental use of the lot; and

- (h) Existing parking spaces on the lot, if any, that satisfy the off-street parking requirements of this Chapter for the existing dwelling units being converted to short term rentals and all other uses on the lot shall be shown on the site plan submitted with the application. No additional parking spaces shall be required for the dwelling units being converted to short term rentals; and
 - (i) No more than nine (9) dwelling units may be converted to short term rentals on any one (1) lot. Ten (10) or more short term rental units on one (1) lot shall require approval as an accommodations use pursuant to Section 54-220 of the Zoning Ordinance. This provision shall not be interpreted to permit an increase in the maximum density permitted under the base zoning district for dwelling units on the lot; and
- 3. Except as expressly stated otherwise in this Section 54-227, a dwelling unit converted into a commercial short term rental shall continue to be subject to the regulations for such a dwelling unit in the base zoning district, including without limitation the site regulations in Article 3 of the Zoning Ordinance.
- 4. Impact on Nonconforming Uses. For the purposes of applying Section 54-110 concerning nonconforming uses, a commercial short term rental is considered a continuation of the nonconforming use of a legal nonconforming dwelling unit.
- 5. Prohibition on Construction of Commercial Short Term Rentals. Nothing in this Section 54-227 shall be construed to permit a property owner to construct a commercial short term rental. A property owner seeking a conditional use for a commercial short term rental must construct a dwelling unit in accordance with applicable standards for the dwelling unit under the base zoning district for the subject property and then apply for the conversion of the conforming dwelling unit to a commercial short term rental use.
- 6. Approved Short Term Rentals Within the ST Overlay Zone. All STR uses within the ST Overlay Zone that have City approval to operate on the effective date of this ordinance shall be issued a commercial STR permit, which shall be valid for one (1) year from the date of issuance and shall be renewable annually unless revoked. Permit holders shall adhere to the requirements of this Chapter.
- 7. New Short Term Rentals Within the ST Overlay Zone, Permit. New STR uses within the ST Overlay Zone that receive City approval to operate shall be issued a commercial STR permit, which shall be valid for one (1) year from the date of issuance, and shall be renewable annually unless revoked. Permit holders shall adhere to the requirements of this Chapter.
- 8. Annual Renewal. For renewal of a commercial STR permit, a property owner shall be required to recertify compliance with this section with the zoning administrator. An application for annual recertification of the commercial STR permit must

include the application fee, an affirmation by the applicant that the nature of the STR use at the property has not changed, and must be notarized, filed with, and approved by the zoning administrator to continue the STR use.

c. Bed and Breakfast Use.

1. Accessory Use. Subject to the conditions in Section 54-227, c., 2, a bed and breakfast use may be established in a dwelling unit as an accessory to the principal residential use, on any property located within the ST Overlay Zone, and each approved bed and breakfast unit may be rented to one (1) family for a period of between one (1) and twenty-nine (29) consecutive days.
2. Conditions: A bed and breakfast may be approved only when all of the following conditions are satisfied, as evidenced by an application, a site plan, and floor plans:
 - (a) The number of bed and breakfast units shall not exceed four (4) units; except that a lot may have between four (4) and ten (10) bed and breakfast units if the total square footage of conditioned floor area in the building or buildings containing the bed and breakfast units is equal to or greater than the sum of the number of bed and breakfast units multiplied by 560, and all other requirements of this section are met. Each unit shall consist of one (1) or more rooms arranged for the purpose of providing sleeping accommodations for one (1) family for a period of between one (1) and twenty-nine (29) consecutive days; and
 - (b) The subject property is located entirely within the ST Overlay Zone; and
 - (c) The bed and breakfast shall be operated by the record owner of the subject property who also resides at the subject property at least 183 days each year; and
 - (d) The principal building on the property on which the bed and breakfast use will be located shall have been constructed 50 or more years ago although the bed and breakfast unit(s) may be located in a building that was not constructed 50 or more years ago; and
 - (e) Bed and breakfast unit(s) located in buildings constructed 50 or more years ago shall provide one (1) off street, maneuverable parking space on the subject property for each two (2) bed and breakfast units, or fraction thereof. Bed and breakfast unit(s) located in buildings not constructed 50 or more years ago shall provide one (1) off street, maneuverable parking space on the subject property for each bed and breakfast unit. Spaces required for the bed and breakfast unit(s) shall be in addition to providing, on the subject property, required off street parking for existing uses on the property; and
 - (f) The property shall be permitted to have one sign advertising the Bed and Breakfast. The permitted sign may have a maximum of two sides and no side shall exceed four (4) square feet in total sign face area; and

- (g) The bed and breakfast shall be located on property which is in compliance with allowed uses for the zone district in which the property is located; and
 - (h) The bed and breakfast shall be operated by someone who has not had a bed and breakfast permit revoked within the previous twelve (12) months.
3. Operational Requirements. In all cases, bed and breakfast use shall meet the following operational requirements:
- (a) No meals other than breakfast may be served by the resident owner to the paying guests.
 - (b) The resident owner shall keep a guest register including names, addresses, telephone numbers and dates of occupancy of all guests for three (3) years and shall make this available to the City upon request.
 - (c) The resident owner shall comply with all business license and revenue collection laws of the City of Charleston, Charleston County and State of South Carolina.
4. Application Process.
- (a) New applications for bed and breakfast uses shall be notarized and include the location of the property and resident owner of record of the property, an application fee, floor plans drawn to scale of the habitable structures on the property, a site plan of the lot showing the location of the proposed bed and breakfast units, the location of any existing bed and breakfast units, and the location of the required off-street parking spaces and driveways, and photographs of the current principal views of the structure where the proposed bed and breakfast units are to be located. The floor plans shall clearly note all rooms to be used by bed and breakfast guests, with the room or rooms to be used by bed and breakfast guests for sleeping designated. The application shall also include a statement which the resident-owner must sign acknowledging that he or she has reviewed and understands the requirements of this section.

Upon receiving a complete application and prior to the issuance of a zoning permit, the lot upon which the proposed use is to be located shall be posted for fifteen (15) consecutive days, advising that the resident-owner of the property has applied for a zoning permit to establish a bed and breakfast use at the location and supplying a phone number to call for further information. During this fifteen (15) calendar day period, the zoning administrator shall determine if the application meets the requirements as set forth above. If, at the end of the fifteen (15) day posting period, the zoning administrator determines that the application meets the requirements, the zoning administrator shall notify the applicant that the application is approved and shall, after waiting an additional five business days to allow for appeals, issue the zoning permit, which shall be valid for one (1) year from the date of issuance and

shall be renewable annually unless revoked. Any appeals filed within the five-day period shall cause the issuance of the zoning permit to be stayed pending resolution of the appeal.

(b) Renewal application.

- (1) For renewal of a bed and breakfast permit, a property owner shall be required to recertify compliance with this section with the zoning administrator. An application for annual recertification of the bed and breakfast permit must include the application fee, an affirmation by the applicant that the nature of the bed and breakfast use at the property has not changed, and must be notarized, filed with, and approved by the zoning administrator to continue the bed and breakfast use.
 - (2) Upon a change in ownership of a property, and prior to the issuance of a new business license to allow continuation of an existing, permitted bed and breakfast use upon said property, the new property owner shall be required to recertify compliance of the bed and breakfast use with the zoning administrator by having an application for recertification of the bed and breakfast use notarized, filed with, and approved by the zoning administrator.
5. The bed and breakfast use shall not be expanded in any respect throughout the structure or structures, or elsewhere on the property nor shall the use be changed to any other use not permitted by the Zoning Ordinance without reapplication to and approval by the zoning administrator.
 6. All operators of bed and breakfast uses permitted under this section shall cooperate fully with the zoning administrator and his designees, including, but not limited to, providing pertinent information upon request and affording access to that portion of the premises which is used for the bed and breakfast use for reasonable site inspections.
 7. Existing Approved and Bed and Breakfast Uses. All approved, legal bed and breakfast uses that are operating on the effective date of the ordinance from which this section derives or that are entitled to be in operation on the effective date of this ordinance shall be issued a bed and breakfast permit which shall be valid for one (1) year of issuance and shall be renewable annually unless revoked and shall adhere to the requirements of this Chapter.

d. Violations and Penalties.

1. Violations. It shall be a violation of this Chapter for an owner, his agent or manager to:
 - (a) Operate an STR use, a bed and breakfast use or other accommodations use without complying with the requirements of this Chapter and the Code of the City of Charleston; or

- (b) Expand an STR use or bed and breakfast use without obtaining a new permit; or
 - (c) Advertise a property as being available for an STR use, bed and breakfast use or other accommodations use without first complying with the requirements of this Chapter; or
 - (d) Represent or submit for advertising or marketing, or to otherwise hold out an STR unit, bed and breakfast unit or other accommodations unit as being available for use or occupancy unless the STR or bed and breakfast has been permitted pursuant to this Chapter and the permit number is displayed in the materials used to represent, advertise, market or otherwise hold out the property as available for STR or bed and breakfast use or occupancy; or
 - (e) Represent or submit for advertising or marketing, or otherwise to hold out the availability of an STR or bed and breakfast for use or occupancy by more than the number of occupants that are permitted pursuant to this Chapter; or
 - (f) Represent or submit for advertising, or marketing, or to otherwise hold out more STR or bed and breakfast units or other accommodations type units on a property than are permitted pursuant to this Chapter.
2. Penalties. A violation of this Chapter is a misdemeanor punishable by a fine and/or incarceration. Each day the unlawful erection, construction, reconstruction, alteration, conversion, maintenance, use, or other violation under this Chapter continues is considered a separate offense.

Should the STR or bed and breakfast use fail to continue to meet the requirements under which it was authorized or be discontinued for a period of twelve (12) months or more, the operating permit issued pursuant to this Chapter shall be revoked.

(Ord. No. 2012-41, § 4, 1-24-12; Ord. No. 2018-043, § 13, 4-10-18)

Sec. 54-228. GBLN Overlay Zone.

Within the General Business Late Night overlay zone, the following principal uses are restricted to only operate between 7 a.m. and 11 p.m.: 54. Food stores, 554. Gasoline service stations, 5812.1 Eating places without drive through or drive up service, 5812.2 Eating places with drive through or drive up service, 5813. Drinking places (alcoholic beverages), and any businesses that sell alcoholic beverages for on- or off-premises consumption.

(Ord. No. 2014-08, § 3, 1-30-14)

Sec. 54-229. LILN Overlay Zone.

Within the Light Industrial Late Night overlay zone, the following principal uses are restricted to only operate between 7 a.m. and 11 p.m.: 54. Food stores, 554. Gasoline service

stations, 5812.1 Eating places without drive through or drive up service, 5812.2 Eating places with drive through or drive up service, 5813. Drinking places (alcoholic beverages), and any businesses that sell alcoholic beverages for on- or off-premises consumption. (Ord. No. 2014-08, § 3, 1-30-14)

Sec. 54-229.1. Tech Corridor, TC Overlay Zone.

- a. Intent. The intent of the Tech Corridor "TC" overlay zone is to enable high technology and technology-related industries to anchor new development in the district. The City deems it necessary to provide additional protections to ensure these key properties are used predominately for tech office uses. Within this overlay zone, specific types of land uses are permitted only with the approval of a special exception and certain uses are specifically prohibited.
- b. Permitted uses. In any Tech Corridor overlay zoning district, land may be used and buildings or structures may be erected, altered or used for any purpose allowed by the underlying zoning district as listed in Article 2, Part 3, provided, however, any type of residential use and any type of retail use where the total area of a retail use, including storage and office areas associated therewith, exceeds 25,000 square feet, shall be permitted only by way of a special exception approved by the Board of Zoning Appeals-Zoning, where the Board, after review, finds that the residential or retail uses are clearly incidental and subordinate to the primary use of the property for technology-related industry, it being the intent that residential use and large format retail use only be permitted in the district as a minor, incidental and subordinate use on properties within the Tech Corridor overlay zone.
- c. Prohibited uses. In any Tech Corridor overlay zoning district, the following uses shall be prohibited: public warehousing, mini-warehouse, self-storage facilities.
- d. Building height. In any Tech Corridor overlay zoning district, no part of a building or structure, including elevator penthouses and mechanical penthouses, shall exceed the height of eighty-five (85) feet, nor shall the principal structure be lower than thirty (30) feet.

(Ord. No. 2014-37, § 2, 3-25-14; Ord. No. 2014-125, § 1, 9-23-14)

Editor's note—Ord. No. 2014-37, § 2, adopted March 25, 2014, added provisions numbered as § 54-228. In order to avoid conflicts in section numbering the editor has renumbered these provisions as § 54-229.1.

Sec. 54-229.2. Gateway, G Overlay Zone.

- a. Intent. The intent of the Gateway "G" overlay zone is to accommodate a more varied use matrix at the strategic locations by providing an opportunity for denser residential developments at commercially zoned properties by way of an optional set of development regulations that authorize higher residential density, and impose lot coverage requirements and certain height restrictions.

- b. Permitted uses. In any Gateway overlay zoning district, land may be used and buildings or structures may be erected, altered or used for any purpose allowed by the underlying zoning district as listed in Article 2, Part 3. In the alternative, land may be used and buildings or structures may be erected, altered or used for any purpose allowed by the underlying zoning district, and may include residential uses at a density between 50 and 78 dwelling units per acre of high ground, or fraction thereof (rounded up), provided that all dwelling units above 72 dwelling units per acre of high ground, or fraction thereof, must meet the requirements for affordable housing in Sec. 54-207 p., and provided further that the zoning administrator approves a Site Plan of the property being put to alternate uses that demonstrates the following conditions are met:
 1. The gross floor area, hereafter "GFA", of the structures on the property shown on the Site Plan, in the aggregate, but excluding parking structures, shall not exceed 81,000 square feet per acre of high ground, or fraction thereof. For the purposes of this section, GFA shall mean the total floor area within the building envelope including exterior walls, except that vertical circulation, i.e. stairs and elevator shafts, mechanical chases, and mechanical penthouses shall be exempt from being included in GFA, and further provided that parking and driveway areas within a building, and the exterior walls surrounding parking and driveway areas within buildings, shall be exempt from being included in the GFA. For example, a two story building with exterior dimensions of 20 x 40 feet has a GFA equal to 1,600 square feet minus any square footage of floor area occupied by vertical circulation,

mechanical chases or mechanical penthouses while a three story building with exterior dimensions of 20 × 40 feet in which a story consists of only parking and driveway areas, has a GFA equal to 1,600 square feet minus any square footage of floor area occupied by vertical circulation, mechanical chases or mechanical penthouses; and

2. No less than seventy (70%) per cent of the GFA of the structures on the property shown on the Site Plan must be used for residential purposes; and
 3. The total number of required off-street parking spaces must be provided on site and calculated in accordance with the parking standards of the underlying zoning district; provided that parking requirements for affordable housing units shall be 1 space per unit; and
 4. No structure on the property shown on the Site Plan shall exceed the lesser of: (a) the height limit set by the underlying zoning district; or (b) 160 feet, with a 10 foot allowance for mechanicals, to include stairs, railings, antennas and elevator overruns; and
 5. Lot Occupancy of the buildings on the Site Plan shall not exceed fifty-five (55%) percent of the property shown on the Site Plan.
 6. The number of dwelling units per acre of high ground, or fraction thereof, shall be within the limits as noted in this section, and if exceeding 72 dwelling units per acre of high ground, or fraction thereof, the Site Plan shall indicate the total number of affordable housing units.
- c. The Site Plan may include multiple, contiguous lots of record over which the alternate uses and other requirements of subpart (c) may be allocated. If the lots of record delineated on the Site Plan are not under common ownership, the consent of all owners of the lots of record must be shown on the Site Plan. For purposes hereof, lots of record separated by a public right-of-way shall be deemed contiguous.
- d. For the purposes of this Section, the Site Plan shall include the following:
1. A Site Plan that shows spot elevations of the highest curb elevation adjacent to the site, and the highest points on each roof section of each building; and
 2. Floor plans with uses, the total number of dwelling units, calculated GFA on the site and a breakdown of the total GFA by residential and non-residential area noted; and
 3. An overall Site Plan that shows existing lot lines, notes the high ground and wetland areas of each lot, notes the owner of each lot, shows all buildings, notes the lot occupancy of buildings, shows all parking spaces, and notes the calculated parking requirements for each use to satisfy requirements noted in this section; and
 4. In the event that a Site Plan includes multiple, contiguous lots of record that either are not under common ownership or will remain as separate lots of record,

a separate overall site plan that allocates uses and other requirements described in section 54-229.2, c, to each lot of record and includes the written consent of all owners of the lots of record.

5. In the event that a Site Plan includes affordable housing, the Site Plan shall note the total number of affordable housing units and include notes that restate the requirements of Sec. 54-207. p. (f) and (g).
 - e. Once a permit is issued to authorize construction under the Site Plan, the provisions of the Site Plan shall control the development of the property.
- (Ord. No. 2016-079, § 2, 7-19-2016)

Sec. 54-229.3. Dupont Wappoo Planning Area and DuWap Overlay Zone.

- a. **Intent and Applicability.** The Dupont Wappoo Planning Area, as shown on the map titled "Dupont Wappoo Planning Area and Overlay Zone", is an area of West Ashley that consists of a variety of residential, commercial and light industrial uses that have evolved over time. Within the Dupont Wappoo Planning Area is the Dupont Wappoo (DuWap) Overlay Zone. The intent of the Dupont Wappoo Planning Area and DuWap Overlay Zone is to preserve the existing development patterns while providing land use and design standards that enable new attractive development appropriate to and in scale with the community and to build upon the existing entrepreneurial as well as other existing commercial, office, retail and residential uses in the area. The Dupont Wappoo Planning Area and DuWap Overlay Zone also create regularity and coordination between the City of Charleston and Charleston County concerning zoning, land use, and design standards.

The DuWap Overlay Zone regulations in this section apply to all uses except for single-family residential and single and two family residential uses. The DuWap Overlay Zone regulations in this section apply in addition to the underlying base zoning district and in addition to all other applicable regulations of the City of Charleston Zoning Ordinance. In the case of conflict between the regulations of this section and other regulations in the Zoning Ordinance, the regulations of this section shall control. These overlay zoning district regulations are intended to be consistent with similar regulations adopted by Charleston County. Legally established existing uses that do not meet the requirements of this section shall be considered legal nonconforming per Sec. 54-110.

- b. **Coordination with adjacent jurisdictions.** The City of Charleston and Charleston County collaborated to develop the DuWap Overlay Zone standards to ensure that development within the within the Dupont Wappoo Planning Area is consistent between the two jurisdictions. The City of Charleston and Charleston County will coordinate with the other regarding all land development applications, with the exception of single-family detached residential, to ensure consistency with regards to development requirements.
- c. **Prohibited Uses.** In addition to the prohibited uses in Article 2, Part 3, Table of Permitted Uses, the following uses are prohibited within the DuWap Overlay Zone:

vehicle sales (new or used) and associated vehicle storage areas that encompass more than one acre, boat sales (new or used) and associated storage areas that encompass more than one acre, restaurants with drive thrus, vehicle and boat repair as a principle or accessory use, vehicle and boat service shops, towing services, car washes, gasoline stations, pawn shops and short term lenders. Self-storage facilities are prohibited unless they are part of a multi-story mixed use development where the ground floor use along the entire street frontage is separately leased commercial or office space that is independent of the storage facility business. Single use multi-family structures with individual building footprints greater than 10,000 square feet, except as noted in 54-228(g) herein.

d. **Driveways and vehicle access.**

1. **General.** The driveway separation requirements shall apply per Article 3, Part 3 Driveway and Building Setback Requirements for Business, Office or Industrial Lots, sections 54-310 and 54-311 and the following subsection below.
2. **Shared access.** Shared access is encouraged between adjoining parcels. Driveways for all uses except single-family residential should be located in a manner where they can be shared between adjoining parcels, if feasible and as described below.
 - a) Shared access should be located along a common property boundary.
 - b) If the owner of the adjacent parcel does not agree to share access the applicant must provide documentation of such in a letter from the adjacent property owner or by an affidavit.
 - c) Shared access agreements shall be recorded with the Register of Mesne Conveyance (RMC) Office.

c. **Pedestrian access and sidewalks.**

1. On-site pedestrian walkways shall be included in the site design of all new development and redevelopment projects and shall link access to existing sidewalks, adjacent parcels, as well as within the development area. At-grade and grade-separated pedestrian walkways within the project site shall provide direct connections from the street to the main entrance and to abutting properties. Pedestrian walkways shall be designed and located in a manner that does not require pedestrians to walk through parking lots or within driveways. All walkways must be ADA compliant.
2. Sidewalks in or adjacent to public rights-of-way shall be required per Article 3, Part 14.

d. **Landscape buffer, road buffer and parking lot buffer requirements.**

1. Requirements for landscape buffers shall apply per Article 3, Part 8, Landscape Buffer Requirements, with the following amendments applicable to the DuWap Overlay Zone:
 - a) Skylark Drive and Dupont Road shall be classified as Class I roads with a required buffer of 15 feet.

- b) for buffers required to screen incompatible land uses, the landscape buffer may be reduced by up to one-half ($\frac{1}{2}$) its required depth when a six (6) foot tall opaque screen wall or fence is utilized in combination with the buffer to provide a continuous screen element; however, no required landscape buffer shall be less than ten (10) feet in depth.
- 2. Requirements for parking lot, vehicular use and refuse collection area landscaping and screening shall apply per Article 3, Part 7, Parking Lot, Vehicular Use and Refuse Collection Area Landscaping and Screening Requirements.
- e. **Street trees & street lights.** The following shall apply to parcels with frontage along Savannah Highway. The installation of street trees and appropriately scaled street lights within the right-of-way shall be required for all new development and redevelopment projects that require approval by the City's Technical Review Committee (TRC) regardless of the amount of right-of-way altered as part of the project scope. Street tree species selection, size, location and spacing shall be pursuant to the City of Charleston Street Tree Manual and shall require approval of the Department of Parks as part of the TRC review process. Street selection location and spacing shall be pursuant to the City Code and shall require approval of the Department of Parks per City Code Sec. 30-51 as part of the TRC review process. Street light have Octagonal fixtures on fluted posts seventeen (17) feet in height or other as approved by the Department of Parks.
- f. **Signage.** Requirements for signage shall apply per Article 4, Part 3, Sign Regulations for the base zoning district unless noted otherwise below.
 - 1. For a development containing three or fewer business units, one freestanding monument style sign with a maximum height of twelve (12) feet and a maximum size of forty (40) square feet per face shall be allowed.
 - 2. For a development containing more than three business units, one monument style sign with a maximum height of fourteen feet (14') and a maximum size of sixty (60) square feet per face shall be allowed.
- g. **Design standards.** Savannah Highway, Wappoo Road, Dupont Road, Orleans Road and Skylark Drive are included in the City of Charleston's Design Review District and are under the purview of the Design Review Board (DRB) per Article 2, Part 11 in order to protect and improve the visual and aesthetic character and economic value of development within the City of Charleston. In accordance with Sec. 54-267 Design Review Objectives and Sec. 54-272 Design Review Standards, the following standards apply for all uses in the DuWap Overlay Zone except for single family residential uses and should be used as a frame of reference for the applicant in the development of site and building plans.
 - 1. **Building height.**
 - a) Within the DuWap Overlay Zone, building height shall be measured by stories instead of feet. Parcels with frontage on Savannah Highway between Dupont Road and I-526 or between Stinson Drive and I-526 shall have a

maximum building height of seven (7) stories; all other parcels between Dupont Road and I-526 shall have a maximum height of five (5) stories. Parcels with frontage on Savannah Highway east of Dupont Road and Stinson Drive shall have a maximum building height of five (5) stories. Parcels with frontage on Wappoo Road shall have a maximum building height of three (3) stories.

2. Building footprint.

- a) Single use multi-family structures shall not have an individual building footprint greater than 10,000 square feet.
- b) Affordable housing development projects, as verified by the City of Charleston Department of Housing and Community Development, are exempt from the maximum individual building footprint requirement provided that no less than fifty percent (50%) of the units in the development meet affordable housing requirements for no fewer than twenty (20) years from the initial occupancy.

3. Site design.

- a) The DuWap area should be defined by building frontages, screen walls and landscaping and not by parking lots.
- b) Buildings on corner lots should address all applicable street frontages with regards to site design and architectural interest.
- c) Parking for new developments should be located to the side or rear of the building. When side or rear parking abuts a public right-of-way, a screen wall should be provided.

4. Building appearance.

- a) Building entrances and windows should be provided along the street frontage.
- b) Vehicle bays and storage bays shall not face any road frontage. Emergency service facilities may be exempt from this requirement.
- c) Windows shall be inset with sills and headers. Vinyl windows will not be permitted.
- d) Quality building materials must be used; vinyl siding or EIFS will not be permitted.
- e) New buildings should utilize colors that are complementary, not necessarily homogeneous, to existing buildings.
- f) Along Wappoo Road, in cases where existing buildings that are residential in nature are converted to nonresidential uses, the residential character (height, scale, material entrances, windows roof pitch) should be presented at the street frontage.

- h. **Special stormwater drainage requirements.** The Dupont Wappoo Planning Area and DuWap Overlay Zone are located in the Tiger Swamp watershed with outfall into the Stono River. Due to existing drainage issues within the watershed area, development activities occurring within the Dupont Wappoo Planning Area and DuWap Overlay Zone may be required to comply with additional or more stringent design criteria in addition to the requirements of the City of Charleston Stormwater Design Standards Manual. Applicants shall be required to meet with the City of Charleston Engineering Division to discuss specific design criteria prior to making a pre-application submittal to the Technical Review Committee.

(Ord. No. 2016-102, § 1, 9-3-16)

Editor's note—Ord. No. 2016-102, § 1, adopted Sept. 13, 2016, amended the Code by adding provisions numbered as § 54-228. In order to avoid conflicts in section numbering the editor has renumbered these provisions as § 54-229.3.

Sec. 54-229.4. Folly Road, FR, Overlay Zone.

- a. **Intent.** The Folly Road, FR, overlay zone fronts on the east and west sides of Folly Road from its intersection with Tatum Road south to the Folly River and includes only those parcels with a commercial base zoning designation. Folly Road is the main thoroughfare on James Island and the only route leading to Folly Beach. As such, it carries a large number of vehicles each day. Moreover, some of the properties along Folly Road are located within the jurisdictional limits of the Town of James Island, the City of Folly Beach, the City of Charleston, and unincorporated Charleston County. The intent of the FR overlay zone is to implement traffic safety measures, to improve the visual character of the corridor, and to create consistency between the Town of James Island, the City of Folly Beach, the City of Charleston, and unincorporated Charleston County concerning land use and design standards.
- b. Generally.
1. **Development regulations for all areas of the FR overlay zone.** The following development regulations apply to all parcels within the FR overlay zone in addition to the requirements described below for each of the five sub-areas. All development applications, except for development applications for one-family detached dwellings, shall, at the time application is made, provide proof that the following requirements will be met prior to the issuance of any approvals:
- (a) Vehicle access.
- (1) All parcels in this overlay zoning district with a base zoning of RO (Residential Office) shall be allowed one curb cut per 150 feet of road frontage; all other parcels with a commercial base zoning shall be allowed one curb cut every 250 feet.
- (2) Proposed new access drives shall be a minimum distance of 75 feet from a street intersection measured from the edge of the intersecting roadway to the beginning of the driveway radius. These minimum

- spacing requirements shall be increased if a right-turn deceleration lane is required and shall equal the length of the turn lane and taper plus an additional distance of 50 feet.
- (3) All applications for development of non-residential uses shall include a suitable access management plan demonstrating that the driveway separation requirements can be met. The following techniques may be employed to achieve this result, but the burden of accomplishing the desired effect remains with the developer of the property:
- a. Aggregation of parcel;
 - b. Parallel frontage or "backage" roads;
 - c. Shared curb cuts between adjoining properties; and
 - d. Shared access easements between parcels.
- (b) Pedestrian access. Paved pedestrian ways shall be included in site design and shall provide a continuous link to adjacent parcels, as well as within the development area. Grade-separated pedestrian walkways must provide a direct connection from the street to the main entrance, and to abutting properties. Pedestrian walkways must be designed and located in a manner that does not require pedestrians to walk through parking lots or cross driveways and sidewalks may be allowed in right-of-way-buffers.
- (c) Building height. The height of buildings shall not exceed a maximum of two and one-half (2.5) stories or thirty-five (35) feet, whichever is less, measured from the highest curb elevation of Folly Road adjacent to the site, except that architectural features such as parapets, cupolas, roof structures, and other similar features shall be allowed to exceed the 35-foot height limitation but not exceed a total building height of 40 feet.
- (d) Residential density. Parcels with a base zoning of CT, LB, GB and LI within the Folly Road Overlay shall be limited to a maximum of eight dwelling units per acre of high ground. A maximum of 12 dwelling units per acre of high ground shall be permitted if workforce housing requirements contained in Article 2, Part 15, of this chapter are met. All parcels developed with residential uses greater than 10,000 square feet shall include commercial uses so that the square footage of conditioned, commercial floor space equals a minimum of 10 percent of the total square footage of conditioned floor space on the parcel. Residential developments that provide workforce housing shall be exempt from the 10 percent commercial use requirement.
- (e) Uses. Permitted uses and prohibited uses are described in each of the five sub-areas below. Gun shops shall be permitted only on parcels in this overlay zoning district with a base zoning of General Business (GB).
- (f) Coordination with adjacent jurisdictions. A letter of notification to the Town of James Island, Charleston County, and/or City of Folly Beach shall be

required as part of all land development applications, dependent upon overlay zoning district area. The purpose of the notification is to ensure that each jurisdiction is aware of proposed development.

- (g) **Multi-use path.** A multi-use path of at least twelve feet (12') in width shall be installed along the frontage of the parcel. The design of the multi-use path shall be reviewed and approved by the Design Review Board ("DRB"). The DRB shall seek to have the path implemented in an aesthetically pleasing manner with regards to landscaping, the proposed building, existing trees and other site features and context. The multi-use path may be fully in the right-of-way or on private property with an easement. The multi-use path shall be as safely designed as possible with good separation from moving traffic on Folly Road. If the applicant establishes that the required minimum width of the multi-use path is not feasible based on site conditions, the DRB may: (1) permit a reduction in the required minimum buffer plantings along the road right-of-way to accommodate the minimum required width of the path; and/or (2) permit a reduction in the required width of the multi-use path.

(Ord. No. 2017-148, § 2, 12-11-17; Ord. No. 2020-027, § 2, 2-25-20)

Sec. 54-229.5. FR Overlay Zone, North Village Sub-Area.

The North Village sub-area extends from Crosscreek/Tatum Street to Oakpoint Road (Ellis Creek area). This area currently consists of mixed medium and low intensity commercial uses such as shopping centers, professional offices, and vehicle services. Higher intensity residential uses, such as apartment complexes, also exist in this area. The following regulations apply in addition to the requirements of Section 54-229.4, b:

- a. **Permitted uses.** Permitted uses on a parcel shall include uses allowed in the base zoning district of that parcel as modified by Section 54-229.4, b, except that motor vehicle dealers (new and used) shall be prohibited.
- b. **Prohibited uses.** Motor vehicle dealers (new and used) shall be prohibited.
- c. **Buffers.**
 - 1. A minimum 25-foot vegetated right-of-way buffer shall be required for parcels along Folly Road with a base zoning of GB, LB, CT or GO;
 - 2. A minimum 15-foot vegetated right of way buffer shall be required for parcels along Folly Road with a base zoning of RO;
 - 3. Parcels with a base zoning of GB, LB, CT or GO shall be required to have a minimum 20-foot rear vegetated buffer adjacent to residentially zoned parcels;
 - 4. Parcels with a base zoning of RO shall be required to have a minimum 15-foot vegetated rear buffer adjacent to residentially zoned parcels; and

5. Where appropriate, fencing may be required to screen adjacent residentially zoned parcels. When a minimum 6-foot high opaque fence or wall is utilized, the zoning administrator may reduce the land use buffer by up to one-half its required depth when deemed appropriate; however, no required vegetated buffer shall be less than 10 feet in depth.
 6. Exceptions. In order to allow for new buildings to relate harmoniously with the streetscape and to other structures in the vicinity, when deemed appropriate by the Design Review Board, buildings may be permitted to encroach into the required right-of-way buffer. This exemption shall not apply to parking lots or any other vehicular use areas.
- (Ord. No. 2017-148, § 2, 12-11-17)

Sec. 54-229.6. FR Overlay Zone, Commercial Core Sub-Area.

The Commercial Core sub-area is the gateway and commercial center and extends from Oak Point Road (Ellis Creek Area) to Prescott Street. This area currently consists of higher intensity commercial uses such as chain type restaurants, vehicle service and repair, drug stores, and shopping centers with minimal buffering along Folly Road. The following regulations apply in addition to the requirements of Section 54-229.4, b:

- a. **Permitted uses.** Permitted uses on a parcel shall include uses allowed in the base zoning district of that parcel as modified by Section 54-229.4, b, except that motor vehicle dealers (new and used) shall be prohibited.
- b. **Prohibited uses.** Motor vehicle dealers (new and used) shall be prohibited.
- c. **Buffers.**
 1. A minimum of a 15-foot vegetated right-of-way buffer shall be required along Folly Road.
 2. A minimum of a 25-foot rear vegetated buffer shall be required adjacent to residentially zoned parcels; and
 3. Fencing may be required to screen adjacent residentially zoned parcels. When a minimum 6-foot high opaque fence or wall is utilized, the zoning administrator may reduce the land use buffer by up to one-half its required depth when deemed appropriate; however, no required vegetated buffer shall be less than 10 feet in depth.
 4. Exceptions. In order to allow for new buildings to relate harmoniously with the streetscape and to other structures in the vicinity, when deemed appropriate by the Design Review Board, buildings may be permitted to encroach into the required right-of-way buffer. This exemption shall not apply to parking lots or any other vehicular use areas.

(Ord. No. 2017-148, § 2, 12-11-17)

Sec. 54-229.7. FR Overlay Zone, South Village Sub-Area.

The South Village sub-area extends from Prescott Street to Grimball Road Extension. This area currently consists of mixed medium to high intensity commercial development, such as shopping centers big box stores and consumer services, along the west side of Folly Road and primarily small scale office and residential uses along the east side of Folly Road. This area is intended for development similar to the North Village sub-area with less intense commercial development than the Commercial Core sub-area and a mix of medium to high intensity uses along the west side of Folly Road and lower intensity development on the east side of Folly Road. Future development in this area is to be a mix of commercial and residential uses with increased right-of-way buffers along the west side of Folly Road and

increased land use buffers on both sides of Folly Road when commercial development occurs adjacent to single family detached residential uses. The following regulations apply in addition to the requirements of Section 54-229.4, b:

- a. **Permitted uses.** Permitted uses on a parcel shall include uses allowed in the base zoning district of that parcel as modified by Section 54-229.4, b, except that motor vehicle dealers (new and used) shall be prohibited.
- b. **Prohibited uses.** Motor vehicle dealers (new and used) shall be prohibited.
- c. **Buffers.**
 1. A minimum 15-foot vegetated right-of-way buffer shall be required along the east side of Folly Road and a minimum 35-foot vegetated right-of-way buffer shall be required along the west side of Folly Road;
 2. A minimum 20-foot vegetated rear buffer shall be required adjacent to residentially zoned parcels; and
 3. Fencing may be required to screen adjacent residentially zoned parcels. When a minimum 6-foot high opaque fence or wall is utilized, the zoning administrator may reduce the land use buffer by up to one-half its required depth when deemed appropriate; however, no required vegetated buffer shall be less than 10 feet in depth.
 4. Exceptions. In order to allow for new buildings to relate harmoniously with the streetscape and to other structures in the vicinity, when deemed appropriate by the Design Review Board, buildings may be permitted to encroach into the required right-of-way buffer. This exemption shall not apply to parking lots or any other vehicular use areas.

(Ord. No. 2017-148, § 2, 12-11-17; Ord. No. 2018-080, § 2, 7-17-18)

Sec. 54-229.8. FR Overlay Zone, Neighborhood Preservation Sub-Area.

The Neighborhood Preservation sub-area extends from Grimball Road Extension to Battery Island Drive. This area consists primarily of low-intensity residential uses with some commercial development primarily along the northwest area of Folly Road. This portion of the overlay zoning district is intended to provide an appropriate transition from the more intense commercial development in the North Village, Commercial Core, and South Village Areas before entering the Conservation Area and the City of Folly Beach. The following regulations apply in addition to the requirements of Section 54-229.4, b:

- a. **Permitted uses.** Permitted uses on a parcel shall include uses allowed in the base zoning district of that parcel as modified by Section 54-229.4, b, except that motor vehicle dealers (new and used), eating places with drive-thru service, gasoline service stations (with or without convenience stores), indoor recreation and entertainment, and automotive repair shops shall be prohibited.

- b. **Prohibited uses.** Motor vehicle dealers (new and used), eating places with drive-thru service, gasoline service stations (with or without convenience stores), indoor recreation and entertainment, and automotive repair shops shall be prohibited.
- c. **Building size.** No single building structure shall exceed 5,000 square feet in gross floor area.
- d. **Buffers.**
 - 1. A minimum of a 25-foot vegetated right-of-way buffer shall be required along Folly Road. This buffer may be reduced to 15 feet when there is no parking or vehicular use area between buildings and right-of-way.
 - 2. A minimum of a 20-foot vegetated rear buffer shall be required adjacent to residentially zoned parcels.
 - 3. Fencing may be required to screen adjacent residentially zoned parcels. When a minimum 6-foot high opaque fence or wall is utilized, the zoning administrator may reduce the land use buffer by up to one-half its required depth when deemed appropriate; however, no required vegetated buffer shall be less than 10 feet in depth.
 - 4. Exceptions. In order to allow for new buildings to relate harmoniously with the streetscape and to other structures in the vicinity, when deemed appropriate by the Design Review Board, buildings may be permitted to encroach into the required right-of-way buffer. This exemption shall not apply to parking lots or any other vehicular use areas.

(Ord. No. 2017-148, § 2, 12-11-17 ; Ord. No. 2018-080, § 1, 7-17-18)

Sec. 54-229.9. FR Overlay Zone, Conservation Sub-Area.

The Conservation sub-area extends from Battery Island Drive to the Folly River. This area is intended to be the least intensely developed area of the overlay zoning district and is to provide a natural scenic open space before entering the City of Folly Beach by preserving the marsh views and vistas of this area. This portion of the overlay zoning district is intended to provide an appropriate transition from the more intense commercial development in the North Village, Commercial Core, and South Village sub-areas before entering the Conservation sub-area and the City of Folly Beach by preserving the existing low density residential character. The following regulations apply in addition to the requirements of Section 54-229.4, b:

- a. **Permitted uses.** Permitted uses on a parcel shall include uses allowed in the base zoning district of that parcel as modified by Section 54-229.4, b, except that motor vehicle dealers (new and used) shall be prohibited.
- b. **Prohibited uses.** Motor vehicle dealers (new and used) shall be prohibited.

c. **Buffers.**

1. A minimum of a 25-foot vegetated right-of-way buffer shall be required along Folly Road in the commercial area which may be reduced to 15 feet when there is no parking or vehicular use area between buildings and right-of-way;
2. A minimum of a 20-foot vegetated rear buffer shall be required adjacent to residentially zoned parcels; and
3. Fencing may be required to screen adjacent residentially zoned parcels. When a minimum 6-foot high opaque fence or wall is utilized, the zoning administrator may reduce the land use buffer by up to one-half its required depth when deemed appropriate; however, no required vegetated buffer shall be less than 10 feet in depth.
4. Exceptions. In order to allow for new buildings to relate harmoniously with the streetscape and to other structures in the vicinity, when deemed appropriate by the Design Review Board, buildings may be permitted to encroach into the required right-of-way buffer. This exemption shall not apply to parking lots or any other vehicular use areas.

(Ord. No. 2017-148, § 2, 12-11-17)

PART 6**OLD AND HISTORIC DISTRICT AND OLD CITY DISTRICT REGULATIONS****Sec. 54-230. Purpose of creating districts.**

In order to promote the economic and general welfare of the city and of the public generally, and to insure the harmonious, orderly and efficient growth and development of the city, it is deemed essential by the city council of the city that the qualities relating to the history of the city and a harmonious outward appearance of structures which preserve property values and attract tourist and residents alike be preserved; some of these qualities being the continued existence and preservation of historic areas and structures; continued construction of structures in the historic styles and a general harmony as to style, form, color, proportion, texture and material between structures of historic design and those of more modern design. These purposes are advanced through the preservation and protection of old historic or architecturally worthy structures and quaint neighborhoods which impart a distinct aspect to the city and which serve as visible reminders of the historical and cultural heritage of the city, the state, and the nation.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-231. Designation of Old City District and Old and Historic Districts; definitions.

- a. For the purpose of this article, three types of special districts are established, as follows:
 1. Old and Historic District and Old City District. The boundaries of the Old and Historic District and Old City District are as delineated upon the zone map, a part of the zoning ordinance of the city.
 2. Historic Corridor District. The boundaries of the Historic Corridor District are as delineated upon the zone map, a part of the city zoning ordinance.
- b. For the purposes of this article, "exterior architectural appearance" shall include architectural character, general composition and general arrangement of the exterior of a structure, its height, scale and mass in relation to its immediate surroundings, the kind, color and texture of the building material and type and character of all windows, doors, light fixtures, signs and appurtenant elements that are visible from a street or public right-of-way.
- c. For the purposes of this article, "structure" shall include, in addition to buildings, walls, fences, signs, light fixtures, steps or appurtenant elements thereof.
- d. For purposes of this article, "demolition" means the removal of an entire structure or a substantial portion of a structure visible from the public right-of-way or a substantial portion of features of a structure that are visible from the public rights-of-way that define its historic architectural character, such as roofs, columns, balustrades, chimneys,

siding, windows, doors, shutters, site walls, fences and other unique architectural features, which if lost, would compromise the historic architectural character of the structure.

- e. For purposes of this article, "height" means the vertical extent of a structure as described in Section 54-306 of this chapter.
- f. For purposes of this article, "scale" means building elements and details and the relationship of a building to itself, to humans, and to structures in its immediate surroundings in terms of its visual unity, continuity and proportions.
- g. For purposes of this article, "mass" means the volume or bulk of a building expressed in its three-dimensional form, to include variations in the shape and form of the building and its relationship to the size of structures in its immediate surroundings.
- h. For purposes of this article, "immediate surroundings" means abutting properties and those on both sides of the street of the block in which the building is located.
- i. For purposes of this article, "block" means the aggregate (or sum) of privately owned lots passages, rear lanes and alleys lying between one public street and, as to that street, the next public street.
- j. For purposes of this article, "visible from the public right-of-way" means only such portion of a structure that can be viewed by the naked eye from street level. In determining visibility, presence of vegetation shall be ignored.
- k. For purposes of this article, "Certificate of Appropriateness" means the approval of a project by the Board that entitles the applicant to apply for a building permit.
(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-232. Construction or demolition of structures in districts; permit required; certificate of approval.

- a. No structure which is within the Old and Historic District shall be erected, demolished or removed in whole or in part, nor shall the exterior architectural appearance of any structure which is visible from a public right-of-way be altered until after an application for a permit has been submitted to and approved by the Board of Architectural Review.
- b. No structure in the Old City District or the Historic Corridor District that is either more than 50 years old or listed in Categories 1, 2, 3 or 4 on the Inventory Map as adopted by Section 54-235 shall be demolished, removed in whole or part, or relocated until after an application for a permit has been submitted to the Board of Architectural Review and either has been approved by it or the period of postponement in the case of application for partial or total demolition hereafter provided for in Section 54-240, d., has expired.
- c. The exterior architectural appearance of any structure, either more than one hundred years old or listed in Categories 1, 2, 3 and 4 on the Inventory Map adopted by Section

54-235 which is within the Old City District and which is visible from a public right-of-way, shall not be changed until after an application for a permit has been submitted to and approved by the Board of Architectural Review. In the Historic Corridor District, the exterior architectural appearance of structures visible from a public right-of-way, except for residential structures with fewer than eight units, shall not be changed until an application has been submitted to and approved by the Board of Architectural Review.

- d. Within the Old City District and Historic Corridor District, no new structure which will be visible from a public right-of-way upon its completion shall be erected until after an application for a permit has been submitted to and approved by the Board of Architectural Review.
- e. Evidence of the approval required above shall be a Certificate of Appropriateness issued by the Board of Architectural Review as created herein. Such certificate shall be a statement signed by the chairman of the Board of Architectural Review or administrative officer, as applicable, stating that the new construction, demolition, relocation or the changes in the exterior architectural appearance for which application has been made are approved by the Board of Architectural Review; provided, however, that repairs and renovations to existing structures which do not alter the exterior appearance and are so exempted by the administrative officer as herein provided need not be approved by the Board of Architectural Review.
- f. Any person requesting a permit under this section and article shall be entitled to a hearing on such request before the Board of Architectural Review.
(Ord. No. 2003-93, §§ 1, 2, 9-23-03; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2013-70, § 1, 7-16-13; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-233. Board of Architectural Review created; composition; appointment and terms of office.

- a. Two Boards of Architectural Review are hereby established, to be known as the Board of Architectural Review - Small (the "BAR-S") and the Board of Architectural Review - Large (the "BAR-L"). The BAR-S shall hear and decide applications for projects that are 10,000 square feet or less in size and minor modifications to projects over 10,000 square feet. The BAR-L shall hear and decide applications for projects that exceed 10,000 square feet. Commercial and institutional projects up to 10,000 square feet may be reviewed by BAR-S or BAR-L depending on the use, location, and complexity of the project, as determined by staff. Demolition applications shall be assigned to either the BAR-S or BAR-L, as determined by staff.
- b. Each Board of Architectural Review shall consist of five (5) members and two (2) alternates who do not hold any other public office or position in the City of Charleston and are appointed by City Council. Board members shall be citizens of the City of Charleston, or non-citizen owners, principals, or employees of businesses located in the City. Each Board shall include two (2) registered architects, an attorney, a licensed professional involved in construction or engineering and a lay person. The members

and alternates shall have demonstrated experience in historic design or preservation and at least one of the following fields: fine arts, architecture, structural engineering, landscape architecture, civil engineering, urban design, city planning, preservation, construction, real estate, law or associated disciplines. Each board shall elect one of its members chairman, who shall serve for a term of one year or until reelected or a successor is elected and qualified. Each board shall appoint a secretary who may be an officer of the governing authority. Each board shall adopt rules of procedure.

- c. The initial term of three (3) of the five (5) members and one (1) alternate first appointed to the BAR-S and BAR-L shall expire on the date of the first regular City Council meeting in January following their appointment, and the initial term of the other two (2) of the five (5) members and the other alternate first appointed to the BAR-S and BAR-L shall expire on the date of the first regular City Council meeting in January two years thereafter. Following the initial term, the terms of all members and alternates shall be three (3) years. No member shall serve more than two successive three-year terms. A member who has served two successive three-year terms on the BAR-S is not disqualified from serving two successive three-year terms on the BAR-L, and vice versa. An appointment to fill a vacancy shall be only for the expired portion of the term.
- d. Meetings of the board may be held at the call of the chairman and at such other times as the board may determine. The chairman or, in his or her absence, the acting chairman, may administer oaths and compel the attendance of witnesses by subpoena. The board shall keep minutes of its proceedings, showing the vote of each member upon each question, or if absent or failing to vote, indicating the fact, and shall keep records of its examinations and other official actions, all of which immediately must be filed in the office of the board and must be a public record.
- e. Alternate members, when seated, have all the powers and duties of regular members. Alternate members may always attend meetings but shall only participate in board deliberations and debate, make motions and vote in the absence or voting disqualification of a regular member or the vacancy of a regular member's seat. When necessary to achieve a quorum, an alternate of one Board may serve on the other Board.

(Ord. No. 1999-54, § 2A, 4-27-99; Ord. No. 2000-35, § 1, 3-14-00; Ord. No. 2007-60, § 1, 3-6-07; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2013-49, § 1, 5-14-13; Ord. No. 2014-17, § 2, 2-11-14; Ord. No. 2015-169, §§ 1—4, 11-24-2015, eff. 1-1-2016; Ord. No. 2017-084, § 1, 8-15-17; Ord. No. 2023-205, § 1, 10-10-23; Ord. No. 2024-094, § 1, 7-16-24)

Sec. 54-234. Meeting of board.

- a. The Board of Architectural Review may meet at any time upon call of the chairman and, in addition, shall within fifteen (15) days after notification by the administrative officer of the filing of an application for a permit to demolish any structure in whole or in part, hold a public hearing upon each application. At least five (5) days' notice of the time and place of each such hearing shall be given by the administrative officer as follows:
 - 1. In writing to the applicant.

2. In writing to all persons or organizations that have filed an annual written request for such notices and have paid an annual fee, not to exceed twenty-five dollars (\$25.00), to cover the costs involved.
3. By publication in the form of an advertisement in a newspaper of general circulation within the city.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-235. Adoption of inventory map; procedure for revision.

In order to identify structures within peninsula Charleston which should be preserved, maintained and protected in the public interest and to provide guidance for the Board of Architectural Review there hereby is adopted as an official public document the inventory map entitled "Historic Architecture Inventory, 1972-73, Peninsula City, Charleston, S.C.," prepared for the city by Carl Feiss, FAIA, AIP, City Planning and Architectural Associates, and Russell Wright, AIP, consisting of peninsula Charleston south of Highway 17, and additional sheets being dated September 4, 1973, with revisions September 11, 1973, October 16, 1973, November 14, 1973, February 20, 1974 and March 27, 1974, as amended by the inventory map entitled "South Carolina Inventory of Historic Places Survey Report, City of Charleston, S.C." prepared for the city by Geier Brown Renfrow Architects and dated August 1985, and as amended by the inventory entitled "A Historic Architectural Resources Survey of the Upper Peninsula, Charleston, South Carolina" prepared by Brockington and Associates, dated 2004 consisting of the peninsula Charleston north of Line Street and south of Mount Pleasant Street (collectively "Inventory Map"). The original of the said Inventory Map shall be filed in the Department of Planning and Preservation as a public record and shall be available for public inspection during normal business hours. Based on changed conditions, the Board of Architectural Review from time to time may recommend to the City Council additional revisions of said Inventory Map, but none shall become effective until the Zoning Ordinance has been appropriately amended.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-236. Guidance standards; maintenance of consistent policy.

In order to provide guidance and insight into desirable goals and objectives for the Old City District, the Old and Historic District and Historic Corridor District for desirable types of development, and for the maintenance of consistent policies in guiding the building public toward better standards of design, the Board of Architectural Review shall be guided by the Secretary of the Interior's Standards for Historic Preservation and the 2017 BAR PRINCIPLES FOR NEW CONSTRUCTION AND RENOVATION AND REPAIRS, said Standards and PRINCIPLES being incorporated herein by reference, and permanent copies of which shall be maintained by the Department of Planning and Preservation, or its successor department, and copies of which shall be made available to interested persons on request.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-237. Application and review procedure.

Pre-Application Conference: Applicants are required to meet with staff prior to applying for Conceptual Approval for projects exceeding 10,000 square feet to assure the applicant is acquainted with and has an understanding of the Board's Guidelines. Applicants for projects of 10,000 square feet or less are encouraged, but not required, to likewise meet with staff prior to applying for Conceptual Approval.

Conceptual: Review of the general height, scale, mass and three dimensional form of a building, or an addition to an existing building, and the general architectural direction and quality of the project as it relates to its site, its neighborhood, its immediate surroundings and the City of Charleston. This phase defines the overall quality and architectural character of the project.

Preliminary: Review of the development of the conceptual design and its relationship to its context in terms of the project's details, finishes and materials. This phase defines the level of quality of construction, and the relationship of the building's components to surrounding buildings and to one another.

Final: Review of the completion of the preliminary design based on completed construction documents and material specifications for consistency with the level of quality of the previous phases. Final Review of BAR-L projects shall be by the Board, unless the Board delegates the review to staff. Final Review of BAR-S projects shall be by staff; provided however, at its discretion, staff may require Final Review to be undertaken by the Board; and provided further that the BAR-S, in its discretion, may request to undertake Final Review. Any final review that is delegated to staff is for the purpose of assuring that for-permit construction drawings comply with the approved design.

Comparative Reviews: For each review after Conceptual approval, or if the applicant is required to submit more than one conceptual submittal, the applicant shall show on the same sheet the previous proposal for comparison to the current proposal

Courtesy Review: At the discretion of staff, an applicant may be requested to submit to a courtesy review of a project by the Board to receive informal initial feedback as to the direction of the project.

Affordable/Workforce Housing Projects: Projects which include affordable or workforce housing units that are submitted by the application deadline and which comply with all submittal requirements shall be placed on the agenda of the next regularly scheduled meeting of the Board, subject to Rules of the Board if any, that limit the number of items on agenda.

In the case of very minor projects involving repair or alterations to existing structures, the Board of Architectural Review, if the preliminary drawings and other data are sufficiently clear and explicit, may grant preliminary and final approval at one review session. Should

said data indicate alterations, remodeling, or repairs not changing the exterior appearance, the administrative officer may exempt the application from provisions of this section and approve a Certificate of Appropriateness.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-238. Contents of application.

Applications for demolition, relocation, new construction, or alterations and/or additions or renovations to existing structures shall include such drawings, photographs or other information as may from time to time be adopted by the Board of Architectural Review, copies of which shall be maintained in the Office of Planning and Preservation or such successor office thereto.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-239. Public notice requirements.

Upon the filing of an application with the Board of Architectural Review, the property to which such application applies shall be posted with a sign at least five (5) days prior to any public hearing when the application will be considered and said sign shall specify the appropriate city department to contact concerning information regarding the application. The Board of Architectural Review shall adopt and implement rules of procedure by which the posting of signing shall be conducted, and may make recommendations to City Council of fees to be charged therefore. Any fee schedule established hereunder shall be approved by City Council.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-240. Board of Architectural Review; powers and duties.

- a. In reviewing any application before it, the Board of Architectural Review may approve, deny or conditionally approve an application. If in the opinion of the Board, an application requires further study, action on an application may be deferred. In passing on an administrative appeal, the Board may affirm, modify or reverse the decision.
- b. In reviewing an application to demolish, or demolish in part, or remove, or alter the exterior architectural appearance of any existing structure, the Board of Architectural Review shall consider, among other things, the historic, architectural and aesthetic features of such structure, the nature and character of the surrounding area, the historic or culturally important use of such structure and the importance to the city.
- c. In reviewing an application for new construction in the Old and Historic District, Old City District or Historic Corridor District, the Board of Architectural Review shall consider, among other things, the general design, the character and appropriateness of design, the height, scale and mass of the structure, the arrangement, texture, materials and color of the structure in question, and the relation of such aspects, features and elements to similar aspects, features and elements of structures in the immediate

surroundings. Notwithstanding anything in this Chapter to the contrary, in passing upon an application, the Board of Architectural Review is empowered to require the use of architectural techniques such as building façade and mass modulations or adjustments to the footprint of a structure on a site to achieve appropriate form and proportion of a structure in relation to its immediate surroundings, so long as such techniques do not unreasonably restrict the use of a site in light of its underlying zoning. The Board of Architectural Review shall not consider interior arrangement or interior design; nor shall it make requirements except for the purpose of preventing designs of developments which are not in harmony with the prevailing character of Charleston, or which are obviously incongruous with this character.

- d. Among other grounds for considering a design inappropriate and requiring denial or deferral and resubmission are the following effects: Arresting and spectacular effects, violent contrasts of materials or colors and intense or lurid colors, a multiplicity or incongruity of details resulting in a restless and disturbing appearance, the absence of unity, visual compatibility and coherence in composition, form and proportion not in consonance with the dignity and character of the present structure (in the case of repair, remodeling or enlargement of an existing structure) or with the prevailing character of the immediate surroundings (in the case of a new structure).
- e. In case of denial of an application, the Board of Architectural Review shall state the reasons therefore in a written statement to the applicant and make recommendations in regard to appropriateness of design.
- f. The Board of Architectural Review may refuse a permit or Certificate of Appropriateness for the erection, reconstruction, alteration, demolition, partial demolition, or removal of any structure within the Old and Historic District, which in the opinion of the Board of Architectural Review, would be detrimental to the interests of the Old and Historic District and against the historic character and public interest of the city.
- g. Upon receiving an application for the demolition or removal of a structure over fifty (50) years old and within the limits of the Old City District, the Board of Architectural Review, within forty-five (45) days after receipt of the application, shall either approve or deny such application, or find that the preservation and protection of historic places and the public interest will best be served by postponing the application for a designated period, which shall not exceed one hundred eighty (180) days from the receipt of the application, and notify the applicant of such postponement.
- h. In any case involving the demolition or partial demolition or removal of a structure, before granting approval or requiring a postponement, the Board of Architectural Review may call on the chief building official to provide it with a report on the state of repair and structural stability of the structure under consideration.
- i. In all applications involving the demolition or partial demolition or removal of a structure, provision shall be made for a public hearing as set forth in this article.

- j. Within the period of postponement of such demolition, partial demolition or removal of any structure, the Board of Architectural Review shall take steps to ascertain what the City Council can or may do to preserve such structure, including consultation with private civic groups, interested private citizens and other public boards or agencies and including investigation of the potential use of the power of eminent domain when the preservation of a given structure is clearly in the interest of the general welfare of the community and of certain historic and architectural significance. The Board of Architectural Review shall then make such recommendations thereabout to the City Council as the board may determine to submit.
- k. The Board of Architectural Review shall have the power to delay for a period of 180 days or deny outright the demolition, partial demolition or removal of a structure over 50 years old in the area bounded to the north by Mount Pleasant Street or the extensions thereof into the waters of the Ashley and Cooper Rivers, to the east by the waters of the Cooper River to the south by the Old City District and to the west by the waters of the Ashley River.
- l. The approval of an application by the Board of Zoning Appeals—Zoning or the Board of Zoning Appeals—Site Design pertaining to dimensional requirements of a proposed project shall not be binding on the Board of Architectural Review in its review, or of any power granted to it in this ordinance.

(Ord. No. 1998-148, § 1, 8-18-98; Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-241. Powers of the board to require repair of structures; intentional demolition of structures without approval.

- a. The Board of Architectural Review, on its own initiative, may file a petition with the chief building official requesting that said officer proceed under the public safety and housing ordinance to require correction of defects or repairs to any structure covered by this article so that such structure shall not experience demolition by neglect and be preserved and protected in consonance with the purpose of this article and the public safety and housing ordinance.
- b. An application to the Board of Architectural Review for after-the-fact approval for demolition of a structure, in whole or in part, creates a rebuttable presumption that the demolition was intentional when a prior application for demolition of said structure, whether in whole or in part, was denied within the preceding five (5) years.
 - 1. The presumption may be rebutted by credible evidence establishing to the Board of Architectural Review's satisfaction that:
 - i. Significant and material further deterioration of the structure not occasioned by neglect occurred after denial of the prior application, and that such further deterioration was caused by circumstances beyond the owner's control; or

- ii. Good faith efforts to prevent further deterioration of the structure were undertaken after denial of the prior application, and the present condition of the structure indicates those efforts were significantly and materially frustrated by circumstances beyond the owner's control.
2. Where the presumption is not rebutted, the application shall be denied. The owner shall be subject to penalties as stated in section 1-16 of the Code of the City of Charleston, South Carolina, and any licensed professionals who took part in the unauthorized demolition shall be subject to suspension or revocation of their business license pursuant to section 17-30 of the Code of the City of Charleston, South Carolina. In addition, the Board shall have discretion to deny any further approvals for the subject property for a period of up to five (5) years. Nothing herein shall prevent the Board from placing specific conditions to rebuild the structure in connection with the denial.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17; Ord. No. 2023-250, § 1, 12-5-23; Ord. No. 2024-024, § 1, 2-27-24)

Editor's note—Ord. No. 2023-250, § 1, adopted December 5, 2023, amended the title of § 54-241 to read as herein set out. The former § 54-241 title pertained to powers of board to require repair of structures.

Sec. 54-242. Exemptions from article.

Nothing in this article shall be construed to prevent the ordinary maintenance or repair of any exterior elements of any structure described in section 54-232; nor shall anything in this article be construed to prevent the construction, reconstruction, alteration or demolition of any such elements which the chief building official shall certify as required by public safety. (Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-243. Report to administrative officer; issuance of certificate of appropriateness.

Upon approval of the plans, the Board of Architectural Review shall forthwith transmit a report to the administrative officer stating the basis upon which such approval was made, and if no further action is required of the Board or staff, cause a Certificate of Appropriateness to be issued to the applicant. If the Board of Architectural Review shall fail to take final action upon any case within forty-five (45) days after the receipt of application for permit, the application shall be deemed to be disapproved, except where mutual agreement has been made for an extension of time limit.

When a Certificate of Appropriateness has been issued, a copy thereof shall be transmitted to the city building inspector, who shall from time to time inspect the alteration or construction approved by such certificate and shall make a report of such inspection to the Board of Architectural Review of any work not in accordance with such certificate or violating any ordinances of the city.

(Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-244. Time limitations on certificates of appropriateness.

Conceptual and Preliminary approvals and Certificates of Appropriateness shall remain valid for two (2) years from the date of approval, unless extended in accordance with Section 54-962 hereof.

(Ord. No. 1999-24, § 1, 3-10-99; Ord. No. 2005-99, § 2, 6-21-05; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-245. Appeals to Board of Architectural Review.

Appeals to the Board of Architectural Review may be taken by any person aggrieved or by any officer, department, Board or bureau of the city. Such appeal shall be taken within a reasonable time as provided by the rules of the Board by filing with the officer from whom the appeal is taken and with the Board of Architectural Review a notice of appeal specifying the grounds thereof. The officer from whom the appeal is taken shall forthwith transmit to the Board all the papers constituting the record upon which the action appealed from was taken.

(Ord. No. 1999-54, § 2B, 4-27-99; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-246. Effect of an appeal.

An appeal stays all proceedings in furtherance of the action appealed from, unless the officer from whom the appeal is taken certifies to the Board, after the notice of appeal shall have been filed with him, that by reason of facts stated in the certificate a stay would, in his opinion, cause imminent peril to life or property. In such case proceedings shall not be stayed otherwise than by a restraining order which may be granted by the Board of Architectural Review or a court of record on application, on notice to the officer from whom the appeal is taken, and on due cause shown.

(Ord. No. 1999-54, § 2B, 4-27-99; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-247. Hearing an appeal.

The Board shall fix a reasonable time for the hearing of the appeal, or other matter referred to it, and give public notice of it, as well as due notice to the parties in interest, and decide the same within a reasonable time. At the hearing any party may appear in person or by agent or by attorney.

(Ord. No. 1999-54, § 2B, 4-27-99; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-248. Appeal from Board of Architectural Review to Circuit Court.

A person who may have a substantial interest in any decision of the Board or any officer or agent of the appropriate governing authority may appeal from a decision of the Board to the circuit court in the county by filing with the clerk of court a petition in writing setting forth

plainly, fully, and distinctly why the decision is contrary to law. The appeal must be filed within thirty days after the affected party receives actual notice of the decision of the Board. (Ord. No. 1999-54, § 2B, 4-27-99; Ord. No. 2012-385, § 2(Exh. B), 10-23-12; Ord. No. 2017-084, § 1, 8-15-17)

Sec. 54-249. Reserved.

PART 7 PLANNED UNIT DEVELOPMENT, PUD DISTRICT***Sec. 54-250. PUD defined.**

A planned unit development consists of a tract or tracts of land planned and developed as a whole in a single development stage or phased series of development stages according to an approved PUD Master Plan.

(Ord. No. 2013-125, § 1, 11-6-13)

Sec. 54-251. Intent.

A planned unit development (PUD) is intended to provide flexibility in the design of developments; to encourage comprehensive planning of developments; to permit innovation in neighborhood design that includes incorporation of open space, preservation of natural features and other amenities; to provide opportunity for a mixture of uses within a development, and to insure compatibility of developments with surrounding areas.

(Ord. No. 2013-125, § 1, 11-6-13)

Sec. 54-252. General application.

- a. A tract or tracts of land is eligible for a PUD if the tract or tracts of land under consideration total five (5) or more contiguous acres. A PUD may include less than five (5) acres or contain non-contiguous parcels, if City Council, upon a recommendation of the Planning Commission, determines the PUD is an appropriate zoning classification because of the unique constraints of the land owing to the size, shape, topography or other physical conditions of the tract or tracts or because the proposed PUD is consistent from a land use and development perspective with an adjoining PUD. A PUD may consist of tracts of land owned by different owners provided that all owners agree in writing to the PUD Master Plan and provided that residential units and open space acreage requirements are allocated by tract in the PUD Master Plan and all subsequent plats and plans. PUD rezoning applications shall include the signatures of all property owners.
- b. No person shall erect or alter any building, structure or sign on any tract of land or use any tract of land within a PUD except in conformance with the requirements and limitations of the ordinance approving the PUD Master Plan. No Site Plan, Phasing Plan, Subdivision Concept Plan, Preliminary Plat, Road Construction Plans or Final Plat shall be approved except in conformance with this Article and the ordinance approving the Master Plan.

(Ord. No. 2013-125, § 1, 11-6-13)

***Editor's note**—Ord. No. 2013-125, § 1, adopted Nov. 6, 2013, amended former Part 7, §§ 54-250—54-262, in its entirety to read as herein set out. Former Part 7 derived from this codification of the zoning ordinance and the following: Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2009-205, §§ 1, 2, 10-13-09; Ord. No. 2007-230, § 1, 12-6-07.

Sec. 54-253. Procedures for review.

- a. Generally. The procedure for approving a PUD application is divided into three steps which may be combined as described below.

Step 1. PUD Pre-Application Plan Review is intended to provide city staff with an introduction to the proposed development and a chance to comment on the proposal before the expenditure of funds in preparation of a Master Plan.

Step 2. Approval of a Master Plan and accompanying rezoning ordinance requires review by the Technical Review Committee and two public hearings, one with the Planning Commission, and one with City Council. Approval of a Master Plan and accompanying rezoning ordinance by City Council constitutes a rezoning of the property and establishes all site development regulations for future development on the property. Where applicable, the Subdivision Concept Plan, in accordance with Article 8, may proceed concurrently with this step.

Step 3. Subdivision Concept Plan Approval begins the process of subdividing property and building public improvements to serve the site. This step requires review by the Technical Review Committee and approval of the Planning Commission after a public hearing. After Subdivision Concept Plan approval, applications for preliminary plat and road construction plans approval shall be approved by the Technical Review Committee. Final Plat is approved by the Plat Review Committee.

- b. Administration. All petitions, applications and supporting documents for a PUD shall be filed with the office of the Zoning Administrator, who shall maintain and make available for public inspection records of all applications and related actions. The PUD rezoning application must be signed by the owner(s).
- c. Fees. All applications shall be accompanied by payment for applicable fees as set forth in the fee schedule for the Department of Planning and Preservation.
- d. PUD Pre-Application Plan Review.
1. Applicants for a PUD shall schedule a meeting with the Director of the Department of Planning and Preservation representatives from other City departments to present their proposal and receive staff comments. Twelve (12) sets of the PUD Conceptual Plan shall be submitted to the Zoning Division in the Department of Planning and Preservation at least ten working days prior to the scheduled meeting.
 2. The Planning Director shall consult with other appropriate City departments and advise the applicant of the application's conformance with relevant plans adopted by City Council and shall provide comments within ten days following the meeting with the applicant.
- e. Master Plan Review.
1. Applicants for a Master Plan PUD shall submit twelve (12) sets of the information required for Master Plans prior to the deadline for the next scheduled meeting of

the Planning Commission. Applicants wishing to receive Subdivision Concept Plan approval concurrently with Master Plan approval in accordance with Article 8, shall submit eight (8) sets of the Subdivision Concept Plan which satisfies the information requirements in Article 8.

2. The Zoning Administrator shall first determine if the application is complete. If complete, the Zoning Administrator shall refer the application to the Technical Review Committee and Planning Commission for the next scheduled meetings, and advertise a public hearing on the proposed Master Plan PUD application.
 3. The Technical Review Committee shall review the application and provide the Planning Commission with written comments at the public hearing. Utility providers and regulatory agencies may also be consulted.
 4. The Planning Commission shall review the application, hold a public hearing, and make a recommendation to the City Council to approve, approve with modifications and/or conditions, or disapprove the application.
 5. After the Planning Commission has made its recommendation, the Zoning Administrator shall forward the application with the recommendation to the Clerk of Council. The Clerk of Council shall then set the date for, and advertise the public hearing on the application, to be held at a scheduled meeting of City Council.
 6. Following the public hearing, the City Council shall approve, approve with modifications and/or conditions or disapprove the application for Master Plan PUD subject to Article 9: Part 3 Changes and Amendments.
 7. Approved Master Plans shall be filed with the Department of Planning and Preservation.
- f. Subdivision Concept Plan Approval.
1. Applicants shall submit eight (8) sets of the Subdivision Concept Plan prepared in accordance with the requirements of Article 8. The Subdivision Concept Plan may be submitted after PUD Master Plan approval or concurrently with the PUD Master Plan per Article 8.
 2. The Zoning Administrator shall first determine if the application is complete. If complete, the Zoning Administrator shall refer the application to the Planning Commission for the next scheduled meeting and advertise a date for the public hearing by the Planning Commission. If not complete, the Zoning Administrator shall advise the applicant in writing why the application is not complete within ten (10) business days.
 3. The Technical Review Committee shall review the application to insure compliance with the Master Plan and provide the Planning Commission with written comments.

4. The Planning Commission shall review the application, hold a public hearing, and approve, approve with modifications and/or conditions, or disapprove the application. Planning Commission approval of the Subdivision Concept Plan submitted with the PUD Master Plan shall be considered contingent upon City Council approval of the PUD Master Plan.
5. After Subdivision Concept Plan approval, the applicant shall then submit the Preliminary Plat, Road Construction Plans and Site Plans to the Technical Review Committee for approval. Final plats shall be submitted to the Plat Review Committee and the approved final plat shall be recorded in the RMC office and also filed with the Department Planning and Preservation and the Department of Public Service.

(Ord. No. 2013-125, § 1, 11-6-13; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-254. Criteria for Review.

Review of all PUD Master Plan applications shall be based on the criteria listed in this section. Prior to the Planning Commission or City Council approving, or approving with modifications any PUD Master Plan application, the Council and Commission shall find that the application:

- a. is consistent with the City's adopted comprehensive plan and all adopted plans for sub-areas of the City;
- b. better achieves the goals of adopted plans than would development under other zoning district regulations;
- c. is consistent with the City's adopted master road plan;
- d. better protects and preserves natural and cultural resources than would development under other zoning district regulations;
- e. is compatible with the density and maximum building height of adjacent developed neighborhoods and the zoning of adjacent undeveloped areas;
- f. is compatible with the existing network of public streets in adjacent neighborhoods and areas;
- g. provides adequate parking for residents and users of the PUD;
- h. can be accommodated by existing and planned public facilities including but not limited to, roads, sewer, water, schools and parks;
- i. provides adequate public facilities, open space and recreational amenities; and
- j. adequately provides for the continued maintenance of common areas, open space, and other public facilities not dedicated to the city;
- k. provides for a mixture of uses.

(Ord. No. 2013-125, § 1, 11-6-13)

Sec. 54-255. Application requirements.

- a. Generally. All sets of drawings and plans submitted as part of the PUD Master Plan shall be prepared in accordance with the following criteria.
 1. Scale: All drawings should use a consistent scale.
 2. Title page and locator map: Indicating the name of the development, the owner(s), the developer, the person or firm preparing the plan, the date of the plans and the location of the project area in relation to major streets, waterways or other geographical features.
 3. Title block: Indicating the name of the development, the owner(s), the developer, the person or firm preparing the plan and the date of the drawing.
 4. Professional certification: Each plan or drawing for the Master Plan submittal shall be prepared by a licensed architect, landscape architect, surveyor, or engineer.
 5. Each drawing set shall be bound into one package.
- b. PUD Pre-Application Plan Review. Prior to filing an application for a PUD, the applicant must submit twelve (12) sets of a PUD Pre-Application Plan to the Zoning Division in the Department of Planning and Preservation and meet with the Planning Director and representatives from other City departments regarding the proposed PUD development. The PUD Pre-Application Plan is not required to be prepared by an engineer. The PUD Pre-Application Plan shall, at a minimum, include the following information:
 1. A conceptual land use plan for the entire PUD delineating the approximate location and area of buildable and nonbuildable land, proposed uses and acreages and related planning and development data including information on vegetation, to include forest cover and significant stands of trees, proposed buffers, cultural resources, and adjacent land uses.
 2. A general plan for public facilities which includes an assessment of existing traffic patterns, storm drainage and the availability of sewer and water, and general topographic information from city topographic maps or other suitable maps.
- c. Master Plan. The application for a Planned Unit Development shall require the submission of twelve (12) sets of a PUD Master Plan containing, at a minimum, the following information:
 1. Plat prepared by a registered surveyor showing the exact location, size, shape, gross acreage, and ownership of the tract(s) to be developed as a PUD, all known easements located thereon, and the approximate location of all freshwater and saltwater wetlands and other critical areas as determined by a professional wetlands consultant.

2. Site analysis prepared by registered engineer or surveyor showing the following:
 - (a) Location of existing manmade features including, but not limited to, major utility lines or facilities, drainage canals, manmade water bodies and existing structures.
 - (b) General topographic information from city topographic maps or other suitable maps.
 - (c) Location and description of cultural resources identified in cultural resource inventories available through local and state government agencies.
3. An aerial photograph of the entire PUD with property lines indicated.
4. Land use plan showing the location, approximate net acreage and gross acreage of each type of residential, mixed-use, office, commercial, and industrial development pod, open space area, recreational area and water body in the PUD, and existing land uses adjacent to the PUD, except that for a PUD containing more than one thousand (1,000) acres, requirements for locating proposed open space areas and recreational areas may be generally defined in lieu of identifying locations on a land use plan to ensure that required useable open space areas are distributed throughout the PUD. The plan shall also show the approximate location of major vehicular, pedestrian and bicycle circulation systems within the PUD and include typical cross sections of major circulation systems indicating right-of-way width and design. The plan shall show proposed major transmission lines for utilities, proposed major stormwater drainage facilities, and proposed buffers. Within each residential development pod the maximum number of residential dwelling units and net density shall be specified.

Decisions regarding major land uses should be made on consultation with local government agencies and in consideration of the many impact factors listed below:

Traffic.

Schools.

Storm water drainage.

Fresh-water supply.

Sewerage.

Solid-waste management.

Other municipal services (e.g., health, safety).

Open space, natural and cultural resource preservation.

5. For each development pod identified on the Land Use Plan, the following PUD Zoning Regulations, prepared in accordance with Section 54-257 PUD Zoning Regulations shall be provided.
 - (a) For conservation and residential pods the regulations shall include, but not be limited to, the following:
 - (1) The type of dwelling units allowed, i.e. single-family detached, single-family attached, duplex, two-family, townhouse, or multi-family.

- (2) Minimum lot size per dwelling unit and minimum lot frontage requirements.
 - (3) Minimum setback requirements for principal buildings and, where applicable, for accessory buildings.
 - (4) Maximum lot occupancy restrictions for buildings.
 - (5) Minimum and/or maximum building heights (in feet and stories) allowed for principal buildings and, where applicable, for accessory buildings.
 - (6) Regulations for neighborhood uses permitted in accordance with Section 54-257 PUD Zoning Regulations.
 - (7) Parking requirements.
- (b) For mixed-use, commercial, office, civic and industrial pods the regulations shall include, but not be limited to the following:
 - (1) Minimum building setbacks.
 - (2) Building heights in feet and stories; minimum and maximum.
 - (3) Maximum lot occupancy for buildings.
 - (4) Regulations for residential uses as specified in the above section.
 - (5) Permitted uses and restrictions on hours of operation, if any are proposed.
 - (6) Parking requirements.
6. For each area designated for open space and recreational use, a list and description of the proposed improvements and facilities shall be provided with an explanation of the ownership and maintenance of the areas and facilities.
7. Proposed general plan for landscape buffers.
8. Additional information requested during PUD Pre-Application Plan review or which will be helpful in reviewing the PUD.
9. Traffic Impact Study. The type and scope of the study shall be determined by the Department of Traffic and Transportation and the Department of Planning, Preservation and Sustainability during the PUD Pre-Application Plan review based on the potential impacts the development is anticipated to have on the existing transportation infrastructure over and above the impact entitled development would have. Technical Review Committee requirements for traffic impact studies for Site Plans and Subdivision Concept Plans shall still apply.
10. A drainage basin analysis shall be required with the PUD Master Plan application. The scope of the analysis shall be determined by the Engineering Division during the PUD Pre-Application Plan review.
- d. Subdivision Concept Plans, Preliminary Plats, Road Construction Plans, Final Plats and Site Plans shall be prepared in accordance with Article 6 and Article 8.

(Ord. No. 2013-125, § 1, 11-6-13; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-256. PUD zoning regulations.

- a. Generally.
 1. PUD Zoning Regulations shall be developed for each development pod identified on the PUD Master Plan in accordance with the regulations set forth in this section.
 2. All applicable regulations of the Zoning Ordinance for the base zoning district not specifically permitted to be varied by this section shall remain in effect.
 3. All landscape buffer requirements specified in Article 3: Part 8 shall apply along the perimeter property lines and OCRM critical areas. However, a PUD may modify the perimeter buffer requirements provided that the modifications are addressed in the PUD guidelines and shown on the PUD master plan.
 4. Each set of PUD Zoning Regulations shall be displayed in a consistent, understandable format in the Master Plan.
- b. Permitted uses. Permitted uses for all PUD applications shall comply with the permitted uses and any special requirements specified in Article 2, of this Chapter for the applicable base zoning district(s).
 1. Exceptions.
 - (a) Dwelling unit type. Within any PUD, the dwelling unit type may be varied. The permitted dwelling unit types shall be specified on the Master Plan.
 - (b) Each PUD must include mixed-use, commercial, office, civic or industrial uses. These uses may be permitted within small designated locations within the PUD or larger pods.
 - (1) Mixed-use, commercial, office, civic and industrial development pods shall provide pedestrian and vehicular access to major circulation systems and adjacent neighborhoods constructed as part of the PUD.
 - (2) Each development pod devoted to mixed-use, commercial, office, civic and industrial shall be labeled on the Master Plan and PUD Zoning Regulations shall be specified for each pod.
- c. Height and Area Regulations. Within any base zoning district, the height, area and setback regulations specified in Article 3: Part 1, relating to setbacks for principal and accessory structures, lot area per dwelling unit, lot occupancy, and building height may be varied.
 1. Exceptions.
 - (a) Old City Height Districts as specified in Article 3: Part 2, shall not be exceeded by PUD development.
- d. Density. The net density allowed for the entire PUD shall not be exceeded.

- e. **Open Space.** For PUD's with a net acreage greater than ten (10) acres, a minimum of twenty (20) percent of the gross acreage shall remain as open space; twenty-five (25) percent of the required open space shall be developed and maintained as usable open space.
- f. **Parking and Off-Street Loading.** The applicant shall be permitted to develop new parking and off-street loading standards for the number of spaces required for each permitted use within the PUD Master Plan or adopt the parking requirements of Article 3: Part 4, and the off-street loading requirements of Article 3: Part 5. New parking and off-street loading standards shall be specified in the Master Plan.
- g. **Rights-of-way.** In order to allow flexibility in the design of major circulation systems shown on the PUD Master Plan, the applicant may modify requirements in Article 8, for right-of-way width, pavement width, curb, gutter and sidewalk improvements upon a finding that such requirements are not in the interest of the residents of the development or the entire City, provided that the applicant can demonstrate to the satisfaction of the City that:
 - 1. The resulting improvements are designed and constructed in accordance with accepted engineering standards.
 - 2. The modification is reasonable because of the uniqueness of the planned development and the excellence of design and construction to be employed in the development.
 - 3. Any modification of street requirements is reasonable in relation to projected traffic generation in the area at the time of project completion.
 - 4. Any sidewalk modifications are justified because other adequate provisions are made for pedestrian and bicycle traffic.
- h. **Tree Protection Requirements.** For PUD's with a net acreage equal to or greater than one thousand (1,000) acres, the applicant shall be permitted to modify requirements in Article 2: Part 6 Tree Protection Requirements.
- i. **Exceptions and Modifications.** Exceptions and modifications to regulations as specified in Section 54-505, Exceptions to Height Requirements, shall remain in effect unless specifically amended on the Master Plan.

(Ord. No. 2013-125, § 1, 11-6-13)

Sec. 54-257. Management of common open space and improvements.

- a. The regulations below shall apply to all common open space and improvements, including all private streets, driveways, parking lots, uses, facilities and buildings provided in a PUD. All such common lands and improvements shall be established and maintained in accordance with the following requirements.
 - 1. The developer shall organize an incorporated property owner associations to ensure the maintenance of common open space and improvements.

2. Organizations established for this purpose shall meet the following requirements.
 - (a) Organizations shall be established prior to the closing of the sale of any lots.
 - (b) All persons having ownership of property within the development shall have membership rights in those organizations.
 - (c) Organizations shall own and manage all common open space and improvements.
 - (d) All lands and improvements shall be described as to the general location, size, use and control in the declaration of covenants, conditions and restrictions. This declaration shall set forth the method of assessment for maintenance of common land and improvements. Covenants, conditions and restrictions shall run with the land.
 - (e) Organizations shall not be dissolved nor shall they dispose of any common open space except to an organization established to own and maintain common open space, to the city, or to other appropriate governmental agencies.
3. All private streets created in any PUD shall provide guaranteed vehicular and pedestrian access for abutting lot owners and guaranteed access for public vehicles and public service employees. Private covenants and restrictions shall be provided guaranteeing the long-term private ownership and maintenance of private streets.

(Ord. No. 2013-125, § 1, 11-6-13)

Sec. 54-258. Recorded plats.

All plats for an approved PUD shall be recorded in the RMC office of the appropriate county and copies shall be maintained in the Department of Planning and Preservation and the Engineering Division of the City of Charleston. All recorded plats shall include an allocation of PUD residential units and open space for the portion of the PUD area being platted and all remaining PUD land area.

(Ord. No. 2013-125, § 1, 11-6-13; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-259. Termination of a PUD.

The owner(s) of lands zoned PUD may apply to rezone the subject property and thereby terminate the PUD provided that no development of any portion of the PUD has taken place.

(Ord. No. 2013-125, § 1, 11-6-13)

Sec. 54-260. Amendments to approved PUD Master Plans.

- a. Amendments to an approved master plan. Proposed amendments to an approved PUD Master Plan involving the following changes shall be considered major amendments and shall only be approved by the City Council in the manner provided by law for the amendment to the zoning map at the time of any such proposed amendment.
 1. the location of residential, office, commercial, mixed-use, civic, industrial development pods, open space areas;

2. a change in the major circulation systems that would render invalid the Master Plan traffic impact analysis or the intent of the adopted Master Plan major circulation systems for providing access and circulation within the PUD;
 3. the maximum number of allowed dwelling units and maximum net density;
 4. the PUD zoning regulations, except that changes to the adopted PUD Master Plan zoning regulations for a particular development pod or portion of a development pod may be approved by the Zoning Administrator with approval of a site plan or written explanation of the changes, provided that the request for changes is made by the owner of the property in question; that the changes only affect land uses, residential density, building height, building setback or other building location restrictions, lot occupancy, impervious surface coverage, lot frontage and off-street parking/loading regulations; that the change will clearly make the PUD zoning regulations more restrictive in nature (i.e. commercial to residential, multi-family to single-family residential, increase in setback requirements, decrease in permitted building height, increase in minimum lot frontage, etc.); that no permits or approvals beyond the approval of a PUD Master Plan have been issued for the area in questions that would be contrary to the proposed change; and that the change will comply with state enabling legislation for zoning and subdivision regulations;
 5. information required for open space and recreational use areas as specified under Section 54-255, Application Requirements; or
 6. the plan for landscape screens and buffers.
- b. All other amendments to the Master Plan shall be considered minor amendments. The Zoning Administrator, upon receipt of an application, may approve minor amendments to the Master Plan.

(Ord. No. 2013-125, § 1, 11-6-13)

Sec. 54-261. Modifications of approved PUD Master Plan zoning regulations.

- a. Modifications of approved PUD Master Plan zoning regulations. Requests for modifications to PUD Zoning Regulations specified on the approved PUD Master Plan shall be treated as amendments per Section 54-261 or as requests for variances as determined by the Zoning Administrator. Variances shall be referred to either the Board of Zoning Appeals-Zoning or the Board of Zoning Appeals-Site Design in accordance with Article 9: Part 2, and subject to the criteria in Section 54-924, Requirements for granting a variance.

(Ord. No. 2013-125, § 1, 11-6-13)

Sec. 54-262. Reserved.

PART 8 DANIEL ISLAND PLANNED UNIT DEVELOPMENT, DI-PUD DISTRICT**Sec. 54-263. Daniel Island Master Plan Zoning Text.**

Within the DI-PUD District, land may be used and buildings erected, altered, or used pursuant to the Daniel Island Master Plan Zoning Text, adopted by Ordinance 1993-32 on March 23, 1993; and amended by Ordinance 1994-440 on December 20, 1994, and Ordinance 1995-160 on May 9, 1995; and Ord. No. 2015-075, §§ 1, 2, on July 21, 2015; and amended by Ord. No. 2015-141, §§ 1, 2, on October 13, 2015; and amended by Ord. No. 2019-023, on April 9, 2019; and amended by Ord. No. 2020-003, on Jan. 14, 2020; and amended by Ord. No. 2020-075, June 9, 2020, and amended by Ord. No. 2023-249, on December 5, 2023, made a part hereof.

(Ord. No. 2019-023, § 1, 4-9-19; Ord. No. 2020-003, § 1, 1-14-20; Ord. No. 2020-075, § 1, 6-9-20; Ord. No. 2023-249, § 1, 12-5-23)

PART 9

CANTERBURY WOODS PLANNED UNIT DEVELOPMENT, CW-PUD DISTRICT

Sec. 54-264. Canterbury Woods Development Guidelines and Master Plan.

Within the CW-PUD District, land may be used and buildings erected, altered, or used pursuant to the Canterbury Woods Development Guidelines and Master Plan (see Appendix G).

PART 10
CAINHOY, CY DISTRICT

Sec. 54-265. Cainhoy, CY District.

Within the CY District, land may be used and buildings erected, altered, or used pursuant to the Cainhoy District Development Guidelines (see Appendix J).

PART 11
DESIGN REVIEW DISTRICT*

Sec. 54-266. Purpose for creating district.

The purpose of the Design Review District is to establish a review process that will protect and improve the visual and aesthetic character and economic value of development within the City of Charleston. The City Council finds that excessive uniformity, dissimilarity, inappropriateness, or the poor quality of design in the exterior appearance of structures and signs, and the lack of proper attention to site design in the major commercial corridors of the city outside the Old and Historic District and Old City District hinders the harmonious development of the city, impairs the desirability of residence, investment or occupation in the city, limits the opportunity to attain the optimum use and value of land and improvements, adversely affects the stability and value of property, produces degeneration of property in such areas with attendant deterioration of conditions affecting the peace, health and welfare of the city, and destroys a proper relationship between the taxable value of property and the cost of municipal services therefore.

(Ord. No. 2011-45, § 1, 6-21-11)

Sec. 54-267. Design Review District objectives.

- (a) Encourage originality, flexibility, and innovation in site planning and development, including the architecture, landscaping, and graphic design of said development;
- (b) Discourage monotonous, drab, unsightly, dreary and inharmonious developments;
- (c) Protect and enhance the appearance of development;
- (d) Protect and enhance the city's natural beauty, visual character and charm by insuring that structures, signs, and other improvements are properly related to their sites, and to surrounding sites and structures, and that proper attention is given to the exterior appearance of structures, signs, and other improvements;
- (e) Protect and enhance the city's appeal to residents and visitors and thus support and stimulate business and industry and promote the desirability of investment and occupancy in residential, commercial and industrial properties;
- (f) Stabilize and improve property values and prevent blighted areas and, thus, increase tax revenues;
- (g) Implement design guidelines that have been included in plans adopted by City Council and design policy statements adopted by the Design Review Board;

***Editor's note**—Ord. No. 2011-45, § 1, adopted June 21, 2011, amended former Part. XI, §§ 54-266—54-273, in its entirety to read as herein set out. Former Part 11 pertained to the Commercial Corridor Design Review District. See the Zoning Ordinance Comparative Table for a listing of ordinances which have amended former Part. 11.

- (h) Sustain the comfort, health, tranquility, and contentment of residents; and thus, promote and protect the peace, health and welfare of the city.
(Ord. No. 2011-45, § 1, 6-21-11)

Sec. 54-268. Designation of Design Review District, review authority, scope of authority and exemptions.

- a. The Design Review District shall include all land which lies within the rights-of-way and all properties which abut each side of the rights-of-way within all zoning districts including the Savannah Highway (SH) overlay zone, of the following commercial corridors currently within the city limits, future extensions of designated corridors and those segments of such designated commercial corridors which may be incorporated into the city at a future date:

Albemarle Road (Folly Road to Croghan Spur)

Albemarle Road (East side of corridor- Croghan Spur to Ashley Point Drive)

Ashley Point Drive

Ashley River Road (S.C. 61)

Bees Ferry Road

Bohicket Road

Citadel Haven Drive

Cainhoy Road

Central Park Road

Clements Ferry Road (S.C. 33)

Croghan Spur

Daniel Ellis Drive

Daniel Island Drive

Daniels Landing Drive

Dupont Road (Savannah Highway to Sam Rittenberg Boulevard)

Ellis Oak Avenue

Fairchild Street

Folly Road

Glenn McConnell Parkway

Harborview Road

Henry Tecklenburg Drive

Highway 41

Interstate 26 (North of Mount Pleasant Street)
Island Park Drive
James Island Expressway
King Street (North of Mount Pleasant Street)
Magnolia Road (Savannah Highway to Audubon Avenue)
Main Road
Mark Clark Expressway (I-526)
Mary Ader Avenue
Maybank Highway
Meeting Street (North of Mount Pleasant Street)
Mizzen Mast Drive
Morrison Drive
Old Towne Road (S.C. 171) and adjacent frontage roads
Orleans Road (Savannah Highway to Savage Road)
Pier View Street
Ripley Point Drive
River Landing Drive
River Road
Saint Andrews Boulevard
Sam Rittenberg Boulevard (S.C. 7) and adjacent frontage roads
Savage Road
Savannah Highway (U.S. 17) and adjacent frontage roads
SC 30 Ramp (Saint Andrews Boulevard to SC 30)
Seven Farms Road and off-ramps from I-526 to Seven Farms Road
Shelby Ray Court
Skylark Drive
Thomas Island Drive
Town Center Drive
Transom Court
Wappoo Road (Savannah Highway to Sam Rittenberg Boulevard)
Wesley Drive

West Ashley Circle, as identified in the Glenn McConnell Expressway Extension Study dated February 2002, on file in the Department of Planning and Neighborhoods, to include all future cross streets as identified in said study and all existing and future roads within one thousand (1,000) feet of the intersection of Glenn McConnell Parkway and Bees Ferry Road

West Wildcat Boulevard

- b. The Design Review District shall include all land which lies within the rights-of-way and all properties which abut each side of the rights-of-way within the Gathering Place (GP) zoning district.
- c. Scope of authority. Within the Design Review District, exterior improvements or changes to the following residential and non-residential developments specified below shall require approval by either the Design Review Board or the administrative officer prior to the issuance of any permits by the City in accordance with Section 54-268(a and b) herein. For the purposes hereof, the term "developments" includes structures and the site upon which they are situated. Any fee schedule established for the review of improvements or changes shall be approved by City Council.
 1. Developments located within areas designated as Job Center Districts and Industrial Districts in the City of Charleston Century V 2010 Comprehensive Plan Update shall only require approval by the administrative officer. The boundaries of the Job Center Districts and Industrial Districts are as delineated upon the maps marked as exhibit A attached hereto and incorporated by reference herein.
 2. All new non-residential developments which do not include fuel dispensing or drive-through service facilities shall require conceptual approval and preliminary approval by the Board and final approval by the administrative officer, except that new non-residential developments which do not include fuel dispensing or drive-through service facilities and have less than 3,000 square feet of floor area shall only require approval by the administrative officer.
 3. All new non-residential developments which include fuel dispensing or drive-through service facilities, or alterations and/or additions to existing non-residential developments which include fuel dispensing or drive-through service facilities, shall require conceptual approval and preliminary approval by the Board and final approval by the administrative officer.
 4. All new residential developments with eight or more units shall require conceptual approval and preliminary approval by the board and final approval by the administrative officer.
 5. All exterior alterations to structures in existing non-residential developments or residential developments with eight or more units shall only require approval by the administrative officer.
 6. All exterior additions to structures in existing non-residential developments or residential developments with eight or more units in which the floor area of the

additions exceeds twenty-five (25) percent of the floor area of the existing structure shall require conceptual approval and preliminary approval by the Board and final approval by the administrative officer. All other exterior additions to structures in existing non-residential developments or residential developments with eight (8) or more units shall only require approval of the administrative officer.

7. All exterior color changes to existing non-residential developments or residential developments with eight or more units shall only require approval by the administrative officer.
8. All new or replacement signs and supporting structures for non-residential developments or residential developments with eight (8) or more units shall only require approval by the administrative officer.
9. All changes to the illumination of signs shall only require approval by the administrative officer.
10. Demolition or relocation of any structure originally designed and/or used for residential purposes along the following commercial corridors shall require approval by the Board:

Folly Road (from Savannah Highway to the West Ashley Greenway/railroad right-of-way)

Saint Andrews Boulevard (from the Ashley River to Avondale Avenue)

Savannah Highway (from the Ashley River to Stocker Drive and Parish Road)

Wesley Drive (from Savannah Highway to the West Ashley Greenway/ railroad right-of-way)

11. Demolition, partial demolition, removal or relocation of any structure 50 years of age or older within the jurisdiction of the Design Review Board shall require approval by the Board. Demolition, partial demolition, removal or relocation of any structure less than fifty (50) years of age, with the exception of those referenced in paragraph 7 above, shall not require approval.
12. Developments and demolitions located within area designated as the "West Ashley Redevelopment Tax Increment Finance District" shall only require approval by the administrative officer.
- d. Standards for demolition, partial demolition, removal or relocation review. In reviewing an application to demolish in whole or in part, or remove or relocate any existing structure applicable to paragraph 10 or 11 above, the Design Review Board shall consider, among other things, the following factors:
 1. The architectural and aesthetic features of the structure, the nature and quality of the structure, including its architectural fabric, any historical significance, the nature and quality of the surrounding area and the structure's contribution to the overall streetscape of the area.

2. In all applications involving the demolition, partial demolition, removal or relocation of a structure, provision shall be made for a public hearing as set forth in this article.
3. In any case involving the demolition, partial demolition, removal or relocation of a structure, before granting approval, the Design Review Board may require that the applicant provide a written report produced by a South Carolina licensed structural engineer describing the state of repair and/or structural stability of the structure under consideration. The Design Review Board may also call upon the city engineer or chief building official to provide it with a written report on the state of repair and/or structural stability of the structure under consideration.
4. Nothing in this article shall be construed to prevent the ordinary maintenance or repair of any exterior element of any building or structure governed by this article; nor shall anything in this article be construed to prevent the construction, reconstruction, alteration, demolition, partial demolition, removal or relocation of a structure that the chief building official shall certify is required by public safety.
- e. Exemptions. Communication towers shall be exempt from the review and approval requirements of the Design Review District and the requirements of part 11 of this ordinance.

(Ord. No. 2011-45, § 1, 6-21-11; Ord. No. 2012-386, §§ 1, 2, 10-23-12; Ord. No. 2024-185, § 1, 12-3-24)

Sec. 54-269. Design Review Board created; composition, appointment and terms of members.

- a. A Design Review Board is hereby established. Such board shall consist of seven (7) board members and two (2) alternates who do not hold any other public office or position in the City of Charleston and are appointed by City Council. Board members shall be citizens of the City of Charleston, with the exception of the professions required by this ordinance who may be non-citizen owners, principals, or employees of a business within the City of Charleston. These members and alternates shall have a demonstrated interest in, and a competence and knowledge of architecture, landscape architecture and urban design. The Board shall include four (4) design professionals including at least one (1) registered architect, one registered landscape architect, one (1) professional engineer, and one (1) realtor/development professional and a layperson. The board shall elect one of its members as chairman, who shall serve for one year or until he/she is re-elected or his/her successor is elected and qualified. The board shall adopt rules of procedure.
- b. Board members and alternates shall serve staggered terms of four (4) years or until their successors are appointed as described in the Code of the City of Charleston Sec. 2-152. No member shall serve more than two successive four-year terms. An appointment to fill a vacancy shall be only for the unexpired portion of the term.

- c. Alternate members, when seated, have all the powers and duties of regular members. Alternate members may always attend meetings but shall only participate in Board deliberations and debate, make motions and vote in the absence or voting disqualification of a regular member or the vacancy of a regular member's seat.
(Ord. No. 2011-45, § 1, 6-21-11; Ord. No. 2013-49, § 2, 5-14-13; Ord. No. 2022-009, § 1, 1-25-22; Ord. No. 2023-206, § 1, 10-10-23)

Sec. 54-270. Board meetings.

Meetings of the Design Review Board shall be held at the call of the chairman and at such other times as the board may determine. The chairman or, in his or her absence, the acting chairman, may administer oaths and compel the attendance of witnesses by subpoena. The board shall keep minutes of its proceedings, showing the vote of each member upon each question, or if absent or failing to vote, indicating that fact, and shall keep records of its examinations and other official actions, all of which immediately must be filed in the office of the board and must be a public record.

(Ord. No. 2011-45, § 1, 6-21-11)

Sec. 54-271. Appeals.**a. Appeal to the Design Review Board.**

1. Any person aggrieved, may appeal from any decision of the administrative officer to the Board. The appeal must be taken within a reasonable time, as provided by the rules of the board by filing with the Urban Design and Preservation Division notice of appeal specifying the grounds of it. The administrative officer from whom the appeal is taken immediately shall transmit to the board all the papers constituting the record upon which the action appealed from was taken.
2. An appeal stays all legal proceedings in furtherance of the action appealed from, unless the administrative officer from whom the appeal is taken certifies to the board, after the notice of appeal has been filed with him, that by reason of facts stated in the certificate a stay would, in his opinion, cause imminent peril to life and property. In that case, proceedings may not be stayed otherwise than by a restraining order which may be granted by the board or by a court of record on application, on notice to the administrative officer from whom the appeal is taken, and on due cause shown.
3. The board shall fix a reasonable time for the hearing of the appeal or other matter referred to it, and give public notice of it, as well as due notice to the parties in interest, and decide the same within a reasonable time. At the hearing any party may appear in person or by agent or by attorney.

- b. Appeal from board to circuit court. A person who may have a substantial interest in any decision of the Design Review Board may appeal from any decision of the board to the circuit court in and for the county by filing with the clerk of court a petition in writing setting forth plainly, fully, and distinctly why the decision is contrary to law. The appeal must be filed within thirty days after the affected party receives actual notice of the decision of the Design Review Board.

(Ord. No. 2011-45, § 1, 6-21-11)

Sec. 54-272. Design review standards.

- a. The following standards shall be utilized by the board and the administrative officer in reviewing the plans, drawings, sketches and other documents required under Section

54-273. These standards are intended to provide a frame of reference for the applicant in the development of site and building plans as well as a method of review for the board and the administrative officer. These standards shall not be regarded as inflexible requirements. They are not intended to discourage creativity, invention, or innovation. The specification of one or more particular architectural styles is not included in these standards. These standards are not intended to affect the use of property or any by right entitlement of applicable zoning regulations, with the exception of the siting of development.

1. Building features and appearance. The shape, configuration, design, color, and types of material of proposed buildings, and/or alterations and additions to existing buildings, must establish an identifiable character for the development and not detract from neighboring properties. To this end, all elevations of a building must be in harmony one with another in terms of scale, proportion, detail, material, color, and design quality, and all buildings and accessory structures within a proposed development, including gasoline canopies, must be designed to create a harmonious whole. The use of loud, garish colors must be avoided except when the use of colors so characterized is essential for creating a successful design which complies with all other standards.

Structures shall not dominate, in an incompatible way, any general development or adjacent building which is substantially in compliance with this article. This may be accomplished by the use of proper site design, architectural features, and/or landscaping to reduce the appearance of excessive and inappropriate height or mass of proposed structures. Long, monotonous facade designs including, but not limited to those characterized by unrelieved repetition of shape or form or by unbroken extension of line shall be avoided. Excessive ornamentation shall be avoided to prevent visual clutter.

2. Site design. The relationship of structures to their environment, and the location and design of driveways, parking, and circulation areas shall be given special consideration. Proposed structures shall be sited to relate harmoniously to the terrain and to existing structures in the vicinity that have a visual relationship to the proposed structures. The achievement of such relationship may include the enclosure of space in conjunction with other existing buildings or other proposed buildings, and the creation of focal points with respect to avenues of approach, terrain features, or other buildings. With respect to vehicular and pedestrian circulation, including walkways, interior drives, and parking, special attention shall be given to location and number of access points, general interior circulation, separation of pedestrian and vehicular traffic, and arrangement of parking areas that are safe and convenient and, in so far as practicable, do not detract from the design of proposed buildings and structures and the neighboring properties.
3. Utility service. Whenever feasible, on-site electric, telephone, and other utility lines shall be underground. Any utility installations remaining above ground shall be located so as to have a harmonious relation to neighboring properties and the site.

4. Special features and accessory structures. Exposed storage areas, exposed machinery installations, service areas, truck loading areas, utility buildings, and structures and similar accessory areas and structures shall be subject to such design standards, setbacks, screen plantings, or other screening methods as shall reasonably be required to prevent their being incongruous with the existing or contemplated environment and the surrounding properties.
 5. Signs. The shape, configuration, location, design, color, texture, lighting and materials of all exterior signs and outdoor advertising structures or features should not detract from the design of proposed or existing buildings and structures and the surrounding properties.
 6. Application of design standards. The standards of review outlined in 54-27.2 a.1. through 5., shall also apply to all accessory buildings, structures, exterior signs and other site features, however related to the major buildings or structures.
 7. In reviewing a proposed structure, specific consideration shall be given to its compatibility with adjacent structures where such structures are substantially in compliance with 54-27.2 a.1. through 5.
 8. Application of Board policy statements. All design policy statements formally adopted by the Board shall be applied in reviewing the plans, drawings, sketches and other documents required under Section 54-273.
- b. Neither the Board nor the administrative officer shall have the authority to waive or modify the site development requirements of this ordinance, or the requirements of any other applicable city ordinance.
 - c. Review authority granted by this ordinance shall only apply to exterior elements of developments.
- (Ord. No. 2011-45, § 1, 6-21-11)

Sec. 54-273. Application and review procedures.

The procedures outlined below are to be followed for all projects seeking approval by the Board or administrative officer. Submittals must be complete and shall be received by the Department of Planning and Preservation, or its successor department, in accordance with the published schedule of deadlines and meeting dates and submittal requirements.

- a. A pre-design conference with the administrative officer is required prior to an applicant making application for conceptual approval by the Board or administrative officer.
- b. At any time during the administrative review process, review of the project may be transferred to the Board at the discretion of the administrative officer.
- c. Conceptual plan review. Materials listed below shall be submitted to the Urban Design and Preservation Division for all projects:
 1. Completed application form and fee;

2. Five (5) copies of a streetscape elevation depicting the proposed structure(s) in context with existing building(s) adjacent to the property lines;
 3. Five (5) copies of a conceptual site plan including the following:
 - a) Proposed footprint of the building(s);
 - b) Existing building(s) adjacent to the property lines;
 - c) Location of parking area(s);
 - d) Schematic landscape plan including all landscape buffers, parking lot tree islands, and tree survey as required by the zoning ordinance;
 - e) Building setbacks as required by the zoning ordinance;
 - f) Parcel boundaries (all property lines shown);
 4. Five (5) copies of building elevations for all sides of the building(s);
 5. Photographs of site and adjoining properties.
 6. Contextual model showing new building(s) in existing environment if required by the Board or the administrative officer.
- d. Preliminary plan review. Materials listed below shall be submitted to the Urban Design and Preservation Division for all projects:
1. All information as described below in paragraph e., items 1 thru 8.
- e. Final plan review. Materials listed below shall be submitted to the Urban Design and Preservation Division for all projects:
1. Completed application form;
 2. Five (5) copies of a dimensioned site plan including the following:
 - a) Proposed footprint of the building(s);
 - b) Existing building(s) adjacent to the property lines;
 - c) Location of all parking areas, parking lot islands, driveways, sidewalks, loading areas, walls/fences, utilities, site lighting, drainage, site signage, at grade mechanical units, dumpsters, and all other site improvements;
 - d) Building setbacks as required by the zoning ordinance
 - e) Parcel boundaries (all property lines shall be shown).
 3. Five (5) copies of a landscape plan including planting details, plant schedule, street trees, foundation plantings, all landscape buffers, parking lot trees, and existing trees to remain;
 4. Five (5) copies of dimensioned floor plans depicting the arrangement of the interior spaces, location of windows and doors, mechanical equipment, electrical meter and utility location(s). First floor plans shall show the relationship between the first floor and the site;

5. Five (5) copies of dimensioned building elevations for all sides of the building(s) showing design of all elevations, existing grade, proposed grade, finish floor elevations, roof slopes, mechanical vents and equipment, location and type of outdoor light fixtures, design and location of all wall sign(s), and notations regarding exterior colors and materials;
 6. Five (5) copies of typical wall section(s) with information as described above in item 5;
 7. Materials specification outline with samples, brochures and/or photographs of all exterior building and site materials, finishes and fixtures;
 8. Contextual model showing new building(s) in existing environment if required by the Board or the administrative officer.
 9. Five (5) copies of all final construction details for building(s), walls/fences, signs and any other improvements.
- f. Sign submission requirements. Applications for sign permits shall receive final approval by the administrative officer. The materials listed below shall be submitted to the Urban Design and Preservation Division for permits:
1. Completed Sign Application form and fee;
 2. Two site plans drawn to scale, indicating sign location and all existing improvements on property. For freestanding signs and billboards a landscape plan showing exact location and plant types shall be included on the site plan.
 3. Two drawings of the proposed sign, lettering and graphics, drawn to scale of at least one-quarter inch to the foot including any support structure. Colors of the proposed sign shall be indicated on the drawing, and actual color samples shall also be furnished. Any proposed illumination techniques shall be indicated on the drawing.
 4. Color photographs of the existing site, including the area of the sign location, other signage, and the building elevations.
- (Ord. No. 2011-45, § 1, 6-21-11; Ord. No. 2022-009, § 2, 1-25-22; Ord. No. 2025-086, § 1, 6-17-25)

PART 12
GATHERING PLACE (GP) DISTRICT*

Sec. 54-274. Purpose.

This district authorizes mixed-use town, village, and neighborhood centers around the city at major intersections or along traditional commercial streets around the city. Diverse housing, mixed-use, and pedestrian-oriented development are permitted in the district to allow for a variety of housing types to address housing needs, to create concentrations of housing and services at locations accessible by public transportation and to facilitate an environment conducive to walking.

Gathering Place District is for suburban locations where there is undeveloped acreage of at least eighty (80) acres, or for redevelopment sites of at least three (3) acres, as designated for Gathering Places in the City's Comprehensive Plan.

(Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-275. Definitions.

For purposes hereof, the following words have the following meanings:

Pavement width. That portion of a street devoted exclusively to the operation of motorized vehicles. Specifically excluded are on-street parking spaces, sidewalks and landscaped areas.

Building frontage. The width of a building along a street, including parallel walls or fences, but excluding roof overhang and canopies, and any ornamental features that cause a protrusion from the walls of the building. Building frontage shall be measured as the combined width of the building faces that front the street and lie within setback limits. When the width of the building varies vertically, building frontage shall be measured at ground level.

Frontage line. The part of a lot abutting with the right-of-way of an adjacent street.

Street. The entire width between boundary lines of every way, including sidewalks, used for purposes of vehicular traffic to include any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, bridge and approaches thereto. "Street" shall also mean any private way, road, highway, street, avenue, boulevard, parkway, alley, lane, bridge, and approaches thereto, as well as any private way or area within a shopping center, office park or other non-residential development, including sidewalks, that is designed or intended for the passage of vehicular traffic.

(Ord. No. 2005-603, § 1, 10-18-05)

***Editor's note**—Ord. No. 2005-603, § 1, adopted Oct. 18, 2005, repealed former Pt. 12, §§ 54-274—54-285, in its entirety and enacted new provisions as herein set out. Former Pt. 12 pertained to similar subject matter and derived from Ord. No. 2003-69, Exh. A, adopted Aug. 19, 2003.

Sec. 54-276. Permitted uses.

See Article 2, Part 3: Table of Permitted Uses.
(Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-277. Density and lot size.

Within the Gathering Place District, there are no maximum density or minimum lot size requirements.
(Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-278. Block length.

No block face within a Gathering Place District shall exceed 400' in length without another street providing through access. This length can be extended to 600' where a mid-block pedestrian path is provided to connect through the entire block.
(Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-279. Street connectivity.

Streets in the Gathering Place District must connect to other streets within the District and to adjoining neighborhoods. Cul-de-sacs, T-turnarounds and dead-end streets are not permitted in a Gathering Place District unless unavoidable due to physical constraints of the site or an adjoining site.

In the event of unavoidable physical constraints, a modified cul-de-sac may be used if it does not exceed 600 feet in length and meets one of the following criteria:

1. It incorporates an alternative design feature at the center of the turn-around, such as a natural area with existing trees, a landscaped space, or a park area with amenities, the size of which must at least equal the square footage of pavement within the turn-around area.
2. A pedestrian access area to the marsh front, waterfront or other physical feature that necessitates the cul-de-sac, the area of which must be at least equal to the square footage of the turn-around.

Gated streets are not permitted in a Gathering Place District.
(Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-280. Thoroughfare classifications and right-of-way design standards.

- a. Within the Gathering Place District, a thoroughfare is defined as a vehicular way incorporating moving lanes and parking lanes within a right-of-way. Thoroughfares shall be designed in context with the Gathering Place District development for which they will be incorporated based on geography, infrastructure, proposed land use and density.

- b. Thoroughfares are identified according to the following definitions and hierarchy, which are only applicable within the boundaries of a Gathering Place District.

Type 1 GP Commercial Street	This thoroughfare is, by definition, a Commercial Street, with moderate vehicular speed [20 to 25 mph] and high vehicular and pedestrian traffic volumes. Adjoining uses are mixed, with no residential uses on the street level floors of buildings. Pedestrian-oriented design, including sidewalks and bicycle route designation, is essential on these streets to assure their being safe, convenient, and enjoyable for walking. Walking is a primary function of Thoroughfare Type 1, the Commercial Street.
Type 2 GP Mixed-Use Street	This thoroughfare is labeled a Street and has moderate vehicular speed [20 to 25 mph] and high vehicular and pedestrian traffic volumes. Adjoining uses are mixed. Pedestrian-oriented design, such as sidewalks, is essential on these streets to assure their being safe, convenient, and enjoyable for walking. Walking is a primary function of Type 2 Thoroughfare, the Street.
Type 3 GP Small Street	This is a thoroughfare defined as a Small Street having lower vehicular speeds [20 mph] and moderate volume of both vehicular and pedestrian traffic. Pedestrian-oriented design, such as sidewalks and walking trails, is essential on these streets to assure their being safe, convenient, and enjoyable for walking. Walking is a primary function of the Small Street, Type 3 thoroughfare.
Type 4 GP One Way Street	This is a thoroughfare defined as a One Way Street that carries vehicle traffic in one direction. Pedestrian-oriented design, such as sidewalks and walking trails, is essential on these streets to assure their being safe, convenient, and enjoyable for walking and to fulfill their pedestrian function.
Type 5 GP Road	This is a local, rural and/or suburban thoroughfare defined as a Road and having lower vehicular speeds [20 mph]. It does not include curb/gutter and sidewalks as a Road is intended for uses where off-street paths exist or the streets themselves are used to satisfy the pedestrian travel function. The Road, a Type 5 thoroughfare, incorporates swales for stormwater management. The Type 5 Road thoroughfare is intended for more rural areas and environmentally sensitive areas.
Type 6 GP Alley	This thoroughfare, defined as an Alley, provides rear access to building lots for service access, parking access and utility easements. This Type 6 thoroughfare, functions as both pedestrian and vehicular accessway.

Type 7 GP Avenue	This thoroughfare Type 7, defined as an Avenue, is designed to accommodate predominantly vehicular traffic. Type 7 Avenues can function as connectors between Gathering Place Districts and other urban developments and become collectors upon exiting urban centers.
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- c. Gathering Place thoroughfares shall be designed according to the minimum design requirements found in Table 12-1.

TABLE 12-1: THOROUGHFARE AND RIGHT-OF-WAY DESIGN REQUIREMENTS

Thoroughfare Type	R-O-W ¹	Travel Lanes ²	On-street Parking ³	Curb	Curb Radii ⁴	Street Trees (2 sides) ⁵	Street tree Spacing ⁵	Sidewalks	Bicycle Travel ⁶
Type 1 GP Commercial Street	62' min.	Two-ways 11' min. travel lane	7' (2 sides)	Vert.	15'	Tree Well (24 sq ft) or Plant- ing Strip (5 ft. min. width)	20'—40'	8' min. (2 sides)	optional
Type 2 GP Mixed-Use Street	60' min.	Two-ways 10' min. travel lane	7' (2 sides)	Vert.	15'	Tree Well (24 sq ft) or Plant- ing Strip (5 ft. min. width)	20'—40'	8' min. (2 sides)	optional
Type 3 GP Small Street	55' min.	Two-ways 10' min. travel lane	7' (1 side)	Vert.	15'	Tree Well (24 sq ft) or Plant- ing Strip (4 ft. min. width)	30'—50'	5' min. (2 sides)	optional
Type 4 GP One Way Street	38' one-way	One-way 11' min. travel lane	7' (1 side)	Vert.	15'	Tree Well (24 sq ft) or Plant- ing Strip (4 ft. min. width)	30'—50'	5' min. (2 sides)	optional
Type 5 GP Road	30' + min. (depending on swale)	Two-ways 10' min. travel lane	n/a	n/a	n/a	optional	n/a	optional	optional
Type 6 GP Alley	20' min.	One-way 12' min. travel lane	n/a	n/a	25'	n/a	n/a	optional	n/a
Type 7 GP Avenue	46' min.	Two-ways 10' min. travel lane	n/a	n/a	15'	Planting Strip (5 ft. min. width)	50'	n/a	8' min. path (2 sides)

1. *Right-Of-Way Design Modifications*—Right-of-way narrowing devices including, but not limited to, curb extensions, bulbouts, neckdowns and corner bulges shall not be permitted unless approved by the Design Review Committee. Minimum right-of-way width may need to be increased to accommodate utilities. Thoroughfare types may be incorporated into a divided right-of-way design provided that the center median includes street trees and has a minimum width of 10' (width may include curb).
2. *Travel Lanes*—Travel lane width is designed for low to moderate vehicular speeds (25 MPH or less); higher vehicular speeds may require design modifications. Travel lane width is inclusive of the gutter and up to the face of the curb.

3. *On-Street Parking*—On-street parking may exist on both sides of Type 1, 2, 3 and 4 streets. On-street parking width is inclusive of the gutter and up to the face of the curb. For thoroughfares with high levels of parking usage and parking turnover (i.e. Type 1 GP Commercial Street) on-street parking lanes shall be increased to 8 feet.
4. *Curb Radii*—Curb radii are applicable to the face of curb and apply to street intersections, not driveway intersections. Curb radii are designed for low vehicular speeds; higher vehicular speeds may require design modifications. Rear alley intersection may incorporate a "driveway" intersection design rather than a curbed street design if approved by the Department of Public Service.
5. *Street Trees*—Street tree spacing may vary depending on tree species and development infrastructure. Street tree spacing shall be reviewed and approved by the Department of Parks at construction plan submittal. Street trees shall be installed prior to final plat approval and recordation. Tree wells are encouraged on the Type 1 GP Commercial Street.
6. *Bicycle Travel*—The Gathering Place District should provide opportunities for bicycle travel. A bicycle path is an independent bicycle way that is to be provided off-street and outside of the vehicular thoroughfare. A bicycle route shall be provided within the vehicular thoroughfare where suitable for shared use of bicycles and vehicles traveling at low speeds and may be indicated with the use of "sharrows". A bicycle lane is a dedicated marked lane with a moderate-speed vehicular thoroughfare. (See Figure 280:2)

- d. Thoroughfare Design Flexibility. Gathering Place thoroughfare design standards may be modified to accommodate unique design elements that are project-specific provided that such modifications are made part of the official concept plan and are approved by the Planning Commission. The concept plan must show the proposed layout and corresponding right-of-way cross sections. Modified design standards shall not compromise thoroughfare right-of-way safety or function and must be able to provide appropriate locations for utilities. Modified design standards shall accommodate all required right-of-way components, shall provide appropriate pedestrian and vehicle mobility options and shall be designed to support adjacent future development.

(Ord. No. 2005-603, § 1, 10-18-05; Ord. No. 2007-156, § 1, 8-21-07)

Sec. 54-281a. Type 1 streets.

The following streets within the City of Charleston are designated as Type 1 streets:

Clements Ferry Road

Folly Road on James Island

Maybank Highway on James Island

Sam Rittenberg Boulevard

King Street

This Type 1 designation is applicable only for sections of these streets that are located within the boundaries of a Gathering Place District.

(Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-281b. Type 2 streets.

The following streets within the City Of Charleston are designated as Type 2 streets:

Maybank Highway on Johns Island

West Ashley Circle, as identified in the Glenn McConnell Expressway Extension Study dated February 2002, on file in the Department of Planning and Neighborhoods, to include all future cross streets as identified in said study and all existing and future roads within one thousand (1000') feet of the intersection of Glenn McConnell Parkway and Bees Ferry Road.

Folly Road in West Ashley

Albemarle Road

Savannah Highway

Wesley Drive

St. Andrews Boulevard

Old Towne Road

Ashley River Road
(Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-282. Off-street parking.

There are no requirements for off-street parking in the Gathering Place District.
(Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-283. Urban design requirements.

- a. Each building must front on a thoroughfare.
- b. Setback and height. Design requirements within the Gathering Place District are based upon the type of street a lot or building area abuts. Setback and height requirements, per thoroughfare type, are as follows:

Thoroughfare Type	Setback ⁵	Height ^{1, 4}	Frontage Ratio ²
Type 1 GP Commercial Street	0—5`	30` and 2 story min. ³ 65` or 6 story max.	85% min.
Type 2 GP Mixed-Use Street	0—5`	55` max. 65` max. for unoccupied architectural features or 4 story max., whichever is shorter	85% min.
Type 3 GP Small Street	0—10`	3½ stories	70% min.
Type 4 GP One Way Street	0—10`	3½ stories	70% min.
Type 5 GP Road	0—20`	35` max.	n/a
Type 6 GP Alley	n/a	35` max.	n/a
Type 7 GP Avenue	25` min.	65` max.	n/a

1. The maximum height granted for properties in a FEMA flood zone shall be the height allowed per street type measured from base flood elevation, provided that the area below base flood elevation is floodproofed in nonresidential buildings. Ground floor parking shall count as a story.
2. The Frontage Ratio is the amount of building frontage as a proportion of the front property line. Utility easements, required buffers, grand trees (including grand tree protective zones), driveways and sidewalks shall be excluded from the building frontage ratio calculations.
3. All buildings fronting a Type 1 or Type 2 street must have a minimum of two occupied floors.

4. For those Gathering Place developments located within an Old City Height District, the maximum and minimum requirements for the Old City Height District shall apply instead of the maximum height requirements in this section.
5. Building setbacks shall be measured from the street right-of-way. Buildings, including attached units in a continuous row, may be sited outside the required setbacks, where necessary, for the preservation of natural features and grand trees (including grand tree protective zones) subject to approval by the Zoning Administrator.

(Ord. No. 2005-603, § 1, 10-18-05; Ord. No. 2007-156, § 2, 8-21-07)

Sec. 54-284. Parks and open space.

Gathering Places shall include open space for community use, which must constitute a minimum of 10% of the gross acreage of the gathering place. The following parks and open space types are permitted within Gathering Places:

Neighborhood Greens—Open green spaces intended to serve as the social center of the community and provide a location for civic activities and outdoor community functions. Neighborhood greens shall:

- Be predominantly planted areas, but may have some paved surfaces;
- Be a minimum of 20,000 square feet; and
- Be centrally located within the gathering place.

Plazas/Squares—Enclosed spaces that are urban in nature and designed to serve as meeting places for area residents and workers. Plazas and squares shall:

- Be predominantly paved surfaces, but may have some planted areas;
- Include pedestrian lighting and pedestrian-level details, such as variations in paving types;
- Be landscaped and incorporate amenities such as benches, fountains, monuments, and formal or informal gardens;
- Be a minimum area of 1,000 square feet;
- Be located within denser, more urban areas of the gathering place, either at the intersection of streets or within a developed block;
- Be mostly enclosed by building frontages;

Neighborhood Parks—Large open areas designed to provide recreational facilities and spaces for the entire gathering place, or smaller green spaces designed to serve smaller areas within the gathering place. These parks may be designed as part of a Neighborhood Green, and shall:

- Contain grassy fields, playground equipment, designated sports facilities, or picnic areas;

- Be landscaped throughout;
 - Be designed for active and passive recreational purposes;
 - Be a minimum area of 40,000 square feet;
 - Be directly connected to any bicycle and pedestrian network
- (Ord. No. 2005-603, § 1, 10-18-05)

Sec. 54-285. Site plans.

In addition to the information as may be required by Article 6 of this chapter, site plans for properties zoned Gathering Place shall include the following:

Street Types: Each street on a site plan must be assigned a street type.

Uses: A range of uses shall be specified for each lot or building area of a site plan.

Park/Open Space Types: All parks and open space must be identified as to type and location, and the dimensions of each must be delineated.

(Ord. No. 2005-603, § 1, 10-18-05)

PART 13
NEIGHBORHOOD DISTRICT*

Sec. 54-286. Purpose.

This district authorizes neighborhoods that include a mix of uses to facilitate locating neighborhood services and workplaces in proximity to the primary users thereof. The district is intended to allow and encourage a variety of residential uses and to promote alternative modes of transportation by requiring interconnected street networks and pedestrian oriented designed streets. Density in the district is governed by location, if the district constitutes the base zoning of a property, and by the base zoning of a property, as applicable. (Ord. No. 2007-213, § 1, 11-20-07)

Sec. 54-287. Applicability and minimum neighborhood size.

The Neighborhood District regulations shall apply to any undeveloped conservation, residentially or commercially zoned parcels that meet the minimum size requirements as set forth herein, and any parcels developed under Neighborhood District regulations. Each neighborhood shall be a minimum of thirty (30) net acres to include, outdoor space, streets and building lots, but excluding submerged land, jurisdictional freshwater wetlands and saltwater marsh. Parcels between ten (10) net acres and thirty (30) net acres may be developed as a Neighborhood District if the proposed property is physically connected and adjacent to an existing Neighborhood District. (Ord. No. 2007-213, § 1, 11-20-07)

Sec. 54-288. Approval of Neighborhood District plans and plats.

Properties developed using Neighborhood District regulations shall be subdivided in accordance with a plan which covers the entire Neighborhood District area and has been granted concept plan approval by the Planning Commission. Concept plan approval is required prior to the approval of any subdivision plat or adjustment of property lines of land to be developed using Neighborhood District regulations. Each Neighborhood District plan and plat shall be submitted and approved in accordance with the subdivision review procedures in Section 54-808 and shall meet all standards prescribed in this Part 13 and applicable standards in Article 8. In addition, subdivision plans and plats for Neighborhood District uses shall include the following:

- a. Street types: Types 1—6 (Section 54-821)—Each street on a plat and/or plan must be assigned a street type and every plat must include at least three (3) types of streets.
- b. Land uses: (Section 54-289)—Each lot must be assigned a specific use.

***Editor's note**—Ord. No. 2007-213, § 1, repealed former Part 13, §§ 54-286—54-295, in its entirety and enacted new provisions as herein set out. Former Part 13 pertained to similar subject matter and derived from Ord. No. 2004-77, § 1, 8-17-04; Ord. No. 2006-397, §§ 2—8, 9-12-06; Ord. No. 2007-79, § 1, 4-10-07

- c. Outdoor space types: (Section 54-294)—All outdoor space must be identified as to type and the dimensions of each must be delineated. Neighborhoods over fifteen (15) acres must incorporate more than one type of outdoor space.
 - d. Density distribution: (Section 54-290)—The plat must specify the location and types of density allocated in the neighborhood. The location and boundaries of any Neighborhood Centers must be delineated.
 - e. Phase Lines: The concept plan must show proposed development phase lines.
- (Ord. No. 2007-213, § 1, 11-20-07; Ord. No. 2012-370, § 1, 9-11-12)

Sec. 54-289. Density.

- a. As described in Section 54-286, this district is intended to promote mixed-use neighborhoods that provide a variety of housing options. Within the Neighborhood District, there are no minimum lot size requirements. Neighborhood density is based on net acreage and is allocated along a continuum, from more dense to less dense, depending on location:

Higher Density

Adjacent or close to gathering place

Has access to public transportation

Lower Density

Adjacent or close to rural boundary line

Located on two-lane highway

- b. In base zoning districts, Neighborhood District densities are applied:

<i>Neighborhood District Code</i>	<i>Neighborhood-Wide Density</i>	<i>Existing Zoning Districts the Neighborhood District Matches Up With</i>
N-1	Up to 1 unit per acre	SR-7 and C (Conservation)
N-2	Up to 5 units per acre	RR-1, SR-1, and SR-8
N-3	Up to 7 units per acre	SR-2, SR-3, DR-3, DR-6, RO, and GO
N-4	Up to 9 units per acre	SR-4, SR-6, STR, and DR-9
N-5	Up to 20 units per acre	SR-5, DR-1, DR-1F, DR-2, DR-2F, DR-12, CT, and LB
N-6	20 + units per acre	DR-4, GB and UC

- c. Density distribution within a Neighborhood District: Each neighborhood shall have at least one center and an edge. A center is that part of the Neighborhood District where mixed uses are concentrated. Mixed-use centers must contain residential units and density shall be higher in the centers and less at the edges of the neighborhood. Centers are not necessarily located in the middle of the neighborhood, but shall be sited to

maximize the accessibility thereto by residents of the neighborhood and other intended users. Centers must abut Type 1 streets. The Neighborhood District Concept Plan must demonstrate the proposed density continuum.

(Ord. No. 2007-213, § 1, 11-20-07)

Sec. 54-290. Land uses.

The following are general descriptions of permitted uses in the Neighborhood District and the required allocation of uses, based on net acreage, in a neighborhood. Permitted uses shall be those uses listed under Article 2, Part 3, Table of Permitted Uses for the base zoning district of the property or, as to properties zoned Neighborhood District, uses permitted shall be those listed under the Table for the base zoning district that corresponds to the Neighborhood District density as set forth in Section 54-288 or as listed herein.

<i>Type</i>	<i>Uses Permitted</i>	<i>Allocation per Neighborhood</i>
Mixed-use (MU)	Residential, home occupations, live/work units, retail, office, civic and institutional.*	2% min.—20% max.
Multi-family (MF) (five (5) or more units in one building)	Residential, home occupations	40% max.
Single family detached on small lots having 40 feet of frontage or less, single family attached, duplexes, triplexes and quadplexes (R-1)	Residential, home occupations	10% min.— 60% max.
Single Family Detached (R-2)	Residential, home occupations	10% min.—80% max.

*Retail, office, and institutional mixed-uses permitted per the following Standard Industrial Category (SIC) codes:

01	(Agricultural production—Crop);
0781	(Landscape counseling and planning);
448	(Water taxis);
4493	(Marinas);
525	(Hardware stores);
526	(Retail nurseries, lawn and garden supply stores);
54	(Food stores);
56	(Apparel and accessory stores);

- 57 (Furniture, home furnishings and equipment stores);
- 58 (Eating and drinking places - without drive thru);
- 59 (Miscellaneous retail);
- 60 Depository institutions);
- 61 (Nondepository credit institutions);
- 62 (Security and commodity brokers, dealers, exchanges, and Services);
- 63 (Insurance carriers);
- 64 (Insurance agents, brokers and service);
- 65 (Real estate);
- 7212 (Garment pressing and agents for laundries and dry cleaners);
- 7215 (Coin operated laundries and dry cleaning);
- 722 (Photographic studios, portrait);
- 723 (Beauty shops);
- 724 (Barber shops);
- 725 (Shoe repair shops, shoe shine parlors, and hat cleaning shops);
- 729 (Miscellaneous personal services, except massage parlors and spas);
- 7299 (Massage parlors, spas);
- 731 (Advertising);
- 732 (Consumer credit reporting agencies);
- 733 (Mailing, reproduction, commercial art and photography, and stenographic services);
- 737 (Computer and data processing services);
- 763 (Watch, clock, and jewelry repair);
- 784 (Video tape rental);
- 791 (Dance studios and schools);
- 793 (Bowling alleys and billiard and pool establishments);
- 801 (Offices and clinics of health practitioners);
- 805 (Nursing and personal care facilities);
- 81 (Legal services);
- 82 (Educational services);
- 83 (Social services);
- 84 (Museums, art galleries, botanical and zoological Gardens);
- 86 (Membership organizations);
- 87 (Miscellaneous services);
- 91 (General government not elsewhere classified); and
- 92 (Justice, public order, and safety).

(Ord. No. 2007-213, § 1, 11-20-07; Ord. No. 2012-370, §§ 2, 3, 9-11-12)

Sec. 54-291. Reserved.

Sec. 54-292. Block length.

No side of a proposed block, measured from right-of-way boundary to right-of-way boundary, within a Neighborhood District shall exceed six hundred (600) feet in length without another

street providing through access to another street. This length may be extended to a maximum of eight hundred (800) feet provided a through-block pedestrian accessway is provided. Through-block pedestrian accessways shall be a minimum fifteen (15) feet wide with a ten-foot-wide minimum surfaced path and shall be located in the center of the block or in the most practical location to facilitate pedestrian circulation within the neighborhood or to provide access to special neighborhood features. Pedestrian accessways shall be owned and maintained by an association formed for that purpose. A block may exceed the maximum length if the block incorporates existing natural features such as freshwater wetlands, marsh, OCRM critical area, or bodies of water.

(Ord. No. 2007-213, § 1, 11-20-07)

Sec. 54-293. Street connectivity, classifications and design standards.

- a. See Section 54-821.
- b. Neighborhood District streets may be public or private. However, justification for creating private streets shall be provided in writing and private covenants and restrictions shall be provided guaranteeing the long-term private ownership and maintenance of such streets.
- c. Street design flexibility— Neighborhood District street design standards may be modified to accommodate unique design elements that are project-specific provided that such modifications are made part of the official concept plan and are approved by the Planning Commission. The concept plan must show the proposed layout and corresponding right-of-way cross sections. Modified design standards shall not compromise thoroughfare right-of-way safety or function and must be able to provide appropriate locations for utilities. Modified design standards shall accommodate all required right-of-way components, shall provide appropriate pedestrian and vehicle mobility options and shall be designed to support adjacent future development.

(Ord. No. 2007-213, § 1, 11-20-07)

Sec. 54-294. Urban design requirements.

- a. Each building must front on a Neighborhood District street or outdoor space.
- b. Building frontage requirements. Buildings shall be designed appropriately to address the corresponding neighborhood street type(s), outdoor space and neighborhood land use type. Buildings must front on a public street or outdoor space. Building frontage is the side of the building parallel to, or most closely parallel to the front property line. Neighborhood centers should be defined by building frontages, screen walls and landscaping and not by parking lots.
- c. Build-to, height and frontage ratio requirements. There shall be no minimum requirements for side or rear setbacks with the exception that minimum building code standards must be met. Though every lot must have frontage on a neighborhood street or outdoor space, there shall be no minimum width requirement for lot frontage. There shall also be no maximum lot occupancy requirement. Front build-to, height and

frontage ratio requirements of the Neighborhood District are based on the type of street a lot abuts. Front build-to, height and frontage ratio requirements, per street type, are:

<i>Street Type</i>	<i>Front Build-To Zone¹</i>	<i>Height²</i>	<i>Frontage Ratio³</i>
Type 1	0—5`	50` max.	90% min.
Type 2	0—25`	3½ stories	60% min.
Type 3	0—25`	3½ stories	60% min.
Type 4	n/a	3½ stories	n/a
Type 5	5`	3½ stories	n/a
Type 6	25` min.	3 ½ stories	n/a

1. The front build-to zone is the area inside and across the lot measured from the front property line within which the building frontage must be placed. Building frontages may be placed anywhere within the front build-to zone. Buildings, including attached units in a continuous row, may be sited outside the required build-to zone, where necessary, for the preservation of natural features and grand trees (including grand tree protective zones) subject to approval by the Zoning Administrator. Utility easements shall not be permitted within the front build-to zone of lots fronting on Type 1 Streets.
 2. The maximum height permitted for properties in a FEMA flood zone shall be the height allowed per street type measured from base flood elevation, provided the area below base flood elevation is floodproofed in nonresidential buildings. Ground floor parking shall count as a story.
 3. The frontage ratio is the amount of building frontage as a proportion of the front line of the lot, exclusive of a front-loaded garage. Utility easements, side setbacks (maximum 12 feet for residential lots) for driveways, required buffers and grand trees (including grand tree protective zones) shall be excluded from the building frontage ratio calculations.
- d. Corner lot requirements. On corner lots within the Neighborhood District mixed-use center(s), the building frontages shall be at least ninety (90) percent of the frontage on the primary street and no less twenty-five (25) percent on the secondary street with the remainder of the frontage on the secondary street being occupied by an appropriate screen wall. Fences or walls three (3) feet six (6) inches to six (6) feet zero (0) inches may count as building frontage, not to exceed twenty (20) percent of the building frontage ratio. On corner lots, the abutting building frontages must extend to the corner or have a corner entrance. Corner lots in areas other than the Neighborhood District center(s) shall not be required to meet building frontage requirements on the secondary street.
- e. Driveway and alley requirements. The maximum driveway width for residential lots shall be ten (10) feet within the front ten (10) feet of a lot. Alleys are required for parking access to single-family detached units on lots having forty (40) feet of lot

frontage or less, and on all, single-family attached, duplexes, triplexes, and quadplexes. However, to encourage a mixture of residential building types on a Neighborhood District street the following exception may be allowed:

- When no more than three (3) lots with one of the aforementioned building types are planned in a block, the lots may be accessed by an 11-foot driveway instead of an alley. Lots with one duplex building may have two (2) driveways. Common parking areas for single-family attached, duplexes, triplexes and quadplexes shall be located behind the building(s).
- f. Parking requirements. There shall be no minimum parking requirements for residential uses in the Neighborhood District. All other uses in the Neighborhood District shall meet all parking requirements per Section 54-315 through Section 54-320 with the exception that up to twenty-five (25) percent of the required parking for multi-family residential or mixed uses may be non-hard surfaced utilizing slag, gravel, ROC, grasscrete or similar pervious material, subject to site plan approval. One hundred (100) percent of the required parking for designated outdoor spaces and amenity areas may be non-hard surfaced utilizing slag, gravel, ROC, grasscrete or similar pervious material, subject to site plan approval.
- g. Lots fronting on outdoor space. Lots and buildings shall be permitted to have frontage on a defined outdoor space instead of a defined street type provided that the following requirements are satisfied:
- The lots shall be accessed from the rear by a Type 5 street (alley).
 - The required front setback, height and frontage ratio shall be met according to the street type requirements for which the defined outdoor space has frontage.
 - Physical features such as paths, fences, vegetation (i.e. shrubs or trees), etc., shall be required to delineate public outdoor space.
- (Ord. No. 2007-213, § 1, 11-20-07; Ord. No. 2012-370, §§ 4, 5, 9-11-12; Ord. No. 2012-370, § 5, 9-11-12)

Sec. 54-295. Outdoor space.

Each neighborhood must include outdoor space for neighborhood use. Outdoor space use must constitute at least twenty (20) percent of the gross acreage of each neighborhood. All outdoor space improvements and corresponding details shall be shown on construction plans and/or on TRC approved site plans and all outdoor space improvements, except for amenity centers, must be completed prior to final subdivision plat approval and recordation unless the outdoor space is to be accepted by the City of Charleston per Section 54-295(c).

- a. Outdoor space types. The following types of outdoor space are permitted:
- Neighborhood Green*—Open green space intended to serve as the social center of the neighborhood and provide a location for civic activities and outdoor community functions. Neighborhood greens shall:
- Be predominantly grassed (sodded) planted areas, but may have some paved surfaces;

- Be a minimum of 20,000 square feet;
- Be centrally located within the neighborhood.

Plazas/Squares—Enclosed spaces that are urban in nature and designed to serve as meeting places for neighborhood residents and workers. Plazas and squares shall:

- Be predominantly paved surfaces, but may have some planted areas;
- Include pedestrian lighting, as well as pedestrian-level details, such as variations in paving types;
- Be landscaped and include elements such as benches, fountains, monuments, and formal or informal gardens;
- Be a minimum of 1,000 square feet;
- Be located within denser, more urban areas of the neighborhood, either at the intersection of streets or within a developed block;
- Be fronted or surrounded by a mixture of uses that lends to pedestrian activity;
- Be predominantly enclosed by building frontages;

Neighborhood Parks—Large open areas designed to provide recreational facilities and spaces for the entire neighborhood, or smaller green spaces designed to serve smaller areas within the neighborhood. These parks may be designed as part of a neighborhood green, and shall:

- Contain grassed (sodded) fields, playground equipment, designated sports facilities (i.e. baseball field, tennis courts, soccer field, etc.) picnic areas, or amenity centers;
- Be landscaped throughout;
- Be designed for active and passive recreational purposes;
- Be a minimum of forty thousand (40,000) square feet;
- Be directly connected to a bicycle and pedestrian network;
- Include no more than fifty (50) percent of created water features that are landscaped and incorporate a pedestrian trail, bikeway or passive/active recreational amenity.

Greenways—Linear outdoor spaces that are planned, designed and managed for ecological, recreational, cultural, and aesthetic purposes. Greenways shall:

- Include either a nature trail or pedestrian/bike path. A nature trail is a path that is a minimum of six (6) feet wide and has a woodchip or gravel surface (improved, exposed earth will not be allowed). A pedestrian/bike path is a path that is a minimum of ten (10) feet wide and has a paved (asphalt, concrete, porous concrete) surface or a compacted, durable material (plantation mix, slag, ROC, rubber) surface.

- Incorporate off-street facilities for bikes and other non-motorized transportation with a surrounding natural or landscaped green space;
- Either serve to connect specific destinations within the neighborhood or provide a scenic or recreational function;
- Provide a connection to external greenways, pedestrian trails, bike path and bike lanes;
- Include no more than fifty (50) percent of created water features that are landscaped and incorporate a pedestrian trail or bikeway;
- Be a minimum twenty-five (25) wide linear swath (for usable outdoor space calculations purposes) and include a minimum nature trail or pedestrian/bike path.
- At least seventy-five (75) percent of the total linear footage of a greenway shall be in the form of a pedestrian/bike path;
- All greenway improvements must be marked where the improvement meets the public right-of-way with appropriate signage to inform the user.

Conservation Areas— Outdoor space designated specifically for the preservation of natural, undeveloped regions. Conservation areas shall:

- Serve the sole purpose of protecting unique or ecologically valuable habitats and vegetation, rather than existing simply as spaces between areas of development;
 - Be a minimum of five thousand (5,000) contiguous square feet;
 - Be comprised of no more than fifty (50) percent critical line buffer areas, freshwater wetland buffer areas, existing or created water features, or designated wetlands.
- b. Usable space requirement. Of the twenty (20) percent of gross acreage designated for outdoor space, some portion must be in the form of maintained usable space. Usable space is any outdoor space other than a conservation area. At least fifty (50) percent of the required outdoor space acreage shall be usable space, except in Neighborhoods with N-1 density, where usable space must account for at least twenty-five (25) percent of the outdoor space area.
- c. Ownership and maintenance requirements. Outdoor spaces shall be owned and maintained by an association formed for that purpose. If outdoor space location and type meet a need identified in the City of Charleston Parks and Recreation Master Plan 2012, the City and developer may consider City acceptance of a completed outdoor space, provided that:
1. The outdoor space shall be either a Neighborhood Green of at least one (1) acre or a Neighborhood Park of at least three (3) acres.
 2. The completed outdoor space shall be conveyed to the City at no cost;

3. The outdoor space shall be operated and maintained by the City as a public park;

4. The City shall be involved with the design of the outdoor space.

(Ord. No. 2007-213, § 1, 11-20-07)

PART 14

HEMMINGWOOD PLANNED UNIT DEVELOPMENT, HW-PUD DISTRICT

Sec. 54-296. Hemmingwood, HW-PUD District.

Within the HW-PUD District, land may be used and buildings erected, altered, or used pursuant to the Hemmingwood Development Guidelines (see Appendix K).

(Ord. No. 2006-187, 5-23-06)

PART 15 WORKFORCE HOUSING DISTRICTS AND OPPORTUNITY ZONES**Sec. 54-297. Findings.**

- a. City Council finds that its urban areas have traditionally included mixed use developments that incorporate housing opportunities for persons of varying means and incomes, along with complementary nonresidential uses. City Council finds that these mixed use developments have contributed significantly to the economic success and unique fabric of its urban environment by enhancing diversity and providing job opportunities, and that it is in the public interest that incentive-driven districts be established to encourage the continued development of mixed use projects.
- b. City Council finds that opportunity zones, which were added to the federal tax code by the Tax Cuts and Jobs Act (the "Act") on December 22, 2018, provide for preferential tax treatment for new investments in economically-distressed areas, including areas within the City designated as qualified opportunity zones under the procedures set forth in the Act.

(Ord. No. 2006-463, § 1, 10-17-06; Ord. No. 2019-132, § 1, 12-17-19)

Sec. 54-298. Purpose.

- a. The MU-1/WH and MU-2/WH base zoning districts are intended to promote a mixture of housing opportunities within a single development, along with appropriate nonresidential uses, by providing incentives for the creation of such developments in urban areas of the City where on street parking or other public parking is customary and can be reasonably accommodated.
- b. The creation of qualified developments in areas of the City designated as qualified opportunity zones is intended to take advantage of the Act and the economic development tools provided therein to spur economic development and job creation in distressed communities, while ensuring appropriate housing is provided in these areas.

(Ord. No. 2006-463, § 1, 10-17-06; Ord. No. 2019-132, § 1, 12-17-19)

Sec. 54-299. Availability.

- a. Except as set forth in Section 54-299.b, The MU-1/WH and MU-2/WH districts, being incentive based, are only available to owners who apply for the district designation.
- b. Subject to the terms, conditions, and restrictions set forth in this Part, notwithstanding Section. 54-299.a, any owner may apply for the incentives applicable to the MU-1/WH or MU-2/WH districts without applying for the district designation, by demonstrating to the Zoning Administrator that the proposed development on the owner's property meets all of the following criteria:
 - i. The development is funded wholly or in part by a qualified opportunity zone fund.
 - ii. The development lies wholly or in part within a designated qualified opportunity zone.

- iii. The development will occur on property lying entirely in at least one of the following base zoning districts: UC, GB, LB, CT, GO, BP, LI, or HI.
(Ord. No. 2006-463, § 1, 10-17-06; Ord. No. 2019-132, § 1, 12-17-19)

Sec. 54-299.1. Definitions.

Terms in this part shall be defined as follows:

- a. Owner occupied workforce housing unit: A dwelling unit where at least one occupant is an owner, and where all occupants have, in the aggregate, household income less than or equal to one hundred twenty (120%) percent of the area median income (AMI) for owner occupied units.
- b. Rental workforce housing unit: A dwelling unit, where occupants have, in the aggregate, household income less than or equal to eighty (80%) percent of the area median income (AMI) for rental units.
- c. Qualified household: Households where occupants have, in the aggregate, (1) a household income less than or equal to one hundred twenty (120%) percent of the area median income (AMI) for owner occupied workforce housing units; (2) a household income less than or equal to eighty (80%) percent of the area median income (AMI) for rental workforce housing units; or (3) a household income less than or equal to sixty (60%) percent of the area median income (AMI).
- d. Initial maximum allowable sales price: An amount equal to three (3) times one hundred twenty (120%) percent of AMI plus any subsidy available to the purchaser.
- e. Affordable rent: An amount equal to thirty (30%) percent of eighty (80%) percent of the annual AMI. Affordable rent for efficiency/studio units is the High HOME rents as published annually by the United States Department of Housing and Urban Development, or its successor, for the Charleston-North Charleston Metropolitan Statistical Area, as may be adjusted by the City of Charleston Department of Housing and Community Development, or their successors. In the absence of such information, the total annual rent charged by the owner shall not exceed thirty (30%) percent of the annual household income.
- f. Household income: All sources of financial support, both cash and in kind, of adult occupants of the housing unit, to include wages, salaries, tips, commissions, all forms of self-employment income, interest, dividends, net rental income, income from estates or trusts, Social Security benefits, railroad retirement benefits, Supplemental Security income, Aid to Families with Dependent Children or other public assistance welfare programs, other sources of income regularly received, including Veterans' (VA) payments, unemployment compensation and alimony, and awards, prizes, government or institutional or eleemosynary loans, grants or subsidies and contributions made by the household members' families for medical, personal or educational needs.

- g. Area Median Income (AMI): Area median income (AMI) shall be as determined annually by the United States Department of Housing and Urban Development, as adjusted by the City of Charleston Department of Housing and Community Development, or their successors.
- h. Designated qualified opportunity zone: A designated qualified opportunity zone is a qualified opportunity zone, as defined in subsection (a) of Section 1400Z-1 of Title 26 of the United States Code, that has received a designation pursuant to that section.
- i. Qualified opportunity zone fund: The term "qualified opportunity zone fund" is defined in subsection (d) of Section 1400Z-2 of Title 26 of the United States Code.
- j. Qualified development: A development satisfying the criteria in Sec. 54-299.b, as determined by the Zoning Administrator.
- k. WH district(s): The term "WH district" means the MU-1/WH zoning district or the MU-2/WH zoning district. The term "WH districts" means the MU-1/WH district and the MU-2/WH district.
- l. Workforce housing units: Workforce housing unit means owner occupied workforce housing units and rental workforce housing units.
- m. Required workforce housing units: Required workforce housing units means workforce housing units required to be provided by the terms of this Part.
- n. First generation properties: Any property which is zoned to a WH District as of January 10, 2017; or any property for which, as of January 10, 2017, an application has been filed for rezoning to a WH district and for which City Council later grants the rezoning application.
- o. Second generation properties: Any property, other than first generation properties, for which the City has received an application for a rezoning to a WH district on or before March 9, 2021, to the extent City Council later approves the rezoning application.
- p. Gross square footage ("GSF"): Gross square footage or GSF means the number of gross square feet within the development, whether residential, retail, commercial, or otherwise, inclusive of heated and unheated square footage, but excluding parking garages. Any portion of the GSF initially used solely for a grocery store or pharmacy shall be excluded from GSF for purposes of calculating any fee-in-lieu of providing required workforce housing units; provided; however, if, at any time within thirty (30) years after receipt of a certificate of occupancy or completion for the development, the use of such GSF as a grocery store or pharmacy lapses for a period of twelve (12) months or is used for any other purpose, then the owner of the development shall be required, as a condition of occupancy of such space, to pay a sum equal to the difference between the fee per unit that would have been payable had the space not been excluded from the per unit calculation and the fee per unit initially paid.

- q. Consumer Price Index ("CPI"): The Consumer Price Index (CPI) is a measure of the average change over time in the prices paid by urban consumers for a market basket of consumer goods and services published by the United States Department of Labor and available for the pertinent geographical area, as determined annually by the City's Department of Housing and Community Development.
- r. First tier unit(s): First tier units are calculated by dividing the required workforce housing units by four and rounding down to the nearest whole number.
- s. Second tier unit(s): Second tier units are calculated by dividing the required workforce housing units by two, then subtracting the first tier units. If this calculation results in a number other than a whole number, then the resulting number shall be rounded down to the nearest whole number.
- t. Third tier unit(s): Third tier units are calculated by dividing the required workforce housing units by four, then multiplying the resulting number by three, then subtracting first tier units and second tier units. If this calculation results in a number other than a whole number, then the resulting number shall be rounded down to the nearest whole number.
- u. Fourth tier unit(s): Fourth tier units are calculated by subtracting the first tier units, second tier units, and third tier units from the required workforce housing units; provided, however, if the required workforce housing units is one (1), then such workforce housing unit shall be a fourth tier unit.
- v. Small efficiency dwelling unit (micro-unit): A dwelling unit no smaller than 250 square feet and no larger than 375 square feet but still containing cooking, living, sanitary and sleeping facilities that are not shared with any other dwelling unit. Any unit larger than 375 square feet does not qualify as a small efficiency dwelling unit.
- w. Full-service supermarket/grocery store: A licensed retail establishment with a minimum contiguous size of 10,000 square feet that carries a variety of food and grocery items for sale including, but not limited to, fresh produce and meats, prepared meals, canned and boxed food, bread and dairy, and household items. A full-service supermarket/grocery shall also provide parking within 600 feet, measured from the closest point of the grocery store space to the closest point of the parking lot or structure.

(Ord. No. 2006-463, § 1, 10-17-06; Ord. No. 2014-81, § 1, 6-17-14; Ord. No. 2017-069, § 1, 7-11-17; Ord. No. 2019-132, § 1, 12-17-19; Ord. No. 2021-039, § 1, 4-13-21; Ord. No. 2022-065, § 1, 4-26-2022)

Sec. 54-299.2. Land uses for WH districts.

The permitted land uses in the WH districts are those listed under Article 2, Part 3, Table of Permitted Land Uses, in the column headings having the applicable district designation, to wit: MU-1/WH or MU-2/WH, respectively, modified as follows:

- a. Every development in a WH district that has less than five (5) dwelling units must include at least one (1) workforce housing unit.

- b. Every development within a WH district which includes five (5) or more dwelling units shall include workforce housing units comprising at least twenty percent (20%) of the total number of dwelling units in the development, rounded up to the next whole number. Notwithstanding the foregoing, with respect to first generation properties, every development within a WH district which includes five (5) or more dwelling units shall include workforce housing units comprising at least fifteen percent (15%) of the total number of dwelling units in the development, rounded up to the next whole number.
- c. Required workforce housing units shall be sized, in terms of square footage and number of bedrooms, comparable and proportional to the square footage and number of bedrooms of market rate dwelling units in the development as a whole.

The smallest required workforce housing unit shall not be smaller than the smallest market rate dwelling unit and shall contain the same number of bedrooms as the smallest market rate dwelling unit. Required workforce housing units shall be integrated and intermixed with the market rate dwelling units in the development. Required workforce housing units shall not be clustered together or segregated from the market rate dwelling units. Developments that contain multiple buildings shall incorporate required workforce housing units into each building, and the required workforce housing units shall be proportional, in terms of square footage and number of bedrooms, to the number of market rate dwelling units in each building. Exterior finishes of required workforce housing units shall be the same type and quality as the development's market rate dwelling units.

- d. In lieu of providing required workforce housing units under section 54-299.2.a, a development may dedicate the greater of (1) fifty percent (50%) of the ground level square footage; or (2) 1,500 square feet on the ground level to nonresidential uses which front on a public right-of-way. Nonresidential uses in the MU-1/WH district shall be those allowable in the Limited Business (LB) zoning district. Nonresidential uses in the MU-2/WH district shall be those allowable in the General Business (GB) zoning district.
- e. (1) In lieu of providing the required workforce housing units onsite, a developer may contribute a fee, on a per unit basis, to the City's Affordable/Workforce Housing Account for any or all of the number of required workforce housing units for the development. Fees shall be calculated at the time of building permit application and paid in full prior to the issuance of a certificate of occupancy or completion for any part of the development covered in such building permit application. The fee for a required workforce housing unit shall be calculated as follows:
 - (a) For first tier units, the fee per unit shall be calculated by dividing the GSF in the development by four (4), then multiplying the resulting number by \$7.50, then dividing the latter number by the total number of first tier units.
 - (b) For second tier units, the fee per unit shall be calculated by dividing the GSF in the development by four (4), then multiplying the resulting number by \$10.00, then dividing the latter number by the total number of second tier units.
 - (c) For third quarter tier units, the fee per unit shall be calculated by dividing the GSF in the development by four (4), then multiplying the resulting number by \$12.50, then dividing the latter number by the total number of third tier units.
 - (d) For fourth tier units, the fee per unit shall be calculated by dividing the GSF in the development by four (4), then multiplying the resulting number by \$15.00, then dividing the latter number by the total number of fourth tier units.

The City's Department of Housing and Community Development (the "CDC") shall adjust the \$7.50 multiplier for first tier units, the \$10.00 multiplier for second tier units, the \$12.50 multiplier for third tier units, and the \$15.00 multiplier for fourth tier units annually based on any increase to the CPI or AMI, whichever is greater. The adjustment shall apply to (i) any properties which have not received a vested right for a site specific development plan as of the date of publication of the multiplier by the CDC; or (ii) any required workforce housing units resulting from an amendment to a vested site specific development plan as of the date of the publication of the multiplier by CDC.

- (2) Notwithstanding section 54-299.2.e.(1), with respect to first generation properties, the fee per required workforce housing unit shall be calculated based on GSF multiplied by \$3.40, with the resulting number then being divided by the total required workforce housing units. If a certificate of occupancy has been issued for the development or applicable phase, the fee per unit shall be prorated to account for the number of months the unit has already been subject to rental workforce housing covenants.
 - (3) Notwithstanding section 54-299.2.e.(1), with respect to second generation properties, the fee per required workforce housing unit shall be calculated based on GSF multiplied by \$5.10, with the resulting number then being divided by the total required workforce housing units.
- f. Land donation in lieu of required workforce housing units. Upon approval by City Council by resolution, and in City Council's sole discretion, land may be donated to the City in lieu of required workforce housing units. The size, configuration, and location of any land proposed for donation shall be capable and appropriately zoned to support, at a minimum, the number of required workforce housing units such donation is intended to replace. City Council may accept or reject the donation for any reason. If City Council elects to accept land in lieu of required workforce housing units, the developer shall be solely responsible for all costs of acquiring the land and transferring the land to the City, including but not limited to the costs of surveys, plats, environmental investigation, title insurance, the City's attorneys' fees, and recording fees. Title to the land proposed for donation shall be conveyed to the City by general warranty deed prior to the issuance of a building permit for any part of the development.
- g. Prior to receiving a building permit for any portion of a development within a WH district, the owner thereof shall provide, in writing, to the satisfaction of the CDC, information identifying the total number of one bedroom dwelling units, two bedroom dwelling units, etc., and the respective square footages of the same; the total number of one bedroom workforce housing units, two bedroom workforce housing units, etc., and the respective square footages of the same; and the location of the required workforce housing units in the development. Prior to the issuance of a certificate of occupancy or completion for any portion of a

development within a WH district, the owner thereof shall identify, in writing, to the CDC, the dwelling units designated as owner occupied workforce housing units and/or rental workforce housing units.

- h. (1) Prior to the issuance of a certificate of occupancy or completion for any portion of a development, the owner shall execute covenants satisfactory to the CDC that identify the required workforce housing units and which restrict such units to occupancy, or, if applicable, ownership, by qualified households for at least thirty (30) years, and submit a copy of the recorded covenants to the CDC. Notwithstanding the foregoing, the affordability period shall be ten (10) years for first generation properties and twenty-five (25) years for second generation properties.
- (2) For the owner occupied workforce housing units, the covenants shall identify the initial maximum allowable sales price, and provide that the initial maximum allowable sales price may be adjusted annually for inflation based on the increase in the area median income (AMI) or Consumer Price Index, whichever is greater. Each owner of such units, prior to initial occupancy, shall be required to submit to the CDC a verified income report of household income of all members of the household. The covenants shall require notice to the CDC of any transfer of the owner occupied workforce housing units and verification that the purchaser is a qualified household. Owner occupied workforce housing units shall be subject to resale restrictions for no fewer than thirty (30) years from date of initial sale of the property. Notwithstanding the foregoing, the affordability period shall be ten (10) years for first generation properties and twenty-five (25) years for second generation properties. Such restrictions will be recorded as deed restrictions against the subject property.
- (3) As for rental workforce housing units, the covenants shall require the owner to provide proof to the CDC, at inception of every tenancy, and on an annual basis thereafter, that no more than affordable rent is being charged for the unit(s), and verified income reports of household income of all occupants of rental workforce housing units. Rental workforce housing units shall be subject to these restrictions for no fewer than thirty (30) years from the initial occupancy as workforce housing. Notwithstanding the foregoing, the affordability period shall be ten (10) years for first generation properties and twenty-five (25) years for second generation properties.
- (4) The covenants for rental workforce housing units shall provide: If a workforce housing unit is converted from rental occupied to owner occupied occupancy during the term of the rental workforce housing covenants, the unit shall be subject to the owner occupied workforce housing unit requirements as set out in section 54-299.h.(2), as amended, (to include an Initial Maximum Sales Price) for a term of months equal to the number resulting when subtracting from 312 months (or 300 months for second generation

properties) the number of months the unit has been subject to rental workforce housing covenants. Conversion of a workforce housing unit from owner occupied to a rental workforce housing unit shall not be permitted. Covenants shall require written notice to the City prior to any conversion taking place.

- (5) The covenants shall accord the City of Charleston, or its assignee, rights to enforcement by any legal and/or equitable means, including the revocation of a certificate of occupancy or completion, and in all events be subject to approval by the City's corporation counsel.
 - i. If the development is to be phased, each phase shall include workforce housing units concurrently with the market rate units in the particular phase. A phasing plan that brings the workforce housing units on line at the end of build out is not permitted.
 - j. The upkeep of rental workforce housing units shall be of the same quality as the upkeep of the other market rate rental units within the development.

(Ord. No. 2006-463, § 1, 10-17-06; Ord. No. 2008-147, § 1, 11-25-08; Ord. No. 2014-81, § 1, 6-17-14; Ord. No. 2017-069, § 1, 7-11-17; Ord. No. 2019-019, § 1, 3-26-19; Ord. No. 2019-132, § 1, 12-17-19; Ord. No. 2021-039, § 2, 4-13-21)

Sec. 54-299.3. Parking and loading.

Parking requirements for an owner occupied workforce housing unit or rental workforce housing unit shall be one (1) space per two units.

Parking requirements for an owner occupied market rate housing unit or rental housing unit shall be one (1) space per unit.

Parking requirements for nonresidential uses in developments shall be governed by the parking provisions of Article 3, Part 4, Off-Street Parking Requirements; provided however, there shall be no off-street parking requirements for nonresidential uses in developments for the first five thousand (5,000) square feet of area dedicated for nonresidential uses, not including restaurants and bars which shall follow the parking requirements of Article 3, Part 4, and further provided that the off-street parking requirement for office uses shall be one (1) space per 600 square feet (excluding halls, stairwells, storage/elevator shafts and bathrooms). There are no off-street loading requirements for nonresidential uses.

(Ord. No. 2006-463, § 1, 10-17-06; Ord. No. 2016-011, § 1, 1-12-16)

Sec. 54-299.4. Height, area and setback regulations.

- a. The height, area and setback regulations for the MU-1/WH and MU-2/WH districts are listed under Part 1 of Article 3 (Site Regulations) of this Chapter in Table 3.1 (Height, Area and Setback Regulations).

- b. The height, area and setback regulations for the MU-1/WH and MU-2/WH districts, as set forth in Table 3.1, shall also apply within qualified developments.
(Ord. No. 2006-463, § 1, 10-17-06; Ord. No. 2019-132, § 1, 12-17-19)

Sec. 54-299.5. Affordable/workforce housing account.

There is hereby created a City of Charleston Affordable/Workforce Housing Account. Fees contributed to the account per this Part, along with all interest earnings, shall be used solely for the purpose of creating and/or preserving workforce and/or affordable housing, including but not limited to preserving or redeveloping existing housing stock, the acquisition of land, costs and fees for design and construction of affordable housing, and loans or grants to affordable housing providers. The terms of any assistance shall be developed by the City of Charleston Department of Housing and Community Development, or its successor, and approved by City Council.

(Ord. No. 2017-069, § 1, 7-11-17; Ord. No. 2021-039, § 3, 4-13-21)

Sec. 54-299.6. Lot frontage requirements.

- a. New lots created in the MU-1/WH and MU-2/WH zone districts shall not be required to have frontage on a street, as set forth in Section 54-824.
- b. New lots created within a qualified development shall not be required to have frontage on a street, unless such frontage would be required on a new lot created in the MU-1/WH and MU-2/WH zone districts.

(Ord. No. 2018-059, § 1, 5-8-18; Ord. No. 2019-132, § 1, 12-17-19; Ord. No. 2021-039, § 4, 4-13-21)

Editor's note—Ord. No. 2021-039, § 4, adopted April 13, 2021, repealed former § 54-299.6 in its entirety and renumbered former §§ 54-299.7, 54-299.8 as §§ 54-299.6, 54-299.7. Repealed former 54-299.6 pertained to existing MU-1/WH and MU-2/WH classifications and derived from Ord. No. 2017-069, § 1, adopted July 11, 2017.

Sec. 54-299.7. Land uses for qualified developments.

With respect to a qualified development, the following standards shall apply:

- a. Every qualified development containing dwelling units shall be subject to the same incentives and requirements applicable to a development in the MU-1/WH or MU-2/WH zoning districts except that the option of a fee payment in lieu of workforce housing units as set forth in Section 54-299.2(c) shall not apply.
- b. Nonresidential uses allowable in a qualified development are the nonresidential uses allowable in the base zoning district of the property.

(Ord. No. 2019-132, § 1, 12-17-19; Ord. No. 2021-039, § 4, 4-13-21)

Sec. 54-299.8. Small efficiency dwelling units.

Small efficiency dwelling units shall be permitted in MU-1/WH and MU-2/WH districts if the plans satisfy the following requirements.

- a. Buildings with small efficiency dwelling units shall not contain any other dwelling unit type unless specifically allowed by this section.

- b. Buildings with small efficiency dwelling units must conform to the provisions of Section 54-299.2
- c. Developments utilizing the reduced parking requirement for small efficiency dwelling units shall satisfy all requirements of this section and contain a minimum of fifteen (15) small efficiency dwelling units.
- d. Small efficiency dwelling units shall be located within the following distances, measured in a straight line from the closest point of the small efficiency dwelling property to the grocery store space or transit stop:
 - (1) $\frac{3}{4}$ mile of a full-service, supermarket/grocery store, as defined herein; and
 - (2) $\frac{1}{4}$ mile or less from a public transit stop (bus, BRT).
- e. Buildings with small efficiency dwelling units shall provide an onsite enclosed and covered bicycle parking room that is secure and ventilated and which can accommodate one (1) bicycle parking space per three small efficiency dwelling unit, rounded up to the next whole number. The building shall include a bicycle work stand, a basic set of bicycle repair tools and an air pump in close proximity to the bicycle parking room. The use of security cameras and/or security personnel is encouraged. Spaces within dwelling units do not count toward the bicycle parking requirement.

General requirements for all bicycle parking rooms:

- (1) Bicycle rack selection criteria.
 - (a) Provide at least two (2) points of contact for a standard bicycle frame (racks that are designed to support a bicycle primarily by a wheel are not allowed).
 - (b) Have rounded surfaces and corners.
 - (c) Be coated in a material that will not damage the bicycle.
 - (d) Be securely anchored or fastened to a hardscape surface.
- (2) Bicycle parking space dimensions:
 - (a) Parking spaces shall accommodate a wide range of bicycle frame types and provide adequate space between bikes, especially those with wider handlebar stems. Each bicycle parking space shall be sufficient to accommodate a bicycle at least six (6) feet in length and two (2) feet wide.
 - (b) An aisle or other space shall be provided for bicycles to enter and leave the facility.
- (3) Lighting and site materials:
 - (a) Lighting shall be provided such that all bicycle parking facilities are thoroughly illuminated and visible from adjacent sidewalks, parking lots or buildings during hours of use.

- (b) Bicycle parking shall be located on a hard surface material such as concrete, asphalt, brick or other stable surface the rack can be securely fastened to.
 - (c) Signage shall demarcate the bicycle parking and be placed in a visible and highly used location to inform users of the system in place.
 - (4) Proximity to building entrances.
 - (a) Bicycle parking shall be located within close proximity to, or inside, the main building. Bicycle parking shall be located no further from the building's main or secondary entrance than the closest automobile parking space to that entrance or no more than fifty (50) feet away, whichever is closer.
 - (b) If required bicycle parking is not clearly visible from the main entrance of the building, wayfinding signs shall be posted at the primary entrances indicating the location of the parking.
 - f. Any resident of a small efficiency dwelling unit shall not be eligible for a "neighborhood parking decal" (if located in such a district where they would ordinarily be eligible) and acknowledge that exclusion within the lease documentation or a separate rider.
- (Ord. No. 2022-065, § 2, 4-26-22)

Secs. 54-299.9, 54-299.10. Reserved.

PART 16
CLUSTER DEVELOPMENT

Sec. 54-299.11. Purpose.

The purpose of the cluster development ordinance is to permit unique residential developments that:

- a. Utilize creative and flexible site design that is sensitive to natural, historical, cultural and/or other significant land features.
- b. Provide quality common open space, both recreational and passive, for community members and citizens.
- c. Decrease stormwater runoff and nonpoint source pollution by reducing the amount of impervious surface in a development.
- d. Reduce the costs associated with infrastructure improvements.
- e. Provide a mixture of lot sizes and housing options within a development.

(Ord. No. 2011-120, § 2, 9-13-11)

Sec. 54-299.12. Definitions.

Cluster or clustering. Means a site planning technique that concentrates buildings and structures in specific areas on a lot, site or parcel to allow the remaining land to be used for common open space for recreation and/or preservation of features and/or structures with environmental, historical, cultural, or other significance. The techniques used to concentrate buildings may include, but shall not be limited to, reduction in lot area, setback requirements, lot frontage, and/or lot occupancy with the resultant common open space being devoted by deed restrictions for one or more uses.

Common open space. For the purposes of Section 54-299.11 through Section 54-299.15 common open space shall mean any parcel, area of land or portion of a site set aside in perpetuity as open space. Open space may be unimproved and set aside, or improved, dedicated, designated or reserved for public or private use or enjoyment, or for the use and enjoyment of owners and occupants of land adjoining or neighboring such open space. This area may include wetlands, critical area, water bodies, agricultural lands, wildlife habitat, scenic views, historical or cultural features, archaeological sites, easements for public utilities excluding above ground power line easements, or other elements to be protected from development. Open space shall not include streets, drives, off-street parking and loading areas, area so located or of such size or shape to have no substantial aesthetic, environmental, cultural or recreational value and any area within residential lots.

(Ord. No. 2011-120, § 2, 9-13-11)

Sec. 54-299.13. Approval of cluster developments.

Properties developed using cluster development standards shall be developed and subdivided in accordance with a plan which includes the entire development area and has been granted

subdivision concept plan approval by the Planning Commission, followed by preliminary subdivision plat and road construction plan approval by the Technical Review Committee and final subdivision plat approval by the Plat Review Committee. Each cluster development plan shall be submitted and approved in accordance with the review procedures and standards prescribed in Article 2, Part 16 and Article 8.

(Ord. No. 2011-120, § 2, 9-13-11)

Sec. 54-299.14. Applicability and general provisions.

- a. Residential cluster development shall be permitted in any SR-1, SR-7, RR-1 or C zone districts pursuant to the provisions in this ordinance.
- b. Minimum acreage: Cluster developments shall be a minimum of five (5) net acres.
- c. Open space: For cluster developments of five (5) to ten (10) net acres, not less than forty (40) percent of the gross site acreage shall be reserved as common open space. For cluster developments greater than ten (10) net acres, not less than fifty (50) percent of the gross site acreage shall be reserved as common open space. The following shall also apply:
 1. A minimum of twenty-five (25) percent of the required common open space shall be designed for active recreation (play fields, playgrounds, trails, etc.) and/or agricultural uses.
 2. If a playground or improved play area is included in the common open space, its total area may count up to four times toward the overall common open space requirement up to a maximum of one acre. (example: if a three thousand-square foot playground is part of the open space, it may be counted as twelve thousand (12,000) square feet toward the required open space but the total area of this credit cannot exceed one (1) acre)
 3. Where the site contains an existing or proposed man-made water body, only fifty (50) percent of that water body shall be included in calculating common open space.
 4. Common open space shall be owned and maintained by an association formed for that purpose or by a nonprofit organization whose principal purpose is the conservation of open space or cultural sites. Portions of the common open space may also be leased by such an entity to a person or organization who utilizes the land for agricultural purposes. If open space location and type meet a need identified in the City of Charleston Parks and Recreation Master Plan 2012, the City and developer may consider conveyance of a completed outdoor space to the City, provided that:
 - (a) The open space shall be either a neighborhood green of at least one (1) acre or a neighborhood park of at least three (3) acres.
 - (b) The completed open space shall be conveyed to the City;

- (c) The open space shall be operated and maintained by the City as a public park;
 - (d) The City shall be involved with the design of the open space.
- 5. The common open space shall be deed restricted and shall not be developed for use other than open space.
- d. Density: The maximum number of dwelling units allowed per acre of high ground of existing base zone district per Table 3.1 in Section 54-301 shall apply, except that accessory dwelling units, as permitted below, shall not count towards the density limitation.
- e. Allowed Uses: All principal and accessory uses permitted in the applicable base zone district(s) shall be allowed in the cluster development. In addition, accessory dwelling units may be permitted for a cluster development located in a zoning district that does not otherwise allow accessory dwelling units provided that the following requirements are met:
 - 1. An accessory dwelling unit that is an accessory use to a principal single-family dwelling unit, and is located in the same building as the principal use or in an accessory building on the same lot shall be permitted.
 - 2. Only one (1) accessory dwelling unit shall be permitted per lot.
 - 3. If an accessory dwelling unit is located within an accessory building, the building height shall be limited to one and one-half (1½) stories and a parking level shall count as one (1) story.
 - 4. Accessory dwelling unit size shall be limited to a maximum of six hundred (600) square feet of conditioned space.
 - 5. One (1) off-street parking space shall be provided for the accessory dwelling unit.
- f. Lot standards: There shall be no minimum lot area requirement, maximum lot occupancy requirement or minimum building setback requirement. There shall be no minimum lot frontage requirement provided that each lot shall have a platted access easement a minimum of ten (10) feet wide to a public or private right-of-way. Such access easement may be shared with other lots.
- g. Height: The maximum height for the applicable zoning district shall apply.
- h. Parking and garages:
 - 1. The number of required off-street parking spaces shall meet the standards in Section 54-317, unless otherwise noted.
 - 2. Driveways on individual residential lots shall not exceed ten (10) feet wide within the public or private street right-of-way and the first five (5) feet of the front yard.

3. Parking shall be located on the subject lot of record or in a community parking lot and the community parking lot may be non-hard surfaced utilizing slag, gravel, ROC, grasscrete or similar pervious paving material. Required parking may also be provided on-street.
 4. Garage doors whose faces are less than 90 degrees rotated from the front street shall be setback at least 20 feet behind the front side of the principal building.
 - i. Other zoning requirements: Other development and zoning requirements not addressed herein shall be designed in accordance with the Zoning Ordinance.
 - j. *Building Code and Fire Code*: Building code requirements and International Fire Code requirements shall apply including, but not limited to, a minimum twenty-foot clear fire apparatus access route.
- (Ord. No. 2011-120, § 2, 9-13-11)

Sec. 54-299.15. Additional site planning review standards.

Cluster development proposals meeting the preceding requirements shall also be evaluated, as part of the City review and approval process, for compliance with the following criteria:

- a. Individual lots, building locations, streets, parking areas, utilities and infrastructure should be grouped in a manner so that the required percentage of the gross site area is set aside as common open space. To the greatest degree practicable, common open space shall be designated as a single block or shall be contiguous and not divided into unconnected small parcels located in various parts of the development;
- b. Pedestrians should have easy access common open space;
- c. Individual lots, buildings, structures, streets, parking areas, utilities and infrastructure should be designed and sited to minimize the alteration of natural features, vegetation and topography;
- d. Individual lots, building locations, streets, parking areas, utilities and infrastructure should be designed and sited to be compatible with surrounding development patterns;
- e. Existing scenic views or vistas should be permitted to remain unobstructed, especially from street rights-of-way;
- f. Open space should be located on a site in such a manner so that view sheds from existing public right-of-way are enhanced by the open space;
- g. The site layout should accommodate and preserve any features of historic, cultural, archaeological or sensitive environmental value;
- h. The cluster development should provide a mixture of lot sizes;

i. The cluster development should advance the purposes of this part.
(Ord. No. 2011-120, § 2, 9-13-11)

Sec. 54-299.16. Sunset.

On or after October 13, 2020 (the "Sunset Date"), cluster developments shall not be permitted under this Part; provided, however, this Part shall continue to apply to the following developments:

- (a) Developments which have obtained a vested right for a cluster development under this Part before the Sunset Date.
- (b) Future developments identified in a phased development plan as being developed as a cluster development under this Part if one or more phases included in the phased development plan have obtained a vested right for a cluster development under this Part before the Sunset Date.
- (c) Developments which have been developed under an approved cluster development under this Part before the Sunset Date.

Once approved, the developments identified in (a)—(c) shall be considered conforming for purposes of this Chapter, subject to all conditions and limitation set forth in this Part and the approved development plan for any such development.

(Ord. No. 2021-006, § 1, 1-26-21)

Secs. 54-299.17—54-299.20. Reserved.

PART 17
UPPER PENINSULA DISTRICT*

Sec. 54-299.21. Findings.

Numerous studies and plans suggest the area of the Peninsula lying generally to the east of Interstate 26 and north of Huger Street (Upper Peninsula District) is well suited for greater density and increased building height due to its connectivity to major transportation routes such as I-26, Highway 17, Highway 52 and Highway 78, the expansive nature of its existing infrastructure and its relatively sparse population as compared to other areas of the Peninsula. The character of the Upper Peninsula District is distinct and different from other areas of the Peninsula in that there is not a predominance of historic buildings, thus presenting an opportunity for buildings to be sized and designed in a manner that incorporates architectural features characteristic to Charleston but which also take advantage of the geographic features of the area, as the potential for views of both the Ashley and Cooper Rivers exist. After receiving valuable input from various sectors of the public, including residents, neighborhood leaders, area businesses and nonprofit groups, preservation organizations, developers, real estate professionals, designers and green building experts, City Council finds it to be in the public interest that this area of the Peninsula be developed in a manner that reflects the built environment, makes advantageous use of technology to protect the natural environment and which provides opportunities for diverse housing and commercial activities.

(Ord. No. 2015-142, § 1, 10-13-2015)

Sec. 54-299.22. Purpose.

The purpose of the Upper Peninsula District is to preserve the character and quality of the existing residential neighborhoods and to accommodate responsible growth and redevelopment through the use of incentives designed to promote and protect the built and natural environments.

(Ord. No. 2015-142, § 1, 10-13-2015)

Sec. 54-299.23. Land uses.

Land uses permitted in the Upper Peninsula District are set out in Article 2, Part 3, Table of Permitted Land Uses, in the column heading having the district designation UP.
(Ord. No. 2015-142, § 1, 10-13-2015)

***Editor's note**—Ord. No. 2015-142, § 1, adopted October 13, 2015, added a new Part 17, §§ 54-300—54-312. Inasmuch as these sections already exist in Article 3, to avoid duplication of section numbers, these sections have been renumbered as §§ 54-299.21—54-299.33 at the discretion of the editor.

Sec. 54-299.24. Rooftop uses above height limit.

Rooftop uses above the height limit are permitted, provided that such uses are not residential or office in nature, and provided further, the spaces for such uses are open air. Shade structures or other types of partial protection from the elements are allowed. (Ord. No. 2015-142, § 1, 10-13-2015; Ord. No. 2016-127, § 1, 10-11-16)

Sec. 54-299.25. Ground floor active use.

All buildings having frontage on a primary street shall have an active use on the ground floor for the length of the frontage and that occupies, at a minimum, the first thirty (30) feet of linear depth of the building as measured from the front facade of the building.

An active use is any non-residential and non-parking (vehicle or bicycle) use that is also enclosed in a conditioned space, designed for human occupation and has a direct view from adjacent primary streets. Some examples of active uses are retail, office, restaurant, coffee shop, brewery, library, institution, educational facility, cultural facility and entrance lobby.

Primary streets are Morrison Drive, Meeting Street, Meeting Street Road, King Street, King Street Extension, Mount Pleasant Street, Brigade Street, Romney Street, Cool Blow Street and Huger Street.

(Ord. No. 2015-142, § 1, 10-13-2015)

Sec. 54-299.26. Mixed use.

Every new building in the District with more than 50,000 gross square feet of space shall contain at least two (2) different land use categories. For the purpose of this section, land use categories are residential/multifamily, retail, office, institutional, or any other use not falling within these categories.

(Ord. No. 2015-142, § 1, 10-13-2015; Ord. No. 2016-127, § 1, 10-11-16)

Sec. 54-299.27. Parking.

If workforce housing is included within a building, parking requirements for all workforce housing units shall be one (1) space per two (2) units, parking requirements for all other residential units shall be one (1) space per one (1) unit. Parking requirements for all other uses shall be governed by the parking provisions of Article 3, Part 4, Off-Street Parking Requirements, with the exception of the location of parking.

(Ord. No. 2015-142, § 1, 10-13-2015; Ord. No. 2016-127, § 1, 10-11-16)

Sec. 54-299.28. Location of parking.

Off-street parking spaces shall be located upon the same lot of record as the use to which they are associated. If a property does not provide sufficient off-street parking onsite, parking (except handicapped parking) may be provided on a properly zoned lot within one thousand five hundred (1,500) feet of the property, provided a satisfactory long-term lease of at least ten (10) years in duration is submitted to and approved by the zoning administrator.

The distance shall be measured from the nearest lot line of the parking lot to the nearest lot line of the property the parking lot is to serve. The off-site parking lot must be connected to the property it serves by a safe and accessible pedestrian route.

Spaces that are subject to an approved space-sharing agreement, or that are part of a car share program, or that are designated as electric vehicle charging stations, or that are designated for compact car only, count toward fulfilling minimum parking requirements. (Ord. No. 2015-142, § 1, 10-13-2015)

Sec. 54-299.29. Density.

Density shall be limited to 26.4 dwelling units per highland acre, subject to density bonuses acquired through the use of incentive options as hereinafter set forth. (Ord. No. 2015-142, § 1, 10-13-2015)

Sec. 54-299.30. Height limits.

There is no minimum building height. The maximum height of a building or structure shall be four (4) stories, subject to height bonuses acquired through the use of incentive options as hereinafter set forth. (Ord. No. 2015-142, § 1, 10-13-2015)

Sec. 54-299.31. Drainage ponds.

Constructed wetlands and surface retention and detention drainage ponds, as defined in Low Impact Development in Coastal South Carolina: A Planning and Design Guide (hereafter the "Guide"), are not permitted in the District. (Ord. No. 2015-142, § 1, 10-13-2015)

Sec. 54-299.32. Incentive options.

Height and density bonuses are available to owners who achieve a predetermined sum of incentive option points. The options for achieving points are identified in Table 1: Incentive Options. The number of points required to achieve a bonus for one (1) building is set out in Table 2: Building Height and Density Bonuses.

Table 1: Incentive Options

	<i>Incentive Options</i>	<i>Description</i>	<i>Point Value</i>	<i>Maximum Allowable Points</i>
1	Stormwater Manage- ment	Decrease Stormwater Runoff and Impervious Surfaces	2	2

	<i>Incentive Options</i>	<i>Description</i>	<i>Point Value</i>	<i>Maximum Allowable Points</i>
2	Vegetated Green Roof	Vegetated Green Roof (greater of, 700 ft ² or 30%)	1	
		Vegetated Green Roof (greater of, 1,500 ft ² or 60%)	2	2
3	Building Certifica- tion Programs	LEED Silver	2	
		LEED Gold or Charleston RISES	6	
		LEED Platinum	8	8
4	Mobility and Transporta- tion	Alternative Transportation	1	1
		Exceptional Bicycle Parking and Facili- ties	1	1
		Contribute to Mobility Improvement Fund	varies	varies
5	Renewable Energy	Renewable Energy (5 kW System)	1	
		Renewable Energy (12 kW System)	2	2
6	Outdoor Public Space	Quality Outdoor Public Space (2,500— 5,000 ft ²)	1-2	
		Quality Outdoor Public Space (5,000 ft ² —20,000 ft ²)	2-3	
		Quality Outdoor Public Space (20,000 ft ² or more)	3-4	4
7	Workforce Housing	Workforce Housing 60% AMI (greater of, 10 units or 5%)	2	
		Workforce Housing 80%, 120% AMI (greater of, 15 units or 10%)	3	
		Workforce Housing 80%, 120% AMI (greater of, 25 units or 15%)	4	9
		TOTAL AVAILABLE POINTS		29

Table 2: Building Height and Density Bonuses

Building Height	Density	Points Required
four (4) stories	26.4 dwelling units per highland acre	zero (0) points
five (5) stories	not regulated	five (5) points
six (6) stories	not regulated	six (6) points
seven (7) stories	not regulated	seven (7) points
eight (8) stories	not regulated	eight (8) points
nine (9) stories	not regulated	nine (9) points
ten (10) stories	not regulated	ten (10) points
eleven (11) stories	not regulated	eleven (11) points
twelve (12) stories	not regulated	twelve (12) or more points

General requirements for incentive options

- (a) For each building on a site utilizing bonuses, any combination of the seven (7) incentive options is allowed, up to the maximum allowable points per option as indicated in Table 1, unless otherwise noted. A site is defined by its parcel lines.
- (b) A certificate of occupancy for any building utilizing bonuses will not be issued until all incentive options are verified by necessary documentation and field inspections.
- (c) If the owner cannot achieve the points originally set out to, the owner shall be required to substitute incentive options to earn all points necessary for the height before a certificate of occupancy will be issued.
- (d) Each point approved may only be redeemed once.
- (e) Owners may choose to implement incentive options onsite in advance of development, allowing for projects to be phased. Any preexisting incentive options will still be verified for compliance.
- (f) Each incentive option has its own specific requirements regarding where on the site the option may be implemented as some are building specific and some are site specific; please refer to each individual section for this information.
- (g) Each incentive option has its own specific requirements regarding how its points may be redeemed on the site as some are building specific and some are site specific; please refer to each individual section for this information.
- (h) All incentive options used toward height and/or density bonuses shall remain in place and be maintained for the life of the building utilizing the bonus, unless otherwise noted.
- (i) Each building that utilizes height bonuses to exceed four (4) stories or density bonuses and includes residential uses shall provide owner occupied workforce housing units for qualified households whose household income does not exceed

one hundred twenty (120%) percent of AMI and/or rental workforce housing units for qualified households whose household income does not exceed eighty (80%) percent of AMI that total at minimum ten (10%) percent of the number of residential units in the building, rounded up to the next whole number, and subject to all applicable requirements and definitions in Part 17 - Upper Peninsula District, particularly Section 54-299.32, 7) Workforce Housing. The aforementioned workforce housing units are eligible to earn incentive option points should all requirements to earn points be met.

- 1) **Stormwater Management.** Urban landscapes often feature expansive areas of impervious surfaces such as roadways, parking lots, sidewalks and rooftops that increase surface runoff and reduce infiltration. Management of stormwater as close to its source as possible by way of low impact development infiltration techniques recharges the water table via infiltration and reduces stormwater runoff. Reducing stormwater runoff lessens the amount of water entering the City's stormwater system, thus reducing the potential for flooding issues and the demand on City infrastructure. Low impact development systems recreate the predevelopment site hydrology through site design techniques that promote storage, infiltration, evaporation, and treatment of stormwater runoff onsite. Low impact development can be both an aesthetically pleasing and a functional way of managing stormwater at the source.

Requirements: Decrease Stormwater Runoff and Impervious Surfaces

For two (2) points, design, construct, and maintain low impact development stormwater management systems that handle rainfall onsite, and prevent the offsite discharge of at least one (1) inch of stormwater runoff from the site's total area. Impervious surfaces shall not exceed sixty five (65%) percent of the surface area of the entire site.

For purposes hereof, impervious surfaces means a surface that does not allow water to penetrate. Examples of impervious surfaces include asphalt, rooftops and concrete. For purposes hereof, all other surfaces shall be considered pervious surfaces.

The design, construction and maintenance of the system shall adhere to the recommendations of the Guide, a copy of which is available in the Department of Planning and Preservation (hereafter the "Department"). Approved systems include, but are not limited to, bioretention cells, permeable pavement, stormwater infiltration, vegetated green roofs, rainwater harvesting and impervious surface disconnection.

No more than two (2) points per site may be awarded for this incentive option.

General requirements

- (a) The design of all low impact development systems shall follow the specifications and guidelines listed in the Guide, to include specifications pertaining to contaminated soils and guidelines for plant selection and installation. Runoff reduction rates provided for the Coastal Zone Credit Approach as outlined in the Guide will be recognized for meeting the prevention of the above offsite discharge requirement.
- (b) The creation of wetlands, open channels and surface retention or detention facilities (i.e. ponds), as defined in the Guide, are not permitted.
- (c) All low impact development systems shall have appropriate stormwater educational signage, approved by the Department and any applicable review boards, displayed in a prominent location.

- (d) Owners availing themselves of this incentive shall be required to sign a Maintenance and Operation Agreement which, among other things, will require continued maintenance of the system and a yearly inspection and report on the condition and functionality of the system by an engineer licensed by the State of South Carolina, the cost of which shall be borne by the property owner. Any deficiencies revealed by the inspection shall be corrected in a timeframe established by the City. The Agreement shall be in recordable form, and at the option of the City, may be recorded in the RMC Office for Charleston County. The City may choose to perform additional inspections at its discretion at no cost to the property owner.
 - (e) Certificate of occupancy. If the committed points in this category are not achieved, the owner shall be required to substitute incentive options and earn all points necessary to justify bonuses before a certificate of occupancy will be issued.
 - (f) Longevity. The stormwater management system(s) shall exist and be maintained for the life of the corresponding building(s) utilizing bonuses.
 - (g) Implementation. This incentive option is not limited to being located in, on or around a specific building, but does need to be located onsite.
 - (h) Point redemption. Points earned from this incentive option may be applied to any building on the site, in any full point increment.
- 2) **Vegetated Green Roof.** Urban greening in the form of vegetated green roofs reduces stormwater runoff and flooding, mitigates the urban heat island effect, creates a sanctuary for wildlife, adds aesthetic beautification, can extend the life of the roof and can improve energy efficiency of the building by acting as an insulator. Vegetated green roofs can be installed on a wide range of buildings and are an ideal best management practice for urban sites, especially those which may be contaminated.

Requirements: **Vegetated Green Roof**

Install and maintain a vegetated green roof. The vegetated green roof surface area need not be contiguous to allow flexibility for mechanical equipment and other necessary or desired roof infrastructure.

For one (1) point, incorporate and maintain a vegetated green roof onsite that is the greater of: (1) seven hundred (700) square feet; or (2) thirty (30%) percent of total roof area of the building utilizing bonuses.

OR

For two (2) points, incorporate and maintain a vegetated green roof onsite that is the greater of: (1) one thousand five hundred (1,500) square feet; or (2) sixty (60%) percent of total roof area of the building utilizing bonuses.

There are two (2) types of allowable vegetated green roof systems: modular and layered.

System type requirements

Modular System Type: The following components, in order, shall be included in all modular systems:

- (a) Waterproofing layer, to prevent water damage to the roof. This layer can be the roof itself, in some cases.
- (b) Root barrier slip sheets to protect the waterproofing membrane from root penetration.
- (c) Engineered plastic container made from recycled plastic with built-in water retention, drainage holes and raised drainage channels designed specifically for vegetated green roofs.
- (d) Growing media, engineered to be lightweight and to support a range of vegetated green roof plant growth and resilience (e.g. extreme conditions).
- (e) Vegetation layer, to include plants specified for vegetated green roof and climate conditions.
- (f) An irrigation system.

Layered System Type: The following components, in order, shall be included in all layered systems:

- (a) Waterproofing layer to prevent water damage to the roof. This layer can be the roof itself, in some cases.
- (b) Root barrier slip sheets to protect the waterproofing membrane from root penetration.
- (c) Drainage layer, to consist of a combination of a (non-woven) geotextile fabric that is placed or glued on top of a waffled rigid plastic sheet with drainage holes throughout.
- (d) Root permeable filter fabric, a semi-permeable layer that prevents growing media from entering the drainage layer and clogging it.
- (e) Growing media, engineered to be lightweight and to support a range of vegetated green roof plant growth and resilience (e.g. extreme conditions).
- (f) Vegetation layer, to include plants specified for vegetated green roofs and climate conditions.
- (g) An irrigation system.

General requirements

- (a) Root barrier slip sheets. A minimum forty (40) mil thick slip sheet of EPDM, TPO or PVC or another material as recommended by the roof membrane manufacturer shall be installed as a root barrier layer. Root

barriers which have been impregnated with pesticides, metals or other chemicals that could leach into stormwater runoff shall not be allowed in systems where the root barrier layer will come into contact with water or allow water to pass through the barrier.

- (b) Growing media. Growing media shall be lightweight, absorbent and engineered specifically for vegetated green roofs. Growing media shall contain organic matter of approximately ten (10%) percent to thirty (30%) percent of the soil composition by volume.
- (c) Depth. Growing media shall be four (4) inches or more deep. A standard four (4) inch modular unit is acceptable so long as it is filled with growing media as close to the top as possible.
- (d) Planting plan. A planting plan shall be completed by a landscape architect, horticulturalist or other professional experienced with vegetated green roofs and Charleston's unique climate.
- (e) Vegetation. Tolerant plant selections shall be used and should be suitable to Charleston's climate and able to withstand rooftop sensitivities such as strong winds, extreme heat and drought conditions.
 - i. A variety of at least five (5) different plant species representing at least two (2) different genera shall be used to maintain diversity. One genus shall not contain more than seventy five (75%) percent of the total vegetation.
 - ii. Guidelines for plant selection are listed in the Guide. It is imperative plant selection considerations are made specifically for Charleston's unique climate as a plant that does well in another climate may not work as well in Charleston.
 - iii. Pre-planted vegetation mats or already established mature plants shall be installed. Small plugs and seeds are difficult to establish on rooftops and shall be used sparingly only as appropriate for a species. Seeds cannot exceed a maximum of fifty (50%) percent of the total vegetated green roof surface area.
 - iv. Living vegetation shall cover at least fifty (50%) percent of the surface area of the vegetated green roof after the first three (3) months and throughout the remainder of the first year.
 - v. After the first year, living vegetation shall cover at least seventy (70%) percent of the surface area of the vegetated green roof and shall be maintained at that level for the life of the building(s) utilizing bonuses.
 - vi. Vegetation shall be replaced as needed to maintain the minimum vegetative surface coverage at all times to prevent roots from drying out and ensuring its success and effectiveness.

- (f) Irrigation. A permanent programmable irrigation system and water access on roof shall be installed and shall include a rain sensor to ensure proper irrigation and avoid overwatering. The frequency of irrigation shall adhere to the recommendations in "Appendix A: Charleston Vegetated Green Roof Maintenance Manual" (hereafter the "Manual"), a copy of which is on file in the Department.
- (g) Roof pitch. Flat or low sloping roofs are required to optimize stormwater collection and ease maintenance access. The slope of the vegetated green roof shall not exceed a rise:run ratio of 3:12 or a twenty five (25%) percent pitch.
- (h) Separation of active and inactive zones. Vegetated green roofs which also offer pedestrian active areas (walkways and/or gathering areas) shall clearly delineate and demarcate pedestrian activity zones from inactive vegetated green roof zones to deter everyday foot traffic out of the vegetated green roof area.
- (i) Drain collars. Drain collars and protective flashing shall be installed to ensure free flow of excess stormwater.
- (j) Maintenance access. The vegetated green roof shall be setback a minimum of two (2) feet from all serviceable rooftop equipment allowing ample room for maintenance personnel to access rooftop mechanical equipment without disturbing the vegetation on the roof. A clear, vegetation free, maintenance route to all serviceable equipment shall be available and maintained.
- (k) Maintenance. A maintenance plan that complies with the Manual shall be followed. At a minimum, for the first two (2) years, all maintenance shall be performed by experienced green roof personnel to help the vegetated green roof get established during its most sensitive growing period. Documentation of this contract shall be furnished to the Department.
- (l) Inspection. Owners of property availing themselves of this incentive shall be required to sign a Maintenance and Operation Agreement which, among other things, will require continued maintenance of the green roof system and a yearly inspection and report on the condition and functionality of the green roof system by a third party experienced vegetated green roof professional, the cost of which, if any, shall be borne by the property owner. Any deficiencies revealed by the inspection shall be corrected in the timeframe established by the City. The Agreement shall be in recordable form, and at the option of the City, may be recorded in the RMC Office for Charleston County. The City may choose to perform additional inspections at its discretion at no cost to the property owner.

- (m) Installation. An experienced installer shall construct the vegetated green roof.
 - (n) Signage. All vegetated green roofs shall have appropriate educational signage, approved by the Department, on the roof to inform users of the design and prevent accidental trampling of the vegetation. If the roof is not open for user access, the sign shall be placed in a more visible and highly used location to inform users of the system in place and its function.
 - (o) Data. The City shall be provided the approximate stormwater retention capacity of the designed system in gallons per square foot and the size of the system in square feet.
 - (p) Best practices and tips. For vegetated green roof design considerations and best practices, referencing the Guide is encouraged.
 - (q) Longevity. This incentive option shall exist and be maintained by the owner for the life of the corresponding building(s) utilizing bonuses.
 - (r) Implementation. This incentive option is not limited to being located in, on or around a specific building, but does need to be located onsite. However, the size requirement of a vegetated green roof specifically corresponds to the building utilizing bonuses.
 - (s) Point redemption. Points earned from this incentive option may be applied to any building on the site, in any full point increment.
- 3) **Building Certification Programs.** Green building certification programs address a broad range of sustainability goals which include, but are not limited to, energy efficiency, contaminated site cleanup, stormwater management and transportation options. There are two green building certification programs approved for this category: Charleston Resilient, Innovative, Sustainable, Efficiency Standards (Charleston RISES) and Leadership in Energy & Environmental Design (LEED).

Charleston Resilient, Innovative, Sustainable, Efficiency Standards (Charleston RISES): A Charleston specific green building certification program that recognizes best-in-class building strategies and practices relative to the unique needs of the Charleston area, the requirements for which can be secured from the Sustainability Institute.

Leadership in Energy & Environmental Design (LEED): A nationally accepted green building certification program that recognizes best-in-class building strategies and practices.

Requirements: Charleston Resilient, Innovative, Sustainable, Efficiency Standards (Charleston RISES)

For six (6) points, achieve certification in the Charleston RISES program for the building utilizing bonuses.

OR

Requirements: Leadership in Energy & Environmental Design (LEED)

For two (2) points, achieve LEED Silver certification in the Building Design and Construction category for the building utilizing bonuses.

OR

For six (6) points, achieve LEED Gold certification in the Building Design and Construction category for the building utilizing bonuses.

OR

For eight (8) points, achieve LEED Platinum certification in the Building Design and Construction category for the building utilizing bonuses.

General requirements (for all certification programs)

- (a) The owner shall execute a restrictive covenant, recordable in form, committing to achieve the specified rating.
- (b) The owner shall provide the Department with a copy of the completed registration for projects seeking rating.
- (c) The owner shall submit a preliminary checklist to the Department indicating the measures the project intends to complete to meet the applicable requirement.(d) The owner shall submit to the Department the design review results and an updated checklist or scorecard indicating the project will be able to obtain certification by project completion.
- (e) A third party certified inspector shall be chosen by the Department to follow the project and ensure it is on target to meet the certification goal. The owner shall be responsible for funding up to four (4) inspections and all final certification meetings as needed.
- (f) Points for incomplete or partial certification shall not be awarded.
- (g) The owner shall provide written proof of the certification from the authorized inspector to the Department prior to receiving a permanent certificate of occupancy.
- (h) For projects demonstrating good faith progress toward earning certification, a one-time temporary certificate of occupancy of up to one hundred twenty (120) days may be issued, subject to the approval of the Building Inspector.
- (i) Certificate of occupancy. If an owner fails to meet certification after a temporary certificate of occupancy expires, the owner shall be required to substitute incentive options to earn all points necessary for bonuses granted before a permanent certificate of occupancy will be issued. All such substitutions shall be completed within the time specified by the Department, or the certificate of occupancy (temporary or permanent) shall be revoked.

- (j) Longevity. All post construction components of the certification system shall exist and be maintained by the owner for the life of the corresponding building utilizing bonuses.
 - (k) Implementation. This incentive option directly correlates to a specific building, meaning the certification program needs to be associated with the building utilizing bonuses.
 - (l) Point redemption. Points earned from this incentive option may only be applied to its corresponding building and may not be applied to other buildings on the site.
- 4) **Mobility and Transportation.** Sustainable communities welcome, encourage and offer a variety of transportation options. Walking, bicycling, public transit and car sharing programs require significantly less space per traveler than do single ownership automobiles. When a variety of bicycle parking options and other alternative methods of transportation are available, a reduction in vehicular parking can be justified.

Requirements: **Alternative Transportation**

For one (1) point, provide and maintain one (1) of the following onsite:

1. Install electric vehicle car charging stations (minimum Level 2 or DC fast charging) with appropriate signage for electric vehicles to provide service for four (4) vehicle parking spaces or five (5%) percent of total vehicle parking spaces for the building utilizing bonuses, whichever is greater.
2. Incorporate a car share program with appropriate signage and car capacity totaling four (4) vehicle parking spaces or five (5%) percent of total vehicle parking for the building utilizing bonuses, whichever is greater.
3. Incorporate a mix of car share and electric vehicle charging stations (minimum Level 2 or DC fast charging) with appropriate signage to provide service for four (4) vehicle parking spaces or five (5%) percent of total vehicle parking for the building utilizing bonuses, whichever is greater.

General requirements

- (a) Certificate of occupancy. If the committed points in this category are not achieved, the owner shall be required to substitute incentive options and earn all points necessary to justify bonuses before a certificate of occupancy will be issued.
- (b) Longevity. This incentive option shall exist and be maintained by the owner for the life of the corresponding building utilizing bonuses.
- (b) Implementation. This incentive option directly correlates to a specific building, meaning the alternative transportation options need to be associated with the building utilizing bonuses.

- (c) Point redemption. Points earned from this incentive option may only be applied to its corresponding building and may not be applied to other buildings on the site.

Requirements: Exceptional Bicycle Parking and Facilities

This option, designed for long-term, overnight and work-day bicycle storage, is only available for buildings in which more than fifty (50%) percent of the gross square footage is dedicated to residential and/or office use.

For one (1) point, provide and maintain the following:

- (a) Reduce vehicle parking requirements. Minimum vehicle parking requirements may be reduced at the rate of one (1) vehicle space per every six (6) bicycle spaces, up to a maximum of ten (10%) percent of vehicle parking requirements for the building.
- (b) Bicycle Parking and Facilities.

For residential

Provide an onsite enclosed and covered bicycle parking room that is secure and ventilated and which can accommodate one (1) bicycle parking space per three bedrooms, rounded up to the next whole number. A studio unit shall count as one (1) bedroom for the purpose of this calculation. The facility shall include a bicycle work stand, a basic set of bicycle repair tools and an air pump. The use of security cameras and/or security personnel is encouraged. Spaces within dwelling units do not count toward the bicycle parking requirement.

OR

For office

Provide an onsite enclosed and covered bicycle parking room that is secure and ventilated and which can accommodate one (1) bicycle parking space for every ten thousand (10,000) square feet of net office use, rounded up to the next whole number. The facility shall include a bicycle work stand, a basic set of bicycle repair tools and an air pump. The use of security cameras and/or security personnel, and the installation of a vending machine stocked with patch kits, inner tubes, drinks and energy bars are encouraged. A minimum of two (2) onsite showers with associated changing facilities, restrooms and lockers must also be provided within the bicycle parking room or in close proximity thereof.

OR

For mixed use office and residential

If there is mix of office and residential uses in the building, provide an onsite enclosed and covered bicycle parking room that is secure and ventilated and which can accommodate one (1) bicycle parking space per three (3) bedrooms, rounded up to the next whole number. plus one (1) bicycle parking space for every fifteen thousand (15,000) square feet of

net office use, rounded up to the next whole number. A studio unit shall count as one (1) bedroom for the purpose of this calculation. Spaces within dwelling units do not count toward the bicycle parking requirement. The facility shall include a bicycle work stand, a basic set of bicycle repair tools and an air pump. The use of security cameras and/or security personnel is encouraged. A minimum of two (2) onsite showers with associated changing facilities, restrooms and lockers must also be provided within the bicycle parking room or in close proximity thereof.

General requirements

- i. Bicycle rack selection criteria.
 - (a) Provide at least two (2) points of contact for a standard bicycle frame (racks that are designed to support a bicycle primarily by a wheel are not allowed).
 - (b) Have rounded surfaces and corners.
 - (c) Be coated in a material that will not damage the bicycle.
 - (d) Be securely anchored or fastened to a hardscape surface.
- ii. Bicycle parking space dimensions.
 - (a) Accommodate a wide range of bicycle frame types and provide adequate space between bikes, especially those with wider handlebar stems. Each bicycle parking space shall be sufficient to accommodate a bicycle at least six (6) feet in length and two (2) feet wide.
 - (b) An aisle or other space shall be provided for bicycles to enter and leave the facility.
- iii. Lighting and site materials.
 - (a) Lighting shall be provided such that all bicycle parking facilities are thoroughly illuminated and visible from adjacent sidewalks, parking lots or buildings during hours of use.
 - (b) Bicycle parking shall be located on a hard surface material such as concrete, asphalt, brick or other stable surface the rack can be securely fastened to.
 - (c) Signage shall demarcate the bicycle parking and be placed in a visible and highly used location to inform users of the system in place.
- iv. Proximity to building entrances.
 - (a) Bicycle parking shall be located within close proximity to, or inside, the main building. Bicycle parking shall be located no further from the building's main or secondary entrance than the closest automobile parking space to that entrance or no more than fifty (50) feet away, whichever is closer.

- (b) If required bicycle parking is not clearly visible from the main entrance of the building, wayfinding signs shall be posted at the primary entrances indicating the location of the parking.
- v. Certificate of occupancy. If the committed points in this category are not achieved, the owner shall be required to substitute incentive options and earn all points necessary to justify bonuses before a certificate of occupancy will be issued.
- vi. Longevity. This incentive option shall exist and be maintained by the owner for the life of the corresponding building utilizing bonuses.
- vii. Implementation. This incentive option directly correlates to a specific building, meaning the exceptional bicycle parking and facilities need to be associated with the building utilizing bonuses.
- viii. Point redemption. Points earned from this incentive option may only be applied to its corresponding building and may not be applied to other buildings on the site.

Requirements: Mobility Improvement Fund

A Mobility Improvement Committee is hereby created, the sole purpose of which is to identify and prioritize for consideration by City Council needed alternative transportation improvements within or immediately adjacent to the District. The Committee shall be appointed by the Mayor and include two (2) members of City Council, one (1) representative from the Department of Planning, Preservation and Sustainability, the Department of Parks and the Department of Traffic and Transportation (or their respective successor Departments), and one (1) representative from the local area. The Committee shall select its own chair and meet at the call of the chair or upon the request of two (2) committee members.

There is hereby created a Mobility Improvement Fund. Deposits to the Fund shall be used for the sole purpose of assisting in the funding of transportation improvements for projects directly around the Upper Peninsula District. The Fund shall be maintained in an interest bearing account and administered by the Department of Budget, Finance and Revenue Collections. All projects funded by the Mobility Improvement Fund shall be approved by City Council. Transportation improvements relating to alternative types of transportation (other than single ownership automobiles) shall be given priority, however, projects can include, but are not limited to, protected bike lanes, covered bus stop shelters, signalization, signage, turning lanes and other transportation improvements deemed necessary by the committee for the Upper Peninsula. Transportation improvements do not include mitigation for impacts recommended by a traffic impact study required for a project.

For one (1) point, contribute the greater of, \$25,000 or \$0.60 per square foot of the total gross square footage of the building utilizing bonuses.

General requirements

- (a) No more than fifty (50%) percent, rounded up to the nearest whole number, of a building's points can be earned by way of a contribution to the Mobility Improvement Fund.
 - (b) Certificate of occupancy. All contributions shall be complete prior to the issuance of a certificate of occupancy. If the committed points in this category are not achieved, the owner shall be required to substitute incentive options and earn all points necessary to justify bonuses before a certificate of occupancy will be issued.
 - (c) Longevity. All contributions are non-refundable.
 - (d) Implementation. This incentive option directly correlates to a specific building, meaning the amount of funds required needs to be associated with the size of the building utilizing bonuses.
 - (e) Point redemption. Points earned from this incentive option may only be applied to its corresponding building and may not be applied to other buildings on the site.
- 5) **Renewable Energy.** Renewable energy technologies are clean sources of energy that have a lower environmental impact than conventional energy technologies which are dependent on natural resources limited in availability. Renewable energy may include, but is not limited to, solar, wind, biomass and biogas.

Requirements: Renewable Energy

For one (1) point, incorporate a minimum five (5 kW) kilowatts onsite renewable energy system measured in direct current (DC) kilowatt (kW) units.

OR

For two (2) points, incorporate a minimum twelve (12 kW) kilowatts onsite renewable energy system measured in direct current (DC) kilowatt (kW) units.

General requirements

- (a) The owner shall execute and provide the Department a restrictive covenant committing to achieve and maintain the specified rating.
- (b) The owner shall provide the Department with certified evidence the system meets the capacity required and is functioning properly before a certificate of occupancy is given.
- (c) Certificate of occupancy. If the committed points in this category are not achieved, the owner shall be required to substitute incentive options and earn all points necessary to justify bonuses before a certificate of occupancy will be issued.
- (d) Longevity. This incentive option shall exist and be maintained to its full capacity by the owner for the life of the corresponding building(s)

utilizing bonuses.(e) Implementation. This incentive option is not limited to being located in, on or around a specific building, but does need to be located onsite.(f) Point redemption. Points earned from this incentive option may be applied to any building on the site, in any full point increment.

- 6) **Outdoor Public Space.** High quality public spaces are important attributes of any thriving community. As a community grows, so too does the demand for additional outdoor space. Quality public places are thoughtfully designed to be accessible, comfortable, sociable and to provide a variety of activities. A quality outdoor public space provides a much needed alternative to the surrounding urban development. Outdoor public spaces may include, but are not limited to, parks, plazas and greenways.

Requirements: Quality Outdoor Public Space

Incorporate onsite contiguous outdoor space that is publicly accessible and privately maintained by the property owner. This space shall be preserved and protected in perpetuity by either a conservation easement held by a suitable entity and monitored annually or by irrevocable deed restrictions in favor of the City.

More than one (1) outdoor public spaces may be created per site, however no more than two (2) outdoor public spaces are eligible for incentive option points, per site.

For one (1) point, create a public space that is greater than or equal to 2,500 square feet that follows the general requirements

OR

For two (2) points, create a public space that is greater than or equal to 2,500 square feet that follows both the general requirements and exceptional requirements.

Size Bonus

For one (1) bonus point, create a public space that is greater than or equal to 5,000 square feet.

OR

For two (2) bonus points, create a public space that is greater than or equal to 20,000 square feet.

Table 3: Points Possible for Outdoor Public Space

	<i>Size of Public Space</i>		
	$\geq 2,500 \text{ ft}^2$ $< 5,000 \text{ ft}^2$	$\geq 5,000 \text{ ft}^2$ $< 20,000 \text{ ft}^2$	$\geq 20,000 \text{ ft}^2$
Follow General Requirements	1	2	3

	<i>Size of Public Space</i>		
	$\geq 2,500 \text{ ft}^2$ $< 5,000 \text{ ft}^2$	$\geq 5,000 \text{ ft}^2$ $< 20,000 \text{ ft}^2$	$\geq 20,000 \text{ ft}^2$
Follow Exceptional Requirements	2	3	4

General requirements

- (a) The space shall be contiguous.
- (b) The space shall be designed by a licensed landscape architect and subject to approval by applicable City boards and commissions.
- (c) The space shall be at ground level, adjacent to a public right of way and visible from a public right of way. The space may connect to a public right of way via a pedestrian path; however, the path will not be factored into the size of the public space.
- (d) The space shall be open to the public daily during normal business hours and remain open at least until dusk. Special events or programmed activities that restrict general public access shall be limited to twelve (12) days per calendar year.
- (e) The space shall display appropriate welcome signage at the main entrance in a prominent location.
- (f) The space shall accommodate, at a minimum, six (6) different semi-programmed activities which may include, but are not limited to: paths to walk, places to sit, tables to utilize, games to play, music to hear, Wi-Fi to access, playgrounds to climb, community gardens to cultivate, art exhibits to observe, fountains to watch, etc. so there are a wide range of reasons to visit the space.
- (g) The space shall include ample plantings such as trees, shrubs, flowering plants, groundcover or turf, as appropriate. Generally, turf shall be limited to areas where use and/or play is anticipated. Responsible selection, placement and spacing of vegetation shall be made so all species may mature properly in the space over time.
- (h) The space shall include native plants or introduced plants that are not considered invasive species.
- (i) The space shall provide a programmable irrigation system to properly maintain plantings and/or usable turf. All irrigation systems shall use a rain sensor to prevent the irrigation from unnecessarily running during a rainstorm or directly after there has been sufficient rainfall. Irrigation is encouraged to run in early morning (before 10:00am) or early evening hours (after 4:00pm) to minimize water loss from drift, evaporation and evapotranspiration- all associated with mid-day watering.

- (j) The space shall offer shade by means of plantings and/or shade structures. Greater than fifty (50%) percent of the programmed sitting areas are encouraged to be located in the shade between the hours of 10:00am and 4:00pm during the summer months of June, July and August.
- (k) The space shall be designed at a pedestrian scale.
- (l) The space shall include an appropriate hardscape and softscape material palette that is comfortable, aesthetically appealing and is of quality construction.
- (m) The space shall incorporate a variety of site furniture to include ample seating areas, (some designed for single users, and others designed for groups), tables, trash receptacles, recycling bins, etc.
- (n) The space shall integrate lighting into appropriate locations and use energy efficient lighting systems.
- (o) The space shall provide outdoor bicycle parking.
- (p) The space shall display local public art as either a focal point or supplementary pieces.
- (q) Utilization of designs which serve multiple purposes to maximize efficiency in small spaces are encouraged. By way of example, a rain garden could offer stormwater management, aesthetically appealing plantings, wildlife habitat, a seat wall around the edge and a focal piece of art in the center. A piece of art could also function as a bike rack or other piece of site furniture and could be an iconic identifier of the public space.
- (r) The space shall not allow automobile uses except for maintenance or special event reasons.
- (s) The space shall have and follow a City approved long term maintenance plan.
- (t) Certificate of occupancy. If the committed points in this category are not achieved, the owner shall be required to substitute incentive options and earn all points necessary to justify bonuses before a certificate of occupancy will be issued.
- (u) Implementation. This incentive option is not limited to being located in, on or around a specific building, but does need to be located onsite.
- (v) Point redemption. Points earned from this incentive option may be applied to any building on the site, in any full point increment.

Exceptional requirements

- (a) All general requirements shall be met.
- (b) The space shall accommodate, at a minimum, ten (10) different semi-programmed activities in total. Activities may include, but are not

limited to: paths to walk, places to sit, tables to utilize, games to play, music to hear, Wi-Fi to access, playgrounds to climb, community gardens to cultivate, art exhibits to observe, fountains to watch, etc. so there are a wide range of reasons to visit the space.

- (c) The space shall use rainwater catchment cisterns to collect rainwater on site. The collected rainwater shall be reused in the irrigation system to help meet the irrigation demand of the landscaped plantings. Display appropriate stormwater educational signage, approved by the Department, in a prominent location.

OR

The space shall incorporate renewable energy to be utilized within the space, such as solar powered overhead lighting, solar powered pathways, solar powered device charging stations, etc. Display appropriate renewable energy educational signage, approved by the Department, in a prominent location.

- 7) **Workforce Housing.** Housing affordability is important to protect in the Upper Peninsula.

Requirements: **Workforce Housing**

Provide onsite residential units inside the building utilizing bonuses, qualifying as owner occupied workforce housing units or rental workforce housing units as defined by the U.S. Department of Housing and Urban Development, or its successor, and adjusted for household size by the City of Charleston Department of Housing and Community Development, or its successor.

For two (2) points, provide owner occupied workforce housing units for qualified households whose household income does not exceed sixty (60%) percent of AMI and/or rental workforce housing units for qualified households whose household incomes do not exceed sixty (60%) percent of AMI that total ten (10) units or five (5%) percent of the number of residential units in the building, rounded up to the next whole number, whichever is greater. At least twenty five (25%) percent of the workforce housing units, rounded up to the next whole number, shall have more than one (1) bedroom.

AND/OR

For three (3) points, provide owner occupied workforce housing units for qualified households whose household income does not exceed one hundred twenty (120%) percent of AMI and/or rental workforce housing units for qualified households whose household income does not exceed eighty (80%) percent of AMI that total fifteen (15) units or ten (10%) percent of the number of residential units in the building, rounded up to the next whole number,

whichever is greater. At least twenty five (25%) percent of workforce housing units, rounded up to the next whole number, shall have more than one (1) bedroom.

AND/OR

For four (4) points, provide owner occupied workforce housing units for qualified households whose household income does not exceed one hundred twenty (120%) percent of AMI and/or rental workforce housing units for qualified households whose household incomes do not exceed eighty (80%) percent of AMI that total twenty five (25) units or fifteen (15%) percent of the number of residential units in the building, rounded up to the next whole number, whichever is greater. At least twenty five (25%) percent of the workforce housing units, rounded up to the next whole number, shall have more than one (1) bedroom.

General requirements

- (a) The workforce housing units shall be integrated and intermixed within the building, and not isolated to a specific area or floor that is separate from market rate units. If there are multiple floors of residential units, the workforce housing shall be spread out and shall not all be located on the same floor or specific area.
- (b) Exterior finishes and general quality of workforce housing units shall be similar to the building's market rate units.
- (c) The upkeep of workforce rental units shall be of the same quality as the upkeep of the other market rate rental units of the development.
- (d) Prior to the issuance of a certificate of occupancy for any portion of the development, the owner thereof shall identify, in writing, to the City of Charleston Department of Housing and Community Development, or its successor, the units designated as owner occupied workforce housing units and/or rental workforce housing units.
- (e) Prior to the issuance of a certificate of occupancy for any portion of a development, the owner shall execute covenants identifying the owner occupied workforce housing units and/or rental workforce housing units and restricting such units to occupancy, and if applicable ownership, by qualified households, and submit a copy of the recorded covenants to the City of Charleston Department of Housing and Community Development, or its successor.
- (f) As for the owner occupied workforce housing units, the covenants shall identify the initial maximum allowable sales price, and provide that the initial maximum allowable sales price may be adjusted annually for inflation based on the increase in the area median income (AMI) or Consumer Price Index, whichever is greater. Each owner of such units, prior to initial occupancy, shall be required to submit to the City of

Charleston Department of Housing and Community Development, or its successor, a verified income report of household income of all members of the household. The covenants shall require notice to the City of Charleston Department of Housing and Community Development, or its successor, of any transfer of the owner occupied workforce housing units and verification that the purchaser is a qualified household. Owner occupied workforce housing units shall be subject to resale restrictions for a period of ninety (90) years.

- (g) As for rental workforce housing units, the covenants shall require the owner to provide proof to the City of Charleston Department of Housing and Community Development, or its successor, at inception and on an annual basis, that no more than fair market rent is being charged for the unit(s), and verified income reports of household income of all rental occupants. Rental workforce housing units shall be subject to these restrictions for a period of thirty (30) years.
- (h) The covenants shall accord the City of Charleston, or its assignee, rights to enforcement by any legal and/or equitable means, including the revocation of a certificate of occupancy, and in all events be subject to approval by corporation counsel.
- (i) Implementation. This incentive option directly correlates to a specific building, meaning the workforce housing units need to be located within the building utilizing bonuses.
- (j) Point redemption. Points earned from this incentive option may only be applied to its corresponding building and may not be applied to other buildings on the site.

(Ord. No. 2015-142, § 1, 10-13-2015; Ord. No. 2016-127, § 1, 10-11-16; Ord. No. 2019-020, § 1, 3-26-19; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-299.33. Definitions.

For the purpose of this Part, the following terms mean:

- a. Car share program: A membership based shared vehicle program in which member drivers are able to reserve and drive a vehicle they do not own.
- b. Coastal SC Low Impact Development Guide:
Ellis, K., C. Berg, D. Caraco, S. Drescher, G. Hoffmann, B. Keppler, M. LaRocco, and A. Turner. 2014. Low Impact Development in Coastal South Carolina: A Planning and Design Guide. ACE Basin and North Inlet - Winyah Bay National Estuarine Research Reserves, 462 pp.
- c. Fair market rent: An amount calculated and published annually by the United States Department of Housing and Urban Development, or its successor, for the Charleston-North Charleston Metropolitan Statistical Area (eighty (80%) percent

of area median income (AMI)), as adjusted by the City of Charleston Department of Housing and Community Development. In the absence of such information, the rents charged by the owner shall not exceed thirty (30%) percent of the annual household income.

- d. Household income: All sources of financial support, both cash and in kind, of adult occupants of the housing unit, to include wages, salaries, tips, commissions, all forms of self-employment income, interest, dividends, net rental income, income from estates or trusts, Social Security benefits, railroad retirement benefits, Supplemental Security income, Aid to Families with Dependent Children or other public assistance welfare programs, other sources of income regularly received, including Veterans' (VA) payments, unemployment compensation and alimony, awards, prizes, government or institutional or eleemosynary loans, grants or subsidies and contributions made by the members' families for medical, personal or educational needs.
- e. Initial maximum allowable sales price: An amount equal to three (3) times one hundred twenty (120%) percent of the area median family income (AMI), as determined annually by the United States Department of Housing and Urban Development as adjusted by the City of Charleston Department of Housing and Community Development, or their successors, plus any subsidy available to the buyer.
- f. Owner occupied workforce housing unit: A dwelling unit where at least one occupant is an owner, and where all occupants have, in the aggregate, household income less than or equal to one hundred twenty (120%) percent of the area median income (AMI) for owner occupied units. Area median income (AMI) shall be determined annually by the United States Department of Housing and Urban Development as adjusted by the City of Charleston Department of Housing and Community Development, or their successors.
- g. Qualified household: Households where occupants have, in the aggregate, a household income less than or equal to one hundred twenty (120%) percent of the area median income (AMI) for owner occupied units, or a household income less than or equal to eighty (80%) percent of the area median income (AMI) for rental units. Area median income (AMI) shall be determined annually by the United States Department of Housing and Urban Development as adjusted by the City of Charleston Department of Housing and Community Development, or their successors.
- h. Rental workforce housing unit: A dwelling unit, where occupants have, in the aggregate, having a household income less than or equal to eighty (80%) percent of the area median family income (AMI) for rental units. Area median income (AMI) shall be determined annually by the United States Department of Housing and Urban Development as adjusted by the City of Charleston Department of Housing and Community Development, or their successors.

- i. Vegetated green roof: A living roof or eco-roof with a living layer of vegetation grown on a rooftop in a specially engineered growing media on top of a synthetic waterproof membrane.

(Ord. No. 2015-142, § 1, 10-13-2015)

Secs. 54-299.34—54-299.50. Reserved.

PART 18
JOB CENTER DISTRICT*

Sec. 54-299.51. Intent.

The JC District is intended to promote small entrepreneurial businesses and industries consisting of consumer, special trade, services, office/warehousing and limited business park uses. Uses that fit into this category are characterized by being incubators for new small and entrepreneurial business, low traffic generators, and with no external environmental effects across property lines.

(Ord. No. 2016-102, § 4, 9-13-16)

Sec. 54-299.52. Applicability of standards.

The standards in this section apply on all properties zoned JC District in addition to all other applicable regulations of the City of Charleston Zoning Ordinance.

(Ord. No. 2016-102, § 4, 9-13-16)

Sec. 54-299.53. Hours of operation.

The hours of operation for uses that are open to the public are limited to 7:00 a.m. to 9:00 p.m.

(Ord. No. 2016-102, § 4, 9-13-16)

Sec. 54-299.54. Height, area and setback regulations.

The height, area and setback regulations are listed under Article 3, Part 1, Table 3.1: Height, Area and Setback Regulations and section 54-311 Building setbacks for business, office or industrial lots.

(Ord. No. 2016-102, § 4, 9-13-16)

Sec. 54-299.55. Driveways and vehicle access.

- a. **General.** The driveway separation requirements shall apply per Article 3, Part 3 Driveway and Building Setback Requirements for Business, Office or Industrial Lots, sections 54-310 and 54-311.
- b. **Shared access.** Shared access is encouraged between adjoining parcels. Driveways for all uses except single-family residential should be located in a manner where they can be shared between adjoining parcels, if feasible and as described below.
 - a) Shared access should be located along a common property boundary.

***Editor's note**—Ord. No. 2016-102, § 4, adopted Sept. 13, 2016, added provisions numbered as Part 17, §§ 54-299.16—54-299.23. In order to avoid conflicts in the numbering of provisions the editor has renumbered these added provisions as Part 18, §§ 54-299.51—54.299.58.

- b) If the owner of the adjacent parcel does not agree to share access the applicant must provide documentation of such in a letter from the adjacent property owner or by an affidavit.
- c) Shared access agreements shall be recorded with the Register of Mesne Conveyance (RMC) Office.

(Ord. No. 2016-102, § 4, 9-13-16)

Sec. 54-299.56. Landscape buffer, road buffer and parking lot buffer requirements.

- a. Requirements for landscape buffers shall apply per Article 3, Part 8, Landscape Buffer Requirements, with the following exception: for buffers required to screen incompatible land uses, a six (6) foot tall screen wall or fence may be utilized and the landscape buffer may be reduced by up to one-half ($\frac{1}{2}$) its required depth; however, no required landscape buffer shall be less than ten (10) feet in depth.
- b. Requirements for parking lot, vehicular use and refuse collection area landscaping and screening shall apply per Article 3, Part 7, Parking Lot, Vehicular Use and Refuse Collection Area Landscaping and Screening Requirements.

(Ord. No. 2016-102, § 4, 9-13-16)

Sec. 54-299.57. Design standards.

- a. *Building height and size.*
 - 1. Building height, size and scale at the street frontage should be compatible with neighboring properties if the adjoining properties are single family residential. Building height in these areas is limited to a maximum two and one-half ($2\frac{1}{2}$) stories.
 - 2. No single building shall exceed 12,500 gross square feet.
- b. **Building appearance.**
 - 1. Building entrances and windows shall be provided along the street frontage.
 - 2. Vehicle and storage bays shall not face any road frontage. Emergency service facilities may be exempt from this requirement.
 - 3. New buildings shall utilize colors that are complementary, not necessarily homogeneous, to existing buildings.
 - 4. In cases where buildings that are residential in nature are converted to nonresidential uses, the residential character (height, scale, material entrances, windows roof pitch) shall be presented at the street frontage.
- c. **Exterior lighting.** Exterior lighting, if used, shall be shielded residential lighting and shall be installed in a manner to minimize glare on adjacent properties.

(Ord. No. 2016-102, § 4, 9-13-16)

Sec. 54-299.58. Parking area surface material requirements.

Parking areas may be non-hard surfaced utilizing slag, gravel, ROC, grasscrete or other pervious material provided that site drainage can be accommodated pursuant to City requirements; that a hard surfaced paved apron is constructed at each driveway entrance from a public street; and that the type of material and design of the paving material(s) used are found by the City to be suitable for the intended land use of the property. In making a determination of the suitability of the parking area material and design, the types of vehicles which will typically use the parking lot, the anticipated amount of daily or weekly traffic, the drainage conditions of the site and surrounding area, and the character of the property and surrounding area shall be considered."

(Ord. No. 2016-102, § 4, 9-13-16)

PART 19 CONSERVATION DEVELOPMENT**Sec. 54-299.59. Purpose.**

- (1) Intent. City Council intends for Conservation Developments to facilitate innovative residential developments that:
 - (a) Utilize creative and flexible site design compatible with surrounding development patterns;
 - (b) Accommodate and preserve features of historical, cultural, archeological, and/or environmental significance;
 - (c) Conserve existing, intact, undisturbed forests, understory, grasslands, soils, and other upland ecosystems.
 - (d) Provide common open space of high quality with multiple access points;
 - (e) Decrease stormwater runoff and nonpoint source pollution by reducing the amount of impervious surface in the development and incorporating GI;
 - (f) Reduce infrastructure costs by mimicking predevelopment site hydrology into the stormwater management design for the development; and
 - (g) Maintain unobstructed scenic views or vistas, especially from street rights-of-way.
 - (2) Definition. A Conservation Development is a development utilizing innovative site planning techniques to concentrate buildings, structures, and impervious surfaces in specific areas within the development and to allow the remaining land to be used for common open space. Such techniques may include, but shall not be limited to, any or all of the following:
 - (a) Reduction or, when appropriate, elimination of (i) minimum lot areas per family; (ii) minimum setbacks; and/or (iii) minimum lot frontage; and/or
 - (b) Increase or, when appropriate, elimination of maximum lot occupancy;but only to the extent such techniques facilitate the preservation and use of the remainder of the development as common open space.
 - (3) Conservation Site. "Conservation Site" or "Site" means all properties, lots, parcels, waterbodies, watercourses, wetlands, and other areas included within a Conservation Development, whether or not such properties, lots, parcels, waterbodies, watercourses, wetlands, or other areas will be developed.
- (Ord. No. 2021-040, § 3, 4-13-21)

Sec. 54-299.60. Applicability and general provisions.

- (1) Base Zoning: Conservation Developments may be permitted only on properties entirely located within one or more of the following base zoning districts: SR-1, SR-7, RR-1 or C.

- (2) Minimum acreage: Conservation Developments may be permitted only on developments with a minimum of ten (10) contiguous gross acres.
- (3) Net Density: Net Density shall comply with the standards set forth in the base zoning district for each property or portion thereof included in the Conservation Site, as set forth in Table 3.1 in Sec. 54-301, except as follows:
 - (a) When an accessory dwelling unit is permitted, such accessory dwelling unit shall not count toward Net Density; and
 - (b) Workforce housing units meeting the conditions in Sec. 54-299.60(4)(b) shall not count toward Net Density.
- (4) Allowed Uses: All principal and accessory uses permitted in the base zoning district for each property or portion thereof included within a Conservation Development also shall be permitted on such property or portion thereof, subject to the same conditions, special exceptions, limitations, and terms applicable to such principal or accessory uses within the base zoning district; provided, however, the following terms, conditions, and exceptions shall apply:
 - (a) Accessory dwelling units. Accessory dwelling units shall be permitted as part of a Conservation Development, whether or not permitted in the applicable base zoning district, if the conditions in section 54-214 are met. If the accessory dwelling unit is located within an accessory building, the building height shall be limited to one and one-half (1½) stories and a parking level shall count as one (1) story.
 - (b) Workforce housing units. Workforce housing units included as part of a Conservation Development shall comply with each of the following conditions in order to qualify as such for purposes of section 54-299.60(3)(b) and section 54-299.60(4)(c):
 - (i) The workforce housing unit is a one-family detached dwelling unit; a one-family attached dwelling unit; or an accessory dwelling unit;
 - (ii) The workforce housing unit has been approved by the City's Department of Housing and Community Development in conformity with the criteria applicable to such workforce housing unit; and
 - (iii) Once approved, a workforce housing unit shall be maintained as such in perpetuity as part of the zoning regulations applicable to the property.
 - (c) One-family attached dwelling units. One-family attached dwelling units may be permitted as part of a Conservation Development, whether or not permitted in the applicable base zoning district, only when each of the following conditions is met:
 - (i) There are no more than six (6) one-family attached dwelling units located within a single row;
 - (ii) At least twenty percent (20%) of the one-family attached dwelling units on the Conservation Site have been set aside as workforce housing units complying with the conditions in section 54-299.60(4)(b);

- (iii) The required workforce housing units shall be integrated throughout the Conservation Site, such that they are not concentrated together within a single row.
 - (5) Stormwater Regulations: Notwithstanding any other provision of this Part which may be interpreted to the contrary, all Conservation Developments shall comply with the Stormwater Regulations in effect at the time a complete application for a development plan is submitted, and nothing in this Part amends, modifies, abrogates, or repeals the Stormwater Regulations.
- (Ord. No. 2021-040, § 3, 4-13-21)

Sec. 54-299.61. Conservation Development approval and design criteria.

Properties satisfying the criteria of section 54-299.60 may be developed as a Conservation Development as set forth in an approved development plan, upon compliance with the procedures and regulations governing subdivisions in Article 8 of the Zoning Ordinance, subject to the following supplemental terms and conditions:

- (1) Pre-Application Site Review.
 - (a) Purpose. The purpose of the pre-application site review is to identify the features and resources on the proposed Conservation Site that should be preserved, and to determine potential site layouts that will best meet the criteria of a Conservation Development.
 - (b) Request. The applicant for approval of a Conservation Development shall submit a Request for Pre-Application Site Review on a checklist available from the Zoning Division, together with the following exhibits (collectively, the "Request"):
 - (i) Graphic exhibits at the same scale as the existing conditions survey with all existing features on the parcel(s) clearly identified and labeled to include: all Conservation Trees; wetlands; OCRM critical areas; man-made and natural water bodies or watercourses, including without limitation ditches; phosphate mines; logging, farm and forest roads; structures; archeological sites; scenic views or vistas (into and out from the parcel); topographical features; elevation; floodplain; significant groves/plots of vegetation; and unique environmental characteristics; and
 - (ii) A preliminary stormwater management summary detailing the pre- and post-development runoff volumes for the site. The summary must include a breakdown by area of planned stormwater management BMPs separated into detention pond versus GI practices.
 - (c) Pre-Application Site Review Meeting. Upon submission of a Request, the Zoning Administrator shall determine if the Request is complete. If the Zoning Administrator determines that the Request is complete, the Zoning Administrator will schedule a pre-application site review meeting with a

representative of the applicant; designated staff of the City's Department of Planning and Preservation (the "Planning Department"); and designated staff of the City's Department of Stormwater Management (the "Stormwater Department").

- (d) Diagram. Following the pre-application review meeting, the applicant shall submit a bubble diagram showcasing the proposed land use plan, including where and how stormwater will be managed.
 - (e) Determination. Designated staff from the Planning Department and the Stormwater Department shall determine whether the Request complies, in concept only, with the standards for Conservation Development before the applicant may submit a concept plan to TRC.
 - (f) Amendment. To the extent the area or location of the proposed Conservation Site changes at any time prior to approval of a development plan, the applicant shall be required to submit a new Request.
- (2) Site Analysis. With respect to a Conservation Development, each application for concept plan approval shall include a site analysis presented in graphic form at the same scale as the existing conditions survey and shall provide the same information as required for the pre-application site review conducted prior to concept plan submission (the "Site Analysis"). The Site Analysis shall also include the following:
- (a) Narrative. A narrative as to how the concept plan aligns with the intent, purpose, and definition of a Conservation Development as delineated in section 54-299.59.
 - (b) Vegetation. An exhibit demonstrating that existing vegetation will be preserved as much as reasonably feasible.
 - (c) Conservation Trees. A survey of all Conservation Trees within the Conservation Site, together with a tree risk assessment by a Certified Arborist for the Conservation Trees identified on the survey.
 - (d) Soils. A preliminary soils investigation for the site that includes the soil types, hydrologic soil groups, infiltration characteristics, and seasonal high water table.
 - (e) Other Information. All information required to show that the Conservation Site will comply with the requirements of this Part.
- (3) Streets. The following standards shall apply to streets within a Conservation Development:
- (a) All streets shall be public.
 - (b) All streets shall be designed in a manner to allow for visitor parking inside or outside the public right-of-way at the rate of one (1) parking space per three (3) dwelling units.

- (c) GI shall be incorporated into the street design and approved by TRC.
 - (d) A twenty-foot (20') clear zone must be provided in a street design to accommodate emergency response vehicles.
 - (e) If lots front on an access easement, other than a public right-of-way, the access surface material may be constructed with pervious paving material.
 - (f) Street trees are required for all street types, except alleys or within developments using open ditch/swale drainage systems.
 - (g) The location, species and spacing of street trees shall comply with the City's Street Tree Manual.
 - (h) In all other respects, street design must meet the standards set forth in section 54-821 and other provisions in this Chapter; provided, however street design and cross-sections may be modified upon the review and approval of TRC.
- (4) Lots. The following standards shall apply to lots within a Conservation Development:
- (a) There shall be no minimum lot area requirement, maximum lot occupancy requirement, or minimum building setback requirement.
 - (b) There shall be no minimum lot frontage requirement provided that each lot shall have a platted access easement a minimum of ten (10) feet wide to a public or private right-of-way. Such access easement may be shared with other lots.
 - (c) In all other respects, the standards for lots set forth in this chapter shall apply.
- (5) Height. Except as set forth in section 54-299.60(4)(a), the height requirements, exceptions, terms, and conditions applicable to the base zoning district for each property within the Conservation Development shall continue to apply to such property.
- (6) Parking. The following parking standards shall apply to a Conservation Development:
- (a) The number of required off-street parking spaces shall meet the standards in section 54-317, unless specifically provided otherwise.
 - (b) The required off-street parking for each lot shall be provided (1) on the lot; or (2) in a community parking lot; provided, however, the community parking lot shall have a pervious surface. Upon approval of TRC, required off-street parking spaces may also be provided on-street.
- (7) Garage Doors. Garage doors must be flush with or set back further than the building line.

- (8) Wetland Buffer. Existing wetlands shall be protected by an undisturbed buffer, at least thirty feet (30') wide, adjacent to the delineated boundary of the wetlands. Without limiting the foregoing, existing vegetation and Conservation Trees within such buffer shall be preserved within the buffer area.
- (9) Open space. The following open space requirements shall apply within a Conservation Development:
- (a) At least fifty percent (50%) of the gross acreage within the Conservation Site shall qualify as common open space (the "Required Open Space").
 - (b) Notwithstanding subsections (c) through (e), at least twenty-five percent (25%) of the Required Open Space shall be designed for active recreational uses, such as play fields, playgrounds, greenways, and/or agricultural uses. To qualify as an active recreational use under this subsection and to be considered as part of the Required Open Space, a greenway shall have (i) a pervious surface; (ii) a minimum total width of at least twenty-five feet (25'); and (iii) a minimum pathway for pedestrian and/or bike trails of eight feet (8').
 - (c) Subject to subsection (b), when a Conservation Site includes existing or proposed water bodies or watercourses, only fifty percent (50%) of the area of such water bodies and/or watercourses shall qualify as part of the Required Open Space.
 - (d) Subject to subsection (b), when a Conservation Site includes existing wetlands, only seventy-five percent (75%) of the area of such wetlands shall qualify as part of the Required Open Space.
 - (e) Subject to subsection (b), if the Conservation Site is forested at the time of the Site Analysis, then the lesser of (i) at least seventy percent (75%) of the Required Open Space; or (ii) the gross acreage of the Conservation Site which is forested at the time of the Site Analysis, shall be maintained in an undisturbed canopy.
 - (f) All common open space shall comply with section 54-299.62.
 - (g) The improvement or development of common open space shall incorporate GI.
 - (h) To the extent reasonably feasible, common open space shall be contiguous and not divided into unconnected small parcels located in various parts of the Conservation Site.
- (10) Stormwater Management. Without limiting, amending, abrogating, or repealing the Stormwater Regulations, the following stormwater management standards shall apply to a Conservation Development:
- (a) Conservation Developments shall demonstrate limited impacts on the natural features and pre-development hydrology.

- (b) At least fifty percent (50%) of stormwater volume shall be managed with GI practices instead of stormwater detention ponds or other, similar stormwater management techniques.
 - (c) Roof drainage and gutter downspouts shall be hydraulically disconnected from impervious surfaces and properly drained so as to prevent erosion within the Conservation Site or on offsite properties.
 - (d) Pervious surfaces shall be used when reasonably feasible.
 - (e) Impervious surfaces shall not exceed forty percent (40%) of the net acreage within the Conservation Site; provided, however, the calculation of impervious surface for residential lots shall be fifty percent (50%) of the lot area, regardless of the actual impervious surface area of the lots.
 - (f) Each residential lot shall have a minimum of two (2) native canopy trees, which shall be trees existing on the pre-developed Site, when reasonably feasible. To the extent the use of an existing tree or trees are not reasonably feasible, only native species commonly found in the associated Inland Atlantic Maritime Forest shall be utilized, per list provided in Appendix B.
- (11) Other Requirements. Unless specifically provided otherwise herein, all other requirements of this Chapter shall apply to the Conservation Development.
- (12) Standard Codes. The City's standard codes, including, without limitation, the City's building code and fire code, apply to a Conservation Development, notwithstanding any other provision herein to the contrary. Without limiting the foregoing, the minimum clearance requirements for fire apparatus access routes shall apply to Conservation Developments.
- (Ord. No. 2021-040, § 3, 4-13-21; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-299.62. Management of common open space.

The following regulations shall apply to all common open space within the Conservation Site:

- (1) POA. Prior to obtaining final plat approval for all or any portion of the Conservation Site, the applicant shall establish a property owners' or similar association (a "POA") to provide for the maintenance of all common open space, BMPs (as defined in the City's Stormwater Design Standards Manual), and other improvements, unless any such common open space and/or improvements are dedicated to and accepted by the City or other appropriate governmental entity or accredited land trust for ownership and/or maintenance.
- (2) POA Requirements. The POA required under subsection (1) shall meet the following requirements:
 - (a) The POA shall include as members all owners of lots or parcels within the Conservation Site, except the City or other governmental entity as to any public improvements dedicated to and accepted by the public.

- (b) The POA shall take title to and manage all common open space and improvements, other than public improvements dedicated to and accepted by the public.
- (3) Declaration. All lands, common open space, BMPs, and improvements shall be described as to the general location, size, use and control in a Declaration of Covenants, Conditions and Restrictions ("Declaration") governing the Conservation Site and properly recorded with the Office of the Register of Deeds for Charleston or Berkeley County, as applicable. The Declaration shall set forth the method of assessment against all lots or parcels within the Conservation Site (other than areas dedicated to and accepted by the public and common areas) for maintenance of common areas, common open space, BMPs, and other improvements to be owned or maintained by the POA. The Declaration shall run with title to the Conservation Site and all privately-owned lots or parcels located therein. The Declaration shall indicate the properties included therein are part of a Conservation Development approved by the City of Charleston.
- (4) No Dissolution. Unless prohibited by applicable law, the requirements applicable to the Declaration shall perpetually run with title to the Conservation Site or any portion thereof as part of the zoning regulations applicable to the Site. The POA shall not be dissolved nor shall the POA dispose of any common open space except to (a) a conservation or similar organization established to own and maintain common open space; (b) to the City; or (c) to another appropriate governmental entity. Notwithstanding the foregoing, any such conveyance, to be complete, shall require acceptance by the grantee.
- (5) Restricted Use. Unless prohibited by applicable law, all common open space shall be restricted in perpetuity as part of the zoning regulations applicable to the Conservation Site. All such common open space shall be deed restricted and may not be developed for uses other than common open space. The applicant shall include the following notice on all deeds, mortgages, plats, or any other legal instruments used to convey any right, title or interest in the Conservation Site or any portion thereof:

NOTICE: THIS PROPERTY IS SUBJECT TO THE CITY OF CHARLESTON'S REQUIREMENTS FOR CONSERVATION DEVELOPMENTS AND MAY BE SUBJECT TO CERTAIN USE RESTRICTIONS AS SET FORTH IN THE REQUIREMENTS APPLICABLE TO CONSERVATION DEVELOPMENTS ON FILE WITH THE CITY'S ZONING DIVISION.

(Ord. No. 2021-040, § 3, 4-13-21)

Sec. 54-299.63. Appeal.

Any determination by staff and/or TRC under this Part 19 may be appealed to the Planning Commission by any party in interest if an appeal is filed with the Zoning Division within ten (10) business days after actual notice of the decision. The Planning Commission must act on the appeal within sixty (60) days, and the action of the Planning Commission is final.
(Ord. No. 2021-040, § 3, 4-13-21)

ARTICLE 3
SITE REGULATIONS

Part 1 Height, Area and Setback Regulations

Sec. 54-301. Height, area and setback regulations.
Secs. 54-302—54-304. Reserved.

Part 2 Old City Height Districts And View Corridor Protection

Sec. 54-305. Applicability of requirements for Old City Height District.
Sec. 54-306. Old City Height Districts.
Sec. 54-306.A. Height District 2.5.
Sec. 54-306.B. Height District 3.
Sec. 54-306.C. Height District 2.5 - 3.
Sec. 54-306.D. Height District 3.5.
Sec. 54-306.E. Height District 4.
Sec. 54-306.F. Height District 5.
Sec. 54-306.G. Height District 6.
Sec. 54-306.H. Height District 7.
Sec. 54-306.I. Height District 8.
Sec. 54-306.J. Height District 4-12.
Sec. 54-306.K. Height District 3X.
Sec. 54-306.L. Height District 85/200.
Sec. 54-306.M. Height District 85/125.
Sec. 54-306.N. Height District 85/30.
Sec. 54-306.O. Height District 100/30.
Sec. 54-306.P. Height District 80/30.
Sec. 54-306.Q. Height District 50W.
Sec. 54-306.R. Height District W.
Sec. 54-306.S. Height District WP.
Sec. 54-306.T. Height District 56/30 V.
Sec. 54-306.U. Height District 120/30.
Sec. 54-306.V. Height District 55/30 S.
Sec. 54-306.W. Height District 55/30.
Sec. 54-306.X. Height district chart.
Sec. 54-306.Y. Height District 8-12(A), (B), and (C).
Sec. 54-307. View corridor protection.
Sec. 54-308. Exceptions.
Sec. 54-309. Reserved.

Part 3 Driveway and Building Setback Requirements for Business, Office or Industrial Lots

Sec. 54-310. Driveway spacing and design for business, office and industrial lots.
Sec. 54-311. Building setbacks for business, office or industrial lots.
Secs. 54-312—54-314. Reserved.

CHARLESTON ZONING ORDINANCE

Part 4 Off-Street Parking Requirements

- Sec. 54-315. Intent.
- Sec. 54-316. Applicability of requirements.
- Sec. 54-317. Required number of off-street parking spaces by land use.
- Sec. 54-318. Design requirements for new parking areas.
- Sec. 54-318.1. Storage or display of merchandise in parking areas prohibited.
- Sec. 54-319. Location of parking.
- Sec. 54-319.1. Shared parking.
- Sec. 54-319.2. Off-site parking agreement.
- Sec. 54-320. Additional parking requirements.

Part 5 Off-Street Loading Requirements

- Sec. 54-321. Off-street loading space requirements for business, wholesale, industrial, or terminal uses.
- Secs. 54-322—54-324. Reserved.

Part 6 Tree Protection Requirements

- Sec. 54-325. Intent.
- Sec. 54-326. Exemptions.
- Sec. 54-327. Tree removal restrictions.
- Sec. 54-328. Tree survey requirements.
- Sec. 54-329. Standards for approval to remove trees.
- Sec. 54-330. Tree protection requirements.
- Sec. 54-331. Tree replacement, relocation, planting and maintenance requirements.
- Secs. 54-332—54-339. Reserved.

Part 7 Parking Lot, Vehicular Use, and Refuse Collection Area Landscaping and Screening Requirements

- Sec. 54-340. Intent.
- Sec. 54-341. Applicability of requirements.
- Sec. 54-342. Plan review and approval requirements.
- Sec. 54-343. Perimeter landscaping requirements for surface parking lots, service areas or other vehicular use areas.
- Sec. 54-343.1. Interior landscaping requirements for surface parking lots and other vehicular use areas.
- Sec. 54-343.2. Screening requirements for refuse collection areas.

Part 8 Landscape Buffer Requirements

- Sec. 54-344. Intent.
- Sec. 54-345. Applicability of requirements.
- Sec. 54-346. Plan review and approval requirements.
- Sec. 54-347. Landscape buffer requirements.
- Sec. 54-347.1. Critical line buffer requirements.
- Sec. 54-348. Buffer types.
- Sec. 54-349. Road and river classification chart.

SITE REGULATIONS

Part 9 Relocation and Moving of Structures

Sec. 54-350. Relocation and moving of structures.

Part 10 Vision Clearance Requirements

Sec. 54-351. Vision clearance requirements.

Part 11 One-Family Attached Dwellings

Sec. 54-352. Intent and applicability.

Sec. 54-353. Standards and regulations.

Part 12 Mobile Homes in the DR-3 District

Sec. 54-354. Intent.

Sec. 54-355. Rules and regulations for mobile home parks.

Sec. 54-356. Rules and regulations for mobile home lots.

Sec. 54-357. Temporary mobile homes permitted.

Part 13 Multi-Family Dwellings for Elderly in the Dr-4 District

Sec. 54-358. Standards and regulations.

Sec. 54-359. Reserved.

Part 14 Sidewalks

Sec. 54-360. Requirement for multi-family and non-residential development.

Sec. 54-361. General standards.

Sec. 54-362. Reserved.

Part 15 Transit Accommodations

Sec. 54-363. Purpose.

Sec. 54-364. Defined terms.

Sec. 54-365. Applicability and requirement thresholds.

Sec. 54-366. Type of transit accommodations, location, design, and installation.

PART 1 HEIGHT, AREA AND SETBACK REGULATIONS**Sec. 54-301. Height, area and setback regulations.**

In any zone district, except the Neighborhood District or the Agricultural Districts or on land developed pursuant to Neighborhood District or Agricultural District regulations, the maximum heights of buildings or structures, the minimum dimensions of yards, courts and other open spaces, the area of lot required per family housed thereon and the percent of lot to be occupied by buildings shall be as shown on Table 3.1: Height, Area and Setback Regulations, as modified by special provisions, exceptions, conditions and general regulations contained elsewhere herein; provided, however, that the requirements set forth in Article 3: Part 2, for the Old City Height District shall prevail over the accompanying schedule to the extent that they conflict with said Table, but in all other respects, the Table 3.1 shall apply in all other zone districts.

TABLE 3.1: HEIGHT, AREA AND SETBACK REGULATIONS^{5/9/22}TABLE 3.1: HEIGHT, AREA AND SETBACK REGULATIONS^{5/9}

Abbreviations: N/A - Not Applicable, NR - Not required.
Numbers in () indicate number of units per acre.
May 15, 1996

Zone District Designation	Front and Rear ^{10/17} Setback Minimum Depths		Side Setbacks- Minimum Widths		Minimum Lot ¹³ Area per Family in square Feet-Type Dwelling Unit		Maximum ² Percent of Lot Occupied by Buildings	Max. Height Limits ⁵ Structures	Max. Height Limits ¹⁶ Fences/ Walls	Accessory Bldgs. to Residences Add't Setback Required From Street					
	Total	Front	Rear	Total	South/ West	North/ East				1-Fam.	2-Fam.	Multi-Fam.	From Street	From Side Street	Distance from Front Lot Line
C ²³	85`	50`	35`	30`	15`	15`	1½ acres	3 acres	NA	25%	35`/2½str.	NA	35`		
RR-1 ²³	75`	50`	25`	30`	15`	15`	12,500(3.5)	NA	NA	35%	35`/2½ str.	6`	60`	35`	Not Allowed
SR-1 ²¹	50`	25`	25`	18`	9`	9`	9,000(4.8)	NA	NA	35%	35/2½ str.	6`	60`	25`	Not Allowed
SR-2 ²¹	50`	25`	25`	18`	9`	9`	6,000(7.3)	NA	NA	50%	35/2½ str.	6`	60`	25`	Not Allowed
SR-3 ^{1/21}	3`	NR	3`	18`	12`	6`	6,000(7.3)	NA	NA	35%	50`/3 str.	6`	60`	12`	Not Allowed
SR-4 ^{1/21}	3`	NR	3`	15`	9`	3`	4,000(10.0)	NA	NA	35%	50`/3 str.	6`	60`	9`	Not Allowed
SR-5 ^{1/21}	3`	NR	3`	10`	7`	3`	2,500(17.4)	NA	NA	35%	50`/3 str.	6`	60`	7`	Not Allowed
SR-6 ²¹	28`	18`	10`	10`	5`	5`	5,000(8.7)	NA	NA	50%	35`/2½ str.	6`	60`	5`	Not Allowed
SR-7	75`	50`	25`	30`	15`	15`	43,560(1)	NA	NA	35%	35`/2½ str.	6`	60`	35`	Not Allowed
SR-8	50`	see footnote 18	25` ¹⁹	24`	9`	9`	15,000	NA	NA	25%	35`/2½ str.	6`	see footnote 20		Not Allowed
STR ^{1/21}	50`	25`	25`	18`	12`	6`	6,000(7.3)	4,500(9.7)	NA	50%	35`/2½ str.	6`	60`	25`	100`
DR-6 ^{11/12}	20`	10`	10`	6`	3`	3`	—	—	—(6.0)	35%	50/3 str.	6`	NA	NA	NA
DR-9 ^{11/12}	20`	10`	10`	6`	3`	3`	—	—	—(9.0)	50%	50/3 str.	6`	NA	NA	NA
DR-12 ¹²	20`	10`	10`	6`	3`	3`	—	—	—(12.0)	50%	50`/3 str.	6`	NA	NA	NA

TABLE 3.1: HEIGHT, AREA AND SETBACK REGULATIONS^{5/9}

Abbreviations: N/A - Not Applicable, NR - Not required.
Numbers in () indicate number of units per acre.
May 15, 1996

Zone District Designation	Front and Rear ^{10/17} Setback Minimum Depths			Side Setbacks- Minimum Widths		Minimum Lot ¹³ Area per Family in square Feet-Type Dwelling Unit		Maximum ² Percent of Lot Occupied by Buildings	Max Height Limits ⁵ Structures	Max. Height Limits ¹⁶ Fences/ Walls	Accessory Bldgs. to Residences				
	Total	Front	Rear	Total	West	South / North / East	1-Fam.				2-Fam.	Multi-Fam.	From Front Street	From Side Street	Add't Dwelling Distance from Front Lot Line
DR-1F ^{1/21}	3`	25`	25`	15`	9`	3`	4,000(10.9)	3,000(14.5)	50%	50`/3 str.	6`	70`	25`	NR	
DR-1 ^{1/21}	3`	NR	3`	15`	9`	3`	4,000(10.9)	3,000(14.5)	35%	50`3 str.	6`	70`	9`	NR	
DR-2F ^{1/21}	3`	25`	3`	10`	7`	3`	2,500(17.4)	2,000(21.8)	50%	50`/3 str.	6`	60`	25`	NR	
DR-2 ^{1/21}	7`	NR	7`	10`	7`	3`	2,500(17.4)	2,000(21.8)	35%	50`/3 str.	6`	60`	7`	NR	
DR-3 ^{11/12} Non-mobile home	20`	10`	10`	6`	3`	3`	-	-	50%	50`/3 str.	6`	NR	NR	NR	
DR-3 Mobile home park	20`	10`	10`	10`	5`	5`	7,260	NA	NA	35`	6`	20`	7`	NA	
DR-3 (6) Mobile home	50`	25`	25`	50`	25`	25`	1 acre	NA	NA	35`	6`	60`	7`		
DR-4	See Section 54-358														
RO	50`	25`	25`	18`	12`	6`	6,000(7.3)	NA	NA	50%	35`/2½ str.	NA	NA	Not Allowed	
GO	NR	NR	NR	NR	NR	NR	½ acre		NR	55`	NA	NR	NR		
CT Non- residential	NR	NR	NR	NR	NR	NR	NA	NA	NA	50`/3 str.	NA	NA	NA	NA	

TABLE 3.1: HEIGHT, AREA AND SETBACK REGULATIONS^{5/9}

Abbreviations: N/A - Not Applicable, NR - Not required.
Numbers in () indicate number of units per acre.
May 15, 1996

Zone District Designation	Front and Rear ^{10/17} Setback Minimum Depths			Side Setbacks- Minimum Widths			Minimum Lot ¹³ Area per Family in square Feet-Type Dwelling Unit			Maximum ² Percent of Lot Occupied by Buildings	Max. Height Limits ⁵ Structures	Max. Height Limits ¹⁶ Fences/ Walls	Accessory Bldgs. to Residences			
	Total	Front	Rear	Total	South/ West	North/ East	1-Fam.	2-Fam.	Multi-Fam.				Setback Required	From Street	From Side	Add't Dwelling Distance from Front Lot Line
CT Residential	3'	NR	3'	15'	9'	3'	4,000(10.9)	3,000(14.5)	2,250(19.4)	35%	50' / 3 str.	NA	70'	9'	80'	
LB ¹ Non- residential	NR	NR	NR	NR	NR	NR	NA	NA	NA	NA	55'	NA	NA	NA	NA	
LB ^{1/11/21} Residential	3'	NR	3'	15'	9'	3'	4,000	3,000	2,250	50%	55'	NA	70'	9'	80'	
GB ¹ Non- residential	NR	NR	NR	NR	NR	NR	NA	NA	NA	NA	55'	NA	NA	NA	NA	
GB ^{1/11/14/21} Residential	3'	NR	3'	15'	9'	3'	2,500	2,000	1,650	50%	55'	NA	70'	9'	80'	
UC ¹⁴ Urban com- mercial	NR	NR	NR	NR	NR	NR	1,000(43.6)	1,000(43.6)	1,000(43.6)	NA	55'	NA	NA	NA	NA	
MU-1, MU-1/WH, MU-2, MU-2/WH and GP	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NA	NR	NR	NR	NR	
BP	NR	NR	NR	NR	NR	NR	NA	NA	NA	NA	45'	NA	NA	NA	NA	
UP	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	

SITE REGULATIONS

TABLE 3.1: HEIGHT, AREA AND SETBACK REGULATIONS^{5/9}

*Abbreviations: N/A - Not Applicable, NR - Not required.
Numbers in () indicate number of units per acre.
May 15, 1996*

Zone District	Front and Rear ^{10/17} Setback Minimum Depths			Side Setbacks- Minimum Widths		Minimum Lot ¹³ Area per Family in square Feet-Type Dwelling Unit		Maximum ² Percent of Lot Occupied by Limits ⁵		Max. Height Limits ¹⁶ Fences/ Structures Walls		Accessory Bldgs. to Residences Setback Required		Add'l Dwelling Distance from Front Lot Line	
	Total	Front	Rear	Total	South/ West	North/ East	1-Fam. 2-Fam. Multi-Fam.	Buildings	Structures	From Street	From Side Street	From Street	From Side Street	From Street	From Side Street
	Designation	Total	Front	Rear	Total	South/ West	North/ East	Buildings	Structures	From Street	From Side Street	From Street	From Side Street	From Street	From Side Street
LI ¹ Non- residential	NR	NR	NR	NR	NR	NR	NR	NA	NA	55'	NA	NA	NA	NA	NA
LI ^{1/1/21} Residential	3'	NR	3'	15'	9'	3'	4,000	3,000	2,250	55'	NA	70'	9'	80'	80'
HI ¹ Non- residential	20'	NR	20'	Minimum 25' side yard required on side adjoining residences or residential districts	NR	NR	NA	NA	NA	55'	NA	NA	NA	NA	NA
HI ^{1/11} Residential	3'	NR	3'	15'	9'	3'	4,000	3,000	2,250	55'	NA	70'	9'	80'	80'
JC	NR	NR	NR	NR	NR	NR	4,000	NA	NA	2 ½ str.	NA	60'	NR	NA	NA

FOOTNOTES to Table 3.1: Height, Area and Setback Regulations

- Attached single-family dwellings permitted. Refer to Article 3: Part 11, for special provision of standards and regulations for one family attached dwellings, town or row houses where permitted.
- See definitions in Section 54-120 for "Building" and "Lot Occupancy."
- Under no conditions shall the minimum distance between residences not joined by a common wall be less than three (3) feet.
- In any district, it shall be unlawful to construct a porch, piazza or balcony so that the same extends in whole or in part over a public street, lane, court, or other public right-of-way without specific permission from the city executive body and compliance with all applicable city ordinances.
- See Article 5: Exceptions and Modifications, Part 2 Exceptions to Height and Setback Requirements.
- Reserved.*
- Reserved.*
- No structure, including appurtenant parts thereto, shall, except for the conditions as specified in Article 5: Exceptions and Modifications, exceed a height equal to three (3) times the least dimension, as measured from the center of the right-of-way to the face of the building.
- Notwithstanding the figures set forth in this table, the height, set back and other area requirements established by Article 3: Part 2, shall apply in the Old City Height Districts.

CHARLESTON ZONING ORDINANCE

10. The front and rear yard minimum depths shall not preclude Table 3.2: Driveway and Building Setback Regulations for Business and Industrial Lots. This Table will take priority over the front and rear yard minimum requirements if there is a conflict.
11. The staff will review the site plans for the proposed developments within this district to determine such elements, but not be limited to, the appropriate location of structures, parking, common open space and preservation of environmentally sensitive features.
12. The average overall density for DR-6 will be six dwelling units per acre, DR-3 (non-mobile home) and DR-9 will be nine dwelling units per acre, and DR-12 will be twelve dwelling units per acre.
13. The calculation of the minimum lot area per family in square feet shall be based only on such part of the lot or tract of land that is deemed to be high ground and, for single and two-family lots zoned SR-6, STR, DR-1, DR-1F, DR-2, DR-2F, DR-3 (non-mobile home), DR-6, DR-9 and DR-12 that front on a street right-of-way and have vehicular access at the rear of the lot from an alley right-of-way that satisfies the requirements of this chapter; the calculation of the minimum lot area per family in square feet may be reduced by the area of the alley right-of-way directly behind the lot.
14. Notwithstanding anything herein to the contrary, buildings and structures existing as of January 1, 1993, in which a portion of the ground level thereof is used, dedicated or reserved for a non-residential use permitted in the zoning district, may include dwellings of the following size, within the existing structure, to wit:
 - (a) one bedroom - 550 square feet;
 - (b) two bedroom - 750 square feet;
 - (c) three bedroom - 1,000 square feet;
 - (d) four bedroom - 1,250 square feet.
15. *Reserved.*
16. Fences and freestanding walls on residentially zoned properties, not under the jurisdiction of the Board of Architectural Review, shall not exceed a height of six (6) feet; within residential zoning districts under the jurisdiction of the Board of Architectural Review, fences and freestanding walls shall not exceed a height of seven (7) feet and a pier height of eight (8) feet; provided however, nothing herein shall be construed to prevent or prohibit the restoration or an addition in length to any fence or freestanding wall that is in existence as of the effective date of this ordinance, to the height as is in existence as of the date of this ordinance.
17. Within the Johns Island Overlay Zone, all buildings shall be required to maintain a minimum building setback of thirty (30') feet from the Office of Ocean and Coastal Resource Management critical line adjacent to waterways and saltwater wetlands.
18. In the SR-8 district, no building shall be built with a front setback closer to, or further back from the front property line, than the average front setback of the buildings on the lots on either side of the lot upon which the building is to be built, plus or minus 5 feet. In the event there are no buildings on both sides of the lot on which the building is to be built, the front setback shall be the same as the building on the lot on the same side of the street adjacent to the lot upon which the building is to be built.
- In determining the front setback of adjacent buildings, it shall be presumed that the setbacks shown on that certain map of The Crescent prepared by the City of Charleston Department of Planning and Urban Development, printed in August, 2000, and on file at that office, are correct. An applicant may establish a different setback by providing a sealed copy of a survey or surveys by a qualified surveyor demonstrating that the front setback(s) on the adjacent lot(s) are not as shown on the said map.
19. For rear setbacks on marshfront lots within the SR-8 district, no building shall be built closer than 60 feet from the critical line established by the South Carolina Office of Ocean and Coastal Resource Management. On all other lots, the minimum rear setback shall be 25 feet.
20. In the SR-8 district, accessory buildings shall have a minimum front setback from the front street of 100 feet, or the front setback of the principal building, whichever is less. The minimum setback for accessory buildings from the side street shall be 35 feet or the side setback of the principal building, whichever is larger.
21. Minimum lot area, setbacks, frontage and maximum lot occupancy for Affordable Housing are set forth in Sec. 54-207, p. or 54-207, z.
22. Within Neighborhood Districts building setbacks from street rights-of way, height and frontage ratio requirements are based on the type of street a lot abuts. There shall be no minimum requirements for side or rear setbacks and no maximum lot occupancy requirement. See Section 54-294.
23. The C and RR-1 zoning districts permit up to four (4) one-family detached dwellings on a lot as a conditional use pursuant to Section 54-207, t.
23. The C and RR-1 zoning districts permit up to four (4) one-family detached dwellings on a lot as a conditional use pursuant to Section 54-207, t.
24. For density and height information, see Section 54-300.

(Ord. No. 1996-227, § 19, 11-26-96; Ord. No. 1997-145, § 1, 4-22-97; Ord. No. 1999-22, § 4, 3-10-99; Ord. No. 1999-137, § 5, 9-28-99; Ord. No. 2001-30, § 1, 3-14-01; Ord. No. 2001-44, §§ 4, 5, 5-8-01; Ord. No. 2002-84, §§ 4, 5, 8-13-02; Ord. No. 2002-92, §§ 5, 6, 8-13-01; Ord. No. 2003-69, §§ 8, 14, 8-19-03; Ord. No. 2004-77, § 4, 8-17-04; Ord. No. 2006-167, §§ 1—3, 5-2-06; Ord. No. 2006-427, §§ 1—6, 9-26-06; Ord. No. 2006-463, § 3, 10-17-06; Ord. No. 2007-58, §§ 1—4, 3-6-07; Ord. No. 2007-99, §§ 1—4, 5-1-07; Ord. No. 2011-09, § 1, 2-8-11; Ord. No. 2011-10, §§ 1—3, 2-8-11; Ord. No. 2011-157, § 2, 10-11-11; Ord. No. 2012-55, § 3, 2-14-12; Ord. No. 2013-106, § 1, 10-8-13; Ord. No. 2014-67, §§ 6, 7, 5-13-14; Ord. No. 2015-142, §§ 14—16, 10-13-2015; Ord. No. 2016-102, § 5, 9-13-16; Ord. No. 2018-031, § 6, 4-10-18; Ord. No. 2020-097, §§ 3, 4, 8-18-20)

Secs. 54-302—54-304. Reserved.

PART 2 OLD CITY HEIGHT DISTRICTS AND VIEW CORRIDOR PROTECTION

Sec. 54-305. Applicability of requirements for Old City Height District.

a. Defined. The Old City Height District includes all of peninsular Charleston lying south of Mt. Pleasant Street, and the extension thereof across the entire peninsula, as described on the map adopted as part of ordinance #1978-80 establishing the Old City Height District.

b. In any zone district, the maximum heights of buildings or structures, the minimum setbacks, courts and other open spaces, the area of lot required per family housed thereon and the percent of lot to be occupied by buildings shall be as shown on Table 3.1: Height, Area and Setback Regulations, as modified by special provisions, exceptions, conditions and general regulations contained elsewhere herein; provided, however, that the requirements set forth in Article 3: Part 2, for the Old City Height District shall prevail over Table 3.1 to the extent that they conflict with said Table, but in all other respects, the accompanying Table shall apply in all zone districts. Notwithstanding anything herein to the contrary, heights of buildings and structures on properties located in the Tech Corridor (TC) overlay zone and the Old City Height District shall be governed by the provisions of Section 54-229.1.d. Notwithstanding anything herein to the contrary, heights of buildings and structures on properties located in the Upper Peninsula (UP) District and the Old City Height District shall be governed by the provisions of Section 54-300.

(Ord. No. 2014-125, § 2, 9-23-2014; Ord. No. 2015-142, § 12, 10-13-2015)

Sec. 54-306. Old City Height Districts.

The requirements of this section have resulted from a contextual study of building height and architectural patterns in the Old City Height District. The requirements of this section reflect the predominant building height trends of the areas to which they are applied, and reinforce the principles cited in the Downtown Plan, adopted in 1999, that higher structures be located along spine streets of the Peninsula, with heights of structures tapering down towards the waters' edges. The requirements of this Section are intended to clarify acceptable heights of buildings in areas of the Old City Height District, subject to the right of the Board of Architectural Review to adjust heights in limited circumstances when based on architectural merit and context.

General requirements:

1. Heights shall be measured in stories or feet, as specified. Notwithstanding the foregoing, height shall be measured in feet in the following districts: 3X, 85/200, 85/125, 85/30, 100/30, 80/30, 55/30S, 55/30, 56/30V, 120/30, 50W, W and WP.
2. For maximum height specified in feet, the measurement shall be taken from the highest curb elevation adjacent to the site to the highest point of the structure. Where heights are specified in stories, the measurement shall be taken from finished floor to finished floor.

3. Notwithstanding Sec. 54-306 (5), new principal buildings within a VE or AE zone on the Flood Insurance Rate Map may have 2 stories over a first-floor structure that exceeds 6' in height, provided the first floor elevation does not exceed the elevation required to meet FEMA and City freeboard requirements.
4. If a building is required to be raised per FEMA requirements, that same height shall be added to the maximum height allowed, up to a maximum of six (6) feet. This measurement shall be taken from the highest curb elevation.
5. Existing structures shall be allowed to be elevated to meet FEMA and City freeboard requirements and exceed height limitations of this Chapter.
6. Any area under a structure in excess of six feet shall be counted as a story.
7. The BAR is empowered to require a downward adjustment of one-half story in the number of stories from the permitted number of stories in the applicable height district based on the predominate number of stories in the structure's immediate surroundings, as defined in Section 54-231.
8. Floors shall be measured in the following manner:

Residential:

- a. The maximum height of any residential floor shall be 12 feet. The BAR may grant a waiver up to 14 feet on the first or second floor, based on architectural merit and context. Any dimension above this shall constitute two stories.
- b. The minimum height of any residential floor shall not be less than 10 feet; however, there is no minimum height for floors in a one family dwelling, two family dwelling or one family attached dwelling.
- c. The BAR is empowered to require adjustments to floor heights, based on context of the structure with its immediate surroundings, as defined in Section 54-231.

Non-Residential:

- d. The maximum height of any nonresidential story shall be 20 feet. The BAR may grant a waiver up to 25 feet on the main floor based on architectural merit and context. Any dimension above this height shall constitute two stories.
 - e. The minimum height of any nonresidential floor shall not be less than 12 feet, unless otherwise specified in Sec. 54.306.X.
 - f. The BAR is empowered to require adjustments to floor heights, based on context of the structure with its immediate surroundings, as defined in Section 54-231 H.
9. Half stories, as the top story of a building, shall be permitted as specified by height district, subject to the following restrictions.

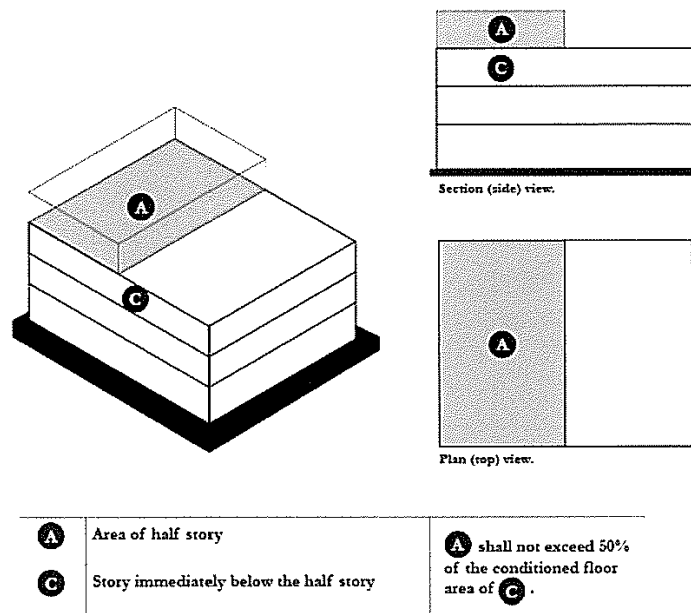
For the purposes of this section, half stories on one-family dwellings, two-family dwellings, one-family attached dwellings, and accessory buildings to these building types within the Old City Height Districts shall be limited the space under a gable or

hipped roof where the wall plates, or knee walls, on at least two opposite exterior walls shall not exceed two feet in height. The aggregate width of dormers on a half story shall not exceed 30% of the width of the exterior wall below the dormer(s).

Notwithstanding the definition for half story in Sec. 54-120, for purposes of this section, half stories on all other types of buildings may be either:

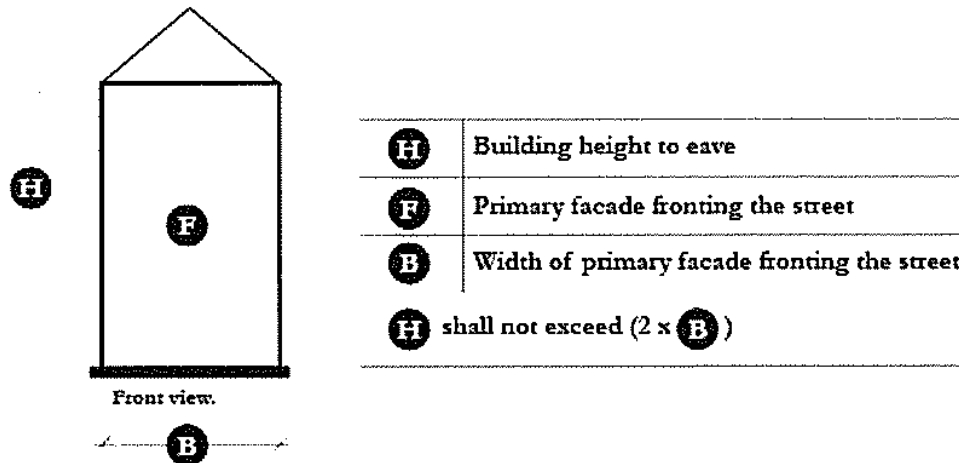
- a. A full story with a total floor area, including any covered exterior floor area under a roof, that does not exceed 50% of the conditioned floor area of the story immediately below the half story as illustrated in Figure 1 below, or
- b. A half story under a gable or hipped roof that complies with the restrictions for a half story on a one or two family dwelling described in the previous paragraph

Figure 1



10. Building height to roof eave shall not exceed twice the building width of the primary façade of habitable space fronting the street as illustrated in Figure 2 below; provided the Board of Architectural Review may waive this provision based on architectural merit and context.

Figure 2



11. There shall be no minimum building height requirement, unless required by the applicable height district as specified in Section 54-306.X.
12. If any portion of a structure subject to the jurisdiction of the BAR is within fifty (50) feet of an existing structure rated "exceptional" (Group 1) or "excellent" (Group 2) on the Historic Architecture Inventory, adopted by Section 54-235, or a structure in the Landmark Overlay district, such portion of that structure shall not exceed the height of such existing structures unless approved by the Board of Architectural Review based on architectural merit and context.
13. Additional buildings and additions to buildings that are subject to the jurisdiction of the BAR shall be subordinate in height, scale and mass to the primary building; provided this provision may be waived by the Board of Architectural Review when it deems such appropriate based on architectural merit and context or existing lot conditions. This provision does not apply to vertical additions to existing buildings. When appropriate, vertical additions must strive to be minimally visible with minimal impact on the character of the historic building and its context.
14. Parking garages shall not exceed the height of the principal building on the site. Parking garages shall not be constrained by floor to floor height requirements, but stand-alone parking garages shall appear from the street to conform to the number of stories permitted in the height district in which it is located.
15. In the height districts where additional height may be awarded on the basis of architectural merit and context, if the property is not subject to the jurisdiction of the Board of Architectural Review, the owner requesting the additional height must submit the plans to the Board of Architectural Review for review and approval. The property will not remain subject to the Board of Architectural Review purview after the request for additional height is reviewed. Any further request for additional height will trigger review by the Board of Architectural Review.

16. An applicant seeking a height rezoning shall only be able to request a rezoning to the next higher height district, except for applicants seeking a rezoning to the Upper Peninsula Zoning district. Requests to rezone to a higher height district shall be evaluated, in part, on the context of the property, the character of the immediate area, street widths around the property, and whether the requested rezoning will be compatible with surrounding properties.
 17. Standalone Communication towers shall not exceed the maximum building height limits of districts that include a maximum height limit in feet, or a height limit equal to 14 feet per story for districts that are specified in stories.
 18. "Architectural merit" means a project that reflects exemplary architectural and urban design, utilizes the highest level of materials and finishes and contributes to the public realm, as outlined in the Board of Architectural Review Principles.
 19. Additional height for ornamental appurtenances and utilitarian appurtenances related to mechanical equipment or structural systems (such as elevator and stair towers, exhaust fans, HVAC and communication equipment) that exceed the maximum allowable height may be permitted by the Board of Architectural Review, based on architectural merit and context.
 20. Appurtenances shall not exceed nine (9) feet and shall be placed to the rear of side of a building where possible in order to minimize visibility from the public right of way.
 21. Mechanical equipment on a roof shall be visually screened from the street with parapets or other types of visual screens of the minimum height necessary to conceal the same. Density of screening should be adequate to sufficiently screen mechanical equipment.
- (Ord. No. 2001-62, § 1, 6-19-02; Ord. No. 2003-07, §§ 1, 2, 1-14-03; Ord. No. 2004-25, § 2, 3-9-04; Ord. No. 2004-89, § 1, 9-14-04; Ord. No. 2004-94, § 1, 9-14-04; Ord. No. 2007-172, §§ 3, 4, 9-11-07; Ord. No. 2008-139, §§ 1—3, 10-28-08; Ord. No. 2014-32, § 1, 3-18-14; Ord. No. 2014-153, § 2, 12-2-14; Ord. No. 2015-140, § 1, 10-13-2015; Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20; Ord. No. 2021-014; Ord. No. 2021-014, § 1, 2-9-21; Ord. No. 2022-181, § 1, 12-6-22)

Sec. 54-306.A. Height District 2.5.

In this district:

1. Maximum building height shall be 2.5 stories as specified in 54-306.X.
2. The Board of Architectural Review or Design Review Board may permit an additional half story on buildings subject to its jurisdiction based on architectural merit and context.
3. Within residential zone districts, accessory buildings that satisfy setback requirements of this Chapter, shall not exceed one and one-half (1½) stories and an eave height of eleven (11) feet unless the principal building on the lot is two (2) or more stories in height, in which case the accessory building shall not exceed two (2) stories

and a total height of twenty-four (24) feet measured from the ground to the peak of a gable, hip, or shed roof. The Board of Architectural Review may approve an increase to the twenty-four (24) foot height limitation.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20; Ord. No. 2022-192, § 1, 12-20-22)

Sec. 54-306.B. Height District 3.

In this district:

1. Maximum building height shall be 3 stories as specified in 54.306.X.
2. The attic shall not be habitable.
3. The nonresidential ground floor shall not exceed 14 feet as specified in 54.306.X.
4. The Board of Architectural Review may waive the limitation on habitable attic space based on architectural merit and context.
5. Within residential zone districts, accessory buildings that satisfy setback requirements of this Chapter, shall not exceed one and one-half (1½) stories and an eave height of eleven (11) feet unless the principal building on the lot is two (2) or more stories in height, in which case the accessory building shall not exceed two (2) stories and a total height of twenty-four (24) feet measured from the ground to the peak of a gable, hip, or shed roof. The Board of Architectural Review may approve an increase to the twenty-four (24) foot height limitation.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20; Ord. No. 2022-192, § 1, 12-20-22)

Sec. 54-306.C. Height District 2.5 - 3.

In this district:

1. On rights-of way greater than 50 feet, the building height shall be limited to a maximum 3 stories as specified in 54.306.X.
2. On rights-of-way between 35 feet and 50 feet, the building height shall be limited to a maximum of 3 stories as specified in 54.306.X, and shall also be limited by the right-of-way width of the street at a maximum 1:1 ratio (i.e.: if a ROW is 40ft, the building shall not be taller than 40ft). Right-of-Way measurements will be determined by the Zoning Administrator.
3. On rights-of-way less than 35ft the building height shall be limited to a maximum 2.5 stories as specified in 54.306.X.
4. The nonresidential main floor shall not be less than 12 feet in height and no more than 14 feet in height, unless a waiver is granted for additional height of the floor per the requirements of Section 54-306(7) hereof.
5. Within residential zone districts, accessory buildings that satisfy setback requirements of this Chapter, shall not exceed one and one-half (1½) stories and an eave height of eleven (11) feet unless the principal building on the lot is two (2) or more stories in height, in which case the accessory building shall not exceed two (2) stories

and a total height of twenty-four (24) feet measured from the ground to the peak of a gable, hip, or shed roof. The Board of Architectural Review may approve an increase to the twenty-four (24) foot height limitation.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20; Ord. No. 2022-192, § 1, 12-20-22)

Sec. 54-306.D. Height District 3.5.In this district:

1. Maximum building height shall be 3.5 stories as specified in 54.306.X.
2. The Board of Architectural Review or Design Review Board may permit an additional half story, based on architectural merit and context.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.E. Height District 4.In this district:

1. Maximum building height shall not exceed 4 stories as specified in 54.306.X.
2. The Board of Architectural Review or Design Review Board may permit an additional one-half story, based on architectural merit and context.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.F. Height District 5.In this district:

1. Maximum building height shall not exceed 5 stories as specified in 54.306.X.
2. The Board of Architectural Review or Design Review Board may permit an additional story based on architectural merit and context.
3. Structures that are 5 stories or more shall be abutted by sidewalks no less than 10 feet in width.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.G. Height District 6.In this district:

1. Maximum building height shall not exceed 6 stories as specified in 54.306.X.
2. The Board of Architectural Review or Design Review Board may permit an additional story based on architectural merit and context.
3. Structures that are more than 6 stories shall be abutted by sidewalks no less than 10 feet in width.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec 54-306.H. Height District 7.In this district:

1. Maximum building height shall not exceed 7 stories as specified in 54.306.X.
2. The Board of Architectural Review or Design Review Board may permit an additional story based on architectural merit and context.

3. Structures that are more than 7 stories shall be abutted by sidewalks no less than 10 feet in width.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.I. Height District 8.

In this district:

1. Maximum building height shall not exceed 8 stories as specified in 54.306.X.
2. The Board of Architectural Review or Design Review Board may permit an additional story based on architectural merit and context.
3. Structures that are 8 stories or more shall be abutted by sidewalks no less than 10 feet in width.
4. The provisions of Section 54-306(12) do not apply in this height district.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.J. Height District 4-12.

In this district:

1. Maximum building height shall not exceed 4 stories subject to height bonuses acquired through the use of incentive options as defined beginning is Section. 54-299.21.
2. Structures more than 4 stories shall be abutted by sidewalks no less than 10 feet in width.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.K. Height District 3X.

In this district, no structure, including appurtenant parts of a structure, except for elevator penthouses, or mechanical penthouses, shall exceed a height equal to three (3) times the least dimension as measured from the center of the right-of-way to the face of the building. No structure fronting on any street shall be lower than the height of thirty (30) feet.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.L. Height District 85/200.

In this district:

1. For structures located in Mixed-Use Workforce Housing (MU-1/WH and MU-2/WH) base zoning districts and for structures having principal uses of Health Services, as listed on the Table of Permitted Uses in Section 54, Article 2, Part 3. at 801, 805, 806, and 807, no part of a structure, including elevator penthouses and mechanical penthouses, shall exceed the height of two hundred (200) feet, nor shall the principal

structure be lower than thirty (30) feet. For all other principal uses and accessory uses within this height district, the maximum building height shall not exceed 5 stories as specified in 54.306.F.

2. All portions of a structure, except cornices, canopies, balconies, arcades and other non-habitable architectural elements, shall be set back at least forty (40) feet from the center of the street right-of-way, and a minimum of fifty (50) percent of the building's street frontage shall occur at this set back line, subject to provisions of Article 3: Part 10.
 3. All portions of a structure above eighty-five (85) feet including elevator penthouses and mechanical penthouses, except cornices, canopies, balconies, arcades and other non-habitable architectural elements, shall be set back at least fifty-five (55) feet from the center of the street right-of-way. All such portions of a structure, except cornices, canopies, balconies, arcades and other non-habitable architectural elements, shall occupy no more than fifty (50) percent of the building site coverage area.
- (Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20; Ord. No. 2022-078, § 1, 6-21-22)

Sec. 54-306.M. Height District 85/125.

In this district:

1. For structures located in Mixed-Use Workforce Housing (MU-1/WH and MU-2/WH) base zoning districts and for structures having principal uses of Health Services, as listed on the Table of Permitted Uses in Section 54, Article 2, Part 3. at 801, 805, 806, and 807, no part of a structure, including elevator penthouses and mechanical penthouses, shall exceed the height of one hundred and twenty-five (125) feet, nor shall the principal structure be lower than thirty (30) feet. For all other principal uses and accessory uses within this height district, the maximum building height shall not exceed 5 stories as specified in 54.306.F.
 2. All portions of a structure, except cornices, canopies, balconies, arcades and other non-habitable architectural elements, shall be set back at least forty (40) feet from the center of the street right-of-way, and a minimum of fifty (50) percent of the building's street frontage shall occur at this set back line, subject to provisions of Article 3: Part 10.
 3. All portions of a structure above eighty-five (85) feet including elevator penthouses and mechanical penthouses, except cornices, canopies, balconies, arcades and other non-habitable architectural elements, shall be set back at least fifty-five (55) feet from the center of the street right-of-way. All such portions of a structure, except cornices, canopies, balconies, arcades and other non-habitable architectural elements, shall occupy no more than seventy-five (75) percent of the building site coverage area.
- (Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20; Ord. No. 2022-078, § 2, 6-21-22)

Sec. 54-306.N. Height District 85/30.In this district:

1. For structures located in Mixed-Use Workforce Housing (MU-1/WH and MU-2/WH) base zoning districts and for structures having principal uses of Health Services, as listed on the Table of Permitted Uses in Section 54, Article 2, Part 3. at 801, 805, 806, and 807, no part of a structure, including elevator penthouses and mechanical penthouses, shall exceed the height of one eighty-five (85) feet, nor shall the principal structure be lower than thirty (30) feet. For all other principal uses and accessory uses within this height district, the maximum building height shall not exceed 5 stories as specified in 54.306.F.
2. All portions of a structure, except cornices, canopies, balconies, arcades and other non-habitable architectural elements, shall be set back at least forty (40) feet from the center of the street right-of-way, and a minimum of fifty (50) percent of the building's street frontage shall occur at this set back line, subject to provisions of Article 3: Part 10.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20; Ord. No. 2022-078, § 3, 6-21-22)

Sec. 54-306.O. Height District 100/30.In this district:

1. The minimum height for a structure fronting on a street is thirty (30) feet, and the minimum height on the ground floor of a structure fifteen (15) feet.
2. The maximum height of a structure along north-south oriented streets is four (4) stories. The height along north-south oriented streets shall be maintained from the edge of the right-of-way into the interior of the lot for a distance of one hundred (100) feet, except as provided in part 5 hereof.
3. The maximum height of a structure along east-west oriented streets is five (5) stories. The height along east-west oriented streets shall be maintained from the edge of the right-of-way into the interior of the lot a distance of twenty-five (25) feet, except as provided in part 5 hereof.
4. Within the interior of lots (one hundred (100) feet from the edge of north-south oriented streets and twenty-five (25) from the edge of east-west oriented streets), the maximum height for a structure is one hundred (100) feet.
5. To enable the incorporation of distinct architectural features and improve pedestrian activity at the street level, the height limits of parts 2 and 3 may be exceed by an additional occupied story within the step-back areas set out in parts 2 and 3 and

occupied or unoccupied architectural features along the right-of-way may exceed the height limits of parts 2 and 3 upon findings by the Board of Architectural Review that:

- a. The sidewalks widths along all streets abutting the project are widened by at least three (3) feet; and
- b. At least seventy-five (75) percent of the ground floor street frontages is devoted to non-residential use; and
- c. If applicable, the additional story and its proposed location in the step-back areas prescribed by parts 2 and 3 enhance the architectural approach of the project; and
- d. If applicable, proposed architectural features along the right-of-way that exceed the height limits of parts 2 and 3 enhance the architectural approach of the project and do not constitute, in the aggregate, more than twenty (20) percent of the square footage of the footprint of the structure at the street level.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.P. Height District 80/30.

In this district:

1. No structure, including appurtenant parts of a structure except for elevator penthouses, or mechanical penthouses, shall exceed a height of eighty (80) feet nor shall any structure fronting on any street be lower than the height of thirty (30) feet.
2. All portions of a structure above the fifty-five (55) foot level shall be set back at least twenty-five (25) feet from all street right-of-way lines.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.Q. Height District 50W.

In this district:

1. No structure shall exceed a height of fifty feet (50').
2. All structures shall be set back from the high water mark a minimum of twenty-five feet (25'), except that water-dependent structures shall be allowed to encroach on the twenty-five foot (25') setback.
3. All structures shall be set back from the high water mark of manmade canals a minimum of ten feet (10'), except that water-dependent structures shall be allowed to encroach on the ten foot (10') setback.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20 \$)

Sec. 54-306.R. Height District W.

In this district:

1. No structure shall be nearer to the nearest right-of-way lines of the street on which it fronts than a distance equal to the height of the building.
2. The ground coverage of all structures on a lot shall not exceed twenty-five (25) percent of the lot area; "ground coverage" being defined as the sum of the areas of the largest floors in each building.
3. No structure shall be nearer to an interior property line or side street right-of-way line than a distance equal to one-half-the height of the building.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.S. Height District WP.

In this district:

1. No structure shall exceed the height of sixty (60) feet.
2. The ground coverage of all structures on a lot shall not exceed twenty-five (25) percent of the lot area; "ground coverage" being defined as the sum of the areas of the largest floor in each building. Ground coverage shall not include paved parking areas or staging areas.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.T. Height District 56/30 V.

In this district:

1. FEMA Velocity Zone regulations impose significant restrictions on the developable volume of properties that fall within its influence, and are particularly restrictive regarding street-level development. The success of the traditional urban fabric of Charleston is highly dependent upon the activation of the public realm, and street-level uses are a key element of this activity. The 56/30V Height District is intended to encourage a continuation of Charleston's urban traditions by providing incentive for development of street-level activity within FEMA Velocity Zones.
2. No part of a structure shall exceed the height of fifty-six (56) feet unless permitted as a result of the following clauses, nor shall any principal structure be lower than thirty (30) feet.
3. Allowances for additional enclosed habitable space above fifty-six (56) feet but not to exceed a height of seventy (70) feet shall be permitted when the development in question provides for contributory occupation of the ground floor at the street frontage(s) of the property. Such contributory occupation must be designed to abide by FEMA requirements for development in Velocity Zones as approved by the city's Floodplain Administrator. For every square foot of approved contributory occupation of the ground floor, the development will be permitted an equivalent square foot of

habitable space above fifty-six (56) feet, up to a limit of 25 percent of the total rooftop area. Contributory occupation is defined as any activity that is deemed by the Zoning Administrator to be consistent with and supportive of the goal of street-level activation within the FEMA V-Zone. Such activity might include, but is not limited to: outdoor dining (covered or open-air), temporary shops or merchant stands; manned vending carts; green spaces (physically open to the sky); building access stairs or lobbies, storefront displays, etc. In addition, the areas dedicated to contributory occupation must be located with a majority of its frontage on the street or public sidewalk, and must be specifically designed to support contributory occupation. Under no circumstances will parking, mechanical or storage areas be considered contributory occupation.

4. Allowances for additional height above fifty-six (56) feet but not to exceed seventy (70) feet may be permitted for architectural features such as parapets, towers, pergolas, or other roof elements, and mechanical rooms, elevator penthouses and stair towers. Mechanical rooms, elevator penthouses and stair towers must be designed as integrated architectural elements. The design of such features is further limited as follows: they shall not contain enclosed habitable spaces (unless such habitable spaces are permitted as a result of the previous clause); the total rooftop occupation (including allowed enclosed habitable spaces and uninhabitable architectural features) shall not exceed 50 percent of the total rooftop area; the existence and design of any such features is subject to review and approval of the Board of Architectural Review.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20\$)

Sec. 54-306.U. Height District 120/30.

In this district:

1. No structure, including appurtenant parts of a structure, except for elevator penthouses, or mechanical penthouses, shall exceed a height of one hundred twenty (120) feet nor shall any structure fronting on any street be lower than the height of thirty (30) feet.
2. All portions of a structure above the seventy (70) foot height level shall set back at least thirty (30) feet from all street right-of-way lines.
3. All principal structures fifty (50) feet or less in height shall have no set back from street right-of-way lines, subject to provisions of Article 3: Part 10; except such structures may be set back from street right-of-way a distance no greater than the least such set back of the two adjoining buildings on either side.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.V. Height District 55/30 S.

In this district:

1. No part of a structure shall exceed the height of fifty-five (55) feet, nor shall the principal structure be lower than thirty (30) feet.

2. All structures shall have no minimum set back from street right-of-way lines, subject to provisions of Article 3: Part 10.

(Ord. No. 2017-085, § 1, 8-15-17; Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.W. Height District 55/30.

In this district:

1. No part of a structure shall exceed the height of fifty-five (55) feet, nor shall the principal structure be lower than thirty (30) feet.
2. All structures shall have no set back from street right-of-way lines, subject to provisions of Article 3: Part 10.

(Ord. No. 2020-014, § 1, 1-28-20)

Sec. 54-306.X. Height district chart.

Charleston Height Districts			
Height District	Min./Max. Floor to Floor Height by Use (feet)		Old HD's
2.5	Res: 10 ft./12 ft.		35
3(3.5)	Res: 10 ft./12 ft.	Ground Floor Non-Res: 12 ft./14 ft.	50/25, 55/30
3.5(4)	Res: 10 ft./12 ft.	Non-Res: 12 ft./14 ft.	50/25, 55/30
		Ground Floor Non-Res: 16 ft./20 ft.	
4	Res: 10 ft./12 ft.	Non-Res: 12 ft./14 ft.	50/25, 55/30,
		Ground Floor Non-Res: 16 ft./20 ft.	80/30
5	Res: 10 ft./12 ft.	Non-Res: 12 ft./14 ft.	55/30
		Ground Floor Non-Res: 16 ft./20 ft.	
6	Res: 10 ft./12 ft.	Non-Res: 12 ft./14 ft.	55/30
		Ground Floor Non-Res: 16 ft./20 ft.	
7	Res: 10 ft./12 ft.	Non-Res: 12 ft./14 ft.	
		Ground Floor Non-Res: 16 ft./20 ft.	
8	Res: 10 ft./12 ft.	Non-Res: 12 ft./14 ft.	80/30, 100/30
		Ground Floor Non-Res: 16 ft./20 ft.	
2.5/3 ¹	Res: 10 ft./12 ft.	Ground Floor Non-Res: 12 ft./14 ft.	50/25
4/12 ²	Res: 10 ft./12 ft.	Non-Res: 12 ft./14 ft.	55/30
		Ground Floor Non-Res: 16 ft./20 ft.	

¹Building heights in this district may be restricted by street right-of-way.

²The 4/12 district is not eligible for height rezonings unless the base zoning of the property is rezoned from the Upper Peninsula zoning district to another base zoning district concurrently with the height rezoning.

(Ord. No. 2020-014, § 1, 1-28-20; Ord. No. 2021-014, § 1, 2-9-21)

Sec. 54-306.Y. Height District 8-12(A), (B), and (C).

In this district:

1. Maximum building height shall not exceed eight (8) stories subject to height bonuses acquired through the satisfaction of public benefit requirements as set forth below.
2. Only properties that (i) are already zoned Height District 8, (ii) are more than 3.5 acres of contiguous highland in size, and (iii) are concurrently applying to be rezoned Planned Unit Development (PUD) subject to PUD guidelines and master plan that require on-site workforce housing, a minimum twenty (20) percent of the property as publicly accessible open space or dedicated to public realm improvements, and other public benefits satisfactory to City Council, shall be permitted to apply for rezoning to Height District 8-12(A), (B), or (C). Requests to rezone to Height District 8-12(A), (B), or (C) shall be evaluated, in part, on the context of the property, the character of the immediate area, street widths around the property, and whether the requested rezoning will be compatible with surrounding properties.
3. Subject in each case to satisfaction of all publicly accessible open space, workforce housing, and other requirements set forth in the applicable PUD guidelines and master plan, maximum building height may exceed eight (8) stories, but in any event shall not exceed nine (9) stories in Height District 8-12(A), ten (10) stories in Height District 8-12(B), and twelve (12) stories in Height District 8-12(C). Not more than forty (40) percent of the total land area subject to the applicable PUD guidelines and master plan shall be included in Height District 8-12(A), (B), and (C) in aggregate, and the remainder shall remain in Height District 8 or a lower Height District. Subject to the foregoing aggregate limitation, the maximum percentage of the total land area subject to the applicable PUD guidelines and master plan that may be included in any one of Height District 8-12(A), (B), or (C) shall be as follows:
 - a. Height District 8-12(A) 20%.
 - b. Height District 8-12(B) 20%.
 - c. Height District 8-12(C) 15%.

In addition, the application of this height district shall result in a net reduction in developable square footage for the overall property, determined as follows: (x) the total combined increase in amount of developable square footage that may be

constructed on the property subject to the applicable PUD guidelines and master plan as a result of including portions of the property in Height District 8-12(A), (B), or (C) (calculated for any area as the number of additional stories multiplied by the square footage of land area included in the applicable Height District 8-12(A), (B), or (C)), must be no more than seventy-five (75) percent of (y) the total combined reduction in amount of developable square footage that may be constructed on the property subject to the applicable PUD guidelines and master plan as a result of including portions of the property in the required open space or dedicated public improvements or lower height districts (calculated for any area as the number of reduced stories multiplied by the square footage of land area included in the open space, or dedicated public improvements or lower height district (for which calculation open space or dedicated public improvements areas shall be deemed to be reduced to zero (0) stories).

4. No additional story may be awarded by the Board of Architectural Review or Design Review Board based on architectural merit and context.
5. The Board of Architectural Review or Design Review Board shall require that the composite roofline of buildings within the land area subject to the applicable PUD guidelines and master plan be varied through the use of volumetric forms and roof shapes of varying heights.
6. In the event that the base zoning district of a property that is currently within Height District 8-12(A), (B), or (C) is rezoned to another base zoning district other than PUD, the property shall automatically be rezoned to Height District 8, unless rezoned to another Height District.
7. Structures that are eight (8) stories or more shall be abutted by sidewalks no less than ten (10) feet in width along public street frontages.
8. On public street frontages, immediately adjacent to any building with a street front façade that is taller than nine (9) stories, there will be a twenty (20) foot setback from the street front façade for any adjacent building mass for a minimum width of twenty (20) feet along that frontage to ensure that the massing integrity of the taller volume can be expressed fully down to the street without being combined with other immediate adjacent massing.
9. The provisions of Section 54-306(10) (Building height to roof eave shall not exceed twice the building width of the primary façade of habitable space fronting the street) and (13) (Additional buildings and additions to buildings that are subject to the jurisdiction of the BAR shall be subordinate in height, scale and mass to the primary building) do not apply in this height district.

(Ord. No. 2024-017, § 1, 2-13-24)

Sec. 54-307. View corridor protection.

In all the Old City Height Districts, structures shall be spaced so that no street prolonged toward the Ashley or Cooper River would be blocked by a building, thereby preserving the vista from East Bay Street, East Battery, Lockwood Drive or Halsey Blvd.

Sec. 54-308. Exceptions.

The height limitations of 54-306 shall not apply to church spires, belfries, cupolas, domes, port cranes and movable passenger cruise boarding ramps not intended or used for human occupancy, monuments, masts and aerals.

Sec. 54-309. Reserved.

**PART 3 DRIVEWAY AND BUILDING SETBACK REQUIREMENTS FOR
BUSINESS, OFFICE OR INDUSTRIAL LOTS**

Sec. 54-310. Driveway spacing and design for business, office and industrial lots.

The maximum width of driveways, and the minimum curb radius shall be based upon the speed limit of the street to which the driveway is to be connected, and shall be as shown on Table 3.2. Driveways shall be a minimum distance of 50 feet from the intersection of the right-of-way lines to the edge of driveways. The distance between the proposed driveway and an existing adjacent driveway shall be the greatest distance feasible. For parcels with a right-of-way frontage equal to or less than 130-feet in length the development is limited to one driveway and for parcels with a frontage greater than 130-feet in length the development may have multiple driveways, but no more than three driveways. For parcels with a right-of-way frontage equal to less than 130-feet in length, two single lane driveways may be allowed if the inbound drive is upstream from the outbound drive. In cases of new development and/or redevelopment, the driveways shall be located in a manner where they can be shared between parcels, if feasible. See Figures 3.1 and 3.2 for an illustration of how to measure these dimensions.

(Ord. No. 2008-05, § 1, 11-20-07)

Sec. 54-311. Building setbacks for business, office or industrial lots.

The minimum building setbacks from street rights-of-way for business, office or industrial lots shall be based upon the speed limit of the adjoining street(s) and shall be as shown on Table 3.2.

**TABLE 3.2: DRIVEWAY AND BUILDING SETBACK REGULATIONS
FOR BUSINESS, OFFICE AND INDUSTRIAL LOTS**

A	B	C	D
Street Speed Limit	Max. one-way/two- way driveway width	Min. radius	Min. setback ¹
20	15/30	15	0
25	15/30	15	20
30	20/40	20	20
35	20/40	20	30
40	25/50	25	40
45	25/50	25	50
50	30/60	25	60
55 +	30/60	30	70

Notes:

1. Not applicable to the peninsular section of Charleston below Mount Pleasant Street, to any property located within the Old City District west of the Ashley

River, to any property included within the Commercial Corridor Design Review District as defined in Section 54-268, or to any property within the GP zoning district. Minimum setbacks for Residential Office per Table 3:1 Section 54-301.

(Ord. No. 2000-244, § 1, 10-10-00; Ord. No. 2003-69, § 9, 8-19-03; Ord. No. 2005-336, § 1, 8-16-05; Ord. No. 2007-212, § 1, 11-20-07)

Secs. 54-312—54-314. Reserved.

PART 4 OFF-STREET PARKING REQUIREMENTS

Sec. 54-315. Intent.

The purpose of this section is to establish minimum requirements for off-street parking based on the typical needs of various types of land uses, the pattern of development in the city, and the physical characteristics of the land and environment in the Charleston area.

Sec. 54-316. Applicability of requirements.

At the time any building, structure, or outdoor commercial space (a use not utilizing a structure) is constructed, reused, enlarged, or increased in capacity by the addition of dwelling units, guest rooms, floor area, or seats, the required number of off-street automobile parking spaces with adequate provisions for ingress and egress by an automobile of standard size shall be provided for the new or enlarged use(s) pursuant to Table 3.3. Properties within the GP zoning district shall be exempt from all provisions of Part 4: Off-Street Parking Requirements, with the exception of Section 54-317, subsection b. relating to the maximum area of paved parking spaces and aisles.

Applications for determining compliance with parking requirements shall include a scaled site plan, showing the existing and proposed location of structures, trees, monuments, signs, and other improvements, and the location of existing and proposed parking. Applications may be subject to the requirements under Article 6: Site Plan Review (Technical Review Committee), where applicable.

Land uses existing on the effective date of this ordinance which do not comply with the off-street parking requirements of Article 3: Part 4, shall be subject to Article 1: Part 2: Non-conforming Uses.

(Ord. No. 2003-69, § 10, 8-19-03)

Sec. 54-317. Required number of off-street parking spaces by land use.

- a. Minimum number of parking spaces required. Table 3.3 indicates off-street parking requirements for land uses. All calculations shall be rounded up to the next whole number. The total parking requirement for mixed uses shall be the sum of the requirement for each use, except that "shopping center" developments, as defined in Table 3.3, shall be exempt from this requirement. Parking spaces required for one use shall not be used to satisfy the parking requirement for another use with the exception of churches, synagogues or other places of worship. Additional parking for bicycles shall be required for certain land uses pursuant to Section 54-320. For the purposes of this Section, "peninsula" shall mean the area of the City of Charleston bounded by the Cooper River to the east, the Ashley River to the west and south, and the Charleston City Limits to the north.
- b. Maximum area of paved parking spaces and aisles allowed for surface parking lots. The maximum number of hard surfaced parking spaces allowed for a shopping center development, as defined in Table 3.3, shall not exceed the total number of spaces

required pursuant to this section, increased by 20 percent. All spaces and appurtenant aisles in excess of this 20 percent cap, or areas within the parking lot equivalent in size to the number of excess parking spaces multiplied by 450 square feet, shall be non-hard surfaced utilizing slag, gravel, ROC, grasscrete, or similar porous material or simply a grass field.

TABLE 3.3: OFF-STREET PARKING REQUIREMENTS

<u>USE</u>	<u>NUMBER OF SPACES REQUIRED</u>
RESIDENTIAL:	
- One (1) family detached dwelling	2 per unit
- One (1) family attached dwelling & mobile home	
- Small efficiency dwelling unit (micro-unit)	1 per 3 dwelling units, or fraction thereof
- Two (2) family dwelling	2 per unit
- Multiple (3 or more) dwellings or dwellings (one or more) within commercial bldgs.	1½ per unit, except that the minimum requirement shall be 1 per unit within the MU-1 and MU-2 districts
- Boarding house	1 per 2 bedrooms
- Dormitory, sorority or fraternity house	1 per 2 beds
- Nursing home, homeless shelter, orphanage, sanitarium, boarding home for sheltered care; where above uses are communal living with central dining room	1 per 6 beds
- Special needs housing; housing restricted by funding agencies, public housing agencies, or other such organizations, to elderly, handicapped individuals or families, or low income occupants based on current income limits established by the U.S. Department of Housing and Urban Development	1 per 3 dwelling units
- Affordable housing	1 per 4 dwelling units
ACCOMMODATIONS:	
- Accommodations uses, except for bed and breakfasts and short term rentals	2 per 3 sleeping units
- RV parks	1 per trailer accommodation or "hook-up"
INSTITUTIONAL AND COMMUNITY SERVICE:	
- High schools (grades 9-12)	1 per each 4 seats in the main assembly hall plus 1 for each classroom
- Preschool, kindergarten, elementary and junior high schools (grades preschool through 8)	2 spaces for each employee

USE**NUMBER OF SPACES REQUIRED**

- Day care centers	2 per employee
- Church, synagogue, place of worship (other than on the peninsula)	1 per 4 seats design capacity of the principal place of worship; 80 percent of the required spaces may be provided at an off-site public or private parking lot which is accessory to another use not open or operating during the time of weekend services and within 400 feet of the place of worship. Written permission from owner of lot indicating times parking is to be permitted shall be submitted to zoning administrator prior to approval.
- Church, synagogue, place of worship (on the peninsula)	1 per 8 seats design capacity of the principal of the principal place of worship with off-site parking allowed same as above.
- Funeral home, mortuary, crematorium	1 per 4 seats in sanctuary or 1 per 2 employees whichever is greater.
- Health care facility; Hospital, accessory uses	1 per 2 beds
- Health care facility; Ambulatory care, clinic, accessory uses	1 per employee plus 1.5 per outpatient treatment room.
- Laboratory, research facility	1 per 2 employees
- Place of public assembly auditorium, stadium, community center, theater	1 per 6 seats or patrons (based on maximum occupancy etc. as allowed by Building Code)
- Trade School, College, Institution of higher learning and accessory uses to such facility except dormitory, sorority, and fraternity housing	1 per 100 square feet of total classroom space
- Library	3 per 1000 square feet of interior floor area.

BUSINESS, ENTERTAINMENT AND OFFICE:

- Art gallery (non-retail), museum (on the peninsula)	1 per 600 square feet (excluding storage)
- Art gallery (non-retail), museum (all other areas)	1 per 400 square feet (excluding storage)
- Automobile repair garage	1 per 2 employees at maximum employment on a single shift plus 1 per 150 square feet of automobile repair space.

USE**NUMBER OF SPACES REQUIRED**

- Office, professional and public buildings bank (on the peninsula)	1 per 500 square feet (excluding halls, stairwells, storage/elevator shafts and bathrooms)
- Office, professional and public buildings, bank (all other areas)	1 per 240 square feet (excluding halls, stairwells, storage/elevator shafts and bathrooms)
- Eating and drinking places; sit down establishments serving food and beverage (on the peninsula)	1 per 100 square feet of inside patron use area (excluding bathrooms) except that for a lot with this use that is more than 150 away from any lot with a residential zoning designation, measured closest point of the lot to closest point of the lot, the number of spaces required for inside patron use area shall be 1 per 150 square feet (excluding bathrooms), and 1 per 130 square feet of outside patron use area .
- Eating and drinking places; sit down establishments serving food and beverage (all other areas)	1 per 90 square feet of inside patron use area (excluding bathrooms), and 1 per 200 square feet of outside patron use area .
- Eating places; fast food, drive-thru, take-out and/or express prepared food delivery only	1 per 75 square feet of inside patron use area, plus 1 per 200 square feet of outside patron use area.
- Eating places; drive-thru with no use area	1 per employee at maximum shift inside patron plus 1 per delivery vehicle plus 1 per 200 square feet of outside patron use area.
- Catering kitchen with no on-site food sales	1 per 500 square feet of gross floor area
- Retail and personal service establishments not including food stores (on the peninsula)	1 per 400 square feet of gross floor area.
- Retail and personal service establishments not including food stores (all other areas)	1 per 200 square feet of gross floor area
- Gas stations with convenience stores	In addition to one space for each pump facility, one per 400 square feet of floor area
- Food stores (off-peninsula)	1 per 300 square feet of floor area
- Food stores (on-peninsula)	1 per 400 square feet of floor area
- Car wash (full service)	2 per bay/stall plus 1 space per employee
- Car wash (self serve)	1 per washing module

USE**NUMBER OF SPACES REQUIRED**

- Retail specialty stores selling only furniture, or large appliances, or carpet, or lumber, or or plants, or other specific types of household furnishings 1 per 400 square feet of total floor area excluding storage areas plus 1 per store delivery vehicle.
- Shopping center - a commercial development which includes one or more retail type uses listed in this table. The total floor area must equal 20,000 square feet or more, in one or more buildings, on one or more lots which are designed and laid out to function as an interrelated development, as evidenced by both shared driveways and parking. 1 per 200 square feet leasable floor area for the first 20,000 total square feet. 1 per 250 square feet for 20,001 to 140,000 total leasable square feet. 1 per 300 square feet for total leasable square feet over 140,001.
- Mini warehouse, self storage warehouse facility 1 space per 6,000 square feet of net leaseable square footage of warehouse space, or fraction thereof, with up to half the required spaces and associated driveway areas permitted to remain unmarked for trucks and other large vehicles to park and maneuver.
- Dry cleaners, laundry services 1 per 300 square feet of customer use area plus 2 per 3 employees at maximum employment on a single shift.
- Private club, fraternal lodges, country clubs 1 per 3 persons allowed by Building Code in the main assembly room or auditorium.

INDUSTRIAL:

- Manufacturing, wholesale, or other industrial establishments not catering to retail trade 1 per 2 employees at maximum employment on employment on a single shift plus 1 per company vehicle.

RECREATIONAL:

- Recreational facilities (on the peninsula) 1 per 8 patrons based on occupancy limit as determined by Building Code or based on design capacity.
- Recreational facilities (other areas) 1 per 4 patrons based on occupancy limit as determined by Building Code or based on design capacity.
- Marinas 1 per 4 dry slips
1 per 2 wet slips
- Driving range 1 per tee plus 1 per employee at maximum employment on a single shift.

USE**NUMBER OF SPACES REQUIRED**

- | | |
|------------------|--|
| - Golf Course | 2 per tee plus 1 per employee at maximum employment on a single shift. |
| - Bowling alleys | 5 per alley |
| - Health club | 1 per 400 square feet of total floor area. |

(Ord. No. 1998-76, § 3, 4-28-98; Ord. No. 2002-92, § 7, 8-13-02; Ord. No. 2004-70, § 1, 7-20-04; Ord. No. 2006-428, § 9, 9-26-06; Ord. No. 2007-214, § 1, 11-20-07; Ord. No. 2014-130, §§ 2-4, 10-14-14; Ord. No. 2016-011, § 2, 1-12-16; Ord. No. 2017-144, §§ 2, 3, 12-11-17; Ord. No. 2018-043, § 14, 4-10-18; Ord. No. 2022-065, § 3, 4-26-22)

Sec. 54-318. Design requirements for new parking areas.**a. Surface lots:**

1. Standard Parking Space Size shall be 9' × 18'6" or 9' × 17' if vehicle overhang is provided.
2. Handicapped Parking Space Size and quantity shall be determined by Building Code and Federal regulations.
3. Parallel Parking Space size is required to be 7' wide by 22' long.
4. Aisle Width Aisles shall be of a sufficient width to provide safe access for the type and number of vehicles using the parking lot. The following dimensions shall be used as a guide for typical situations:
 - (a) 24 feet for 90° parking;
 - (b) 22 feet for two-way angled parking; 15 feet for 60° parking with one-way flow;
 - (c) 13'6" for 45° parking with one-way flow.
5. Public parking lots not associated with a specific development and monitored during periods of use may have up to 20 percent of the total parking spaces designated with signs and pavement markings for compact cars only. Minimum size is 7'6" wide and 16' long.

b. Parking garages:

1. Parking garages may provide compact car spaces at a rate of up to forty percent (40%) of the total parking spaces provided.
2. Minimum width for standard parking spaces is 8'6"; for compact spaces 7'6".
3. Minimum parking bay depth (two standard parking spaces and an aisle) is 60' for 90° parking; for 60° parking with one-way traffic, the minimum depth is 54', for 45° parking with one-way traffic, the minimum depth is 49'.

4. Handicapped parking space size and quantity shall be determined by Building Code and Federal regulations.
- c. Maneuverability. Parking areas must allow adequate room for vehicles to access parking lots and maneuver into and out of spaces safely. Parking lots requiring vehicles to back onto a public right-of-way shall not be permitted, except that properties with exclusively residential uses, with up to 10 dwellings on a lot and parking access on a local or collector street carrying less than 650 vehicles per day, may have driveways which require a vehicle to back onto and maneuver in the public right-of-way.
- d. Surface material requirements. But for the exceptions listed below, all surface parking lots shall be paved with a durable, hard surfaced material which is appropriate for the intended land use. All handicapped parking spaces, and the paths connecting spaces to buildings, shall be hard-surfaced regardless of the land use.
1. Exceptions. The following types of land uses shall be permitted to have surface parking lots which are paved with non-hard surfaced materials such as slag, gravel, ROC, or grasscrete, or not paved at all, provided that site drainage can be accommodated pursuant to city requirements; that a hard surfaced paved apron, of a length noted below, is constructed at each driveway entrance from a public street; and that the type of material and design of the paving material(s) used are found by the city to be suitable for the intended land use and the character of the property, historic or otherwise, and surrounding neighborhood:
 - (a) Exclusively residential uses with ten (10) or fewer residential units on one lot; all parking provided may be non-hard surfaced. Paved apron not required.
 - (b) Church, synagogue, or other place of worship; three-quarters (.75) of the parking provided may be non-hard surfaced; requires a twenty foot (20') paved apron.
 - (c) Day care centers, preschools, elementary through junior high schools (8th grade); three-quarters (.75) of the parking provided may be non-hard surfaced; requires a twenty foot (20') paved apron.
 - (d) Private clubs, fraternal lodges, country clubs; three-quarters (.75) of the parking provided may be non-hard surfaced; requires a twenty foot (20') paved apron.
 - (e) Recreational facilities, marinas, driving ranges, golf courses; all parking provided may be non-hard surfaced; requires a twenty-five foot (25') paved apron.
 - (f) Office uses allowed within the Residential Office (RO) zone district; all parking provided may be non-hard surfaced; requires a twenty foot (20') paved apron.
 - (g) Retail uses; ten (10) percent of parking provided may be non-hard surfaced; requires a twenty foot (20') paved apron.

- (h) Agricultural uses associated with the production, harvesting, packaging and shipping of agricultural products; all parking provided may be non-hard surfaced; requires a thirty foot (30') paved apron.
 - (i) Manufacturing establishments within the Light Industrial (LI) or Heavy Industrial (HI) zone district not catering to retail trade; all parking provided may be non-hard surfaced; requires a forty-five foot (45') paved apron.
- 2. In making a determination of the suitability of a paving material and design, the types of vehicles which will typically use the parking lot, the anticipated amount of daily or weekly traffic, the drainage conditions of the site and surrounding area, and the character of the surrounding neighborhood, historic or otherwise, shall be considered.
- e. Lighting. Lighting used to illuminate any parking area shall be shielded or otherwise designed to direct light away from adjacent residential districts.

Sec. 54-318.1. Storage or display of merchandise in parking areas prohibited.

- a. Storage or display of merchandise in outdoor parking spaces and driveways shall be prohibited, except that temporary display of shrubs, plants, flowers, Christmas trees, seasonal greenery, and seasonal agricultural produce, not to exceed thirty (30) days within a three month period, shall be permitted if required number of parking spaces for land uses are provided.
- b. Display of passenger vehicles, trucks, boats and boat trailers by authorized businesses licensed by the City for commercial sales of passenger vehicles, trucks and boats shall be exempt from this section.
- c. Existing storage or display of merchandise in outdoor parking areas that does not comply with the restrictions in this section shall be amortized and made to conform to these restrictions 90 days after the effective date of this ordinance.

(Ord. No. 2003-116, § 1, 12-16-03)

Sec. 54-319. Location of parking.

Off-street parking spaces provided pursuant to this section shall be located upon the same lot of record as the use to which they are associated. However, if the property does not provide sufficient off-street parking, parking may be provided on a properly zoned lot within 400 feet of the building or use, provided, however, that a satisfactory long-term lease with a term of at least 10 years is provided to and approved by the zoning administrator (such distance shall be measured from the nearest point of the parking lot to the nearest boundary of the lot on which the building or use is located that the parking is said to serve), and further provided that for eating and drinking places or catering uses, the lot used for off site parking shall not adjoin a lot with a residential zoning designation or be separated from a lot with a residential zoning designation by a right-of-way of 55 or less feet.

(Ord. No. 2017-144, § 4, 12-11-17)

Sec. 54-319.1. Shared parking.

1. The Technical Review Committee (TRC) may authorize a parking reduction for a new development site or redevelopment site zoned General Business (GB) with multiple uses upon the review of a shared parking analysis that demonstrates that the uses are in close proximity to one another and have different peak parking demands and operating hours. For the purposes of this section, development site shall mean a lot or parcel of land or combination of lots or parcels of land proposed for development. If a development site has more than one (1) parcel or lot with different owners, all property owners will be required to sign the application for shared parking, and shall be required to execute and record in the public records a declaration on a form provided by the Department of Planning and Preservation, hereinafter department, stating that the parcels have been developed as a single unit for purposes of meeting the zoning ordinance requirements. The declaration shall include a legal description of each parcel and shall state that no parcel may be developed separate from the other parcel unless each parcel standing alone meets the requirements of the shared parking approval.
 - a. *Shared parking study.* The shared parking analysis shall clearly identify the uses that will use the shared spaces at different times of the day, week, month or year subject to the following:
 - i. The shared parking analysis shall be based on the Urban Land Institute's (ULI) Shared Parking Model (latest edition). The analysis must be prepared and sealed by a registered engineer in the State of South Carolina with transportation expertise;
 - ii. The shared parking analysis shall address the size and type of activities, the composition of tenants or, uses, the rate of turnover for proposed shared spaces, and the anticipated peak parking and traffic demands;
 - iii. The shared parking analysis shall provide for no reduction in the number of handicapped spaces;
 - iv. The shared parking analysis shall provide a plan to convert reserved space to required spaces;
 - v. The shared parking analysis shall be approved by TRC prior to submittal, based on the feasibility and observations of the uses to share the parking due to their particular peak parking and trip generation characteristics;
 - vi. Shared use parking approval shall only be valid for those uses as indicated in the study; and
 - vii. If a parking reduction is approved under the provisions of this section, such approval shall be evidenced by the issuance of an order in the manner prescribed in Section 54-319.1., 54-319.2.
 - b. *Change in use.* Should any of the approved uses as indicated in the approved shared parking analysis change, or should the Zoning Director or Department of Traffic and Transportation, or its successor, find that any of the conditions

described in the approved shared parking analysis or parking reduction order no longer exist, the owner of record shall have the option of submitting a revised shared parking analysis in accordance with the standards of this section or of providing the number of spaces required for each use as if computed separately.

2. *Parking reduction order.* If an application for shared parking is approved, such approval shall be evidenced in an order executed by the department and a consent to order executed by the applicant. The order shall state the number of parking spaces required to be provided, a legal description of the property where the parking is to be provided and the property served by the parking area and the conditions upon which the shared parking is approved. The parking reduction order shall only take effect upon the recordation of the order in the County Register of Deeds office at the expense of the applicant and filed with the department by applicant.
 - a. The parking reduction order shall act as a restrictive covenant running with the land and be binding on any successors in interest or assigns of the property owner.
3. If there is a failure of any condition contained in the parking reduction order, the owner of the property or agent shall:
 - a. Apply for an amended parking reduction order. The application shall show that although the condition has failed, it does not adversely impact the character and integrity of surrounding properties or that additional conditions will be substituted for any failed condition. The department may require a new parking study as provided in subsection 1.a. to support the application.
 - b. In the event the department agrees with the application, the department may approve the amendment to shared parking.
 - c. When final, the amended order shall be prepared for execution and recording in the County Register of Deeds office at applicant's expense by the applicant.
 - d. If the department determines that failure of the condition adversely impacts the character and integrity of surrounding properties, the owner will be required to comply with the condition or obtain a new parking reduction order in accordance with this section. Failure of a condition of a parking reduction order without approval of an amended or new parking reduction order as provided herein shall be a violation of the Zoning Ordinance.
4. If a shared parking application includes the use of an off-site parcel owned by other than the applicant for parking or purposes related to parking, an off-site parking agreement in accordance with Section 54-319.2 will be required.
5. A parking reduction order may be terminated by application of the owner of the property affected by the order to the department if it is shown that parking has been provided which meets the requirements of Article 3, Part 4 Off-street parking requirements, and the use no longer needs a parking reduction. A termination of the

parking reduction order shall be executed by the department and recorded in the public records of the county at the applicant's expense. A copy of the recorded order shall be filed with the department by the applicant.

(Ord. No. 2022-025, § 1, 2-22-22; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-319.2. Off-site parking agreement.

1. When the required off-street parking for a shared use parking approval is to be provided on a site at a location different from the site which will be served by the parking as provided in Section 54-319.1, the owner of the off-site parcel of land and the owner of the land intended to be served by such shared use parking approval (if different than the owner of the parcel to be used for parking) shall enter into an agreement with the City. The off-site parking area shall never be sold or transferred except in conjunction with the sale of the parcel served by the off-site parking facilities unless:
 - a. The parcel to be sold will continue to be used as provided in the off-site parking agreement and the new owner executes a consent to assume and be bound by the obligations of the owner of the parcel used for parking as provided in the agreement. The consent shall be in a form approved and executed by the department and recorded in the County Register of Deeds Office at the expense of the owner. A copy of the recorded document shall be provided by owner to the department; or
 - b. A different parcel complying with the provisions of the Article 3, Part 4 Off-street parking requirements, and subject to a recorded off-site parking agreement as specified herein may be substituted for the parcel of land subject to the off-site parking agreement; or
 - c. The parcel being served by the off-site parking no longer requires the parking as evidenced by a written statement executed by the parties executing the off-site parking agreement and as approved by the department and a termination of the off-site parking agreement is executed by the department and recorded in the County Register of Deeds office at owner's expense.

(Ord. No. 2022-025, § 1, 2-22-22)

Sec. 54-320. Additional parking requirements.

- a. Bicycle parking shall be provided for land uses pursuant to Table 3.4.
- b. Required bicycle parking facilities shall be designed and constructed to allow bicycles to be securely fastened to the ground or buildings and shall be located at or near main entrances to buildings in well lighted areas.

TABLE 3.4: BICYCLE PARKING REQUIREMENTS

<i>Land use</i>	<i>Number of spaces required</i>
College dormitory	1 per 3 beds
Schools (grade 3 through high school)	3 per classroom
Library	2 per 10,000 square feet of interior floor area
Food stores of at least 10,000 square feet	5 per 10,000 square feet
Shopping centers as defined in Table 3.3	1 per 10,000 square feet

PART 5
OFF-STREET LOADING REQUIREMENTS

Sec. 54-321. Off-street loading space requirements for business, wholesale, industrial, or terminal uses.

- a. Every building or structure, except existing buildings within the Old and Historic District and the Old City District in peninsula Charleston, hereafter established or used for business, wholesale, industry or terminals shall provide space as indicated herein for the loading and unloading of vehicles. Such space shall have access to a public alley or, if there is no alley, to a public street. Required loading spaces are:
1. Retail business building: one (1) space 10 by 25 feet for each 10,000 square feet of floor area or fraction thereof.
 2. Wholesale and industry: one (1) space 10 by 50 feet for each 10,000 square feet of floor area or fraction thereof.
 3. Bus and truck terminal: sufficient space to accommodate the maximum number of loading vehicles and stored vehicles at the terminal at one time.
 4. Accommodation Uses: one (1) space, 10 by 25 feet, for each facility with 100 or more rooms, and an additional space for each additional 100 rooms.

(Ord. No. 1998-76, § 4, 4-28-98)

Secs. 54-322—54-324. Reserved.

PART 6
TREE PROTECTION REQUIREMENTS

Sec. 54-325. Intent.

This Ordinance is intended to protect trees by regulating the cutting down, damaging, planting and replacement of trees. This Ordinance is not intended to prohibit agriculture, silviculture, horticulture or nursery operations within the city.

Sec. 54-326. Exemptions.

The regulations set forth herein shall apply to all real property within the city limits of Charleston, subject to the following exemptions:

- a. **Residential Exemption.** Lots equal to or less than one (1) acre that are zoned RR-1, SR-1, SR-2, SR-3, SR-4, SR-5, SR-6 (Single-Family Residential), SR-7, SR-8 (Single-Family Residential) or STR (Single and Two Family Residential) or used exclusively for single-family detached or duplex dwellings, shall be exempt from the provisions of this Ordinance, except those relating to grand trees, provided, however, in the initial development of a lot greater than one (1) acre, subdivided or developed after the effective date of this Ordinance for use as RR-1, SR-1, SR-2, SR-3, SR-4, SR-5, SR-6 (Single-Family Residential), SR-7, SR-8 (Single-Family Residential) or STR (Single and Two Family Residential) such development shall be subject to the provisions of this Ordinance. Individual lots equal to or less than one (1) acre sold thereafter shall be exempt from the provisions of this Ordinance, except those relating to grand trees. For lots zoned RR-1, SR-1, SR-2, SR-3, SR-4, SR-5, SR-6 (Single-Family Residential), SR-7, SR-8 (Single-Family Residential) or STR (Single and Two Family Residential) if a change of zoning has been requested to a zoning classification other than RR-1, SR-1, SR-2, SR-3, SR-4, SR-5, SR-6 (Single-Family Residential), SR-7, SR-8 (Single-Family Residential) or STR (Single and Two Family Residential) said lot cannot be cleared prior to the decision on the rezoning by the Planning Commission.
- b. **Commercial Timber Operations.** Commercial timber operations shall be exempt from the provisions of this Ordinance, except that a fifty foot (50') buffer of existing trees shall be maintained adjacent to all public rights-of-way.
- c. **Wetlands Mitigation.** The mitigation of wetlands pursuant to a development order or approved plan from, and the requirements of, the South Carolina DHEC-OCRM or the Army Corps of Engineers shall be exempt from the provisions of this Ordinance.
- d. **Commercial Tree Operation Exemption.** Trees grown specifically for sale by commercial nurseries are exempt from the provisions of this Ordinance.
- e. **Agricultural Exemption.** Any bona fide agricultural use shall be exempt from the provisions of this Ordinance.

- f. Airports. Removal of trees for the purposes of maintaining safe clearance for aircraft as required by federal law or the establishment of facilities exclusively dedicated to aviation operations by the Charleston County Aviation Authority will be exempt from the provisions of this Ordinance.
- g. Utility Companies, Electric Suppliers and Governmental Agencies. Utility companies, electric suppliers and governmental agencies constructing or maintaining easements for water, sewer, electricity, gas, drainage, telephone or television transmission or rights-of-way shall be exempt from the provisions of this Ordinance if the applicable company, supplier or agency has executed an Agreement with the City which, at a minimum: 1) recognizes the need to minimize the cutting or trimming of grand trees which do not frustrate or substantially interfere with the intended purpose of construction or maintenance; 2) establishes, to the extent feasible, design guidelines for construction and maintenance which identifies the saving of grand trees as a factor to be considered in the design process; 3) allows for a consultation process with the City prior to the commencement of major construction or maintenance or the removal of grand trees; and 4) provides that a breach of such Agreement constitutes a violation of this ordinance and a loss of exemption from the requirements of this Ordinance.
- h. Nothing in this article shall be construed to prevent the ordinary cutting, trimming and maintenance of a tree; nor shall anything in this article be construed to prevent the cutting or removal of any tree which the authorized municipal officers shall certify as required for public safety.

(Ord. No. 1999-22, § 5, 3-10-99; Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2001-44, § 6, 5-8-01; Ord. No. 2002-19, § 3, 2-12-02)

Sec. 54-327. Tree removal restrictions.

- a. Protection of Grand Trees. The removal, relocation, destruction or abuse in any manner of any grand tree (24" or greater D.B.H., excluding pine trees and sweetgum trees) is prohibited on any parcel of non-exempt land unless a variance, special exception, or staff approval has been obtained pursuant to Section 54-329. For subdivisions, the siting of a lot so as to place a grand tree at or near the center of a lot in a location that will require the removal of the grand tree for construction of a dwelling unit, shall be prohibited.
- b. Protected Trees Prior to Development. Where a building permit or subdivision approval has not been issued, the removal, relocation, destruction or abuse in any manner of more than twenty-five percent (25%) of the protected trees (8" or greater D.B.H.) on any one (1) parcel of non-exempt land within any five (5) year period shall be prohibited. The total number of protected trees existing on any one parcel shall not be reduced below a total number equal to fifteen (15) protected trees per acre.
- c. Protected trees during or after development. The removal, relocation, destruction or abuse in any manner of protected trees required to be saved by this Chapter is

prohibited. For parcels of land proposed for development, a minimum number of protected trees on the entire parcel equal to fifteen (15) protected trees per acre shall be saved. For parcels containing less than fifteen (15) protected trees per acre, the total number of protected trees required to be saved shall equal the total number of protected trees existing on the parcel. Grand trees to be saved may be used to calculate the total number of protected trees to be saved.

- d. Protection of Tree Colonnades and Allees. The removal, relocation, destruction or abuse in any manner of any protected tree within a colonnade or allee is prohibited on any parcel of non-exempt land. For the purpose of this ordinance, a colonnade or allee is defined as any two (2) or more parallel rows of trees of the same species with a minimum of four (4) trees total and a minimum of two (2) trees measuring twenty inches (20") or greater D.B.H., except for pine trees and parallel rows of trees with a public right-of-way in the center which are exempt from this definition.
- e. This Ordinance shall not restrict the ability of the City of Charleston, public utilities, and electric suppliers from maintaining safe clearance around utility lines.
- f. The area of existing utility and drainage easements may be subtracted from the total site area for the purpose of calculating the number of protected trees required to be saved.
- g. The following standards shall apply regarding the removal and disposal of trees and vegetation associated with land development approved by the Subdivision Review Committee and/or the Technical Review Committee:

Definitions. For the purpose of this subsection, the following items shall be defined as follows:

- 1. "Burning" means the setting on fire, igniting of or combustion of any trees, understory trees, brush or other vegetation.
- 2. "Incineration" means the process of lighting and burning trees, understory trees, brush or other vegetation.
- 3. "Incinerator" means any instrument or device used or intended for the purpose of incineration.

No person, firm or corporation shall incinerate and/or burn any trees, understory trees, brush or other vegetation or cause the process of incineration to take place and/or use an incinerator when clearing trees, understory trees, brush or other vegetation for an approved residential subdivision and/or any other approved development land in the City of Charleston.

(Ord. No. 2000-10, § 1, 1-25-00; Ord. No. 2002-19, § 4, 2-12-02; Ord. No. 2007-118, § 1, 6-19-07; Ord. No. 2009-209, § 1, 10-13-09; Ord. No. 2012-375, § 1, 9-25-12)

Sec. 54-328. Tree survey requirements.

- a. Application for a building permit. Application for a building permit where protected trees are proposed to be removed shall require the submission of a site plan or plat which includes the following:
 1. A tree survey overlay at the same scale as the site plan or plat, which locates all protected trees identified by D.B.H. and species. Dead or diseased trees shall be identified. Groups of trees in close proximity, (i.e. those within five feet of each other) may be designated as a clump of trees, with the predominant species, estimated number and average diameter indicated. All tree surveys shall be prepared by a licensed landscape architect, surveyor or engineer registered in South Carolina and shall have an accuracy of plus or minus three feet ($\pm 3'$). For developments including but not limited to golf courses, parks, playgrounds or other outdoor public recreational developments and cemeteries, which exceed ten (10) acres, an aerial photograph or a print of equal quality may be substituted for a tree survey with the approval of the Zoning Administrator in instances where the Zoning Administrator determines that they would provide the same information as the tree survey;
 2. Location of all existing and proposed structures, improvements, rights-of-way, and easements on the property and designation of all public rights-of-way and other public lands adjacent to the property;
 3. Designation of protected trees to be saved and those to be relocated or removed;
 4. An illustration of how trees are to be protected during development in accordance with the standards set forth in Section 54-330;
 5. If existing protected trees are to be relocated, a designation of the location where they are proposed to be replanted. If protected trees are to be replaced, the size and species of recommended trees that are proposed and the location where they are proposed to be replanted;
 6. Any proposed changes in grade or drainage on the property with an illustration of how protected trees are to be maintained;
 7. The name, signature, seal and address of the site surveyor, who shall be responsible for the accuracy of the information provided.
- b. Application for subdivision approval. Application for subdivision approval where protected trees are proposed to be impacted shall require the following information in addition to plat information required by Section 54-810 and 54-811:
 1. A tree survey overlay on the plat which locates all grand trees identified by D.B.H. and species. Dead or diseased trees shall be identified. All tree surveys for subdivisions involving the construction of roads or drainage easements shall be performed by a licensed, registered surveyor and shall have an accuracy of plus or

minus three feet ($\pm 3'$). All other tree surveys shall be prepared by a landscape architect, surveyor or engineer registered in South Carolina and shall have an accuracy of plus or minus three feet ($\pm 3'$);

2. Limits of areas proposed to be clearcut for proposed structures, improvements, rights-of-way, and easements. Clearcutting beyond the limits as shown on the plat or site plan shall not be permitted.
3. A tree protection plan showing how grand trees located in development areas are to be protected during development in accordance with the standards set forth in Section 54-330.

Sec. 54-329. Standards for approval to remove trees.

- a. The removal of a protected tree, that is not a grand tree, in violation of the standards set forth in Section 54-327 shall be approved if the Zoning Administrator finds that one or more of the following conditions exist. Trees removed under the following conditions shall require replacement with two (2), two and one-half inch ($2\frac{1}{2}$ ") caliper recommended trees (see Appendix A). This section shall not apply to grand trees.
 1. The protected tree is located at least twenty-five feet ($25'$) away from the property line and where a proposed building or accessory structure is to be placed in accordance with other City standards; or
 2. The protected tree creates unsafe vision on a public street or right-of-way as defined by Section 54-351.
 3. The protected tree has a D.B.H. of eight inches (8") to fifteen inches (15"), is located at least twenty-five feet ($25'$) from the property line within a parking lot providing no more than the maximum number of hard surfaced parking spaces allowed by this chapter, and the Zoning Administrator determines that no other design alternative exists to save the tree.
- b. Removal of a grand tree shall require approval of a variance, except for grand trees listed under category III or category IV in Section 54-331 which shall require approval of a special exception where the Board finds that the grand tree is in poor health, that removal of the grand tree will allow protection of a specimen tree, as defined herein, which would otherwise be removed if the grand tree is saved, or that the grand tree is located within a proposed building footprint, street, road, driveway, drainage way, or parking area and no other reasonable design or economically reasonable alternative exists to save the tree.
- c. Each protected or grand tree that is determined by the Zoning Administrator to be hazardous, diseased or injured to the extent it is irreparably damaged shall be approved for removal. The burden of providing proof of the extent of the hazard, disease or injury shall rest with the applicant, who must provide documentation from a qualified arborist. When there is a question of tree hazard, the Zoning Administrator may require documentation, including strength loss calculations for the portion of the

tree creating the hazard, from an arborist who has been certified by the International Society of Arboriculture or who is otherwise qualified. Each live tree which is approved for removal shall require replacement with one (1) recommended tree of an equivalent species.

- d. Each protected or grand tree that is determined by the Zoning Administrator to be causing structural damage to a habitable building where said damage cannot be remedied without removing the tree shall be approved for removal. When there is a question of whether tree removal is necessary, the Zoning Administrator may require documentation from an arborist who is certified by the International Society of Arboriculture or, who is otherwise qualified, that said damage cannot be successfully halted through root pruning and installation of a root barrier while maintaining the structural integrity of the tree. Each tree removed shall require replacement with one (1) recommended tree of an equivalent species.

(Ord. No. 2002-19, § 5, 2-12-02)

Sec. 54-330. Tree protection requirements.

- a. Protective Barricades Required. Protective barricades shall be placed around all protected trees and grand trees located in development areas, and designated to be saved, prior to the start of development activities, and shall remain in place until development activities are complete or construction in accordance with standards set forth in this Section commences. The area within the protective barricade shall remain free of all building materials, dirt or other construction debris, vehicles and development activities. Barricades shall be erected at a minimum distance from the base of protected trees and grand trees according to the following standards:
 - 1. For Protected Trees Twenty-Three Inches (23") or Less D.B.H. Protective barricades shall be placed a minimum distance of ten feet (10') from the base of each protected tree; and
 - 2. For Protected Trees Greater Than Twenty-Three Inches (23") D.B.H. and Grand Trees. Protective barricades shall provide a diameter of protection around the tree equal in feet to the diameter breast height of the tree (i.e., a 24" diameter tree would require a 24-foot diameter protective barricade).
- b. Construction within the protective barricade. Changes in grade or construction of impervious surface or utilities within the required protected barricade shall be permitted subject to the following guidelines:
 - 1. Changes in grade or construction within protected zones must be approved by the Zoning Administrator prior to beginning construction. Plans must be submitted which illustrate in detail protective measures necessary as described in Section 2.10 of Erosion and Sediment Control Practices for Developing Areas by the South Carolina Land Resources Conservation Commission, Erosion and Sediment Control Division; and

2. A minimum setback, to be determined using the following guidelines, shall be maintained between impervious surfaces and the bases of all protected and grand trees, except where the zoning administrator finds that a proposed encroachment of an impervious surface will not adversely affect a tree, or that special construction methods and tree care, including but not limited to mulching, root pruning, soil aeration, and fertilization/bio-stimulant treatment, will reduce the potential for adversely affecting a tree:
 - (a) Trees of eight inches (8") to sixteen inches (16") D.B.H.: a minimum clearance of eight feet (8') is required.
 - (b) Trees of seventeen inches (17") to twenty-three inches (23") D.B.H.: a minimum clearance of ten feet (10') is required.
 - (c) Grand Trees: a minimum clearance of twelve feet is required, plus an additional one foot (1') of clearance for every three D.B.H. inches (3") in excess of twenty-four (24) (i.e., a tree having a D.B.H. of thirty-six inches [36"] must have a minimum clearance of sixteen feet [16'] between its base and any impervious surface).
 - c. All roots outside the protective barricade to be removed during development shall be severed clean and a two inch (2") layer of mulch shall be applied over the surface of exposed roots during development.
 - d. All pruning of protected trees and grand trees shall be done by a qualified tree service during development according to the National Arborists Association, Pruning Standards for Shade Trees.
- (Ord. No. 2002-19, §§ 6, 7, 2-12-02)

Sec. 54-331. Tree replacement, relocation, planting and maintenance requirements.

- a. Tree Replacement Required.
 1. For existing trees, the Board of Zoning Appeals-Site Design is authorized to grant variances or special exceptions to allow their removal as specified in Section 54-327 and 54-329, and to require the planting of replacement trees of at least two and one-half inches (2½") caliper measured at six inches (6") above grade with the total caliper inches per removed tree not to exceed the amount specified in Section 54-331.b.
 2. For trees removed unlawfully, without approval, the Board of Zoning Appeals-Site Design is authorized to grant after-the-fact approval, and require mitigation for trees removed with replacement trees of at least two and one-half inches (2½") caliper measured at six inches (6") above grade. The total caliper inches, type and size of replacement trees required by the Board shall be based on the health and specimen quality of the tree(s) removed, the site specific conditions, and the factual circumstances under which the tree was removed. For trees removed

unlawfully from a single-family zoned lot or a lot used exclusively for a single-family home, the Board is authorized to require up to three (3) times the total D.B.H. of the tree(s) removed in caliper inches of replacement trees and the minimum size of the replacement trees to be planted on-site shall be four inches (4") caliper. For trees removed unlawfully from all other properties, the Board is authorized to require up to ten (10) times the total D.B.H. of the tree(s) removed in caliper inches of replacement trees and the minimum size of the replacement trees to be planted on-site shall be four inches (4") caliper.

3. In all cases, the Board is authorized to require up to fifty (50) percent of the total caliper inches of replacement trees to be planted off-site at a location in the general area of where the tree removal(s) occurred, and to allow off-site replacement to be accomplished through a contribution to the City of Charleston Street Tree Planting Program in an amount equivalent to the City's cost for the type, size and number of trees to be planted off-site.
 4. In certain circumstances, the Board may require mitigation for trees removed in the form of specific arboricultural services to be rendered to remaining trees on the site.
- b. Mitigation Requirements. The Board is authorized, upon the granting of a variance or special exception for removal of a grand tree, to require mitigation with replacement trees. The total caliper inches per removed tree shall not exceed the amount specified below for the tree species being removed. Tree species are categorized by ratings taken from the Tree Species Rating Guide (March 2001), developed by the Southern Chapter of the International Society of Arboriculture. The categories below list tree species by their lowest rating in the range for hardiness zone 8. The category for species not listed below will be determined by using the Tree Species Rating Guide.

Category I (80 and above rating, 100% mitigation)

<i>Acer rubrum</i>	Red Maple
<i>Cornus florida</i>	Dogwood
<i>Ilex opaca</i>	American Holly
<i>Ilex x attenuata</i>	Foster, Savannah Holly
<i>Lagerstroemia indica</i>	Crepe Myrtle
<i>Magnolia grandiflora</i>	Southern Magnolia
<i>Nyssa sylvatica</i>	Blackgum, Tupelo
<i>Quercus alba</i>	White Oak
<i>Quercus phellos</i>	Willow Oak
<i>Quercus virginiana</i>	Live Oak
<i>Taxodium distichum</i>	Bald Cypress

Category II (60 and above rating, 75% mitigation)

<i>Betula nigra</i>	River Birch
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<i>Carya illinoensis</i>	Pecan
<i>Carya sp.</i>	Hickory(s)
<i>Celtis laevigata</i>	Sugarberry
<i>Cercis canadensis</i>	American Redbud
<i>Cupressus x chamaecyparis</i>	Leyland Cypress
<i>Eriobotrya japonica</i>	Loquat
<i>Fagus grandifolia</i>	American Beech
<i>Fraxinus sp.</i>	White, Carolina, Green Ash
<i>Ginkgo biloba</i>	Ginkgo
<i>Gordonia lasianthus</i>	Loblolly Bay
<i>Ilex vomitoria</i>	Yaupon Holly
<i>Juniperus virginiana</i>	Eastern Red Cedar
<i>Liriodendron tulipifera</i>	Tulip Poplar
<i>Magnolia virginiana</i>	Sweetbay
<i>Oxydendron arboreum</i>	Sourwood
<i>Pistacia chinensis</i>	Chinese Pistache
<i>Quercus acutissima</i>	Sawtooth Oak
<i>Quercus falcata</i>	Southern Red Oak
<i>Quercus laurifolia</i>	Laurel Oak
<i>Quercus lyrata</i>	Overcup Oak
<i>Quercus prinus</i>	Chestnut Oak
<i>Quercus shumardii</i>	Shumard Oak
<i>Quercus stellata</i>	Post Oak
<i>Sassafrass albidum</i>	Sassafrass
<i>Stewartia sp.</i>	Stewartia
<i>Styrax sp.</i>	Snowbell
<i>Ulmus parvifolia</i>	Chinese Elm
<i>Zelkova serrata</i>	Japanese Zelkova

Category III (40 and above rating, 50% mitigation)

<i>Aesculus pavia</i>	Red Buckeye
<i>Catalpa sp.</i>	Catalpa
<i>Celtis occidentalis</i>	Hackberry
<i>Diospyros virginiana</i>	Persimmon
<i>Gleditsia triacanthos</i>	Honeylocust
<i>Juglans nigra</i>	Black Walnut
<i>Paulownia tomentosa</i>	Princess Tree
<i>Platanus acerifolia</i>	London Plane Tree
<i>Platanus occidentalis</i>	Sycamore
<i>Prunus caroliniana</i>	Carolina Cherry Laurel
<i>Pyrus calleryana</i>	Flowering Pear
<i>Quercus bicolor</i>	Swamp White Oak

<i>Quercus coccinea</i>	Scarlet Oak
<i>Quercus nigra</i>	Water Oak
<i>Quercus palustris</i>	Pin Oak
<i>Ulmus alata</i>	Winged Elm

Category IV (0 and above rating, 25% mitigation)

<i>Ailanthus altissima</i>	Tree of Heaven
<i>Albizia julibrissin</i>	Mimosa
<i>Melia azedarach</i>	Chinaberry
<i>Morus sp.</i>	Mulberry
<i>Populus sp.</i>	Poplar
<i>Prunus serotina</i>	Black Cherry
<i>Prunus serrulata</i>	Japanese Cherry
<i>Quercus laevis</i>	Turkey Oak
<i>Robinia pseudoacacia</i>	Black Locust
<i>Salix sp.</i>	Willow
<i>Sapium sebiferum</i>	Popcorn Tree
<i>Tilia americana</i>	American Linden
<i>Ulmus americana</i>	American Elm

- c. Relocation of a Protected Tree. Relocation is accomplished by relocating the protected tree on land under the same ownership which is to be developed pursuant to the same development order.
- d. Replacement. Replacement is accomplished by planting the number, size and species of a recommended tree in accordance with the conditions at the Board of Zoning Appeals—Site Design, on land under the same ownership which is to be developed pursuant to the same development permit, within the right-of-way adjacent to the property subject to the approval of the appropriate government agency, or off-site within the general area of the trees being replaced.
- e. Tree Planting Requirements. In the relocation of a protected tree, or the replacement of a protected tree or grand tree with a recommended tree, the following planting criteria shall be met:
 1. Each tree must be a minimum of two and one-half inches (2½") caliper measured six inches (6") above grade.
 2. All trees used shall be vigorous, well shaped, branched and foliated;
 3. All trees shall be planted in accordance with the specifications described in Section 1.94 of Erosion and Sediment Control Practices for Developing Areas by the South Carolina Land Resources Conservation Commission, Erosion and Sediment Control Division; and

4. Seventy-five percent (75%) of the recommended trees shall be of those species which will provide similar or better wildlife habitat, shade, erosion control or water purification as the existing species.
- f. Inspection of Protected, Relocated or Replaced Trees. All relocated or replaced trees shall be inspected by the Zoning Administrator one (1) year after their planting to insure they are surviving in a healthy condition. Trees planted pursuant to this section that are found to be in declining condition shall be replaced by the owner of the parcel within thirty (30) days of notification from the Zoning Administrator. If replacement is necessary, there shall be a re-inspection six (6) months after the replacement planting.
- g. Maintenance of Protected, Relocated or Replaced Trees. The owner of the parcel shall be responsible for the maintenance of all protected, grand, relocated or replaced trees. (Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2000-10, § 2, 1-25-00; Ord. No. 2002-19, § 8, 2-12-02; Ord. No. 2012-375, § 2, 9-25-12)

Secs. 54-332—54-339. Reserved.

PART 7**PARKING LOT, VEHICULAR USE, AND REFUSE COLLECTION AREA
LANDSCAPING AND SCREENING REQUIREMENTS*****Sec. 54-340. Intent.**

All new surface parking lots, vehicular use areas, and refuse collection areas shall require the installation of landscaping, screen walls or fences pursuant to this chapter. Existing landscaping on developed or undeveloped property which satisfies requirements of this chapter, either partially or completely shall be maintained. Proposed improvements to properties developed prior to the effective date of this ordinance shall require parking lot landscaping improvements pursuant to this chapter for the entire property when there is a building addition or renovation that requires the approval of the Technical Review Committee.

(Ord. No. 2008-05, § 1, 1-22-08)

Sec. 54-341. Applicability of requirements.

- a. Properties zoned RR-1, SR-1, SR-2, SR-3, SR-4, SR-5, SR-6, SR-7, SR-8 (Single-Family Residential), STR (Single and Two Family Residential), or used exclusively for Single-Family or Duplex dwellings shall be exempt from these requirements.

(Ord. No. 2008-05, § 1, 1-22-08)

Sec. 54-342. Plan review and approval requirements.

- a. Submittal of plan required. When installation of landscaping is required a plan shall be submitted to the Zoning Division. The Zoning Administrator shall follow the requirements listed herein in approving or disapproving any required plan.
- b. The contents of the plan shall include the following:
 1. Dimensions and acreage of each lot or plot or portion thereof to be built upon or otherwise used;
 2. Layout of the entire project, including the proposed uses of all buildings and their relationship to surrounding properties;
 3. Layout of all parking lots, vehicular use areas, and refuse collection areas, including the location of vehicular entry and exit points, the internal vehicular circulation pattern and the location and dimension of required parking and loading spaces;
 4. Location and dimensions of existing and proposed streets and highways;

***Editor's note**—Ord. No. 2008-05, § 1, adopted Jan. 22, 2008, repealed former Part 7, §§ 54-340—54-343, in its entirety which pertained to parking lot landscaping requirements and derived from the initial publication of the Zoning Ordinance.

5. Location, name (botanical and common), size and spacing of all existing plant materials to be retained and proposed plantings and screenings. The plan shall clearly distinguish between existing plant materials to be retained and proposed plantings;
 6. Location of walls, fences and railings and an indication of their height and construction materials;
 7. Details illustrating landscaping installation; and
 8. Title; north arrow; scale, names of owner, developer and person responsible for plan preparation; and the date that the plan was drawn, including subsequent revision dates.
- c. No building permit shall be issued until the required landscaping plan has been submitted and approved, and no certificate of occupancy shall be issued until the landscaping is completed as certified by an on-site inspection by the Zoning Administrator.

(Ord. No. 2008-05, § 1, 1-22-08)

Sec. 54-343. Perimeter landscaping requirements for surface parking lots, service areas or other vehicular use areas.

Surface parking lots, service areas or other vehicular use areas shall include landscaping where such areas abut a public right-of-way or neighboring parcel, except where permitted driveway connections and pedestrian connections are to be provided. Such landscaping shall be provided as follows:

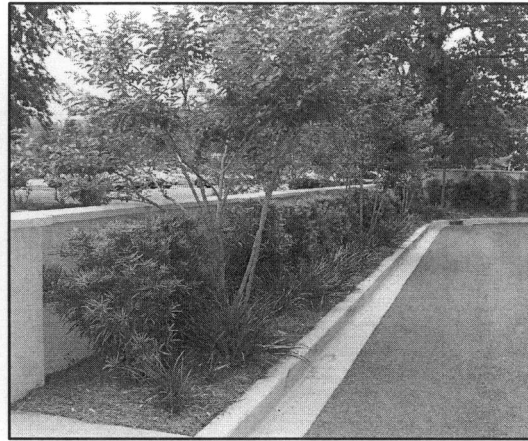
- a. A landscaping area at least five (5) feet in depth shall be located adjacent to the abutting right-of-way or neighboring parcel; except that where a drainage or other utility easement exists along a property line and the property line is not adjacent to a residentially zoned property, the landscape area can be reduced to three (3) feet and be located between the parking lot, service area or other vehicular use area and the drainage or utility easement.
- b. The landscaping area shall be planted with either one (1) recommended tree for each twenty five (25) linear feet of landscaping area and an evergreen hedge or other durable landscape material of at least three (3) feet in height to provide a continuous landscape element; or one (1) recommended tree for each twenty-five (25) linear feet of landscaping area in combination with a screen wall and/or fence of at least three (3) feet in height to provide a continuous landscape element. Screen walls and fences shall not exceed height limitations set forth in Table 3.1 (Section 54-301) and are subject to the BAR or CCDRB approval where applicable. (See Figure 343:1 and 343:2).



Figure 343:1 and Figure 343:2

- c. All portions of the landscaping area not planted with shrubs or trees, or covered by a screen wall or fence shall be planted with appropriate vegetation approved by the Zoning Administrator (See Figure 343:3).
- d. Where the landscaping area abuts a surface parking lot or other vehicular use area, the landscaping area shall be protected by curbing or an alternate durable and contextually appropriate material approved by the Zoning Administrator (See Figure 343:4).
- e. Exemptions:
 - 1. Surface parking lots, service areas or other vehicular use areas located south of Mount Pleasant Street, and the extension thereof across the peninsula, shall only be required to include a landscaping area adjacent to public rights-of-way and not adjacent to neighboring parcels, unless required pursuant to the Article 3, Part 8 Landscape Buffer Requirements.
 - 2. Surface parking lots, service areas or other vehicular use areas for properties used exclusively for residential uses and zoned to allow ten (10) or fewer dwelling units shall only be required to include a landscaping area adjacent to public rights-of-way and not adjacent to neighboring parcels.
 - 3. When a surface parking lot, service area or other vehicular use area will be entirely screened from all adjacent public rights-of-way by an intervening building or structure, the parking, service or other vehicular use area shall be exempt from providing street frontage and perimeter landscaping.
 - 4. Recommended trees shall comprise one-hundred (100) percent of the perimeter landscaping trees except in cases where a parking lot, service area, or other

vehicular use area is located within an existing utility easement, in which case the landscape area(s) may be planted with an understory trees in place of each required recommended tree.



(Ord. No. 2008-05, § 1, 1-22-08; Ord. No. 2016-145, § 1, 11-10-16)

Sec. 54-343.1. Interior landscaping requirements for surface parking lots and other vehicular use areas.

Surface parking lots and vehicular use areas shall include interior landscaping in accordance with the following requirements. For the purposes of this section, a landscape island shall have a minimum area equivalent to nine (9) feet wide by eighteen (18) feet long, or the length of the abutting parking space, whichever is less, be protected from the parking or service area by a curb, and be planted with one (1) recommended tree.

- a. Properties zoned BP (Business Park), LI (Light Industrial), or HI (Heavy Industrial) shall provide one (1) landscape island for every two thousand (2,000) square feet of parking, loading or other vehicular use area. Landscape islands shall be placed at the ends of automobile parking rows with the remainder of required landscape islands placed throughout the vehicular use area or combined into larger landscape islands.
- b. All other properties shall provide a minimum total number of landscape islands equivalent to one (1) landscape island for every five (5) parking spaces. Each parking row shall terminate with landscape islands and no more than twelve (12) parking spaces shall be permitted in a continuous row without being interrupted by a landscape island.
- c. Recommended trees shall comprise one-hundred (100) percent of interior parking lot trees except in cases where a parking lot is located within an existing utility easement in which case landscape islands may be planted with one (1) understory tree in place of each required recommended tree.

- d. Landscape islands having no curbing shall be protected by an alternative, durable and contextually appropriate material approved by the Zoning Administrator.
- e. Exemptions. Properties used exclusively for residential uses and zoned to allow ten (10) or fewer dwelling units, and all properties within the Old City District or Old and Historic District and limited to fifteen (15) or fewer off-street parking spaces shall not be required to provide interior landscaping.

(Ord. No. 2008-05, § 1, 1-22-08)

Sec. 54-343.2. Screening requirements for refuse collection areas.

All dumpster, trash compactor, trash can (roll out) or other refuse collection areas shall be screened from streets and adjacent properties with an enclosure constructed of durable materials; except that a refuse collection area completely screened from all adjacent public rights-of-way and neighboring properties by intervening buildings or other structures shall not be required to have an additional enclosure. Enclosures shall be closed on three sides with an operable gate on the fourth side and shall be designed to completely screen the refuse and containers inside. The enclosure detail shall be approved by the BAR or CCDRB when located on a property within their jurisdiction.

(Ord. No. 2008-05, § 1, 1-22-08)

PART 8
LANDSCAPE BUFFER REQUIREMENTS

Sec. 54-344. Intent.

All subdivisions, residential or otherwise, and site improvements shall require the installation of landscape buffers pursuant to this Article. Existing buffers which satisfy the requirements of this Article, either partially or completely, shall be maintained. Proposed improvements to properties developed prior to this Article shall only require buffer improvements for the section(s) of the lot being improved, unless the cost of the proposed building additions and site improvements exceeds fifty percent (50%) of the current value of the existing land and improvements thereon, in which case the entire lot shall be brought into compliance with landscape buffer requirements of this Article.

Sec. 54-345. Applicability of requirements.

Landscape buffer requirements listed herein shall apply to all real property within the City limits of Charleston.

Sec. 54-346. Plan review and approval requirements.

Whenever any property is affected by these landscape buffer requirements, the property owner or developer shall submit a plan for review and approval by the Zoning Administrator. The Zoning Administrator shall follow the requirements of this Article in approving or disapproving any plan required herein.

- a. The contents of the plan shall include the following:
 1. Dimensions and acreage of each lot or plot or portion thereof to be built upon or otherwise used;
 2. Layout of the entire project, including the proposed uses of all buildings and their relationship to surrounding properties;
 3. Layout of all off-street parking and loading areas, including the location of entry and exit points, the internal vehicular circulation pattern and the location and dimension of required parking and loading spaces;
 4. Location and dimensions of existing and proposed streets and highways;
 5. Location, name (botanical and common), size and spacing of all existing plant materials to be retained and proposed plantings and screenings. The plan shall clearly distinguish between existing plant materials to be retained and proposed plantings;
 6. Location of walls, fences and railings and an indication of their height and construction materials;
 7. Details illustrating landscaping installation; and

8. Title; north arrow; scale, names of owner, developer and person responsible for plan preparation; and the date that the plan was drawn, including subsequent revision dates.
- b. No building permit shall be issued until the required landscaping plan has been submitted and approved, and no certificate of occupancy shall be issued until the landscaping is completed as certified by an on-site inspection by the Zoning Administrator.

Sec. 54-347. Landscape buffer requirements.

Buffers are landscaped areas of varying depths intended to separate and screen incompatible land uses from one another or provide green areas along major roadways and rivers, and in some instances, screen development entirely from roadways or rivers.

- a. Generally
 1. Buffers shall vary in depth and in landscaping requirements according to the zone district of the adjoining property or the classification of the adjacent road or river. (See attached road and river classification chart).
 2. Buffers shall be located along the perimeter of a lot or parcel and shall extend to the boundary line of the lot or parcel. Buffers shall not be located on any portion of an existing public or private street right-of-way. Where utility or drainage easements exist along property lines, the buffer shall be located adjacent to the easement and may be reduced by the width of the easement on the property where the buffer is required or twenty-five percent (25%) of the required buffer width, whichever is smaller.
 3. Buffers which are required pursuant to this Article shall be indicated as such on all plats of new and expanded developments.
 4. With the exception of the improvements as listed below in subsection 5., no new structures, impervious surfaces, unpaved vehicular use areas or other improvements shall hereafter be constructed within designated buffer areas.
 5. Sidewalks pursuant to Section 54-361, fences, gates, mailboxes, community boat ramps, necessary driveways, and permitted signs may be installed in designated buffer areas, subject to applicable permits.
- b. Non-conforming buffers. All developed lots and all undeveloped but recorded single-family house lots on (effective date) which do not comply with the buffer requirement of this section shall be grandfathered as legal non-conforming lots, except that existing landscaping on these legal non-conforming lots which satisfies, either partially or wholly, the buffer requirements of this Article, shall be required to be maintained.

- c. Schedule of required buffers. Table 3.5 shows the required buffers. Compliance of planted buffers will be evaluated on the basis of "Required Plantings per one Hundred Feet" as specified on buffer diagram text.

Existing vegetation may be combined with or substituted for new plant material in order to satisfy "Required Plantings per One Hundred Feet."

Where deemed appropriate by the Zoning Administrator, non-vegetative screening devices, including fences, walls and earthen berms may be substituted for a portion of the "Required Plantings per one Hundred Feet" in buffer types B, D, F, J and K.

- d. Exceptions.

1. All properties located within the City limits on the peninsula of Charleston shall not require installation of landscape buffers along street frontages; and landscape buffers required pursuant to Table 3.5: Schedule of Required Buffers, to separate and screen incompatible uses, shall only be required to consist of a landscaping area with a minimum width of five (5) feet in which a wall of at least six (6) feet in height is placed and one (1) recommended non-deciduous tree is planted for each twenty-five (25) feet linear feet of landscaping area. For the purposes of this Section, "peninsula" shall mean the area of the City of Charleston bounded by the Cooper River to the east, the Ashley River to the west and south, and the Charleston City Limits to the north.
2. Design Review District. In order to allow for new buildings to relate harmoniously with the streetscape and to other structures in the vicinity, when deemed appropriate by the Design Review Board, buildings may encroach into Class I Road Buffers (Buffer Type A), Class II Road Buffers (Buffer Type C), and Class VI Road Buffers (Buffer Type H). In Gathering Place Districts, the Design Review Board may allow buildings to encroach into any street frontage buffer, except for properties along I-26, I-526, the James Island Connector, and the Glenn McConnell Parkway. These exemptions shall not apply to parking lots or any other vehicular use areas.
3. Board of Architectural Review. In order to allow for new buildings to relate harmoniously with the streetscape and to other structures in the vicinity, when deemed appropriate by the Board of Architectural Review, buildings may encroach into Class I Road Buffers (Buffer Type A) and Class II Road Buffers (Buffer Type C). This exemption shall not apply to parking lots or any other vehicular use areas.

(Ord. No. 2002-17, § 1, 2-12-02; Ord. No. 2005-336, § 2, 8-16-05; Ord. No. 2005-604, § 1, 10-18-05; Ord. No. 2008-05, § 2, 1-22-08; ; Ord. No. 2011-57, § 2, 8-16-11; Ord. No. 2011-135, § 1, 9-13-11; Ord. No. 2016-083, § 1, 7-19-16)

TABLE 3.5: SCHEDULE OF REQUIRED BUFFERS

ADJACENT EXISTING ZONING, ROAD OR RIVER CLASSIFICATION^{1,2,3}

Existing or Proposed Principal Use(s)	Residential				Class / Roads and Rivers												
	Conser- vation	Single- Family	Multi- Family	Office / Service	Institutional	Commercial (Retail)	Commercial (Other)	Warehouse/ Distribution	Industrial	I	II	III	IV	V	VI	VII	VIII
Residential (single-family)	*	*	*	*	*	*	*	*	*	A	C	E	F	G	H	J	K
Residential (multi-family)	F	D	*	*	*	B	B	D	D	A	C	E	F	G	H	J	K
Office/Service	F	D	B	*	*	*	*	*	*	A	C	E	F	G	H	J	K
Institutional	F	D	B	*	*	*	*	*	*	A	C	E	F	G	H	J	K
Commercial	F	D	D	*	*	*	*	*	*	A	C	E	F	G	H	J	K
Warehouse ³ Distribution	F	F**	F	D	D	B	B	*	*	A	C	E	F	G	H	J	K
Industrial ³	F	F**	F	D	D	B	B	*	*	A	C	E	F	G	H	J	K

¹Where more than one use occurs on a property, the most intensive use determines the standard.²See Road and River Classification Chart.³Within the Johns Island Overlay District, a two hundred (200) foot Type K buffer is required along any road frontage of a parcel used for warehouse, distribution or industrial purposes.

* No buffer required

**Within the Johns Island Overlay District, a one hundred (100) foot Type J buffer is required.

Buffer Widths

A. 15 feet	F. 50
B. 15	G. 75
C. 25	H. 75
D. 25	J. 100
E. 50	K. 200

Sec. 54-347.1. Critical line buffer requirements.

Critical line buffers are naturally vegetated areas of specific widths, adjacent to all SCDHEC-OCRM critical lines. The primary purpose for critical line buffers is to protect water quality.

a. Generally:

1. Buffers which satisfy the requirements for a Type L Buffer as listed in Section 54-348, shall be located on all property within the zoning districts listed below in subsection 2.
2. Buffers shall vary in width according to the zoning of the lot as listed below:
 - (a) Within the C, RR-1, SR-1 through SR-7, STR, DR-3, DR-6, and DR-9 zoning districts, each buffer shall maintain a minimum width of 25 feet.
 - (b) Within the AG-8, AG-S, DR-4, DR-12, DR-1, DR-1F, DR-2, DR-2F, RO, GO, CT, LB, GB, UC, MU-1, MU-2, GP, JC, BP, LI, and HI, zoning districts and all properties zoned or developed under the Neighborhood District regulations, each buffer shall maintain a minimum width of 40 feet.
 - (c) Within the CY zoning district, the provisions of subsection 2 (a) and (b) shall apply based on designated uses in the development plan.
3. All buildings shall be setback a minimum of ten feet from the required Critical Line buffer.
4. Buffers shall be located adjacent to the Critical Line and extend the entire length of the Critical Line.
5. The boundaries of the SCDHEC-OCRM certified Critical Line and Critical Line Buffer shall be clearly delineated and identified on all development plans and plats submitted for approval and notes shall be placed on all development plans and plats which read as follows: "The Critical Line Buffer shown hereon is under the jurisdiction and permitting authority of the City of Charleston."

b. Exemptions. In addition to the exemptions provided in Section 54-344, the following exemptions shall apply.

1. Platted single family lots of record as of September 12, 2000.
2. Approved valid, preliminary subdivision plats as of September 12, 2000, and any project submitted to the Technical Review Committee as of September 12, 2000, shall be exempt from this ordinance.
3. Properties located within the Old City District or Old and Historic District and located on the peninsula south of Line Street extended from the Ashley River to the Cooper River or West of the Ashley River in an area bounded by

the Ashley River on the east, the Highway 61 Connector and Merritt Road on the south, Albemarle Road on the west, and Folly Road/Highway 17 on the north.

4. Existing developed portions of The Citadel campus, and water-dependent maritime shipping and cargo handling facilities or terminals.
 5. Golf courses shall only be exempt from tree removal restrictions of Section 54-348 in areas of the required Critical Line Buffer that fall within golf corridors when a tree or trees would obstruct play as shown on plans approved by the Technical Review Committee. Tree protection requirements of Article 3, Part 6, including requirements to protect grand trees, shall still apply.
- c. Violations. The Board of Zoning Appeals—Site Design is authorized, upon a violation of the buffer regulations set forth herein, to require restoration of the buffer area using Best Management Practices to a condition deemed by the Board to be comparable to that which existed prior to the damage and/or destruction of the protected vegetation within the buffer.

(Ord. No. 2001-14, § 1, 2-27-01; Ord. No. 2002-84, § 6, 8-13-02; Ord. No. 2003-69, §§ 11, 15, 8-19-03; Ord. No. 2016-102, § 10, 9-13-16; Ord. No. 2018-031, § 10, 4-10-18)

Sec. 54-348. Buffer types.

Buffer Type A

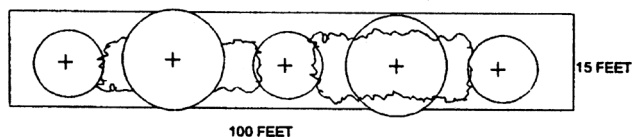
Required for properties which abut Class I roads. Buffer must maintain an average depth of fifteen feet, not to go below ten feet, and contain specified vegetation selected from Appendix A. The intent of this buffer type is to provide street frontage landscaping along Class I roads.

Required minimum plantings per one hundred feet:

2 recommended trees

3 understory trees

40 ornamental shrubs



Buffer Type A

Buffer Type B

Required for properties which abut an incompatible zoning. Buffer must maintain a

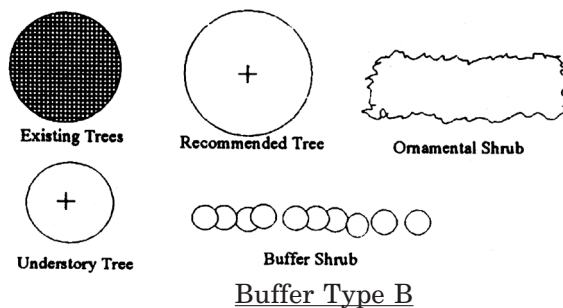
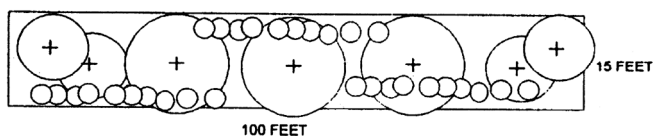
minimum depth of fifteen feet and contain specified vegetation selected from Appendix A. The intent of this buffer type is to provide a dense visual screen which mitigates adverse impacts of incompatible developments.

Required minimum plantings per one hundred feet:

3 recommended trees

4 understory trees

20 buffer shrubs



Buffer Type C

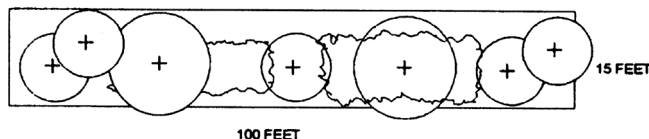
Required for properties which abut Class II roads. Buffer must maintain a mean depth of twenty-five feet, not to go below fifteen feet and contain specified vegetation selected from Appendix A. The intent of this buffer is to provide street frontage landscaping along Class II roads.

Required minimum plantings per one hundred feet:

2 recommended trees

5 understory trees

60 ornamental shrubs



Buffer Type C

Buffer Type D

Required for properties which abut an incompatible zoning. Buffer must maintain a

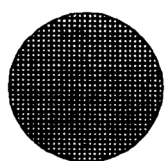
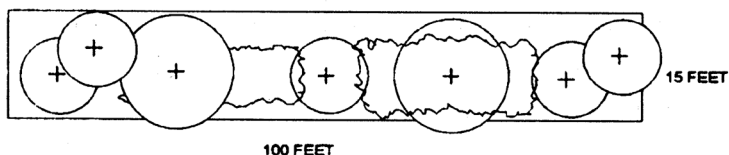
minimum depth of twenty-five feet and contain specified vegetation selected from Appendix A. The intent of this buffer type is to provide a dense visual screen which mitigates adverse impacts of incompatible developments.

Required minimum plantings per one hundred feet:

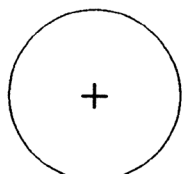
3 recommended trees

4 understory trees

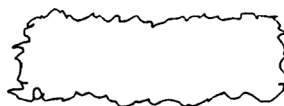
30 buffer shrubs



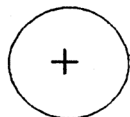
Existing Trees



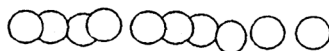
Recommended Tree



Ornamental Shrub



Understory Tree



Buffer Shrub

Buffer Type D

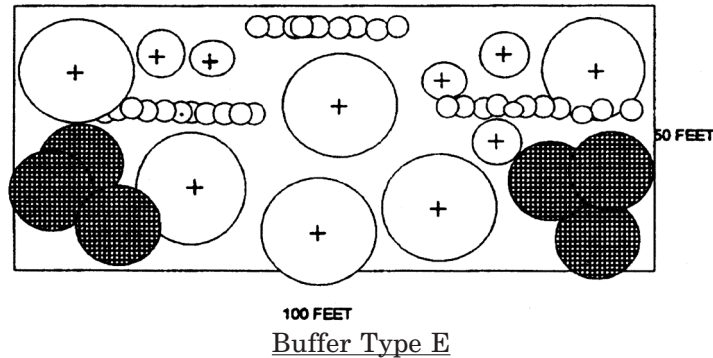
Buffer Type E

Required for properties which abut Class III roads. Buffer must maintain an average depth of fifty feet, not to go below forty feet, and contain specified vegetation selected from Appendix B. At least fifty percent (50%) of supplemental understory vegetation must be evergreen. The intent of this buffer type is to provide dense street frontage landscaping along Class III roads while allowing for corridors of visibility.

Required minimum plantings per one hundred feet:

Existing trees with six inches and greater D.B.H. must remain

- 6 recommended trees
- 5 understory trees
- 20 buffer shrubs

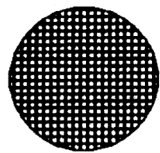
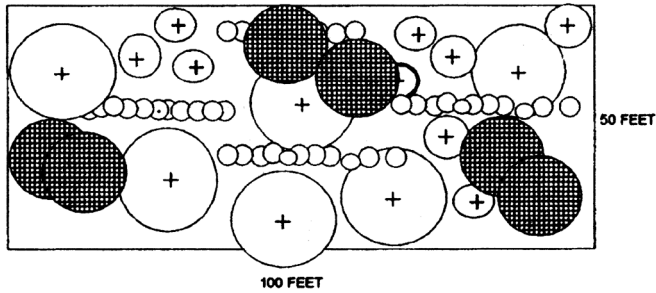


Buffer Type F

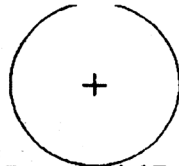
Required for properties which abut Class IV roads or properties which abut incompatible zones. Buffer must maintain a minimum depth of fifty feet and contain specified vegetation. Plant materials used to supplement Class IV road buffers shall be selected from Appendix B. At least fifty percent (50%) of understory vegetation selected from Appendix B must be evergreen. Plant materials used to supplement other Type F buffers shall be selected from Appendix A. The intent of this buffer type is to ensure a very dense street frontage buffer along Class IV roads and between incompatible developments.

- Required minimum plantings per one hundred feet:
- Existing trees with six inches and greater D.B.H. must remain

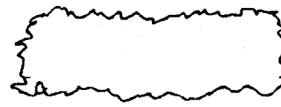
- 6 recommended trees
- 9 understory trees
- 30 buffer shrubs



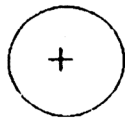
Existing Trees



Recommended Tree



Ornamental Shrub



Understory Tree



Buffer Shrub

Buffer Type F

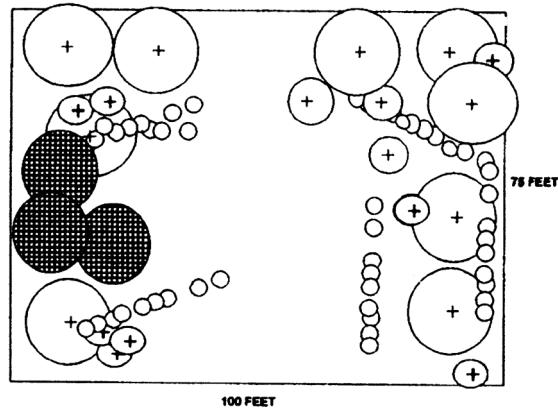
Buffer Type G

Required for properties which abut Class V Roads. Buffer must maintain a minimum depth of seventy-five feet and contain specified vegetation selected from Appendix B. At least fifty percent of supplemental understory vegetation must be evergreen. The intent of this buffer type is to provide dense street frontage landscaping along Class V roads while allowing for corridors of visibility. Such corridors, which may be absent of vegetation, shall not exceed thirty-three percent of total buffer length.

Required minimum plantings per one hundred feet:

Existing trees 6 inches D.B.H. and greater must remain

- 9 recommended trees
- 12 understory trees
- 35 buffer shrubs



Buffer Type G

Buffer Type H

Required for properties which abut Class VI Roads and scenic rivers. Buffer must maintain a minimum depth of seventy-five feet and contain specified vegetation selected from Appendix B. At least fifty percent of understory vegetation must be evergreen. The intent of this buffer type is to provide dense street frontage landscaping along Class VI Roads, while allowing for corridors of visibility. Such corridors, which may be absent of vegetation, shall not exceed thirty-three percent of total buffer length.

Required plantings per one-hundred feet:

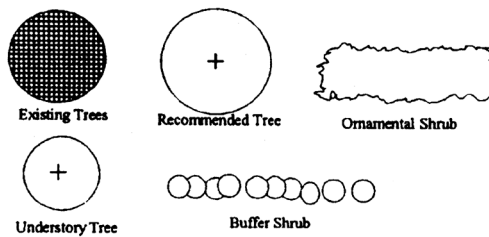
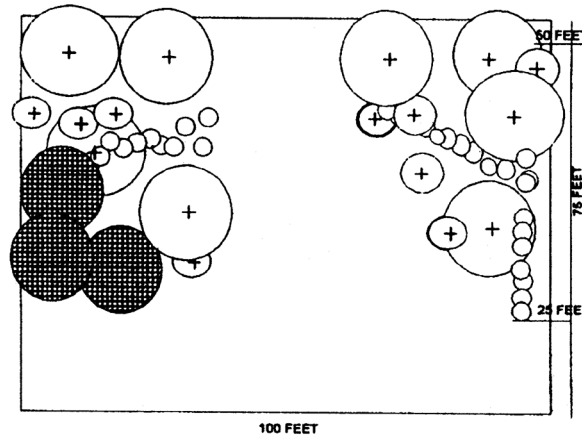
Existing trees six inches and greater D.B.H. must remain

9 recommended trees

7 understory trees

30 buffer shrubs

One street tree (selected from recommended tree list) every fifty feet, to be setback twenty-five feet from front property line. (These trees may be counted to satisfy "Required plantings per one-hundred feet").



Buffer Type H

Buffer Type J

Required for properties which abut Class VII Roads and scenic rivers. Buffer must maintain a minimum depth of one hundred feet and contain specified vegetation selected from Appendix B. At least 50 percent of understory vegetation selected from Appendix B must be evergreen. River frontage buffers may provide a vision corridor or corridors not to exceed thirty three percent of total buffer length. Such corridor or corridors may be absent of vegetation. Remainder of river frontage buffer shall contain required vegetation. Road frontage buffers shall not contain vision corridors. The intent of this buffer type is to preserve the scenic character of property abutting Class VII Roads and rivers by maintaining a dense natural buffer.

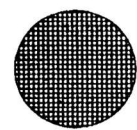
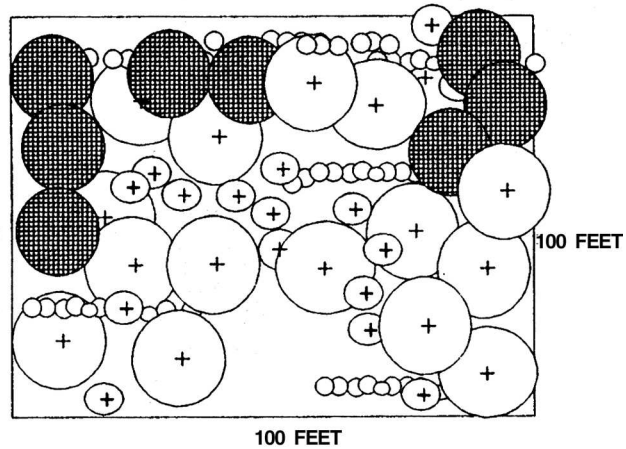
Required minimum plantings per one hundred feet:

Existing trees with 6 inches and greater D.B.H. must remain

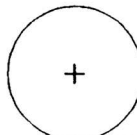
Existing understory vegetation listed on Table 2 must remain

24 recommended trees
 20 understory trees
 50 buffer shrubs

24 recommended trees
 20 understory trees
 50 buffer shrubs



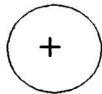
Existing Trees



Recommended Tree



Ornamental Shrub



Understory Tree



Buffer Shrub

Buffer Type J

Buffer Type K

Required for properties which abut Class VIII Roads. Buffer must maintain a minimum depth of 200 feet and contain specified vegetation selected from Appendix B. At least fifty percent (50%) of the understory vegetation selected from Appendix B must be evergreen. The intent of this buffer type is to preserve the scenic character of the property abutting Class VIII Roads by maintaining a dense natural buffer.

Required minimum plantings per one hundred feet:

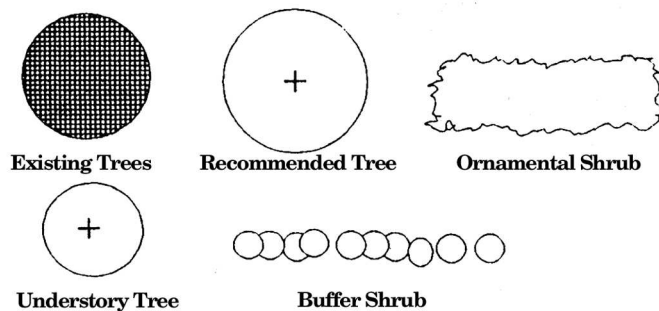
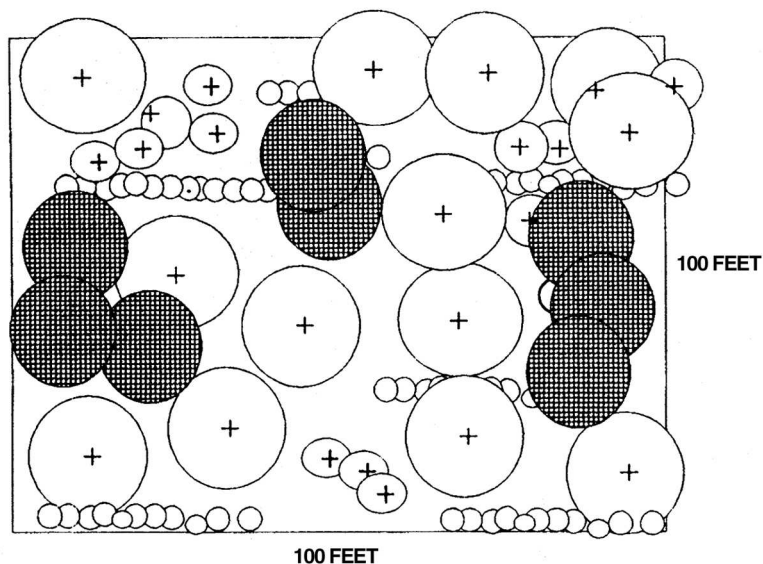
Existing trees with six inches and greater D.B.H. must remain

Existing understory vegetation listed on Table 2 must remain

24 recommended trees

20 understory trees

50 buffer shrubs



Buffer Type K

Buffer Type L

Required on all non-exempt properties within the zoning districts listed in Section 54-347.1 that abut SCDHEC-OCRM critical lines. The minimum width of the required buffer shall be as indicated in Section 54-347.1.a.2. Within the required buffer areas, as shown on approved plats or site plans pursuant to Section 54-347.1.a.4., existing vegetation shall remain pursuant to the following guidelines. The following activities or improvements shall be prohibited when establishing or maintaining buffers:

1. Manicured, grassed lawns; only native grasses shall be allowed;
2. Removal, damage or abuse in any manner of protected trees (trees with a diameter breast height of eight (8) inches or greater); and
3. Pruning shrubs below three (3) feet in height.

Only the following activities or improvements shall be allowed within the required buffer:

1. Supplemental planting with native trees, shrubs and native grasses listed in Appendix B;
2. Removal of trees with a diameter breast height less than eight (8) inches;
3. Water-dependent structures and pedestrian or vehicular accessways leading to water-dependent structures as defined in Section 54-120. Such accessways shall be designed to avoid channelization of stormwater runoff and be the minimum necessary to provide safe access;
4. Pedestrian or vehicular accessways specifically certified and approved for construction by OCRM or the U.S. Army Corps of Engineers;
5. Minimum utility line penetrations as specifically approved by applicable public utility service providers;
6. Use of vegetated surface swales or other approved means of surface runoff transport; and
7. Stormwater drainage outfalls if certified and approved for construction by OCRM or the U.S. Army Corps of Engineers.

(Ord. No. 2001-14, § 2, 2-27-01)

Sec. 54-349. Road and river classification chart.

The following roads and rivers are classified as follows. See Table 3.5: Schedule of Required Buffers, for buffer requirements.

CLASS I (15 feet)

Ashley Hall Road

Ashley River Road (Saint Andrews Boulevard to Sam Rittenburg Boulevard)

Fordham Road

Harborview Road

Old Towne Road

Orange Grove Road

Orleans Road

Saint Andrews Boulevard

Wappoo Road

CLASS II (25 feet)

Albemarle Road

Ashley River Road (Sam Rittenburg Boulevard to Mark Clark Expressway)

Central Park Road

Drayton Hall connector

Folly Road

Highway 41

Grimball Road (Folly Road to Riverland Drive)

James Island Bridge/Highway 61 Connector

Magwood Road

Maybank Highway (James Island)

Reflectance Drive

Sam Rittenburg Boulevard

Savage Road

Savannah Highway

Wesley Drive

CLASS III (50 feet)

Abbapoola Road

Ashley River Road (Mark Clark Expressway to Church Creek)

Bees Ferry Road

Belvedere Road

Brownswood Road

Cane Slash Road

Chisolm Road

Clements Ferry Road (Road 33) (except for along that portion of Clements Ferry Road southeast of Reflectance Drive intersection to city limits where a Class II (25 ft) shall apply)

Edenvale Road

Humbert Road

Murraywood Road

Old Pond Road

Patton Avenue/Fickling Hill Road

Plow Ground Road

CLASS IV (50 feet)

Ashley River Road (Church Creek to railroad viaduct)

Highway 61 Expressway (south of Bees Ferry Road)

James Island Expressway

Mark Clark Expressway

Riverland Drive

CLASS V (75 feet)

Bohicket Road (except within 1,400 feet of the intersection with Maybank Highway where a Class VI buffer shall apply)

Main Road (Johns Island) (except within 1,400 feet of the intersection with Maybank Highway where a Class VI buffer shall apply)

Maybank Highway (Johns Island) (excluding the sections listed under Class VI)

River Road (except within 1,400 feet of the intersection with Maybank Highway where a Class VI buffer shall apply)

CLASS VI (75 feet)

Bohicket Road (within 1,400 feet of the intersection with Maybank Highway)

Main Road (within 1,400 feet of the intersection with Maybank Highway)

Maybank Highway (on Johns Island within 1,400 feet of River Road, within 1,400 feet of Hollydale Court, and within 1,400 feet of Main Road)

River Road (within 1,400 feet of the intersection with Maybank Highway)

CLASS VII (100 feet)

Ashley River Road (a railroad viaduct to Muirfield Parkway/MacLaura Hall Avenue intersection)

Cainhoy Road

Ashley River Shoreline Frontage (Church Creek to city limits)

CLASS VIII (200 feet)

Ashley River Road (Muirfield Parkway/MacLaura Hall Avenue intersection to city limits)

(Ord. No. 2005-432, § 9-13-05; Ord. No. 2005-596, 10-4-05; Ord. No. 2009-75, 5-26-09; 2011-135, § 2, 9-13-2011; Ord. No. 2015-142, § 13, 10-13-2015)

PART 9
RELOCATION AND MOVING OF STRUCTURES

Sec. 54-350. Relocation and moving of structures.

- a. No structure may be moved to or relocated upon a lot within the City of Charleston unless the Board of Zoning Appeals, or the Board of Architectural Review, if the location of the lot where the building or structure is to be relocated is within the Old and Historic District or Old City District, after review, finds that the structure, as relocated, will be in general harmony with the prevailing character of the neighborhood to which it is being located in terms of height, mass, volume, scale and the location of the structure on the lot.
- b. Structure, for the purposes of this Section, shall mean any house, building or other structure which has been previously used in whole or in part for residential, commercial or other purposes at another location. Accessory structures of 350 square feet or less will be exempt from the provisions of this Section.
- c. As part of the application, the applicant shall submit to the Board of Zoning Appeals: (a) detailed exterior elevations and any proposed elements that will be attached to the structures; and (b) photographs of all sides of the structure to be relocated, photographs of the lot to which the structure is to be relocated, and photographs of the block where the structure is to be relocated.
- d. Prior to acting upon any application for the removal or relocation of a structure within the corporate limits, the Board of Zoning Appeals shall cause the Chief Building Official of the City of Charleston to submit a written statement to it concerning the feasibility of renovating the structure and of the owner's ability to bring the structure up to standards of all City codes.
- e. As a condition of approval, the Board of Zoning Appeals may require that the applicant give satisfactory evidence of his ability to complete the relocation and renovation of the structure, including construction contracts and financial ability; and further, upon a finding that the health and welfare of the neighborhood may be adversely affected by allowing the structure to remain in an incomplete condition after removal, the Board of Zoning Appeals may require that the owner file with the City a performance bond or other satisfactory means to insure that the structure will be renovated in a timely fashion.

(Ord. No. 1999-54, § 4, 4-27-99)

PART 10
VISION CLEARANCE REQUIREMENTS

Sec. 54-351. Vision clearance requirements.

Except as hereinafter provided, no fence, wall, shrubbery, sign, marquee, or other obstruction to vision between the heights of three (3) feet and fifteen (15) feet shall be permitted within the vision clearance triangle which shall be determined by measuring back fifteen (15) feet from the intersection of the rights-of-way of two streets or railroads or of a street intersection with a railroad right-of-way line and connecting the two points. Necessary traffic and directional signs shall not be included in this requirement.

PART 11 ONE-FAMILY ATTACHED DWELLINGS

Sec. 54-352. Intent and applicability.

In order to promote the general welfare of the city through the appropriate use of lots and areas within the city in zone districts designated SR-3, SR-4, SR-5, STR, DR-1F, DR-1, DR-2F, DR-2, DR-3, DR-6, DR-9, DR-12, LB, GB, GP, MU-1, MU-2, LI and UP by the construction therein of one-family attached dwellings, known as town, row, or patio houses, it is provided that such structures may be erected within such boundaries, subject to the standards and regulations in Section 54-353.

(Ord. No. 2003-63, § 3, 7-15-03; Ord. No. 2003-69, § 13, 8-19-03; Ord. No. 2014-67, § 8, 5-13-14; Ord. No. 2015-142, § 10, 10-13-2015)

Sec. 54-353. Standards and regulations.

For one-family attached dwellings, town, or row houses, the following standards and regulations shall apply in all districts where permitted.

- a. Height limitations: Maximum fifty (50) feet and three (3) stories.
- b. Lot width: Minimum sixteen (16) feet, except where side setbacks are hereinafter required, the minimum lot width shall be increased accordingly.
- c. Front setback for the principal building: Must conform to area regulations of district where located, with the following exceptions:
 1. In an STR, DR-1F, DR-2F, DR-3, DR-6, DR-9 or DR-12 district, no front setback shall be required for interior units of a single grouping of one family attached dwellings, provided that the minimum front setback of the end units of such grouping shall be either (1) ten feet, or (2) not less than the front setback of any structure located on the next built-upon lot fronting on the same street which is not part of the same town house, whichever is less.
 2. In any district, if motor vehicles are parked or stored within a unit with vehicular entrance directly from the street, a minimum front setback of eight (8) feet shall be provided, except in the GB district, where the minimum front setback shall be five (5) feet and the maximum setback shall be ten (10) feet.
 3. In any district, if motor vehicles are parked or stored in the front yard of a unit the front setback shall be at least twenty-five (25) feet.
- d. Side setback for the principal building: A minimum side setback of six (6) feet shall be provided between the end units of a row and a side lot line; provided, however that:
 1. In the GB district, the minimum side setback between the end units in a row and an interior side lot line may be five (5) feet; and
 2. When the side lot line is a street line, the side setback adjacent to such street shall be at least ten (10) feet; and

3. When the side lot line borders a driveway, the title to which or the easement to which runs with or is appurtenant to such lot, the side setback may be reduced to three (3) feet; and
 4. When no building on the next adjacent lot fronting on the same street is within three (3) feet of the side lot line, the side setback adjacent to such next lot may be reduced to four (4) feet if its wall on that side shall be of masonry construction, without openings, except ventilator grills; and
 5. When the next adjacent lot is a platted open space or common area with a minimum width of ten (10) feet, there shall be no required side setback.
- e. Rear setback for the principal building: A minimum rear setback of sixteen (16) feet shall be provided, except that within the GB district the rear setback may be reduced to ten (10) feet; but
1. When required vehicular parking space is provided in rear yard, minimum rear setback shall be twenty-five (25) feet; and
 2. When a carport, garage, or other accessory building exceeding fifty (50) square feet is located in rear yard, the minimum rear setback shall be twenty-five (25) feet; and
 3. When the property is zoned GB, the rear setback from an alley right-of-way shall be a minimum of five (5) feet and maximum of ten (10) feet if motor vehicles are parked in a unit, or a minimum of twenty-five (25) feet if a vehicle is to be parked in a driveway.
- f. Minimum lot area per family: One thousand five hundred (1,500) square feet, except 1,200 square feet in the GB district.
- g. Percent of lot occupancy: Except in the GB district, not more than fifty (50) percent of lot shall be occupied by principal and accessory buildings, except this may be increased by one hundred (100) square feet when required vehicular parking is provided in principal building, or in a parking lot or community garage the title to which or the easement for the use of which runs with or is appurtenant to the title to such building. In the GB district, not more than eighty (80) percent of lot shall be occupied by the principal and accessory buildings.
- h. Accessory buildings: Shall be permitted and the following standards shall apply:
1. Front setback for accessory buildings: No front setback shall be required, provided that any accessory building must be located to the rear of the principal building a minimum of ten (10) feet.
 2. Side setback for accessory buildings: There shall be no minimum side setback required, provided, however that when the side lot line is a street line, the side setback adjacent to such street shall be at least ten (10) feet.
 3. Rear setback for accessory buildings: Minimum rear setback of five (5) feet shall be provided.

4. In addition to a carport or garage, another accessory building shall be permitted in the rear yard provided it does not exceed one hundred (100) square feet in floor area and twelve feet in height, and any such accessory buildings shall be constructed of materials similar to or in keeping with the principal building.
- i. Additional dwellings: Not allowed.
- j. Special requirements:
 1. The partition wall and walls between such structures shall comply with building code requirements.
 2. Not more than six (6) such dwellings shall be constructed or attached together in a continuous row, and no such row shall exceed two hundred (200) feet in length, except in SR-3, SR-4, SR-5 and STR Districts, where not more than two such units shall be constructed or attached together in a continuous row.
 3. Off-street parking shall be provided for each such dwelling, pursuant to the zoning regulations, either on the premises or in a community parking lot or garage the title to which and/or the easement for the use of which runs with and/or is appurtenant to the title to such dwelling. No such parking lot or garage shall be located more than two hundred (200) feet from the dwelling which it serves. One driveway with a maximum width of eleven (11) feet shall be permitted in the front yard, except that dwellings within a development may be exempt from these driveway restrictions if sidewalks or paved multi-use paths with a minimum width of five (5) feet are installed along both sides of all street rights-of-way within the development, except streets in the GB district approved pursuant to Subsection. 54-353.j.4., and along all street rights-of-way located adjacent to the development and classified as subcollector or access streets.
 4. In the GB district, street design standards in Section 54-821 shall be modified to permit the minimum right-of-way width and pavement width for a one-way, undivided access street with mountable curb to be reduced to twenty (20) feet, or two-way, undivided access street with mountable curb to be reduced to twenty-two (22) feet, if:
 - (a) Block length does not exceed five hundred (500) feet in length; and
 - (b) Right-of-way width and pavement width for streets that provide parallel parking is increased by seven (7) feet in the area where on-street parking is provided on one side, and fourteen (14) feet in the area where on-street parking is provided on two (2) sides; and
 - (c) Such streets and associated pavement markings and signage are permanently maintained by a home owners association and not maintained by the City of Charleston; and

- (d) Through-block, concrete pedestrian paths with a minimum width of five (5) feet are provided in open space parcels or easements with a minimum width of ten (10) feet in each block that exceeds 200 feet in length; and
- (e) the Technical Review Committee members find that the pavement widths, right-of-way widths, and layout of all streets within a development using this exception are sufficient to meet engineering, accessibility, pedestrian safety, traffic safety, and emergency vehicle access requirements; and
- (f) One useable open space area is set aside as community gathering space and constructed as part of the development with a minimum total area, excluding easements, all stormwater facilities and required buffers, of fourteen thousand (14,000) square feet, and a minimum dimension of one hundred (100) feet. One such community gathering space shall be included for every fifty (50) dwelling units, and each space shall be increased in size by two hundred eighty (280) square feet for each additional dwelling unit until the next multiplier of fifty (50) units is reached.

(Ord. No. 2003-63, § 4, 7-15-03; Ord. No. 2014-67, § 9, 5-13-14; Ord. No. 2016-061, § 1, 5-10-16; Ord. No. 2021-155, § 1, 11-9-21)

PART 12
MOBILE HOMES IN THE DR-3 DISTRICT

Sec. 54-354. Intent.

The intent of the DR-3 district is to promote acceptable living environments for occupants of mobile home parks with mobile home spaces offered for rental or lease, as well as for mobile homes placed on single lots. The mobile home is recognized as a specific form of housing for which standards should be provided for appropriate development, spacing and use. No use other than the use as shown on the approved site plan shall be allowed within a mobile home park.

Sec. 54-355. Rules and regulations for mobile home parks.

Mobile home parks shall be permitted, provided that a site plan is submitted according to the requirements of Article 6, of this Chapter and that the design of the park complies with the following conditions:

- a. Access and frontage. A mobile home park shall have direct access onto a road classified as an arterial or collector street and no mobile home park shall have direct access onto a road classified as a local street.
- b. Mobile home access: Each mobile home space within a mobile home park shall have direct access to a roadway located within the park site.
- c. Off-street parking: A minimum of two (2) paved off-street parking spaces shall be provided for, and be located upon, each mobile home space included in a mobile home park.
- d. On-street parking: On-street parking spaces shall be incorporated in the design of a mobile home park only on roadways located within the park having a paved width of 30 feet or more.
- e. Drainage: Mobile home parks shall incorporate drainage facilities to comply with the City of Charleston's storm water management system criteria.
- f. Natural features: The site plan shall specify the landscaping features as slopes, drainage ways, vegetation and trees, which features shall be incorporated into the design and layout of the mobile home park, and to the extent practicable, shall be utilized as buffers between the park site and adjacent land uses as well as between individual mobile home spaces within the mobile home park. A tree survey shall be submitted to the zoning administrator identifying trees of eight (8) inches or larger in diameter measured at breast height (4½ feet above the ground) which trees, if at all possible, shall be preserved.
- g. Mobile home park screening: Each mobile home park shall incorporate screening around its perimeter in the form of a six (6) foot view reducing fence or natural vegetation or such other means in order to mitigate against noise and glare.

- h. Mobile home pad setbacks: Mobile home pads on mobile home spaces within a mobile home park shall be set back at least twenty-five (25) feet from the perimeter boundary lines of a mobile home park, and, when a mobile home space abuts an arterial or major collector street, the setback along the arterial or major collector street shall be at least fifty (50) feet.
- i. Roadways: Access to, and circulation within, mobile home parks shall be designed to promote the public safety and all rights-of-way within mobile home parks shall comply with the standards set forth in Section 54-821 of this Chapter, and shall be constructed with such materials as are utilized in the construction of standard public rights-of-way within the City of Charleston.
- j. Lighting: The site plan shall identify the location of the street lights within the mobile home park and intensity of lighting to be provided thereby.
- k. Facilities: Each mobile home space shall be equipped with access to public water and sewerage, as well as electricity.
- l. Open space: Each mobile home park containing twenty (20) or more mobile home spaces shall provide at least two hundred (200) square feet of common open space for each mobile home space. Calculation for the common open space shall not include the set back requirements for mobile home parks as set forth in subsection h, above.
- m. Storage space: Each mobile home park shall provide a screened area for the storage of boats and trailers, which area shall, in the aggregate, be comprised of at least one hundred (100) square feet for every mobile home space within the park.
- n. Accessory buildings: All accessory structures to be located on a mobile home space shall be situated so as not to be visible from a right-of-way within a mobile home park, and shall be situated so as not to encroach on the setback requirements as set forth in subsection h, above.
- o. Foundation. All mobile homes situated within a mobile home park shall be supported by a foundation system which meets the building code requirements of the City of Charleston and for which a building permit has been obtained.
- p. Identification sign. All mobile home park signage shall be governed by the residential subdivision sign standards as provided in Article 4.
- q. Roof over structure. No roof shall be constructed over a mobile home independent of a mobile home structure.
- r. Refuse areas: All refuse areas located within a mobile home park shall be screened and enclosed so as to prevent odor and windblown debris.
- s. Lot area. All mobile home parks shall contain two (2) or more contiguous acres under single ownership.
- t. Mobile home skirting. All mobile homes situated within a mobile home park shall be skirted by manufactured skirting or other materials suitable for exterior use

and approved by the Zoning Administrator and the Chief Building Inspector, including corrosion-resistant metal, fiberglass/plastic, wood/wood siding (both must be protected from the elements by water resistant solution/substance), decay-resistant wood/pressure treated lumber, and masonry/concrete/rock. The enclosed crawl space under the mobile home must be ventilated and include access panels in compliance with the building code of the City of Charleston.

Sec. 54-356. Rules and regulations for mobile home lots.

A single mobile home may be located on its own lot in a DR-3 district provided that the following conditions are met:

- a. The parcel or lot of land upon which the mobile home is to be placed shall contain at least one (1) contiguous acre and be under single ownership;
- b. No other occupied structure or building shall be located on the lot or parcel of land upon which such mobile home is situated;
- c. The mobile home shall be located at least twenty-five (25) feet from any property lines, or rights-of-way; and
- d. All mobile homes placed on an individual lot shall be skirted in a manner as provided for in Section 54-355, t.

Sec. 54-357. Temporary mobile homes permitted.

A single mobile home may be placed on a lot in any DR-3 district on a temporary basis not to exceed six (6) months for the purpose of serving as a temporary residence during the construction of a permanent residence provided the following conditions are met:

- a. A building permit shall be obtained for the permanent structure to be built on the lot where the temporary mobile home is to be situated; and
- b. The temporary mobile home is located on the lot in conformity with all applicable City codes.

PART 13**MULTI-FAMILY DWELLINGS FOR ELDERLY IN THE DR-4 DISTRICT****Sec. 54-358. Standards and regulations.**

The City Council of Charleston finds as a fact that dwellings, consisting primarily of units designed for occupancy by not more than two elderly persons, do not have the dimensional requirements of other residential structures or common open space, service areas and facilities are coordinated, and that it is desirable to promote the general welfare by providing districts wherein such structures may be erected if certain standards and regulations are met. It, therefore, is provided that in any DR-4 diverse residential district, multi-family dwellings containing not less than twenty (20) units in a single structure or complex of structures and designed for the elderly and conforming to the requirements of federal programs for housing the elderly may be erected if all of the following standards and regulations are met:

- a. At least 90 percent of the units in such dwellings shall be one-bedroom units, or efficiency units with no separate bedrooms. All units shall meet the standards of the public safety and housing ordinance and all other applicable city ordinances.
- b. Setbacks - The dwelling shall be so constructed that no portion thereof shall be closer to an adverse residential property line than one half the height of the structure, but in no event shall the minimum depths or widths be less than:
 1. Front yard - 25 feet.
 2. Each side yard - 15 feet.
 3. Rear yard - 30 feet.
- c. Lot area per living unit, minimum requirements 300 square feet per unit.
- d. Minimum total lot area - 9,000 square feet.
- e. Maximum percent of lot occupancy by all buildings - 50 percent.
- f. Height limits - 50 feet and four stories except where Old City Height Districts, as set forth in Article 3, Part 2, apply.
- g. Accessory Buildings essential to service of principal building shall be set back at least sixty (60) feet from front street, fifteen (15) feet from side street, and fifteen (15) feet from any adjacent residential property line except that no structure for handling of garbage or waste shall be closer than thirty (30) feet to an adjacent residential property line.
- h. Off-street parking - The provisions of Article 3: Part 4, shall apply to all activities on the site, except that the minimum requirements for dwelling units shall be:
 1. First 20 units - one parking space per unit.
 2. All units in excess of 20, $\frac{1}{3}$ space per unit.

- i. Off-street loading - One space, 10 by 25 feet, for each 20,000 feet of total building floor area, or fraction thereof. No loading space within fifty feet of an adversely-owned residential property shall be used between 8 p.m. and 8 a.m. of the following day.
- j. Landscaped areas - Landscaped area, at least six (6) feet wide, shall be provided on all perimeters of property. This may be included in computing minimum setbacks.
- k. It shall be the policy of the management to lease living units herein permitted only for occupancy by adults, not in excess of three per unit, including servants or nursing attendants, although children or overnight guests may be occasionally permitted.
- l. Accessory retail and personal uses, e.g., barber shop/beauty parlor, banking facilities, postal services, gift shop, etc., which serve the residents of the elderly housing facility may be permitted, but shall not exceed 10% of the total residential floor area. Such uses shall be internally oriented within the complex.

(Ord. No. 2012-379, § 1, 10-9-12)

Sec. 54-359. Reserved.

PART 14
SIDEWALKS

Sec. 54-360. Requirement for multi-family and non-residential development.

Proposed improvements to multi-family residential and non-residential properties where there is a building addition or renovation that requires the approval of the Technical Review Committee under Article 6 shall provide sidewalks in or adjacent to public rights-of-way.

(Ord. No. 2011-57, § 1, 8-16-11)

Sec. 54-361. General standards.

- a. Location. Generally, sidewalks shall be provided in the public right-of-way, and extend across the length of the right-of-way adjacent to the development. Sidewalks may abut the curb. Where there is no curb, sidewalks shall be offset at least three feet from the edge of the pavement.
- b. Materials. Required sidewalks shall be constructed according to the specifications of the City Engineer.
- c. Construction and Inspections.
 1. Sidewalks shall be constructed by the TRC applicant prior to the issuance of a Certificate of Occupancy for the development requiring the sidewalk improvements.
 2. Sidewalks constructed in the public right-of-way shall be inspected by the City Engineer for compliance with City standards.
 3. For sidewalks to be constructed within a right-of-way that is not under the jurisdiction of the City of Charleston, the applicant shall provide a copy of the permit authorizing such work. For the South Carolina Department of Transportation (D.O.T.), a copy of the D.O.T. encroachment approval shall be submitted with a request for Final TRC approval.
 - i. When the appropriate authority denies a request to construct a sidewalk in the public right of way:
 1. Sidewalks may be placed outside of a public right-of-way if the applicant voluntarily agrees to record an easement for the safe movement of pedestrians and the maintenance of the sidewalk.
 4. Sidewalks may also be placed outside of a public right-of-way when deemed appropriate for the preservation of a grand tree or for the accommodation of utilities or other necessary infrastructure provided that the applicant voluntarily agrees to record an easement for the safe movement of pedestrians and the maintenance of the sidewalk.

(Ord. No. 2011-57, § 1, 8-16-11)

Sec. 54-362. Reserved.

PART 15
TRANSIT ACCOMMODATIONS

Sec. 54-363. Purpose.

To promote and support quality bus and transit services, to provide and enhance mobility options, reduce individual vehicle miles traveled, and to meet the transportation needs of the City of Charleston's residents, workers, and visitors.

(Ord. No. 2019-057, § 1, 7-16-19)

Sec. 54-364. Defined terms.

For the purposes of this article the following terms are defined and the term "transit" shall also mean "bus".

Transit Accommodations. Includes transit stops, transit shelters and associated infrastructure.

Transit Shelter. A permanently installed structure located at a transit stop that provides seating and protection from the weather for people waiting for a transit vehicle.

Transit Stop. A designated place where transit vehicles pause to allow for passenger boarding and disembarking. A transit stop is marked with a transit stop sign and shall include the appropriate infrastructure such as a stop pad and sidewalk connectivity, and may also include, but not limited to, amenities such a shelters, benches and trash receptacles.

Transit Vehicle. A mode of transportation providing a schedule transportation service to the public.

(Ord. No. 2019-057, § 1, 7-16-19)

Sec. 54-365. Applicability and requirement thresholds.

- a. Proposed improvements to multi-family residential properties, non-residential properties, and subdivisions with fifty (50) or more single-family or two-family dwelling units where there is new development, redevelopment, or changes to a building that require the approval of the Technical Review Committee (TRC) under Article 6 shall provide transit accommodations along existing or planned bus and transit routes as identified by the Berkeley-Charleston-Dorchester Council of Governments (BCD COG) in the Regional Transit Framework Plan as part of the Long Range Transportation Plan including transit stops, shelters, or other amenities when any of the following thresholds are met:
 1. The site development will generate vehicular trips that will impact the traffic operations of the adjacent streets or intersections so that the Level of Service (LOS) drops below LOS C or the adjacent streets or intersections are already operating below LOS C, as determined by a traffic impact analysis; or
 2. The site development will generate a minimum of 500 vehicular trips per day per the current edition of the Institute of Transportation Engineers' (ITE) Trip Generation Handbook; or

3. If the site development will generate a minimum of 2,500 daily vehicular trips per the ITE Trip Generation Handbook, has frontage on more than one public street, and is served by more than one public transit, then two transit accommodations will be required.
- b. Transit accommodations will be reviewed during the TRC approval process; therefore, coordination with the Charleston Area Regional Transportation Authority (CARTA) is strongly recommended early in the development review process.
(Ord. No. 2019-057, § 1, 7-16-19)

Sec. 54-366. Type of transit accommodations, location, design, and installation.

- a. The type of Transit Accommodation required shall be determined by the City of Charleston Department of Traffic and Transportation. Size and capacity of transit accommodations should reflect the size of corresponding development, adjacent land uses, and planned future development. The TRC applicant shall provide documentation with associated exhibits regarding the proposed Transit Accommodations including location and design, prior to final TRC approval.
- b. Location and design of Transit Accommodations shall be coordinated with the Department of Traffic and Transportation.
 1. Transit Accommodations shall be provided in the public right-of-way; however these accommodations may be located outside of the public right-of-way and on the development site subject to all of the following:
 - i. Transit Accommodations may be placed outside of a public right-of-way when deemed appropriate for the preservation of a grand tree, for the accommodation of utilities, for other necessary infrastructure, or for other purposes approved by TRC.
 - ii. The developer shall provide a location on the development site within an acceptable proximity to the public right-of-way for the Transit Accommodations.
 - iii. The developer shall provide a recorded public easement dedicated for the Transit Accommodations, maintenance, and the safe movement of pedestrians.
 2. For Transit Accommodations to be constructed within a right-of-way that is not under the jurisdiction of the City of Charleston, the applicant shall provide a copy of the permit authorizing such work within the right-of-way. For SCDOT right-of-way, a copy of the SCDOT encroachment approval shall be submitted with a request for Final TRC approval.
 3. Transit Accommodations shall comply with all other applicable City codes, ordinances, and design review requirements.
- c. Prior to the issuance of the Certificate of Construction Completion Occupancy (Certificate of Occupancy) for multi-family and non-residential development sites or

recordation of a final subdivision plat for subdivisions with single-family or two-family dwelling units, Transit Accommodations shall be provided by and installed by the developer and shall be inspected by the Department of Traffic and Transportation or its designee.

(Ord. No. 2019-057, § 1, 7-16-19)

ARTICLE 4
SIGN REGULATIONS

Part 1
Generally

- Sec. 54-401. Intent.
- Sec. 54-402. Applicability of regulations.
- Sec. 54-403. General requirements.

Part 2
Prohibited and Exempt Signs

- Sec. 54-404. Prohibited signs.
- Sec. 54-405. Exempt signs.
- Secs. 54-406—54-409. Reserved.

Part 3
Sign Regulations

- Sec. 54-410. Provisions applicable to all signs.
- Sec. 54-411. Temporary signs within all zoning districts.
- Sec. 54-412. Regulations for signs within the Savannah Highway Overlay Zone and Residential Office, RO District.
- Sec. 54-413. Regulations for signs within the Commercial Transitional, CT District.
- Sec. 54-414. Regulations for signs within the Daniel Island Town Center DI-TC, Gathering Place, GP District and Neighborhood, N District.
- Sec. 54-414.1. Regulations for signs within the Agricultural, AG-8 and AG-S Districts.
- Sec. 54-415. Regulations for signs within all other districts.
- Secs. 54-416—54-419. Reserved.

Part 4
Non-Conforming Signs

- Sec. 54-420. Non-conforming signs.

PART 1
GENERALLY

Sec. 54-401. Intent.

The purpose of this Article is to provide comprehensive regulations for signs within the city to eliminate confusing, distracting and unsafe signs; assure the efficient transfer of information; and, enhance the visual environment of the city. It is declared that the regulation of signs within the city is necessary and in the public interest:

- a. to protect property values within the city;
- b. to promote and aid in the tourist industry which is declared to be of importance to the economy of the city;
- c. to protect the general public from damage or injury caused by, or partially attributable to the distractions and obstructions which result from improperly designed or situated signs;
- d. to provide a pleasing overall environmental setting and community appearance which is vital to tourism and to the continued economic attractiveness of the city;
- e. to improve the legibility and effectiveness of signs;
- f. to allow signs appropriate to the planned character of each zoning district within the city; and
- g. to promote the public safety, welfare, convenience and enjoyment of the unique historic character of the city.

(Ord. No. 2007-135, 7-11-07)

Sec. 54-402. Applicability of regulations.

- a. No signs which are visible from a public street or way, except signs exempted by Sections 54-405 and 54-411 shall be erected, altered, moved, repaired or replaced within the city until a zoning permit has been granted by the zoning administrator and a building permit has been issued by the chief building inspector as certification that the requirements of this Chapter have been satisfied and that all fees have been paid. The zoning administrator may order the removal of any sign which, after a permit has been obtained, is not constructed in accordance with this Chapter. Table 1.2, located at the end of this Article, summarizes the regulations of this Article for allowed signs in each zoning district.
- b. The jurisdiction of the Board of Architectural Review and Commercial Corridor Design Review Board. This Article shall not affect the jurisdiction of the Board of Architectural Review and the Commercial Corridor Design Review Board to consider and act on applications for signage on premises within its jurisdiction, and nothing herein shall be construed to accord to an applicant a right to a sign of a particular design, size, height or number thereof on premises within the jurisdiction of the Board of Architectural

Review and the Commercial Corridor Design Review Board. See Appendix L for Sign Design Guidelines pertaining to the jurisdiction of the Board of Architectural Review. See Appendix M for Sign Design Guidelines pertaining to the jurisdiction of the Commercial Corridor Design Review Board.

- c. Highway Advertising Control Act. Nothing herein shall be construed to in any way prohibit or relieve the city or owners of property within the corporate limits of the city from any duties, responsibilities or obligations imposed upon it or them by virtue of the terms of the Highway Advertising Control Act, as codified by Section 57-25-10 through and including 57-25-220 of the Code of Laws of South Carolina (1976), as amended. (Ord. No. 2004-78, §§ 1—3, 8-17-04; Ord. No. 2007-135, 7-11-07; Ord. No. 2013-69, § 1, 7-16-13)

Sec. 54-403. General requirements.

- a. Height of sign. The height of a sign shall be the vertical distance measured from the adjacent average elevation of the natural grade to the top of the sign face or sign structure, whichever is higher.
- b. Calculation of sign area. Sign area shall be calculated as the entire area within a rectangle enclosing the extreme limits of the sign face, including any frame or border. The area of a sign composed of individual letters, numerals or other devices shall equal the area of the smallest rectangle or square encompassing said letters or devices.
- c. Sign face. Sign face shall be that part of the sign that is or can be used to identify, advertise or communicate information or for visual representation which attracts the attention of the public for any purpose. Sign face includes any background material, panel, trim, color and direct or self-illumination used that differentiates the sign from the building, structure, backdrop surface or object upon which or against which it is placed. The sign structure shall not be included as a portion of the sign face provided that no message, symbol or any of the aforementioned sign face criteria are displayed on or designed as part of the sign structure.

(Ord. No. 2007-135, 7-11-07)

PART 2

PROHIBITED AND EXEMPT SIGNS

Sec. 54-404. Prohibited signs.

The following signs are prohibited:

- a. snipe sign;
- b. sandwich board and pedestal signs, except as provided in Sections 54-414 (h) and 54-415(h);
- c. off-premises signs, except billboards as provided in Section 54-414.1 or Section 54-420;
- d. a sign which contains any flashing or animated lights, gives the appearance of animation or movement;
- e. a sign which utilizes individual bulbs or electronic means to produce a message, excluding time and temperature signs; except that school facilities which occupy at least eight (8) acres may utilize electronic message boards as part of their allowed signage provided that 1) the electronic message board does not contain flashing messages, and 2) the electronic message board does not exceed 50 percent of the allowed sign face area; and accommodations uses on commercially zoned properties located wholly or partially within a quarter mile (1,320 feet) of the intersection of the center-lines of the rights-of-way of Highway 17/Savannah Highway and Interstate I-526 may utilize an electronic message board as part of their allowed free-standing signage provided that 1) the electronic message board does not contain flashing or scrolling messages, 2) the size of the electronic message board is restricted to a maximum of 60 square feet per sign face, and 3) the electronic message board is restricted to a maximum of two sign faces.
- f. any sign that projects above the peak of a roof;
- g. vehicle signs and signs which are pulled behind a vehicle, motorcycle, all terrain vehicle, golf cart, low speed vehicle, moped, scooter, motor driven cycle, or bicycle;
- h. any sign which emits a sound, odor or visible matter;



- i. any sign which obstructs free ingress/egress from a required door, window, fire escape or other required exit way;
- j. Residential subdivision and multi-family development identification signs shall be permitted as follows:
 1. Residential subdivisions may have two (2) signs per entrance, which shall not exceed six (6) feet in height and twenty-four (24) square feet in sign face, identifying the name of the subdivision as listed on the approved subdivision plat.
 2. Multi-family developments may have two (2) signs per entrance, which shall not exceed six (6) feet in height and twenty-four (24) square feet in sign face, identifying the name of the multi-family development.
 3. Residential subdivision and multi-family development signs are not to be internally illuminated.
 4. Residential subdivision signs must bear the name provided on the recorded subdivision plat. A subdivision name change must be approved by the Planning Commission.
- k. signs using the words "stop," "danger" or any other word, phrase, symbol or character in a manner that might reasonably mislead, confuse or distract a vehicle driver;
- l. except as otherwise provided, no sign whether temporary or permanent, except by a public agency or with the approval of the city and upon issuance of an encroachment permit by the city's Public Works and Utility Committee, is permitted within any street right-of-way;



- m. signs painted on or attached to trees, rocks or other natural features, telephone or utility poles;
- n. no sign of any kind shall be erected or displayed in any salt marsh areas or on any land subject to periodic inundation by tidal salt water;
- o. abandoned or dilapidated signs;
- p. portable and temporary signs, except as provided in Section 54-411;
- q. signs in residential districts advertising commercial uses, except institutional signs and signs advertising non-conforming uses or uses otherwise approved by variance or special exception;
- r. fluttering signs, e.g., pennants, balloons and ribbons, except those as provided in Section 54-411;
- s. banners, except those as provided in Sections 54-405 (e) and 54-411;
- t. gas filled figures;
- u. flags containing text or graphics advertising a business, service or product; and
- v. television or computer monitors, located either indoors or outdoors, which are oriented towards a public right of way for the purpose of producing a commercial message or image.

(Ord. No. 2007-135, 7-11-07; Ord. No. 2009-27, § 1, 2-24-09; Ord. No. 2009-123, § 1, 8-18-09; Ord. No. 2013-69, § 2, 7-16-13; Ord. No. 2015-105, § 3, 8-18-2015; Ord. No. 2018-031, § 7, 4-10-18)

Sec. 54-405. Exempt signs.

The following signs are exempt from the regulations of this ordinance, provided they are not located within the public right-of-way without an encroachment agreement:

- a. flags, except those as prohibited in Section 54-404 (u);
- b. special event flags, banners, pennants, balloons and ribbons as provided in Section 54-411 (e-f);
- c. street banners as provided in Section 54-411 (c);
- d. real estate banners as provided in Section 54-411 (d);
- e. banners of a unique quality or design which are integral to the architectural design of a building as approved by either the Board of Architectural Review or the Design Review Board within their respective districts.
- f. political (see Section 19-441 of the Code of the City of Charleston);
- g. official notices posted by any court, public agency or officer;
- h. historic plaques; and
- i. traffic, directional, warning or informational signs authorized by any public agency.



(Ord. No. 2004-69, § 1, 7-20-04; Ord. No. 2006-153, § 1, 5-2-06; Ord. No. 2007-135, 7-11-07; Ord. No. 2009-08, § 1, 1-13-09; Ord. No. 2013-69, § 3, 7-16-13)

Secs. 54-406—54-409. Reserved.

PART 3
SIGN REGULATIONS

Sec. 54-410. Provisions applicable to all signs.

- a. Setback from right-of-way. All freestanding signs shall be located on private property and shall not be located within the vision clearance triangle at street intersections.
- b. Light sources to illuminate signs shall be shielded from all adjacent residential buildings and streets and shall not be of such brightness so as to cause glare hazardous to pedestrians or automobile drivers or so as to create a nuisance to adjacent residential districts.
- c. Signs shall not have light reflecting background, but may use light reflecting lettering. (Ord. No. 2006-09, § 1, 1-10-06; Ord. No. 2007-135, 7-11-07)

Sec. 54-411. Temporary signs within all zoning districts.

- a. The following signs shall require the issuance of a Temporary Sign Permit by the zoning administrator prior to their erection. The permit shall cite the length of time any such sign may be displayed.
 1. Temporary and seasonal produce stands. The total area of all such signs shall not exceed twenty (20) square feet, nor shall any sign exceed ten (10) feet in height.
 2. Temporary signs announcing a civic, philanthropic, educational or religious event. Such signs shall not exceed thirty-two (32) square feet per sign face or eight (8) feet in height. Such signs shall not be erected more than fourteen (14) days prior to the event and shall be removed within five (5) days after the event.
- b. Real estate or project signs shall be allowed without a permit provided the following restrictions for the type of sign used are met:
 1. Individual single-family and duplex lots or units: For single-family or duplex residential lots or units, one (1) real estate sign, not exceeding three (3) square feet in sign area per face and six (6) square feet in total sign area, and, if freestanding, not exceeding three (3) feet in height, shall be permitted per lot. Property with two (2) or more street frontages shall be permitted one (1) additional sign per frontage. If a framed metal freestanding sign is not used, then a single post sign may be used.
 2. Single-Family Subdivisions, Multi-Family Developments, Commercial Developments and Industrial Developments:
 - (a) For multi-family developments containing fewer than eight (8) units, one (1) real estate sign, not exceeding sixteen (16) square feet in sign area per face and thirty two (32) square feet in total sign area, and, if freestanding, not exceeding eight (8) feet in height, shall be permitted. Property with two (2) or more street frontages shall be permitted one (1) additional sign per frontage.

- (b) For single-family subdivisions, multi-family developments containing eight (8) or more units, commercial, and industrial developments, one (1) real estate or project sign not exceeding thirty-two (32) square feet in sign area per face and sixty-four (64) square feet in total sign area, and, if freestanding, not exceeding eight (8) feet in height, shall be permitted. Property with two (2) or more street frontages shall be permitted one (1) additional sign per frontage.



temporary signs-1

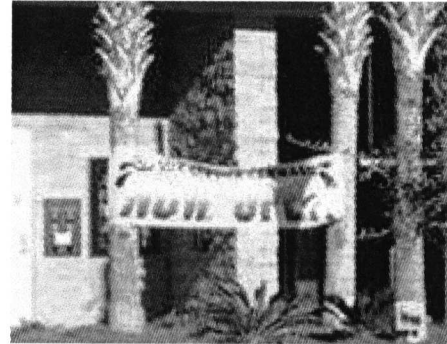
3. Project signs shall not be erected prior to issuance of a building permit and shall be removed prior to issuance of the final certificate of occupancy.
 4. Real estate signs shall be removed within thirty (30) days of the rent, sale or lease of a property.
- c. Street banners advertising special events may be erected over a public right of way by the City of Charleston's Department of Traffic and Transportation, with a permit issued by the aforementioned department.



temporary signs-2

- d. In lieu of a project sign or real estate sign as described in paragraph b above, banners associated with the opening of a new residential community, business or institution

may be erected without a permit. Said banners may be in place for up to thirty (30) days from the date of the initial opening. Banner signs used in this manner shall be restricted to one banner at each entrance to the development, not to exceed forty-eight (48) square feet in size for each banner. Banners are to be attached to a permanent structure, such as a building or fence and not temporary supports, trees, automobiles or etcetera.



temporary signs-3

- e. Flags, pennants, banners, balloons, ribbons and other aerial devices used for special events and festivals sponsored by the City of Charleston or a non profit agency may be erected without a permit by the City of Charleston and shall be removed within five (5) days after the event.
- f. Flags, pennants, banners, balloons, ribbons and other aerial devices may be erected without a permit by a resident within any residential district so long as they do not contain text or graphics advertising a business or service.



temporary signs-4

- g. Temporary window signs shall be allowed without a permit provided that they, along with any permanent window signs, cover no more than 20% of any single window area and shall be in place for no more than sixty (60) days.

(Ord. No. 2007-135, 7-11-07)

Sec. 54-412. Regulations for signs within the Savannah Highway Overlay Zone and Residential Office, RO District.

In the Savannah Highway Overlay Zone and Residential Office District only the following signs shall be permitted.

- a. Freestanding Signs: One double-faced, monument style sign shall be allowed per lot with a maximum of twelve (12) square feet in area per side and not to exceed five (5) feet in height; and
- b. Illumination of Freestanding Signs: Monument signs may be illuminated internally or with a shielded spot light located at the base of the sign. The use of plastic sign faces is prohibited.
- c. All other sign types: The use of façade signs, right angle signs, reader boards, window signs, awning/canopy signs, wall/fence signs, sandwich board signs, kiosk/directory signs and directional/warning signs is prohibited.



(Ord. No. 1998-112, § 3, 5-26-98; Ord. No. 2007-135, 7-11-07)

Sec. 54-413. Regulations for signs within the Commercial Transitional, CT District.

In the Commercial Transitional District only the following signs shall be permitted.

- a. Freestanding Signs: One double-faced, monument style sign shall be allowed per lot with a maximum of twelve (12) square feet in area per side and not to exceed five (5) feet in height; and
- b. Illumination of Freestanding Signs: Monument signs may be illuminated internally or with a shielded spot light located at the base of the sign. The use of plastic sign faces is prohibited.
- c. Façade Signs: One (1) non-illuminated façade sign, not exceeding nine (9) square feet is allowed per business unit.
- d. Window signs shall be permitted as follows:
 1. In addition to signage permitted under "Façade Signs," window signs may be displayed provided no more than twenty (20) percent of any single window area is covered by such signage.
 2. Window signs are to be limited to ground floor windows and/or businesses.
- e. Awning and Canopy Signs shall be permitted as follows:
 1. Awning and canopy signs shall not exceed twenty (20) percent of a single surface area of a canopy or awning.
 2. Translucent internally illuminated awnings and canopies are not permitted.
 3. Awnings shall fit over only the opening it covers and not extend across the entire façade.
- f. Right Angle Signs: One right angle sign shall be permitted per business unit as follows:
 1. Right angle signs shall not exceed nine (9) square feet per face.
 2. Right angle signs are not to be illuminated.





- g. All other sign types: The use of reader boards (except as provided in Section 54-415(l)), wall/fence signs, sandwich board signs, kiosk/directory signs and directional/warning signs are prohibited.

(Ord. No. 2007-135, 7-11-07; Ord. No. 2009-08, § 2, 1-13-09; Ord. No. 2013-69, § 4, 7-16-13)

Sec. 54-414. Regulations for signs within the Daniel Island Town Center DI-TC, Gathering Place, GP District and Neighborhood, N District.

In the Daniel Island Town Center, Gathering Place District and Neighborhood District only the following signs shall be permitted:

- a. Freestanding signs shall be permitted as follows:
 1. One double-faced monument style shall be allowed per lot with a maximum of twelve (12) square feet in area per side and not exceeding five (5) feet in height.
 2. Monument signs may be illuminated internally or with a shielded spot light located at the base of the sign. The use of plastic sign faces is prohibited.
- b. Façade signs shall be permitted as follows:
 1. Façade signs for businesses or uses occupying the ground floor of a multi-story building shall be permitted as follows:
 - (a) Sign faces shall not occupy more than ten (10) percent per ground floor facade of the building.
 - (b) Façade signs shall not be located above the ground floor level of a multi-story building with the exception of those signs identifying the name of a building.

- (c) Sign faces shall have a vertical dimension of no more than two-thirds ($\frac{2}{3}$) of the vertical dimension of a single uninterrupted wall plane, surface, or sign band.
- 2. Façade signs for businesses or uses occupying a space above the ground floor of a multi-story building shall be permitted as follows:
 - (a) For buildings with three (3) or fewer business spaces above the ground floor of a multi-story building, one (1) façade sign, not exceeding one (1) square foot, is allowed per business unit occupying a space above the ground floor level.
 - (b) Façade signs shall be located at the ground floor building entrance providing access to the business unit above the ground floor level of a multi-story building.
- 3. Where more than one (1) business or use occupies a single building, each separate business occupying a space may erect signage whose sign faces shall conform with the requirements of paragraphs 1 and 2 above.
- 4. Façade signs shall be limited to the following locations:
 - (a) On any façade which contains a building entrance accessible to the general public.
 - (b) On any façade which parallels a public street or public right-of-way providing driveway access to the parcel.



- 5. Façade signs shall not to be internally illuminated.

- c. Window signs shall be permitted as follows:
1. Window signs may be displayed provided no more than twenty (20) percent of any single window area is covered by such signage.
 2. Window signs are to be limited to ground floor windows and/or businesses. However, businesses occupying a unit above the ground floor level of a multi-story building may display window signs at the ground floor building entrance providing they conform with the requirements of paragraph 1 above.
 3. Window signs shall not be illuminated.
- d. Awning and canopy signs shall be permitted as follows:



1. Awning signs shall be limited to the awning valance only and are not permitted on the slope of the awning. Awning text and/or graphics shall have a vertical dimension of no more than two thirds ($\frac{2}{3}$) of the vertical dimension of the awning valance.
2. Canopy signs shall be allowed on the face of the canopy; canopy text and/or graphics shall have a vertical dimension of no more than two thirds ($\frac{2}{3}$) of the vertical dimension of the canopy face. Canopy signs shall be allowed on the top of a canopy; canopy text and/or graphics shall have a vertical dimension of no more than sixteen (16) inches.
3. Translucent internally illuminated awnings and canopies are not permitted.
4. Awnings shall fit over only the opening it covers and not extend across the entire façade.

- e. Right angle signs for individual business units: One (1) right angle sign shall be permitted per business unit occupying the ground floor of a single story or multi-story building as follows:
 - 1. Right angle signs shall not exceed nine (9) square feet per face.
- f. Right angle signs in lieu of a freestanding sign: One (1) right angle sign shall be permitted, in addition to right angle sign(s) permitted in paragraph e. above, per development as follows:
 - 1. A right angle sign is not permitted in conjunction with a freestanding, wall or fence sign.
 - 2. A right angle sign shall not contain any information other than the name, address or logo of the development. A right angle sign shall not be used as a multi-tenant sign.
 - 3. A right angle sign shall not exceed eighteen (18) square feet per face; except that a building with three (3) or more conditioned stories and more than forty thousand (40,000) square feet of conditioned space shall be permitted to have a larger right angle sign not to exceed forty (40) square feet per face and eighty (80) square feet of total sign face area.
 - 4. A right angle sign shall have a vertical dimension of no more than one half ($\frac{1}{2}$) of the vertical dimension of a building facade.
- g. Wall or fence signs shall be permitted as follows:
 - 1. Sign(s) attached to a wall or fence shall be considered a freestanding sign. One (1) wall or fence sign may be erected in lieu of a freestanding sign. When a development fronts on two or more streets, one (1) additional wall or fence sign, in lieu of a freestanding sign, shall be permitted per street, provided however said street(s) have a driveway access.
 - 2. The sign face of a wall or street sign shall not exceed twelve (12) square feet in area.
 - 3. Wall and fence signs may be illuminated with a shielded spot light located at the base of the sign. Internal illumination is prohibited.
- h. Sandwich board signs for businesses occupying the ground floor of a building shall be permitted as follows:



1. Sandwich board signs on private property are allowed without a permit provided they meet the requirements as follows:
 - (a) Only one sandwich board sign shall be allowed for any single building; provided, however, that where more than one (1) business occupies a building, each ground floor business may have a sandwich board sign.
 - (b) No sandwich board signs shall exceed twenty-four (24) inches in width or thirty-six (36) inches in height.
 - (c) Such property shall not be entitled to any other freestanding signage.
2. Sandwich board signs within a public right-of-way shall be permitted as follows:
 - (a) Sandwich board signs shall conform with the requirements of paragraphs (a) and (b) above.
 - (b) Sandwich board signs shall only be permitted on a sidewalk with a minimum width of ten (10) feet.
 - (c) Sandwich board signs shall maintain a clear pedestrian path on the sidewalk of five (5) feet minimum at all times. This area shall be free of any obstructions such as trees, tree wells, parking meters and the like in order to allow adequate pedestrian movement.
 - (d) Sandwich board signs shall not interfere with any utilities or other facilities such as fire hydrants, street signs, parking meters, mailboxes or benches located on the sidewalk or in the public right-of-way.

- (e) Sandwich board signs shall not impinge on any required clear distances for maneuvering around building entrances and exits.
 - (f) A sandwich board sign must be located directly in front of the ground floor business unit for which it serves.
 - (g) Sandwich board signs within a public right-of-way shall require an encroachment permit issued by the City of Charleston Department of Public Services.
- i. Freestanding directory signs shall be permitted for multi-tenant shopping centers as follows:
 - 1. Such directory signs shall be for directory information purposes only.
 - 2. The area of the directory sign shall not exceed twelve (12) square feet per face and five (5) feet in height.
 - 3. One (1) directory sign shall be permitted per driveway entrance.
 - 4. Directory signs shall not be illuminated.
 - 5. Such directory signs shall be for the use of internal business units only and shall not be for the use of business units fronting on a public right-of-way.
 - 6. A freestanding directory sign is not permitted in conjunction with a freestanding, wall or fence sign.
- j. Building entrance directory signs shall be permitted for multi-tenant buildings as follows:
 - 1. Such directory signs shall be for directory information purposes only.
 - 2. The area of the directory sign shall not exceed four (4) square feet.
 - 3. One (1) directory sign shall be permitted per building entrance.
 - 4. Directory signs shall not be illuminated.
 - 5. Directory signs may be affixed to the building façade or freestanding and shall be located immediately adjacent to a building entrance.
 - 6. Such directory signs shall be for the use of internal business units only and shall not be for the use of business units fronting on a public right-of-way.
- k. The use of multiple signs shall be permitted as follows:
 - 1. Businesses or uses occupying the ground floor of a multi-story building shall be limited to two of the following signs per building façade: façade sign, window sign, awning sign, canopy sign and right angle sign.
 - 2. Businesses or uses occupying a space above the ground floor of a multi-story building shall be limited to one of the following signs per ground floor building entrance: façade sign, window sign and building entrance directory sign.

1. All other sign types: The use of reader boards (except as provided in Subsection 54-415.a.5.(c) and directional/warning signs is prohibited.
(Ord. No. 2006-09, § 2, 1-10-06; Ord. No. 2007-135, 7-11-07; Ord. No. 2008-57, § 1, 4-8-08; Ord. No. 2009-08, § 3, 1-13-09; Ord. No. 2010-29, § 2, 3-9-10; Ord. No. 2013-69, § 5, 7-16-13; Ord. No. 2018-031, § 8, 4-10-18)

Sec. 54-414.1. Regulations for signs within the Agricultural, AG-8 and AG-S Districts.

In the AG-8 and AG-S Districts, only the following signs shall be permitted.

- a. Freestanding signs shall be permitted as follows:
 1. On-premises freestanding signs shall be permitted as follows:
 - (a) No sign shall have more than two sign faces and each sign face shall not exceed ten (10) square feet, except that each sign face may be increased to thirty-two (32) square feet if a special exception is approved by the Board of Zoning Appeals-Zoning pursuant to the requirements of section 54-1006.
 - (b) No sign shall exceed twelve (12) feet in height.
 - (c) No more than two (2) monument freestanding signs shall be permitted for each major street frontage.
 - (d) Freestanding signs may be illuminated internally or with a shielded spot light located at the base of the sign. Plastic face signs shall have opaque backgrounds allowing only the text and logos to illuminate.
 2. Residential subdivision and multi-family development identification signs shall be permitted as follows:
 - (a) Residential subdivisions and multi-family developments may have two (2) signs per entrance, which shall not exceed twelve (12) feet in height and thirty-two (32) square feet in sign face, identifying the name of the subdivision as listed on the approved subdivision plat.
 - (b) Residential subdivision and multi-family development signs shall not to be internally illuminated.
 - (c) Residential subdivision signs must bear the name provided on the recorded subdivision plat. A subdivision name change must be approved by the Planning Commission.
 3. Off-premises free-standing signs advertising products from bona fide agricultural uses, related activities and farm identification may be permitted on properties located in agricultural zoning districts, subject to the following requirements:
 - (a) A maximum of one (1) off-premises sign is permitted per bona fide agricultural use;

- (b) The sign shall comply with the dimensional limitations for on-premises freestanding signs in the Agricultural districts;
- (c) The sign shall not be internally or externally illuminated;
- (d) The applicant shall submit a signed letter of intent and supporting documentation indicating that the primary use of the property being advertised is a bona fide agricultural use as defined in this 54-120 and that the products and events advertised are grown, produced, and/or will occur on the bona fide agricultural use property; and
- (e) The applicant shall submit a signed letter of agreement from the property owner of the parcel on which the sign is to be located stating that the property owner will allow the sign to be erected at the location indicated on the site plan.

(Ord. No. 2018-031, § 8, 4-10-18)

Sec. 54-415. Regulations for signs within all other districts.

In all other districts, only the following signs shall be permitted:

- a. Freestanding signs shall be permitted as follows:
 - 1. For a development containing three (3) or fewer business units, one (1) monument sign shall be permitted as follows:
 - (a) No sign shall exceed forty (40) square feet per face or eighty (80) square feet of total sign face area.
 - (b) No sign shall exceed twelve (12) feet in height.
 - (c) Monument signs may be illuminated internally or with a shielded spot light located at the base of the sign. Plastic face signs shall have opaque backgrounds allowing only the text and logos to illuminate.



2. For a development containing more than three (3) business units and fewer than twenty (20) business units, one (1) monument sign shall be permitted as follows:
 - (a) No sign shall exceed sixty (60) square feet per face or one hundred and twenty (120) square feet of total sign face area. No sign shall exceed fourteen (14) feet in height.
 - (b) Monument signs may be illuminated internally or with a shielded spot light located at the base of the sign. Plastic face signs shall have opaque backgrounds allowing only the text and logos to illuminate.

3. For a development containing twenty (20) or more business units, or 150,000 square feet or more of floor area, one (1) monument sign shall be permitted as follows:
 - (a) No sign shall exceed one hundred (100) square feet per face or two hundred (200) square feet of total sign face area. No sign shall exceed fourteen (14) feet in height.
 - (b) Monument signs may be illuminated internally or with a shielded spot light located at the base of the sign. Plastic face signs shall have opaque backgrounds allowing only the text and logos to illuminate.



4. When a development fronts on two (2) or more streets, one (1) additional monument sign shall be permitted per street; provided however, said street(s) have driveway access. These signs shall be permitted as follows:
 - (a) Additional sign(s) shall not exceed thirty-five (35) square feet per face or seventy (70) square feet of total sign face area.
 - (b) Additional sign(s) shall not exceed ten (10) feet in height.
 - (c) Additional sign(s) may be illuminated internally or with a shielded spot light located at the base of the sign. Plastic face signs shall have opaque backgrounds allowing only the text and logos to illuminate.
5. Special provisions for freestanding signs:
 - (a) Menu boards which are constructed as a part of a drive-thru service are not deemed to be freestanding signs.
 - (b) Instructional signs which are constructed as part of a self-service use are not deemed to be a freestanding sign.
 - (c) Reader boards shall be permitted as follows:
 1. Reader boards are allowed as a part of a monument sign only and are not to be used as facade signs.

2. With the exception of public schools, reader boards shall not exceed fifty (50) percent of the allowable sign face area.
3. Reader boards are not to be internally illuminated.



- b. Façade Signs shall be permitted as follows:
 1. Sign faces shall not occupy more than ten (10) percent per façade of the building.
 2. Where more than one (1) business or use occupies a single building, each separate business occupying a space which includes an exterior façade may erect signage whose sign faces shall not occupy more than ten (10) percent per façade of the separate business entity; provided, however, that the total signage per façade for the business entities occupying the single building shall not exceed the ten (10) percent coverage requirement.
 3. Where a business or use occupies an interior space of a single building, said business or use may erect signage on an exterior façade of the single building provided the total signage per building façade shall not exceed the ten (10) percent coverage requirement.
 4. With the exception of a building façade fronting a public street or public right-of-way, façade signs shall be limited to those façades which have a building entrance accessible to the general public or pedestrian.
- c. Window signs shall be permitted as follows:
 1. In addition to signage permitted under "Façade Signs," window signs may be displayed provided no more than twenty (20) percent of any single window area is covered by such signage.

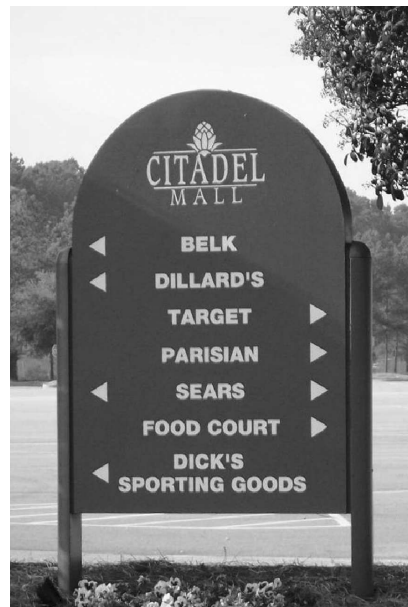
2. Window signs are to be limited to ground floor windows and/or businesses.
- d. Awning and Canopy Signs shall be permitted as follows:
1. Awning signs shall be limited to the awning valance only and are not permitted on the slope of the awning. Awning text and/or graphics shall have a vertical dimension of no more than two-thirds ($\frac{2}{3}$) of the vertical dimension of the awning valance.
 2. Canopy signs shall be allowed on the face of the canopy; canopy text and/or graphics shall have a vertical dimension of no more than two-thirds ($\frac{2}{3}$) of the vertical dimension of the canopy face. Canopy signs shall be allowed on the top of a canopy; canopy text and/or graphics shall have a vertical dimension of no more than sixteen (16) inches.
 3. Translucent internally illuminated awnings and canopies are not permitted.
 4. Awnings and canopies shall fit over only the opening it covers and not extend across the entire façade.
- 
- e. Right Angle Signs for Individual Business Units: One right angle sign shall be permitted per business unit as follows:
1. Right angle signs shall not exceed nine (9) square feet per face.
- f. Right Angle Signs in lieu of a Freestanding Sign: One right angle sign shall be permitted, in addition to sign(s) permitted in paragraph e. above, per development as follows:
1. A right angle sign is not permitted in conjunction with a freestanding sign.
 2. A right angle sign shall not contain any information other than the name, address or logo of the development or single tenant. A right angle sign shall not be used as a multi-tenant sign.

3. A right angle sign shall not exceed eighteen (18) square feet per face; except that a building with three (3) or more conditioned stories and more than forty thousand (40,000) square feet of conditioned space shall be permitted to have a larger right angle sign not to exceed forty (40) square feet per face and eighty (80) square feet of total sign face area.
 4. A right angle sign shall have a vertical dimension of no more than one-half ($\frac{1}{2}$) of the vertical dimension of a building façade.
- g. Wall or fence signs shall be permitted as follows:
1. Sign(s) attached to a wall or fence shall be considered a freestanding sign. One (1) wall or fence sign may be erected in lieu of a freestanding sign. When a development fronts on two or more streets, one (1) additional wall or fence sign, in lieu of a freestanding sign, shall be permitted per street, provided however said street(s) have driveway access.
 2. The sign face of a wall or fence sign shall not exceed twenty-four (24) square feet in area.
 3. Wall and fence signs may be illuminated with a shielded spot light located at the base of the sign. Internal illumination is prohibited.



- h. Sandwich board signs and pedestal signs shall be permitted as follows:
1. Sandwich board signs and pedestal signs within public right-of-way prohibited. No person shall place, affix, connect, attach, fasten, erect, construct, replace or maintain any sandwich board on any public rights-of-way in the city.

2. Sandwich board signs and pedestal signs on private property are allowed without a permit provided they meet the requirements as follows:
 - (a) Only one sandwich board sign or pedestal sign shall be allowed for any single building; provided, however, that where more than one (1) business occupies a building, each business may have a sandwich board sign or pedestal sign.
 - (b) No sandwich board sign or pedestal sign shall exceed twenty-four (24) inches in width or thirty-six (36) inches in height.
 - (c) Such property shall not be entitled to any other freestanding signage.
- i. Kiosks or directory signs shall be permitted for multiple-use shopping, business, office and professional centers as follows:
 1. Such kiosks or directory signs shall be for directory information purposes only.
 2. The area of the directory sign or kiosk shall not exceed twelve (12) square feet per face and five (5) feet in height.
 3. Directory and kiosk signs may be illuminated internally or with a shielded spot light located at the base of the sign. Plastic face signs are prohibited.
- j. Residential subdivision and multi-family development identification signs shall be permitted as follows:
 1. Residential subdivisions may have two (2) signs per entrance, which shall not exceed six (6) feet in height and twenty-four (24) square feet in sign face, identifying the name of the subdivision as listed on the approved subdivision plat.
 2. Multi-family developments may have two (2) signs per entrance, which shall not exceed six (6) feet in height and twenty-four (24) square feet in sign face, identifying the name of the multi-family development.
 3. Residential subdivision and multi-family development signs are not to be internally illuminated.



4. Residential subdivision signs must bear the name provided on the recorded subdivision plat. A subdivision name change must be approved by the Planning Commission.



- k. Gasoline filling stations may have additional signs as follows:



1. Petroleum products and dispensers which are within view of a public way shall be permitted to display information required by law and in addition, the brand name and type of product being dispensed, so long as such signs do not extend beyond the face of the dispenser and are not illuminated.
2. The price per gallon may be displayed on each individual pump structure or island, as long as the characters

do not exceed six inches (6") in height and are not illuminated.

1. Directional and warning signs shall be permitted as follows:

1. On-premises sign(s) shall not exceed four (4) square feet per sign face and three (3) feet in height.
 2. Such sign(s) shall not be considered signs for purposes of computing the total number and area of freestanding, façade or temporary signs.
 3. Such sign(s) shall not be illuminated; however reflective lettering may be used.
- m. Institutional signs within residential, commercial transitional, gathering place and neighborhood districts shall be permitted as follows:



1. Freestanding monument signs shall be permitted as follows:
 - (a) Monument institutional signs shall be no more than six (6) feet in height and each sign face shall not exceed twenty-four (24) square feet.
 - (b) There shall be no more than one (1) monument sign per institutional use per entrance; provided, however, that in the case of a complex of buildings which house institutional uses, each building shall be allowed an additional monument sign no more than four (4) feet in height and twelve (12) square feet in area.



- (c) Monument signs may be illuminated internally or with a shielded spot light located at the base of the sign. Plastic face signs shall have opaque backgrounds allowing only the text and logos to illuminate.
 - (d) Reader boards are allowed as a part of a monument sign only and are not to be used as façade signs.
 - (e) With the exception of public schools, reader boards shall not exceed fifty (50) percent of the allowable freestanding sign face area.
 - (f) Reader boards are not to be illuminated.
2. Façade signs shall be permitted as follows:
- (a) Sign faces shall not occupy more than ten (10) percent per façade of the building.
 - (b) Façade signs are not to be internally illuminated.
- n. Off-premises signs shall be permitted as follows:
- 1. Off-premises signs are permitted only within the HI (Heavy Industrial) zoning district and only when the entire sign and sign structure is located within one hundred (100) feet of an interstate highway.

2. In this district, one off-premise sign shall be permitted per lot provided it meets the following requirements:
 - (a) Off-premises signs shall be separated from other off-premises signs along either side of the same street or thoroughfare by a minimum distance of one thousand (1,000) feet.
 - (b) Off-premises signs shall be separated from residentially zoned properties by a minimum distance of five hundred (500) feet.
 - (c) Setback of off-premises signs from property lines shall be at least five (5) feet.
 - (d) Off-premises signs shall only be located on high ground.
 - (e) Height and area of off-premises signs shall not exceed twenty-five (25) feet above the roadbed toward which the advertising is directed or thirty-five (35) feet above the ground, whichever is less, nor exceed one hundred fifty (150) square feet of advertising surface on one side.

(Ord. No. 1997-03, §§ 1, 2, 1-28-97; Ord. No. 1998-112, § 4, 5-26-98; Ord. No. 2005-95, § 2, 5-17-05; Ord. No. 2007-135, 7-11-07; Ord. No. 2008-57, § 2, 4-8-08; Ord. No. 2009-08, § 3, 1-13-09; Ord. No. 2013-69, § 6, 7-16-13)

Secs. 54-416—54-419. Reserved.

PART 4
NON-CONFORMING SIGNS

Sec. 54-420. Non-conforming signs.

- a. Signs legally existing on May 17, 2005, that do not conform to the provisions of this Article, shall be considered non-conforming signs and may continue in use only as provided in this section. Provided, however, that this non-conforming use protection shall not apply to any sign established in violation of, or amortized pursuant to, the Zoning Ordinance previously in effect, unless such sign now conforms with the provisions of this Article. For the purposes of this section, the term "sign" shall include the sign face and the structure on which the sign face is attached.
- b. Abandonment of use.
 1. A non-conforming sign that has been abandoned shall be removed within ninety (90) days of written notification thereof, and shall not thereafter be reestablished, except in conformity with the provisions of this Article.
 2. A sign has been abandoned if it is not being maintained as required by the regulations, or which is overgrown by trees or other vegetation not on the highway right-of-way, or which has had obsolete advertising messages or no advertising messages for a period of six (6) months, or for which a permit has not been obtained or is not current.
- c. Restoration of damaged non-conforming signs.
 1. Any non-conforming sign damaged by more than fifty (50) percent of its reasonable replacement cost at the time of damage assessment, either through neglect, deferred maintenance or normal wear and tear over a period of time, or by fire, flood, explosion, wind, hurricane, tornado, earthquake, war, riot, or other act of God, shall not be restored or reconstructed and used as before such damage, unless in conformity with the provisions contained herein.
 2. If less than fifty (50) percent of the sign is damaged, it may be repaired and used as before, provided that such repair is completed within six (6) months of such happenings.
 3. The percentage of damage shall be calculated by dividing the estimated cost of restoring the sign to its pre-damaged condition by its reasonable replacement cost.
- d. Alterations to non-conforming freestanding signs. Any non-conforming freestanding sign altered by the modification of the size or shape of its cabinet(s) or frame(s) containing the sign face, or complete or partial removal of its cabinet(s) or frame(s) containing the sign face shall be made to conform to the provisions of this article.
- e. Off Premises Signs. Non-conforming off premises signs, except for non-conforming off premises signs located along Federal Aid Primary Roads, Interstate System Roads, and National Highway System Roads, shall be amortized and the non-conforming use

discontinued as provided in Table 1.1, of this section. Non-conforming off premises signs located along a Federal Aid Primary Road, Interstate System Road or National Highway System Road shall be discontinued if abandoned as delineated in 54-420(b). Non-conforming off premises signs located along a Federal Aid Primary Road or National Highway System Road, if damaged more than fifty (50) percent as delineated in 54-420(c), shall be permanently ended and discontinued and the remaining portions of the off premises sign removed. Non-conforming off premises signs located along Interstate System Roads may be subject to the provisions of Section 54-420(f).

Amortization of non-conforming off premises signs, except for non-conforming signs located along Federal Aid Primary Roads, Interstate System Roads, and National Highway System Roads shall be subject to the following:

1. Non-conforming off premises signs shall be removed or otherwise made to conform to the provisions of this Article within the number of years set forth in Table 1.1: Amortization Schedule, which shall begin to run on May 17, 2005.
2. The amortization period for non-conforming off premises signs subject to this Ordinance by reason of annexation by the city after the enactment of this Ordinance shall begin to run on the date of annexation.
3. The amortization period set forth in Table 1.1 shall be conclusively presumed to have provided just compensation to the owner of the off premises sign and the owner of the real property on which the off premises sign is located for any property interest impacted by this Ordinance.
 - a. Provided, however, that if any amortization period is declared invalid and it is ordered or determined that the city is required to pay funds as compensation, that the city shall have the option to allow the off premises sign to continue in existence as a non-conforming use without payment of such funds until, in its sole discretion, the city determines that adequate funds exist to remove the off premises sign.
 - b. The failure of the city to remove any off premises sign shall not be construed as a waiver by the city to exercise any such rights in the future or demand strict compliance with the provisions of this Ordinance.
- f. Non-conforming Interstate System Road Signs. Notwithstanding any other provision in this Chapter to the contrary, all non-conforming off premises signs along Interstate System Roads existing as of February 1, 2017, shall be permitted to remain in existence, and may be repaired, replaced, or relocated if the following requirements are met:
 1. There shall be no increase in the size or number of sign faces (except that the practice of using cutouts, embellishments, or add-ons, which increase the size of a sign face by up to 150 square feet shall continue to be permitted) and there shall

be no change in the orientation of sign faces in relation to the Interstate System Road on which they are located which would make them visible from another road or highway.

2. The existing height of a sign above the adjacent roadbed, excluding ramps, shall not be increased.
3. Signs that are not illuminated on the effective date of this ordinance shall not thereafter be illuminated.
4. For a non-conforming Interstate System sign to be approved for relocation, the relocation shall meet the following requirements:
 - a. The relocation is necessitated due to an approved and funded widening or relocation of an Interstate System Road or ramp therefrom.;
 - b. The new location of the sign shall be within 500 feet of the sign location on the effective date of this ordinance and along the same Interstate System Road;
 - c. The new location shall maintain a minimum separation distance of 500 feet from the nearest residentially zoned property, except that an existing sign located within 500 feet of a residentially zoned property on the effective date of this ordinance may be relocated if the new location maintains or exceeds the minimum distance the existing sign is located from a residentially zoned property;
 - d. The new location shall not increase the impact of the sign on marsh vistas or historical resources; and
 - e. The new location shall have a zoning of HI, LI or GB.

TABLE 1.1: AMORTIZATION SCHEDULE

<i>Original Cost of Off Premises Sign</i>	<i>Amortization Period from the Date of Enactment of this Ordinance or Date of Subsequent Annexation into the City</i>
Less than \$1,000	1 year
\$1,000 - \$5,000	2 years
\$5,001 - \$10,000	4 years
\$10,001 - 15,000	6 years
\$15,000 and greater	8 years

(Ord. No. 1997-03, §§ 3, 4, 1-28-97; Ord. No. 2005-95, § 3, 5-17-05; Ord. No. 2007-135, 7-11-07; Ord. No. 2017-156, § 1, 12-19-17)

TABLE 1.2: ALLOWED SIGN TYPES BY ZONING DISTRICTS, EXCEPT AG DISTRICTS

<i>Zoning District</i>	<i>SH, RO</i>	<i>CT</i>	<i>DI-TC, GP, ND, JC</i>	<i>HI, LI, GB, LB, GO, BP, MU</i>	<i>All Residential Districts</i>
<i>Sign Type:</i>					
Freestanding	12 sq. ft. per side / 5 ft. ht. (plastic faces not allowed)	12 sq. ft. per side / 5 ft. ht. (plastic faces not allowed)	12 sq. ft. per side / 5 ft. ht. (plastic faces not allowed in DI-TC, GP, NC) In JC: > 3 businesses / 20 sq. ft. per side/5 ft. ht.	≤ 3 businesses 40 sq. ft. per side / 12 ft. ht. > 3 businesses 60 sq. ft. per side / 14 ft. ht.	Institutional uses only = 1 sign = 24 sq. ft. per side / 6 ft. ht.
Additional Freestanding	Not permitted	Not permitted	Not permitted	≥ 2 street fronts w / drive access 35 sq. ft. per side / 10 ft. ht. per additional street	Not permitted
Reader Board	Not permitted	Not permitted	Not permitted	50% of allowable freestanding sign face (no internal illumination)	Institutional uses only = 50% of allowable freestanding sign face (no internal illumination)
Kiosk / Directory	Not permitted	Not permitted	Not permitted	12 sq. ft. per side / 5 ft. ht. (plastic faces not allowed)	Not permitted
Directional	Not permitted	Not permitted	Not permitted	4 sq. ft. side / 3 ft. ht. (no illumination)	Not permitted

<i>Zoning District</i>	<i>SH, RO</i>	<i>CT</i>	<i>DL-TC, GP, ND, JC</i>	<i>HL, LI, GB, LB, GO, BP, MU</i>	<i>All Residential Districts</i>
<i>Sign Type:</i>					
Wall / Fence	Not permitted	Not permitted	Not permitted	2 per drive access, 24 sq. ft. (if used, no freestanding signs allowed) (no internal illumination)	2 per drive access, 24 sq. ft. (if used, no freestanding signs allowed) (no internal illumination)
Sandwich Board	Not permitted	Not permitted	2 ft. wide / 3 ft. ht.	2 ft. wide / 3 ft. ht. (in lieu of freestanding sign)	Not permitted
Facade	Not permitted	1 sign per business unit = 9 sq. ft. (no illumination)	1 sign per business unit = 10% of facade (no internal illumination)	1 sign per business unit = 10% of facade (no internal illumination)	Institutional uses only = 10% of facade (no internal illumination)
Window	Not permitted	20% of ea. window (limited to grnd. flr. windows only)	20% of ea. window (limited to grnd. flr. windows only)	20% of ea. window (limited to grnd. flr. windows only)	Not permitted
Awning / Canopy	Not permitted	20% of surface area (no illumination)	$\frac{2}{3}$ awning valance or canopy face; max. 16" tall (no illumination)	$\frac{2}{3}$ awning valance or canopy face; max. 16" tall (no illumination)	Not permitted
Right Angle for individual business units	Not permitted	1 sign per business unit = 9 sq. ft. per side	1 sign per business unit = 9 sq. ft. per side	1 sign per business unit = 9 sq. ft. per side	Not permitted

<i>Zoning District</i>	<i>SH, RO</i>	<i>CT</i>	<i>DL-TC, GP, ND, JC</i>	<i>HL, LI, GB, LB, GO, BP, MU</i>	<i>All Residential Districts</i>
<i>Sign Type:</i>					
Right Angle in lieu of freestanding	Not permitted	Not permitted	1 sign per development = 18 sq. ft. per side ≥ 3 stories + 40,000 sf = 40 sq. ft. per side	1 sign per development = 18 sq. ft. per side ≥ 3 stories + 40,000 sf = 40 sq.ft. per side	Not permitted
Residential / Multi-family	2 per entrance, single face, 24 sq. ft. / 6 ft. ht. (no internal illumination)	2 per entrance, single face, 24 sq. ft. / 6 ft. ht. (no internal illumination)	For ND only = 2 per entrance, single face, 24 sq. ft. / 6 ft. ht. (no internal illumination)	2 per entrance, single face, 24 sq. ft. / 6 ft. ht. (no internal illumination)	2 per entrance, single face, 24 sq. ft. / 6 ft. ht. (no internal illumination)

(Ord. No. 2007-135, 7-11-07; Ord. No. 2013-69, § 7, 7-16-13; Ord. No. 2016-102, § 6, 9-13-16; Ord. No. 2018-031, § 9, 4-10-18)

ARTICLE 5
EXCEPTIONS AND MODIFICATIONS

Part 1

Exceptions to Lot Size and Lot Area Requirements

- Sec. 54-501. Lot of record of insufficient size.
- Sec. 54-502. Adjoining and vacant lots of record of insufficient size.
- Sec. 54-503. Limitation on minimum requirements of lot area per family.
- Sec. 54-504. Reserved.

Part 2

Exceptions to Height and Setback Requirements

- Sec. 54-505. Exceptions to height requirements.
- Sec. 54-506. Exceptions to setback requirements.
- Secs. 54-507—54-509. Reserved.

Part 3

Exception to Vision Clearance Requirements

- Sec. 54-510. Exceptions to vision clearance requirements.

Part 4

Exceptions to Parking and Loading Requirements

- Sec. 54-511. Exceptions to off-street parking requirements.
- Sec. 54-512. Exceptions to off-street loading requirements.

Part 5

Exceptions to Buffer Requirements

- Sec. 54-513. Exceptions to buffer requirements.

PART 1
EXCEPTIONS TO LOT SIZE AND LOT AREA REQUIREMENTS

Sec. 54-501. Lot of record of insufficient size.

Where the owner of a lot at the time of the adoption of this chapter or his successor in title thereto does not own sufficient land to enable him to meet the minimum lot size requirements of this chapter the board of zoning appeals may upon approval of site plan deemed not in conflict with the intent and purposes of this ordinance authorize any use permitted in the district in which the lot is located.

(Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-502. Adjoining and vacant lots of record of insufficient size.

If two or more adjoining and vacant lots with continuous frontage are in a single ownership at any time after the adoption of the chapter and such lots individually are less than the required minimum width, such groups of lots shall be considered as a single lot or several lots of minimum permitted size and the lot or lots, in one ownership shall be subject to the requirements of this chapter.

Sec. 54-503. Limitation on minimum requirements of lot area per family.

Nothing in the area requirements of this chapter relating to lot area per family shall be held to prohibit the erection of one-family dwelling upon an existing lot of record the area of which is less than that prescribed as the lot area per family; provided that such lot at the time of passage of this chapter was held under a separate ownership from the adjoining lots; or provided that at the time of the passage of this chapter the majority of lots fronting on the same street and adjacent intersecting streets are held under separate ownership and are of the same or less area than the lot in question.

Sec. 54-504. Reserved.

PART 2 EXCEPTIONS TO HEIGHT AND SETBACK REQUIREMENTS**Sec. 54-505. Exceptions to height requirements.**

In all areas covered by this Zoning Ordinance, except in those areas covered by the Old City Height Districts as described in 54-305, the following exceptions shall apply:

- a. The height limitations of this Chapter shall not apply to church spires, belfries, cupolas and domes not intended or used for human occupancy; monuments, water towers, observation towers, transmission towers, masts and aerials, provided that such uses are not within the aircraft landing approach zone. Whenever any of the above uses are proposed within aircraft approach zones, an applicant must submit written approval received from the proper aeronautical authorities before a building permit may be issued.
- b. In any General Business, Gathering Place, Urban Commercial, Business Park, or Light Industrial district, the maximum height for a communication tower shall be determined by Section 54-207, c. In any Heavy Industrial district, the maximum height for a communication tower shall not exceed four hundred (400) feet provided the tower is located no closer to a residential or conservation zoned property than a distance equal to one-half ($\frac{1}{2}$) the height of the proposed tower and no closer to the centerline of a public right-of-way than a distance equal to one-third ($\frac{1}{3}$) the height of the proposed tower. In any Light Industrial or Heavy Industrial district, the maximum height of any other non-residential structure may be increased to eighty (80) feet provided the structure is set back from all property lines a minimum distance equal to the total height of the structure.
- c. In any Conservation, RR-1, SR-1, SR-2, SR-6, SR-7 and STR zoning district, the height of a dwelling may be increased to forty (40) feet, but not exceed $2\frac{1}{2}$ stories, provided that the width of each side yard required by Table 3.1 for the districts in which the building is located is increased a distance equal to at least two times the added height of the buildings above the thirty-five (35) foot limitation of the district.
- d. Properties in the Conservation, RR-1, SR-1, SR-2, SR-6, SR-7 and STR zoning districts located within a Flood Insurance Rate Map (FIRM) special flood hazard area shall be permitted to have dwellings with a maximum height, not to exceed forty-seven (47) feet or $2\frac{1}{2}$ stories, whichever is less, based on the following formula: (FIRM base flood elevation + two feet of additional freeboard - lowest curb line elevation adjacent to the site + 35).
- e. Properties in the Conservation, RR-1, SR-1, SR-2, SR-6, SR-7 and STR zoning districts located within a Flood Insurance Rate Map (FIRM) special flood hazard area where the elevation of the crawl space floor is not more than one and one-half ($1\frac{1}{2}$) feet above the FIRM Base Flood Elevation prescribed by the FIRM, as defined in Section 27-103 of the Code of the City of Charleston, shall be permitted

to have a crawl space exceeding six (6) feet in height that does not count as a story, provided the building height limitation in feet for the zoning district is not exceeded.

- f. In any General Office, Limited Business, General Business, Urban Commercial, Light Industrial or Heavy Industrial district, the height limitation for public buildings, churches, hospitals or schools may be increased to eighty (80) feet, but not exceed six (6) stories; provided that the width of each side yard and rear yard is at least twenty-five (25) feet. In addition, the Commercial Corridor Design Review Board is authorized to permit architectural features such as parapets, cupolas, roof structures, and other similar features, on the above referenced buildings under their review authority, to exceed the eighty (80) foot height limitation but not exceed a total building height of ninety-five (95) feet.
- g. In any General Office, Limited Business, General Business, Urban Commercial, Light Industrial or Heavy Industrial district, the Commercial Corridor Design Review Board is authorized to permit architectural features such as parapets, cupolas, roof structures, and other similar features, on any building under their review authority, to exceed the fifty-five (55) foot height limitation but not exceed a total building height of seventy (70) feet.
- h. In any business or industrial district, the height limitation of the district may be exceeded by structures requiring special design on account of their particular use in industry or commerce such as chimneys, stacks, grain elevators, detached water or wireless towers, provided they otherwise comply with the regulations prescribed.
- i. In any business or industrial district, chimneys, stacks, elevator bulkheads, elevator penthouses, stair towers, gas or water towers, cooling towers, stage towers or scenery lofts, and other necessary mechanical appurtenances, where permitted by the use regulations of this Chapter and when erected upon and as an integral part of the building, may be erected or extended above the height limit of the district; provided that any such structure shall be set back from the vertical plane of the permitted building setback line one (1) foot horizontally for each two (2) feet of extra height.

(Ord. No. 1998-219, § 1, 12-15-98; Ord. No. 1999-22, §§ 7, 8, 3-10-99; Ord. No. 2001-44, §§ 8, 9, 5-8-01; Ord. No. 2001-62, § 2, 6-19-01; Ord. No. 2006-427, §§ 7—10, 9-26-06; Ord. No. 2007-119, § 3, 6-19-07; Ord. No. 2014-153, § 3, 12-2-14; Ord. No. 2020-088, § 1, 7-28-20; Ord. No. 2021-172, § 3, 12-7-21)

Sec. 54-506. Exceptions to setback requirements.

- a. Exception for cornice or roof overhangs. In measuring the width and depth of the setbacks prescribed herein, a cornice or roof overhang, projecting not more than twelve inches, or a fence or wall, shall not be held to reduce such required dimensions.
- b. Exception to front setback requirements. Notwithstanding the setback requirements of this Chapter, the front building line of any proposed building may be as close to the

street as the front building line of the next adjacent building on the same side of the same street, either to the right or to the left, whichever is closer to the street, provided, no fence, wall, shrubbery, sign, marquee, or other obstruction to vision between the heights of three (3) feet and fifteen (15) feet shall be permitted within fifteen (15) feet of the intersection of the right-of-way lines of two streets or railroads or of a street intersection with a railroad right-of-way line. Necessary traffic and directional signs shall not be included in this requirement.

- c. Exception to side setback requirements in residential zones. Notwithstanding the setback requirements of this Chapter for residential zoning districts, a rear residential building addition may meet the same north or east side yard setback as the existing building onto which the addition is attached, provided that the length of the addition does not exceed a distance greater than fifty percent (50%) of the length of the existing building, and that the addition meets other applicable zoning requirements.
- d. Exception for porches and exterior stairs in front and rear setbacks. In all residential districts where front setbacks are required except the SR-8 district, porches or exterior stairs may be erected into the required front setback provided they are not closer than ten (10) feet to a front street line, and may be erected into the required rear setback provided they are not closer to an adjoining property line than the larger side setback requirement for that district or ten (10) feet, whichever is greater. In the SR-8 district, porches and exterior stairs may encroach into the required front setback up to ten (10) feet and may be erected into the required rear setback provided they are not closer to an adjoining property line than twelve (12) feet.
- e. Exception to side setback requirements for corner lots. Notwithstanding the setback requirements of this Chapter, a proposed building or buildings on any corner lot may occupy with respect to a side street line the same relative position on such line as a building removed therefrom within the preceding twelve months; provided, no fence, wall, shrubbery, sign, marquee, or other obstruction exists within the vision clearance zone (see Section 54-351).
- f. Exception to side and rear setback requirements for accessory buildings exceeding a footprint of 100 square feet. Notwithstanding the setback requirements of this Chapter, accessory buildings meeting all the conditions listed below, shall be allowed to encroach to within three (3) feet of interior side and rear property lines, except when those property lines abut marshes, rivers or lakes, in which case setback requirements for principal buildings relative to those abutting or encroaching property lines shall apply to all buildings.
 - 1. Only one accessory building using this exception shall be permitted on a lot; and
 - 2. Accessory building(s) and principal building shall meet lot occupancy requirements in Table 3.1 of Section 54-301; and
 - 3. Accessory building shall meet accessory building setback requirements in Table 3.1 of Section 54-301; and

4. Accessory building height shall not exceed one and one-half (1½) stories and a maximum eave height of eleven (11) feet unless the principal building is two (2) or more stories, in which case the accessory building shall not exceed two (2) stories and a total height of 24 feet measured from the ground to the peak of a gable, hipped, or shed roof. For the purposes hereof, a crawl space in the principal building exceeding six (6) feet in height shall count as a story; and
 5. The footprint of the accessory building (see definition for "building" in Sec. 54-120) shall not exceed 600 square feet in total area; and
 6. Accessory building shall not include a dwelling unit except where additional dwelling units are permitted on the lot by this Chapter; and
 7. Accessory building shall be on same lot as principal building and located to the rear of the principal building.
- g. Exception to side and rear setback requirements for accessory buildings not exceeding a footprint of 100 square feet. Notwithstanding the setback requirements of this Chapter, accessory buildings meeting all the conditions listed below, shall be allowed to encroach to within one and one-half (1½) feet of interior side and rear property lines, except when those property lines abut marshes, rivers or lakes, in which case setback requirements for principal buildings relative to those abutting or encroaching property lines shall apply to all buildings.
1. Only one accessory building shall be permitted on a lot; and
 2. Accessory building and principal building shall meet lot occupancy requirements in Table 3.1 of Section 54-301; and
 3. Accessory building shall meet accessory building setback requirements in Table 3.1 of Section 54-301; and
 4. Accessory building shall be limited to one (1) story and a maximum eave height of nine (9) feet; and
 5. The footprint of the accessory building shall not exceed 100 square feet in total area; and
 6. Accessory building shall not include a dwelling unit; and
 7. Accessory building shall be on same lot as principal building and located to the rear of the principal building; and
 8. This exception shall not apply to utility platforms.
- h. Exception to side and rear setback requirements for utility platforms. Notwithstanding setback requirements of this Chapter, utility platforms to elevate only HVAC, generator, pool, or similar utility equipment, shall be allowed to encroach to within three (3)

feet of interior side and rear property lines, except when those property lines abut marshes, rivers or lakes, in which case setback requirements for principal buildings relative to those abutting or encroaching property lines shall apply to all buildings. (Ord. No. 2001-44, § 12, 5-8-01; Ord. No. 2005-31, § 1, 2-8-05; Ord. No. 2007-99, § 5, 5-1-07; Ord. No. 2007-172, §§ 5, 6, 9-11-07; Ord. No. 2022-192, § 2, 12-20-22; Ord. No. 2025-087, § 1, 6-17-25)

Secs. 54-507—54-509. Reserved.

PART 3 EXCEPTION TO VISION CLEARANCE REQUIREMENTS**Sec. 54-510. Exceptions to vision clearance requirements.**

In recognition of the historical character and intensity of land uses occurring within the city limits on the peninsula, south of a line running along Mount Pleasant Street extended from the Ashley River to Town Creek, the Department of Traffic and Transportation is authorized to grant a total or partial exemption to the vision clearance requirement of Section 54-351, upon a finding by the department that the proposed building encroachment will not create a traffic hazard. Applicants requesting an exemption shall submit to the Department of Traffic and Transportation surveys of the existing conditions at the street intersection(s), including sight distance requirements for the intersection(s) and further traffic studies as deemed necessary by the Department of Traffic and Transportation, and construction drawings showing the proposed encroachment(s).

(Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2006-10, § 1, 1-10-06)

PART 4 EXCEPTIONS TO PARKING AND LOADING REQUIREMENTS

Sec. 54-511. Exceptions to off-street parking requirements.

- a. The number of off-street parking spaces required by this chapter shall not be reduced except with the approval of the Board of Zoning Appeals upon a determination by the Board of Zoning Appeals that the enforcement of the required number of spaces would prevent reasonable use of a lot. In making the determination, the Board of Zoning Appeals shall consider each of the following:
 1. Whether the proposed use is an allowed use in the applicable zoning district;
 2. Whether the existing building(s) as configured on the lot, or the existing building(s) as configured on adjoining lots, make it feasible to provide off-street parking;
 3. Whether street frontage of an existing lot is so limited that a driveway for access to a parking area would unreasonably or impracticably reduce the area available for occupancy by structures;
 4. Whether grant of the special exception will adversely affect neighboring properties;
 5. Whether the applicant has pursued good faith efforts to provide off-street parking.
- b. The type of paving required for parking areas shall not be changed or eliminated except with the approval of the Board of Zoning Appeals, upon a determination by the Board of Zoning Appeals that the requirement for the paving type is unreasonable given the temporary nature of the parking area, the volume of traffic using the parking area, or the lack of adequate stormwater drainage in the area. In making a determination of what type of paving would be suitable, the Board of Zoning Appeals shall consider the type of vehicles which will typically use the parking lot, the anticipated amount of daily or weekly traffic, the drainage conditions of the site and surrounding area, and the character of the property, historic or otherwise, and the surrounding neighborhood.
- c.
 1. Intent. A new parking overlay zone, to be known as the Special Parking District, SPD Overlay Zone is hereby established to facilitate the occupancy of buildings existing as of November 30, 2020, within the district.
 2. Exempt properties. Except as set forth in section. 54-511.c.3, buildings on properties located in the Special Parking District Overlay Zone, as shown on the City's zone map, shall be exempt from the minimum off-street parking requirements set forth in section 54-208.1, section 54-220, section 54-317.a and Table 3-3 (Off-Street Parking Requirements).
 3. Exceptions. Notwithstanding Sec. 54-511.c.(2), any building or structure, or any extension or expansion of an existing building or structure, constructed on or after December 1, 2020 shall not be exempt from the minimum off-street parking requirements.

(Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2021-092, § 1, 7-20-21)

Sec. 54-512. Exceptions to off-street loading requirements.

No designated off-street loading space shall be encroached upon by another use nor shall the number of loading spaces be reduced except upon a finding of the Board of Zoning Appeals that the character of an existing lot and the character of intensely developed surrounding properties renders the strict application of the regulations impossible without denying a reasonable use of a particular lot.

(Ord. No. 1999-54, § 4, 4-27-99)

PART 5
EXCEPTIONS TO BUFFER REQUIREMENTS

Sec. 54-513. Exceptions to buffer requirements.

The requirement in Section 54-347.1 for a critical line buffer within the DR-4, DR-12, DR-1, DR-1F, DR-2, DR-2F, RO, GO, CT, LB, GB, UC, MU-1, MU-2, GP, JC, BP, LI, and HI zoning districts, and those areas within the CY district developed for comparable uses as shown on an approved development plan, shall not be reduced except with the approval of the Board of Zoning Appeals upon a finding by the Board that an alternative design, certified by an engineer registered by the State of South Carolina, will have no greater impact on water quality than the impact that would have occurred had there been compliance with the critical line buffer requirements and all of the following conditions are met:

- a. There is a stormwater management plan which addresses, to the satisfaction of the Board based upon a review of the plan by the Technical Review Committee, the design, construction, future maintenance and future monitoring of storm water runoff resulting from the development of the Lot, which has been certified by an engineer licensed by the State of South Carolina.
- b. The project's engineer certifies that the adverse impact on water quality in the adjacent water body of the project is equal to, or less than, what the impact would have been with compliance with the critical line buffer requirements.
- c. The Board shall consider the project's stormwater management plan, the project engineer's certification and such other information as the Board shall elect, in its sole discretion. The Board shall have the right, but not the obligation, to have such information reviewed by an independent engineer and the project applicant shall bear the reasonable cost of such review.

(Ord. No. 2001-14, § 3, 2-27-01; Ord. No. 2002-84, § 7, 8-13-02; Ord. No. 2003-69, § 13, 8-19-03; Ord. No. 2016-102, § 11, 9-13-16)

ARTICLE 6
LAND DEVELOPMENT PLAN REVIEW*

- Sec. 54-601. Land Development Plan Approval.
- Sec. 54-602. Establishment of the Technical Review Committee (TRC).
- Sec. 54-603. Intent.
- Sec. 54-604. Developments that require TRC approval.
- Sec. 54-605. Site alteration prior to land development plan approval prohibited.
- Sec. 54-606. TRC review procedures.
- Sec. 54-607. Appeals.
- Sec. 54-608. Time limitations on TRC approval.

***Editor's note**—Ord. No. 1999-54, § 9, adopted Apr. 27, 1999, amended this article in its entirety, in effect repealing former Art. 6, §§ 54-601—54-605, relative to site plan review, and enacting new provisions in lieu thereof as herein set out.

Sec. 54-601. Land Development Plan Approval.

All land development plans must be approved by the zoning administrator, or the Technical Review Committee, as described in Section 54-604, prior to the issuance of a building permit. (Ord. No. 1999-54, § 9, 4-27-99)

Sec. 54-602. Establishment of the Technical Review Committee (TRC).

A committee, hereafter referred to as the Technical Review Committee or TRC, is hereby established for the purpose of reviewing and approving land development plans as required by this Article. The committee shall consist of representatives from the Departments of Planning and Preservation; Executive; Fire; Information Technology; Parks; Public Service; Stormwater Management; and Traffic and Transportation, as appointed by the Mayor.

The Technical Review Committee is charged with the responsibility of reviewing the land development plan of all developments covered by this Article to assure compliance with all applicable City codes and regulations. The Technical Review Committee shall meet at such times and adhere to such rules and regulations as may be set by City Council.

(Ord. No. 1999-54, § 9, 4-27-99; Ord. No. 2016-006, § 1, 1-12-16; Ord. No. 2018-149, § 10, 11-27-2018; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-603. Intent.

The intent of land development plan review is to encourage the arrangement of buildings, structures, open space, off-street parking, lighting, landscaping, ingress and egress, and drainage on a site in a manner that will promote the public health, safety, convenience and welfare by establishing a uniform system of review of proposed construction in the City of Charleston. The zoning administrator or Technical Review Committee is empowered to consult with other public agencies that may have jurisdiction over a proposed development, provided that notice of the intent to do so is given the applicant. Land developments to which this Article applies shall comply with all provisions of this Article and the official manual referenced in Section 54-606, as well as those of other applicable City codes and regulations, prior to any construction being undertaken.

(Ord. No. 1999-54, § 9, 4-27-99)

Sec. 54-604. Developments that require TRC approval.

a. TRC approval is required when:

1. any new building(s) construction or site improvement(s) is undertaken on land within the City of Charleston, save repairs or renovations not exceeding the requirements of 54-604.b, which follows; or
2. any construction or renovation results in a building addition to an existing building where the footprint of the new building is two thousand (2,000) or more square feet in area; or

3. any construction or development results in changes to traffic circulation, internal or external, to the development site, specific to changes to or additions of curb cuts, site access, drive-thru lanes; or
 4. any construction, development, or redevelopment that requires a Type II or Type III Construction Activity Application as prescribed in the City's Stormwater Design Standards Manual; or
 5. TRC approval is required by the zoning classification of a given site, specific to a PUD, Neighborhood District, Gathering Place District and Upper Peninsula District; or
 6. TRC approval is required by restrictive covenants applicable to a given site; or
 7. any construction of a new building or building addition on the peninsula or in an area identified as a Special Protection Area by the Department of Stormwater Management results in a total of three or more dwelling units on a single lot;
 8. single-family or two-family dwelling unit construction results in a total of four or more units on a single lot.
 9. any linear construction project, specific to sidewalks, multi-use paths, utility lines, surface or subsurface drainage systems, exceeds a continuous length of 100 feet or requires the platting of a new easement; excluding construction projects in existing easements except that such projects may require a Construction Activity Application approval
- b. The following development(s) are exempt from requiring TRC approval but shall still require the approval of the Zoning Administrator:
1. dwelling unit construction not exceeding the requirements of section 54-604, a.7. or 8;
 2. small storage structures or garages that do not exceed five hundred (500) square feet in area; and
 3. routine repairs and maintenance that do not exceed the provisions of 54-604.a.2. above.

(Ord. No. 1999-54, § 9, 4-27-99; Ord. No. 2003-70, § 1, 8-19-03; Ord. No. 2005-337, § 1, 8-16-05; Ord. No. 2016-006, § 2, 1-12-16; Ord. No. 2021-097, § 1, 7-20-21)

Sec. 54-605. Site alteration prior to land development plan approval prohibited.

No site clearing, filling, grading, material deliveries or construction shall be initiated on any site until approval, as required by this Article, is obtained or permission is granted by the zoning administrator or TRC, for those plans requiring TRC approval, and the necessary permits are issued.

Nothing herein shall be construed, however, to prohibit such site clearing or altering as may be necessary for purposes of conducting pre-development studies, such as geotechnical tests, soil borings, percolation tests, tests related to the determination of a critical line or wetland or similar tests.

(Ord. No. 1999-54, § 9, 4-27-99)

Sec. 54-606. TRC review procedures.

Procedures for the review of land development plans by TRC and the information required shall be set forth in a Manual on file with the Zoning Administrator. Copies shall be made available to the public. Procedures and information requirements used by the TRC shall be the minimum procedures and requirements necessary to allow thorough review of land development plans for compliance with all applicable city codes.

(Ord. No. 1999-54, § 9, 4-27-99; Ord. No. 2000-70, § 1, 5-23-00; Ord. No. 2003-70, §§ 2, 3, 8-19-03; Ord. No. 2003-102, § 1, 11-12-03; Ord. No. 2016-006, § 3, 1-12-16)

Sec. 54-607. Appeals.

Staff or TRC actions to approve or disapprove a land development plan may be appealed to the planning commission by any party in interest. The planning commission shall act on the appeal within sixty days of the action being appealed and the action of the planning commission is final. An appeal from the decision of the planning commission may be taken to circuit court within thirty days after actual notice of the decision.

(Ord. No. 1999-54, § 9, 4-27-99)

Sec. 54-608. Time limitations on TRC approval.

TRC approval shall remain valid for two (2) years from the date of approval, unless extended in accordance with Section 54-962 hereof.

(Ord. No. 2005-99, § 3, 6-21-05)

ARTICLE 7
OFFICIAL ROAD PLAN

- Sec. 54-701. Intent.
- Sec. 54-702. Establishment of official road plan maps.
- Sec. 54-703. Applicability of regulations.
- Sec. 54-704. Appeal.
- Sec. 54-705. Exemption.

Sec. 54-701. Intent.

The purpose of this article is to provide for the identification and reservation of land for the future location, expansion or improvement of streets, roads, highways or other public ways in order to promote and preserve the public safety, economy, order, appearance, convenience, prosperity and general welfare and is adopted pursuant to the authority of South Carolina Code Section 6-7-1210, et seq (1976), as amended.

Sec. 54-702. Establishment of official road plan maps.

There is hereby established an official map to be known as the "Official Road Plan Map," which map, as may be hereafter supplemented, shall designate existing or proposed public streets or ways within the City that are targeted for creation, expansion or other improvements. The Official Road Plan Map shall initially consist of a series of eight (8) separate maps which are hereby adopted as the Official Road Plan Map and which shall be deemed a part of the Zoning Ordinance and filed in the office of Planning and Preservation, with a duplicate copy being filed in the Department of Traffic and Transportation.

The Official Road Plan Map may be modified or supplemented pursuant to the procedure for modifying or supplementing the Zoning Ordinance; provided however, that the Planning Commission shall report to City Council on proposed changes or modifications within thirty (30) days of its receipt of such proposed change or modification, and failing to do so, it shall be deemed to have recommended approval of such proposed change or modification.

The adoption of the Official Road Plan Map shall not be deemed to constitute the opening, establishment, improvement or expansion of any street or other public way or the taking or accepting of any land for such purpose.

(Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-703. Applicability of regulations.

After the effective date hereof, no permit shall be issued for the construction, improvement, repair or moving of any building or structure and no change in land use shall be made on any land located within the lines of those streets or public ways designated on the Official Road Plan Map.

After the effective date hereof, all subdivision plats and site plans which include properties that are shown on the Official Road Plan Map as proposed or improved streets or other public ways shall designate such on the subdivision plat or site plan.

To the extent that an owner of property refrains from utilizing such part of his land that is located within the lines of the proposed streets or public ways designated on the Official Road Plan Map in order to accommodate the creation, expansion or other improvement to the street or public way that is not required as a result of the owner's proposed development or use of this property, then such owner shall nonetheless be entitled to utilize such land for purposes of signage, overflow parking and the applicable portion of landscaping requirements; provided however, that applicable setback provisions shall be measured from the

boundary of the proposed created, expanded or improved street or public way. Nothing herein shall be construed, however, to relieve an owner of property from bearing all costs incident to a right-of-way dedication, including engineering and construction costs, when such dedications are required to serve the additional traffic as may be generated by the owner's development. Under no circumstances shall an owner of property be required to pay the expense of any creation or improvement to any street or public way which is not directly related to the owner's proposed use of his property.

Sec. 54-704. Appeal.

In cases where any permit has been refused under the provisions of Section 54-703, the following appeal procedure may be utilized by any affected property owner:

- a. An appeal, delineating such grounds as the applicant may deem worthy, shall be presented to the Planning Commission.
- b. The Planning Commission shall evaluate the appeal and make a report, within thirty (30) days, to City Council and to any other appropriate public agency. If no report is made within thirty (30) days, the Planning Commission shall be deemed to have recommended that the appeal be granted.
- c. The Planning Commission's report shall recommend:
 1. That City Council take official action to exempt the affected land from the restrictions of the Official Road Plan Map; or
 2. That City Council take official action to authorize the issuance of desired permits, subject to specified conditions accepted by the owner; or
 3. That City Council initiate the appropriate action to acquire the property.
- d. Upon receipt of the report of the Planning Commission, the City Council shall, within one hundred (100) days:
 1. Take official action to exempt the affected land from the restrictions of the Official Road Plan Map; provided, that such exemption shall have no affected on any applicable zoning restrictions pertaining to permitted uses; or
 2. Take official action to authorize the issuance of the denied permit subject to specified conditions which are accepted by the owner; provided, that such conditions shall not be contrary to any applicable zoning restrictions pertaining to permitted uses; or
 3. Either enter into an agreement to acquire or institute condemnation proceedings to acquire the property affected.

Action to acquire such property may be instituted by City Council or such other public agency, as may be appropriate.

Failure of City Council to act within one hundred (100) days of the receipt of the report of the Planning Commission shall be deemed to constitute approval of the proposed appeal. Thereupon, a denied permit shall be issued upon demand.

(Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-705. Exemption.

After the effective date hereof, any property owner owning property located within the lines of any street or other public way as may be designated on the Official Road Plan Map may apply to the Planning Commission for exemption of such property from the restrictions of the Official Road Plan Map. When such application has been made, the following procedure shall be utilized:

- a. The Planning Commission shall evaluate the application and make a report within thirty (30) days to City Council, and to any such other public agency as may be appropriate. If no report is made within thirty (30) days of receipt of the application, the Planning Commission shall be deemed to have recommended that the application for exemption be granted.
- b. The Planning Commission's report shall recommend:
 1. That City Council take official action to exempt the affected property from the restrictions of the Master Road Plan Map; or
 2. That City Council initiate action to acquire the property.
- c. Upon receipt of the report of the Planning Commission, the governing authority shall, within seventy-five (75) days:
 1. Take official action to exempt the affected property from the restrictions of the Official Road Plan Map; provided, that such exemption shall have no effect on any applicable zoning restrictions pertaining to permitted uses; or
 2. Either enter into an agreement to acquire or institute condemnation proceedings to acquire the property affected. Any action to acquire such property may be instituted by City Council or such other public agency as may be appropriate.

Failure of City Council to act within seventy-five (75) days of the receipt of the report of the Planning Commission shall be deemed to constitute the granting of the application.

(Ord. No. 1999-54, § 4, 4-27-99)

ARTICLE 8
SUBDIVISION, PROPERTY LINE ADJUSTMENT OR ABANDONMENT

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PART 1
PURPOSE AND DEFINITIONS*

Sec. 54-801. Purpose.

- a. Purpose. These regulations are intended to provide for the harmonious development of the City of Charleston and its environs, for the coordination of streets within subdivisions with other existing or planned streets or with the plan of the City or of the region in which the City is located, for adequate open spaces for traffic, recreation, light and air, and for a distribution of population and traffic which will tend to create conditions favorable to health, safety, convenience and prosperity.
- b. Provision of options. The subdivision regulations provide options for development that reflect the diversity of the development throughout the City of Charleston. In recognizing that there are many development patterns across the city, it is further recognized that regulations are needed to support and enable these varied development patterns to occur.

(Ord. No. 2007-35, § 1, 2-13-07)

Sec. 54-802. Reserved.

Sec. 54-803. Subdivision, property line abandonment and property line adjustment defined.

- a. Subdivision means all divisions of a tract or parcel of land into two or more lots for the purpose, whether immediate or future, of sale, lease or building development, and includes all division of land involving a new street or change in existing streets, and includes re-subdivision which would involve the further division of any lot or lots within a subdivision previously made and approved or recorded according to law: or, the alteration of any streets or the establishment of any new streets within any subdivision previously made and approved or recorded according to law.
- b. Property line abandonment means plats involving only the combination or recombination of entire lots of record where no new street or change in existing streets is involved. A property line abandonment plat is not a subdivision.
- c. Property line adjustment means plats involving only the adjustment of property lines of lots of record where no new street or change in existing streets is involved. A property line adjustment plat is not a subdivision.
- d. PUD site plan means a plan for subdivision of a property with a "PUD" zoning that includes all information described on the concept plan submittal checklist for subdivision applications available from the Zoning Division.

***Editor's note**—Ord. No. 2007-35, § 1, adopted Feb. 13, 2007, repealed former Part 1, §§ 54-801—54-805, in its entirety and enacted new provisions as herein set out. Former Part 1 pertained to subdivision approval procedures and derived from Ord. No. 1999-54, §§ 4, 6—8, 4-27-99; Ord. No. 2003-70, § 4, 8-19-03; Ord. No. 2005-99, § 4, 6-21-05.

- e. Concept plan means a plan for subdivision of a property not zoned "PUD" that includes all information described on the concept plan submittal checklist for subdivision applications available from the Zoning Division.
- f. Development plan means a preliminary plat and construction drawings, if improvements are required, for subdivision of any property that includes all information described on the development plan submittal checklist for subdivision applications available from the Zoning Division.
- g. Final plat means a final plat for subdivision of any property that includes all information described on the final plat submittal checklist for subdivision applications available from the Zoning Division.

(Ord. No. 2007-35, § 1, 2-13-07)

Sec. 54-804. Effective date of the regulations.

- a. Effective date of the regulations. The effective date of Part 1 and Part 2 of Article 8, Subdivision, Property Line Adjustment or Abandonment Regulations as amended shall be on April 1, 2007. Any concept plan or PUD site plan submitted after the effective date, shall comply with this article.
- b. Submittals or approvals prior to the effective date. Any preliminary subdivision plat, final subdivision plat, property line adjustment or abandonment plat submitted as a complete application prior to the effective date shall be reviewed and approved in accordance with regulations in effect when the application was made. All subsequent applications shall comply with this article. Any plat approved in preliminary or final form, but not yet expired, prior to the effective date shall continue in compliance with this article.
- c. Annexation. Any plat approved in preliminary or final form, but not yet expired, prior to the effective date of the annexation of a property shall continue in compliance with this article.

(Ord. No. 2007-35, § 1, 2-13-07)

Sec. 54-805. Variances.

The Board of Zoning Appeals may authorize upon appeal in specific cases variances from the terms of this article pursuant to Article 9, Part 2 of this chapter. Variances must be approved prior to receiving subdivision approval.

(Ord. No. 2007-35, § 1, 2-13-07)

PART 2 PROCEDURES FOR PLAT APPROVAL*

Sec. 54-806. Property line abandonment procedures.

Property line abandonment plats shall be submitted to the Engineering Division for the approval of the Plat Review Committee prior to being recorded through the City Engineer's Office, except that plats where the resultant lots are equal to the standards of this chapter and no new street or change in existing streets is involved may be recorded without the Zoning Division's approval if the City of Charleston Department of Planning and Preservation is provided with a copy of such plats for its records. Plats shall not exceed twenty-two (22) inches by thirty-four (34) inches.

(Ord. No. 2007-35, § 1, 2-13-07; Ord. No. 2013-143, § 1, 12-3-13; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-807. Property line adjustment procedures.

Property line adjustment plats shall be submitted to the Engineering Division for the approval of the Plat Review Committee prior to being recorded through the City Engineer's Office, except that plats where the resultant lots are equal to the standards of this chapter, and no new street or change in existing streets is involved may be recorded without the Zoning Division's approval if the City of Charleston Department of Planning and Preservation is provided with a copy of such plats for its records. Plats shall not exceed twenty-two (22) inches by thirty-four (34) inches.

(Ord. No. 2007-35, § 1, 2-13-07; Ord. No. 2013-143, § 1, 12-3-13; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-808. Subdivision procedures.

1. Generally. The City shall approve, pursuant to the procedures described herein, any subdivision of land as defined in section 54-803, except that the subdivision of land into parcels of five (5) acres or more where no new street is involved and where the resulting lots meet the requirements of this chapter shall not require the approval of the City but shall be reviewed by the Administrator for compliance with this chapter prior to being recorded. All subdivisions shall meet the requirements of this chapter before such subdivision or rights-of-way shall be platted, recorded, or have lots offered for sale. No plat of a subdivision, with the exception listed above, shall be filed or recorded in the Office of the Register Mesne Conveyance or Register of Deeds of the appropriate county until such plat shall have been approved by the Administrator and City Engineer, pursuant to the procedures described herein, and the approval entered in writing on the plat by the City Engineer.

***Editor's note**—Ord. No. 2007-35, § 1, adopted Feb. 13, 2007, repealed former Part 2, §§ 54-810, 54-811, in its entirety and enacted new provisions as herein set out. Former Part 2 pertained to subdivision application requirements and derived from the 1997 publication of the Zoning Ordinance..

2. Classification of subdivisions. All subdivisions shall be classified as either a major subdivision, or a minor subdivision. A concept plan shall not be required when the proposed plan of subdivision for the property is deemed to be a minor subdivision.
 - a. Major subdivision. Means all divisions of a tract or parcel of land into five (5) or more lots, or includes all division of land involving any of the following:
 - (1) A new or extended public or private right-of-way, but not including future street alignments illustrated in a plan of resubdivision as required by section 54-814.
 - (2) Improvement(s) within an existing street right-of-way, other than repair of streets, or repair or construction of sidewalk(s) or other pedestrian connections required by these regulations, fire hydrants or other types of minor improvements necessary to serve the lots being created.
 - (3) A future public school site, park site, greenway corridor or open space site.
 - (4) The dedication of a right-of-way or easement for construction of a public water or sewer transmission line.
 - (5) Dedications, reservations, improvements, or environmental conditions that, in the opinion of the administrator with advice from reviewing agencies, require construction documents to be reviewed prior to final plat approval in order to insure the public health, safety, and welfare.
 - b. Minor subdivision. A division of land where the conditions for major subdivision review, as set out in section 54-808.2.a are not present.
3. Major subdivision review procedures. Before any major subdivision is recorded, the owner of the property proposed to be subdivided, or an authorized agent, shall, upon payment of applicable fees as determined by the City Council, apply for and secure approval of the proposed subdivision in accordance with the following procedures:
 - a. Discussion at a required pre-application conference of the subdivision requirements and procedures for the proposed project, and possible issues related to the development of the property.
 - b. Submittal of the concept plan prepared in accordance with section 54-809 or the PUD site plan prepared in accordance with section 54-255.c for Planning Commission Review and approval and the securing of required approvals from other public agencies and any affected utility districts and companies.
 - c. Submittal of a development plan as described in section 54-810 to the Zoning Division for review and approval by the Technical Review Committee.
 - d. Submittal of the final subdivision plat, prepared in accordance with Section 54-811, to the Zoning Division for review and approval by the Plat Review Committee and City Engineer in preparation for recording with the Register of Mesne Conveyance or Register of Deeds.

4. Minor subdivision review procedures. Before any minor subdivision is recorded, the owner of the property proposed to be subdivided, or an authorized agent, shall, upon payment of applicable fees as determined by the City Council, apply for and secure approval of the proposed subdivision in accordance with the following procedures:
 - a. Submittal of a preliminary plat that contains the information required in section 54-810, 1, a, (2), to the Zoning Division for review by the Plat Review Committee.
 - b. Submittal of the final subdivision plat, prepared in accordance with section 54-811, to the zoning division for review and approval by the Plat Review Committee and City Engineer in preparation for recording with the Register of Mesne Conveyance or register of deeds.
5. Coordination of rezoning application with subdivision application. It is the intent of these regulations that the review of a subdivision concept plan may be carried out simultaneously with the review of a rezoning application made under the Zoning Ordinance. In addition to the application required for the requested rezoning, an application for concept plan approval may be submitted for a coordinated review.
 - a. General requirement. Whenever a rezoning is requested and development would require the subdivision of a tract, vacant or improved, into two (2) or more lots or the consolidation of lots, the concept plan application may be considered simultaneously with the rezoning application.
 - b. Procedure to be followed:
 1. Concept plan approval required. The application for concept plan approval shall be made pursuant to the requirements of section 54-809 and shall accompany the rezoning application on the forms required for a rezoning available from the Zoning Division. The Administrator shall then coordinate and send the concept plan and rezoning application submittals to the Planning Commission for concurrent review. Any approval of the concept plan by the Planning Commission shall be conditioned upon ratification of the rezoning application by the City Council.
 2. Resubmission of concept plan if major revisions required. After completing its review of the rezoning application and the concept plan, and approving, approving with conditions, or disapproving the concept plan, the Planning Commission shall forward its recommendations on the rezoning application to the City Council for their final decision. If the City Council approved zoning requires major revisions to the concept plan as described in section 54-809.5.b, the applicant shall resubmit the concept plan for Planning Commission approval. A rezoning and approved concept plan for a subdivision entitle the developer to make application for development plan approval, and subsequently, for approval of a final subdivision plat approval.

6. Reserve parcels. Small parcels not conforming in size or shape with all regulations shall not be platted, except in the case of utility and drainage lots. All land within a tract proposed for subdivision shall be incorporated in lots, lands held in common, or rights-of-way.

(Ord. No. 2007-35, § 1, 2-13-07; Ord. No. 2013-143, §§ 2, 3, 12-3-13; Ord. No. 2017-150, § 1, 12-11-17)

Sec. 54-809. Concept plan or PUD site plan.

1. Pre-application conference. Before preparing the concept plan or PUD site plan for a major subdivision, it is required that the applicant schedule a pre-application conference through the Zoning Division within the Department of Planning and Preservation.
2. Application procedure and requirements. A request to subdivide land shall be made by the owner of the land, or an authorized representative, by filing an application for approval of a concept plan or PUD site plan with the Planning Commission.
 - a. Application requirements. The application shall:
 - (1) Be made on forms available from the Zoning Division and shall be accompanied by a fee as determined by City Council.
 - (2) Be accompanied by the concept plan or PUD site plan and include all information described on the Concept Plan Submittal Checklist For Subdivision Applications available from the Zoning Division.
 - (3) For subdivisions where the total area to ultimately be developed permits fifty (50) or more single-family or two-family dwelling units, a full traffic impact study shall be required unless the Department of Traffic and Transportation deems that a traffic impact study is not required, on the basis of the Department's prior studies, analysis, and evaluation of transportation facilities; except that this requirement for a traffic impact study shall not apply to subdivisions of land zoned "PUD" where a traffic impact study was completed with the approved master plan. Similarly, and depending on the type and size of the subdivision, the Department of Traffic and Transportation may require a basic level of traffic impact study as opposed to a full traffic impact study.
 - (4) For each subdivision where the total area to ultimately be developed is ten (10) or more acres, a preliminary drainage study and plan shall be required; except that this requirement for a drainage study shall not apply to subdivisions of land zoned "PUD" where a drainage study was completed with the approved master plan. A full basin study may be required as part of the preliminary drainage study and plan in basins with known drainage problems, as determined by the Engineering Division. The drainage study and plan shall be of sufficient detail to assess the preliminary sizing and location of all major drainage facilities proposed and the associated ease-

ments. The plan shall locate all existing easements and intended outfalls. The study and plan shall support compliance with all current drainage policies of the City.

- b. Complete applications forwarded. No application shall be accepted or forwarded to the Technical Review Committee until all requirements of section 54-809.2.a are satisfied.
3. Approval procedures.
 - a. Staff review and determination of subdivision category. The administrator shall initiate a review of the concept plan and any exhibits submitted in conformance with these regulations and shall determine whether the concept plan constitutes a major or minor subdivision as described under section 54-808.2.
 - b. Technical Review Committee. A review shall be performed by the Technical Review Committee. Representatives of the state, or boards or commissions may be included in the review as appropriate. The review shall be conducted in accordance with the published review schedule. The findings of the review process shall be presented to the Planning Commission.
 - c. Published review schedule. The published review schedule shall designate a meeting schedule for the Technical Review Committee and Planning Commission, and submittal deadlines for applicants.
4. Process for Planning Commission Hearing.
 - a. Notice of hearing. Public notice of the time and date of the hearing shall be given at least ten (10) days prior to the hearing by publication of an agenda which lists each request in a newspaper of general circulation in Charleston. In addition, the property to which such application applies shall be posted with a sign along each public thoroughfare that abuts the property at least six (6) days prior to any public hearing when the application will be considered.
 - b. Planning Commission Review and decision. The Planning Commission shall hold a public hearing and review the concept plan or PUD site plan, supplemental data, and the results of the administrative reviews, and advise the applicant of any required changes or additions.
 - c. Time limitations for the Planning Commission to act. The Planning Commission shall have not more than sixty (60) days from the date of the receipt of the concept plan or PUD site plan with all documentation required by this chapter to act. The sixty-day time limit may be extended by mutual agreement. Failure of the Planning Commission to act upon an application within the prescribed time shall be deemed approval of the concept plan or PUD site plan. In such event, a notice to proceed shall be issued by the Administrator, upon demand, and the applicant may proceed to apply for development plan approval in the manner prescribed by section 54-810. If no development plan is required, the applicant may proceed to

final subdivision plat approval in the manner prescribed in section 54-811. The applicant is cautioned that such default approvals shall not exempt a subdivision from compliance with the Zoning Ordinance provisions.

- d. Planning Commission action. After the Planning Commission approves, conditionally approves, or disapproves the concept plan or PUD site plan, a letter containing the resolution of the Planning Commission shall be sent to the developer or owner with the date of approval, conditional approval, or disapproval. If a concept plan is disapproved, the planning Commission shall state specific reasons for disapproval that shall be entered into the minutes of the meeting.
 - e. Sixty (60) days to submit revised plans. Any application that receives conditional approval from the Planning Commission shall be followed, within sixty (60) days from the date of the Planning Commission's decision, by submission of revised plans, or the commission's approval shall expire. This deadline may be extended by the Planning Commission.
 - f. Effective period of concept plan or PUD site plan approval. The approval of a concept plan or PUD site plan results in a vested right from the date of Planning Commission approval that lasts for two (2) years plus on going construction that proceeds in a timely manner. A lapse of six (6) months or more in construction after two (2) years from the date of approval will end this vested right term. Upon application by the landowner of property with a vested right at the end of the two (2) year vested right term to the Planning Commission, the term shall be extended on an annual basis for up to five (5) annual extensions, provided there have been no amendments to this chapter which precludes or prohibits any aspect of the approved plan.
 - g. Reapproval for expired concept plans or PUD site plans. Should concept plan or PUD site plan approval expire for any reason, any submittal for Planning Commission reapproval shall be subject to current Zoning Ordinance and Subdivision Regulations in effect at the time reapproval is sought.
5. Revisions to approved concept plans or PUD site plans. The applicant shall submit proposed revisions to the approved concept plan or PUD site plan to the Administrator. The Administrator shall initiate a review of the proposed revisions to be performed by the Technical Review Committee. For all revisions determined to be major revisions, Planning Commission approval shall be required.
- a. Minor revisions. If the Administrator, with the advice of the Technical Review Committee, deems the revision(s) to be minor, the Administrator is authorized to approve the revisions to the concept plan. Minor revisions are insignificant shifts in street and open space locations, minor changes to lot size, minor changes to unit size and distribution of intensity not inconsistent with a final PUD or overlay approval and its associated concept plan, if applicable; minor shifts in lot lines;

and other changes which do not alter the general layout and intensity of the approved concept plan, violate the requirements of this chapter, or have a significant impact on proposed or existing infrastructure.

- b. Major revisions. All other revisions, including revisions that are determined by the administrator not to be minor revisions, shall be deemed to be major revisions. At the request of the applicant, any revised concept plan or PUD site plan shall be forwarded to the Planning Commission for decision, including reversal of the decision of the Administrator. The Administrator may, at his or her discretion or on the advice of the Technical Review Committee direct any revised concept plan or PUD site plan to the Planning Commission. For all revisions determined to be major revisions, Planning Commission approval shall be required. The Planning Commission shall approve, conditionally approve, or disapprove the proposed major revision to the concept plan. Procedures for considering a major revision to a concept plan shall be the same as required for an initial application for concept plan or PUD site plan approval.
- c. Failure of the Planning Commission to act. Failure of the Planning Commission to act in the prescribed time shall be deemed approval. The procedures contained in section 54-809.4.c shall be followed.

(Ord. No. 2007-35, § 1, 2-13-07; Ord. No. 2013-143, §§ 1, 2, 12-3-13; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-810. Development plan (preliminary plat and construction documents).

1. Application procedure and requirements. The applicant shall file with the Administrator a development plan application. The failure of the applicant to satisfy the requirements of this section with full and correct information shall be cause for disapproval of a development plan.
 - a. Application requirements. The application shall:
 - (1) Be made on forms available from the Zoning Division and shall be accompanied by a fee as determined by City Council.
 - (2) Be accompanied by the development plan (preliminary plat and separate construction documents) and include all information described on the Development Plan Submittal Checklist for Subdivision Applications available from the Zoning Division. Preliminary plat and construction documents may be submitted as separate applications. However, construction documents may only be submitted with a preliminary plat, or after a preliminary plat has been submitted. Development plan approval will not be granted until both the preliminary plat and construction documents have been approved.
 - b. Complete applications forwarded. No application shall be forwarded to the Technical Review Committee until all requirements of Section 54-810.1.a are satisfied.

2. Staff review. The Administrator shall initiate an administrative review of the development plan by the Technical Review Committee. Representatives of the state, or boards or commissions may be included in the review as appropriate. The review shall be conducted in accordance with the published review schedule. The purpose of the review shall be to verify that the required information has been submitted, all applicable regulations and standards have been met, and it complies with the approved concept plan or PUD site plan. It shall be the responsibility of the applicant to ensure the accuracy, completeness, and construction feasibility of the development plan.
3. Decision on development plan. Upon completion of a review (see section 54-810.2), the applicable approval procedure below shall be followed.
 - a. Minor revisions. If the Administrator, with the advice of the Technical Review Committee, deems that the development plan shows no revisions or minor revisions to the approved concept plan or PUD site plan as described in section 54-809.5.a, and meets all the regulatory requirements, the Administrator is authorized to approve the development plan on behalf of the Planning Commission. The Administrator may direct a development plan to the Planning Commission according to the procedures of section 54-810.3.b. At the request of the applicant, a development plan shall be forwarded to the Planning Commission for decision, including reversal of the decision of the Administrator.
 - b. Major revisions. All other revisions, shall be deemed to be major revisions as described in section 54-809.5.b. If the development plan contains major revisions to the approved concept plan or PUD site plan, a revised concept plan or PUD site plan along with the development plan shall be submitted to the Planning Commission for approval by the applicant in accordance with the published review schedule. The procedures contained in section 54-809.5.b for major revisions to the approved concept plan or PUD site plan shall be followed for any major revisions to the development plan.
 - c. Failure of the Administrator to act. Failure of the Administrator to act upon a development plan submitted under section 54-810.3 within sixty (60) days after receipt of the development plan with all required information shall be deemed approval of the plan, and in such event, a certificate of approval entitling the applicant to proceed shall be issued, upon demand, by the Administrator. Caution should be exercised in that such default approval shall not exempt the subdivision from compliance with the Zoning Ordinance provisions.
4. Appeal of staff decisions to Planning Commission. Staff decisions may be appealed to the Planning Commission by any party in interest if an appeal is filed with the Zoning Division within ten (10) business days after actual notice of the decision. The Planning Commission shall act on the appeal within sixty (60) days from receipt of the appeal and the action of the Planning Commission is final.
5. Effective period of development plan approval. The approval of a development plan results in a two-year vested right from the date of approval. Upon application by the

landowner of property with a vested right at the end of the two-year vested right term to the Administrator, the term shall be extended on an annual basis for up to five (5) annual extensions, provided there have been no amendments to this chapter which precludes or prohibits any aspect of the approved development plan.

6. New information. When new information related to the natural characteristics of the land is discovered during construction, the project engineer shall promptly advise the appropriate City agency of details of the found conditions, the impacts, and the modifications to the infrastructure which are to be made. Such found conditions may include, but are not limited to, the presence of archaeologically, culturally, or environmentally sensitive or geologic hazard areas. If the modifications to the development plan are determined to be major, as described in section 54-810.3.b and the development plan no longer complies with the concept plan or PUD site plan, Planning Commission approval shall be required for a revision to the concept plan or PUD site plan to comply with the revised development plan based on the new information.

(Ord. No. 2007-35, § 1, 2-13-07; Ord. No. 2013-143, § 2, 12-3-13)

Sec. 54-811. Final subdivision plat.

1. Application procedure and requirements. The applicant shall file with the City an application for approval of a final subdivision plat. The final subdivision plat application shall:
 - a. Contain such information as described in the final plat submittal checklist for subdivision applications available from the Engineering Division.
 - b. Be made on application forms available from the Engineering Division and shall be accompanied by a fee as determined by City Council.
 - c. Include the entire subdivision, or section thereof, for which final approval is sought.
 - d. Be a reproducible record plat the size, material, and inking of which shall be as specified by the Register of Mesne Conveyance or Register of Deeds. When more than one sheet is required, an index sheet of the same size shall be filed showing the entire subdivision with the sheets numbered in sequence. Any shading placed on the plat face to add clarity shall not cover any words or figures.
 - e. Except for minor adjustments for field conditions, compliance with the approved concept plan or PUD site plan and development plan in street locations, and the number of lots shall not vary more than five (5) percent.
 - f. Be accompanied, if the final plat contains open space, recreational facilities, or any portion of the site in common ownership, regardless of the method of ownership, by the following documentation for approval by the Administrator and recording with the final plat:
 - (1) Plans for improvement and maintenance of the open space or facilities located thereon.

- (2) Articles of incorporation and bylaws of the homeowners' association or other legal entity charged with improving or maintaining the open space or facilities, where open space or facilities are to be deeded to a homeowners' association or similar organization acting on behalf of the joint owners of said property, and declaration of covenants and restrictions pertaining to each and every property within the subdivision.
2. Requirements for improvements. All required improvements are to be installed and dedicated prior to the signing of the final subdivision plat by the City Engineer. The final subdivision plat may be approved by the City Engineer prior to completion of all required improvements if adequate bond or escrow funds for the completion of such improvements, approved by the Corporation Counsel, are filed with the City Engineer.
3. Staff review. The Administrator shall initiate a review of the final subdivision plat and any exhibits submitted in conformance with these regulations.
 - a. Staff review. The review shall be performed by the Plat Review Committee. Representatives of the state, or boards or commissions may be included in the review as appropriate. The review shall be conducted in accordance with the published review schedule.
 - b. Complete application. No application shall be considered for review or forwarded to the Plat Review Committee until all requirements of section 54-811.1 are satisfied.
4. Decision on final subdivision plat. Upon completion of staff review (see section 54-810.2), the applicable approval procedure below shall be followed.
 - a. Minor revisions. If the Administrator deems that the final subdivision plat shows no revisions or minor revisions to the approved concept plan or PUD site plan and development plan as described in sections 54-809.5.a and 54-810.3.a, and meets all the regulatory requirements, the Administrator is authorized to approve the final plat of subdivision on behalf of the Planning Commission. The Administrator may direct a final subdivision plat to the Planning Commission according to the procedures of section 54-811.4.b. At the request of the applicant, a final subdivision plat shall be forwarded to the Planning Commission for decision, including reversal of the decision of the Administrator.
 - b. Major revisions. All other revisions shall be deemed to be major revisions as described in sections 54-809.5.b and 54-810.3.b. If the final subdivision plat contains major revisions to the approved development plan, a revised final subdivision plat shall be submitted to the Planning Commission for approval by the applicant in accordance with the published review schedule. The procedures contained in sections 54-809.5.b for major revisions to approved concept plans or PUD site plans shall be followed for any major revisions at the time of final subdivision plat.

- c. Failure of the Administrator to act. Failure of the Administrator to act upon a final subdivision plat submitted to them under section 54-810.3 within sixty (60) days after receipt of the final subdivision plat with all required information shall be deemed approval of the plat, and in such event, a certificate of approval entitling the applicant to proceed shall be issued, upon demand, by the Administrator. Caution should be exercised in that such default approval shall not exempt the subdivision from compliance with the Zoning Ordinance provisions.
- 5. Appeal of staff decisions to Planning Commission. Staff decisions may be appealed to the Planning Commission by any party in interest if an appeal is filed with the Zoning Division within ten (10) business days after actual notice of the decision. The Planning Commission shall act on the appeal within sixty (60) days from receipt of the appeal and the action of the Planning Commission is final.
(Ord. No. 2007-35, § 1, 2-13-07; Ord. No. 2013-143, § 3, 12-3-13; Ord. No. 2017-150, § 2, 12-11-17)

Sec. 54-812. Recording of plat.

Recording of the plat. When all conditions of approval have been met including all required certifications, signatures, dedications and the posting of any required bonds, the City Engineer shall sign the plat on behalf of the Planning Commission and record the plat in the Register of Mesne Conveyance or Register of Deeds of the appropriate county. No signature shall be affixed to the plat until all the requirements of these regulations have been met. The applicant shall deliver to the City Engineer the required number of reproducible prints and copies and a digital copy of the signed plat for recording with the Register of Mesne Conveyance or Register of Deeds. The recording fee shall accompany the plat. Notice that a plat has received final approval or has been disapproved shall be given to the applicant.
(Ord. No. 2007-35, § 1, 2-13-07)

Sec. 54-813. Phasing major subdivision plats.

Phasing major subdivision plats. The Administrator may permit a subdivision that has been given concept plan approval to be divided into two (2) or more phases for development plan and final platting purposes and may impose such conditions upon the filing of each phase, as it may deem necessary, to assure the orderly development of the subdivision. Each phase shall be bonded independently of the other phases, unless expressly stated otherwise.
(Ord. No. 2007-35, § 1, 2-13-07)

Sec. 54-814. Resubdivision of land.

Procedure for subdivision where future resubdivision is foreseen. Whenever a parcel of land is subdivided, and the subdivision plat shows one (1) or more lots containing more than one (1) acre of land or double the minimum required area for the zoning district in which the lot is located, and the Administrator has reason to believe that such lots shall be resubdivided into smaller building sites, the Administrator shall require that the subdivision and development of such parcel of land allow for the future opening of streets by restricting

building locations. A plan of resubdivision shall be depicted on a concept plan drawing unless the applicant can demonstrate that the need for such future street connection is unnecessary. The Administrator shall require that future dedications providing for the opening and extension of such streets be so indicated on the plat.

(Ord. No. 2007-35, § 1, 2-13-07)

Sec. 54-815. Miscellaneous platting situations.

Converting parcels to building sites. A land parcel created by deed or land parcel identified as a reserve parcel on a plat may be converted to a building site within the limits set forth in this chapter. Removal of the reserve status shall require Planning Commission approval.

(Ord. No. 2007-35, § 1, 2-13-07)

Sec. 54-816. Plat Review Committee and Technical Review Committee.

1. Plat Review Committee. The Plat Review Committee is composed of City staff from the Department of Public Service and Department of Planning and Preservation and is coordinated by the Engineering Division. The purpose of this committee is to review all plats for compliance with all City codes prior to recordation in the Register Mesne Conveyance or Register of Deeds.
2. Technical Review Committee. The Technical Review Committee is composed of City staff from the Department of Public Service, Department of Planning and Preservation, Department of Traffic and Transportation, Executive Department, Fire Department and Department of Parks and is coordinated by the Zoning Division. Representatives of the State, or Boards or Commissions may be included in the review of applications as appropriate. The purpose of this committee is to review all applications for subdivision as defined in Section 54-803.a, including concept plans, development plans and preliminary plats as described herein. Meetings of the committee shall be held and applications shall be reviewed in accordance with the published review schedule for the committee, and agendas listing each item to be heard at each meeting of the committee shall be posted at the Department of Planning and Preservation and on the City web site at least five (5) business days prior to each meeting. The TRC Administrator, in consultation with his/her supervisor and the Mayor shall have authorization to override any decision rendered by a reviewing Department or Division, so long as the final result violates no State or Federal requirement or creates no potential threat of harm to public safety. Results of each meeting of the committee shall be presented to the Planning Commission at their monthly meetings. All meetings of the committee shall be open to the public.

(Ord. No. 2007-35, § 1, 2-13-07; Ord. No. 2013-143, §§ 1, 2, 4—7, 12-3-13; Ord. No. 2025-086, § 1, 6-17-25)

Secs. 54-817—54-819. Reserved.

PART 3
SUBDIVISION DESIGN STANDARDS

Sec. 54-820. Design standards for terrain.

- a. No platting of land for residential use or purpose shall occur in areas subject to periodic flooding by normal tides, swamps, marshes, or other undrained areas, unless suitable provision is made for satisfactory drainage.
- b. Drainage improvements shall be required pursuant to approved drainage studies and plans, and the drainage policies of the City of Charleston.

(Ord. No. 2003-70, § 5, 8-19-03)

Sec. 54-821. Street design standards.

- a. The layout of streets as to arrangement, character, width, grade, and location shall be required to conform to the following street design standards, to adjoining street systems of adjoining properties, to the major thoroughfare plans of the city, to the topography, natural features, and drainage systems to be provided, and to the general plan of the entire tract where completed.
- b. Local streets shall be designed as an interconnected street system while incorporating lower speed geometries.
- c. Subdivisions which abut or have included within the proposed area to be subdivided any limited access, major thoroughfare, or arterial streets shall provide:

1. A marginal access street, or
2. Reverse frontage with screen planting contained in a non-access reservation along the rear property line, or
3. Lots with rear service drives, or
4. Other treatment as may be necessary for adequate protection of residential properties and to afford separation of through and local traffic.

The city engineer shall specify which of the above requirements apply to each individual case based upon adequate service to the public interest.

- d. Reserve strips or parcels controlling access to streets shall be prohibited, except where justification is shown by the developer.
- e. Street jogs, with centerline offsets of less than one hundred twenty-five (125) feet shall be avoided.
- f. A tangent of at least one hundred (100) feet shall be introduced between reverse curves on major traffic streets.

- g. When connecting street lines deflect from each other at any one point by more than ten degrees, they shall be connected by a curve with a radius of not less than one hundred (100) feet for minor and collector streets, and of such greater radii as the city engineer shall determine for special cases.
- h. Streets shall be so laid out as to avoid acute angles as nearly as practicable between streets at their intersections, except in the case of merging streets.
- i. Property lines at street intersections shall be rounded with a radius of not less than fifteen (15) feet. Larger radii may be required by the city engineer when, in his opinion, such design is advisable to permit the construction of curbs of large radius.
- j. Streets shall be defined according to the following functional classifications and right-of-way widths, pavement widths and curb radii shall be as follows:
 - 1. Definitions of Functional Classifications of Streets
 - (a) Access Street: Sometimes called a place or lane, the access street is designed to conduct traffic between dwelling units and higher-order streets. As the lowest-order street in the hierarchy, the access street carries some through traffic and includes short streets, cul-de-sacs and courts.
 - (b) Subcollector Street: The subcollector provides passage to access streets and conveys traffic to collectors. Like the access street, the subcollector provides frontage and access to residential lots but also carries some through traffic to lower-order (access) streets. The subcollector is a relatively low-volume street.
 - (c) Collector Street: A street which collects internal traffic movements within an area of the city, such as among subdivisions, and connects this area with the arterial street system. It does not handle long through trips, but performs the same land service function as a local street.
 - (d) Arterial Street: A facility designed mainly for through traffic, but it also normally performs a secondary land service function. Parking and loading may be restricted or prohibited to improve the capacity for moving traffic. It accommodates major movements of traffic not served by expressways and brings traffic to and from expressways.
 - 2. Minimum right-of-way widths and pavements widths (exclusive of curb and gutter). See Table 8.1.
 - 3. Minimum radii. See Table 8.2.
- k. Half streets along property lines shall be prohibited except where essential to the reasonable development of the subdivision in conformity with the other requirements of these regulations, and where the city engineer finds that it will be practicable to require the dedication of the other half when the adjoining property is subdivided. Whenever a half street exists adjacent to a tract to be subdivided, the other half of the street shall be platted within such tract.

1. Dead-end streets designed to be so permanently, shall not be longer than eight hundred (800) feet except where land cannot be subdivided otherwise practicably and shall be provided at the closed end with a turn-around having a street property line diameter of at least eighty (80) feet.
- m. No street names shall be used which will duplicate or be confused with the names of existing streets. Street names proposed by the subdivider shall be subject to check by the GIS Division and where duplication or confusion with names of existing streets occurs, the GIS Division shall require the subdivider to substitute names free from duplication or confusion.

TABLE 8.1: MINIMUM STREET WIDTHS^a

	UNDIVIDED STREET			DIVIDED STREET			
	Paved Section w/o curb/gutter			Paved Section w/o curb/gutter			
	Curb Type:			Curb Type (1-way width):			
Functional Classification	Mountable	Vertical	Right-of-way	Mountable	Vertical	Total Paved Width with Median	Right-of-way
Local Single-Family Residential:							
Access	22 ^{b, e, f}	22 ^{b, e, f}	50 ^{e, f}	16 ^c	18 ^c	50 ^d	70
Subcollector	26	28	55	18	20	60	80
Subdivision Entrance and Local Multi-Family	28	30	60	18	20	60	80
Collector, and Local Commercial and Industrial	40	44	70	20	22	85	105
Arterial:	Divided arterial streets must be designed to State requirements						
Minor	—	48	75				
Principal	—	60	90				

a. Exclusive of outside curb and gutter

b. Maximum of 30 feet.

c. Maximum of 20 feet.

d. Maximum of 60 feet.

e. The paved section and right-of-way for local single-family residential access streets serving only single-family detached homes may be reduced to 20 feet and 42 feet, respectively, with the approval of the Zoning Administrator, the Director of the Department of Public Service, and the Director of the Department of Traffic and Transportation, and in consideration of on-street parking needs, and the utility providers and their needs for installing utility services within the rights-of-way which are proposed to be reduced.

f. On-street parking and community parking lot requirements. Parking spaces shall be provided along local single-family residential access streets with one or more lots that are less than 9,000 square feet in high ground area. Parking spaces shall be provided on-street or in community parking lots constructed with the subdivision, or with a combination thereof. The number of parking spaces provided shall equal or exceed one (1) space for every four (4) lots, or fraction thereof, that are between than 6,000 square feet and 8,999 square feet in high ground, and (1) space for every three (3) lots, or fraction thereof, that are less than 6,000 square feet in high ground. Parking spaces shall be distributed throughout areas with lots that require on-street parking. Community parking lots shall comply with landscaping requirements in Article 3, Part 7, and include spaces that meet the minimum design requirements of section 54-318, except the lots may utilize a durable, pervious paving material with a concrete driveway that extends at least 10 feet beyond the right-of-way. Where on-street parking is provided, the minimum pavement width and minimum right-of-way width for local single-family residential access streets shall be increased, as described herein. On street parking spaces shall be a minimum of 22 feet in length and 7 feet wide, exclusive of curb and gutter. Where on-street parking is provided on one side of a street, street pavement width shall be increased to a minimum of 27 feet, exclusive of curb and gutter. Where on-street parking is provided on both sides, pavement width shall be a minimum of 34 feet, exclusive of curb and gutter, and right-of-way width shall be a minimum of 55 feet. Where parking is provided between driveways, the minimum driveway separation shall be 28 feet.

TABLE 8.2: MINIMUM CURB RADII

<i>Functional Street Classification</i>	<i>Access and Sub-collector</i>	<i>Subdivision Entrance and Local Multi-Family</i>	<i>Collector and Local Commercial and Industrial</i>	<i>Minor and Principal Arterials</i>
Access and Subcollector	15	25	25	30
Subdivision Entrance and Local Multi-Family	25	25	25	30
Collector and Local Commercial and Industrial	25	25	30	30
Minor and Principal Arterials	30	30	30	30

- n. Streets and intersection approaches shall not be excessive in grade nor be less than three-tenths of one percent (0.3%) in the gutter profile. Variation from these grades may, however, be permitted by the city engineer where advisable, to adjust to topographical conditions.
- o. Alleys shall be permitted where required to provide for service access, such as off-street parking, loading, and unloading, consistent with and adequate for the uses proposed. Such alleys shall have a minimum right-of-way of twenty (20) feet with a minimum pavement width of twelve (12) feet.
- p. All streets shall be paved in accordance with minimum requirements on file in the office of the city engineer. Final approval, however, may be granted prior to paving, provided adequate bond or escrow of funds conditioned on said paving being completed within one year of the final approval is filed with the city treasurer.
- q. Roads of an existing subdivision shall not be used as the sole means of ingress and egress in developing a new subdivision or extending an existing one, when other access can be made available and when in the opinion of the city engineer such use would create a safety hazard or otherwise be detrimental to the residents of the existing subdivision due to increased traffic and noise.
- r. No street shall be located within a critical area or freshwater or saltwater wetland unless the applicant shall supply to the City the written approval of OCRM or the U.S. Army Corps of Engineers, or both, as appropriate.
- s. Street connectivity requirements: An interconnected street system is necessary in order to provide for access between developments without returning to major roadways, in order to provide access for emergency and service vehicles, in order to enhance and encourage non-vehicular travel, in order to plan for future development and transportation needs and in order to create neighborhoods.

The following street connectivity requirements shall apply:

- 1. All subdivisions and developments shall include improved street connections to other streets within the development and to adjoining streets, neighborhoods, existing developments, developed tracts and undeveloped tracts. However, subdivi-

sions and developments which are physically isolated by water, marsh, or wetlands from other streets, subdivisions, neighborhoods, existing developments or undeveloped tracts, shall not be required to include street connections.

2. Street connections to adjoining undeveloped tracts shall include a temporary turnaround, in the form of easements or right-of-way, until such time that the adjoining tract is developed and the temporary turnaround area can be abandoned.
 3. The appropriateness, location and application of such required street connections are subject to the review and approval of the Zoning Administrator. Street connections shall be made according to appropriate land planning practices for the type of development proposed and the characteristics of adjoining properties.
- t. Within the Neighborhood District, subsections b, c, e, f, g, j, k, l, and s of this section shall not apply. Streets in the Neighborhood Districts shall connect to other streets within the neighborhood and to adjoining streets, neighborhoods, existing developments and undeveloped tracts. Cul-de-sacs, T-turnarounds, and gated or dead-end streets are not permitted, unless unavoidable due to physical constraints of the site or an adjoining site.

In the event of unavoidable physical constraints, a modified cul-de-sac may be used if it does not exceed six hundred (600) feet in length and meets one of the following criteria:

1. It incorporates a design feature at the center of the turn-around such as a natural area with existing trees, a landscaped space, or an outdoor space with amenities that is a size at least equal to the square footage of the pavement within the turn-around area.
2. It provides a pedestrian access area to the marsh front, waterfront, or other physical feature that necessitates the cul-de-sac that is of a size at least equal to the square footage of the turn-around.

Gated streets are not permitted.

- u. Within the Neighborhood District, each building must front a neighborhood district street type or outdoor space as defined in Section 54-295, excluding conservation areas. Streets shall be classified according to the following hierarchy and follow the design and tree planting requirements of Table 8-2.1:

Type 1 ND Mixed-Use Street	This is a street with low to moderate vehicular speed [20 to 25 mph] and high vehicular and pedestrian traffic volumes. Pedestrian-oriented amenities, as sidewalks or walking paths, are required on these streets to accommodate safety, convenience and enjoyable walking. Type 1 streets are located within neighborhood mixed-use centers and in higher density areas.
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Type 2 ND5 Residential Street	This is a street with low to moderate vehicular speed [20 to 25 mph] and a significant volume of both vehicular and pedestrian traffic. Pedestrian-oriented amenities, as sidewalks or walking paths, are required on these streets to accommodate safety, convenience and enjoyable walking.
Type 3 ND One Way Street	This is a street with low to moderate vehicular speed [20 to 25 mph] and that only carries vehicle traffic one-way. Pedestrian-oriented amenities, as sidewalks or walking paths, are required on these streets to accommodate safety, convenience and enjoyable walking.
Type 4 ND Road	This is a street that does not include curb/gutter. Sidewalks are not required as this street is intended for use where off-street paths exist or the streets themselves are used for pedestrian travel. Type 4 streets must incorporate swales to accommodate stormwater drainage. Type 4 streets will only be allowed in areas of greater environmental or rural sensitivity and may not constitute more than forty (40) percent of the total linear feet of roadways in the neighborhood.
Type 5 ND Alley	This street is defined as an alley and provides rear access to building lots for service accessparking access, and utility easements. This street is defined as an alley and carries vehicular traffic one-way.
Type 6 ND Avenue	This street type is defined as an Avenue and is designed to accommodate primarily vehicular traffic. The Type 6 Avenue can function as connectors between Neighborhood Districts and other developments.

- v. In addition to the right-of-way standards in Table 8.1, the following street types are also permitted per Table 8.2.2:

TABLE 8-2.1: STREET DESIGN REQUIREMENTS

Street Type	R-O-W ^{4,g}	Travel Lanes ^a	On-street Parking ^b	Curb	Curb/ Intersection Radii ^h	Street trees (2 sides) ⁱ	Street tree spacing ⁱ	Sidewalks ^e	Bicycle Travel ^j
1 ND Mixed- Use Street	60' min.	Two-ways 10' min. travel lane	7' (2 sides) ^e	Vert.	15'	Tree Well (24 sq ft) or Plant- ing Strip (4 ft. min. width)	20'—40'	8' min. (2 sides)	optional
2 ND Residential Street	50' min.	Two-ways 10' min. travel lane	7' (1 side) ^d	Vert.	15' ^g	Tree Well (24 sq ft) or Plant- ing Strip (3 ft. min. width)	30'—50'	5' min. (2 sides)	optional
3 ND One Way Street	40' min. one- way	One-way 11' min. travel lane	7' (1 side) ^d	Vert.	15'	Tree Well (24 sq ft) or Plant- ing Strip (3 ft. min. width)	30'—50'	5' min. (2 sides)	optional
4 ND Road	30+ min. depending on swale	Two-ways 11' min. travel lane ^c	n/a	n/a	n/a	n/a	n/a	n/a	optional
5 ND Alley	20' min. One- way	One-way 12' min. travel lane	n/a	n/a	25'	n/a	n/a	n/a	optional
6 ND Avenue	48' min.	Two-ways 10' min. travel lane	n/a	n/a	15'	Planting Strip (5 ft. min. width)	50'	n/a	8' min. path (2 sides)

- a. Travel lane width is designed for low to moderate vehicular speeds (25 mph or less); higher vehicular speeds may require design modifications. Travel lane width is inclusive of the gutter and up to the face of the curb.
- b. On-street parking width is inclusive of the gutter and up to the face of the curb. On-street parking should not be marked within the street; street signage is optional.
- c. The width of the individual travel lanes may be reduced to 10 ft. minimum when providing an off-street pedestrian path.
- d. On-street parking may exist on both sides of Type 2 and 3 streets. On-street parking shall not be required on street sections less than 150 linear feet.

- e. On-street parking may be provided only on one side of a Type 1 street where the street is serving as single-loaded residential street. On-street parking shall be provided on the same side of the street as the abutting single-family detached, single-family attached, duplex, triplex, quadplex, or multifamily residential lots. Likewise, a sidewalk may be provided only on one side of a single-loaded residential Type 1, 2 or 3 street.
- f. Right-of-way narrowing devices including, but not limited to, curb extensions, bulbouts, neckdowns and corner bulges shall not be permitted unless approved by the Design Review Committee.
- g. Street types may be incorporated into a divided right-of-way design provided that the center median includes street trees and has a minimum width of 10 feet (width may include curb).
- h. Curb Radii—Curb radii are applicable to the face of curb and apply to street intersections, not driveway intersections. Curb radii are designed for low vehicular speeds; higher vehicular speeds may require design modifications. Curb radii at alley-to-alley intersections shall be a minimum of 30 feet and alley to Street Type 2 intersections shall be a minimum of 25 feet.
- i. Street Trees—Street tree details including tree spacing, tree well location and dimensioning and planting strip location and width may vary depending on tree species and development infrastructure. Street tree details shall be reviewed and approved by the Department of Parks at construction plan submittal. Street trees shall be installed prior to final plat approval and recordation.
- j. Bicycle Travel— Neighborhood Districts should provide opportunities for bicycle travel. A bike path is an independent bike way that is to be provided off-street and outside of the vehicular thoroughfare. A bike route shall be provided within the vehicular thoroughfare where suitable for shared use of bikes and vehicles traveling at low speeds and may be indicated with the use of "sharrows". A bike lane is a dedicated marked lane with a moderate-speed vehicular thoroughfare.

TABLE 8.2.2: TOWN AND COUNTRY STREET DESIGN REQUIREMENTS

Street Type	R-O-W ¹	Travel Lanes	On-street Parking	Curb	Curb/Inter-section Radii	Street trees	Sidewalks	Bicycle Travel
Town	60'	Two-way travel. 10' travel lane; includes gutter.	Both sides. 8'; includes gutter.	Vert.	15'	Both sides. Tree well or min. 5' wide tree lawn; includes curb.	Both sides. 12' w/ tree well or 7' w/ tree lawn.	Bike route shared w/ autos within travel lanes and indicated with sharrows.

Street Type	R-O-W ¹	Travel Lanes	On-street Parking	Curb	Curb/Inter-section Radii	Street trees	Sidewalks	Bicycle Travel
Secondary Town	60' +/-	Two-way travel. 10' travel lane; includes gutter.	Both sides. 7'; includes gutter.	Vert.	15'	Both sides. Tree well or min. 5' wide tree lawn; includes curb.	Both sides. 12' w/ tree well or 7' w/ tree lawn.	Bike route shared w/ autos within travel lanes and indicated with sharrows.
Country	Varies	Two-way travel. 10' travel lane.	One side. 8'; includes gutter).	Vert.	15'	Both sides. Tree well or min. 5' wide tree lawn; includes curb.	Both sides. 12' w/ tree well or 7' w/ tree lawn.	Bike route shared w/ autos within travel lanes and indicated with sharrows.
			N/A	Roadside swales; width varies		Min 8' wide tree lawn on one side between travel lane and multi-use path.	10' multi-use path on one side.	4' bike lane both sides

1. Street types may incorporate a center median provided that the median is no wider than 11 feet.
Ord. No. 1999-164, § 1, 11-23-99; Ord. No. 2002-18, § 1, 2-12-02; Ord. No. 2003-69, § 17, 8-19-03; Ord. No. 2004-77, §§ 2, 3, 8-17-04; Ord. No. 2006-397, §§ 9—12, 9-12-06; Ord. No. 2007-100, §§ 1, 2, 5-1-07; Ord. No. 2007-213, §§ 2, 3, 11-20-07; Ord. No. 2012-372, § 1, 9-11-2012; Ord. No. 2015-105, § 1, 8-18-2015; Ord. No. 2021-113, § 1, 8-17-21)

Sec. 54-822. Design standards for easements.

- a. Easements for utilities along rear and side property lines may be required by the city engineer where necessary. In particular cases, easements across lots may be required by the city engineer to meet extreme conditions.
- b. Easements, when provided, shall be a minimum of twelve (12) feet in width and shall center along a common property line where appropriate.
- c. Easements, when required for drainage or sewage for the area to be subdivided, shall be of such width as necessary to permit proper construction of drainage facilities based on the drainage system of the area. No subdivision shall block or obstruct the natural drainage of an adjoining area. Existing natural drainage shall be maintained or replaced where possible or feasible.

Sec. 54-823. Design standards for blocks.

- a. The lengths, widths and shapes, of blocks shall be determined with regard to:
 1. Provision of adequate building sites suitable to the special needs of the type of use (residential, commercial, industrial, other) contemplated.
 2. Area and spacing requirements as to lot sizes and dimensions.
 3. Needs for convenient access, circulations, control and safety of street traffic.
 4. Limitations and opportunities of topography and drainage features.
- b. No side of a proposed block shall exceed eight hundred (800) feet unless a minimum twenty-foot wide through-block alley or pedestrian accessway is provided, and no side of any block which incorporates pedestrian accessways or alleys shall exceed one thousand two hundred (1,200) feet in length, except that, in a Neighborhood District, no side of a proposed block shall exceed six hundred (600) feet in length without another street providing through access to another street. This length may be extended to eight hundred (800) feet provided a through-block pedestrian accessway is provided. Through-block pedestrian accessways shall be a minimum fifteen (15) wide with a minimum ten-foot wide surfaced path and shall be located in the center of the block or in the most practical location to facilitate pedestrian circulation within the neighborhood or to provide access to special neighborhood features. Pedestrian accessways shall be owned and maintained by an association formed for that purpose.

A block may exceed the maximum length if the block incorporates existing natural features such as freshwater wetlands, marsh, OCRM critical area or bodies of water.

(Ord. No. 2002-18, § 3, 2-12-02; Ord. No. 2003-69, § 16, 8-19-03; Ord. No. 2006-397, § 13, 9-12-06)

Sec. 54-824. Design standards for new lots.

- a. The lot size, width, depth, shape and orientation and the minimum building setback lines shall be appropriate for the location of the subdivision and for the type of

development and use contemplated. Lot depth exclusive of marsh lands normally shall not exceed two and one-half times the frontage and except in the case of hardship, never exceed four times the frontage.

- b. Reduction in lot area prohibited. Except under the conditions hereinafter stated, no lot shall be reduced in size so that lot width, yard requirements, lot area per dwelling unit, or other requirements of this chapter are not maintained.
- c. New lots shall conform to the following dimensions and design standards:
 1. Lot frontage for single-family and two-family residential. The following lot frontage requirements in Table 8.2.3 shall apply to all new single and two-family residential lots, except that residential lots within existing residential subdivisions may not be subdivided with lot frontages less than the average lot frontage of all abutting residential lots, residential lots across the street(s), and residential lots within five (5) lots on either side of the frontage of the subject lot, or the minimum lot frontage for that zoning district, whichever is greater. Lots subdivided and developed for one-family detached affordable housing per section 54-207, z. shall be subject to the frontage requirements of that section.

**TABLE 8.2.3: SINGLE AND TWO-FAMILY RESIDENTIAL
LOT FRONTAGE REQUIREMENTS**

<i>Zone District</i>	<i>Minimum lot frontage on a right-of-way for single and two-family residential lots</i>
SR-1, SR-2, SR-3, SR-4, SR-5 and STR	50 ft. except for 30-ft. arc on a cul-de-sac
RR-1, SR-7, SR-8 and C	70 ft. except for 40-ft. arc on a cul-de-sac
MU-1/WH and MU-2/WH	No lot frontage requirement
All other zone districts not listed above	40 ft. except for 30-ft. arc on a cul-de-sac. The minimum frontage may be reduced to 26 ft. provided that the new lot(s) shall have frontage on a street right-of-way and shall be accessed from the rear by an alley right-of-way that satisfies the requirements of this chapter.

Lot frontage for multi-family. Multi-family residential lots shall have a minimum lot frontage of fifty (50) feet on a street and parking shall be prohibited within the required setback within the district.

Lot frontage for business and industrial lots. The minimum lot frontage for business and industrial lots shall be as shown below on Table 8.3: Business and Industrial Lot frontage Requirements.

Exceptions: 1) Any lot or parcel with five hundred (500) feet of frontage or less, or two hundred (200) feet or less in depth as shown on the 1979 Tax Assessment Maps, may be subdivided with curb breaks for access consistent with typical lots within two thousand (2,000) feet of the subject property of equivalent zoning; and 2) Lots which are part of a larger business or

industrial development, such as an office park, shopping center, mixed use, or business park development, with shared ingress/egress easements for access to a street, may be created without any frontage as long as the frontage requirement is satisfied for the lots abutting the street and a platted shared ingress/egress easement utilizing an approved driveway is furnished to all interior lots or building sites; and 3) Business and industrial lots in the MU-1/WH and MU-2/WH zone districts shall not be required to have frontage on a street.

Access and lot area. New residential subdivisions shall be designed such that single-family lots shall not have driveway access to arterial streets. In no case shall residential lots contain less than the minimum lot areas for the intended number of dwelling units as specified in Table 3.1: Height, Area and Setback Regulations, except that for single and two-family lots zoned SR-6, STR, DR-1, DR-1F, DR-2, DR-2F, DR-3 (non-mobile home), DR-6, DR-9 and DR-12 that front on a street right-of-way and have vehicular access at the rear of the lot from an alley right-of-way that satisfies the requirements of this chapter, the calculation of minimum lot area per family in square feet may be reduced by the area of the alley right-of-way directly behind the lot.

2. A residential lot which will require the installation of a private water supply and a private sewage disposal system shall have an area of not less than fifteen thousand (15,000) square feet, exclusive of marshland and easements. Septic tank tile fields will not be permitted in marshlands and easements. Upon a finding by the health department, based on the information furnished by the developer at the time of application for preliminary approval, that safe and sanitary installations cannot be made in this area, the city engineer may require that the lot size be increased.
3. A residential lot which will be served with a public water supply system but which will require the installation of an individual sewage disposal system shall have a minimum area of nine thousand (9,000) square feet exclusive of marshland and easements. Septic tank tile fields will not be permitted in marsh lands or easements. Upon a finding by the health department, based on the information furnished by the developer at the time of application for preliminary approval, that safe and sanitary installations cannot be made in this area, the city engineer may require that the lot size be increased.
4. A residential lot which will be served by a public sewage disposal system but which will require the installation of an individual water supply shall have an area of not less than seventy-five hundred (7,500) square feet, exclusive of marshland.
- d. Lots which have the double frontage shall be avoided except where essential to provide separation of residential development from traffic arteries to overcome specific disadvantages of topography and orientation. A planting screen easement of at least ten (10) feet and across which there shall be no right of access may be required along the lines of lots abutting such a traffic artery or other disadvantageous use.

- e. Each lot shall be provided, by means of a public street or other satisfactory public easement or right-of-way, with satisfactory access to an existing public street.
 - f. Utility and drainage lots shall be exempt from zoning district dimensional requirements, public road frontage requirements and street improvement requirements provided in this Chapter; provided, however, that such lots shall be created in conformance with the subdivision review, approval and recordation requirements provided in this Chapter. Lots created for the purpose of providing for utility and drainage facilities and structures shall be of a size, width, depth, shape and orientation appropriate for the proposed use. Each lot shall be served by either frontage on a public right-of-way or an access and maintenance easement to the lot from a public right-of-way. An application for subdivision approval shall be accompanied by a statement establishing that the proposed installation is necessary to accomplish a utility or drainage function. The subdivision plat creating a utility or drainage lot shall include a designation of the lot "for utility (or) drainage purposes only." Improvements on said lots shall comply with the provision of Section 54-831 of this Chapter.
- (Ord. No. 1997-523, § 1, 11-25-97; Ord. No. 1999-22, § 9, 3-10-99; Ord. No. 2008-160, § 2, 12-9-08; Ord. No. 2013-106, §§ 2, 3, 10-8-13; Ord. No. 2014-67, § 10, 5-13-14; Ord. No. 2018-059, §§ 2, 3, 5-8-18; Ord. No. 2020-097, § 5, 8-18-20)

TABLE 8.3: BUSINESS & INDUSTRIAL LOT FRONTAGE REQUIREMENTS

<u>STREET SPEED LIMIT</u>	<u>MIN. LOT FRONTAGE</u>
20	100
25	100
30	100
35	150
40	200
45	250
50	300
55+	400

Secs. 54-825—54-829. Reserved.

PART 4
REQUIRED IMPROVEMENTS

Sec. 54-830. Markers required.

- a. Markers shall be placed at block corners, angle points, points of curves in streets, and at other points if required by the city engineer. Markers shall be placed at all lot corners.
- b. Markers shall be of iron pipe or other equally permanent material at least three quarters inch in diameter and four (4) feet in length.
- c. Markers shall be installed prior to submission of and approval of the final plat and shall conform to locations indicated on the approved preliminary plat.

Sec. 54-831. Utility, street and sidewalk improvements required.

- a. Utility and street improvements shall conform with standards and specifications on file in the office of the city engineer and in the office of the Director of the Department of Parks, except that with respect to sanitary systems or sewerage disposal systems, such systems shall conform with the standards and specifications on file in the office of the Charleston Water System, Charleston, South Carolina.

Within all new developments or subdivisions in the City of Charleston, curb and gutter shall be required for all street rights-of-way. Materials used for curb and gutter shall be of the type and quality at least equal to the type and quality of materials existing on contiguous rights-of-way. Where there are no contiguous rights-of-way, materials used for curb and gutter shall be concrete.

Within all new developments or subdivisions in the City of Charleston, sidewalks shall be required. Sidewalks shall be constructed with a minimum width of five (5) feet of materials of the type and quality at least equal to the type and quality of materials existing on contiguous sidewalks. Where there are no contiguous sidewalks, newly constructed sidewalks shall be concrete. Other requirements for sidewalks are:

1. Arterial, Collector, and Local Commercial Streets - along the frontage of all properties abutting these streets;
2. Local Residential Streets - a connecting system of sidewalks along each side of all local residential streets which have abutting residential lots.
3. Multi-Family Residential Streets - a connecting system of sidewalks along each side of all multifamily residential streets and a sidewalk running from each building in the development to the street.

Sidewalks shall not be required where one or more of the following conditions exists, unless a lot has frontage on a road or roads classified as a collector, arterial

or local commercial street or on a road which provides direct access to a public school, park or other comparable public facility that is located within one (1) mile of the lot, to wit:

- (a) in subdivisions or developments where the minimum lot size is forty thousand (40,000) square feet; or
 - (b) in subdivisions or developments which are physically isolated by water, marsh, saltwater wetlands or freshwater wetlands from other subdivisions or developments.
- b. The City Planning Commission may grant final approval prior to completion of such improvements if adequate bond or escrow funds for the completion of such improvements, approved by the corporation counsel, is filed with the City treasurer; that with respect to sewerage disposal systems and sanitary sewer systems, such bond or escrow funds for the completion of such systems shall be approved by the manager and engineer of the Commissioners of Public Works of the City of Charleston.
- c. Prior to such approval, the Commissioners of Public Works of the City of Charleston shall be empowered to require that the entire sanitary, sewer system or sewerage disposal system for the tract being subdivided be paid for in cash, with the balance payable over a period of time under such agreement as may be approved by the Commissioners of Public Works of the City of Charleston.
- d. New streets shall be designed, and existing streets shall be improved to accommodate traffic impacts associated with a proposed development.
- e. Street trees. Within all new developments or subdivisions, all new thoroughfares, excluding alleys, shall be planted with street trees in accordance with the following requirements.
 - 1. Street tree species selection, size, location and spacing shall require approval of the Department of Parks, pursuant to the City of Charleston Street Tree Manual.
 - 2. Street trees to be planted within street rights-of-way, shall be shown on street tree plans and specifications submitted with road construction documents. The plans and specifications shall satisfy the requirements of the City of Charleston Street Tree Manual.
 - 3. Extensions of existing public rights-of-way with street trees shall require the planting of street trees.

(Ord. No. 1998-160, §§ 1, 2, 9-8-98; Ord. No. 1999-54, § 4, 4-27-99; Ord. No. 2002-18, § 4, 2-12-02; Ord. No. 2003-70, § 6, 8-19-03; Ord. No. 2008-103, §§ 1—3, 7-15-08)

ARTICLE 9
ADMINISTRATION AND ENFORCEMENT

Part 1
General Administration and Enforcement

- Sec. 54-901. Zoning administrator as administrative officer; inspections; enforcing agents.
- Sec. 54-902. Duty of corporation counsel as to enforcement.
- Sec. 54-903. Building permit a prerequisite to work.
- Sec. 54-904. Procedure when enforcement or interpretation questioned; appeals to court.
- Sec. 54-905. Remedies for violations.
- Sec. 54-906. Building permits; plat and plans required.
- Sec. 54-907. Certificate of appropriateness.
- Sec. 54-908. Certificate of occupancy.
- Sec. 54-909. Permit limitations; failure to commence work.
- Sec. 54-910. Interpretation and purpose of chapter.
- Secs. 54-911—54-919. Reserved.

Part 2
Board of Zoning Appeals—Zoning and Board of Zoning Appeals—Site Design

- Sec. 54-920. Boards created; composition; appointment and term of members.
- Sec. 54-921. Rules of procedure; public notice; meetings; minutes; witnesses.
- Sec. 54-922. Procedures for posting properties and application fees.
- Sec. 54-923. Powers of the Board of Zoning Appeals—Zoning and Board of Zoning Appeals—Site Design.
- Sec. 54-924. Requirements for granting a variance.
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- Sec. 54-940. Planning Commission created; powers and duties.
- Sec. 54-941. Planning Commission composition; terms; organization; meetings; procedural rules.
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- Sec. 54-945. Procedures for review of projects for compatibility with the comprehensive plan.
- Secs. 54-946—54-949. Reserved.

CHARLESTON ZONING ORDINANCE

Part 4 Penalties

Sec. 54-950. Penalties.
Secs. 54-950—54-959. Reserved.

Part 5 Vested Rights

Sec. 54-960. Vested rights.
Sec. 54-961. Definitions.
Sec. 54-962. Term.
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Sec. 54-966. Building permits.
Sec. 54-967. Later enacted laws.
Sec. 54-968. Waiver not permitted.
Sec. 54-969. Permit Extension Joint Resolutions of 2010 and 2013.

Part 6 Temporary Moratorium - Church Creek Drainage Basin

Sec. 54-970. Temporary moratorium.

PART 1
GENERAL ADMINISTRATION AND ENFORCEMENT

Sec. 54-901. Zoning administrator as administrative officer; inspections; enforcing agents.

The duty to administer and to enforce the provisions of this Chapter is hereby conferred upon the zoning administrator, herein referred to as the administrative officer of the Zoning Ordinance. The city building inspector shall inspect all construction or alteration for which permits are issued by the city engineer or as authorized by the Board of Zoning Appeals or as authorized by the Board of Architectural Review, as hereinafter provided, and shall make a weekly report in writing to the city engineer's office, listing all construction inspected and specifying any work observed by him which is not in accordance with permits issued, or which violates this chapter or any other ordinance of the city. The officers and patrolmen of the police department, so far as is practicable, shall inspect daily all construction in progress in the city, and shall report promptly to the chief of police who shall advise the city engineer's office of any construction whereon is not displayed a building permit, as required by ordinance. Any person to whom a building permit is issued shall notify the city engineer's office in writing, twenty-four hours before commencing work of the exact day upon which he intends to begin construction or alteration, so that the proper inspections can be made.

The city electrician, before authorizing the increase of electric meters on any premises or the cutting in of electrical current to be used directly or indirectly for the purposes of lighting or operating signs, shall consult with the administrative officer and see that the application has been approved for additional dwelling units or the application for signs has been applied for and granted as required by this Chapter.

The plumbing inspector, before authorizing the installation of additional sinks or bathrooms, shall consult with the administrative officer and see that the necessary application permits have been granted as required by this Chapter.

(Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-902. Duty of corporation counsel as to enforcement.

It shall be the duty of the corporation counsel, upon instructions of the mayor or by resolution of council, to bring suit in the name of the city to enjoin any use of land, alteration or demolition of any building or structure or erection of any building or structure in conflict with the provisions of this chapter.

Sec. 54-903. Building permit a prerequisite to work.

A building permit issued by the administrative officer is required in advance of construction, erection, moving or alteration or demolition of any building or structure. In cases involving necessary action by the Board of Zoning Appeals or Board of Architectural Review as provided elsewhere herein, such action shall be complied with before issuance of a building permit by the administrative officer.

No excavation for foundation nor the erection, construction or structural alteration of any structure or part of a structure, or occupancy of streets or alleys with building materials or temporary structures for construction purposes, shall be undertaken until a permit therefor shall have been issued by the administrative officer.

(Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-904. Procedure when enforcement or interpretation questioned; appeals to court.

It is the intent of this Chapter that all questions arising in connection with the enforcement or interpretation of this Chapter, except as otherwise expressly provided, shall be presented to the Board of Zoning Appeals, and, that from decisions of the Board of Zoning Appeals, recourse shall be to the courts as provided by law.

(Ord. No. 1999-54, § 4, 4-27-99)

Sec. 54-905. Remedies for violations.

Whenever a building or structure is demolished, erected, constructed, reconstructed, altered, repaired, converted, or maintained, or any building, structure or land is used in violation of this Chapter, the city engineer or any other appropriate authority, or any property owner, who would be damaged by such violations, in addition to other remedies, may institute injunction, mandamus, or other appropriate action in proceeding to prevent the violation in the case of such building, structure or land.

Sec. 54-906. Building permits; plat and plans required.

- a. All applications for building permits shall be accompanied by a plat in duplicate, drawn to scale, showing the actual dimensions of each lot to be built upon, the size and location of each building to be erected upon each lot, and such other information as may be necessary to enable the administrative officer to determine that the proposed structure and use of land will conform to the provisions of this Chapter. A record of such applications and plats shall be kept in the office of the administrative officer.
- b. Applications for building permits in connection with property located in Old and Historic Charleston Districts shall be accompanied by such plans, elevations and other information required under Article 2: Part 6, of this Chapter.

Sec. 54-907. Certificate of appropriateness.

Except as otherwise provided for herein, the administrative officer shall not issue a building permit or certificate of occupancy in connection with property development within Old and Historic Charleston Districts unless and until the requirements of Article 2: Part 6, of this Chapter have been complied with and certificate of appropriateness has been endorsed on the application.

Sec. 54-908. Certificate of occupancy.

- a. No vacant land shall be occupied or used and no structure hereafter erected, structurally altered or changed in use, until a certificate of occupancy shall have been approved by the administrative officer.
- b. No alteration or change in general line, texture, material or color of any building or structure located within Old and Historic Charleston Districts shall be undertaken until a permit therefor shall have been issued by the administrative officer.
- c. A certificate of occupancy, either for the whole or a part of a new building or for alteration of an existing building shall be applied for coincident with the application for a building permit and shall be issued within ten (10) days after the erection or alteration of such building or part shall have been completed in conformity with the provisions of this Chapter.
- d. A certificate of occupancy for a change in the use of land, or for a change in the use or the number of family units of an existing building, shall be applied for and issued before any such land shall be occupied or used, or such land or building changed, in use, and such certificate shall be issued within ten (10) days after application has been made, provided such proposed use is in conformity with the provisions of this Chapter including the off-street parking requirements of Article 3: Part 4.
- e. A like certificate shall be applied for and issued for renewing, changing or extending a non-conforming use, existing at the time of the passage of this Chapter, and such certificate shall state that the use is a legal non-conforming use.
- f. A record of all certificates of occupancy shall be kept on file in the office of the administrative officer and a copy shall be furnished on request to any person having a proprietary or tenancy interest in the building or land affected.
- g. No fee shall be charged for an original certificate of occupancy as required herein; but for each copy of an original certificate there shall be a charge of one dollar, which shall be remitted to the city treasurer by the issuing officer.

Sec. 54-909. Permit limitations; failure to commence work.

If after the issuance of a permit the operations authorized thereunder are not commenced within six (6) months after date of permit, or if after the commencement of operations the work is discontinued for a period of six (6) months, such permit shall be void, work may not again be commenced until a new permit shall have been issued as for the original work, and building materials and equipment on the ground shall be removed or stored according to the requirements of the administrative officer.

Sec. 54-910. Interpretation and purpose of chapter.

In interpreting and applying the provisions of this Chapter, they shall be held to be the minimum requirements for the promotion of health, safety, morals or general welfare. Where

this Chapter imposes greater restrictions upon the use of a building or land or upon the height, bulk or size of a building or structure or requires larger open spaces than are imposed or required by other ordinances, rules, regulations or permits, or by easements, covenants, or agreements, the provisions of this Chapter shall govern. Where any other ordinances, rules, regulations or permits, or any easements, covenants or agreements impose greater restrictions upon the use of a building or land or require larger open spaces than are required under the regulations of this Chapter, such provisions shall govern.

Secs. 54-911—54-919. Reserved.

**PART 2 BOARD OF ZONING APPEALS—ZONING AND BOARD OF ZONING
APPEALS—SITE DESIGN***

Sec. 54-920. Boards created; composition; appointment and term of members.

- a. A Board of Zoning Appeals—Zoning and Board of Zoning Appeals—Site Design are hereby established. The term "Board" when used in this article shall be construed to mean the Boards of Zoning Appeals, unless otherwise specified.
- b. The Board of Zoning Appeals—Zoning shall consist of seven (7) members and one (1) alternate who do not hold any other public office or position in the city of Charleston and are appointed by City Council. Board members shall be citizens of the City of Charleston, with the exception of the professions required by this ordinance whom may be non-citizen owners, principals, or employees of a business within the City of Charleston. Of the members appointed, one (1) shall be in real estate, one (1) an attorney, one (1) a merchant, and one (1) an engineer.
- c. The Board of Zoning Appeals—Site Design shall consist of seven (7) members and one (1) alternate who do not hold any other public office or position in the city of Charleston and are appointed by City Council. Board members shall be citizens of the City of Charleston, with the exception of the professions required by this ordinance whom may be non-citizen owners, principals, or employees of a business within the City of Charleston. Of the members appointed, one (1) shall be in real estate, one (1) an attorney, one (1) an engineer, one (1) a landscape architect and one (1) a horticulturist, forester or arborist.
- d. Each Board shall elect one of its members chairman, who shall serve for one year or until he is re-elected or his successor is elected and qualified. Each Board shall appoint a secretary who may be an officer of the governing authority or of the zoning board.
- e. The terms of the members and alternates of both boards shall be for three (3) years or until their successors are appointed as described in the Code of the City of Charleston. An appointment to fill a vacancy shall be only for the unexpired portion of the term.
- f. Alternate members, when seated, have all the powers and duties of regular members. Alternate members may always attend meetings but shall only participate in deliberations and debate, make motions and vote in the absence or voting disqualification of a regular member or the vacancy of a regular member's seat.

(Ord. No. 1999-54, § 3A, 4-27-99; Ord. No. 2013-49, §§ 3, 4, 5-14-13; Ord. No. 2024-190, § 1, 12-17-24)

***Editor's note**—Ord. No. 1999-54, § 3A, adopted Apr. 27, 1999, amended this Part 2 in its entirety, in effect repealing former Part 2, §§ 54-920—54-930, relative to board of adjustment—zoning and board of adjustment—site design, and enacting new provisions in lieu thereof as herein set out. Formerly, such provisions derived from the base zoning ordinance as amended by Ord. No. 1998-72, § 1, adopted Apr. 14, 1998.

Sec. 54-921. Rules of procedure; public notice; meetings; minutes; witnesses.

The Board shall adopt rules of procedure in accordance with the provisions of this Chapter (see Appendix C). Meetings of the Board shall be held at the call of the chairman and at such other times as the Board may determine. Public notice of all meetings of the Board shall be provided by publication in a newspaper of general circulation in the city. The chairman or, in his absence, the acting chairman, may administer oaths and compel the attendance of witnesses by subpoena. All meetings of the Board shall be open to the public. The Board shall keep minutes of its proceedings, showing the vote of each member upon each question or, if absent or failing to vote, indicating that fact, and shall keep records of its examinations and other official actions, all of which must be immediately filed in the office of the Board and must be a public record.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-922. Procedures for posting properties and application fees.

Upon the filing of an application with one of the Boards of Zoning Appeals for property within the corporate limits of the city of Charleston, the property to which such application applies shall be posted along each public thoroughfare abutting the property with a sign at least five (5) days prior to any public hearing when the application will be considered. The sign shall specify the request sought by the application and the appropriate city department to contact concerning the application. The Boards of Zoning Appeals may make recommendations to City Council of fees to be charged therefor. Any fee schedule established hereunder shall be approved by City Council.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-923. Powers of the Board of Zoning Appeals—Zoning and Board of Zoning Appeals—Site Design.

- a. The Board of Zoning Appeals—Zoning shall have the following powers:
 1. to hear and decide appeals when it is alleged that there is error in any order, requirement, decision or determination made by the administrative officer in the enforcement of the Zoning Ordinance of the City of Charleston, except the following:
 - (a) provisions of Article 3: Part 4: Off-Street Parking Requirements, relating to parking space design and maneuverability standards;
 - (b) Article 3: Part 6: Tree Protection Requirements, Part 7: Parking Lot Landscaping Requirements, and Part 8: Landscape Buffer Requirements;
 - (c) Article 3: Part 10: Vision Clearance Requirements;
 - (d) Article 6: Site Plan Review;
 - (e) Article 8: Part 3: Subdivision Design Standards, and Part 4: Required Improvements, except Section 54-824 Design Standards for New Lots, subsection c.1. relating to lot frontage requirements.

2. to permit uses by special exception subject to the term and conditions for the uses set forth for such uses in the zoning ordinance;
 3. to hear and decide appeals for variances from the requirements of the Zoning Ordinance of the City of Charleston with the exceptions described above in subsection a.1., when strict application of the provisions of the ordinance would result in unnecessary hardship as described in Section 54-924; and
- b. The Board of Zoning Appeals—Site Design shall have the following powers:
1. to hear and decide appeals to the provisions of the Zoning Ordinance cited below when it is alleged that there is error in any order, requirement, decision or determination made by the administrative officer in the enforcement of the Zoning Ordinance of the City of Charleston:
 - (a) provisions of Article 3: Part 4: Off-Street Parking Requirements, relating to parking space design and maneuverability standards;
 - (b) Article 3: Part 6: Tree Protection Requirements, Part 7: Parking Lot Landscaping Requirements, and Part 8: Landscape Buffer Requirements;
 - (c) Article 3: Part 10: Vision Clearance Requirements;
 - (d) Article 6: Site Plan Review;
 - (e) Article 8: Part 3: Subdivision Design Standards, and Part 4: Required Improvements, except Section 54-824 Design Standards for New Lots, subsection c.1. relating to lot frontage requirements.
 2. to hear and decide appeals for variances from the requirements of the Zoning Ordinance of the City as described above in subsection b.1., when strict application of the provisions of the ordinance would result in unnecessary hardship as described in Section 54-924.
- c. Notwithstanding the provisions above in subsection a.3., in cases where a project may require appeals from the zoning administrator and/or variances from both the Board of Zoning Appeals—Zoning and Board of Zoning Appeals—Site Design, the zoning administrator shall have the authority to direct all variance requests to the Board of Zoning Appeals—Zoning, where, by reason of the complexity of the project, the interrelationship of the variances, or the minor nature of the site-design request, it would be appropriate for one board to consider all variance requests.
- d. All final decisions and orders of the Board shall be in writing and be permanently filed in the office of the Board as a public record. All findings of fact and conclusions of law must be separately stated in final decisions or orders of the Board which must be delivered to parties of interest by certified mail.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-924. Requirements for granting a variance.

A variance may be granted in an individual case of unnecessary hardship if the Board makes and explains in writing the following findings:

- a. there are extraordinary and exceptional conditions pertaining to the particular piece of property;
- b. these conditions do not generally apply to other property in the vicinity;
- c. because of these conditions, the application of the ordinance to the particular piece of property would effectively prohibit or unreasonably restrict the utilization of the property; and
- d. the authorization of a variance will not be of substantial detriment to adjacent property or to the public good, and the character of the district will not be harmed by the granting of the variance.

However, an affirmative vote of two-thirds ($\frac{2}{3}$) of the Board members present and voting shall be required before a variance may be granted for a use of land, a building or a structure that is prohibited in a given district ("Use Variance") by ordinance or resolution; provided, however, that City Council may overrule the decision of the Board pursuant to S.C. Code Ann. § 6-29-800 and such other laws as may apply. For a Use Variance that has been granted by the Board, no vested right shall attach thereto and no permit shall be issued for 15 days from the date of the granting of a Use Variance by the Board to determine whether City Council intends to consider overruling such Use Variance. If the Mayor or any member of City Council delivers notice to the Zoning Administrator of intent to consider overruling a Use Variance within 15 days of the granting of a Use Variance by the Board, then the Board's decision shall be held in abeyance, no vested right shall attach to the Use Variance granted by the Board and no permit shall be issued until City Council has determined whether to overrule the Board's granting of the Use Variance. No person with a substantial interest in the Use Variance granted by the Board shall have a right to appeal such decision to City Council and may only appeal such decision to Circuit Court for errors of law pursuant to S.C. Code Ann. § 6-29-820 and § 54-930 of the Zoning Ordinance of the City of Charleston and such other provisions as may apply. Because S.C. Code Ann. § 6-29-820 and § 54-930 of the Zoning Ordinance of the City of Charleston establish the time limit for appeals of decisions of the Board, any person with a substantial interest in the granting of a Use Variance by the Board shall file an appeal with the Circuit court within 30 days after the decision of the Board is mailed and shall deliver a copy of such appeal to the City. If an appeal is filed and a timely notice of intent to consider overruling a Use Variance granted by the Board is delivered to the Zoning Administrator by the Mayor or a member of City Council in accordance with this section, such appeal shall not divest City Council of its right to consider overruling the granting of a Use Variance by the Board and City Council may proceed to hear the matter of whether to overrule the Use Variance pending appeal to Circuit Court. City Council shall consider the matter of overruling the granting of a use variance at its next regularly scheduled meeting after the decision of the Board is mailed or as soon thereafter as may be practicable. City Council may defer or continue its deliberations on the matter, but

shall make a final decision on the appeal within three (3) regularly scheduled City Council meetings after it is first considered. In the event City Council does not consider the matter at its regularly scheduled meeting after the decision of the Board is mailed, City Council shall be divested of its right to consider overruling the granting of such Use Variance by the Board. (Ord. No. 1999-54, § 3A, 4-27-99; Ord. No. 2008-94, § 1, 6-17-08)

Sec. 54-925. Variances; authority of Board to impose conditions.

In granting an exception or a variance, the Board may attach to it such conditions regarding the location, character or other features of the proposed building, structure, or use as the Board may consider advisable to protect established property values in the surrounding area, or to promote the public health, safety, or general welfare.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-926. Appeals to Boards of Zoning Appeals.

Appeals to the Boards of Zoning Appeals may be taken by any person aggrieved or by any officer, department, Board or bureau of the city. Such appeal shall be taken within a reasonable time as provided by the rules of the Board by filing with the officer from whom the appeal is taken and with the Board of Zoning Appeals a notice of appeal specifying the grounds thereof. The officer from whom the appeal is taken shall forthwith transmit to the Board all the papers constituting the record upon which the action appealed from was taken.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-927. Effect of an appeal.

An appeal stays all proceedings in furtherance of the action appealed from, unless the officer from whom the appeal is taken certifies to the Board, after the notice of appeal shall have been filed with him, that by reason of facts stated in the certificate a stay would, in his opinion, cause imminent peril to life or property. In such case proceedings shall not be stayed otherwise than by a restraining order which may be granted by the Board of Zoning Appeals or a court of record on application, on notice to the officer from whom the appeal is taken, and on due cause shown.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-928. Hearing an appeal.

The Board shall fix a reasonable time for the hearing of the appeal, or other matter referred to it, and give at least fifteen (15) days public notice of it in a newspaper of general circulation in the city, as well as due notice to the parties in interest, and decide the same within a reasonable time. At the hearing any party may appear in person or by agent or by attorney.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-929. Order of Board upon determination of appeal.

In exercising the above-mentioned powers the Board may, in conformity with the provisions of this Chapter, reverse or affirm wholly or in part, or may modify the order, requirement, decision or determination, and to that end shall have the powers of the officer from whom the appeal is taken and may issue or direct the issuance of a permit. The concurring vote of four members of the Board shall be necessary to reverse any order, requirement, decision or determination of any such administrative officer or to decide in favor of the applicant on any matter upon which it is required to pass under this chapter or to effect any variance. The board in the execution of the duties specified in this Chapter may subpoena witnesses and in case of contempt may certify the fact to the circuit court having jurisdiction.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-930. Appeal from Board of Zoning Appeals to Circuit Court.

A person who may have a substantial interest in any decision of the Board or an officer or agent of the appropriate governing authority may appeal from a decision of the Board to the circuit court in the county by filing with the clerk of court a petition in writing setting forth plainly, fully, and distinctly why the decision is contrary to law. The appeal must be filed within thirty days after the decision of the Board is mailed.

(Ord. No. 1999-54, § 3A, 4-27-99)

Sec. 54-931. Time limitations on permits authorized by Boards of Zoning Appeals and reapplication after denial.

A special exception permit or variance approved by the Board shall remain valid for two (2) years from the approval, unless extended in accordance with the provisions of Section 54-962 hereof. Parties filing appeals, special exceptions and variance requests which have been denied by the Board may not reapply for reconsideration of the same request until a period of six (6) months has lapsed. The Board may, however, defer applications to request additional information and revisions.

(Ord. No. 1999-54, § 3A, 4-27-99; Ord. No. 2000-193, § 1, 8-15-00; Ord. No. 2005-99, § 5, 6-21-05)

Secs. 54-932—54-939. Reserved.

**PART 3 PLANNING COMMISSION; CHANGES AND AMENDMENTS TO THE
ZONING ORDINANCE AND LAND DEVELOPMENT REGULATIONS***

Sec. 54-940. Planning Commission created; powers and duties.

- a. There is hereby created a commission to be known as the Planning Commission.
- b. In the discharge of its responsibilities, the Planning Commission has the power and duty to:
 1. Prepare and revise periodically plans and programs for the development and redevelopment of its area as provided for in this Chapter.
 2. Prepare and recommend for adoption to City Council as a means for implementing the plans and programs in its area:
 - (a) zoning ordinances to include zoning district maps and appropriate revisions thereof, as provided in this Chapter;
 - (b) regulations for the subdivision or development of land and appropriate revisions thereof, and to oversee the administration of the regulations that may be adopted as provided in this chapter;
 - (c) an official map and appropriate revision on it showing the exact location of existing or proposed public street, highway, and utility rights-of-way, and public building sites, together with regulations to control the erection of buildings or other structures or changes in land use within the rights-of-way, building sites, or open spaces within its political jurisdiction;
 - (d) a landscaping ordinance setting forth required planting, tree preservation, and other aesthetic considerations for land and structures;
 - (e) a capital improvements program setting forth projects required to implement plans which have been prepared and adopted, including an annual listing of priority projects for consideration by the governmental bodies responsible for implementation prior to preparation of their capital budget; and
 - (f) policies or procedures to facilitate implementation of planning elements.
 3. Approve and authorize the naming of all new streets or roads laid out within the City or changes in the street names of existing streets or roads within the City.
 4. Review and comment on the compatibility of any new street, structure, utility, square, park, or other public way, grounds, or open space or public buildings for any use, whether publicly or privately owned, with the City's comprehensive plan pursuant to the procedures in Section 54-945.

(Ord. No. 1999-54, § 3B, 4-27-99)

***Editor's note**—Ord. No. 1999-54, § 3B, adopted Apr. 27, 1999, amended this Part 3 in its entirety, in effect repealing former Part 3, §§ 54-940, 54-941, relative to planning and zoning commission; changes and amendments, and enacting new provisions in lieu thereof as herein set out. Formerly, such provisions derived from the base zoning ordinance.

Sec. 54-941. Planning Commission composition; terms; organization; meetings; procedural rules.

- a. The Planning Commission shall consist of the nine (9) members and one (1) alternate who do not hold an elected public office in the City of Charleston and are appointed by City Council. Board members shall be citizens of the City of Charleston, with the exception of the professions required by this ordinance who may be non-citizen owners, principals, or employees of a business within the City of Charleston. Of the members appointed, one (1) shall be an attorney, one (1) shall be in real estate, and one (1) shall be a representative of the development community. Members of the commission and alternates shall serve staggered terms of three (3) years or until their successors are appointed as described in the Code of the City of Charleston. A vacancy on the Planning Commission must be filled for the unexpired term in the same manner as the original appointment. City Council may remove any member of the commission for cause.
- b. The Planning Commission shall organize itself electing one of its members as chairman and one as vice-chairman whose terms must be for one year. It shall appoint a secretary who may be an officer or employee of the governing authority or of the Planning Commission.
- c. The Planning Commission shall meet at the call of the chairman and at such times as the chairman or commission may determine.
- d. The commission shall adopt rules of organizational procedure (Appendix F) and shall keep a record of its resolutions, findings, and determinations, which record must be a public record.
- e. Alternate members, when seated, have all the powers and duties of regular members. Alternate members may always attend meetings but shall only participate in Planning Commission deliberations and debate, make motions and vote in the absence or voting disqualification of a regular member or the vacancy of a regular member's seat.

(Ord. No. 1999-54, § 3B, 4-27-99; Ord. No. 2013-49, § 5, 5-14-13; Ord. No. 2024-190, § 2, 12-17-24)

Sec. 54-942. Planning Commission public hearings, notices and application fees.

- a. Prior to the holding of a public hearing by the Planning Commission on any enactment of zoning regulations or map, or amendment thereto, public notice of the hearing shall be given at least ten (10) days prior to the hearing.
- b. Upon the filing of an application for the rezoning or subdivision of property within the corporate limits of the city of Charleston, the property to which such application applies shall be posted with a sign along each public thoroughfare that abuts the property at least six (6) days prior to any public hearing when the application will be considered, and the classification of zoning sought by the application and appropriate city department to contact concerning information regarding the application shall be listed on the sign.

- c. The commission may make recommendations to the City Council on application fees. Any fee schedule established hereunder shall be approved by City Council.
(Ord. No. 1999-54, § 3B, 4-27-99)

Sec. 54-943. Procedures for changes and amendments.

- a. The City Council may from time to time on its own initiative or on petition, signed by a majority of the property owners according to the frontage in any district or portion thereof as large as one city block between two intersecting streets, amend, supplement or change the regulations, restrictions or the district boundaries herein established or subsequently established. This shall be done only after reference to and report by the Planning Commission; and after public hearing by City Council, official notice of the time and place of which shall be given in a newspaper of general circulation in the city at least fifteen (15) days prior to such hearing, except in the case of adoption or amendment of land development regulations in which case official notice of the time and place of the public hearing before City Council shall be given in a newspaper of general circulation in the city at least thirty (30) days prior to such hearing.

Provided, however, where City Council has refused a petition to amend the zoning ordinance, no application requesting an identical change shall be considered by the Planning Commission for a period of six (6) months unless initiated by City Council or recommended by the Chairman of the Planning Commission and the zoning administrator.

- b. Time limits for the Planning Commission to act. With applications to enact or amend zoning regulations or maps, the Planning Commission shall have not more than thirty (30) days from the date of the public hearing to submit its report and recommendation on the change to City Council. If the Planning Commission fails to submit a report and recommendation within the thirty days, it is deemed to have approved the change.

With applications involving subdivisions or land development plans, the Planning Commission shall have not more than sixty (60) days from the date of the receipt of subdivision plats or land development plans with all documentation required by this Chapter to act. If the Planning Commission fails to act within the sixty (60) days, it is deemed to have approved the subdivision or land development. The sixty-day time limit may be extended by mutual agreement.

- c. The Planning Commission may, upon its own initiative, propose an amendment, supplement or change in the provisions of this Chapter.
- d. The City Council shall take final action upon amendments, supplements or changes within a period of three hundred sixty-five (365) days after the filing of a petition or proposal for same with the Clerk of Council. If the City Council shall fail to take action upon such petition or proposal within such time, the petition or proposal shall be deemed to have been rejected.

- e. The Planning Commission shall not consider an identical application or request on an identical parcel of property more than twice during a period of six (6) consecutive months.

(Ord. No. 1999-54, § 3B, 4-27-99; Ord. No. 2002-20, § 1, 2-12-02; Ord. No. 2019-141, § 2, 12-19-19)

Sec. 54-944. Study of proposed changes by Planning Commission.

Unless initiated by the Planning Commission, all proposed amendments to the zoning ordinance or zone map to be pursued by the City Council shall be reviewed by the Planning Commission. The Planning Commission shall study the need and justification for the change based upon a determination of the following facts:

- a. The possible effects of the change in the ordinance or map on the character of a zone district, a particular piece of property, a neighborhood, or the community.
- b. The relationship that the proposed amendment bears to the purpose of the overall zoning program with due consideration as to whether or not the proposed change will help carry out these purposes as stated in this chapter and as expressed in future land use plans of the city.
- c. When pertaining to a zoning map change, the Planning Commission shall give specific consideration as to the map change proposed.
- d. When an applicant has twice withdrawn a petition to amend the zoning ordinance from the published agenda of the Planning Commission, without good cause as determined by the Commission, the petition shall be deemed denied by Council and reapplication must be made pursuant to Section 54-942 of this Chapter.

(Ord. No. 1999-54, § 3B, 4-27-99)

Sec. 54-945. Procedures for review of projects for compatibility with the comprehensive plan.

No new street, structure, utility, square, park, or other public way, grounds, or open space or public buildings for any use, whether publicly or privately owned, may be constructed or authorized within the city of Charleston, until the location, character, and extent of it have been submitted to the Planning Commission for review and comment as to the compatibility of the proposal with the City's comprehensive plan. In the event the Planning Commission finds the proposal to be in conflict with the comprehensive plan, the Commission shall transmit its findings and the particulars of the nonconformity to the entity proposing the facility. If the entity proposing the facility determines to go forward with the project which conflicts with the comprehensive plan, the governing or policy making body of the entity shall publicly state its intention to proceed and the reasons for the action. A copy of this finding must be sent to the City Council, the Planning Commission, and be published as a public notice in a newspaper of general circulation in the community at least thirty (30) days prior to awarding a contract or beginning construction. Telephone, sewer and gas utilities, or electric suppliers, utilities and providers, whether publicly or privately owned, whose plans

have been approved by the City or a state or federal regulatory agency, or electric suppliers, utilities and providers who are acting in accordance with a legislatively delegated right pursuant to Chapter 27 or 31 of Title 58 or Chapter 49 of Title 33 are exempt from this provision. These utilities must submit construction information to the Planning Commission.

(Ord. No. 1999-54, § 3B, 4-27-99)

Secs. 54-946—54-949. Reserved.

PART 4
PENALTIES

Sec. 54-950. Penalties.

- a. To enforce this chapter, the administrative officer is authorized to withhold building or zoning permits, or both, and issue stop orders against any work undertaken by an entity not having a proper building or zoning permit, or both. It is unlawful to construct, reconstruct, alter, demolish, change the use of or occupy any land, building, or other structure without first obtaining the appropriate permit or permit approval. No permit may be issued or approved unless the requirement of this chapter or any ordinance adopted pursuant to it are complied with. It is unlawful for other officials to issue any permit for the use of any land, building, or structure, or the construction, conversion, demolition, enlargement, movement, or structural alteration of a building or structure without the approval of the administrative officer. A violation of any ordinance adopted pursuant to the provisions of this chapter is a misdemeanor. In case a building, structure, or land is used, or is proposed to be used in violation of any ordinance adopted pursuant to this chapter, the zoning administrator or other appropriate administrative officer, municipal or county attorney, or other appropriate authority of the municipality or county or an adjacent or neighboring property owner who would be specially damaged by the violation may in addition to other remedies, institute injunction, mandamus, or other appropriate action or proceeding to prevent the unlawful erection, construction, reconstruction, alteration, conversion, maintenance, or use, or to correct or abate the violation, or to prevent the occupancy of the building, structure, or land. Each day the unlawful erection, construction, reconstruction, alteration, conversion, maintenance, or use continues is considered a separate offense.
- b. In case a building, structure, or land is or is proposed to be used in violation of an ordinance adopted pursuant to this chapter, administrative officer or other designated official may in addition to other remedies issue and serve upon a person pursuing the activity or activities a stop order requiring that entity stop all activities in violation of the Zoning Ordinance.

(Ord. No. 1999-54, § 3C, 4-27-99)

Secs. 54-951—54-959. Reserved.

PART 5 VESTED RIGHTS

Sec. 54-960. Vested rights.

The purpose of this Part 5 is to implement the provisions of S.C. Code Ann. § 6-29-1510, et seq. (Cum Supp. 2004), Vested Rights Act, so as to secure the reasonable expectation of landowners who make significant investment in site evaluation, planning, development costs, consultant fees or engineering or architectural expenses to meet land development standards for site plan approval. The purpose further includes the implementation of the South Carolina General Assembly Permit Extension Joint Resolutions of 2010 and 2013. (Ord. No. 2005-99, § 1, 6-21-05; Ord. No. 2011-27, § 1, 4-12-2011; Ord. No. 2014-47, § 1, 4-8-14)

Sec. 54-961. Definitions.

For purposes of Part 5, the following terms shall be defined as hereafter set forth.

1. Approved or approval means a final action by the local governing body or an exhaustion of all administrative remedies that results in the authorization of a site specific development plan.
2. Building permit means a written authorization issued by the building official that authorizes the construction or renovation of a building or structure at a specified location.
3. Landowner means an owner of a legal or equitable interest in real property including the heirs, devisees, successors, assigns, and personal representatives of the owner. Landowner includes a person holding a valid option to purchase real property pursuant to a contract with the owner to act as his agent or representative for purposes of submitting a proposed site specific development plan pursuant to this part.
4. Local governing body means:
 - (a) City Council; or
 - (b) A body or board authorized by statute or by City Council to make land use decisions, to include the Planning Commission, Boards of Zoning Appeals, the Board of Architectural Review, the Commercial Corridor Design Review Board, the Technical Review Committee and such staff as are authorized to approve plans pursuant to the provisions of this Chapter.
5. Person means an individual, corporation, business or land trust, partnership, association, two or more persons having a joint or common interest, or any legal entity as defined by South Carolina laws.
6. Real property or property means all real property that is subject to the land use and development ordinances or regulations of the city, and includes the earth, water and air, above, below, or on the surface, and includes improvements or structures customarily regarded as a part of real property.

7. Site specific development plan means a development plan submitted to a local governing body by a landowner describing with reasonable certainty the types and density or intensity of uses for a specific property or properties. Site specific development plans include a planned unit development; a preliminary or final subdivision plat; a conceptual plan submitted to the Board of Architectural Review or Design Review Board; a development plan submitted to the Technical Review Committee for first review; a preliminary or general development plan submitted to staff authorized to grant approval pursuant to the provisions of this Chapter that qualify for either preliminary or final approval; a variance; a conditional use or special exception permit plan.
 8. Vested right means the right to undertake and complete the development of property under the terms and conditions of a site specific development plan.
 9. Permit Extension Joint Resolutions of 2010 and 2013 refers to Act Number 297 which was ratified by the 118th Session, 2009-2010 South Carolina General Assembly on May 13, 2010, and signed by the Governor on May 19, 2010, A297, R215, H4445; and Act Number 112 which was ratified by the 120th Session, 2013-2014 South Carolina General Assembly on June 19, 2013 and signed by the Governor on June 20, 2013, A112, R123, H3774.
- (Ord. No. 2005-99, § 1, 6-21-05; Ord. No. 2011-27, § 2, 4-12-11; Ord. No. 2014-47, §§ 2, 3, 4-8-14; Ord. No. 2017-130, § 1, 10-10-2017)

Sec. 54-962. Term.

- a. Vesting periods.
 1. The approval of a site specific development plan results in a two-year vested right in the approved site specific development plan from the date of approval by the local governing body.
 2. Within the vesting period, the property owner may make application and be granted a building permit from the City's Building Department in accordance with all other applicable City regulations.
- b. Extensions of vesting periods and limitations thereto.
 1. Subsequent modifications or amendments to an approved site specific development plan shall not re-establish or extend the initial two-year vesting period if the underlying land development ordinances or regulations have been amended in a manner that would prohibit the execution of the site specific development plan.
 2. A site specific development plan is eligible for at least five annual extensions of the vested right, which must be approved unless an amendment to this Chapter has been adopted that prohibits approval.
 3. Any change or amendment to this Chapter that would no longer allow execution of the site specific development plan constitutes a prohibition of the approval of the extension.

4. The property owner must submit a written request for the extension to the local governing body that approved the site specific development plan, prior to the expiration of the initial two-year vesting period and each successive annual vesting period; failure to make a timely request shall void the request.

(Ord. No. 2005-99, § 1, 6-21-05; Ord. No. 2021-163, § 1, 11-23-21)

Sec. 54-963. Variances, special exceptions.

A site specific development plan for which a variance or special exception is required obtains no vested rights until the later of: (1) obtaining the variance or special exception; or (2) approval from the applicable local governing body.

(Ord. No. 2005-99, § 1, 6-21-05)

Sec. 54-964. Amendment.

A site specific development plan may be amended upon application of the landowner and the approval of the applicable local governing body utilizing procedures then applicable for approval of a site specific development plan.

(Ord. No. 2005-99, § 1, 6-21-05)

Sec. 54-965. Revocation.

A vested right to a site specific development plan is subject to revocation by the applicable local governing body upon its determination, after notice and public hearing, that there was a material misrepresentation by the landowner or substantial noncompliance with the terms and conditions of the original or amended approval.

(Ord. No. 2005-99, § 1, 6-21-05)

Sec. 54-966. Building permits.

A validly issued building permit does not expire or is not revoked upon expiration of a vested right, except for public safety reasons or as prescribed by the applicable building code.

(Ord. No. 2005-99, § 1, 6-21-05)

Sec. 54-967. Later enacted laws.

A vested site specific development plan is subject to later enacted federal, state, or local laws adopted to protect public health, safety, and welfare including, but not limited to, building, fire, plumbing, electrical, and mechanical codes and nonconforming structure and use regulations which do not provide for the grandfathering of the vested right. The issuance of a building permit vests the specific construction project authorized by the building permit to the building, fire, plumbing, electrical, and mechanical codes in force at the time of the issuance of the building permit.

A vested site specific development plan is subject to later local governmental overlay zoning that imposes site plan-related requirements but does not affect allowable types, height as it affects density or intensity of uses, or density or intensity of uses.

A change in the zoning district designation or land use regulations made subsequent to vesting that affect real property does not operate to affect, prevent, or delay development of real property under a vested site specific development plan, without consent of the landowner.

If real property having a vested site specific development plan is annexed, City Council shall determine, after notice and public hearing in which the landowner is allowed to present evidence, if the vested right is effective after the annexation.

(Ord. No. 2005-99, § 1, 6-21-05)

Sec. 54-968. Waiver not permitted.

A local governing body may not require a landowner to waive his vested rights as a condition of approval of a site specific development plan.

(Ord. No. 2005-99, § 1, 6-21-05)

Sec. 54-969. Permit Extension Joint Resolutions of 2010 and 2013.

Pursuant to the Permit Extension Joint Resolutions of 2010 and 2013, the running of the period of a vested right is suspended during the period beginning January 1, 2008, and ending December 31, 2016. The Joint Resolution of 2010 is retroactive to January 1, 2008, so that the time period of a vested right that remained after December 31, 2007, shall remain after December 31, 2016, and any obligation or opportunity to extend a vested right, pursuant to Section 54-962, that may have been available between the period beginning January 1, 2008, and ending December 31, 2016, shall be available after December 31, 2016.

(Ord. No. 2011-27, § 3, 4-12-11; Ord. No. 2014-47, § 4, 4-8-14)

PART 6 TEMPORARY MORATORIUM - CHURCH CREEK DRAINAGE BASIN***Sec. 54-970. Temporary Moratorium.**

Findings: City Council finds that an area of the City, hereafter defined as the Church Creek Drainage Basin, is comprised of nearly 5,000 acres that have very limited points of discharge for stormwater and a broad defined floodplain. Because of the topography, high tides and significant rain events, homes and other developed properties in the Basin have experienced severe and more frequent flooding during rainstorms. Continued development within certain portion of Basin could further exacerbate and impact the potential for flooding and property damage and compromise public safety. Notwithstanding ongoing efforts by the City to study and model the drainage conditions in the Basin and to update and implement regulations to alleviate flooding conditions there, it is evident that, absent a thorough evaluation of the drainage patterns in portions of the Basin, of the development and infrastructure in place, and of development that will reasonably occur in these areas in the immediate future, development in the Basin, both existing and planned, will be threatened, as well as the quality of life of those who live and work there now and those who will in the future. The public health and safety and the economic well-being of the City and of its residents who live, work and shop in the affected area demand that measures be taken to temporarily limit further development in the portions of the Basin located in the 100-year floodplain for a reasonable period of time to enable the City to update the drainage study of these portions of the Basin and implement the recommendations thereof.

A. Moratorium.

- (1) Subject to the exceptions as set forth in subsection B hereof, no application for a permit from the Departments of Planning and Preservation and Public Service for new construction (except for a building permit for a single family dwelling on an existing lot of record as of the date of ratification of the ordinance from which this part derives) shall be processed or granted during the duration set forth in subsection E hereof, for any property located in the 100-year floodplain within the boundaries of the Church Creek Drainage Basin, as the same is set forth on a GIS map dated _____ entitled Church Creek Area Drainage Basin 100-year floodplain, attached hereto and made a part hereof a duplicate original of which is on file in the Department of Planning and Preservation.

B. Exceptions: Excepted from the provisions of subsection A (1) are:

- (1) Projects subject to Technical Review Committee (herein TRC) review that, as of February 28, 20017, had TRC approval.

***Editor's note**—Ord. No. 2017-060, § 1, adopted May 30, 2017, repealed former Part 6, §§ 54-970—59-974, in its entirety and enacted new provisions as herein set out. Former Part 6 pertained to a temporary moratorium on "late night bar" permits in the commercial corridors of King, East Bay and Market Streets and derived from Ord. No. 2014-136, § 1, adopted Oct. 14, 2014.

- (2) Projects not subject to TRC review that, as of February 28, 2017, had building permit approval.
 - (3) Construction on a lot of record not subject to TRC review and where, as of February 28, 2017, the system for managing the stormwater from the lot has received final approval from the city.
 - (4) Applications to adjust lot lines, or to subdivide acreage, except for final residential development plats.
 - (5) Notwithstanding the above, an applicant may proceed at his own risk with securing and acting on development permits and approvals, except for permits to pave or construct buildings, during the duration set forth in Section E; provided however, all such applicants and any permits acquired during this time shall be subject to applicable stormwater regulations the City develops from the information received by the study of the drainage basin commissioned by the City.
- C. Alteration of District Boundary: Nothing herein shall be construed to limit or abridge the right of an applicant to seek a review and potential alteration of a property being located within the 100-year floodplain of the Church Creek Drainage Basin upon a showing of topographic data that supports the alteration. Any such alterations shall require the approval of City Council, after recommendation of the Director of the Department of Public Service.
- D. Status Reports: For the duration set forth in Section E, the Director of Public Service, or her designee, shall provide monthly status reports to City Council and other interested parties on the progress of the study and such recommendations as may be available from the City's consultant, regarding stormwater management in the Church Creek Drainage Basin.
- E. Duration: The provisions of this Part 5 of Article 9 of the Zoning Ordinance shall expire nine (9) months from February 28, 2017.
- (Ord. No. 2017-060, § 1, 5-30-2017; Ord. No. 2025-024, § 1, 2-25-25)

Editor's note—Ord. No. 2025-024, § 1, adopted February 25, 2025, set out provisions intended for use as § 59-970. For purposes of classification, to preserve the style of this Code, and at the editor's discretion, these provisions have been included as § 54-970.

ARTICLE 10
AGRICULTURAL ZONING DISTRICTS

Part 1
AG-8 and AG-S Agricultural Districts

- Sec. 54-1001. Purpose and intent.
- Sec. 54-1002. Use regulations.
- Sec. 54-1003. Height, area and setback regulations.
- Sec. 54-1004. Other regulations.
- Sec. 54-1005. Table of permitted principal uses.
- Sec. 54-1006. Special exception uses.
- Sec. 54-1007. Conditional uses.
- Sec. 54-1008. Accessory agricultural uses.
- Sec. 54-1009. Accessory dwelling units.
- Sec. 54-1010. Waterfront development standards.
- Secs. 54-1011—54-1019. Reserved.

Part 2
Special Events Use Regulations for Agricultural Districts

- Sec. 54-1020. Purpose.
- Sec. 54-1021. "Special Events" defined.
- Sec. 54-1022. Private special events.
- Sec. 54-1023. Temporary special events.
- Sec. 54-1024. Outdoor special events (principal uses and temporary special events).
- Sec. 54-1025. Indoor special events.
- Sec. 54-1026. Zoning permit.
- Sec. 54-1027. Lapse of approval.
- Secs. 54-1028, 54-1029. Reserved.

Part 3
Conservation Subdivisions in Agricultural Zoning Districts

- Sec. 54-1030. Purpose and intent.
- Sec. 54-1031. Definitions.
- Sec. 54-1032. Applicability.
- Sec. 54-1033. Procedures.
- Sec. 54-1034. Process.
- Sec. 54-1035. Density/intensity and dimensional standards.
- Sec. 54-1036. Waterfront lot standards.
- Sec. 54-1037. Conservation area standards.
- Sec. 54-1038. Conservation subdivision standards.
- Sec. 54-1039. Accessory dwelling units within a conservation subdivision.
- Secs. 54-1040—54-1049. Reserved.

Part 4
Rural Road Standards for Agricultural Zoning Districts

- Sec. 54-1050. Abbreviations.
- Sec. 54-1051. Definitions.
- Sec. 54-1052. Introduction.

CHARLESTON ZONING ORDINANCE

- Sec. 54-1053. Objective.
- Sec. 54-1054. Property access.
- Sec. 54-1055. Landowner/developer responsibilities.
- Sec. 54-1056. Rural road classifications.
- Sec. 54-1057. Applying road classifications.
- Sec. 54-1058. Private road standards.
- Sec. 54-1059. Public road standards.
- Sec. 54-1060. Design and construction requirements.

PART 1
AG-8 AND AG-S AGRICULTURAL DISTRICTS

Sec. 54-1001. Purpose and intent.

The AG-8, Agricultural district is intended for rural agriculture areas of the City of Charleston.

The AG-S, Agricultural-Special district is intended for rural agricultural areas where light industrial uses that comply with the conditions listed herein are also appropriate.

Except as modified in this Article, the regulations of Chapter 54 shall apply.
 (Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1002. Use regulations.

Table 10.2 Table of Permitted Principal Uses in Section 54-1005 lists the principal uses that are permitted in the AG-8 and AG-S, Agricultural zoning districts. Accessory uses are allowed in the AG-8 and AG-S base zoning districts in accordance with Section 54-1008. Regulations for special event uses in the Agricultural zoning districts are under Article 10, Part 2.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1003. Height, area and setback regulations.

All residential and nonresidential development in the AG-8 and AG-S districts shall be subject to the following density, intensity and dimensional standards:

Table 10.1, AG-8 and AG-S Density/Intensity and Dimensional Standards

	<i>AG-8</i>	<i>AG-S</i>
MAXIMUM DENSITY	1 dwelling unit per 8 acres of high ground	1 dwelling unit per 8 acres of high ground
MINIMUM LOT AREA	1 acre	1 acre
MINIMUM LOT WIDTH	135 feet	135 feet
MINIMUM SETBACKS		
Front/Street Side	50 feet	50 feet
Interior Side	15 feet	15 feet
Rear	30 feet	30 feet
OCRM Critical Line	50 feet	50 feet
MAX. BUILDING LOT OCCUPANCY	30% of lot	30% of lot

	AG-8	AG-S
MAXIMUM HEIGHT (measured from the base flood elevation, or ground level if the structure is not within a Flood Hazard Area, and: 1) the average height level between the eaves and ridge line of a gable, hip or gambrel roof; or 2) the highest point of a mansard roof; or 3) the highest point of the coping of a flat roof)	35 feet	35 feet

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1004. Other regulations.

Development in the AG-8 and AG-S districts shall comply with all other applicable regulations of this Chapter, including off street parking, landscaping, buffers, tree protection and subdivision regulations, except as amended within Article 10. All waterfront property shall be subject to the provisions of the Waterfront Development Standards contained in Section 54-1009. Existing lots of record on the waterfront shall be subject to the Critical Line Buffer requirements in Section 54-347.1.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1005. Table of permitted principal uses.

Permitted principal uses for the AG-8 and AG-S base zoning districts shall be as set forth in Table 10.2, and as modified by special provisions, exceptions and conditions contained herein. Principal use means the primary or predominant use or uses of a lot or parcel, except that home occupations are only allowed pursuant to the requirements specified in section 54-211. Any use listed in this Chapter that is not listed on this Table 10.2 is expressly prohibited.

a. Symbols used in the table are as follows:

1. The letter "A" means the indicated use is permitted by right in the indicated district;
2. The letter "S" means the indicated use is permitted in the district, subject to the granting of a special exception by the Board of Zoning Appeals—Zoning, Section 54-1006;
3. The letter "C" means the indicated use is permitted in the indicated district as a conditional use, subject to a finding by the zoning administrator that the use satisfies specific conditions listed in Section 54-1007.

- b. Any use not permitted in a district is expressly prohibited.
- c. The zoning administrator may utilize the Standard Industrial Classification Manual to determine the appropriate classification of a land use.

TABLE 10.2 TABLE OF PERMITTED PRINCIPAL USES		
<i>Principal Uses</i>	<i>AG-8</i>	<i>AG-S</i>
AGRICULTURAL USES		
ANIMAL PRODUCTION		
Animal Aquaculture	A	A
Apiculture (Bee Keeping)	A	A
Horse or other animal production	A	A
Concentrated animal feeding operations and commercial feed lots	S	S
CROP PRODUCTION		
Greenhouse production or food crops grown under cover	A	A
Horticultural production or commercial nursery operations - retail sales shall not comprise more than 25 percent of gross sales	A	A
Hydroponics	A	A
Crop production	A	A
Wineries, agricultural processing facility for producing wine or wine related spirits. Retail sales and tasting facilities of wine and related promotional items and winery tours may be permitted as part of the winery.	C	C
FORESTRY AND LOGGING		
Bona fide forestry operations	A	A
Lumber mills, planing, or saw mills, including chipping or mulching	A	A
STABLE		
Stable, commercial	A	A
Stable, private	A	A
SUPPORT ACTIVITIES FOR AGRICULTURAL USES		
Agricultural processing	C	C
Agricultural sales or services	A	A
RESIDENTIAL		
Congregate living for the elderly. A residential facility providing 24-hour supervision and assisted living for no more than 15 elderly residents (age 60 or older), not needing regular medical attention.	S	S
Dwelling group	C	C
Farm labor housing (up to 10 residents)	C	C
Farm labor housing (dormitory) (more than 10 residents)	S	S
Child caring institution (more than 20 children)	S	S
Group care home, residential (up to 20 children)	S	S

TABLE 10.2 TABLE OF PERMITTED PRINCIPAL USES		
<i>Principal Uses</i>	<i>AG-8</i>	<i>AG-S</i>
Group residential to include the residential use of a site, for occupancy by groups of more than four persons not defined as a family, such as fraternity or sorority houses, dormitories, or residence halls. This term does not include rooming or boarding houses.	S	S
Manufactured housing unit, new	A	A
Manufactured housing unit, replacement	A	A
Retirement housing to include the use of a site for one or more dwelling units designed for independent living and marketed specifically for the elderly, persons with physical disabilities or both.	S	S
Retirement housing, limited (up to 10 residents)	S	S
Single-family detached	A	A
Affordable dwelling units	C	C
Single-family detached/manufactured housing unit (joint) or two manufactured housing units (joint)	A	A
CIVIC/INSTITUTIONAL		
COURTS AND PUBLIC SAFETY		
Court of law	A	A
Safety services, to include emergency medical or ambulance service, fire protection, or police protection	A	A
DAY CARE SERVICES		
Day care facilities, including family day care home, group day care home and care center	C	C
Family day care home	A	A
DEATH CARE SERVICES		
Cemeteries or crematories	A	A
EDUCATIONAL SERVICES		
Pre-school or educational nursery	C	C
School, primary	S	S
School, secondary	S	S
College or university facility	S	S
Business or trade school	S	S
Personal improvement education, including fine arts schools or automobile driving schools	S	S
MUSEUMS, HISTORICAL SITES AND SIMILAR INSTITUTIONS		
Historical sites (open to the public)	C	C
Libraries or archives	A	A
Nature exhibition	C	C
Botanical gardens	A	A

TABLE 10.2 TABLE OF PERMITTED PRINCIPAL USES		
<i>Principal Uses</i>	<i>AG-8</i>	<i>AG-S</i>
Zoos	S	S
POSTAL SERVICE		
Postal service, United States	C	C
RECREATION AND ENTERTAINMENT		
Community recreation including recreation centers	A	A
Fishing or hunting guide service (commercial)	A	A
Fishing or hunting lodge (commercial)	A	A
Golf courses or country clubs	C	C
Parks and recreation	C	C
Recreation and entertainment, outdoor, including amusement parks, fairgrounds, miniature golf courses, race or go-cart tracks, or sports arenas	C	C
Golf driving ranges	S	S
Outdoor shooting ranges	C	C
Recreation or vacation camps	C	C
RELIGIOUS, CIVIC, PROFESSIONAL AND SIMILAR ORGANIZATIONS		
Social or civic organizations, including youth organizations, sororities, or fraternities	S	S
Religious assembly	C	C
Social club or lodge	S	S
UTILITIES AND WASTE-RELATED USES		
Utility substations	C	C
Utility services, other utility services to include facilities and structures that are necessary for the transmission, and/or distribution of utilities to support principal development, such as electrical and telephone switching facilities, pumping stations, sewage collection, water storage tanks, sewage collector or trunk lines, water mains, and similar facilities.	A	A
COMMERCIAL		
ACCOMMODATIONS		
Bed and breakfast inns	C	C
RV (recreational vehicle) parks or campgrounds	S	S
ANIMAL SERVICES		
Kennel. A facility that provides boarding for three or more dogs, cats, or other household pets for a fee, and may include grooming, breeding, training, or selling of animals.	A	A
Small animal boarding to include establishments primarily engaged in the boarding of household pets within an enclosed building.	A	A
Veterinary services	A	A
FOOD SERVICES AND DRINKING PLACES		

TABLE 10.2 TABLE OF PERMITTED PRINCIPAL USES		
<i>Principal Uses</i>	<i>AG-8</i>	<i>AG-S</i>
Catering service	S	S
INFORMATION INDUSTRIES		
Communication towers 6.4.5	C	C
RETAIL OR PERSONAL SERVICES		
Hair, nail, or skin care services, including barber shops or beauty salons 6.4.3	C	C
Landscaping and horticultural services to commercial, industrial, or institutional buildings, and residences	C	C
VEHICLE AND WATERCRAFT DOCKS AND BOATRAMPs		
Private boat ramps	C	C
Private dock	A	A
Community dock	S	S
WHOLESALE SALES		
Flower, nursery stock or florists' supplies wholesalers	A	A
MANUFACTURING AND PRODUCTION		
Clay or related products manufacturing	C	C
Furniture, cabinets or related products manufacturing	C	C
Toy or artwork manufacturing	C	C
Wood products manufacturing	C	C
Other miscellaneous manufacturing and production	C	C
RECYCLING SERVICES		
Recycling collection, drop-off	C	C
Concrete/asphalt recycling facility		C
RESOURCE EXTRACTION / MINING		
Resource extraction /mining, including borrow pits, mining, oil or gas extraction, quarries, or sand or gravel operations	S	S
TRANSPORTATION		
Sightseeing transportation, land	S	S

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1006. Special exception uses.

Uses designated in Table 10.2 Table of Permitted Principal Uses as being allowed with the approval of a special exception, are permitted, subject to the approval of the Board of Zoning Appeals—Zoning, where the Board finds that requirements listed below for such uses are met.

Application Requirements. All applications for a special exception shall include a site plan drawn to an engineer's scale showing the property dimensions, dimensions and locations of existing and proposed structures and improvements, parking areas, grand trees,

wetlands (properties containing DHEC-OCRM Critical Line areas must contain an up to date DHEC-OCRM signature on the site plan or plat), holding basins and buffers when applicable. One 24 × 36 copy and three (3) reduced 11 × 17 copies shall be submitted.

a. **Approval criteria.**

1. Special Exceptions for the AG-8 and AG-S Districts may be approved only if the Board of Zoning Appeals Zoning finds that the proposed use:
 - (a) Is consistent with the character of the underlying zoning district "Purpose and Intent";
 - (b) Is compatible with existing uses in the vicinity and will not adversely affect the general welfare or character of the immediate community;
 - (c) Adequate provision is made for such items as: setbacks, buffering (including fences and/or landscaping) to protect adjacent properties from the possible adverse influence of the proposed use, such as noise, vibration, dust, glare, odor, traffic congestion and similar factors;
 - (d) Where applicable, will be developed in a way that will preserve and incorporate any important natural features;
 - (e) Complies with all applicable rules, regulations, laws and standards of this Chapter, including but not limited to any use conditions listed below, zoning district standards, or TRC Approval requirements of this Chapter; and
 - (f) Vehicular traffic and pedestrian movement on adjacent roads shall not be hindered or endangered.
2. In granting a Special Exception, the Board of Zoning Appeals Zoning may attach to it such conditions regarding the location, character, or other features of the proposed building or structure as the Board may consider advisable to protect established property values in the surrounding area or to promote the public health, safety, or general welfare.

b. **Concentrated animal feeding operations.** Concentrated animal feeding operations and commercial feed lots consisting of a confined area or facility within which the property is not grazed or cropped annually, and which is used and maintained for the purposes of engaging in the business of the reception and feeding of: more than 50 beef or dairy cattle; more than 50 horses; more than 150 hogs, sheep or goats; more than 1,000 or more birds, such as turkeys, chickens, ducks or geese; or more than 1,000 small animals, such as guinea pigs, rabbits, and minks.

c. **Farm labor housing (more than 10 residents).** A building or structure which is designed or constructed as a place of residence for more than 10 transient farm workers that satisfies the following requirements.

1. Such use shall be set back 100 feet from road rights-of-way and property lines bordering undeveloped parcels. A minimum 200-foot setback shall be required from property lines abutting developed parcels.

2. A minimum 50-foot Type F Buffer shall be maintained and planted within the setback area along all interior lot lines.
 3. For farm labor housing that is not dormitory style, the minimum lot area for such use as a use permitted by right shall be five acres. Such use shall be allowed as a Special Exception on parcels under five acres in area.
 4. Farm labor housing shall be used on a seasonal basis only, not as year-round housing.
- d. **Group day care home, residential.** Shall satisfy the definition in Section 54-120, except that a group day care home approved as a special exception may include up to 20 children.
- e. **Retirement Housing, Limited.** The use of an existing dwelling unit for independent living and marketed specifically for the elderly, persons with physical disabilities or both, with ten or fewer residents.

Small site retirement housing shall be subject to the following standards:

1. Such use shall be allowed only if reviewed and approved as a special exception in accordance with the procedures of this Article.
 2. Only existing single family dwelling units may be used for such facilities.
 3. No more than ten residents shall be allowed within such facility.
 4. Medical services shall not be permitted on the premises.
 5. Small site retirement housing will not include programs or treatment for individuals suffering from mental illness, drug addiction or alcoholism.
 6. Facilities shall comply with all applicable state regulations.
- f. **Golf driving ranges.** Any structure established in connection with such uses shall have a setback of not less than 100 feet from any property in an agricultural, residential or office zoning district, except where such property line abuts a street, in which case the front setback established for the district shall apply.
- g. **Social or civic organization.** An establishment providing meeting, recreational, or social facilities for a nonprofit association, primarily for use by members and guests of youth organizations, fraternal organizations, and other similar groups. This use does not include any type of residential facility, such as fraternity or sorority houses.
- h. **Social club or lodge.** A building, structure, or grounds, or portion thereof, which is owned by or leased to private organizations, social clubs, or non-profit associations for meeting, recreational, or social purposes. The use of such premises is restricted to the members of these organizations and their guests.

- i. **Recreational vehicle parks.** Recreational vehicle parks for highway vehicular, portable structures designed as temporary dwellings for travel, recreational, and vacation uses. The term includes camping trailer, motor home, travel trailer, and truck campers; the term does not include manufactured housing units.

Recreational Vehicle Parks shall be subject to the following standards:

1. **Location and Access.** Recreational vehicle parks shall be located in a public park or with direct access to a state or federal numbered highway or an approved county road. No entrance to or exit from a recreational vehicle park shall be through an agricultural, residential or office zoning district.
2. **Site Conditions.** Condition of soil, groundwater level, drainage and topography shall not create hazards to the property or the health or safety of the occupants. No portion of the site that is subject to unpredictable and/or sudden flooding, subsidence, or erosion shall be used for any purpose that would expose persons or property to hazards.
3. **Spaces for Occupancy; Uses Permitted; Lengths of Stay.** Spaces in recreational vehicle parks may be used by recreation vehicles, as defined herein. Spaces shall be rented by the day, week, or month only, and no recreational vehicle shall remain in the same trailer park for more than six months. The recreational vehicle park owner shall be responsible for maintaining records of all recreational vehicles and their lengths of stay and shall make these records available to the Planning Director for review upon request.
4. **Site Planning and Required Improvements.** Site Planning and Improvements shall provide for:
 - (a) Facilities and amenities appropriate to the needs of the occupants;
 - (b) Safe, comfortable, convenient and sanitary use by occupants under all weather conditions to be expected during periods of occupancy; and
 - (c) Protection of occupants from adverse environmental influences, and where appropriate, protection of the neighborhood from potential adverse influences within the recreational vehicle park.
5. **Relation of Spaces to Public Streets.** No space shall be located so that any part intended for occupancy for sleeping purposes shall be within 50 feet of the right-of-way line of any major thoroughfare or collector street, or within 25 feet of the right-of-way line of any other street.

- j. **Catering service.**

1. A structure or structures used for catering services shall have a maximum floor area of 2,000 square feet.
2. On-site retail sales are prohibited.
3. All catering service uses shall comply with the TRC Approval requirements of this Chapter.

- k. **Community dock.** A community dock(s) is any docking facility that provides access for more than four families (greater than or equal to 5 watercraft slips and less than or equal to 10 watercraft slips) and is not a marina. All community docks shall be considered a water-dependent use.

Community dock(s) shall be subject to the following standards:

1. All proposed community docks shall comply with all applicable regulatory requirements of State and Federal agencies including but not limited to South Carolina Department of Health and Environmental Control (SCDHEC) and U.S. Army Corps of Engineers;
2. All proposed community docks that provide access for more than four families (greater than or equal to five watercraft slips and less than or equal to ten watercraft slips) shall require review and approval in accordance with the special exception procedures of this Article;
3. All proposed community docks must have a minimum of 75 feet of lot frontage at the marsh edge (OCRM Critical Line) and a minimum of 75 feet between its extended property lines at the location in the waterbody of the proposed dock;
4. No leasing or other transfer of space to individuals who do not reside in the residential community or other commercial uses are allowed at community docks;
5. Project proposals shall include facilities for the proper handling of litter, waste, refuse and petroleum products in accordance with SCDHEC regulations;
6. A boat ramp may be allowed at a community dock subject to section 54-1007.n and
7. Approval of this particular use shall not relieve the recipient (use) of responsibility for complying with all other applicable requirements of any other local, county, state or federal agency. In addition, approval by the City does not guarantee nor recommend approval from any other legal entity or governmental agency.

l. **Resource extraction.**

1. Applications. All uses involving resource extraction shall complete the TRC Approval process and obtain a Zoning Permit. Prior to TRC Approval, the applicant shall receive approval or written documentation of exemption from the South Carolina Department of Health and Environmental Control (SCDHEC).
2. Special Exceptions. Resource extraction uses that do not meet the conditions below shall comply with the Special Exception procedures of this section and all requirements of sub-section a. Applications, above, shall apply. The applicant shall receive Special Exception approval and approval from

SCDHEC, prior to TRC Approval. The Board of Zoning Appeals Zoning may, on a case-by-case basis, also require conditions of approval, including but not limited to, requiring that the excavation area be screened and that a drainage plan be submitted and approved for the restoration of the site when excavation has been completed.

3. Special Exception Exemptions for Bona Fide Agricultural Uses. Bona fide agricultural uses are defined as follows: Allowed primary uses on real property to raise, harvest or store crops, feed, breed or manage livestock, or to produce plants, trees, fowl or animals useful for human consumption, including the preparation of the products raised thereon for human consumption and disposed of by marketing or other means and which the subject property receives agricultural preferential assessment by the County Assessor's office. Such uses include agriculture, grazing, horticulture, forestry, dairying and mariculture. Uses that do not qualify as bona fide agricultural uses include recreation, hunting clubs, fishing clubs, vacant land (land lying dormant), and any other similar uses.

Excavation or grading activities solely for residential use, recreational use, or bona fide agricultural use shall be exempt from the special exception procedures of this Article if the use complies with all of the following conditions:

- (a) The resource extraction operation shall be limited to one year;
 - (b) The resource extraction operation shall not be located within 50 feet of any property boundary and/or within 250 feet of any building intended for human occupancy existing at the time of permit application;
 - (c) The resource extraction operation shall be two acres or less, provided that the total accumulated area(s) dedicated to resource extraction uses on a parcel is less than five acres. The Special Exception procedures of this Section shall apply if the total accumulated resource extraction area is greater than five acres; and
 - (d) No more than one resource extraction use shall be permitted on the same property within one year from the date of Zoning Permit approval for a previous resource extraction use.
4. Plat Alternative for Bona Fide Agricultural Uses. The zoning administrator may waive the requirement that an approved and recorded plat of the subject property be submitted as part of a resource extraction application for a bona fide agricultural use when the proposed use complies with all of the conditions of sub-section C, above, and a scaled survey, scaled aerial photograph, or print of equal quality is submitted.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1007. Conditional uses.

Uses designated in Table 10.2 Table of Permitted Principal Uses as being allowed as a conditional use, are permitted, subject to the approval of the zoning administrator, where the zoning administrator finds that requirements listed below for such uses are met.

a. Wineries.

1. The winery use shall be limited to an agricultural processing facility used for the commercial purpose of processing grapes, other fruit products or vegetables to produce wine or wine related spirits, excluding beer and liquor. Processing includes wholesale sales, crushing, fermenting, blending, aging, storage, bottling, administrative office functions for the winery and warehousing. Retail sales and tasting facilities of wine and related promotional items and winery tours may be permitted as part of the winery operations.
2. All winery uses shall comply with the requirements of this Chapter.
3. Special Exception procedures in section 54-1006 shall apply for parcel(s) totaling less than five (5) acres in size.
4. Prior to site plan approval the applicant shall provide a copy of an approved permit from the State of South Carolina Department of Revenue, Alcohol Beverage Licensing. All winery uses shall also comply with applicable agency requirements such as SCDHEC requirements.
5. The following uses and activities are permitted at a winery after completion of the Site Plan Review process:
 - (a) On-premises sale of wine and wine consumption (tasting room and accessory retail limited to 1,500 square feet, days and hours of operation limited to Monday thru Saturday from 10:00 a.m. to 7:00 p.m.);
 - (b) Daily tours limited to Monday thru Saturday from 10:00 a.m. to 7:00 p.m.; and
 - (c) Special events, including festivals (limited to five (5) special event permits per calendar year, no more than ten (10) consecutive days). Special events permits shall be issued only if the requirements of Article 10, Part 2, are met and adequate parking and sanitary facilities are provided to serve the proposed use or activity in accordance with the requirements of this Ordinance.

b. Reserved.**c. Stable, commercial.** Commercial boarding or riding stables may be established as primary or accessory uses provided they meet all applicable standards of this Chapter and the following requirements.

1. The following requirements shall apply to commercial stables as defined in this section:
 - (a) A minimum lot area of five acres shall be required; otherwise this use shall comply with the Special Exception procedures contained in section 54-1006.

- (b) Riding areas and trails shall be limited to the subject parcel upon which the stable is located unless documentation is provided granting access onto other lands. Such documentation shall be provided through written and recorded documents.

d. **Agricultural processing uses.** Animal production and agricultural processing uses shall be subject to the following standards.

1. In order to be permitted by right, such uses must be located on a lot with a minimum area of five acres. On lots with an area of under five acres, such uses are allowed only if reviewed and approved in accordance with the Special Exception procedures in Section 54-1006.
2. The use shall be set back at least 100 feet from road rights-of-way and property lines bordering undeveloped parcels. A minimum 200-foot setback shall be required from property lines abutting developed parcels.
3. A minimum 50-foot Type F Buffer shall be maintained and planted within the setback area along all interior property lines.
4. Any outdoor lighting shall be oriented and arranged to minimize spillover lighting and glare on surrounding roads and properties.

e. **Dwelling group.**

Defined: Two or more principal structures, each a single dwelling unit (not including manufactured housing units), that are located on the same lot. This definition does not refer to accessory dwellings units, such as garage apartments or guest houses. The zoning administrator shall be authorized to allow the use of dwelling groups for two or more residential structures on the same zoning lot when it is deemed necessary to facilitate random grouping of buildings to preserve trees and other natural features, mitigate development constraints due to irregular shaped parcels or for the conversion of condominium buildings to fee simple ownership.

1. **Density/Intensity and Dimensional Standards.** Density/intensity and dimensional standards of the underlying zoning district shall apply. In each case, the distance between structures shall not be less than the sum of the minimum interior setbacks required for the zoning district. This distance shall be measured from the closest protrusion of each structure. A minimum 40 foot by 40 foot building envelope (1,600 square feet) and, a maximum of a 100-foot by 100-foot building envelope (10,000 square feet) shall be shown for each dwelling to indicate the area where each dwelling is to be constructed. The provisions for access, parking, utilities, sewer and water can be provided by a public entity or located on common area owned by the property owners.
 - (a) **Setbacks and Buffers.** Setback and buffer requirements within building envelopes shall not apply to dwelling groups.

2. Site Plan Review. Dwelling Groups are required to complete the Site Plan Review process through the Technical Review Committee. In addition to any other applicable provisions of this Chapter, the following information shall be shown on all site plans:
 - (a) Layout. Each dwelling unit shall face (front) a street, courtyard or outdoor living space.
 - (b) Building Envelope. Building envelopes shall be depicted on site plans indicating the location of the proposed or existing building footprint or building area as a dashed line.
 - (c) Accessory Structures. Proposed accessory structures must be shown on the site plans and meet the accessory structure requirements of this Article.
 - (d) Parking and Vehicular Access. If the required parking is not within the building to be constructed, there shall be shared or offsite parking that meets the required parking needs within the common area. Each dwelling group shall provide an access consistent with the Road Construction Standards in Article 10, Part 4.
3. Subdivision. Individual lots for attached or detached buildings may be located on their own fee-simple lot provided the subdivision meets the following requirements:
 - (a) Site Plan Review. Completion of TRC Approval is required prior to submitting for subdivision of a dwelling group.
 - (b) Lots. Except as described in above. lots created in Dwelling Groups for fee simple ownership shall meet the Article 8.
 - (c) Building Envelopes. Building envelopes shall be depicted on subdivision plats indicating the location of the proposed or existing building footprint or building area as a solid line.
 - (d) Common Area. A mandatory property owners association shall own the common areas and documentation shall be included on all plats and recorded deed insuring access, parking, utilities and maintenance.
 - (e) Subdivisions. Subdivisions shall be in compliance with the Horizontal Property Act. S.C. Code Ann. Section 27-31-130 et. seq.
4. Other Zoning Requirements. Unless specifically modified by this Section, Dwelling groups shall comply with all other requirements of the AG-8 or AG-S districts.

f. **Farm labor housing (up to ten residents).**

Defined: A building or structure which is designed or constructed as a place of residence for up to ten unrelated, transient farm workers living as a single housekeeping unit. Farm Labor Housing shall be subject to the following standards:

1. Such use shall be set back 100 feet from road rights-of-way and property lines bordering undeveloped parcels. A minimum 200-foot setback shall be required from property lines abutting developed parcels.
2. A minimum 50-foot Type F Buffer shall be maintained and planted within the setback area along all interior lot lines.
3. For Farm Labor Housing that is not dormitory style, the minimum lot area for such use as a use permitted by right shall be five acres. Such use shall be allowed as a Special Exception pursuant to the requirements of section 54-1006 on parcels under five acres in area.
4. Farm labor housing shall be used on a seasonal basis only, not as year-round housing.

g. **Single family detached affordable housing units.** To promote ownership or occupancy of affordable, quality housing by low-income households, property within the AG-8 and AG-S zoning district may be approved for subdivision and development in accordance with the density/intensity and dimensional standards of this Part. The entity developing the subject lot must construct new residential housing for the provision of affordable housing as defined in this Chapter. The purchaser or tenant of the affordable household, at the time of closing or rental agreement, must meet the HUD definition of low-income. The following standards of this Section must also be met:

1. **Single Family Detached Affordable Housing Units.** For purposes of this section, single family detached affordable housing units shall meet the definition for affordable housing in section 54-120.
 - (a) As to rental units, these units shall be rented to households earning no more than eighty (80) percent of the area median income, and the rents charged by the owner shall be in accordance with the Fair Market Rents published annually by the U.S. Department of Housing and Urban Development or such entity that may be subsequently designated. In the absence of such information, the rents charged by the owner shall not exceed 30 percent of the household annual income. The owner shall be required to submit to the City of Charleston Department of Housing and Community Development, or its successor, the rental rate to be charged and verified income reports of household income of all rental occupants at the inception of each tenancy and on no less than a yearly basis thereafter, as determined by the City of Charleston Department of Housing and Community Development, or its successor. These units

shall be subject to these restrictions for no fewer than 20 years from the initial occupancy as affordable housing. The owner shall execute a Memorandum of Use with the city as a party acknowledging the use of the property for Affordable Housing in accordance with the provisions of this Section, which Memorandum shall be in a form acceptable for recording in the record office of the applicable county and which shall be recorded in the record office of the applicable county. If a proposal meets the requirements of this section and the owner is willing to enter into the terms of a Memorandum of Use contained in this paragraph, the Mayor shall be authorized so sign the Memorandum of Use on behalf of the City.

- (b) As to owner occupied units, these units shall be sold to households earning no more than one hundred twenty (120) percent of the area median income. Each owner, prior to initial occupancy, shall be required to submit to the City of Charleston Department of Housing and Community Development, or its successor, a verified income report of household income of all members of the household. These units shall be subject to resale restrictions for no fewer than ten years from date of initial sale of the property. Such restrictions will be recorded as deed restrictions.
- 2. **Ownership.** Single family detached affordable housing units shall be sold or rented to qualified households, as described herein.
- 3. **Density/Intensity and Dimensional Standards.**
 - (a) The maximum density and minimum lot area standards listed in the following table shall apply to single family detached affordable housing units:

Zoning District	Maximum Density	Minimum Lot Area
AG-8	3 dwelling units per acre of high ground	8,000 square feet
AG-S	3 dwelling units per acre of high ground	8,000 square feet

- (b) Single family detached affordable housing units shall comply with the dimensional standards of the SR-1 Zoning District, as contained in section 54-301, where no standard is listed in the table above.
- 4. **Uses.** Only single family detached affordable housing units are allowed.
 - h. **Adult or child day care facility.** Day care facilities shall satisfy the definitions and terms in Section 54-120.
 - i. **Pre-school or educational nursery.** A school, with an accredited training program and staffed with certified teachers, for children who are not old enough to attend kindergarten.

- j. **Historical site.** The operation of historical sites shall be restricted to the hours between 7:00 a.m. and 8:00 p.m.
- k. **Nature exhibitions.**
 - 1. The nature exhibition use shall fit within the following definition: A public display of materials or living things of the outdoors, including the re-creation of natural wildlife habitats native to the Charleston area. This term does not include facilities, such as zoos, where the primary purpose is the display of live animals.
 - 2. Where nature exhibitions are of public ownership or listed in the National Registry of Natural Landmarks or registered as a Heritage Site with the South Carolina Heritage Trust in accordance with the provisions of Act #600 of the 1976 Acts and Joint Resolutions, either in public or private ownership, accessory uses to acquire maintenance revenue are permitted.
 - 3. Accessory uses are limited to the retail sale of gifts, novelties, souvenirs, food services, and bicycle, horse or boat rental for on-premises use.
 - 4. Accessory structures so used shall not exceed ten percent in size of the principal structures when the nature exhibit is housed, or 1,200 square feet for each acre when the nature exhibit is not enclosed.
 - 5. Parking requirements for each accessory use, in addition to the parking requirements for the principal use, shall comply with the parking requirements for the type of use as specified in Article 3.
 - 6. Signs advertising accessory uses shall be located on the premises and not visible from a public road.
- l. **Postal Service, United States.** Any postal service facility shall have a maximum floor area of 5,000 square feet or less; otherwise this use shall fall under the special exception procedures of this Section.
- m. **Golf courses.** Golf courses shall be reviewed and approved through the Technical Review Committee for compliance with City codes and shall be subject to the following standards and criteria:
 - 1. An impact analysis must be submitted that indicates the potential number of members, the characteristics of the golf course membership, a traffic impact analysis and a complete site analysis as detailed below:
 - (a) Required Site Analysis. The layout of any golf course shall be determined after preparing the required site analysis. The detailed site analysis will be done in order to identify the site's most significant environmental, historic, cultural, and natural resources. The site analysis will include:
 - i. Vegetation. Characteristics of a vegetation survey related to land use will describe principal, predominant, and significant vegetation, by type, condition, age, use, and general or specific location.

Features in the survey will include trees and shrubs, agricultural fields, tree lines, native vegetation, orchards, groves, woodlots, pastures, wetlands, forests, and grasslands. The vegetation survey shall indicate any significantly large trees or endangered plant or animal species that may reside on the site and is protected by law.

- ii. Historical, Archaeological and Cultural Resources. Historical resources located within the proposed golf course development must be identified on the plat. Sources such as the County of Charleston Historical Survey (1991), state registers, and federal registers such as the National Register of Historic Places shall be utilized in identifying these resources. The historical survey is important for noting structures and areas that must be protected as designated landmarks.
 - iii. Adjacent Land Use Patterns. Land use on adjacent properties shall be identified. Features such as, but not limited to, roads, rice dams, traditional settlement areas, cemeteries, clusters of structures, parks, marinas, and logging areas shall be shown.
 - iv. Hydrography. All water features including streams and sensitive areas on the site, such as wetlands and riparian corridors, must be located. The purpose of locating these features is to limit disturbance of soil and vegetation that affect water quality features. Hydrography shall be used to determine where water required wetland buffers and other requirements such as drainage easements will be located. Wetland buffers of 50 feet are required on all saltwater marshes, and 35 feet on all protected freshwater wetlands. All water bodies—rivers, streams, drainage channels, marshes or wetland, floodplains and aquifers must be inventoried or identified.
 - v. Wildlife Habitat Areas. The purpose of identifying wildlife areas is to assess the ecological conditions of the landscape and to provide continuation of these habitat areas. Features of this survey shall include the presence of any threatened or endangered species, natural areas vital to wildlife species, habitat areas that are connected to larger undisturbed natural habitat (connected habitat system). Through this method the study will develop key points or areas that should be left undeveloped, then define those areas most suitable for development.
2. Potential sites should be selected which allow the golf course to be routed in such a way as to minimize the need to alter, create or remove existing native landscapes, trees, and vegetation, and which provide opportunities for restoration/enhancement of valuable habitat.

3. Sites which have archaeologically or geologically significant and sensitive or critical habitat or environmental features shall be identified and either relocated or preserved through careful golf course design. Permanent open space easements or other techniques may be used, as appropriate, to effect preservation. The site design shall identify areas for restoration, replanting, and enhancement of riparian and littoral habitat to re-establish wildlife migration corridors and lineages between fragmented habitat areas. Protection and planned restoration/enhancements for such areas during construction and ongoing operation must be ensured. Native habitats and communities of special value to threatened/endangered species shall be preserved to the greatest extent possible, consistent with State and Federal regulation.
4. Each site selected [as a] golf course development will likely have a variety of habitat types present. These habitat types must be identified and provisions made for routing of the course or relocation of the species.
5. The site plan should protect drainage systems that support retained vegetation. Ponds shall be developed which mimic conditions in terms of both aesthetics and habitat.
6. Structures and buildings should be located such that impacts to habitats and significant natural areas are avoided.
7. Design and Construction Standards:
 - (a) Marshes, Creeks and Wetlands:
 - i. The golf course design must attempt to minimize the number of marsh, creek or wetland crossings. Marsh, creek or wetland crossings must be designed in such a way to minimize erosion and harmful effects of significant habitat and migration corridors.
 - ii. Bridges must minimize alteration of the marsh, creek or wetland environment.
 - iii. Design must create and restore riparian habitat, especially in previously degraded habitat areas, and must reduce the impact of alterations necessitated by design and construction of the course.
 - iv. The course design must employ vegetated buffer strips of sufficient width to mitigate impacts to riparian corridors and other significant habitat which may result from surface drainage of the golf course, cart paths, and other developed areas. In certain circumstances where riparian vegetation has been degraded or does not exist, turf grass and rough areas may be located in closer proximity to the marshes, creeks and wetlands.
 - v. Cart paths must be graded such that runoff from them generally does not flow directly into any marsh, creek or wetland.

- vi. Construction fencing/siltation barriers must be utilized during the construction phase where needed to protect habitat and marsh, creek or wetland areas.
- (b) Trees:
- i. The selected site must not be heavily forested (with more than 60 percent tree canopy coverage).
 - ii. The design of the course and related facilities must maximize the preservation of clusters or significant stands of trees, particularly grand trees, and otherwise preserve "interior" habitat areas.
 - iii. Irrigation systems shall be designated to avoid impacting existing oaks or other sensitive vegetation.
 - iv. If required by the Planning Director, a certified professional arborist, botanist, or forester shall be employed by the applicant to evaluate the status of the trees and related habitats on the site and provide direction for restoration and/or enhancement of impacted trees.
 - v. Cart paths within the drip lines of trees slated for preservation must be grated in such a way as to not damage or stress the tree.
 - vi. Barriers (curbs, fencing, vegetation, etc.) should be established to discourage cart and pedestrian travel off paths located within or adjacent to sensitive habitat.
- (c) Water Quality:
- i. Lined artificial storage ponds must not be located in prime groundwater recharge areas.
 - ii. Turf grass species and landscaping around buildings should be selected which are drought resistant or tolerant and which are suited for any special site characteristics or soil conditions.
 - iii. State-of-the-art irrigation systems with site meteorological monitoring capability should be used to minimize water use.
 - iv. If on-site wells or ponds are to be used as the irrigation water source, analysis will be required to determine the safe yield in order to prevent aquifer, off-site wells and/or marsh, creek or wetland depletion. The developer will be held responsible for any negative impact on water supplies to adjacent or nearby properties.
 - v. Paved areas should be limited in order to minimize impermeable surfaces, and thereby reduce surface runoff.
 - vi. The project should employ established best management practices pursuant to the Non-Point Source Program guidelines to control non-point source (storm water) runoff pollution. For example: impervious liners for detention/retention ponds and water hazards

to protect ground and surface water quality; buffer strips, oil/grease separators or other recommended techniques for parking area drainage systems; grease traps and other recommended technologies for facilities such as golf cart maintenance or wash areas to prevent untreated runoff from entering the natural aquatic environmental berms, vegetative strips, grease traps, or other recommended technologies in parking areas for drainage controls to minimize pollution to nearby riparian areas and surface waters.

- vii. The overall drainage system shall be designed to comply with all City codes and standards for storm water drainage systems.
- (d) Archaeology:
- i. The design of the course must preserve significant archaeological areas and/or historical features present on the site.
 - ii. Significant archaeological sites must be staked, flagged, or fenced off to insure their protection.
- (e) Noise:
- i. Where possible, clubhouse facilities and other noise-generating uses and facilities should be located away from neighbors who might be impacted.
 - ii. Roads must be sited such that traffic noise is minimized for adjacent areas.
- (f) Growth-Inducing Impacts:
- i. The project should not provide infrastructure improvements that would be capable of serving new development other than the proposed project.
 - ii. The project should not stimulate economic expansion or growth (e.g. major changes in tax revenue base, employment expansion, etc.) other than that necessary to serve the proposed project.
 - iii. In cases where the golf course developer owns lands adjacent to the project site, a plan for the potential development of those adjacent lands should be submitted for evaluation.
 - iv. Deed restrictions, open space easements, or other appropriate techniques must be used to mitigate or prevent growth-inducing impacts inside the development.
8. Time Limit for Staff Review. Upon the receipt of a complete application for a golf course, the Technical Review Committee shall have a maximum of 45 days to review the application. TRC's failure to review the application within 45 days will result in the applicant being granted a TRC approval.

- n. **Private Boat Ramp.** All proposed private boat ramps shall comply with all applicable regulatory requirements of State and Federal agencies including but not limited to South Carolina Department of Health and Environmental Control (SCDHEC) and U.S. Army Corps of Engineers.
- o. **Parks, Recreation, Outdoor Recreation/Entertainment, Outdoor Shooting Ranges, and Recreation or Vacation Camps.**
 - 1. Any outdoor recreation and entertainment use shall satisfy the following definition: Outdoor participatory and spectator-oriented recreation and entertainment uses conducted in open, partially enclosed, or screened facilities, excluding any sexually oriented businesses.
 - 2. Any recreation (or vacation) camp use shall satisfy the following definition: An area or tract of land primarily used for recreational purposes that retains an open air or natural character. Accommodations for temporary occupancy, such as cabins and tents, may be located or placed in these areas. This definition does not include areas for recreational vehicles or motorized campers.
 - 3. Any structure established in connection with such uses shall have a setback of not less than 100 feet from any property in an agricultural, residential or office zoning district, except where such property line abuts a street, in which case the larger of the front setback established for the district or the buffer requirement for the street frontage, shall apply.
- p. **Religious Assembly.**
 - 1. Any religious assembly uses shall be in accordance with the following definition: A church, synagogue, temple, monastery, convent, retreat center or any permanent or temporary building providing regular, organized religious worship of any denomination and religious education incidental thereto, but excluding private primary or secondary educational facilities day care facilities. A property tax exemption obtained pursuant to state law shall constitute prima facie evidence of religious assembly use.
 - 2. All religious assembly uses shall comply with the TRC Approval requirements of this Chapter.
- q. **Bed and breakfasts.** Bed and Breakfasts shall be subject to the following standards:
 - 1. No exterior alterations, other than those necessary to assure the safety of the structure, shall be made to any building for the purpose of providing a bed and breakfast.
 - 2. Bed and breakfasts shall contain no more than ten guest rooms.
 - 3. There shall be an owner or innkeeper/manager residing on the premises.

4. Meals may be served by the resident owner to paying guests staying at the bed and breakfast.
5. Parking areas for bed and breakfast uses located in agricultural or residential zoning districts shall be screened from view of residential zoning districts and public right-of-ways by evergreen plant material that will provide opaque screening at the time of plant maturity.
6. Only one full-time or part-time employee, who is not a full-time resident of the home where the bed and breakfast is located, is allowed. For the purpose of this provision, the term "nonresident employee" includes an employee, business partner, co-owner, or other person affiliated with the bed and breakfast, who does not live at the site, but who visits the site as part of the bed and breakfast.
7. The operator of the bed and breakfast shall be a full-time resident of the dwelling unit.
8. All activities and storage areas associated with the bed and breakfast must be conducted in completely enclosed structures.
- r. **Communications towers.** Communications towers shall be approved as a conditional use pursuant to Section 54-207, c.
- s. **Utility substations.** Electricity regulating substations, gas pressure control stations, or similar utility substations shall be subject to the following standards:
 1. Any structure shall have a setback of not less than 25 feet from all property lines or the minimum setback of the underlying zoning district, whichever is greater; and
 2. The storage of vehicles and equipment on the premises shall be prohibited.
- t. **Hair, nail or skin care services.** Hair, nail or skin care services shall be subject to the following standards:
 1. Hair, nail or skin care services shall be limited to a maximum of one chair, otherwise this use shall fall under the special exception (S) provisions of this Section.
 2. Hair, nail and skin care services shall have a maximum floor area of 5,000 square feet, otherwise this use shall fall under the special exception provisions of section 54-1006.
 3. Barber shops, beauty salons, and nail salons are allowed as a home occupation with a maximum of one chair.
- u. **Landscaping and horticultural services to building or dwellings.** These services shall comply with the following conditions:
 1. Any structure or structures used for landscaping services shall have a maximum floor area of 5,000 square feet; otherwise, this use shall fall under the Special Exception provisions of this Section.

2. All landscaping service uses shall comply with the TRC Site Plan Review requirements of this Chapter;
 3. The subject property shall be a minimum of five acres in size;
 4. There shall be direct access to a public arterial street;
 5. A minimum 25-foot Type D landscape buffer and a minimum six-foot high opaque wooden fence within the landscape buffer shall be required adjacent to residential uses and zoning districts; and
 6. The number of parking spaces required shall include the number of employees and the number of company vehicles and trailers to be utilized in conjunction with this use.
- v. **Manufacturing and production of clay, furniture or cabinets, toy or artwork, wood products, or related products, or other miscellaneous manufacturing.** The following conditions shall apply:
1. All activities related to the specialized manufacturing use shall be confined to the interior of a structure that is entirely enclosed; and
 2. All specialized manufacturing uses shall comply with the TRC Approval requirements of this Chapter.
 3. A structure or structures used for specialized manufacturing shall have a maximum floor area of 2,000; however, an expansion to a maximum floor area of 5,000 square feet may be approved by the Board of Zoning Appeals under the Special Exception provisions of section 54-1006;
 4. Specialized manufacturing shall have no more than ten employees; and
 5. On-site retail sales are prohibited.
- w. Recycling collection, drop-off. Facilities providing recycling collection drop-off centers shall comply with the TRC Approval procedures contained within this Chapter.
- x. **Concrete crushing and recycling.** The following conditions shall apply:
1. The total floor footprint of buildings shall not exceed 15,000 square feet;
 2. All buildings, facilities, equipment, storage areas, vehicular use areas and other areas used for this use shall maintain a minimum 200 foot wide buffer that satisfies the planting requirements of a Type F Buffer adjacent to S.C. Highway 61 and a 15 foot wide buffer that satisfies the planting requirements of a Type B Buffer adjacent to properties zoned Conservation;
 3. Hours and days of all operations associated with this use shall be limited to between 7:00 a.m. and 7:00 p.m., Monday through Saturday; and
 4. There shall be no on-site retail sales.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1008. Accessory agricultural uses.

Accessory agricultural uses shall include all residential accessory uses and those accessory uses and activities customarily associated with agricultural operations, as determined by the zoning administrator. Barns and farm-related structures, shall be allowed on all parcels in Agricultural zoning districts, even if the subject parcel does not contain a primary structure. Manufactured homes, modular building units, and pre-manufactured container units may be used for non-residential purposes only in all agricultural zoning districts subject to the following requirements.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1009. Accessory dwelling units.

In agricultural zoning districts, one accessory dwelling unit may be established on an existing lot if reviewed and approved, subject to the following standards:

1. The lot must have a minimum area at least 50 percent larger than the minimum area required for a principal residential structure.
2. Only one accessory unit shall be permitted per lot.
3. The heated gross floor area of the accessory dwelling unit shall not exceed 1,500 square feet.
4. Accessory dwelling units placement shall comply with all dimensional standards of the applicable zoning district, including all setback, buffer, lot coverage, height requirements, and waterfront development standards.
5. Accessory dwelling units placement on parcels that contain or abut an OCRM Critical Line shall meet the waterfront development standards of Section 54-1010.
6. Separate electrical meters shall not be allowed for attached accessory dwellings.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1010. Waterfront development standards.

The following dimensions have precedence over standards for properties zoned AG-8 or AG-S which contain or abut an OCRM Critical Line:

Waterfront Development Standards		
Standard	AG-8	AG-Special
Minimum Lot Area	1 acre	1 acre
Minimum Lot Width	175 feet	175 feet
Minimum Lot Width Average	200 feet	200 feet
Minimum Buffers/Setbacks		
OCRMCritical Line Buffer	40 feet (see Section 54-347.1)	40 feet (see Section 54-347.1)
Building Setback from OCRMCritical Line Buffer	10 feet (see Section 54-347.1)	10 feet (see Section 54-347.1)

- a. **Minimum lot width (ft).** The minimum lot width (ft) is measured and maintained from the front lot line through the entire parcel to the OCRM Critical Line. All lots within a subdivision must meet the minimum lot width average. (Exception: Flag lots and lots served by cul-de-sacs). Lots fronting on cul-de-sacs shall meet the minimum lot width at the required minimum front setback. Flag lots are designed with a "flag pole" area with a minimum width of 20 feet. The flag pole area is not required to meet the minimum lot width nor does this area count towards the minimum lot size or area. Flag lots must meet the minimum lot width at the end of the flag pole area/base of lot. All lots within a subdivision must meet the required minimum lot width average for the zoning district within Section 54-1010, Waterfront development standards.
 1. Reductions from minimum lot width average requirements for parcels which contain or abut an OCRM Critical Line may be permitted if the zoning administrator determines that one of the following criteria has been met:
 - (a) No more than three waterfront lots are being created from the original parcel and that a reduction of no more than ten percent of lot width average is required for any resulting lot; or
 - (b) Where two lots of record (lots existing prior to April 21, 1999) have been combined, the resulting lot may be subdivided into the original configuration shown on the previously approved, recorded plat of record, even if the original lots do not meet the minimum lot width requirement of this Section, provided that the subdivision meets all other requirements of this Chapter.
- b. **Minimum lot standards for accessory dwelling units on parcels which contain or abut an OCRM Critical Line.** In order to establish an accessory dwelling unit on a parcel that contains or abuts an OCRM Critical Line the following standards shall apply:
 1. When an accessory dwelling unit is to be located in front of the principal dwelling unit (between the street and the front of principal dwelling unit) the minimum lot area shall be 50% larger than the minimum lot area requirement of the zoning district.
 2. When the accessory dwelling unit is to be located to the side or rear of the principal dwelling unit (between the OCRM critical line and the principal dwelling unit) the minimum lot width shall be 350 feet.
 3. The accessory dwelling unit shall meet the minimum setbacks of the zoning district where it will be located, and:
 - (a) The distance between the accessory dwelling unit and the principal dwelling unit shall not be less than 30 feet.
 4. The zoning lot and accessory dwelling unit shall comply with all other requirements of this Chapter, including but not limited to the requirements of Section 54-1009, Accessory dwelling units.

- c. **Minimum lot standards for dwelling groups on parcels which contain or abut an OCRM Critical Line.** The number of dwelling units shall not exceed the maximum number permitted by the density, intensity and dimensional standards of the underlying base zoning district. In addition, the dwelling groups, as defined in Section 54-1006, c., shall comply with the requirements of Section 54-1010, Waterfront development standards, of this Chapter, including the minimum lot area and lot width requirements.

(Ord. No. 2018-031, § 11, 4-10-18)

Secs. 54-1011—54-1019. Reserved.

PART 2**SPECIAL EVENTS USE REGULATIONS FOR AGRICULTURAL DISTRICTS****Sec. 54-1020. Purpose.**

The intent of this Article is to provide regulations that guide the use of properties zoned AG-8 or AG-S for the purpose of hosting special events of varying sizes and functions, while protecting the surrounding community. The regulations of this Article shall apply in conjunction with any other standards contained within this Chapter and only to properties within the AG-8 or AG-S zoning districts.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1021. "Special Events" defined.

For the purposes of this Article, an activity (occurring one or more times) involving the assembly or the intention of attracting 100 or more people for cultural, ceremonial, educational, or celebratory purposes, which generates revenue, regardless of status. Such assembly includes, but is not limited to: weddings, receptions, recitals, art exhibits, religious ceremonies, limited youth activities, book readings, wine/food tasting events, executive retreats, circuses, fairs, carnivals, festivals, auctions, concerts, and any event which is advertised or marketed in any form including, but not limited to: posters, business cards, internet, and media outlets; serves an entrepreneurial purpose; includes fees/charges for goods/services (e.g. food & drink); and whenever there is an admission fee or leasing fee. This definition does not include private parties or private functions that do not meet the above stated criteria.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1022. Private special events.

The following are exempt from the requirements of this Article: private parties and gatherings that do not meet the definition of "special event," as defined in this Chapter, auctions of private real estate, and estate auctions.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1023. Temporary special events.

Temporary public assembly use and special events, such as cultural events, outdoor concerts and parking for special events, shall require a temporary special events permit from the planning director. Such permit shall be issued for each event, each event shall not exceed one day, and no more than five such permits may be issued per lot, per calendar year. The requirements of this section shall apply in addition to the requirements of Section 54-1024. In addition to the requirements of this section, any temporary special event utilizing 25 acres of land area or more shall require special exception approval in accordance with the procedures contained in Section 54-1006.

- a. Temporary special events permits may be issued only if adequate parking and sanitary facilities are provided to serve the proposed use or activity and the site

can safely support the proposed activity. The following information is required to be submitted with applications for temporary special events permits (in addition to the required fee):

1. A detailed Letter of Intent describing the purpose of the event indicating date(s) and time(s), anticipated number of participants, and whether alcohol will be served and if amplified sound (music or other amplified noise) will be utilized;
 2. A legible site plan drawn to scale indicating vehicular traffic areas (parking, driveways, circulation etc.), gathering areas, restroom and vendor locations, and locations of existing and planned structures to be used as part of the event;
 3. Letters of coordination from Fire, Police, and Emergency Medical Services and Building Inspections Division if applicable;
 4. Documentation of City of Charleston business license issuance for the host and participating vendors and copy of valid Department of Revenue license if alcohol will be sold;
 5. Documentation from pertinent service providers for restroom facilities and garbage collection; and
 6. Other pertinent information as deemed necessary by the planning director.
- b. The following requirements shall, in addition to all other applicable requirements of this Chapter, apply to property located in the agricultural zoning districts:
1. Each temporary special events permit shall only be valid for a single special event. Multiple special events shall require separate temporary special events permits;
 2. Daily event attendance in the AG-8 and AG-S Zoning Districts shall be limited to 500 people on properties containing less than 50 acres of high ground, 1,000 people on properties containing between 50 and 100 acres of high ground, and 2,000 people on properties containing more than 100 acres of high ground; and
 3. The maximum number of temporary special events permits allowed per calendar year and/or maximum daily attendance may only be increased above the five permits allowed per year and above the attendance limits in the previous subsection, but not to exceed the limits in subsection b. (3) and (4) below, if the requirements listed below, as well as all other applicable requirements of this Chapter, are met and the request is approved in accordance with the special exception procedures contained in this section and Section 54-1006. If approved by the Board of Zoning Appeals-Zoning, the approval is only valid for one calendar year from the date of zoning permit issuance.
 - (a) Application.
 - (1) Review and approval of a site plan of the property and all facilities, driveways, parking areas and improvements thereon to be used in

conjunction with temporary special events and compliance with Section 54-1006, Special exception uses, of this Chapter is required.

- (2) All applications must be signed by the property owner or designated agent.
 - (3) Letters of coordination from the following agencies shall be submitted during site plan review: S.C. Department of Health and Environmental Control (SCDHEC), City of Charleston Police Department, Charleston County Emergency Medical Services (EMS), the City of Charleston Fire Department, and a designated solid waste collection/disposal company or a letter indicating a private method of waste collection/disposal.
- (b) Requirements.
- (1) The subject property or properties shall contain a minimum of ten combined acres of high ground area and must border a public arterial street, as defined in this Chapter;
 - (2) There shall be direct access to a public arterial street, as defined in this chapter;
 - (3) No more than 25 events shall be allowed per calendar year;
 - (4) Daily attendance shall be limited to 500 people on properties containing less than 50 acres of high ground, 1,000 people on properties containing between 50 and 100 acres of high ground and 2,000 people on properties containing more than 100 acres of high ground;
 - (5) All structures shall comply with the requirements of this Chapter, including but not limited to, the density, intensity, and dimensional standards and accessory structure requirements;
 - (6) All parking shall be contained on the subject property or on a contiguous property. A recorded, parking agreement shall be required if temporary off-street parking is provided on a parcel other than the subject property. At no time shall associated event parking be allowed in a public or private right-of-way or access easement;
 - (7) The maximum occupancy of an individual permanent structure shall comply with the occupancy standards of the City of Charleston Building Code;
 - (8) All events shall adhere to the City of Charleston Noise Regulations and all other applicable City of Charleston ordinances;
 - (9) All existing or proposed structures shall retain a residential or agricultural character;

- (10) A 100-foot buffer meeting the minimum planting requirements of this section shall be required around the perimeter of the property. Buffers shall be located along the perimeter of a lot or parcel and shall extend to the boundary of the lot parcel. They shall not be located on any portion of public right-of-way. Where drainage or other utility easements exist along property lines, required landscape buffers shall be located adjacent to the easement and may be reduced in width by the width of the easement, but in no case shall the buffer width be less than ten feet. All trees with a diameter breast height (DBH) of eight inches or greater within buffers shall be preserved. Required buffers shall be noted on all plats, plans and permit requests submitted for review and approval under this Chapter. The Planning Director shall be authorized to require the installation of fences, walls or berms within required buffers where deemed necessary to ensure land use compatibility or otherwise protect the visual quality of an area. The required minimum plantings per 100 linear feet of buffer shall be as follows:
- i. Nine recommended trees;
 - ii. Eleven understory trees with at least 50% being evergreen
 - iii. Fifty shrubs.
- (11) Use of required buffer areas. The Planning Director shall be authorized to allow on-premises signs, fences, walls, berms, mailboxes, access to community boat ramps, permitted driveways, and sidewalks within required buffers. Other improvements may be allowed within buffers if the Planning Director determines that such improvements will not detract from the intended purpose and function of the buffer or have any adverse effect on adjacent property.
- (12) Special events shall not begin before 10:00 a.m. and shall end by 10:00 p.m.; and
- (13) The applicant must hold at least one community workshop prior to the submittal of the special exception application and written documentation of the community workshop(s) must be submitted. Written documentation may include, but is not limited to, sign-in sheets, meeting summaries, memos and/or letters from the applicant describing the meeting(s), etc. The purpose of the workshop(s) is to ensure early citizen participation in an informal forum, in conjunction with the development applications and to provide an applicant the opportunity to understand and try to mitigate any impacts an application may have on an affected community. A community workshop is not intended to produce complete consensus on all applications, but to encourage applicants to be good neighbors.

- c. Special Exception Approval Criteria. The approval criteria contained in this section shall apply instead of the approval criteria contained in Section 54-1006 of this Article. Applications may be approved only if the Board of Zoning Appeals-Zoning finds that the proposed use:
- (1) Is consistent with the character of the underlying zoning district "Purpose and Intent";
 - (2) Is compatible with existing uses in the vicinity and will not adversely affect the general welfare or character of the immediate community;
 - (3) Does not hinder or endanger vehicular traffic and pedestrian movement on adjacent roads;
 - (4) Includes adequate provisions for items such as: setbacks and buffering (including fences and/or landscaping) to protect adjacent properties from the possible adverse influence of the proposed use, such as noise, vibration, dust glare, odor, traffic congestion and similar factors;
 - (5) Where applicable, will be developed in a way that will preserve and incorporate any important natural features;
 - (6) The setup and disassembly of special events will not be detrimental to the surrounding community;
 - (7) Includes sufficient safeguards for the use of temporary structures, if applicable; and
 - (8) Complies with all applicable rules, regulations, laws and standards of this Chapter, including but not limited to any use conditions, zoning district standards, or site plan review requirements of this Chapter.

If approved by the Board of Zoning Appeals-Zoning, the approval is only valid for one calendar year from the date of zoning permit issuance. In granting a special exception, the Board of Zoning Appeals-Zoning may attach to it such conditions regarding the location, character, or other features of the proposed building or structure as the Board may consider advisable to protect established property values in the surrounding area or to promote the public health, safety, or general welfare. Additionally, the Board of Zoning Appeals-Zoning may require additional conditions of approval including, but not limited to: event days and hours, the number of events per calendar year, limitations on outdoor activities, parking, buffers, and use and location of temporary structures.

If the proposed use is approved by the BZA-Z, the Department of Planning and Preservation shall provide written notification to the following agencies, as applicable: S.C. Department of Health and Environmental Control (SCDHEC), Charleston Police Department, Charleston Fire Department, and the Charleston County Emergency Medical Services (EMS). (Ord. No. 2018-031, § 11, 4-10-18; Ord. No. 2025-086, § 1, 6-17-25)

Sec. 54-1024. Outdoor special events (principal uses and temporary special events).

- a. With the exception of special events at federal, state, and county parks and legally established fairgrounds, any accessory, outdoor special event consistent with the definition of "special event," as defined in this Article, must comply with Section 54-1023 and a zoning permit shall be required.
- b. Any outdoor special event activity as defined by this Article, whether an accessory to an existing business, or on vacant undeveloped property, which is located within 500 feet of the property line of a residentially developed parcel, shall cease all music and all loud noise that is above seventy (70) db(A) no later than 11:00 p.m.; otherwise, this use shall require special exception approval consistent with this Article. Distances shall be measured from the site of the special event activity on the subject property to the nearest property line of a lot containing a residential use. Noise levels shall be measured anywhere within the boundary line of the nearest residentially occupied property.
- c. All outdoor special event activities will be subject to the City's livability and/or noise ordinance.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1025. Indoor special events.

A zoning permit shall not be required when hosting an indoor special event in legally established public facilities or civic facilities such as: social lodge; assembly halls; religious facilities; fairgrounds; federal, state, and county parks, and similar facilities legally established and authorized to hold special events.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1026. Zoning permit.

A zoning permit shall be required prior to commencing special events and shall be maintained for the duration of the special events use, following site plan review and special exception approval, as applicable. Additionally, a valid, City of Charleston Business License is required following zoning permit approval.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1027. Lapse of approval.

A valid City of Charleston Business License must be maintained for a principal special events use. If this business license is not renewed annually or is discontinued, for any reason, for a period of at least six consecutive months, then the use shall be considered abandoned. Once abandoned, the special exception approval and the zoning permit for the special events use shall be deemed null and void. Renewal of the special events use shall require the approval of the Board of Zoning Appeals-Zoning (BZA-Z) and compliance with the regulations of this Chapter.

(Ord. No. 2018-031, § 11, 4-10-18)

Secs. 54-1028, 54-1029. Reserved.

PART 3**CONSERVATION SUBDIVISIONS IN AGRICULTURAL ZONING DISTRICTS****Sec. 54-1030. Purpose and intent.**

Conservation subdivisions encourage residential development in the agricultural areas to maintain rural character and conserve land, promoting compact development form, and preserving natural features. The guidelines for site development emphasize setting aside and conserving the most sensitive areas of a site, with the development of building lots on the remaining less sensitive areas.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1031. Definitions.

For the purpose of this Article, the following definitions shall apply:

Conservation Area. Land dedicated to the public or designated by the development plan for the use, benefit, and enjoyment of all residents of the development.

Dock, Community. Any docking facility that provides access for more than four families (greater than or equal to five watercraft slips and less than or equal to ten watercraft slips) and is not a marina. All community docks shall be permitted pursuant to section 54-1006, k.

Dock, Joint Use. Any private dock intended for the use of two to four families. Joint use docks that are permitted by OCRM shall be exempt from the requirements of this Article.

Lot Width.

1. Width of an Interior lot: the length of the front lot line or its chord.
2. Width of a Corner or Double-Frontage Lot:
 - (a) if there are two front lot lines, the shorter of such lines or its chord;
 - (b) if there are more than two front lot lines, the average length of the two shortest of such lines or their chords.
3. Width of lots served by a cul-de-sac: width shall be measured at the building line.

Open Space. Land and water areas retained for use as active or passive recreation areas or for resource protection in an essentially undeveloped state.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1032. Applicability.

Conservation subdivisions shall be allowed within the AG-8 and AG-S Zoning Districts. In case of conflict between the regulations of this Article and other regulations in this Chapter,

the regulations of this Article shall control. Where no special Conservation Subdivision regulation is stated in this Article, the regulations of the applicable underlying Zoning District and all other applicable provisions of this Chapter shall apply.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1033. Procedures.

The subdivision procedures and regulations outlined in Article 8 of this Chapter shall apply to conservation subdivisions. A pre-application Sketch Plan review meeting with City staff shall be required prior to Concept Plan submittal.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1034. Process.

The conservation subdivision process shall include:

1. Resource analysis/mapping. The applicant shall identify and map significant natural and cultural resources within the development boundaries. The resource analysis shall identify two categories of resources: Primary conservation areas and secondary conservation areas. Primary conservation areas include bodies of water, wetlands, floodplains, wildlife habitat, significant vegetation (particularly grand trees and protected trees), historic buildings, and any historical or archaeological sites. Secondary conservation areas include, but are not limited to, areas of active agricultural use(s), scenic vistas, and lands with recreational opportunities. The resource analysis may also show any resources and protected open space on neighboring parcels, through aerial photography and other readily accessible documentation, which may enhance the proposed conservation subdivision. All conservation subdivision applications shall include a resource analysis map and calculations for the conservation area.
2. Sketch plan review. The applicant shall schedule a pre-application sketch plan review meeting with planning department staff. At that time, the applicant shall submit a detailed sketch plan delineating conservation areas and cluster lot development areas based on the resource analysis map. Significant cultural and natural resources identified on the resource analysis map shall be included in conservation areas. The sketch plan review is intended to ensure that the property improvements are in compliance with conservation subdivision requirements of this Chapter.
3. Concept plan review and approval. Based on the resource analysis map and sketch plan review, the applicant shall submit a concept plan for review and approval, in compliance with the requirements of this Article and with Article 8 of this Chapter. The preliminary plat shall identify the conservation areas and cluster lot development areas.
4. Preliminary plat and final plat review and approval. The applicant shall submit a conservation subdivision plat for preliminary plat review and approval and final

plat review and approval, in compliance with the requirements of this Article and with Article 8 of this Chapter. The final plat shall identify the conservation areas and cluster lot development areas.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1035. Density/intensity and dimensional standards.

Conservation subdivisions shall be subject to the following density/intensity and dimensional standards:

Conservation Subdivision Development Intensity Standards	
	<i>AG-8 AND AG-S Zoning Districts</i>
MINIMUM CONTIGUOUS SITE AREA	30 acres
MAXIMUM DENSITY Note: Maximum density shall be calculated based on the total high ground acreage and shall not include freshwater wetland or OCRM Critical Line area acreage.	1 dwelling unit per 6 acres when 30% to 49.9% of total site area is delineated as a Conservation Area 1 dwelling unit per 4 acres when 50% or more of total site area is delineated as a Conservation Area
WATERFRONT DEVELOPMENT STANDARDS	See Sec. 54-1036 for lots abutting an OCRM Critical Line
MINIMUM LOT AREA	Variable but must establish min. 40' x 40' buildable area and meet all Zoning, SCDHEC, Building Inspections, and Fire Department requirements
MINIMUM LOT WIDTH: DEPTH RATIO	Depth of the Lot shall not exceed 5 times the width of the lot (1:5 ratio)
MINIMUM SETBACKS AND BUFFERS	
Front Setback	25 Feet
Side Setback	10 Feet
Rear Setback	10 Feet
Perimeter Buffers	See Sec. 54-1038, 3 below
OCRМ Critical Line Setbacks and Buffers	See Sec. 54-1036 below for lots abutting an OCRM Critical Line
MAXIMUM LOT COVERAGE (includes all impervious surfaces)	
Lot less than 15,000 square feet in size	25%
Lot 15,000 square feet or greater in size	3,750 square feet
MAXIMUM HEIGHT	35 feet

Sec. 54-1036. Waterfront lot standards.

One of the following standards must be utilized to determine the lot configuration and number of lots to be located along an OCRM Critical Line.

1. When a 50-foot to 74.9-foot building setback from the OCRM Critical Line is utilized on private lots in a conservation subdivision:
 - (a) The total number of waterfront lots created shall not exceed the total number of waterfront lots that could be developed based on a 135-foot lot width average.
 - (b) A 35-foot buffer from the OCRM Critical Line must be maintained, as required by section 54-1038, 3.
 - (c) A private dock or joint use dock may be utilized.
2. When a minimum 75-foot setback from the OCRM Critical Line is utilized on private lots in a conservation subdivision:
 - (a) The total number of waterfront lots created shall not exceed the total number of waterfront lots that could be developed based on a 100-foot lot width average.
 - (b) A 35-foot buffer from the OCRM Critical Line must be maintained, as required by section 54-1038, 3.
 - (c) If a dock is desired, a joint use dock shall be utilized.
3. When a 100-foot setback from the OCRM Critical Line is utilized as protected open space through a conservation area in a conservation subdivision:
 - (a) The total number of lots created shall only have to meet the dimensional standards listed in section 54-1035, above, and shall not be calculated based on any lot width average.
 - (b) A 35-foot buffer from the OCRM Critical Line must be maintained, as required by section 54-1038, 3.
 - (c) If a dock is desired, a community dock must be utilized; however, the community dock shall be exempt from the special exception requirement.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1037. Conservation area standards.

Conservation areas shall be located to preserve significant resources and shall comply with the following requirements:

1. Conservation areas shall be detailed on each sketch plan and recorded with the final plat, or separate instrument.
2. Conservation areas may include unimproved land, agricultural lands, natural landscapes, landscaped areas, improved recreation areas, recreational buildings, and structures that are totally accessory to agricultural or recreational uses, as

well as freshwater wetland areas and surface water. Conservation areas shall not be occupied by streets, drives, parking areas, or structures, other than agricultural or recreational structures.

3. Conservation areas shall be provided within each phase of the conservation subdivision in sufficient amounts to serve the expected population of that phase.
4. The applicant must have proof of commitment from the entity that will be responsible for the conservation area prior to the recording of a plat. Conservation areas shall be conveyed prior to recording the final plat, in accordance with one of the methods listed below:
 - (a) By dedication to the City as publicly-owned open space. Parks, conservation areas, and recreation facilities proposed for dedication to the City must be acceptable to City Council, and other governmental entities with regard to the size, shape, location, improvement, environmental condition (i.e., the applicant may be required to provide an environmental assessment), and budgetary and maintenance terms; or
 - (b) By leasing, conveying, or retaining title to a corporation, homeowner's association or other legal entity. The terms of such lease or other instrument of conveyance must restrict the use of the conservations area(s) to open space and/or agricultural or recreational uses.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1038. Conservation subdivision standards.

Generally, a conservation subdivision has three primary characteristics: smaller building lots; more open space; and protection of cultural and natural features and agricultural lands.

1. **Vehicular Access.** The requirements of Article 10, Part 4 shall apply. Lots shall be configured to minimize the amount of roadway and driveway length. Shared driveways shall be utilized in order to minimize impervious surfaces through the reduction of pavement area. The use of pervious materials for driveway construction is required.
2. **Pedestrian Access.** Pedestrian access shall be provided from all residential lots to the conservation area(s) through a continuous system of pervious walkways and/or trails. Access corridors in an easement a minimum of ten feet in width shall be utilized to separate clusters of contiguous lots and to connect the conservation area(s) to the right-of-way and trail system.
3. **Buffers.** The conservation subdivision development shall be designed to preserve existing non-invasive vegetation. A 35-foot minimum natural undeveloped buffer shall be preserved along the external perimeter and/or property line of the conservation subdivision development, as well as along all OCRM Critical Lines,

in order to protect natural features and retain the rural community character. The buffer may be included within the conservation area(s) or within individual parcels.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1039. Accessory dwelling units within a conservation subdivision.

One maximum 600 square foot detached accessory dwelling unit is allowed on lots that do not abut an OCRM Critical Line. Accessory dwelling units shall not be permitted on private waterfront lots.

(Ord. No. 2018-031, § 11, 4-10-18)

Secs. 54-1040—54-1049. Reserved.

PART 4**RURAL ROAD STANDARDS FOR AGRICULTURAL ZONING DISTRICTS****Sec. 54-1050. Abbreviations.**

For the purpose of these regulations, abbreviations relating to streets and drainage are defined as follows:

- a. **AASHTO** - American Association of State Highway and Transportation Officials
 - b. **ADA** - Americans with Disabilities Act
 - c. **ADAAG** - Americans with Disabilities Act Accessibility Guidelines
 - d. **ASTM** - American Society for Testing Materials
 - e. **HOA - Homeowners' Association**
 - f. **MLW** - Mean Low Water
 - g. **MSL** - Mean Sea Level (Elevation 0.0 as determined by the NGVD 29 datum)
 - h. **MUTCD** - Manual on Uniform Traffic Control Devices
 - i. **NGVD 29** - National Geodetic Vertical Datum of 1929
 - j. **SCDHEC/OCRM** - South Carolina Department of Health and Environmental Control/Office of Ocean and Coastal Resource Management
 - k. **SCDOT** - South Carolina Department of Transportation
 - l. **SCDOT (SS)** - South Carolina Department of Transportation Standard Specifications for Highway Construction, latest edition
 - m. **TRC** - City of Charleston Technical Review Committee
 - n. **USACOE** - United States Army Corps of Engineer
- (Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1051. Definitions.

For the purpose of these regulations, terms relating to streets and drainage are defined as follows:

- a. **Base Course** - The layer or layers of specified or selected material of designated thickness or rate of application placed on a sub base or subgrade to comprise a component of the pavement structure to support the pavement or subsequent layer of construction.
- b. **Bridge** - A structure, including supports, erected over a depression or an obstruction; e.g., water, highway, or railway, and having a track or passageway for carrying traffic or other moving loads.

- c. **Causeway** - An earthen structure with at least one side adjacent to a depression, wetland, or marsh that supports a track or passageway for carrying traffic or other moving loads.
- d. **Cul-de-sac** - The radial turnaround area at the end of a dead-end street.
- e. **Culvert** - Any structure which provides an opening under any roadway or any other structure so named in the plans, excluding bridges.
- f. **Design Professional** - An individual or firm appropriately licensed and registered in the State of South Carolina.
- g. **Detention** - The temporary restriction of storm water that is released at a predetermined or controlled rate.
- h. **Developer** - The legal or beneficial owner of a lot or of any land proposed for development; the holder of an option or contract to purchase; or any other person having an enforceable contractual interest in such land.
- i. **Drainage easement** - The right of access of storm water runoff from adjacent drainage basins into the drainage way within the defined easement.
- j. **Earth Roads** - Those roads constructed of compacted earth material.
- k. **Easement** - A privilege or right of use, access or enjoyment granted on, above, under, or across a particular tract of land by the landowner to another person or entity.
- l. **Homeowners' (or Property Owners') Association** - A formally constituted, non-profit association or corporation made up of the property owners and/or residents of a defined area. The homeowners' or property owners' association may take responsibility for costs and up-keep of common open space or facilities, or enforce certain covenants and restrictions.
- m. **Main Utility Lines** - Those facilities, including piping, conduits, outlets, and other appurtenances necessary for the proper functioning of essential services to a development including water, electricity, gas, sanitary sewer, storm sewer, cable, communications, etc.
- n. **Mean Sea Level** - Elevation 0.0 as determined by the NGVD 29 datum.
- o. **Plat** - A diagram drawn to an engineering scale showing all essential data pertaining to the boundaries and subdivision of a tract of land as determined by a professional land surveyor.
- p. **Director of the Department of Public Service** - The Director of the Department of Public Service for the City of Charleston or his/her authorized representative.
- q. **Responsible Entity** - The unit of local government responsible under South Carolina law for the maintenance of the roadway and/or drainage system; or, in the case of private roadways and/or drainage systems, the owner of the property

upon which the roadway and/or drainage system is located; or if existing, a homeowners' association previously created to maintain the roadway and/or drainage system.

- r. **Right-of-Way** - Land that has been or is being dedicated for the construction and maintenance of a road or street. Right-of-way may also be used to identify an area dedicated for use as part of a drainage system or utility corridor.
- s. **Roadway** - The entire area between the outside limits of construction, including structures, slopes, ramps, intersections, utilities, side ditches, channels, waterways, etc., necessary for proper drainage. This term shall, in general, be considered synonymous with street or road.
- t. **Rock Roads** - Those roads in which the riding surface is constructed of a layer or layers of material usually comprised of compacted rock or other aggregate materials
- u. **Street.** - A vehicular way, which may also serve in part as a way for pedestrian traffic, whether called a street, highway, thoroughfare, parkway, throughway, road, avenue, boulevard, lane, place, alley, mall, or other designation, including the entire area within the right-of-way.
- v. **Stub Street** - A street that intersects another local street and extends, usually one lot deep, to the property line of the development or rear of the block being developed.
- w. **Subgrade** - The top surface of a roadbed upon which the roadway structure and shoulders are constructed.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1052. Introduction.

Within the agricultural zoning districts, landowner/developers have the option of constructing rural roads to serve subdivided lots, as described herein, that do not satisfy the pavement, curb, sidewalk and width requirements of Article 8. These standards provide specific information and design parameters regarding the construction of rural roads within the AG-8 and AG-S zoning districts. This document defines risks and responsibilities that are accepted by the responsible entity pertaining to the maintenance of the roads.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1053. Objective.

The primary objective is to ensure that property being subdivided is provided with access.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1054. Property access.

It is the responsibility of the landowner/developer to provide access to the property being subdivided. Access to those properties shall be maintained and either privately or publicly owned. The ownership and maintenance status of the access shall be indicated on all submitted plats.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1055. Landowner/developer responsibilities.

The landowner/developer is responsible for selecting the type of access to be provided for their subdivision. If rural road standards or ingress/egress easements, as described herein, are to be used, the classification of access will determine the party responsible for maintenance and the city's associated responsibilities, if any.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1056. Rural road classifications.

- a. **Private roads.** Any road dedicated to an individual or entity other than City of Charleston with an ingress/egress easement (maximum of 10 lots) or a right-of-way dedicated to a homeowners' association. The easement holder retains ownership and maintenance responsibility for access and drainage.
- b. **Public roads (minimum standards):**
 1. Non-standard city roads (maximum of 10 Lots).
 - a. Surface: earth.
 3. Minimal drainage.
 4. Travel way minimum width determined on a per road basis.
 5. Lot drainage is each owner's responsibility.
 2. Primary rural road.
 - a. Surface: earth, rock, or pavement.
 - b. Minimal drainage with outfall (only for the roadway).
 - c. Travel way minimum width of 20 feet.
 - d. Lot drainage is each owner's responsibility.
 3. Secondary county road.
 - a. Surface: rock or pavement.
 - b. Drainage plan required for property and roadway system.
 - c. Open ditch drainage system.
 - d. Travel way minimum width of 22 feet.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1057. Applying road classifications.

- a. **Private road.** The landowner/developer shall have the option to utilize any of the private road classifications for property subdivision regardless of region (see below).
- b. **Public road.**
 1. Roads that are to be constructed, dedicated, and accepted into the City maintenance system shall be constructed in accordance with one of the public road classification standards.
 2. Primary rural roads will be allowed in the AG-8 and AG-S zoning districts when the following conditions are met to the satisfaction of the Director of the Department of Public Service:
 - (a) The proposed road is a cul-de-sac or future expansion is limited. The lots being created are a minimum of five acres in size or the design professional demonstrates adequate lot and roadway drainage can be provided.
 - (b) Public roads shall connect with an existing public roadway that has been accepted by a public agency (county, municipality, or state). Public roads shall not rely upon a right-of-way that has only been dedicated but not accepted into a public maintenance system.
 - (c) If a land development plan exceeds the non-standard city road ten lots maximum, construction shall be required to improve the non-standard road to the required City standards from its point of connection to an existing County standard, City or State public road.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1058. Private road standards.**1. General Information.**

- a. **Introduction.** The private road standards provide the landowner/developer flexibility to determine the level of access and service provided to lots being created. The private road standards require the landowner/developer to be responsible for the extent and quality of property access and drainage. The landowner/developer is responsible for the establishment of standards for design, construction, and maintenance of the roadway and drainage systems and for items such as access for emergency service vehicles, school buses, mail couriers, and coordination of utilities. Note that public services are not guaranteed by the City of Charleston.

The private right-of-way shall be dedicated to a legally recognized or chartered entity. Private right-of-way shall not be dedicated to the public. Further, the City of Charleston is neither obligated nor responsible for private right-of-way maintenance.

- b. **Landowner/Developer Responsibilities.** The landowner/developer is responsible for determining the type of access to be provided for his subdivided property. The landowner/developer shall be responsible for oversight and coordination of design and construction and for obtaining required approvals or permits from the appropriate agencies.

The landowner/developer is responsible for informing prospective property owners, whether solicited or unsolicited, of all conditions and responsibilities, or lack thereof, that have been placed on the property.

If access or drainage connects with a City right-of-way or easement, an encroachment permit shall be obtained prior to construction.

2. **Ingress/Egress Easement (Maximum of Ten Lots).**

Additional Landowner/Developer Responsibilities: The location of proposed ingress/egress easement(s) shall be clearly depicted and labeled on submitted plats or plans. All ingress/egress easements must comply with the applicable requirements of this Chapter including, but not limited to, the requirements contained in sub-sections a and b below. The landowner/developer shall secure the necessary licensed, professional personnel to prepare designs, obtain required approvals and permits, and oversee construction.

- (a) Prior to issuance of zoning permits for land development activities other than construction of ingress/egress easements and private rights-of-way, installation of required street signs, additions/renovations to existing structures that are legally permitted, and new construction of accessory structures, all ingress/egress easements shall be:
- i. Constructed in the location shown on the approved, recorded plat;
 - ii. Constructed to comply with City's fire codes, from their point of connection to an existing publicly owned and maintained right-of-way to lot(s) proposed for development; and
 - iii. Inspected pursuant to Section 54-1058, 6.
- (b) The Director of the planning department may allow use of a portion of an ingress/egress easement that was constructed prior to July 18, 2017 that cannot comply with the width clearance requirements of the International Fire Code when: (1) the Director determines that moving the ingress/egress easement to a different location is not possible due to site constraints, property size, Grand Trees, wetlands, etc.; (2) the applicant submits letters from the providers of emergency services for the subject properties stating they can access all properties utilizing the ingress/egress easement; and (3) all future portions of the ingress/egress easement comply with the International Fire Code.

3. **Private Right-of-way Dedicated to A HOA with No Road Construction Required (maximum of ten Lots).**

Additional Landowner/Developer Responsibilities: All rights-of-way shall be clearly depicted on submitted plats or plans. The landowner/developer is responsible for determining the construction suitability and the accessibility of the defined right-of-way, provided, however, that all private rights-of-way must comply with the applicable requirements of this Chapter, including, but not limited to, the requirements contained in sub-sections a and b below. The landowner/developer shall secure the necessary licensed, professional personnel to prepare designs, obtain required approvals and permits, and oversee construction.

- a. Prior to issuance of zoning permits for land development activities other than construction of ingress/egress easements and private rights-of-way, installation of required street signs, additions/renovations to existing structures that are legally permitted, and new construction of accessory structures, all ingress/egress easements shall be:
 - i. Constructed in the location shown on the approved, recorded plat;
 - ii. Constructed to comply with the City's fire codes from their point of connection to an existing publicly owned and maintained right-of-way to lot(s) proposed for development; and
 - iii. Inspected pursuant to Section 54-1058, 6.
- b. The Directors of the Zoning and Planning Department may allow use of a portion of an ingress/egress easement that was constructed prior to July 18, 2017 that cannot comply with the width clearance requirements of the International Fire Code when: (1) the Director determines that moving the ingress/egress easement to a different location is not possible due to site constraints, property size, Grand Trees, wetlands, etc.; (2) the applicant submits letters from the providers of emergency services for the subject properties stating they can access all properties utilizing the ingress/egress easement; and (3) all future portions of the ingress/egress easement comply with the International Fire Code.

4. **Private Right-of-way Constructed and Dedicated to a HOA.**

Additional Landowner/Developer Responsibilities: The landowner/developer shall determine the location and size of rights-of-way to be provided and the standards for the design and construction of the roadway and drainage systems, provided that all private rights-of-way comply with the applicable requirements of this Chapter including, but not limited to, the requirements contained in sub-sections a and b below. The landowner/developer shall secure the necessary licensed, professional personnel to prepare designs, obtain required approvals and permits, and oversee construction.

- a. Prior to issuance of zoning permits for land development activities other than construction of ingress/egress easements and private rights-of-way, installation of

required street signs, additions/renovations to existing structures that are legally permitted, and new construction of accessory structures, all private rights-of-way shall be:

- i. Constructed in the location shown on the approved, recorded plat;
 - ii. Constructed to comply with the City's fire codes, from their point of connection to an existing publicly owned and maintained right-of-way to lot(s) proposed for development; and
 - iii. Inspected pursuant to Section 54-1058, 6.
 - b. The Directors of the Zoning and Planning Department may allow use of a portion of a private right-of-way that was constructed prior to July 18, 2017 that cannot comply with the width clearance requirements of the International Fire Code when: (1) the Director determines that moving the private right-of-way to a different location is not possible due to site constraints, property size, Grand Trees, wetlands, etc.; (2) the applicant submits letters from the providers of emergency services for the subject properties stating they can access all properties utilizing the private right-of-way and (3) all future portions of the private right-of-way comply with the International Fire Code.
5. **Construction Plan Submission.** Roadway and/or drainage construction plans, and subsequent plan revisions, shall be submitted to the Technical Review Committee prior to submittal of applications for land development activities other than additions/renovations to existing structures that are legally permitted and new construction of accessory structures. Such plans shall be submitted to the Technical Review Committee prior to applications for construction of ingress/egress easements or private rights-of-way and installation of required street signs. The submission shall meet the TRC submittal requirements for subdivisions.
- Once TRC approves the roadway and/or drainage construction plans, the landowner/developer may submit application(s) for construction of the ingress/egress easement, private right-of-way, and/or drainage and installation of required street signs. No other permits (other than permits for additions/renovations to existing structures that are legally permitted and new construction of accessory structures) shall be issued for the property until the ingress/egress easement, private right-of-way, and/or drainage, as well as the installation of required street signs, have been inspected and approved by the Public Service Department pursuant to Section 54-1058, 6.
6. **City Inspection.** All roadway and drainage work shall be inspected by the Director of the Department of Public Service for compliance with the submitted plans and specifications prior to the issuance of permits for land development activities other than: construction of ingress/egress easements or private rights-of-way; installation of required street signs; additions/renovations to existing structures that are legally permitted; and new construction of accessory structures. The inspections will be performed to: provide construction documentation; review ingress/egress easements

and private rights-of-way construction according to the City's fire codes; ensure that ingress/egress easements, private rights-of-way, and drainage, have been constructed in compliance with this Chapter; and, if applicable, to ensure street signs have been installed in the correct locations and are in compliance with applicable City ordinances.

After the required City inspection and approval, the landowner/developer may submit permit application(s) for subsequent land development activities.

The landowner/developer shall give a one-week notice prior to beginning work at the site. After the initial notice, a 24-hour notice shall be given prior to beginning each operation (or continuing an operation when the work has been disrupted for more than one work-day).

7. **Certification From The Design Professional.** The design professional shall provide a written statement certifying that to the best of his knowledge, the road and drainage infrastructure has been constructed in accordance with the submitted plans.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1059. Public road standards.

All public roads shall be constructed to City standards pursuant to the requirements of Article 8 and other applicable City codes, except that Non-standard city roads with an earth surface and width as described above, Primary rural roads with an earth, rock or pavement surface and width as described above, and secondary city roads with a rock or pavement surface and width as described above shall be permitted in the agricultural districts if the requirements of this Article are satisfied.

1. **Maintenance Guarantees.** Street and storm water management/drainage systems that are to be dedicated to the City of Charleston for public maintenance shall meet all dedication requirements of the City.
2. **Secondary Rural Road Standards (Maximum of Ten Lots).**
 - a. **General design requirements:**
 - (1) Required right-of-way: The minimum right-of-way width is 50 feet.
 - (2) Required minimum street section: Streets shall be constructed to minimum earth street standards and have a minimum travel way width of 18 feet.
 - (3) Required minimum street elevations: The minimum street centerline elevation at finish grade shall be 6.5 feet above mean sea level.
 - (4) Required minimum profile gradient: The minimum street profile centerline gradient shall be 0.4% except for causeways where land areas adjacent to the road embankment are jurisdictional wetlands or critical area.

- (5) Street centerline minimum curve radius criteria:
 - (a) Street centerline curve radii shall meet AASHTO guidelines for the design speed limit.
 - (b) Where streets are designed for less than 30 mph speed limit, the design professional shall provide supporting design data, including traffic control signage.
 - (c) All roads shall be designed with a minimum road centerline radius of 125 feet.
 - (d) Horizontal sight distances shall be considered in the design process.
 - (e) Vertical curves shall have a minimum length of 100 feet.
 - b. **Roadway Drainage Design.** See the City of Charleston Stormwater Design Standards Manual.
 - c. **Construction Plans and Specifications.** The construction plans shall satisfy the requirements of the Code of the City of Charleston and the City of Charleston Stormwater Design Standards Manual and shall be reviewed and approved through the TRC.
3. **Primary Rural Road Standards.**
- a. **General Design Requirements:**
 - (1) Required right-of-way: The minimum right-of-way width is 50 feet.
 - (2) Required minimum street section: Streets shall have a minimum travel way width of 20 feet. The travel surface shall be at least equal to the type of surface with which it is being connected (pavement, rock, or earth). If development characteristics warrant, the Director of the Department of Public Service can approve a reduction in the surface type. Written requests for a reduction in surface type shall be directed to the Director of the Department of Public Service with an accompanying justification statement.
 - (3) Required minimum street elevations: The minimum street centerline elevation at finish grade shall be 6.5 feet above mean sea level.
 - (4) Required minimum profile gradient: The minimum street profile centerline gradient shall be 0.4% except for causeways where land areas adjacent to the road embankment are jurisdictional wetlands or critical areas.
 - (5) Street centerline minimum curve radius criteria:
 - (a) Street centerline curve radii shall meet AASHTO guidelines for the design speed limit.
 - (b) Where streets are designed for less than a) 30 mph speed limit, the design professional shall provide supporting design data, including traffic control signage.

- (c) All roads shall be designed with a minimum road centerline radius of 125 feet.
 - (d) Horizontal sight distances shall be considered in the design process.
 - (e) Vertical curves shall have a minimum length of 100 feet.
 - b. **Roadway Drainage Design.** See the City of Charleston Stormwater Design Standards Manual.
 - c. **Construction Plans and Specifications.** The construction plans shall satisfy the requirements of the Code of the City of Charleston and the City of Charleston Stormwater Design Standards Manual and shall be reviewed and approved through the TRC.
- 4. **Secondary County Road Standards**
 - a. **General Design Requirements:**
 - (1) Required right-of-way:
 - (a) The minimum right-of-way width is 50 feet, however;
 - (b) The road right-of-way must be of sufficient width to provide for the following:
 - i. Drainage;
 - ii. Pavement or rock travel way;
 - iii. Shoulders;
 - iii. Signage;
 - iv. Trees; and
 - v. Utilities such as street lights and overhead/underground utility lines (electric, telephone, cable TV, gas, water, and sewer).
 - (2) Required minimum street section: Streets shall have a minimum travel way width of 22 feet. The travel surface shall be at least equal to the type of surface with which it is being connected (pavement or rock). If development characteristics warrant, the Public Works Director can approve a reduction in the surface type. Written requests for a reduction in surface type shall be directed to the Public Works Director with an accompanying justification statement.
 - (3) Required minimum street elevations: The minimum street centerline elevation at finish grade shall be 6.5 feet above mean sea level.
 - (4) Required minimum profile gradient: The minimum street profile centerline gradient shall be 0.4% except for causeways where land areas adjacent to the road embankment are jurisdictional wetlands or critical areas.

- (5) Street centerline minimum curve radius criteria:
 - (a) Street centerline curve radii shall meet AASHTO guidelines for the design speed limit.
 - (b) Where streets are designed for less than a 30 mph speed limit, the design professional shall provide supporting design data, including traffic control signage.
 - (c) All roads shall be designed with a minimum road centerline radius of 125 feet.
 - (d) Horizontal sight distances shall be considered in the design process.
 - (e) Vertical curves shall have a minimum length of 100 feet.
 - b. **Roadway Drainage Design.** Shall satisfy the City of Charleston Stormwater Design Standards Manual.
5. **Non-standard County Road Standards.**
- a. **General Design Requirements:**
 - (1) Required right-of-way: The minimum right-of-way width shall be the width of the traveled way plus five feet on either side.
 - (2) Required minimum road section: Roads are not constructed to minimum earth road standards.
 - (3) Required minimum road elevations: The minimum road centerline elevation at finish grade shall be 6.5 feet above mean sea level, if possible.
 - (4) Required minimum profile gradient: N/A.
 - (5) Road centerline minimum curve radius criteria: N/A.
 - b. **Roadway Drainage Design.** The roadway drainage design must show, at a minimum, how the drainage is directed away from the travel way.
 - c. **Construction Plans and Specifications:** N/A.

(Ord. No. 2018-031, § 11, 4-10-18)

Sec. 54-1060. Design and construction requirements.

1. **Road Design.**

- a. **Specific Right-of-Way Information.**
 - (1) Causeways:
 - (a) Streets to be constructed on causeways shall meet all of the requirements contained within these specifications and the causeway shall also meet the following requirements:
 - (b) The minimum street centerline elevation at finish grade shall be 6.5 feet above mean sea level.

- (c) The minimum side slopes shall be 2:1, preferably 3:1 (Horizontal/vertical).
 - (d) The minimum top width of the roadway shall be as defined by the road classification plus six-foot wide shoulders (as measured from the edge of travel way to the face of the guide rail) if SCDOT standard guide rails are constructed. If no guide rails are constructed, nine-foot wide shoulders shall be required on each side of the travel way.
 - (e) The developer shall provide copies of the approved permits or application ID numbers from all applicable regulatory agencies should expanding the causeway roadbed beyond the toe of the original roadbed be required.
- (2) Bridges:
- (a) Bridges shall be designed in accordance with the AASHTO Standard Specifications for Highway Bridges, current edition and interims, as well as meet the following requirements:
 - i. Live load: HS 20-44 loading or an alternate military loading, whichever produces the greatest stress.
 - ii. The minimum travel way centerline elevation shall be 6.5 feet above mean sea level.
 - iii. The minimum width of the bridge shall be 24 feet clear roadway width.
 - iv. The minimum clear width for all bridges on streets with curbed approaches should be the same as the curb to curb width of the approaches, but not less than 24 feet clear roadway width.
 - v. For streets with shoulders and no curbs, the clear bridge width preferably should be the same as the roadway width. However, in no case should it be less than 24 feet or the travel way width plus two feet each side, whichever is greater.
 - vi. Pedestrian ways on the approaches shall be carried across all new structures.
 - vii. SCDOT standard guide rails shall be required.
 - viii. All bridges shall be concrete structures supported on concrete piles.
 - ix. The developer shall provide copies of approved permits from applicable regulatory agencies for the construction of bridges.
 - x. The Public Works Director may consider design alternatives to the aforementioned standards. Any request for design alternatives must be submitted in writing and include details and justifications for each requested alternative. Written approval by the Public Works Director of the requested alternative is required prior to proceeding with construction.

- (3) Temporary Cul-de-sacs: Temporary cul-de-sacs shall be provided when incremental road construction and/or phasing is requested by the developer. Temporary cul-de-sacs shall be constructed as required by this section. Unpaved temporary cul-de-sacs shall require an additional two inches (compacted depth) of base course.

b. **Pedestrians Ways Within Publicly Dedicated Right-of-Way.**

- (1) When placed within the public right-of-way, pedestrian ways shall be constructed as specified below:
 - (a) Asphalt sidewalk:
 - i. An asphalt sidewalk shall have a minimum asphalt thickness of 1½" inches and a minimum base course thickness of four inches. The minimum width for pedestrian ways shall be four feet. All work, materials, methods, and equipment, unless specified otherwise herein, shall be in accordance with the SCDOT (SS).
 - ii. For additional ADA requirements see Section 54-1060, 1.a(2) Bridges.
 - (b) Concrete sidewalk: A concrete sidewalk shall have a minimum thickness of 4" except at driveways where the minimum thickness shall be 6". Transverse expansion joints shall be placed at intervals of not more than 50'. The minimum width for pedestrian ways shall be 4'. All work, materials, methods, and equipment, unless specified otherwise herein, shall be in accordance with the SCDOT (SS).

c. **Road Surfaces Types.**

- (1) Earth roads.
 - (a) The City standard earth roadway is identical in cross section to a City standard paved road except that roadbed stabilization may require that material be mixed into the existing soil material, as needed, to a depth of six inches to achieve suitable compaction. The crown shall be six inches. Department of Public Service inspectors will determine whether the prepared subgrade material and earth road overlay soil are acceptable.
 - (b) A suitable soil is required for a minimum depth of 18 inches to provide a street that will serve the traffic needs in extremely dry, normal, and in wet weather. Where necessary, a stabilizing type soil shall be added and properly mixed with the soil in place for a depth of not less than 0.6 inches.
 - (c) Earth roads, when intersecting with an existing paved road, shall have a paved apron extending to the paved road's right-of-way and when intersecting with a rocked road, shall have a rocked apron extending to the rocked road's right-of-way.

- (2) Rock roads.
 - (a) The City standard rock roadway is also identical in cross section to a City standard paved road except that the subgrade is mixed with a 4" minimum aggregate base course worked into the top 2 inches of the existing subgrade, creating a six-inch deep compacted rock surface, meeting the SCDOT (SS). The road crown shall be a minimum of 6". The rock material shall be crusher-run granite aggregate unless otherwise approved by the Public Works Director.
 - (b) Rocked roads, when intersecting with an existing paved road, shall have a paved apron extending to the edge of the paved road's right-of-way.
- (3) Paved roads. Shall satisfy the requirements of the Code of the City of Charleston.

APPENDIX A

Recommended Tree and Shrub Species for Parking Lot Landscaping and Landscape Buffers

Individual plant characteristics should be taken into consideration when selecting a particular species for a given location. Such characteristics include, but are not limited to, growth habits, cultural requirements, fruiting habits, presence of thorns, attraction to insects, etc.

Recommended Trees

<i>Common Name</i>	<i>Botanical Name</i>
Red Maple	Acer Rubrum
Red Sunset Maple	Acer Rubrum 'Red Sunset'
October Glory Red Maple	Acer Rubrum 'October Glory'
*River Birch	Betula nigra
*Heritage River Birch	Betula nigra 'Heritage'
Pecan	Carya illinoensis
Deodar Cedar	Cedrus deodara
Hackberry	Celtis laevigata
Green Ash	Fraxinus pennsylvanica
Japanese Gingko	Ginkgo biloba
Moraine Honeylocust	Gleditsia triacanthos 'Moraine'
Shademaster Honeylocust	Gleditsia triacanthos 'Shademaster'
Black Walnut	Juglans nigra
Sweetgum	Liquidambar styraciflua
Yellow Poplar	Liriodendron tulipifera
Sycamore	Platanus occidentalis
Southern Red Oak	Quercus falcata
Water Oak	Quercus nigra
Willow Oak	Quercus phellos
Shumard Oak	Quercus shumardii
Live Oak	Quercus virginiana
Scarlet Oak	Quercus coccinea
Laurel Oak	Quercus laurifolia
Bald Cypress	Taxodium distichum
Basswood	Tilia americana
Winged Elm	Ulmus alata
Drake Chinese Elm	Ulmus parvifolia 'Drake'
Green Vase Zelcova	Zelcova serrata 'Green Vase'

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Understory Trees

<i>Common Name</i>	<i>Botanical Name</i>
Cocos Palm	Butia capitata
Eastern Redbud	Cercis canadensis
Flowering Dogwood	Cornus florida
Carolina Silverbell	Halesia diptera
East Palatka Holly	Ilex x attenuata 'East Palatka'
Foster Holly	Ilex x attenuata 'Fosteri'
Hume Holly	Ilex x attenuata 'Hume #2'
Savannah Holly	Ilex x attenuata 'Savannah'
Nellie Stevens Holly	Ilex x 'Nellie R. Stevens'
Natchez Crepe Myrtle (white)	Lagerstroemia indica 'Natchez'
Potomac Crepe Myrtle (med. pink)	Lagerstroemia indica 'Potomac'
Muskogee Crepe Myrtle (lavender)	Lagerstroemia indica 'Muskogee'
Catawba Crepe Myrtle (dk. purple)	Lagerstroemia indica 'Catawba'
Tuscarora Crepe Myrite (dk. pink)	Lagerstroemia indica 'Tuscarora'
Saucer Magnolia	Magnolia soulangiana
Sweetbay Magnolia	Magnolia virginiana
Flowering Crabapple	Malus species
Wax Myrtle	Myrica cerifera
Pistachio	Pistacia chinensis
Cherry Laurel	Prunus caroliniana
Purple Leaf Plum	Prunus cerasifera 'Atropurpurea'
Bradford Pear	Pyrus calleryana 'Bradford'
Aristocrat Pear	Pyrus calleryana 'Aristocrat'
Capitol Pear	Pyrus calleryana 'Capitol'
Palmetto	Sabal Palmetto
Popcorn Tree	Sapium sebiferum
Windmill Palm	Trachycarpus fortunei
Chaste Tree	Vitex agnus-castus
Japanese Ligustrum	Ligustrum japonicum

Buffer Shrubs

<i>Common Name</i>	<i>Botanical Name</i>
Bamboo	Bambusa glaucescens (multiplex)
Sasanqua Camellia	Camellia sasanqua
Pampas Grass	Cordatera sellowiana
Elaeagnus	Elaeagnus pungens
Burning Bush	Euonymus Euonymus alata

APPENDIX A

Buffer Shrubs

<i>Common Name</i>	<i>Botanical Name</i>
Forsythia	Forsythia intermedia
East Palatka Holly	Ilex x attenuata 'East Palatka'
Foster Holly	Ilex x attenuata 'Fosteri'
Hume Holly	Ilex x attenuata 'Hume #2'
Savannah Holly	Ilex x attenuata 'Savannah'
Dwarf Burford Holly	Ilex cornuta 'Dwarf Burford'
Burford Holly	Ilex cornuta 'Burfordii'
Nellie Stevens Holly	Ilex x 'Nellie R. Stevens'
Yaupon Holly	Ilex vomitoria
Anise	Illicium floridanum
Pfitzer juniper	Juniperus chinensis Pfitzeriana'
Japanese Privet	Ligustrum japonicum
Variegated Chinese Privet	Ligustrum sinense 'Variegatus'
Maiden Grass	Miscanthus sinensis 'Gracillimus'
Japanese Silver Grass	Miscanthus sinensis 'Variegatus'
Wax Myrtle	Myrica cerifera
Nandina	Nandina domestica
Oleander	Nerium oleander
Fortunes Tea Olive	Osmanthus fortunei
Fragrant Tea Olive	Osmanthus fragrans
Pittosporum	Pittosporum tobira
Variegated Pittosporum	Pittosporum tobira 'Variegata'
Formosa Firethorn	Pyracantha koidzumi
Majestic Beauty Hawthorn	Raphiolepis umbellata 'Majestic Beauty'
Japanese Cleyera	Ternstroemia gymnanthera

Ornamental Shrubs

<i>Common Name</i>	<i>Botanical Name</i>
Edward Goucher	Abelia Abelia x grandiflora 'Edward Goucher'
Sherwood Abelia	Abelia x grandiflora 'Sherwoodii'
Purpleleaf Japanese Barberry	Berberis thunbergfi 'Atropurpurea'
Harrington Plum-Yew	Cephalotaxus harringtonia
Cotoneaster	Cotoneaster horizontalis
Daylily	Hemerocalis hybrida
Carissa Holly	Ilex cornuta 'Carissa'
Dwarf Horned Holly	Ilex cornuta 'Rotunda'
Dwarf Yaupon Holly	Ilex vomitoria nana

CHARLESTON ZONING ORDINANCE

Ornamental Shrubs

Common Name

Botanical Name

*Heller Holly

Ilex crenata 'Helleri'

*Azalea species

Shore Juniper

Juniperus conferta

Sargeants Juniper

Juniperus chinensis 'Sargentii'

Creeping Juniper

Juniperus horizontalis

Harbour Dwarf Nandina

Nandina domestica 'Harbour Dwarf'

Dwarf Pittosporum

Pittosporum tobira 'Wheeler's Dwarf'

Dwarf Indian Hawthorn

Raphiolepis indica

Evergreen Giant Liriope

Liriope mscarii 'Evergreen Giant'

Adam's Needle Yucca

Yucca filamentosa

Sago Palm

Cycas revoluta

*Dwarf Gardenia

Gardenia jasminoides 'radicans'

Dwarf Crepe Myrtle

Lagerstroemia indica 'Dixie Series'

* Acceptable only if irrigation is provided.

APPENDIX B

Recommended Native and Naturalized Tree, Shrub and Grass Species for Landscape Buffers

Individual plant characteristics should be taken into consideration when selecting a particular species for a given location. Such characteristics include, but are not limited to, growth habits, cultural requirements, fruiting habits, presence of thorns, attraction to birds and insects, etc.

** E = Evergreen; SE = Semi-Evergreen; D = Deciduous

Recommended Trees

<i>Common Name</i>	<i>Botanical Name</i>	<i>Evergreen / Deciduous</i>
Hedge Maple	<i>Acer campestre</i>	D
Red Maple	<i>Acer rubrum</i>	D
River Birch	<i>Betula nigra</i>	D
Mulberry	<i>Broussonetia papyrifera</i>	D
American Hornbeam	<i>Carpinus caroliniana</i>	D
Bitternut Hickory	<i>Carya cordiformis</i>	D
Pignut Hickory	<i>Carya glabra</i>	D
Pecan	<i>Carya illinoensis</i>	D
Mockernut Hickory	<i>Carya tomentosa</i>	D
Deodar Cedar	<i>Cedrus deodara</i>	E
Hackberry	<i>Celtis laevigata</i>	D
Common Persimmon	<i>Diospyros virginiana</i>	D
American Beech	<i>Fagus grandifolia</i>	D
Green Ash	<i>Fraxinus pennsylvanica</i>	D
Sweetgum	<i>Liquidambar styraciflua</i>	D
Yellow Poplar	<i>Liriodendron tulipifera</i>	D
Black Walnut	<i>Juglans nigra</i>	D
Eastern Red Cedar	<i>Juniperus virginiana</i>	E
Cucumber Magnolia	<i>Magnolia acuminata</i>	D
Southern Magnolia	<i>Magnolia grandiflora</i>	E
Bigleaf Magnolia	<i>Magnolia macrophylla</i>	D
Black Tupelo	<i>Nyssa sylvatica</i>	D
Virginia Pine	<i>Pinus virginiana</i>	E
Slash Pine	<i>Pinus elliotii</i>	E
Longleaf Pine	<i>Pinus palustris</i>	E
Loblolly Pine	<i>Pinus taeda</i>	E
American Sycamore	<i>Platanus occidentalis</i>	D
Cottonwood	<i>Populus deltoides</i>	D
Black Cherry	<i>Prunus serotina</i>	D

CHARLESTON ZONING ORDINANCE

Recommended Trees

<i>Common Name</i>	<i>Botanical Name</i>	<i>Evergreen / Deciduous</i>
Sawtooth Oak	Quercus acutissima	D
White Oak	Quercus alba	D
Scarlet Oak	Quercus coccinea	D
Southern Red Oak	Quercus falcata	D
Laurel Oak	Quercus laurifolia	SE
Swamp Chestnut Oak	Quercus michauxii	D
Water Oak	Quercus nigra	SE
Pin Oak	Quercus palustris	D
Willow Oak	Quercus phellos	D
Shumard Oak	Quercus shumardii	D
Live Oak	Quercus virginiana	E
Black Willow	Salix nigra	D
Bald Cypress	Taxodium distichum	D
Basswood	Tilia americana	D
Winged Elm	Ulmus alata	D
American Elm	Ulmus americana	D
Cedar Elm	Ulmus crassifolia	D

Understory Vegetation

Trees

<i>Common Name</i>	<i>Botanical Name</i>	<i>Evergreen / Deciduous</i>
Red Buckeye	Aesculus pavia	D
Serviceberry	Amelanchier arborea	D
Devil's Walking Stick	Aralia spinosa L.	D
Red Chokeberry	Aronia arbutifolia	D
Paw Paw	Asimina triloba	D
Hornbeam	Carpinus caroliniana	D
Chinquapin	Castanea dentata	D
Southern Catalpa	Catalpa bignonioides	D
Buttonbush	Cephalanthus occidentalis	D
Eastern Redbud	Cercis canadensis	D
White Fringe Tree	Chionanthus virginicus	D
Camphor Tree	Cinnamomum camphora	E
Flowering Dogwood	Cornus florida	D
Riverflat Hawthorn	Crataegus opaca	D
Green Hawthorn	Crataegus viridis	D

APPENDIX B

Understory Vegetation

Trees

<i>Common Name</i>	<i>Botanical Name</i>	<i>Evergreen / Deciduous</i>
Leatherwood	Cyrilla racemiflora	E
Honeylocust	Gleditsia triacanthos	D
Gordonia	Gordonia lasianthos	E
Carolina Silverbell	Halesia diptera	D
Foster Holly	Ilex attenuata 'Fosterii'	E
Cassine Holly	Ilex cassine	E
Myrtleleaf Holly	Ilex cassine 'Myrtifolia'	E
Possum Haw	Ilex decidua	D
Inkberry	Ilex glabra	E
Lusterleaf Holly	Ilex latifolia	E
American Holly	Ilex opaca	E
Black Alder	Winterberry Ilex verticillata	E
Yaupon Holly	Ilex vomitoria	E
Sweetbay Magnolia	Magnolia virginiana	E
Southern Crabapple	Malus angustifolia	D
Hop Hornbeam	Ostrya virginiana	D
Sourwood	Oxydendron arboreum	D
Red Bay	Persea borbonia	E
American Plum	Prunus americana	D
Cherry Laurel	Prunus caroliniana	E
Black Locust	Robinia pseudoacacia	D
Sabal Palmetto	Sabal Palmetto	E
Popcorn Tree	Tallow Tree Sapium sebiferum	D
Horse Sugar	Symplocos tinctoria	E
Salt Cedar	Tamarix gallica	D

Understory Vegetation

Shrubs

<i>Common Name</i>	<i>Botanical Name</i>	<i>Evergreen / Deciduous</i>
Bamboo	Bambusa glaucescens	SE
American Beautiberry	Callicarpa americana	D
Sweetshrub	Calycanthus floridus	D
Cliftonia	Cliftonia monophylla	E

CHARLESTON ZONING ORDINANCE

Understory Vegetation

Shrubs

<i>Common Name</i>	<i>Botanical Name</i>	<i>Evergreen / Deciduous</i>
Deutzia	Deutzia scabra	D
Sweet Pepperbush	Clethra alnifolia	D
Hearts-a-burstin'	Euonymus americanus	D
Witch Alder	Fothergillia major	D
Witch Hazel	Hamamelis virginiana	D
Oakleaf Hydrangea	Hydrangea quercifolia	D
Anise	Illicium floridanum	E
Virginia Willow	Itea virginiana	D
Privet Ligustrum species		E
Fetterbush	Lyonia lucida	E
Wax Myrtle	Myrica cerifera	E
Myrtle	Myrtus communis	E
Feverbark	Pinckneya pubens	D
Native Azalea Rhododendron species		D
Sumac Rhus species		D
Elderberry	Sambucus canadensis	D
Coralberry	Symphoricarpos orbiculatus	D
Sparkleberry	Vaccinium arboreum Marsh	D
Black Highbush	Bilberry Vaccinium atrococ- cum	D
Deerberry	Vaccinium caesium	D
Elliot's Blueberry	Vaccinium elliottSi Chap.	D
Arrowwood	Viburnum dentatum	D
Swamp Viburnum	Viburnum nudum	D
Weigela	Weigela florida	D
Aloe Yucca	Yucca aloifolia	E
Adam's Needle Yucca	Yucca filamentosa	E
Spanish Dagger Yucca	Yucca gloriosa	E

Grasses

<i>Common Name</i>	<i>Botanical Name</i>
Bushy Broomsedge	Andropogon glomeratus
Broomsedge	Andropogon virginicus
Cane	Arundinaria gigantea

APPENDIX B

Grasses

<i>Common Name</i>	<i>Botanical Name</i>
Reed Grass	Calamagrostis cinnoides
Whitetop Sedge	Dichromena latifolia
Sweetgrass	Muhlenbergia filipes
Seaside Panicum	Panicum amarum
Switch Grass	Panicum virgatum
Foxtail Grass	Setaria geniculata
Green Bristlegrass	Setaria viridis
Indian Grass	Sorghastrum sp.
Salt Hay	Spartina patens
Sea Oats	Uniola paniculata

(Ord. No. 2001-14, § 4, 2-27-01)

APPENDIX C
Rules and Regulations
of the
BOARD OF ZONING APPEALS—ZONING
BOARD OF ZONING APPEALS—SITE DESIGN*

Article I. Organization

Section 1. Rules.

These rules of procedure are adopted pursuant to S.C. Code 6-29-790 for the City of Charleston Board of Zoning Appeals—Zoning and Board of Zoning Appeals—Site Design, which consist of seven members each, appointed by City Council.

Section 2. Office of the Boards.

The office of the Board shall be the Urban Design and Preservation Division of the Department of Planning and Preservation.
(Ord. No. 2025-086, § 1, 6-17-25)

Section 3. Officers.

The Board shall elect one of its members chairman, who shall serve one year or until he or she is re-elected or his or her successor is elected and qualified. Each Board shall appoint a staff member of the City as secretary of the Board.

Section 4. Chairman.

The chairman or, in his or her absence, the acting chairman, shall be a voting member of the Board and shall:

- a. Call meetings of the Board;
- b. Preside at meetings and hearings; and swear in witnesses;
- c. Act as spokesperson for the Board;
- d. Sign documents for the Board;
- e. Have orders of the Board served on parties; and
- f. Perform other duties approved by the Board.

***Editor's note**—The Rules and Regulations of the Board of Zoning Appeals—Board of Zoning Appeals—Site Design were last amended at a regular public meeting on Aug, 6, 2008.

Section 5. Secretary.

The secretary shall:

- a. Provide and publish notice of appeals and meetings;
- b. Prepare the agenda;
- c. See that property involved in appeals for variances or special exception is properly posted;
- d. Keep recordings and minutes of meetings and hearings;
- e. Maintain Board records as public records;
- f. Serve Board decisions on parties;
- g. Attend to Board correspondence; and
- h. Perform other duties normally carried out by a secretary.

Article II. Meetings**Section 1. Time and Place.**

The Board of Zoning Appeals—Zoning shall meet on the first and third Tuesdays of each month at 5:15 p.m., except for January and July when no meeting shall be held on the first Tuesday, and the Board of Zoning Appeals—Site Design shall meet on the first Wednesday of each month at 5 p.m., unless such day is a recognized holiday or election day. An annual schedule of regular meetings and submittal deadlines shall be published and posted at the Zoning Division office by December of each year. Special meetings may be called by the chairman upon 24 hours notice, posted and delivered to all members and local news media. Meetings shall be held at the place stated in the notices, and shall be open to the public. Board members shall not discuss the merits of appeals or applications pending before the Board with applicants or other interested parties prior to properly noticed meetings of the Board.

(Amendment of 2-16-16)

Section 2. Agenda.

A written agenda shall be furnished by the secretary to each member of the Board and the news media, and shall be posted at least five (5) days prior to each regular meeting and at least twenty-four (24) hours prior to a special meeting. Items may be removed from the agenda or deferred at a meeting by majority vote.

Section 3. Quorum.

A majority of the members of the Board shall constitute a quorum. A quorum shall be present before any business is conducted other than rescheduling the meeting.

Section 4. Rules of Order.

Robert's Rules of Order shall govern the conduct of meetings except as otherwise provided by these Rules of Procedure.

Article III. Appeal and Application Procedure**Section 1. Appeal or Application Requirements, Time Limits and Fees.**

Appeals from administrative or Board decisions, applications for variances, and applications for special exceptions shall be filed on forms approved by the Board and available to applicants in the Zoning Division office. The Board may require additional information deemed necessary. The failure to submit adequate information may be grounds for dismissal. Meeting agendas are limited to no more than twenty-five (25) new applications and appeals. Each application or appeal shall require a fee as set by City Council.

Section 2. Time Limit for Appeal of an Administrative Decision.

An appeal from an administrative decision must be filed within ten (10) business days after actual notice of the decision by delivery of the approved appeal form and fee to the Zoning Division office.

Section 3. Time Limit and Procedure for Appeal for Reconsideration of a Board Decision to the Board.

An appeal for reconsideration of a decision of the Board must be filed within five (5) business days from the date of the Board's decision, order, requirement or determination by delivery of the approved appeal form and fee to the Zoning Division office. To grant the appeal for reconsideration, the Board must find that it misapprehended or misconceived the question or questions involved, or that it erred in its finding or disposition of the appeal, application or matter. If such appeal is granted by the Board, the decision shall be withdrawn and the matter heard and considered de novo, as if no hearing, consideration or determination had been previously made or heard.

Section 4. Agenda.

Appeals and applications shall be marked with the date of receipt and placed on the hearing agenda in the order in which received. Appeals and applications shall be heard in the order on the calendar unless otherwise set by the Board for good cause shown.

Section 5. Withdrawal of Appeal or Application.

Any appeal or application may be withdrawn by written notice delivered to the secretary prior to action by the Board. An appeal which is withdrawn, may not be refiled after the time limit for appeal has expired.

Section 6. Deferrals.

Parties filing appeals or applications may, after the application has been advertised as part of a meeting's agenda, request that the application be deferred, except in the case of an appeal for reconsideration of a Board decision, which may not be deferred after the application has been advertised as part of an agenda. A request for deferral must be in writing, signed by the applicant or agent, and must identify the meeting date when the application should be heard. Without an extraordinary and compelling reason only one (1) such deferral will be permitted.

Section 7. Notice.

Public notice of a hearing of the Board shall be published in a local newspaper at least fifteen (15) days prior to the hearing. The notice shall contain a description of each matter to be heard and identify the property affected. Notice shall also be posted on or adjacent to the property affected at least five (5) days prior to the hearing. Such notice shall contain a description of the request, the identity of the property affected, the date, time and place of the hearing, and a phone number to call for more information.

Article IV. Hearing Procedure**Section 1. Appearances.**

The applicant or any party in interest may appear in person or by agent or attorney. The Board may postpone or proceed to dispose of a matter on the records before it in the absence of an appearance on behalf of an applicant.

Section 2. Witnesses.

Parties in interest may present testimony under oath. Witnesses may be compelled to attend by subpoena requested at least ten (10) days prior to a hearing and signed by the chairman. The Board may call its own witnesses when deemed appropriate.

Section 3. Evidence.

Relevant documents, photographs, maps, plans, drawings, etc., will be received in the record without authentication in the form of legible copies. Relevant testimony, which is not cumulative, or hearsay will be received. The chairman will rule on all evidentiary matters. Evidence may be placed in the record with an objection noted.

Section 4. Conduct of Hearing.

The normal order of hearing, except for motions for reconsideration of a Board decision, subject to modification by the chairman, shall be:

- a. Presentation by the secretary or designated member of City staff of matter to be heard with a recommendation of the zoning administrator or his/her designated

staff member (if the recommendation of the zoning administrator or his/her designated staff member is in favor of the application and no objection has been filed with the Board and no one is present to oppose the matter, the Board may approve the matter without further presentation);

- b. Presentation by applicant or appellant and others in support of the application or appeal (10-minute limit);
- c. Presentation by opponents (10-minute limit);
- d. Rebuttal by applicant (3-minute limit);
- e. The Board may question participants at any point in the hearing;
- f. Matters in which additional time is granted may be moved to the end of the agenda.

The normal order of hearing for motions for reconsideration of a Board decision, subject to modification by the chairman, shall be:

- a. Presentation by the secretary of the matter to be heard with an explanation of the requirements that must be met by the applicant or appellant for the Board to grant the motion for reconsideration;
- b. Presentation by the applicant or appellant of the motion for reconsideration.
- c. The Board may question the applicant or appellant at any point in the hearing.

Section 5. Disposition.

The Board may deliberate and make a final disposition of a matter by majority vote of members present at the hearing and qualified to vote; provided that not less than a quorum are present and qualified to vote. The vote may be taken at the same or a subsequent meeting. A member may not vote on a matter which the member has not heard. Deliberations shall be conducted and voting shall be in public. When a member has a conflict of interest in a matter being heard, that member shall complete a conflict of interest form for that matter, abstain from voting and leave the room until the matter is disposed of.

Section 6. Form of Order.

An order shall be issued disposing of a matter by granting or denying relief with such conditions as may be deemed necessary; or affirming, modifying, or reversing an administrative decision; or granting or denying an appeal for reconsideration of a Board decision. If an appeal for reconsideration of a Board decision is approved, the decision shall be withdrawn and the matter shall be heard de novo, as if no hearing, consideration or determination has been previously made or heard. A matter may be dismissed for lack of jurisdiction or prosecution. Findings of fact and conclusions of law shall be separately stated in an order.

Section 7. Service of Order.

The secretary shall delivery a copy of an order to each party in interest by certified mail immediately after the five (5) business day appeal period of the Board's decision has expired.

Article V. Records**Section 1. Minutes.**

The secretary shall record all meetings and hearings of the Board on tape which shall be preserved until final action is taken on all matters presented. The secretary shall have minutes of each meeting prepared and maintained as public records.

Section 2. Orders and Documents.

The secretary shall assist in the preparation and service of all orders of the Board in appropriate form. Copies of all notices, correspondence, documentary evidence, orders and forms shall be maintained as public records.

Article VI. Adoption and Amendment**Section 1. Adoption.**

These rules were adopted by vote of a majority of the members of the Board of Zoning Appeals—Zoning at a regular public meeting on December 7, 1999. These rules were amended by a vote of a majority of the members of the Board of Zoning Appeals—Zoning at a regular public meeting on November 16, 2004, and were further amended by a vote of a majority of the members of the Board of Zoning Appeals—Zoning at a regular public meeting on on August 5, 2008.

These rules were adopted by vote of a majority of the members of the Board of Zoning Appeals—Site Design at a regular public meeting on March 1, 2000. These rules were amended by a vote of a majority of the members of the Board of Zoning Appeals—Site Design at a regular public meeting on January 5, 2005, and were further amended by a vote of a majority of the members of the Board of Zoning Appeals—Zoning at a regular public meeting on August 6, 2008.

Section 2. Amendment.

These rules may be amended at any regular meeting of the Board by majority vote of the members of the Board at least seven (7) days after the written amendment is delivered to all members.

APPENDIX D

Rules of Procedure of the Board of Architectural Review*

Article I. Organization

Section 1. Rules.

These Rules of Procedure are adopted by the City of Charleston Board of Architectural Review - Large and City of Charleston Board of Architectural Review - Small (herein "Board") in accordance with the provisions of S. C. Code § 6-29-870 and Section 54-233 (b) of the City of Charleston Zoning Ordinance.

Section 2. Office of the Board.

The office of the Board shall be the Urban Design and Preservation Division of the Department of Planning, Preservation and Sustainability.

Section 3. Officers.

The officers of the Board shall be a chairman and a vice-chairman elected at the first meeting of the Board in each calendar year, and a staff member of the City who shall serve as the secretary of the Board.

- 3.1 **Chairman.** The chairman, or in his absence, the vice-chairman, shall be a voting member of the board and shall:
- a. Call meetings of the Board;
 - b. Preside at meetings and hearings;
 - c. Act as spokesman for the board;
 - d. Sign documents for the Board;
 - e. Have, or cause to have, decisions of the Board served on parties;
 - f. Manage discussion at meetings to assure that it remains pertinent to matters subject to the jurisdiction of the Board; and
 - g. Perform other duties approved by the Board.

***Editor's note**—These rules and regulations were adopted by vote of a majority of the members of the BAR-L at a regular public meeting on August 23, 2017, and by the BAR-S on August 24, 2017. These rules and regulations were amended and adopted by vote of a majority of the members of the BAR-L at a regular public meeting on May 22, 2024, and by the BAR-S on May 23, 2024.

3.2 **Vice-Chairman.** The vice-chairman shall exercise the duties of the chairman in the absence, disability, or disqualification of the chairman. In the absence of the chairman and the vice-chairman, an acting chairman shall be designated by the members present.

3.3 **Secretary.** The secretary shall:

- a. Provide and publish notice of applications, appeals, and meetings;
- b. Prepare the agenda;
- c. Properly post the agenda;
- d. Keep minutes of hearings and meetings;
- e. Maintain Board records as public records;
- f. Notice parties of Board decisions;
- g. Attend to Board correspondence; and
- h. Perform other duties normally carried out by a secretary.

Section 4. Terms of Office.

The Chair and Vice-Chair shall serve for one year or until they are re-elected, or their successors are elected and qualified.

Article II. Meetings

Section 1. Time and Place.

The Board of Architectural Review - Large shall meet on the second and fourth Wednesdays of each month at 4:30 p.m., unless such day is a legal holiday. An annual schedule of regular meetings shall be published and posted at the Urban Design and Preservation Division office in January of each year. Special meeting may be called by the Board upon 24 hours' notice, posted and delivered to all members and local news media. Meetings shall be held at the offices of the Department of Planning and Preservation, unless otherwise noted, and shall be open to the public.

The Board of Architectural Review - Small shall meet on the second and fourth Thursdays of each month at 4:30 p.m., unless such day is a legal holiday. An annual schedule of regular meetings shall be published and posted at the Urban Design and Preservation Division office in January of each year. Special meeting may be called by the Board upon 24 hours' notice, posted and delivered to all members and local news media. Meetings shall be held at the offices of the Department of Planning and Preservation, unless otherwise noted, and shall be open to the public.

(Ord. of 5-23-2024; Ord. No. 2025-086, § 1, 6-17-25)

Section 2. Agenda.

A written agenda shall be furnished by the secretary to each member of the Board and the news media, and shall be posted at least eight (8) days prior to each regular meeting, and at least 24 hours prior to a special meeting. Items may be removed from the agenda, or postponed at a meeting, by a majority vote. An agenda for the BAR-L shall contain no more than 8 (eight) applications, and an agenda for the BAR-S shall contain no more than 15 applications. The Board may waive these limitations, upon the request of the secretary. Minutes, vested rights extensions, and policy items shall not count towards the maximum number of applications allowed on an agenda.

(Ord. of 5-23-2024)

Section 3. Quorum.

A majority of the members of the Board shall constitute a quorum. A quorum shall be present before any business is conducted other than rescheduling the meeting.

Section 4. Rules of Order.

Robert's Rules of Order shall govern the conduct of meetings except as otherwise provided by these Rules of Procedure.

Section 5. Public Notice.

Each applicant whose application is to be heard will be notified of the date of the meeting at least eight (8) days prior to the meeting by letter from the secretary. The property that is the subject of the application shall be posted with a sign at least eight (8) days prior to the meeting. The sign shall contain a description of the matter to be heard and specify the appropriate city department to contact concerning information regarding the application. The sign shall also specify the time, date and location of the meeting.

(Ord. of 5-23-2024)

Article III. Appeals Procedure

Section 1. Form of Appeal of an Administrative Decision.

Appeals to the Board from an administrative decision may be taken by any person aggrieved or by an officer, department, board, or bureau of the City of Charleston. Appeals shall be filed on forms approved by the Board and provided by the secretary of the Board. Appeal forms shall be made available in the City of Charleston Department of Planning and Preservation. A detailed narrative must accompany the appeal, specifying the grounds of appeal. The Board may require additional information deemed necessary. The failure to submit adequate information may be grounds for dismissal.

(Ord. No. 2025-086, § 1, 6-17-25)

Section 2. Time for Appeal for an Administrative Decision.

An appeal from an administrative decision must be filed within fifteen (15) calendar days from the making of such decision, order, requirement or determination.

Section 3. Calendar.

Appeals shall be marked with the date of receipt and placed on the hearing calendar.

Section 4. Withdrawal of Appeal.

Any appeal may be withdrawn by written notice delivered to the secretary prior to action by the Board. An appeal may not be re-filed after the fifteen (15) day time for appeal has expired.

Section 5. Continuances.

The hearing of an appeal may be continued one time by the Board for good cause shown.

Section 6. Notice of Appeal.

Public notice of an appeal to the Board shall be published and posted on or adjacent to the property affected at least eight (8) days prior to the hearing. The notice shall contain a description of each matter to be heard, and identify the property affected.

(Ord. of 5-23-2024)

Section 7. Appeal of Board Decision to Circuit Court.

A person who may have substantial interest in any decision of the Board or any officer or agent of the appropriate governing authority may appeal from a decision of the board to the circuit court in the county by filing with the clerk of court a petition in writing setting forth plainly, fully, and distinctly why the decision is contrary to the law. The appeal must be filed within thirty (30) days after the affected party receives actual notice of the decision of the Board.

Article IV. Hearing Procedure

Section 1. Compliance with Zoning; Neighborhood Meetings.

Except as may be otherwise provided by Ordinance, applications are not to be considered by the Board unless they satisfy all zoning requirements concerning the use of the property, parking, setbacks or other zoning requirements that would affect the size and placement of building. Any Board approval of plans that are determined not to comply with zoning shall render the Board approval null and void; provided however, this rule may be waived in special circumstances if the Board of Zoning Appeals-Zoning or Zoning Administrator requests a recommendation by the Board prior to rendering a zoning decision.

Applicants are encouraged to meet with relevant neighborhood associations and adjacent property owners prior to filing applications with the Board.

The deadline for applications is noon, no later than ten days prior to the requested review date. Schedules, application forms and additional information regarding applications are on file in the Department of Planning and Preservation and at <http://www.charleston-sc.gov/BAR>

(Ord. of 5-23-2024; Ord. No. 2025-086, § 1, 6-17-25)

Section 2. Appearances.

The applicant or any party may appear in person or by agent or by attorney. The Board may postpone, or proceed to dispose of a matter on the record before it in the absence of an applicant, or his representative.

Note—Please note that former Section 2 of Article IV regarding application phases has been moved to the ordinance [preceding the appendices].

Section 3. Conduct of Hearing.

The normal order of hearing, subject to modification by the Chairman, shall be:

- a. Statement of matter to be heard (Chairman or Secretary);
- b. Staff introduction of the project, providing the context and historic background (5minutes) (not applicable to Courtesy Review);
- c. Presentation of the project by the applicant, or in the case of an appeal, the administrative officer (10—15 minutes);
- d. Board and staff questions to, and responses from, the applicant;
- e. Public comment (20-minute limit total, or as determined by the Chairman), followed by responses from Applicant;
- f. Staff recommendation (not applicable to Courtesy Review);
- g. Full Board discussion;
- h. Applicant points of clarification;
- i. Board action (not applicable to Courtesy Review)

Section 4. Disposition.

The Board may deliberate and make a final disposition of a matter by majority vote of members present at the hearing and qualified to vote; provided that no less than a quorum are qualified to vote. The vote may be taken at the same or subsequent meeting. Deliberations shall be conducted and votes taken in public. When a member has a conflict of interest in a matter being heard, that member shall complete a conflict of interest form for that matter, abstain from voting and leave the room until the matter is disposed of.

Section 5. Decisions of the Board.

A decision of the Board shall be issued disposing of a matter by granting approval, denying approval or granting approval with such conditions as may be deemed necessary, or affirming, modifying, or reversing an administrative decision. The secretary shall notify the applicant upon execution of the decision of the Board. The Board may defer action on an application when, in its discretion, a project requires additional study.

Section 6. Staff Approvals.

Board Policy statement dated November 28, 2001 (revised from February 8, 1984), on file in the Department of Planning and Preservation, is a written list of criteria for applications that the Preservation Officer or designee may process and for which the Officer may grant a Certificate of Appropriateness. For such staff approvals, a copy of the Certificate of Appropriateness must be posted on the property by the applicant for a minimum of fifteen (15) days, with proof of such posting being submitted to the secretary.
(Ord. No. 2025-086, § 1, 6-17-25)

**Article V.
Records****Section 1. Minutes.**

The Clerk of Council or Secretary shall record all meetings and hearings of the Board, which shall be maintained as public records.
(Ord. of 5-23-2024)

Section 2. Decisions.

The Secretary shall assist in the preparation and notice of all decisions of the Board in appropriate form. Copies of all notices, correspondence, documentary evidence, decisions and forms shall be maintained as public records.

Section 3. Policies of the board.

The Board may adopt guidelines and policies at its discretion, which will be kept on file at the office of the Board.

**Article VI.
Amendment, Conflicts and Adoption****Section 1. Amendment.**

These rules may be amended at any regular meeting of the Board by majority vote of the members of the Board.

Section 2. Conflicts.

These Rules and Procedure are intended to complement and supplement State law and City ordinances pertaining to design review. To the extent of any inconsistency between these Rules and applicable State law and City ordinances, the hierarchy of application shall be State law first, followed by City ordinance, followed by the provisions of these Rules.

Section 3. Adoption.

These rules and regulations were adopted by vote of a majority of the members of the BAR-L at a regular public meeting on August 23, 2017, and by the BAR-S on August 24, 2017. These rules and regulations were amended and adopted by vote of a majority of the members of the BAR-L at a regular public meeting on May 22, 2024, and by the BAR-S on May 23, 2024. (Ord. of 5-23-2024)

APPENDIX E

RESERVED*

***Editor's note**—Ord. No. 2024-190, § 3, adopted December 17, 2024, repealed App. E, Art. VI, §§ 23-86—23-88, which pertained to Planning Commission and derived from Code 1975, §§ 40-1—40-3, adopted 1975.

APPENDIX F
Rules of Procedure
Planning Commission
City of Charleston

Article I
Organization

Section 1. Rules.

These rules of procedure are adopted pursuant to S.C. Code 6-29-360 for the City of Charleston Planning Commission which consists of nine members appointed by City Council. Initially, three members shall be appointed for a one (1) year term, three members shall be appointed for a two (2) year term and three members shall be appointed for a three (3) year term. Thereafter, all appointments to the Commission shall be for a three (3) year term to keep the terms of appointments staggered.

Section 2. Office of the Commission.

The office of the Commission shall be the Zoning Division office in the Department of Planning and Urban Development, 3rd floor, 75 Calhoun Street, Charleston, South Carolina 29401.

Section 3. Officers.

The officers of the Commission shall be a chairman and vice-chairman elected for one year terms at the first meeting of the Commission in each calendar year. The Commission shall appoint a member of the staff of the City as secretary of the Commission.

Section 4. Chairman.

The chairman shall be a voting member of the Commission and shall:

- a. Call meetings of the Commission;
- b. Preside at meetings and hearings;
- c. Act as spokesperson for the Commission;
- d. Sign documents for the Commission; and
- e. Perform other duties approved by the Commission.

Section 5. Vice-Chairman.

The vice-chairman shall exercise the duties of the chairman in the absence, disability, or disqualification of the chairman. In the absence of the chairman and vice-chairman, an acting chairman shall be elected by the members present.

Section 6. Secretary.

The secretary shall:

- a. Provide notice of meetings;
- b. Prepare agendas for each meeting;
- c. Keep minutes of meetings and hearings;
- d. Maintain Commission records as public records;
- e. Attend to Commission correspondence;
- f. Transmit Commission recommendations to the Clerk of Council; and
- g. Perform other duties normally carried out by a secretary.

**Article II
Meetings****Section 1. Time and Place.**

The Planning Commission shall meet on the third Wednesday of each month at 5 p.m., unless such day is a legal holiday. An annual schedule of regular meetings and submittal deadlines for the upcoming year shall be published and posted in the Zoning Division office by December of each year. Special meetings may be called by the chairman upon 24 hours notice, posted and delivered to all members and local news media. Meetings shall be held at the place stated in the notices, and shall be open to the public.

Section 2. Agenda.

A written agenda shall be furnished by the secretary to each member of the Commission and the news media, and shall be posted at least five (5) days prior to each regular meeting, and at least twenty-four (24) hours prior to a special meeting. Items may be added to the agenda at a meeting by majority vote.

Section 3. Quorum.

A majority of the members of the Commission shall constitute a quorum. A quorum shall be present before any business is conducted other than rescheduling the meeting.

Section 4. Rules of Order.

Robert's Rules of Order shall govern the conduct of meetings except as otherwise provided by these Rules of Procedure.

Section 5. Voting.

A member must be present to vote. Each member shall vote on every question unless disqualified by law. The question of disqualification shall be decided by the member affected,

who shall announce the reason for disqualification, give it to the chairman in writing, have it placed in the minutes, refrain from deliberating or voting on the question, and leave the room until the matter is disposed of.

Section 6. Conduct.

Except for public hearings, no person shall speak at a Commission meeting unless invited to do so by the Commission.

Article III Public Hearings

Section 1. Notice.

The secretary shall give the notice required by statute or ordinance for all public hearings conducted by the Commission.

Section 2. Procedure.

In matters brought before the Commission for public hearing which were initiated by an applicant, the applicant, his agent or attorney shall be heard first after presentation of the issue by staff, members of the public next. The applicant shall have the right to reply last. No person may speak for more than five (5) minutes without consent of the Commission. No person speaking at a public hearing shall be subject to cross-examination. All questions shall be posed by member of the Commission.

Article IV Records

Section 1. Minutes.

The secretary shall record all meetings and hearings of the Commission on tape which shall be preserved until final action is taken on all matters presented. The secretary shall prepare minutes of each meeting for approval by the Commission at the next regular meeting. Minutes shall be maintained as public records.

Section 2. Reports.

The secretary shall assist in the preparation and forwarding of all reports and recommendations of the Commission in appropriate form. Copies of all notices, correspondence, reports and forms shall be maintained as public records.

Section 3. Attendance.

The minutes shall show the members in attendance at each meeting and the reason for absence submitted by any member. The Commission shall recommend to the governing body the removal for cause of any member who is absent from three (3) consecutive meetings without adequate reason.

**Article V
Review Procedure****Section 1. Zoning Amendments.**

Proposed zoning text and district amendments shall be considered and recommendations shall be forwarded to the governing body within thirty (30) days after receipt of the proposed amendments, unless additional time is given by the governing body. When so authorized, the Planning Commission shall conduct any required public hearing prior to making a recommendation.

Section 2. Plats.

Plats submitted for review by the Commission pursuant to land development regulations shall be presented by staff and reviewed by the Commission after a public hearing is held.

Section 3. Comprehensive Plan.

All zoning and land development regulation amendments shall be reviewed first for conformity with the comprehensive plan. Conflicts with the comprehensive plan shall be noted in any report to the governing body on a proposed amendment. The elements of the comprehensive plan shall be reviewed and updated on a schedule adopted by the Commission meeting the requirements of S.C. Code 6-29-510(E).

Section 4. Reconsideration.

The Commission may reconsider any review when so requested by the governing body, or when an applicant brings to the attention of the Commission new facts, a mistake of fact in the original review, correction of clerical error, or matters not the fault of the applicant which affect the result of the review.

**Article VI
Adoption and Amendment****Section 1. Adoption.**

These rules were adopted by vote of a majority of the members of the Commission at a regular public meeting on May 19, 1999.

Section 2. Amendment.

These rules may be amended at any regular meeting of the Commission by majority vote of the members of the Commission at least seven (7) days after the written amendment is delivered to all members.

APPENDIX G
CANTERBURY WOODS PUD
"CW-PUD"
DEVELOPMENT GUIDELINES

a. Purpose and Intent

Purpose and intent of these guidelines is to set forth minimum design standards to be utilized in the implementation of the development plan for Canterbury Woods as a planned development district. The objective of Canterbury Woods is a creation of a residential community which is aesthetically pleasing and functionally convenient. The developer wishes to improve the standard zoning with a development of more open spaces, recreation and less density while providing both single family homes and patio homes that the consumers have demanded in their lifestyle decisions. The developer's goal is the creation of a harmonious community that accents the scenic and natural setting of the land.

b. Land Use

The land use districts permitted within Canterbury Woods development shall be as follows:

	<i>Acreage</i>	<i>Gross Units</i>	<i>Net Density</i>
1. Residential			
(a) Single Family	93.5	24.6	2.63
(b) Patio Homes	<u>29.5</u>	<u>134</u>	4.54
Subtotal	123.0	380	—
2. Recreational			
(a) Common Area	38	—	—
Open Space Including			
Pool, Tennis,			
Playground, Lake, Buf-			
fers, Trails			
(b) SCE&G Right of Way	<u>10</u>	—	—
Subtotal	48	—	—
Total	171	—	2.23

c. Setback Criteria

1. Single Family - 10,000 square foot lots
 - (a) Setbacks (including garages and carports)
 - (1) Front yards: 30` minimum setback from road right of way
 - (2) Side yards: 8` minimum setback with a 20` aggregate
 - (3) Rear yards: 20` minimum setback. See Item (c) for additional requirements on marsh lots
 - (4) Corner lots: 30` minimum on both right of way frontages

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- (b) Accessory structure setbacks (not including garages and carports)
 - (1) Front yard: 30` minimum setback from road right of way
 - (2) Side yard: 5` minimum setback
 - (3) Rear yard: 5` minimum setback
- (c) Additional Rear Yard Setbacks for Marsh Lots Lots fronting Church Creek Marsh shall have a rear yard buffer setback in addition to the rear yard setbacks indicated above in (a)(3) and (b)(3). This rear yard buffer shall be 20 feet. No structure (buildings, fences, etc.) shall be allowed in this buffer. Applicable lots are 11, 12, Block B and 4, 5, 6, 7, 8, 14, 15, 16, 17, 18, 19 of Block E as identified on a Canterbury Woods plat plan prepared by Enwright Associates dated February 3, 1984.
- (d) Lot size: Minimum 10,000 square feet.
- (e) Lot occupancy: Maximum 30 percent.
- (f) Height requirements are as specified in City of Charleston Zoning Ordinance (SR-1).
- (g) Lot width shall be a minimum of 20 feet at road right-of-way.

2. Single-Family - 8,000 square foot lots

- (a) Setbacks (including garages and carports)
 - (1) Front: 25`
 - (2) Side: 8`
 - (3) Rear: 8`.
- (b) Accessory structure setbacks (not including garages and carports): Same as A-1.
- (c) Lot size: Minimum 8,000 square feet.
- (d) Lot occupancy: Maximum 35 percent.
- (e) Height is as specified in City of Charleston Zoning Ordinance (SR-1).
- (f) Lot width shall be a minimum of 20 feet at road right of way.

3. Patio Homes

- (a) Setbacks
 - (1) Front yard: 25` minimum setback from road right of way
 - (2) Side or interior yard:
 - i. 2` mandatory setback from zero lot line with no roof drainage allowed on the neighboring property.
 - ii. 10` minimum setback on non zero lot line side yard.
 - (3) Rear yard: 15` minimum setback
 - (4) Corner lots: 25` minimum setback from road right-of-way (Front Yard) shall apply to only one (1) frontage.

APPENDIX G

(b) Accessory structure setbacks

(1) Garages or Carports

- i. Front yard: 13` minimum setback from road right-of-way.
- ii. Side yard: 2` minimum setback from zero lot line and 2` minimum setback from non zero lot line side yard.
- iii. Rear yard: 15` minimum setback.

(2) Other accessory structures

- i. Front yard: no required setback.
- ii. Side yard: 2` minimum setback from zero lot line and 2` minimum setback from non zero lot line side.
- iii. Rear yard: no required setback.

(c) Additional Rear Yard Setbacks for Marsh Lots Lots fronting Church Creek Marsh shall have a rear yard buffer setback in addition to the rear yard setbacks indicated above in (a)(3), (b)(1)iii., and (b)(2)iii. This rear yard buffer shall be 25`. No structures (fences, buildings, etc.) shall be allowed in this buffer.

(d) Lot size is 4,000 square feet minimum.

(e) Bulk requirement is a maximum height measured from finished grade at the building foundation.

(f) Height requirement is 35` maximum height measured from finished grade at the building foundation.

(g) Lot width shall be a minimum of 20` at road right-of-way.

d. Master Plan

Use of all property within the Canterbury Woods PUD shall be restricted in accordance with the Revised Master Plan prepared by W. Warren Pruitt, ASLA, and dated August 20, 1987, attached to and made a part hereof.

e. Lot Criteria

Canterbury Woods' goal is to provide a natural setting that maximizes the beauty of each lot. The developer or his assignees will enforce this condition. All lots shall be used for residential purposes exclusively.

f. Fences and Walls

1. Single Family. Fences within the front yards will not be allowed between the road right-of-way to the house. Rear yard fences shall be a maximum of 6`. The fences shall be made of natural materials such as wood or brick. No chain link fences will be allowed.

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2. Patio Homes

- (a) Patio walls (wall adjacent to the zero lot line, not the building wall itself) shall be a minimum of 6` and a maximum of 8` in height. This wall shall extend a minimum of 15` from the rear wall of the building. Patio walls shall be set back a minimum of 13 feet from the front property lines and 2` from the zero lot line.
- (b) Privacy wall or fence (wall occurring elsewhere and is not identified as the patio wall) shall be a maximum of 6` in height. The front setback shall be a minimum of 13`; the non zero lot line side yard setback shall be a minimum of 2`; and there is no setback requirement for the rear yard.
- (c) Both patio walls and privacy walls or fences shall be constructed of natural materials such as brick or wood. They shall not allow visibility into the adjoining property. Chain link fences will not be allowed.

g. Off-Street Parking Requirements

The number of off-street parking spaces required for this development shall be as follows:

- 1. Residential - As specified in the City of Charleston Zoning Ordinance.
- 2. Pool and Playground - As specified in the Zoning Ordinance.
- 3. No permanent parking of vehicles on the street is permitted.

h. Screening

Existing vegetation will be retained wherever possible to provide screening. Additional landscape materials will be added where necessary.

i. Streets

All streets shall be constructed in accordance with the City subdivision regulations and road code. These streets shall be dedicated to the public. All streets shall be public.

j. Phasing

The project will be built in phases. The construction phasing sequence for the residential portion of the project, if any, will be done as follows:

Phase I 1984

Phase II 1985

Phase III 1986

Phase IV 1987

The developer reserves the right to alter this schedule due to any unforeseen market conditions.

k. Water, Sewerage and Other Amenities

Maintenance of the water, sewer system and trash removal, until it is accepted by a local governmental entity, is the responsibility of the developer. Drainage easements, upon approval, will be dedicated to the public.

APPENDIX G

The swimming pool and other open space amenities will be owned and maintained by the developer until such time as they are turned over to the Homeowners Association.

l. Lake Character

1. Owners of lots fronting on lakes will not erect or construct any dock or pier.
2. Any lake maintenance costs will be the responsibility of the Homeowners Association.
3. No boat of any nature shall be placed on the lake unless the same shall:
 - (a) Be propelled by sail, oars, or paddle. Motors of any type are prohibited.
 - (b) Not exceed twelve (12) feet in length and four (4) feet in width.
 - (c) Be maintained in an orderly manner.

m. Outbuildings

No structure of a temporary nature shall be erected or allowed to remain on any lot, and no trailer, camper, shack, tent, garage, barn or other structures of a similar nature shall be used as a residence or for any other purpose, either temporary or permanent; provided, however, that nothing contained in this paragraph shall be construed to prevent those engaged in construction from using sheds or other temporary structure as offices or storage shelters for material during periods of construction.

n. Public Services

Fire protection, garbage collection, and police services shall be provided by the local governmental agencies.

o. Signs

The placement and design of signs will be limited to project identification and shall be made of wood and/or masonry materials. All signs shall be approved by City of Charleston Zoning Division.

Signs to be erected are:

1. Main entrance on Glendale Avenue will consist of an entrance sign constructed in the main entrance island. The sign will not exceed 32 square feet in size, eight (8) feet in height and six (6) feet in width. The sign will not be placed within five (5) feet of the curb.
2. The secondary entrance sign on Pinehurst Avenue will be placed in a common open space area, placed on the right of road right of way. The sign will not exceed 20 square feet in size, five (5) feet in height and four (4) feet in width.
3. Patio home neighborhood clusters will have an entrance sign on each entrance road. The sign will be placed in a common open space area, placed on the right of the road right of way. These signs shall not exceed 16 square feet in size, four (4) feet in height and three (3) feet in width.

CHARLESTON ZONING ORDINANCE

4. Single family home neighborhoods will have one entrance sign placed in a common open space area, placed to the right of the road right of way. These signs shall not exceed 16 square feet in size, four (4) feet in height and three (3) feet in width.
5. Each recreational area shall have one entrance sign placed in common open space area, placed to the right of the road right of way. These signs shall not exceed 16 square feet in size, four (4) feet in height and three (3) feet in width.

No commercial signs are allowed with exception to realtor signs. The realtor signs will conform to City of Charleston regulations.

p. Critical Line

There are no areas within the surveyed boundary that are below the critical line as determined by the South Carolina Coastal Council.

q. Site Plan

Site plan approval will be obtained from City of Charleston Zoning Office prior to obtaining building permits.

APPENDIX H
RESERVED*

***Editor's note**—Ord. No. 2013-143, § 8, adopted Dec. 3, 2013, repealed former App. H in its entirety which pertained to the subdivision plat approval process and derived from this codification of the zoning ordinance and from Ord. No. 1999-54, § 4, adopted April 27, 1999.

APPENDIX I
STREET NAMING POLICY
City of Charleston
July 1995

All streets to be platted within the city of Charleston must be named in accordance with the following policies. These policies address four issues:

1. Choosing a proper street name.
2. Choosing a proper street suffix (boulevard, avenue, court, etc.).
3. Properly applying street names to a proposed street layout.
4. Changing an existing street name.

All preliminary plats must indicate proposed street names for all streets shown on the preliminary plat. The GIS Division shall have the final approval for all street names and suffixes.

1. Choosing a proper street name.

Proposed street names will be checked with the most current list of existing street names in Charleston County and Berkeley County. Proposed street names which duplicate or might be confused with existing street names in either County will be rejected.

2. Choosing a proper street suffix.

Street suffixes should be chosen based on the width and design of the proposed street. Within neighborhoods, street suffixes should be used to reinforce the neighborhood's street hierarchy. The GIS Division is responsible for approving proposed street suffixes.

The following is a list of acceptable street suffixes. Suffixes other than those listed may be used with the approval of the GIS Division .

Alley	Avenue	Bend
Bluff	Boulevard	Circle
Court	Crescent	Crossing
Drive	Expressway	Highway
Landing	Lane	Loop
Parkway	Pass	Path
Pike	Place	Point
Road	Row	Run
Spur	Street	Terrace
Trace	Trail	View
Walk	Way	

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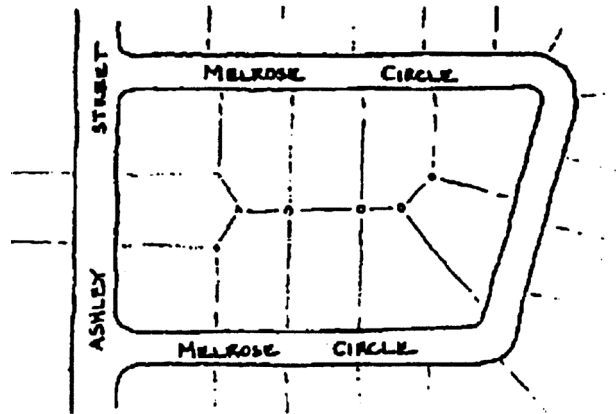
3. Properly applying street names to a proposed street layout.

Street names must be applied to a proposed street layout in accordance with the following procedures. The GIS Division is responsible for approving the application of proposed street names.

- a. Street names shall not change within a street. Extensions of existing streets should use the same name as the existing street. Streets should not change names except in the following circumstances: (offsets and 90 degree turns)
- b. Thumbnail cul-de-sacs with a depth of more than 50 feet and four or more lots fronting on the cul-de-sac may require a separate street name if the GIS Division determines that the configuration of the lots and street would prevent the thumbnail cul-de-sac lots from being visible from the through street.
- c. Existing patterns of applying street names within the area surrounding the proposed subdivision should be considered.
- d. The application of street names should be as simple and sensible as possible. Unnecessary changes in street names create more confusion.

4. Changing an existing street name.

The changing of an existing street name requires approval by the Planning Commission.



Choosing a Proper Street Suffix

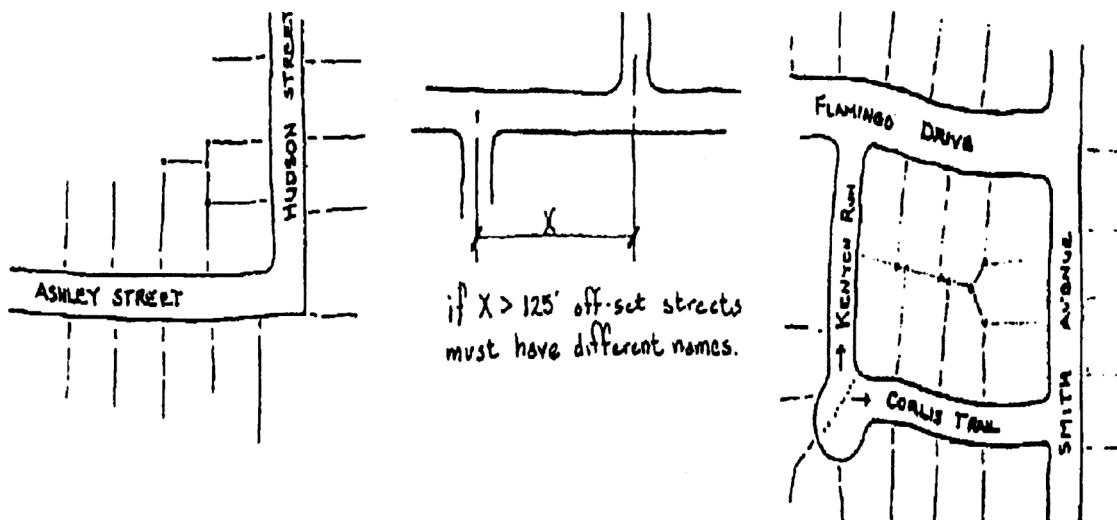
** Intended to be used only for dead-end or cul-de-sac streets.

3. Properly applying street names to a proposed street layout.

Street names must be applied to a proposed street layout in accordance with the following procedures. The Planning Commission is responsible for approving the application of proposed street names.

APPENDIX I

- a. Street names shall not change within a street. Extensions of existing streets should use the same name as the existing street. Streets should not change names except in the following circumstances: (offsets and 90 degree turns)



Properly Applying Street Names

- b. Thumbnail culs-de-sac with a depth of more than 50 feet and four or more lots fronting on the cul-de-sac may require a separate street name if the Planning Commission determines that the configuration of the lots and street would prevent the thumbnail cul-de-sac lots from being visible from the through street.
- c. Existing patterns of applying street names within the area surrounding the proposed subdivision should be considered.
- d. The application of street names should be as simple and sensible as possible. Unnecessary changes in street names create more confusion.
- (Ord. No. 2002-121, § 1, 10-22-02; Ord. No. 2015-105, § 2, 8-18-2015)

APPENDIX J

Cainhoy District Development Guidelines*

- A. The intent of the Cainhoy Zoning District is to provide for appropriate sites for the establishment of a broad range of residential, commercial and industrial uses within the Cainhoy Peninsular portion of the City. In any Cainhoy CY Zoning District, land may be used and buildings or structures may be erected, altered or used for any purpose except the following prohibited uses:
- (1) Mobile home parks or the use of a mobile home as a form of housing. Nothing contained herein shall prohibit the use of a mobile home within the Cainhoy Zoning District for temporary commercial purposes, including temporary construction offices, temporary sales offices or other temporary commercial uses.
 - (2) Adult book stores, adult drive-in motion picture theaters, adult mini-motion picture theaters, adult motion picture theaters, adult show bars, bath houses or massage parlors. Nothing contained in this subsection shall be construed to apply to the exhibition, presentation, showing or performance of any play, ballet, drama, tableau or production in any theater, concert hall, auditorium, museum of fine arts, school, institution of higher learning or other similar establishment which is primarily devoted to such exhibitions, presentations, shows or performances as a form of expression or opinion, communication, speech, ideas, information, art or drama.
 - (3) Stockyards.
 - (4) Junkyards.
 - (5) Storage yards which are primarily for outdoor storage equipment (excluding storage yards which are accessory uses and storage yards for vehicles and boats). The Board of Zoning Appeals, however, after review, shall permit such yards as an exception when it finds that adequate provision and maintenance of visual screening by fence, planting or other means from a public street or road or an adjacent residential zoning district will be provided.
 - (6) Landfills, sanitary landfills or any similar use involving the burial of trash, garbage or hazardous wastes between layers of dirt.
- B. Parcels of property within the Cainhoy Zoning District shall be developed in accordance with approved "Development Plans," as hereinafter defined. A "Development Plan" is a general development plan which sites the roads, proposed use areas, buffers and the relationship of proposed uses to adjacent properties and which includes acreage of not less than 150 acres. Each Development Plan shall be presented at two public hearings, one before Planning Commission and one before City Council. The scope of review at

***Editor's note**—Ord. No. 1999-54, § 4, adopted Apr. 27, 1999, amended this zoning ordinance by changing all references to "Board of Adjustment—Zoning" to "Board of Zoning Appeals—Zoning" and "Board of Adjustment—Site Design" to "Board of Zoning Appeals—Site Design" and also, "Planning and Zoning Commission" to "Planning Commission." Accordingly, all references herein have been changed.

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such public hearings shall be limited to comment and review of the relationship of the proposed uses to roads, buffers and adjacent properties. The public bodies shall not have the right to restrict the use or density of the property as a result of such review of a proposed Development Plan. The approved Development Plan shall fix the uses and densities for the property contained within the Development Plan after its approval and the issuance of the first certificates of occupancy.

Any subsequent change in use or densities after the issuance of the first certificate of occupancy for a specific Development Plan shall require the approval of City Council upon a recommendation of the Planning Commission. Prior to the issuance of the first certificate of occupancy, a Development Plan may be abandoned by written notice to the zoning administrator without penalty or consequence to the owner of the property. Likewise, minor modifications to the Development Plan may be made upon written approval of City Planning Department staff.

- C. After the approval of a Development Plan and prior to the issuance of a building permit, all development within the Cainhoy Zoning District shall be subject to site plan review in accordance with the provisions of Article 6 of the Zoning Ordinance, unless otherwise exempt by the specific provisions of Section 54-603. The City of Charleston generally recognizes the importance of historic sites as physical links to the past and particularly recognizes the importance of the individual sites and the cultural landscapes of the area included within the bounds of Cainhoy Plantation as significant to the Wando River and Cooper River regions of the Carolina Lowcountry. Therefore, the site plan shall explicitly identify the location of any historic markers, structures, foundations, graveyards or earthworks and mark these accordingly. At the time of submission of a preliminary site plan, the intended use or uses of such property shall be indicated on such site plan or on a separate submission to the Technical Review Committee of the City of Charleston, and such development shall be subject to the area, height, setback and other requirements set forth in the Zoning Ordinance for the District most nearly approximating such intended use as determined by the zoning administrator at the time of the submission. For purposes of this subsection, the determination by the zoning administrator of the area, height, setback and other requirements set forth in the Zoning Ordinance shall be ministerial rather than discretionary in nature. The area addressed within each site plan review need not include all of the area of the Development Plan.
- D. Notwithstanding the flexible nature of the Cainhoy Zoning District and the variety of uses permissible within the Cainhoy Zoning District, the building and other standard code requirements of the City of Charleston for any property within the Cainhoy Zoning District shall be governed by the actual use of such property.
- E. (1) All property within the Cainhoy Zoning District shall be excluded from the bird sanctuary provisions of Section 5-22 of the general Ordinances of the City of Charleston to the extent such Ordinance prohibits the hunting of Game Birds, as such term is defined under Section 50-1-30(1) of the Code of Laws of South Carolina, 1976, as

APPENDIX J

amended. The hunting of Game Birds shall be allowed within any property zoned Cainhoy Zoning District, subject, however, to the terms and provisions of this Section. The hunting, shooting, trapping or destruction of Nongame Birds, as defined in Section 50-1-30(3) of the South Carolina Code of Laws, shall be prohibited within such Cainhoy Zoning District.

- (2) Notwithstanding any other provision to the contrary of the general Ordinances of the City of Charleston, the hunting of Game Birds and Game Animals, as defined in Section 50-1-30(4) of the South Carolina Code of Laws, 1976, as amended, and the discharge of recreational firearms within properties zoned Cainhoy Zoning District shall be permitted, subject, however, to the following.
 - (a) All such hunting shall be subject to the game and hunting statutes, Ordinances, laws and regulations of the State of South Carolina and the County of Berkeley; and
 - (b) No such hunting shall take place on any lands containing less than 100 contiguous acres under common ownership or control.
- F. Notwithstanding the provisions of Section 54-821 of the Zoning Ordinances of the City of Charleston, or any other provision of the general Ordinances of the City of Charleston, dirt, ROC or pervious surface roads (collectively "Dirt Roads") may be utilized in any residential subdivision within properties zoned Cainhoy Zoning District so long as such residential subdivision shall have a maximum overall density of 0.33 dwelling units per acre. For purposes of this subsection, per acre density shall be determined by a fraction, the numerator of which shall be the total number of dwelling units in the applicable residential development or residential neighborhood ("Units") and the denominator of which shall be the entire residential land mass, which is the residential development acreage (the "Project Acreage"). All open space areas, road rights-of-way, freshwater wetlands, common areas, amenity areas, or areas within such development encumbered by conservation easements or deeded to property owner's associations or land conservation organizations shall be included in the total land mass area calculation, but marshland and areas below the South Carolina Office of Ocean and Coastal Resource Management Critical Line shall be excluded from such calculations. Dwelling units and land mass in other residential developments, whether adjacent to or in the vicinity of the Project Acreage, shall not be included in such calculations. All such roads shall be constructed in accordance with City of Charleston standards for such Dirt Roads and shall be private. In the event future development increases the density of the Project Acreage to a level greater than 0.33 dwelling units per acre, all such Dirt Roads, including access roads, shall be improved by the Owner to City Standards.
- G. (1) Notwithstanding the provisions of Article 3: Part 6, 7 & 8 of the Zoning Ordinances of the City of Charleston, all lands within the Cainhoy Zoning District which are developed for light or heavy industrial uses or developed as golf courses shall be exempt from all provisions of such Article 3: Part 6, 7 & 8 with the exception of Section 54-347

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and Section 54-348; provided, however, that no protected tree or grand tree may be removed from any such light or heavy industrial property without the prior approval of the zoning administrator. The zoning administrator shall approve any such removal where any of the following conditions exist:

- (a) The protected tree or grand tree is located within the proposed footprint of any building or other structure to be constructed within such property, or within twenty-five feet (25) of such building, accessory structure or other improvement. No tree survey shall be required for the footprint of any light or heavy industrial building, or other structure; or
 - (b) The protected tree or grand tree is located in the path of any public or private street, road, driveway or other right-of-way and the zoning administrator determines that no other reasonable design or economically reasonable alternative exists to save the tree; or
 - (c) The protected tree or grand tree creates unsafe vision on a public street or right-of-way as defined by Section 54-351; or
 - (d) With respect to parking areas and walkways, the zoning administrator determines that no other reasonable design or economically reasonable alternative exists to save the tree; or
 - (e) The removal of such protected tree or grand tree is otherwise permitted under Article 3: Part 6 of this Zoning Ordinance.
 - (2) The provisions of Article 3: Part 6, 7 & 8 of the Zoning Ordinance of the City of Charleston shall apply to all lands within the Cainhoy Zoning District which are developed for uses other than light or heavy industrial uses or golf courses, except that the removal of any protected tree or grand tree shall be approved if the zoning administrator finds that the protected tree or grand tree is located within the proposed footprint of any general commercial building or accessory structure and the zoning administrator determines that no other reasonable design or economically reasonable alternative exists to save the tree.
- H. Land which is located within one thousand feet (1,000') of the Wando River and Beresford Creek, as measured from the Critical Line adjacent to such waterway as established by the South Carolina Office of Ocean and Coastal Resources Management, shall not be used for light industrial or heavy industrial uses.
- I. Notwithstanding any other provision of the general Ordinances or Zoning Ordinances of the City of Charleston to the contrary, the following uses shall be exempt from the provisions of Article 3: Part 6, 7 & 8 the City of Charleston Zoning Ordinance, and shall be allowable within any property zoned Cainhoy Zoning District:
- (a) Commercial Timber Operations, including the cutting and harvesting of trees and forests.
 - (b) Commercial Tree Operations, including the growing of trees specifically for sale by commercial nurseries.

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- (c) Agriculture Uses. Any bona fide agricultural use shall be allowable.
 - (d) Silviculture, Horticulture and Nursery Operations.
- J. All nonresidential development which is adjacent to residential development with the Cainhoy Zoning District shall require landscaped buffers along common boundary lines with such residential development, as follows:
- (a) Office and commercial development shall require a minimum buffer of fifty feet (50') in width.
 - (b) Warehousing, shipping, light manufacturing and other types of light industrial uses shall require a building setback and landscaped buffer of 100 feet from adjacent residential uses.
 - (c) Heavy industrial uses shall require a building setback from adjacent residential uses of 300 feet, of which the first 200 feet shall be a landscaped buffer.
- For purposes of this subsection, landscaped buffer areas shall mean a natural or a landscaped vegetative buffer intended to separate and screen incompatible land uses from one another.
- K. All light and heavy industrial uses shall require a building setback five hundred feet (500') from the Saint Thomas Church property line, as it exists at the adoption of this Ordinance, and a two-hundred-foot (200') natural buffer adjacent to such property line, within which an access road or roads may be constructed. No building shall be constructed having a height in excess of fifty feet (50') within one thousand (1,000) feet of Saint Thomas Church.
- L. For all Industrial uses, prior to the widening of Clements Ferry Road (Road 33), there shall be a landscaped buffer of one hundred feet (100'). After the widening of Clements Ferry Road, there shall be a landscaped buffer of seventy-five feet (75').
- (Ord. No. 1998-113, § 1, 5-26-98)

APPENDIX K
DESIGN REVIEW BOARD
Rules of Procedure*

Article I.
Organization

Section 1. Rules.

These rules of procedure are adopted pursuant to S.C. Code 6-29-870 for the City of Charleston Design Review Board, which consist of seven (7) members and two (2) alternates appointed by City Council.

(Ord. No. 2022-009, § 3, 1-15-22)

Section 2. Office of the Board.

The office of the Board shall be the Design and Preservation Division in the Department of Planning, Preservation and Sustainability, 3rd floor, 75 Calhoun Street, Charleston, South Carolina 29401.

Section 3. Officers.

The Board shall elect one of its members Chairman and one member Vice-Chairman. The Board shall appoint a secretary who is an officer of the governing authority of the Design Review Board.

- a. Chairman.** The Chairman, or in his absence the Vice-Chairman, shall be a voting member of the Board and shall:

 - 1. Call meetings of the Board;
 - 2. Preside at meetings and hearings;
 - 3. Act as spokesperson for the Board;
 - 4. Sign documents for the Board;
 - 5. Have decisions of the Board served on parties; and
 - 6. Perform other duties as approved by the Board.
- b. Vice-Chairman.** The Vice-Chairman shall exercise the duties of the Chairman in the absence, disability, or disqualification of the Chairman. In the absence of the Chairman and Vice-Chairman, an acting chairman shall be elected by the members present.

***Editor's note**—These rules were adopted by the Design Review Board on November 8, 2012.

c. Secretary. The Secretary shall:

1. Provide and publish notice of appeals and meetings;
2. Prepare the agenda for each meeting;
3. Keep recordings and minutes of meetings and hearings;
4. Maintain Board records as public records;
5. Notice parties of Board decisions;
6. Attend to Board correspondence; and
7. Perform other duties normally carried out by a secretary.

Section 4. Terms of Office.

The Chairman and Vice-Chairman shall serve for one year or until he/she is re-elected or his/her successor is elected and qualified.

(Ord. No. 2022-009, § 4, 1-25-22)

Section 5. Attendance.

The minutes shall show the members in attendance at each meeting and the reason for absence submitted by any member. The Board shall recommend to the governing body the removal for cause of any member who is absent from three (3) consecutive meetings without adequate reason.

**Article II.
Meetings**

Section 1. Time and Place.

An annual schedule of regular meetings shall be published and posted at the offices of the City of Charleston Department of Planning and Preservation in December of each year. Meetings of the Design Review Board shall be held the second and fourth Thursday of each month or otherwise as determined by the Board. Special meetings may be called by the Board upon 24 hours' notice, posted and delivered to all members and local news media. Meetings shall be held at the offices of the Department of Planning and Preservation, unless otherwise noted, and shall be open to the public.

(Ord. No. 2025-086, § 1, 6-17-25)

Section 2. Minutes and Records.

The Board shall keep minutes of its proceedings, showing the vote of each member upon each question, or if absent or failing to vote, indicating that fact, and shall keep records of its examinations and other official actions, all of which immediately must be filed in the office of the Board and must be a public record.

Section 3. Agenda.

A written agenda shall be furnished by the staff to each member of the Board and the news media and shall be posted at least five (5) days prior to each regular meeting, and at least twenty four (24) hours prior to a special meeting. Items may be removed from the agenda or postponed at a meeting by a majority vote.

(Ord. No. 2022-009, § 5, 1-25-22)

Section 4. Public Notice.

Each applicant, whose application is to be heard, will be notified of the date of the meeting at least five (5) days prior to the meeting by letter from the Secretary. The property for which the application applies shall be posted with a sign at least seven (7) days prior to the meeting. Said sign shall contain a description of the matter to be heard and specify the appropriate city department to contact concerning information regarding the application. Said sign shall also specify the time, date and location of the meeting.

Section 5. Quorum.

A majority of the members of the Board shall constitute a quorum. A quorum shall be present before any business is conducted other than rescheduling the meeting.

Section 6. Rules of Order.

Robert's Rules of Order shall govern the conduct of the meetings except as otherwise provided by the Rules of Procedure.

Article III. Appeals Procedure

Section 1. Form of Appeal—Administrative Decision.

Appeals to the Board from an administrative decision may be taken by any person aggrieved by a determination of the administrative officer. Appeals shall be filed on forms approved by the Board and provided by the Secretary of the Board. Appeal forms shall be made available in the City of Charleston Department of Planning and Preservation, 75 Calhoun Street, Charleston, South Carolina. A detailed narrative must accompany the application specifying the grounds of appeal. The Board may require additional information deemed necessary. The failure to submit adequate information may be grounds for dismissal.

(Ord. No. 2025-086, § 1, 6-17-25)

Section 2. Time of Appeal.

An appeal from a Board decision or an administrative decision must be filed within fifteen (15) days from the making of such decision, order, requirement or determination.

Section 3. Calendar.

Appeals and applications shall be marked with the date of receipt and placed on the hearing calendar. Appeals shall be heard by the Board in the order in which received unless otherwise set by the Board for good cause shown.

Section 4. Withdrawal of Appeal or Application.

Any appeal or application may be withdrawn by written notice delivered to the Secretary prior to action by the Board. An appeal may not be re-filed after the fifteen (15) day time for appeal has expired.

Section 5. Continuances.

The hearing of an appeal may be continued one time by the Board for good cause shown.

Section 6. Notice of Appeal.

Public notice of an appeal to the Board shall be published and posted on or adjacent to the property affected at least five (5) days prior to the hearing. The notice shall contain a description of each matter to be heard, and identify the property affected.

Section 7. Appeal of Board Decision to Circuit Court.

A person who may have substantial interest in any decision of the Board or any officer or agent of the appropriate governing authority may appeal from a decision of the board to the circuit court in the county by filing with the clerk of court a petition in writing setting forth plainly, fully, and distinctly why the decision is contrary to the law. The appeal must be filed within thirty (30) days after the affected party receives actual notice of the decision of the Board.

Article IV. Hearing Procedure

Section 1. Appearances.

The applicant or any person may appear in person or by agent or by attorney. The Board may postpone or proceed to dispose of a matter on the records before it or in the absence of an appearance on behalf of an applicant.

Section 2. Application Phases.

Demolition and Partial Demolition: Demolition is defined as the removal of an entire building or significant portion of a building, the removal of which may compromise the structure's architectural character.

Conceptual: Review of the general height, scale, mass and three dimensional form of a building, or an addition to an existing building, and the general architectural direction and quality of the project as it relates to its site, its neighborhood, and the City of Charleston. This phase defines the overall quality and architectural character of the project.

Preliminary: Review of the development of the conceptual design and its relationship to its context in terms of the project's details, finishes and materials. This phase defines the level of quality of construction, and the relationship of the building's components to surrounding buildings and to one another.

Final: Review of the completion of the preliminary design based on completed construction documents and material specifications.

Section 3. Conduct of Hearing.

The normal order of hearing, subject to modification by the Chairman, shall be:

- a. Statement of matter to be heard (Chairman or Secretary);
- b. Presentation by applicant, or administrative officer in the case of an appeal, (10-minute limit or as determined by the Chairman);
- c. Presentation by public (3-minute limit per person or as determined by the Chairman);
- d. Rebuttal by applicant (3-minute limit);
- e. Presentation and recommendation by staff (10-minute limit or as determined by the Chairman);
- f. The Board may question participants at any point during the hearing;
- g. Matters in which additional time is granted may be moved to the end of the agenda.

Section 4. Disposition.

The Board may deliberate and make a final disposition of a matter by majority vote of members present at the hearing and qualified to vote; provided that not less than a quorum are qualified to vote. The vote may be taken at the same or subsequent meeting. A member may not vote on a matter, which the member has not heard. Deliberations shall be conducted and votes taken in public. When a member has a conflict of interest in a matter being heard, that member shall complete a conflict of interest form for that matter, abstain from voting and leave the room until the matter is disposed of.

Section 5. Decisions of the Board.

A decision of the Board shall be issued disposing of a matter by granting or denying approval with such conditions as may be deemed necessary; or affirming, modifying, or reversing an administrative decision. The Secretary shall notify the applicant by mail upon execution of the decision of the Board.

**Article V.
Records**

Section 1. Minutes.

The Clerk of Council shall record all meetings and hearings of the Board. The Clerk shall prepare minutes of each meeting, which shall be maintained as public records.

Section 2. Decisions.

The Secretary shall assist in the preparation and notice of all decisions of the Board in appropriate form. Copies of all notices, correspondence, documentary evidence, decisions and forms shall be maintained as public records.

**Article VI.
Amendment, Conflicts and Adoption**

Section 1. Amendment.

These rules may be amended at any regular meeting of the Board by majority vote of the members of the Board.

Section 2. Conflicts.

These Rules and Procedure are intended to complement and supplement State law and City ordinances pertaining to design review. To the extent of any inconsistency between these Rules and applicable State law and City ordinances, the hierarchy of application shall be State law first, followed by City ordinance, followed by the provisions of these Rules.

Section 3. Adoption.

These rules and regulations were adopted by vote of a majority of the members of the Board at a regular public meeting on November 8, 2012.

APPENDIX L
HEMMINGWOOD PUD "HW-PUD"
DEVELOPMENT GUIDELINES*

I. Statement of purpose.

The Hemmingwood PUD is a 14.68 acre neighborhood located off Dogwood Road. The original tract, and one adjoining parcel which is not part of the Hemmingwood neighborhood, was given a "Planned Development" zoning by Charleston County and developed under the jurisdiction of Charleston County before the Hemmingwood neighborhood was annexed into the City of Charleston.

The development guidelines listed below incorporate the original guidelines adopted by Charleston County with updates to reflect the neighborhood as it currently exists.

II. Land uses.

The Hemmingwood PUD consists of 63 single-family detached homes, two ponds and a park common area. Landscape buffers 30 feet in width run along Dogwood Road and Pierpont Avenue.

III. Setback criteria.

The following building setback, lot coverage and height requirements shall apply:

- | | | |
|----|----------------|--|
| A. | Front Setback: | 18 feet minimum. |
| B. | Rear Setback: | 10 feet minimum. |
| C. | Side Setback: | Minimum of 4 feet on one side, and minimum of 8 feet total both sides. |
| D. | Corner Lots: | Front setback shall be measured to roadway which house faces. Side setbacks shall be applicable to the other roadway. |
| E. | Lot Coverage: | Maximum of 35% building lot coverage |
| F. | Height Limit: | 35 feet maximum measured from flood elevation. Additional setback of one foot required for each foot of height over 35 feet. |

IV. Lot size criteria.

- | | |
|----|--|
| A. | Total Number of Single-family Lots = 63. |
| B. | Average Lot Size = 6,750 Square Feet |

***Editor's note**—Ord. No. 2006-187, adopted May 23, 2006 added provisions designated as App. K. In order to avoid conflicts in numbering the editor has redesignated the appendix added by this ordinance as App. L.

C. Minimum Lot Size = 6,000 Square Feet

V. Off street parking.

A minimum of 2 offstreet parking spaces will be provided on each lot.

VI. Screening/buffer areas.

Since there are significant existing trees along Dogwood and Pierpont the a 30' buffer along each road shall be maintained.

VII. Fences and walls.

Fences by the individual lot owners will be permitted as long as access to easements is not restricted.

VIII. Park area.

A park common area exists and was dedicated to the common use and enjoyment of the homeowners in Hemmingwood. Maintenance shall be the responsibility of the Homeowners Association.

IX. Ponds.

As part of the water retention facilities, ponds and outfall easements were incorporated within the project. Maintenance shall be the responsibility of the Homeowners Association.

X. Streets.

The subdivision streets shall be public streets with curb and gutter and dedicated to the public.

ZONING ORDINANCE COMPARATIVE TABLE

This table gives the location within this Zoning Ordinance of those amendatory ordinances adopted subsequent to the initial publication.

Ordinance Number	Adoption Date	Section	Section this Ordinance
1996-125	7-16-96	2	54-102.c.1.
		3	54-110.a., b.
		4 Added	54-202.d.
		5 Added	54-223
1996-227	11-26-96	1, 2	54-120
		3	54-206.e.
		4, 5	54-206.h., i.
		6	54-206.r.
		7	54-207.i.2.
		8-18	54-203
		19	54-301
		1	54-415.e.
		2 Rpld	54-415.a.3.
1997-03	1-28-97	3, 4	54-420.a.
1997-145	4-22-97	1	54-301
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		4	Rpld 54-207.m
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		9	Art. 4, Table 1.2
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		11	Added 54-1001—54-1010, 54-1020—54-1027, 54-1030—54-1039,

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2023-206	10-10-23	1	54-269.a
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